



INDIAN POLITY

NOTES



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SYLLABUS**UPSC : MAINS**

- ◆ Indian Constitution-historical underpinnings, evolution, features, amendments, significant provisions and basic structure.
- ◆ Functions and responsibilities of the Union and the States, issues and challenges pertaining to the federal structure, devolution of powers and finances up to local levels and challenges therein.
- ◆ Separation of powers between various organs dispute redressal mechanisms and institutions.
- ◆ Comparison of the Indian constitutional scheme with that of other countries.
- ◆ Parliament and State legislatures-structure, functioning, conduct of business, powers & privileges and issues arising out of these.
- ◆ Structure, organization and functioning of the Executive and the Judiciary-Ministries and Departments of the Government; pressure groups and formal/informal associations and their role in the Polity.
- ◆ Salient features of the Representation of People's Act.
- ◆ Appointment to various Constitutional posts, powers, functions and responsibilities of various Constitutional Bodies.
- ◆ Statutory, regulatory and various quasi-judicial bodies.

RPSC SYLLABUS**PRELIMS (2026)**

- ◆ Indian Constitution, Political System & Governance Framing of the Constitution, Preamble, Citizenship, Fundamental Rights, Directive Principles of State Policy and fundamental Duties.
- ◆ Union Government- Executive, Legislature and Judiciary.
- ◆ Union State Relations, Emergency provisions.
- ◆ Urban and Rural local Government.
- ◆ Election Commission, Union Public Service Commission, National Human Rights Commission, National Commission for women, National Commission for Protection of Child Rights and Niti Aayog.
- ◆ Public Policy, Citizen Charter, Social Audit and Grievance Redressal system.
- ◆ Lokpal, Central Vigilance Commission, Central Information Commission.

MAINS (2026)**◆ Origin, Structure, and Key Principles of the Constitution of India**

- ✦ Constituent Assembly, influences, Philosophical Bases, Fundamental Rights, Directive Principles, and Fundamental Duties.
- ✦ Basic Structure Doctrine, Amendment Process and major constitutional changes.
- ✦ Recent Constitutional Developments and Judicial Pronouncements, Constitutional Morality and Transformative Constitutionalism.

◆ Institutional Framework & Governance Mechanisms

- ✦ President, Vice President, Prime Minister, Council of Ministers, and Parliament
- ✦ Emerging trends in Federalism in India.
- ✦ Supreme Court, High Courts, Judicial Review, Judicial Activism, Virtual Court, eCourts and e-Committee.

◆ Dynamics of Indian Polity

- ✦ Contemporary shifts in India's democracy marked by evolving party systems, assertive regionalism, and coalition realignments.
- ✦ Shift from identity-based politics to issue-driven and inclusive politics with increasing gender participation, Socio-Political Implications of Artificial Intelligence-Enabled Mobilization.
- ✦ Voting behaviour, electoral reforms, and the functioning of elections in India.
- ✦ Contemporary Evolving Patterns in Indian Politics.
- ✦ **Internal Security:** Threats, Security Forces and Agencies Mandate, Roles, and Challenges in Internal Security Management.

PSI SYLLABUS (2026)**INDIAN CONSTITUTION, POLITICAL SYSTEM & GOVERNANCE****◆ Constitutional Development & Indian Constitution:**

- ✦ Government of India Acts: 1919 and 1935, Constituent Assembly, Nature of Indian Constitution; Preamble, Fundamental Rights, Directive Principles of State, Fundamental Duties, Federal Structure, Constitutional Amendments, Emergency Provisions, Public Interest Litigation (P.I.L.) and Judicial Review.

◆ Indian Political System and Governance:

- ✦ Nature of Indian State, Democracy in India, Reorganization of States, Coalition Governments, Political Parties, National Integration.
- ✦ Union and State Executive; Union and State Legislative, Judiciary.
- ✦ President, Parliament, Supreme Court, Election Commission, Comptroller and Auditor General, Planning Commission, National Development Council, Central Vigilance Commission (CVC), Central Information Commission, Lokpal, National Human Rights Commission (NHRC).
- ✦ Local Self Government & Panchayati Raj.

◆ Public Policy & Rights:

- ✦ National Public Policy as a welfare state.
- ✦ Various Legal Rights and Citizen Charter.

◆ Basic Knowledge of New Criminal Laws

State

A state or country is a unit in which a community of people resides within a definite territory and is governed by a well-organized government functioning sovereignly free from external pressures.

- ◆ **Essential elements of a state:** definite territory, population, government, sovereignty.
- ◆ **According to Kautilya's 'Arthashastra', there are 7 Elements of the state (Saptang Theory):** King, Amatya (Minister), Region/Territory, Fort (Fortified Capital), Treasury, Army, Friendly State.

Nation

Nation is defined as a collective of people united together and existing as an organized society.

Generally the following characteristics can be observed.

- ◆ Live in a particular region.
 - ◆ Follow the same customs and traditions.
 - ◆ Speak a common language.
 - ◆ They share a common historical continuity.
- ★ Thus, State is a political concept, whereas Nation is a cultural concept.

	Country	State	Nation
1.	India	Yes	Yes
2.	Japan	Yes	Yes
3.	USA	Yes	No
4.	Arab Nation	No	Yes

Theories of the Origin of the State:

1. Divine Theory of Kingship

- ◆ This theory believes that the king is a representative of God on Earth and executes God's commands within his kingdom.
- ◆ Hence, the state came into existence based on divine will.
- ◆ Example: Jilh-e-Ilahi (Shadow of God).

2. Social Contract Theory

This Theory was given by **John Locke, Thomas Hobbes, Jean-Jacques Rousseau.**

- ◆ According to this theory, before the formation of the state, society was in a 'state of nature', often compared to (Matsya Nyaya) — a condition of chaos and uncertainty.
- ◆ To escape this anarchy, people entered into a contract with a ruler, handing over certain rights in exchange for security and order.
- ◆ In modern times, the democratic process reflects this theory, where citizens transfer power to rulers through elections.

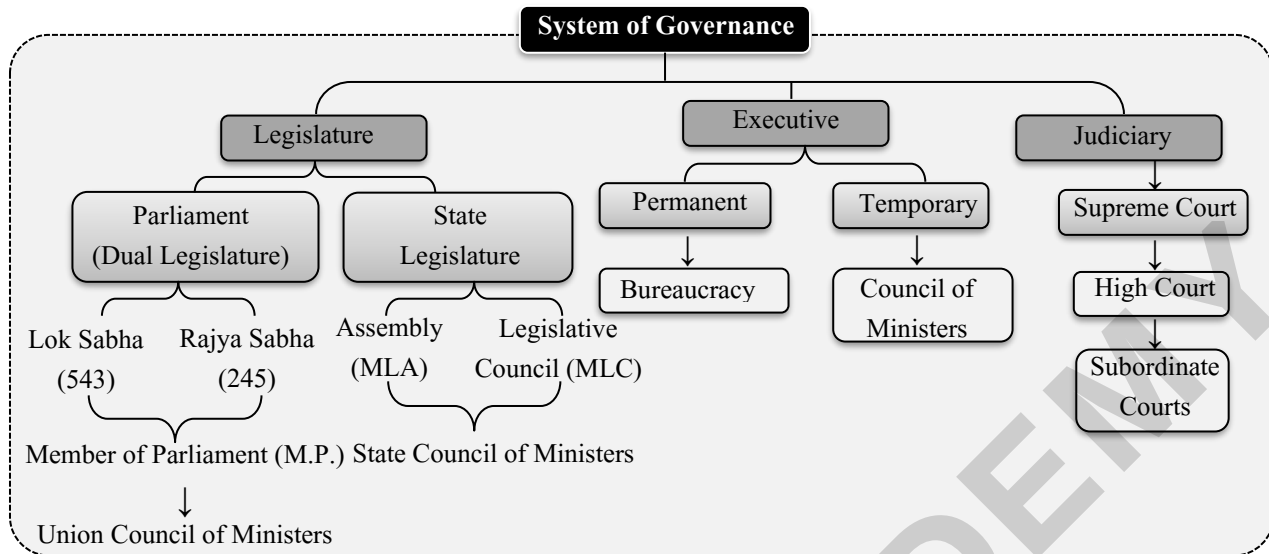
3. Theory of Separation of Powers:

In monarchy all powers are vested in the king.

Monarchy: Legislative powers, Executive powers, Judicial powers

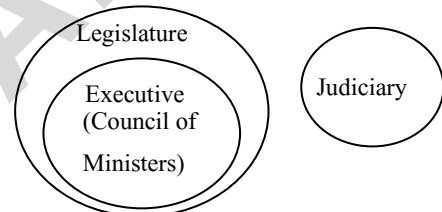
That is, due to 'centralization of powers' in the monarchy, the king often became autocratic.

- ◆ French thinker Montesquieu gave the 'Doctrine of Separation of Powers', according to which the three powers of governance should be separated. Hence, democracy is based on separation of powers.



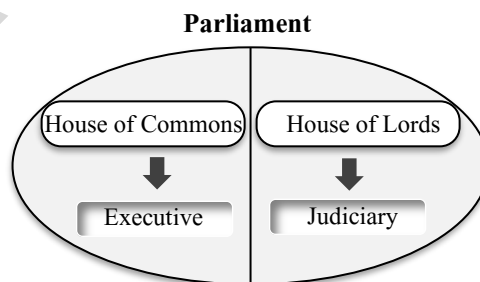
INDIA

- ◆ India has a dual legislature, i.e. there are separate legislatures at the Centre and in the states.
- ◆ There is a dual executive in India, that is, there are separate councils of ministers at the Centre and the states.
- ◆ India has a unified judiciary i.e. the High Courts are subordinate to the Supreme Court.
- ◆ India has a Parliamentary system of government. Hence, there is no clear separation of powers because the executive is a part of the legislature.



Britain

Britain also follows the Parliamentary system of government. Therefore, there is no clear separation of powers there as well. In Britain, both the executive and the judiciary are considered parts of the legislature. Hence, there is Parliamentary Sovereignty in Britain, whereas in India, there is Constitutional Supremacy.



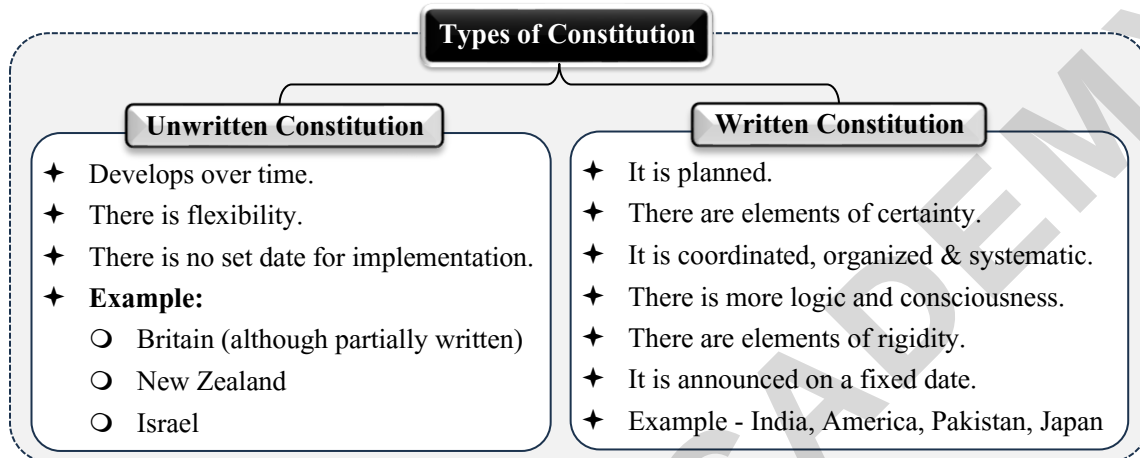
United State of America (USA)

The United States follows the Presidential system of government; therefore, there is a clear separation of powers.



Constitution and Constitutionalism

- ◆ Constitution is derived from the Latin word 'Constitutio' which means- to command or to establish.
- ◆ Constitution is a formal document which contains a set of fundamental principles and procedures which determine and regulate the structure, functioning and environment of the concerned organization and government.
- ◆ Generally, it is the supreme law of the country and it is binding upon the state and its people.



Functions of the Constitution:

1. To define the nature, objectives, structure, powers/authority, and limitations of the political system.
 2. To determine the provisions relating to citizenship, and the rights and duties of citizens.
 3. To lay down the social, economic, and political values, goals, objectives, and ideals—
For example: India as a secular nation, an economically egalitarian society, and a democracy.
 4. To provide guidance for national values and objectives.
- ◆ **Constitutionalism means** — A system of governance in which the powers of the government are limited and regulated by the constitution, and the government is required to perform all its functions in accordance with the Constitution.

Key features:

1. **Limited government** – The power of the rulers is not absolute.
2. **Rule of law** – The government functions under the law.
3. **Protection of Citizens' Rights** – Fundamental rights are protected.
4. **Separation of powers**
5. **Judicial review**

Q. Consider the following statements:

(UPSC 2014)

A Constitutional Government is one which

1. places effective restrictions on individual liberty in the interest of State Authority.
2. places effective restrictions on the Authority of the State in the interest of individual liberty.

Which of the statements given above is/are correct?

- (a) 1 only (b) 2 only (c) Both 1 and 2 (d) Neither 1 nor 2

Demand for Constituent Assembly

- ◆ **1895 AD-** Bal Gangadhar Tilak
- ◆ **1922 AD-** Mahatma Gandhi
- ◆ **1928 AD-** Motilal Nehru Report also demanded that laws be enacted on the basis of a legislature elected by the people of India.
- ◆ **In May 1934,** the Swaraj Party (for the first time as a political party) demanded a Constituent Assembly.
- ◆ **1934 AD-** Manvendra Nath Roy, for the first time as an individual, explicitly demanded a Constituent Assembly.
- ◆ **In 1934,** the All India Congress Committee approved the Swaraj Party's proposal. The demand for a Constituent Assembly was officially accepted at the Faizpur Session of the Congress in 1936, and later reaffirmed by the Congress Working Committee in 1939.
- ◆ **1938 AD-** Pandit Jawaharlal Nehru, as a representative of Congress, demanded a directly elected Constituent Assembly on the basis of universal adult franchise.
- ◆ **In 1939,** Gandhiji, through the Harijan journal, demanded a Constituent Assembly as a solution to communalism.
- ◆ **In 1940,** the Muslim League demanded two separate Constituent Assemblies.
- ◆ **1940 AD-** The demand for a Constituent Assembly was accepted by the British for the first time in the August proposal. Although the word 'Constituent Assembly' was not mentioned in it.
- ◆ **1942 AD-** The Cripps Mission made a provision for an indirectly elected Constituent Assembly which was to be elected by the members of the lower house of the provincial legislature.

Rejected by the Muslim League & Congress.

One-member commission headed by British government minister Sir Stafford Cripps.

- ◆ **In 1945, the Sapru Committee acknowledged the legitimacy of the demand for a Constituent Assembly.**
- ◆ **Cabinet Mission** – It came to India on **24 March 1946**. (The demand for **two Constituent Assemblies** made by it was rejected.)
- ◆ **1946AD-** The Constituent Assembly was elected on the basis of the recommendations of the Cabinet Mission. This plan was proposed on 16 May 1946. **The Muslim League was dissatisfied with this.**

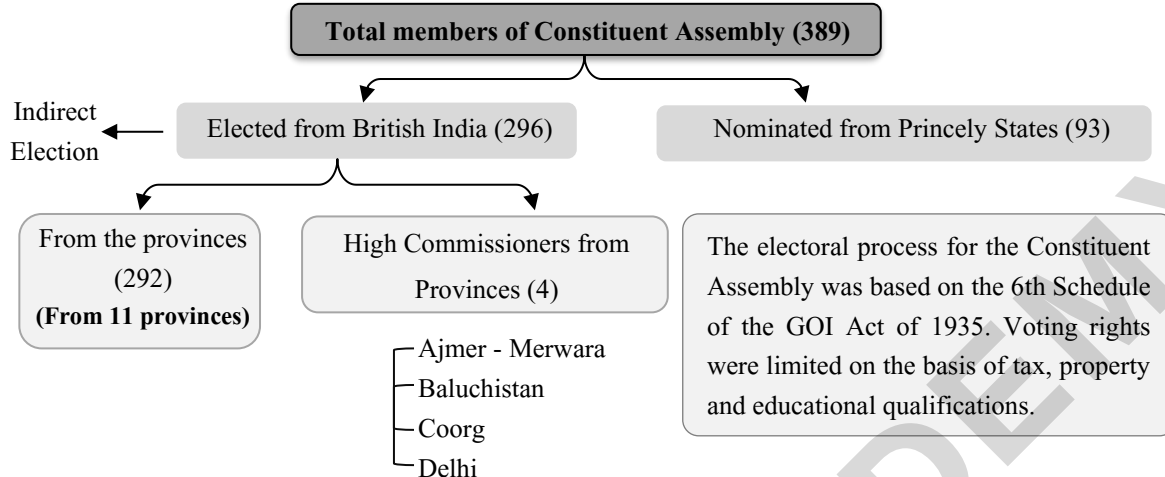
Member

1. Lord Pethick Lawrence (Secretary of India)
2. Sir Stafford Cripps (Chairman -Board of Trade)
3. A.V. Alexander (Navy Minister)

Trick : SAP

- ◆ As a result of the Mountbatten Plan of 3rd June 1947, a separate Constituent Assembly was constituted for Pakistan.

Structure of Constituent Assembly



- ◆ One representative was elected for every 10 lakhs (1million) population. The election of the Constituent Assembly was **indirect**.
- ◆ **Electoral College** → By the members of the lower house of the provincial legislature. (Elections for provincial legislature were held in 1946)
- ◆ **Electoral method** → By single transferable vote of proportional representation system.
- ◆ Under the proportional representation system, three categories of seats were created →
 - (1) **Muslim reserved seats** → 78
 - (2) **Sikh reserved seats** → 4
 - (3) **General seats** → 210 (including Hindu, Jain, Christian, Persian etc.)
- ◆ Election to the Constituent Assembly was held in **July - August 1946** (for 296 seats).

Election Results

- ◆ **Congress** = 208
 - ◆ **Muslim League** = 73
 - ◆ **Independent** = 8
- } Thus, the Constituent Assembly was a multi-party body.
- ◆ **7 parties won 1 seat each.** (Krishak Praja Party, Unionist Party, Scheduled Caste Federation, Communist Party, etc.)
 - ◆ Mahatma Gandhi and Mohammad Ali Jinnah did not participate in the election for the Constituent Assembly.
 - ◆ M.R. Jayakar resigned from the Constituent Assembly in favour of Dr. B.R. Ambedkar.
 - ◆ **15 women members were elected in the Constituent Assembly-**
 1. **Dakshayani Velayudhan** - The only scheduled caste [Dalit] woman (Pulayar community) elected in the Constituent Assembly.
 2. **Vijayalakshmi Pandit** - The first woman president and the only Indian president in the United Nations General Assembly.
 3. **Sarojini Naidu** - The first woman governor (U.P.).
 4. **Sucheta Kriplani** - The first woman Chief Minister of a state (U.P.).
 5. **Rajkumari Amrit Kaur** - The first woman Cabinet Minister (Health Minister).
 6. **Annie Mascarin** - Women representative from the princely states.
 7. **Begum Aizaz Rasul** - The only Muslim woman member elected in the Constituent Assembly.
- | | | |
|----------------------|----------------------|------------------------|
| 8. Ammu Swaminathan | 9. Durgabai Deshmukh | 10. Hansa Jivraj Mehta |
| 11. Kamla Choudhary | 12. Leela Roy | 13. Malati Choudhary |
| 14. Purnima Banerjee | 15. Renuka Ray | |

Functioning of the Constituent Assembly

- ◆ **The Constituent Assembly was constituted on 6th December 1946.**
- ◆ **First session of assembly was held between 9 december to 23 december.**

9 December 1946 The first meeting of the Constituent Assembly was held. (In Constitution Hall, now known as the Central Hall of Parliament House)

- ✦ The Muslim League boycotted the meeting.
- ✦ Most of the princely states also did not participate.
- ✦ A total of 207 members participated (including 10 women).
- ✦ Dr. Sachchidanand Sinha was made the interim chairman (being the senior-most member, as per French convention).
- ✦ Dr. Sachchidananda Sinha was appointed as the Executive Councillor and Finance Member of the Bihar and Orissa Government (the first Indian to be appointed to this post), and he also served as the Vice-Chancellor of Patna University for eight years.
- ✦ J.B. Kripalani commenced the inaugural session with the singing of Vande Mataram.
- ✦ Frank Anthony nominated as temporary Deputy Speaker.
- ✦ Tributes paid to Prasanna Devaray, member of the Constituent Assembly from Bengal

10 December 1946 Second meeting of the Constituent Assembly. On 10th and 11th December, a Rules of Procedure Committee was formed to frame the Rules of Procedure of the Constituent Assembly. It was the first committee of the Assembly, and its Chairman was Dr. Rajendra Prasad.

11 December 1946

- ◆ **Permanent President** - Dr. Rajendra Prasad (The proposal was moved by J. B. Kripalani)
- ◆ **Vice Presidents** – 1. H.C. Mukherjee (Permanent Vice President) (elected on 25 January 1947)
2. V.T. Krishnamachari (On 16th July 1948) - He was from Jaipur State.
- ◆ **Constitutional Advisor:** B. N. Rao (Earlier, he has assisted in drafting the Constitution of Burma.)

B. N. Rao prepared the first draft of the Constitution while the final draft was prepared by the Drafting Committee (4 November 1948). On this day the Constitution was read for the first time.

13 December 1946 -

- ◆ The objective resolution was introduced by Pandit Jawaharlal Nehru.
- ◆ On December 16, M.R. Jayakar presented the first amendment against the 'Objective Resolution'.
- ◆ On 22 January 1947, the Constituent Assembly passed the 'Objective Resolution' (unanimously).

Salient Features of the Objective Resolution:

1. To establish an independent, sovereign Indian Republic and to frame a constitution for it.
2. The following areas should be included in the independent Indian Union:
 - ✦ British India
 - ✦ Indian princely states (Indian states)
 - ✦ Other Indian areas (Goa, Puducherry etc.)
 - ✦ Other states or areas which voluntarily want to join India.
3. States should be given autonomy in the Indian Union and residuary powers should be given to the states. {To convince Mohammad Ali Jinnah, but later on, when India was divided, these residuary powers were given to the Center.}
4. In Independent India, the source of all the authority and powers of governance should be the people (democracy).

5. All the citizens of the country:

Justice	Freedom	Equality
→ Social → Economic → Political	→ Thought → Worship → Expression → Occupation → Belief → Forming Association → Faith → To work	→ Status → Opportunity → Before the law

within the
bounds of
law and
morality.

Will be ensured.

6. Special measures should be taken to protect the interests of the following →

- ✦ Minorities
- ✦ Socially backward and deprived classes
- ✦ Backward and tribal areas

7. The Indian state shall strive to maintain the integrity of its territory and shall retain sovereign rights over land, sea and air.

8. India has a special position in the world since ancient times, to sustain that position and to promote world peace and human welfare.

Change in the role of the Constituent Assembly on 15 August 1947

- The Constituent Assembly became a sovereign body because now it was free from the recommendations of the Cabinet Mission.
- Now the Constituent Assembly played a dual role -
 - ◆ Constitution making body (Presidency - Dr. Rajendra Prasad)
 - ◆ As a legislature (Presidency - G.V. Mavalankar) (First meeting as a legislature – 17 November, 1947)
- Change in the number of members

Total = 299

British India = 229 (From 12 provinces)

Highest → United Provinces (55)
 2nd = Madras (49)
 Bihar = 36
 West Bengal = 19

Princely States = 70 (From 29 princely states)

Mysore = 7 members (Maximum Members)
 Travancore = 6 members Jaipur = 3 Members
 (Highest in Rajasthan)

Committees of the Constituent Assembly

The Constituent Assembly had a total of 22 committees, of which 8 were major and 14 were minor committees (major committees 1 to 7 + the Drafting Committee).

Board	Chairman
1. Union Constitution Committee (14 members)	Jawaharlal Nehru
2. Union Powers Committee (15 members)	Jawaharlal Nehru
3. Committee for Indian States	Jawaharlal Nehru
4. Provincial Constitution Committee (23 members)	Sardar Vallabhbhai Patel
5. Advisory Committee on Fundamental Rights, Minorities and Tribal Areas (External and Partially External Areas) (Committee with maximum members) (5 sub-committees were constituted under this) (i) Fundamental Rights Sub-Committee - J.B. Kripalani (11 members) (ii) Minorities Sub-Committee - H.C. Mukherjee (28 members) (iii) Scheduled and Tribal Areas Sub-Committee (Assam)- Gopinath Bordoloi (iv) External and Partially External Areas Sub-Committee (Except Assam) - A.V. Thakkar (v) North-West Frontier Tribal Areas Sub-Committee	Sardar Vallabhbhai Patel

6. Committee on Rules of Procedure (15 members)	Dr. Rajendra Prasad
7. Steering Committee	Dr. Rajendra Prasad
8. Ad-hoc Committee for the National Flag	Dr. Rajendra Prasad
9. Finance & Staff Committee	Dr. Rajendra Prasad
10. Committee on functions of constituent assembly	G. V. Mavalankar
11. Special Committee to examine the draft of the Constitution	Pandit Jawaharlal Nehru
12. Credential Committee	A.K. Ayyar
13. House Committee	Pattabhi Sitaramayya
14. Order of Business Committee	K.M. Munshi

◆ **Special Committee for Supreme Court** - S. Varadachari

- Not a member of Constituent Assembly.
- Also Chairman of Ad-hoc Committee on Citizenship.

◆ **Linguistic Provinces Commission** - S.K. Dhar (Not a member of Constituent Assembly).

Drafting Committee

◆ **Formation:** 29 August 1947

◆ **Chairman:** Dr. Bhimrao Ambedkar (Chief Architect of the Indian Constitution)

◆ **Member:**

1. N. Gopalaswami Iyengar
2. Alladi Krishna Swamy Iyer
3. Mohammed Saadullah
4. K.M. Munshi (Congress)
5. N. Madhava Rao (replaced B.L. Mitra after his resignation due to health reasons)
6. T.T. Krishnamachari (replaced D.P. Khaitan after his death in 1948), member of the Congress.

Naziruddin Ahmad has called the Drafting Committee a drifting committee.



Do you Know?

In the initial elections of the Constituent Assembly held in 1946, B.R. Ambedkar lost the election from Bombay. However, Jogendra Nath Mandal, who was a member from Bengal, relinquished his seat in favor of B. R. Ambedkar. But as the region became part of Pakistan, Ambedkar was subsequently sent to the Constituent Assembly from the Bombay Presidency. M.R. Jayakar of the Congress had resigned.

- ◆ The drafting committee studied the constitutions of about 60 countries and prepared the draft of the Indian Constitution from them.
- ◆ The Drafting Committee worked for 141 days to prepare the draft, which contained 315 Articles and 8 Schedules, and was first presented before the Assembly on 4th November 1948. A total of 7,635 amendments were proposed by the members, out of which 2,473 were moved in the House.
- ◆ This draft of the constitution had 3 readings in the Constituent Assembly
 1. 4 November - 9 November 1948
 2. 15 November 1948 - 17 October 1949
 3. 14 November 1949 - 26 November 1949
- ◆ This draft was debated in the House for a total of 114 days. **A total expenditure of Rs. 64 lakh was incurred.**

On 26 November 1949 the Constituent Assembly passed the Constitution. On this day, the Constitution was adopted, enacted and dedicated to ourselves. The Constitution was signed by 284 members. Since 2015, 26th November has been observed as Constitution Day. 284 members signed the Constitution.

- ◆ 16 Articles were implemented on 26 November 1949 itself.

Some important articles -

Article 394: This Article and Articles 5, 6, 7, 8, 9, 60, 324, 366, 367, 379, 380, 388, 391, 392, and 393 shall come into force together (i.e., a total of 16 Articles), and the remaining provisions of this Constitution shall come into force on 26 January 1950.

- ★ Article - 5, 6, 7, 8, 9 (Citizenship)
- ★ Article - 60 (Oath of the President)
- ★ Article - 324 (Election Commission)
- ★ Article - 366, 367 (Definitions and Interpretation)
- ★ Article - 394

- ◆ The rest of the Constitution came into force on 26 January 1950.
 - ★ Republic Day (Why? – The first President of India (Head of State) took oath of office.
- ◆ A total of 11 sessions of the Constituent Assembly were held over a period of 2 years, 11 months, and 18 days (although PIB and some other sources mention 2 years, 11 months, and 17 days). During this period, the Constitution was framed.

	Time	Session	Meetings
Time taken in making the Constitution	2 years 11 months 18 days	11	165
Existence of Constituent Assembly	3 years 1 month 16 days	12	166

24 January 1950

- ◆ The National Anthem and National Song were formally adopted.
- ◆ Dr. Rajendra Prasad was duly elected as the first President of India.
 - ★ The election officer in this election was H.V.R. Iyengar.
 - ★ Only one nomination was received for the election.
 - ★ This proposal was put forward by Jawaharlal Nehru and seconded by Sardar Vallabhbhai Patel.
- ◆ This was the last meeting of the Constituent Assembly.
- ◆ On this day the Constituent Assembly was dissolved but it continued to function as a legislature till 1952.
- ◆ On this day, 3 copies of the constitution were tabled (hand written English and Hindi, Printed English copy)

26 January 1950 The Constitution came into force on 26th January 1950. The original Constitution consisted of 395 Articles, 8 Schedules, and approximately 1,45,000 words.

- ◆ This day is celebrated as Republic Day because the first President of India, Dr. Rajendra Prasad took oath on this day and India became a republic country.
- ◆ **22 July 1947** – National flag was adopted.
- ◆ **13 May 1949** – Membership of Commonwealth was recognised. (8th Session)
- ◆ **Dr. Rajendra Prasad** → "A constitution is like a lifeless machine. It is the people who have to breathe life into it. What India needs is a few honest men for whom the national interest is supreme."

Important Fact

1. Seal of the Constituent Assembly → Elephant symbol
2. Secretary of the Constituent Assembly / Election Officer → H. V. R. Iyengar
3. Chief Draftsman of the Constitution → S. N. Mukherjee
4. Principal Calligrapher → Prem Behari Narain Raizada
5. Illumination of the Constitution → Nandalal Bose and Beohar Rammanohar Sinha
6. Calligrapher of the Hindi version → Vasant Krishan Vaidya
7. Decisions in the Constituent Assembly were taken by consensus and mutual agreement.

Representation of different communities in the Constituent Assembly

S.No.	Community	Number
1.	Hindu	163
2.	Muslim	80
3.	Scheduled Caste	31
4.	Indian Christian	6

S.No.	Communities	Number
5.	Backward Tribes	6
6.	Sikhs	4
7.	Anglo-Indians	3
8.	Parsis	3

Interim Government

- ★ Declaration - 24 August 1946
- ★ President - Viceroy Wavell
- ★ Sardar Vallabhbhai Patel was the Home and Information Broadcasting Minister.
- ★ Dr. Rajendra Prasad was the Food and Agriculture Minister.
- ★ This government worked from 1946 to 1952.
- ★ Formation - 2 September 1946
- ★ Vice President and Prime Minister - Jawaharlal Nehru

Members of the Constituent Assembly from Rajasthan:

1. V. T. Krishnamachari – Jaipur
2. Hiralal Shastri – Jaipur
3. Sardar Singh – Khetri
4. Vijay Raghavachari and Balwant Singh Mehta – Udaipur
5. Manikya Lal Verma – Udaipur
6. Raj Bahadur – Bharatpur
7. C. S. Venkatachari – Jodhpur
8. Jayanarayan Vyas – Jodhpur
9. Mukut Bihari Bhargava – Ajmer-Merwara
10. K. M. Panikkar and Jaswant Singh – Bikaner
11. Gokul Lal Asawa – Shahpura (Bhilwara)
12. Dalel Singh – Kota
13. Ramchandra Upadhyaya – Alwar

Criticisms of the Constituent Assembly:

1. **The Constituent Assembly did not represent the people because indirect elections were held in British India and nominated members were elected in the princely states.**
 - ◆ But the above criticism is not justified because in the then circumstances direct election of the Constituent Assembly was very difficult for which the following reasons were responsible -
 - ★ The national movement was at its peak.
 - ★ There was political instability.
 - ★ Communal riots were taking place across the country.
 - ★ For elections – (1) Lack of resources (2) Lack of time (3) Lack of means of communication
 - ★ The primary challenge in the princely states was to merge them with India, so elections were not possible in the princely states.

2. **The Constituent Assembly was formed on the basis of the recommendations of the Cabinet Mission, hence it was not a sovereign body.**

- ◆ This criticism is also not justified -
- ◆ The Constituent Assembly became a sovereign body on 15 August 1947, which was also mentioned in the Indian Independence Act, 1947.

3. **Wastage of Time:** Naziruddin Ahmad referred to the Drafting Committee as the 'Drifting Committee'.

Indian Constitution (2 years 11 months 18 days)	Constitution of USA (4 Months)
◆ India does not have a separate constitution for the states. ◆ India has vast diversity. Therefore, special provisions were made for the protection of all communities. ◆ The Indian constitution is a very detailed constitution which has 395 articles. ◆ Time taken by other countries - ▪ Australia = 9 years ▪ Pakistan = 9 years	◆ Separate constitutions for states were made later. ◆ USA has comparatively less diversity. ◆ Has a concisely written constitution with only 7 articles.

4. **Most of the members of the Constituent Assembly were from the Congress Party. Greenville Austin - "The Assembly is Congress and Congress is India."**

This criticism is also not justified because -

- ◆ The Congress Party provided leadership to the Indian National Movement, so it was natural that there were more Congress members in the Constituent Assembly.
- ◆ The draft of the Constitution was prepared by the Drafting Committee. The chairman of the Drafting Committee, Dr. Bhimrao Ambedkar himself was a non-Congress and there were only two Congress members in the Drafting Committee → (i) K.M. Munshi (ii) T.T. Krishnamachari
- ◆ Congress included people of diverse ideologies. Hence, the Congress ideology did not dominate the Constitution.

5. **Most of the members of the Constituent Assembly were Hindus, so the Indian Constitution is influenced by Hinduism: Lord Viscount → "The Constituent Assembly is a body of Hindus".**

The above criticism is also not justified, because →

- ◆ The Constituent Assembly was elected by the proportional representation system, but after the partition of the country, most of the Muslim members became a part of Pakistan, so the proportion of Hindus increased. (The nominated members from the princely states were also Hindus because most of the princely states were under Hindu rulers.)
- ◆ The Indian Constitution is a secular constitution, India does not have any national religion.

6. **Most of the members of the Constituent Assembly were politicians and lawyers. Other sections were not given adequate representation in it and due to the lawyers the language of the constitution is very complex.**

The above criticism is also not correct, because-

- ◆ The constitutions of most countries of the world have been prepared by lawyers and politicians because they are experts in law making. According to the British tradition, every aspect has been clarified in detail in the Indian Constitution, hence the language of the constitution has become complex.
- ◆ Politicians usually represent all sections of the society. Therefore, the members of the Constituent Assembly were representatives of different sections of the society, and the constitution provided for the protection of the interests of all.

Sessions of the Constituent Assembly

Session	Date	Key Event
I	9 Dec. – 23 Dec. 1946	–
II	20 Jan. – 25 Jan. 1947	Objectives Resolution was passed.
III	28 April – 2 May 1947	A proposal was put forth by Nehru ji for the formation of a Negotiation Committee to hold talks with the princely states.
IV	14 July 1947 – 31 July 1947	Except for Jammu & Kashmir and Hyderabad, members from other princely states had taken their seats. On 18 July, the Indian Independence Act was passed. 22 July: The National Flag was adopted. The task of preparing the National Flag was assigned to women under the leadership of Sarojini Naidu.
V	14 Aug. 1947 – 30 Aug. 1947	–
VI	27 Jan. 1948	Held only for one day.
VII	4 Nov. 1948- 8 Jan. 1949	–
VIII	16 May 1949 – 16 June 1949	Membership of the Commonwealth was accepted.
IX	30 July 1949 – 18 Sept. 1949	On 17 September 1949, it was decided that the original Constitution would be translated into Hindi.
X	6 Oct. 1949 – 17 Oct. 1949	Second reading of the Draft Constitution. The Preamble was adopted in its final form.
XI	14 Nov. 1949 – 26 Nov. 1949	Third reading of the Draft Constitution.
XII	24 Jan. 1950	–

Sources of the Indian Constitution

Government of India Act 1935

- ◆ Federal Structure (Autonomy of States)
- ◆ Office of Governor
- ◆ Judicial System
- ◆ Union Public Service Commission
- ◆ Emergency Provisions
- ◆ Administrative Structure
- ◆ Special Provisions for Scheduled and Tribal Areas
- ◆ Bicameral System
- ◆ Concurrent List
- ◆ Office of Comptroller and Auditor General
- ◆ Promulgation of Ordinances

Constitution of Britain

- ◆ Parliamentary Government
- ◆ Bicameral System

- ◆ Collective Responsibility of the Council of Ministers towards the Lower House
- ◆ Cabinet System
- ◆ Equality before law
- ◆ Single Citizenship
- ◆ Parliamentary Privilege
- ◆ Prerogative Writ
- ◆ Procedure established by law
- ◆ Legislative Procedure

Constitution of USA

- ◆ Independent Judiciary
- ◆ Judicial Review
- ◆ Procedure for removal of Judges from office (Supreme Court and High Court)
- ◆ Public Interest Litigation (PIL)
- ◆ Fundamental Rights

- ◆ Procedure for Impeachment of the President
- ◆ Post of Vice President
- ◆ Equal Protection of Law
- ◆ Due Process of Law
- ◆ First Line of Preamble (We the People of India)

Constitution of Canada

- ◆ Federal system in which residuary powers are vested in the centre.
- ◆ Appointment of Governors in states by the centre
- ◆ Advisory Jurisdiction of the Supreme Court (President can consult the Supreme Court)

Constitution of Ireland

- ◆ Directive Principles of State Policy
- ◆ Method of Election of President
- ◆ Nomination of Members in Rajya Sabha

Constitution of South

- ◆ Process of Amendment in Constitution
- ◆ Election of Members of Rajya Sabha

Constitution of Australia

- ◆ Concurrent List
- ◆ Joint Sitting of Both Houses of Parliament

- ◆ Draft of Preamble
- ◆ Freedom of Inter-State Trade, Commerce and Intercourse
- ◆ Union can make laws on the subjects of State List to enact International Agreements.

Constitution of France

- ◆ Republic
- ◆ Ideals of Liberty, Equality and Fraternity in the preamble

Constitution of Soviet Union

- ◆ Fundamental Duties
- ◆ Ideal of Justice (social, economic and political) in the preamble
- ◆ Planning

Constitution of Japan

- ◆ Procedure Established by law

Constitution of Germany

- ◆ Suspension of Fundamental Rights during National Emergency
- ◆ Only the Union can impose Emergency



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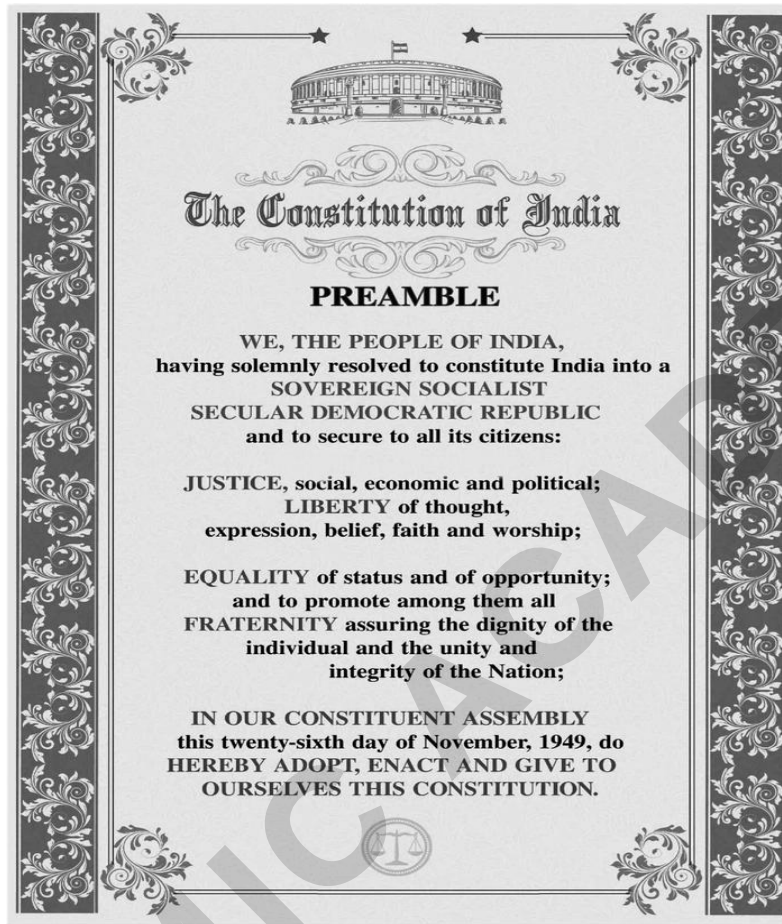
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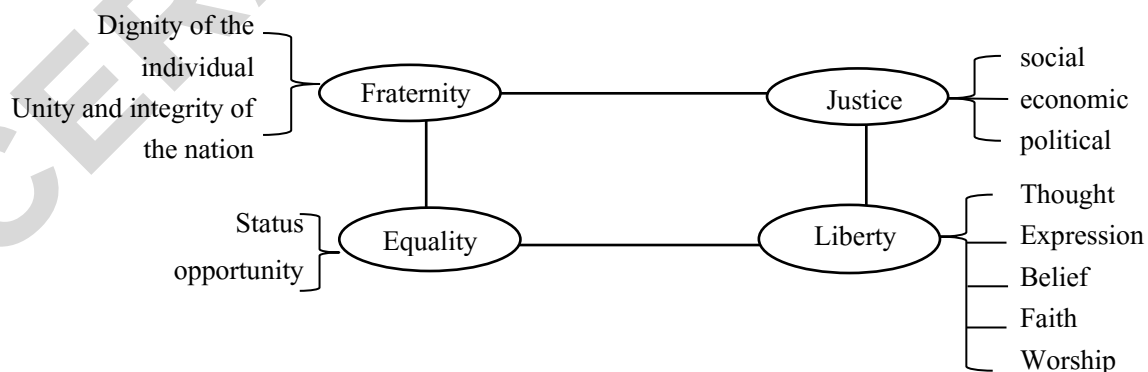


VIKAS GUPTA SIR



◆ The preamble makes the following 4 points clear

1. **Source of power :-** (We the people of India) i.e., Power lies with the people. This line is taken from the USA constitution
2. **Nature of State:** Sovereign, Socialist, Secular, Democratic, Republic.
3. **Objectives of State**



4. **Date on which the Constitution was adopted, enacted and given to ourselves:** 26 November 1949 (Miti Margashirsha Shukla Saptami Samvat 2006 Vikrami)



Do you Know?

- ★ The national calendar of India is not Vikrami Samvat but Shak Samvat, which was adopted on 22 March 1957.
- ★ Vikrami Samvat is 57 years ahead of the Gregorian calendar and Shak Samvat is 78 years behind of Gregorian calendar.

- ◆ **Adopt:** To formally accept or adopt something - such as a constitution, customs, policy, etc.
- ◆ **Enacted:** legally enacted or established by law.
- ◆ **Give to ourselves:** surrendering oneself or feeling of surrender.

Que: Is the Preamble a part of the Constitution?

Context:- In the Berubari area, located on the border between West Bengal (India) and East Pakistan, the Muslim population was in majority; however, the region was situated within Indian territory. Therefore, in 1958, Prime Minister Nehru entered into an agreement with Pakistani Prime Minister Feroz Khan Noon, under which it was decided to transfer the Berubari area to Pakistan. This agreement raised certain constitutional questions — particularly, whether any part of Indian territory could be ceded to another country without the approval of Parliament. It was also argued that such a move may violate certain expressions in the Preamble of the Constitution such as “We, the People of India”, “Sovereign”, and the principle of national unity. Consequently, the President of India, Dr. Rajendra Prasad, sought the opinion of the Supreme Court under Article 143 of the Constitution. The advisory opinion delivered by the Court in this matter came to be known as the Berubari Union Case (1960).

Ans: In the Berubari case, 1960, the Supreme Court ruled that the Preamble is not a part of the Constitution.

- ★ In the Berubari case, the Supreme Court held that the Preamble is the key to the minds of the Constitution-makers, the soul and guiding spirit of the Constitution, but not a part of the Constitution.
- ★ In the Kesavananda Bharati case, 1973, the Supreme Court changed its earlier decision and held that the Preamble is a part of the Constitution.
- ★ But it is not independently effective like the articles. It neither provides any kind of power to the Parliament nor puts any curb on the power of the Parliament. It is not enforceable by the court.
- ★ The Preamble can be made the basis for interpreting any article of the Constitution, that is, the Preamble is helpful in the interpretation of the Constitution. That is, the Preamble has no legal effect independently, but along with other articles of the Constitution, it is helpful in the interpretation of the Constitution.
- ★ In the LIC case 1995 also it was reiterated that the Preamble is an integral part of the Constitution.

Que: Can the Preamble be amended?

Ans: In the Kesavananda Bharati case of 1973, the Supreme Court ruled that Parliament can amend any part of the Constitution. Hence, the Preamble can also be amended. But this should not affect the basic structure of the Constitution.

- ★ By 42nd Constitutional Amendment, 1976 three new words were added in the Preamble: Socialist, Secular and Integrity. {Amendment to the Preamble can be done only under Article 368.}

Various nouns given to the preamble:

1. Soul of the Constitution → Hidayatullah/Thakur Das Bhargava
 2. Horoscope → K.M. Munshi
 3. Soul/Foundation Stone → Subhash Kashyap
 4. Identity card of the Constitution → Nani Palki Wala
 5. Key Note → Barker
 6. 'The Preamble of the Constitution is the reflection of our long-term dreams' - Alladi Krishnaswamy Ayyer
- ◆ The Preamble was included at the very end in the constitution.

Preamble: Philosophy of the Indian Constitution

We, the people of India—It means people are the ultimate source of power under the Constitution, not the British Parliament or any monarch.

Evaluate the claim, 'We, the people of India', made by the Constituent Assembly. RAS MAINS 2025

Positive Argument (In favour)	Negative Arguments (Against)
This statement reflects the principle of Popular Sovereignty — that the source of all power lies with the people.	The Constituent Assembly was not directly elected by universal adult suffrage.
The constitution laid the foundation of fundamental rights, equality, and democracy.	There was limited participation of many classes — especially the poor, women, uneducated, etc.
The Constituent Assembly included representation from minorities, Scheduled Castes/Tribes, women, and other sections.	The Constituent Assembly was formed under British rule, based on the Cabinet Mission Plan.
Decisions were taken on the basis of detailed debate and consensus.	This claim appears idealistic, rather than fully pragmatic.
Since 1952, the claim has received democratic legitimacy through regular, free, and fair elections.	
The Supreme Court has recognized it as the source of the Constitution's legitimacy (e.g., Kesavananda Bharati case, Usha Bharti case, 2014).	

- ◆ **Conclusion:** Although the Constituent Assembly was not directly elected by the entire populace, over time, India's democratic practices, electoral processes, and the judiciary have conferred legitimacy and practicality upon this claim. Hence, "We, the People of India" has today become a powerful and vibrant principle of Indian democracy.

The Preamble embodies the philosophy of the Indian Constitution. The following features of the Indian Republic have been described in the preamble—

Sovereignty

Sovereignty means that a country is completely independent, i.e. it takes all its decisions on its own and is not, directly or indirectly, subordinate to any other country or authority.

India was a Dominion State from 15 August 1947 to 26 January 1950 because

- (1) During this period the head of state was the British monarch.
- (2) The system was governed by the Act of 1935 (passed by the British Parliament).
- (3) The Privy Council functioned as the Supreme Court. Pakistan was a Dominion State from 14 August 1947 to 1956
 - ◆ Australia, New Zealand and Canada are still Dominion states with the British Crown as their head of state.
 - ◆ At present, almost all countries have to follow the instructions of international organizations (Commonwealth, WTO, UN, etc.) and they also have to accept international political pressure. But it does not limit sovereignty as each country accepts them by keeping in mind their national interests and are free to renounce the membership of international organizations at any time.

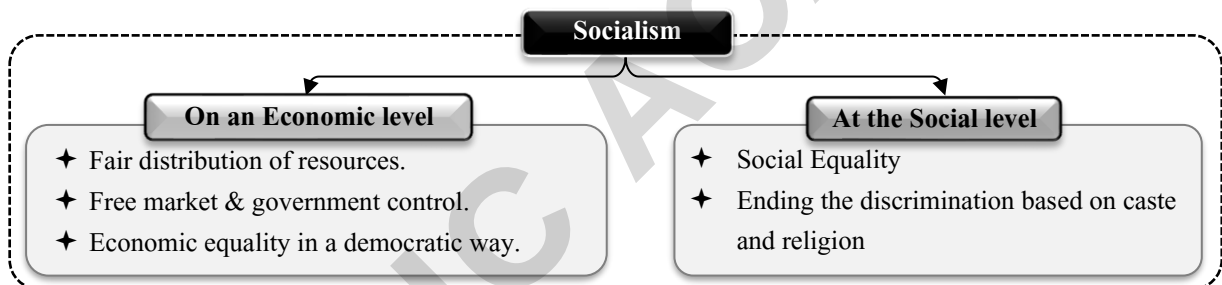
{ The declaration of becoming a member of the Commonwealth in 1949 is not against the sovereignty of India. }
J.L. Nehru → "This is an agreement made with free will, which can be terminated by free will."

Socialism

Capitalism	Socialism	Communism
1. Distribution of resources on the basis of merit.	Merit + Equality (fair distribution of resources).	Equality based distribution.
2. Free market	Free market and government control	Government controlled market.
3. Recognition of private ownership of property.	Private ownership + Public ownership	Government ownership of property.
4. Support of class coordination.	Support of class coordination.	Class struggle (rich v/s poor)
5. Supporter of nationalism	Advocate of nationalism	Do not believe in nationalism
6. Acceptance of religion	Acceptance of religion	Religion is like opium.
7. Non-violence	Non-violence	Violence
8. Recognition of rights	Rights + responsibilities	Recognition of liabilities

In India →

- ◆ India is a socialist country but our socialism differs from communism. It does not support violent revolution but instead it endorses changes in a democratic way.
- ◆ Indian socialism is close to Fabian socialism.



It is noteworthy that after 1991, the inclination towards capitalism increased. Hence, economic socialism is no longer as relevant. However, at the social level, the need for socialism still persists. The nature and extent of our socialism have evolved over time. We have witnessed three phases of Indian socialism: Provider → Regulator → Facilitator.

Secularism

(For Mains)

Q. Is the Indian constitution a secular constitution?

Ans.

Arguments in favor	Arguments in opposition
1. Right to religious freedom 2. India has no national religion. 3. Equality before law as India is governed by the rule of law. 4. Equal protection is provided to all religion . 5. 'Secularism' is a stated objective in the preamble. 6. The state does not impose any religious tax. 7. Religious freedom is a fundamental right.	1. Absence of Uniform Civil Code (UCC). 2. 'Minority' status is granted on the basis of religion.

Q. Difference between Indian secularism and Western secularism?**Ans.**

Indian Secularism	Western Secularism
1. In India, the state will treat all religions equally but the state will not be separated from religion. 2. The state will have a positive relationship with religion i.e. all religions will be equally protected. This policy is called 'Sarva Dharma Samabhava'. 3. In India, the state is secular but the society is not. 4. India has adopted the concept of secularism since ancient times. However, this term was added for the first time through the Indian Constitution in the 42nd Constitutional Amendment, 1976.	1. In western countries the state is completely separate from religion. 2. In western countries, the state believes in complete separation from religion. Two types of policies are found in this. USA ↓ Soft secularism France ↓ Hard secularism 3. Both the state and the society are secular. 4. The concept of secularism emerged in Western countries in the middle of the 17th century. Due to the French Revolution, France included the word 'Secularism' in its constitution for the first time.

Q. Difference between Secularism (Panth-Nirpekshta) and Sectarianism (Dharm-Nirpekshta)?

Ans. In 1987, a new Article 394(A) was added to the Constitution through the 58th Constitutional Amendment, which supports the authorized Hindi text of the Constitution, and in this text, the Hindi translation of "Secularism" is considered to be "Panthnirpekshata".

Secularism	Sectarianism
It is an ideology based on- ✦ Rationalism ✦ Scientific attitude ✦ Humanism In general sense, separation of religion from politics, society and cultural aspects is called secularism.	The word Dharma originates from the Sanskrit root 'Dhri', which means – that which is to be upheld, i.e. duty. Therefore, traditionally religion meant duty and not sect/religion. Therefore the Hindi translation of 'secularism' is 'Panth-Nirpekshta' and not 'Dharm-Nirpekshta'.

Q. What can France learn from the Indian Constitution's approach to secularism? (UPSC Mains 2020)

Ans. Indian secularism has existed since ancient times and it establishes a positive relationship between state and religion with the character of 'Sarvadharm Samabhava', while French secularism is a product of modern times which includes the strict feature of complete separation of state and religion.

In this context, France can take the following inspirations from Indian secularism -

1. The state should maintain a theoretical distance from religion and intervene to protect civil rights when needed.
Example - Intervention for 'gender equality' in the Sabarimala case.
2. In Article 25 of the Indian Constitution, there is a right to practice religion publicly as 'Right to Religious Freedom' which is essential for the cultural and spiritual development of a person, whereas in France, the practice of religion in public is prohibited.
3. The Indian state provides financial assistance to religious educational institutions (eg. Madrasa) while this is not the case in France.

4. Since the development of Indian secularism is the result of relative harmony, great civilizational and cultural goodwill. Therefore, people here are less influenced by fundamentalism. Whereas in France, the roots of secularism are in religious wars, discontent (Enlightenment period, Pope's dominance). Hence, there is more expansion of fundamentalism there. It is noteworthy that while addressing religious diversity, secularism can be understood as a medium of peaceful co-existence of all religions and in the present era of globalization, the Indian concept (Sarva Dharma Samabhav) appears more relevant in the multi-religious regions and societies.

Current Affairs

Recently, a petition was filed in the Supreme Court to remove the words socialist and secular from the preamble, which was rejected by the Supreme Court and it was said that Indian secularism is different from the Western model - it means that the state maintains an equal distance towards all religions; religious neutrality does not mean being anti-religion. And socialism was defined as equality of opportunity and it was believed that both these words are relevant in the preamble.

Events/Cases	Key Points
Constituent Assembly Debates	Prof. K. T. Shah proposed the inclusion of the word "secular" in Article 1. Dr. Ambedkar rejected it, stating that the Directive Principles already reflect the ideals of socialism and secularism.
Keshavananda Bharati Case (1973)	The Supreme Court held that secularism is a part of the basic structure of the Constitution.
S.R. Bommai Case (1994)	Secularism was held to be an essential feature of the constitutional structure.

Democracy

"Government of the people, by the people and for the people" is called democracy. - **Abraham Lincoln**

There are two types of democracy-

Direct Democracy	Indirect Democracy or 'Representative democracy'
If there is direct participation of the public in the decision-making process of governance. The following are the forms of direct democracy - Referendum: Opinion taken from the public, which is legally binding to implement. It is often used in foreign affairs. Example: Brexit Plebiscite: Opinion obtained from the public, which is not legally binding to implement. It is usually used in matters related to domestic policy formulations. Example: Merger of Sikkim. Right to Recall: The public has the right to call back their elected representatives before the completion of their term, i.e. they can be removed from the office. Initiative: In this, the public is given the right to take initiative to formulate the laws. If a certain number of people sign a resolution, then it is mandatory to introduce it in the legislature. This system is in Switzerland.	↓ If there is indirect participation of the public in governance, i.e. if the representatives elected by the public take important decisions related to the executive and legislature, then it is called indirect democracy. It has many forms - - Parliamentary system of government (Two Head of State) - India, Britain. - Presidential system of government - USA - Dual Executive - France - Plural Executive - Switzerland Indirect democracy can also be divided into another form- Unitary system of government: All powers are vested in the central government. Example: Britain Federal system of government: States get more powers. Example: USA

Referendum v/s Plebiscite

Points	Referendum	Plebiscite
1. operator	Always conducted by the government.	May be conducted by the government or a third party (e.g., the United Nations).
2. Political system	Generally undertaken by democratic governments.	Possible under both democratic and non-democratic systems.
3. Legal obligation	The government is bound to implement the results.	Government is not bound to enforce results.

International Examples of Referendum and Plebiscite**(For Mains Only)**

- 1. United Kingdom (UK):** In the UK, there is a law related to referendums, under which the 2016 referendum on Brexit was conducted, and as a result, the UK exited the European Union (EU).
- 2. Australia:** The Australian Constitution provides that constitutional amendments passed by the Parliament must be approved by the people through a referendum.
- 3. Russia:** Although there is no specific law related to referendums in Russia, if two million Russian citizens and certain regions demand it, a referendum can be conducted.
Example: In 2020, through a referendum, Putin's term was extended until 2036 and a ban on homosexuality was imposed.
- 4. United States of America (USA):** The U.S. Constitution does not permit referendums at the national level, but many states and local governments are allowed to conduct referendums at regional and local levels.
- 5. Switzerland:** The most advanced system of referendum in the world exists in Switzerland. Its Constitution permits referendums at the national, regional, and local levels. If the country joins any international organisation or particular issues arise, it becomes mandatory to hold a referendum. The highest number of referendums recorded globally have taken place in Switzerland.

Situation in India**(For Mains Only)**

- ◆ In India, demands for a referendum have been raised on several issues such as:
 - ✦ Granting statehood to Delhi
 - ✦ Bifurcation of undivided Andhra Pradesh, etc.
- ◆ The Constitution of India does not contain any explicit provision regarding referendums, but it does not prohibit them either.
- ◆ Over the years, Indian governments have conducted referendums and adhered to their outcomes — largely because most results favored the government.

1. Constituent Assembly Debate

- ◆ The issue of referendum was raised multiple times during the debates in the Constituent Assembly.
- ◆ Dr. B.R. Ambedkar, citing the examples of Ireland, Australia, and Switzerland, stated that:
 - ✦ Conducting a referendum in a country like India would be highly expensive and complex.
 - ✦ Therefore, the Constituent Assembly rejected the idea and reposed faith in the Parliament.

2. Historical Examples of Referendum in India

- ◆ **Sylhet (Assam) – July 1947 :**
 - ✦ A referendum was held in the Sylhet district of the Assam Province in British India.
 - ✦ The majority voted in favor of joining East Pakistan (now Bangladesh).
- ◆ **North-West Frontier Province (NWFP) – July 1947**
 - ✦ All the districts voted in favour of joining Pakistan.
- ◆ **Junagadh (1947–48):** The Nawab decided to accede to Pakistan, but after a referendum, the state merged with India in 1948.
- ◆ **Chandranagar (1949):** French territory ; the local population voted in favor of joining India.

3. Cost-Benefit Analysis

Advantages	Disadvantages
Ultimately a democratic process.	The process is difficult and complex.
Goes beyond decisions of multi-party politics.	It can be an expensive exercise.
Affirms the sovereignty of the people.	The public is not always adequately informed.
Acts as a safeguard against the tyranny of the majority.	It may undermine the dignity of the Parliament.
	It may harm the rights of minorities.

Recall

- ◆ Recall is considered a tool of direct democracy, which empowers the electorate to remove their elected representatives before the completion of their term.
- ◆ Recall is regarded as a natural extension of democracy — if the people have the right to elect their representatives, they should also have the right to remove them.
- ◆ **International Scenario:**
 - ✦ **United States (USA):** Recall exists only at the state level. In several states, elected officials can be removed on various grounds.
 - ✦ **United Kingdom (UK):** Under the Recall of MPs Act, 2015, Members of Parliament can be recalled.
 - ✦ **Switzerland:** Members of Parliament can be subjected to recall. Recently, this right has also been extended to the municipal level.
 - ✦ **Germany:** Even mayors can be recalled.
- ◆ **Recall in India:** The Constitution of India does not explicitly mention the provision of recall.
 - ✦ The Representation of the People Act, 1951, deals with disqualification only in criminal cases, not with removal by the electorate.
 - ✦ However, in local bodies, certain states such as Bihar, Uttarakhand, Haryana, Madhya Pradesh, Chhattisgarh, Himachal Pradesh, and Rajasthan have provisions for the recall of elected representatives at the local level.

Q: Should the Right to Recall be Introduced in India?

- ◆ **Arguments in favour:**
 - ✦ It is an effective mechanism for holding elected representatives accountable to the people.
 - ✦ If an MLA fails to meet public expectations after being elected, the electorate should have the right to remove them.
 - ✦ Despite facing serious criminal charges, many MPs and MLAs continue to remain in office — recall could provide a democratic way to remove such representatives.
- ◆ **Arguments against:**
 - ✦ **Risk of Misuse:** Recall may be misused due to political rivalry and baseless allegations.
 - ✦ **Electoral Instability:** Frequent elections could increase instability and impose a heavy burden on resources.
 - ✦ India's First-past-the-post system is based not on majority but on the candidate who receives the most votes, which can upset the balance.
 - ✦ Due to high population, illiteracy, financial cost, and lack of awareness, implementing recall may be difficult in practice.
- ◆ **Way Forward:**
 - ✦ The Election Commission should establish a legal procedure whereby citizens can file a petition for recall, followed by a decision through a majority vote of the electorate.
 - ✦ However, in a diverse and resource-constrained country like India, this would be a long-term reform.

Rajasthan

- ◆ Rajasthan amended its Municipalities Act in March 2011 to introduce the right to recall for certain elected representatives in urban local bodies.
- ◆ The first recall election in Rajasthan was held in December 2012 in the Mangrol Municipality of Baran district, aiming to remove Chairman Ashok Jain.
- ◆ The recall process began after more than three-fourths of the elected members of the municipal board passed a no-confidence motion.

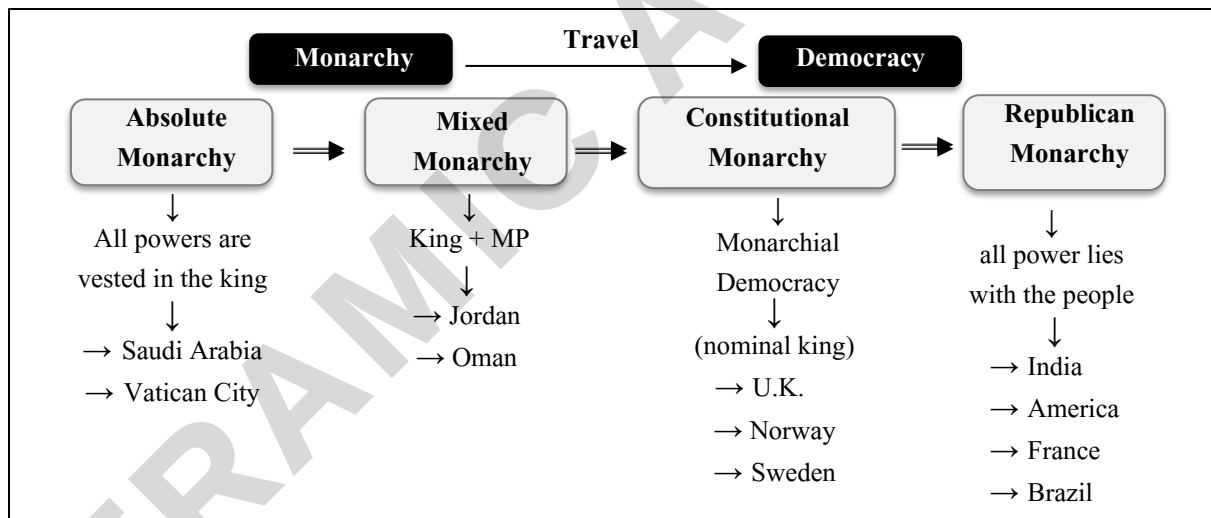
Republic

When the head of state of a country is not hereditary, then it is called a Republic. This is the opposite ideology of monarchy.

Country	Democracy	Republic
India	✓	✓
USA	✓	✓
China	✗	✓
Britain	✓	✗

Features of a Republic:

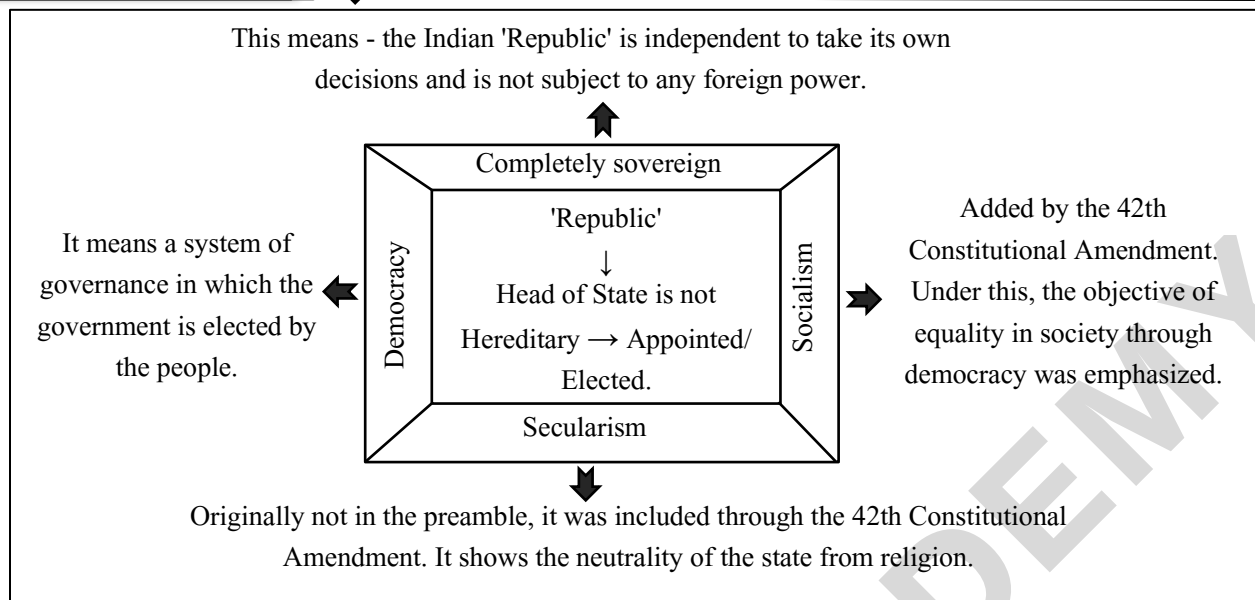
1. The Head of State is elected or nominated, not hereditary.
2. No privileged class; all citizens are equal before law.
3. Public offices should be available to all citizens.



Q. Discuss each adjective attached to the word 'Republic' in the preamble. Are they defensible in the present circumstances? *(UPSC-2016) (250 words)*

Ans. The Preamble, referred to as the horoscope, mirror and philosophy of the Indian Constitution, lays down the various objective (justice, equality) and the nature (sovereign, republic) of the Indian state.

Among these, the key adjectives associated with the nature of 'Republic' are -



◆ The present immunity of the above mentioned adjectives can be seen in the following manner -

Adjective	Challenges	Counter/Defend
1. Complete Sovereignty	1. India is a member of international organisations - WTO, UNO, Commonwealth etc. and accepts their decisions. Ex. ICJ's decision on Newmoor Island. 2. India accepts political pressures from various countries.	But our sovereignty is not limited - 1. We have accepted membership of organisations with our own free will and are free to renounce it. 2. We accept political pressures for the promotion of India's national interests.
2. Socialism	• After the economic reforms of 1991, India inclined more towards capitalism. • There is wide income inequality in the society. Eg:- Oxfam Report Top 10% population ⇒ 70% wealth Bottom 50% population ⇒ 2.8% wealth of the country	Recently, a petition was filed in the Supreme Court to remove the words socialist and secular from the preamble, which was rejected by the Supreme Court and it was said that Indian secularism is different from the Western model - it means that the state maintains an equal distance towards all religions; religious neutrality does not mean being anti-religion. And socialism was defined as equality of opportunity and it was believed that both these words are relevant in the preamble.
3. Secularism	• Communal riots- recent riots in Nuh (Haryana). • Absence of Uniform Civil Code (UCC). • Granting of religious minority status by the state.	
4. Democracy	In comparison to the neighbouring countries - Pakistan, Myanmar etc. and also in the international scenario, India can be called an undoubtedly successful democracy.	

Conclusion: The characteristics of the Indian Republic have been continuously followed. Although some challenges have arisen from time to time, the Indian Republic has faced them with determination, continuity, coordination and tolerance.

Justice

❖ Three Dimensions of Justice:

(1) Non-Discrimination (2) Proportionate (3) Distributive

Social justice ensures that the greatest good of society is achieved without infringing upon the legal rights of any individual.

❖ Justice: The following types of justice are given in the preamble -

Social Justice	Economic Justice	Political Justice
✦ Equality of opportunities. ✦ No discrimination on the basis of religion, caste, gender etc. ✦ Abolition of untouchability. ✦ Equality before law. ✦ Absence of superstitions and evil practices. ✦ Special protection of deprived classes. ✦ A clean and free environment should be available to the individual for development.	✦ Equal pay for equal work. ✦ Fair distribution of resources. ✦ Freedom of occupation. ✦ Elimination of forced labour, child labour, bonded labour etc. ✦ Fair working conditions ✦ Minimum wage rates fixed ✦ There should not be harmful concentration of resources ✦ Basic needs should be fulfilled.	✦ Right to contest elections. ✦ Right to vote. ✦ Right to form association/ party. ✦ Right to protest. ✦ Free and impartial elections. ✦ Elections should be development centric rather than regional or caste centric.

Fraternity

❖ It means - the feeling of brotherhood.

❖ Fraternity ensures two things in Preamble:

- ✦ Dignity of the individual
- ✦ Unity and integrity of the nation

❖ Provisions to ensure fraternity:

- ✦ Single citizenship
- ✦ **Article-51(a):** It shall be the duty of every citizen to promote harmony and the spirit of common brotherhood without any discrimination based on religion, language, region or class.

✦ **Trinity:** Liberty, Equality, Fraternity (inspired from French Revolution.)

✦ Separating any one of these from the other would destroy the basic purpose of democracy.

Liberty without equality

↓
It will create supremacy of a handful of people over the many.

Equality without Liberty

↓
would suppress individual rights.

Liberty without fraternity

↓
This can put the unity and integrity of the country in trouble.

✦ Together these principles will help us secure our vision of social democracy, which is also vital to political democracy. Political democracy cannot be sustainable unless it is based on social democracy.

- ✦ The Supreme Court, in *Indira Sawhney v. Union of India* (1993), recognized "fraternity ensuring individual dignity" as a guiding principle for upholding reservation in employment, since members of certain communities had been excluded from participation in administration.

Criticism of the Preamble:

1. The Preamble is not original, but a copy.
 - ◆ The first line of the preamble 'We the people of India' has been taken from the Constitution of USA.
 - ◆ The remaining part of the Preamble is taken from the Constitution of Australia.
2. Preamble, despite being a part of the Constitution, is not as effective as the articles, because -
 - ◆ It neither provides any power to the Parliament.
 - ◆ Nor does it imposes any restriction on the powers of the Parliament.
 - ◆ It is not enforceable by the judiciary.

{ **Counter:** Preamble is the philosophy, mirror, horoscope of the Indian Constitution. It is useful in interpreting the articles of the Constitution. }
3. **Socialism -**
 - ◆ The word 'socialism' was not mentioned in the original preamble.
 - ◆ The meaning of the word 'socialism' is not clear.
 - ◆ India is continuously moving towards capitalism after 1991 AD, therefore, the word 'socialism' is not relevant in the present context.

{ **Counter:** However, 'socialism' is necessary at the social level in the present times (even if not at the capitalist level) }

(i) Social Equality (ii) No discrimination (iii) Eradication of untouchability etc. }
4. **Secularism -**
 - ◆ The word 'secularism' was not mentioned in the original preamble.
 - ◆ The meaning of the word 'secularism' is also not clear. In India, religion is not separated from the state, rather the state protects all religions.

{ **Counter:** }

i. Based on 'Sarvadharmam Samabhava'. ii. Not the official religion of the state.

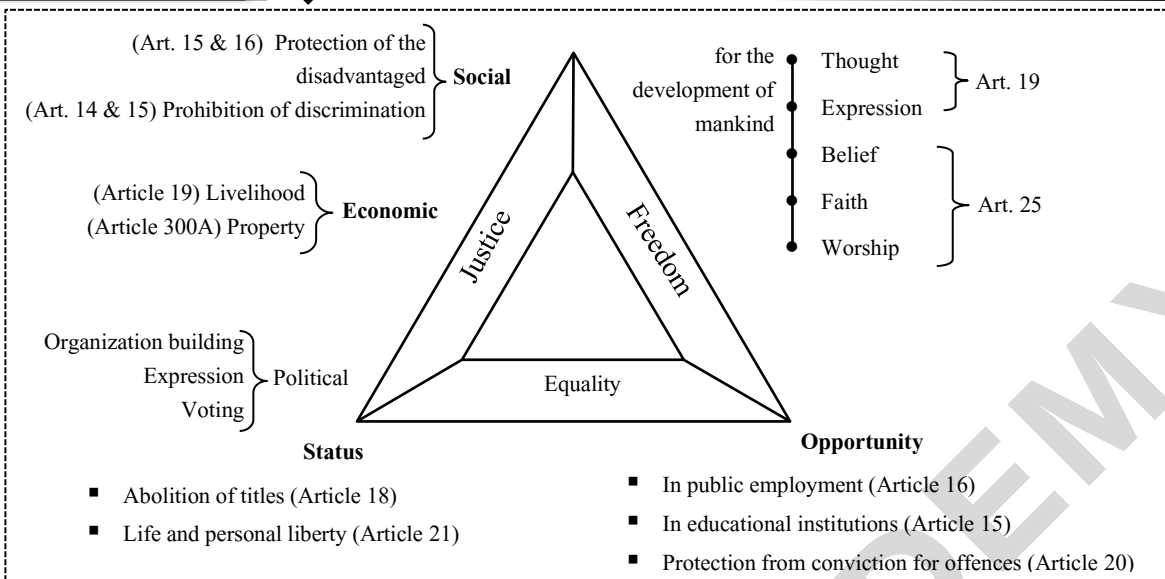
ii. Religion is a personal matter of the individual. }

 - ◆ Indian secularism prohibits religious discrimination and communal conflicts.

Q. The Preamble of the Constitution affirms the basic features of the Constitution and the enhancement of human dignity. (UPSC-2021) (125 words)

Ans: The Preamble, which is referred to as the philosophy, mirror and horoscope of the Indian Constitution, lays down various goals of the Indian state which are important for the enhancement of human dignity and efforts are being made to achieve them through the Constitution and various laws.

Preamble: Basic Features of the Constitution - The Preamble clarifies 4 points (discussed above)



Conclusion: In this way, the preamble, despite being very brief, contains all the ideals and principles that form the foundation of the constitution. That is why Thakur Daas Bhargav called it the 'soul of the constitution'.

Q: Explaining the various implications of justice mentioned in the Preamble of the Constitution, discuss how they are ensured through Fundamental Rights and Directive Principles of State Policy? (RAS Mains 2018)

Ans: Dr. Ambedkar - 'Justice is the end of law and the beginning of freedom.'

	Justice	Through Fundamental Rights	Through Directive Principles of State Policy
1.	Social Justice ↓ Refers to elimination of discrimination, equality of opportunity, protection of the deprived sections etc.	Art. 14 – Discrimination (X) Equality ✓ Art. 15 – Opportunity ✓ Art. 17 – Untouchability (X)	Article - 38 Article - 41 Article - 46
2.	Economic justice ↓ Refers to equitable distribution of resources, freedom of occupation, etc. (opportunity for economic growth).	Art. 16 – Public Employment Art. 19 – Livelihood Art. 23 – Bonded Labour (X) Art. 24	Art. 39 – Equal work, equal pay Art. 43 – Cottage industry ↑ Living wages Art. 48 – Agriculture and animal husbandry
3.	Political Justice ↓ All citizens have equal political rights to participate in the governance process of the country - contesting elections, voting, etc.	Art. 19 Freedom of expression, assembly, association Art. 20 Art. 22	Art. – 40 Panchayat Art. – 43B Co-operative Societies Art. – 37 Art. – 50 Separation of Powers Art. – 51

Parts of the Constitution of India

◆ The Constitution of India contains 22 parts and 395 Articles.

Part	Subject	Article
Part - I	The Union and its territory	1 - 4
Part - II	Citizenship	5 - 11
Part - III	Fundamental rights	12 - 35
Part - IV	Directive Principles of State Policy	36 - 51
Part - IVA	Fundamental Duties	51A
Part - V	The Union	52 - 151
Part - VI	The States	152 - 237
Part - VII	Repealed	238
Part - VIII	Union Territories (UT)	239 - 242
Part - IX	Panchayats	243 - 243 O
Part - IXA	Municipalities	243P - 243ZG
Part - IXB	Co-operative Societies	243ZH - 243ZT
Part - X	Scheduled and tribal areas	244 - 244A
Part - XI	Legislative and administrative relations between the Union and the States	245 - 263
Part - XII	Financial relations between the Union and the States	264 - 300A
Part - XIII	Inter-State trade, commerce and intercourse	301 - 307
Part - XIV	Services under the Union and the States	308 - 323
Part - XIVA	Tribunals	323A - 323B
Part - XV	Elections	324 - 329
Part - XVI	Special provisions for certain classes	330 - 342A
Part - XVII	Official language	343 - 351
Part - XVIII	Emergency provisions	352 - 360
Part - XIX	Miscellaneous	361 - 367
Part - XX	Constitution Amendments	368
Part - XXI	Temporary provisions	369 - 392
Part - XXII	Short title, Hindi translation	393 - 395

Note: However, after incorporating all the amendments, the present Constitution contains more than 450 Articles divided into 25 Parts.

4

Schedules of the Indian Constitution

- There are 12 schedules in the Indian Constitution but the original Constitution had only 8 schedules.

First Schedule

- Names and boundaries of States and Union Territories.

Second Schedule

Salary and allowances

- Part A

President	Governor
- Emoluments - ₹10,000 (initially) - Allowances - Privileges	- Emoluments - ₹5,500 (initially) - Allowances - Privileges
Note – Any other person, when acting in this capacity, shall also be entitled to the same emoluments, allowances, and privileges.	

- Part-B – Abolished by the 7th Constitutional Amendment, 1956**

- Part-C – Presiding Officers**

- Speaker and Deputy Speaker of the Lok Sabha
- Chairman and Deputy Chairman of the Rajya Sabha
- Speaker and Deputy Speaker of the Legislative Assembly
- Chairman and Deputy Chairman of the Legislative Council

Salaries and Allowances

- Part-D – Judges of the Supreme Court:** salary, pension, housing rent, and transport allowance.

- Part-E – Comptroller and Auditor General (CAG) of India:** salary.



Do you know?

When an expenditure (such as salary or allowance) is charged on the Consolidated Fund of India, it means the amount is paid directly from the Consolidated Fund and does not require annual approval of Parliament.

- Why is it important?**

- To protect the autonomy of constitutional posts from political interference.
- If Parliament gets the power to reduce or withhold their salaries, it may pose a threat to their independence and impartiality.

Q: Can a salary charged on the Consolidated Fund of India be reduced?

Ans. Yes, but only under a special circumstance: When a financial emergency is declared under Article 360 of the Constitution.

Third Schedule → Forms of Oath or Affirmations.

Union	State
✦ MP candidate ✦ MP (Member) ✦ There are two types of oaths for a minister (of Office and Secrecy (Article 75(4)) ✦ Judge of Supreme Court ✦ Comptroller and Auditor General of India	✦ MLA/MLC candidates. ✦ Member of Legislative Assembly (MLA)/ Legislative Council (MLC) ✦ Oath of a Minister ✦ Judges of High Court.

Note:

- ◆ Form of oath of the President → Article 60
- ◆ Form of oath of the Vice President → Article 69
- ◆ Form of oath of the Governor → Article 159
- ◆ There is no separate oath for presiding officers.
 - ✦ Lok Sabha → Speaker, Deputy Speaker
 - ✦ Legislative Assembly → Speaker, Deputy Speaker
- ◆ The format of oath of Supreme Court Judge and CAG is same.

Fourth Schedule → Allocation of seats in Rajya Sabha for States and Union Territories.

Think about it: Why is a separate list of Rajya Sabha members provided in the Fourth Schedule of the Constitution, but not for the Lok Sabha?

- ◆ In the **Rajya Sabha (Council of States)**, the number of members to be elected from each State and Union Territory varies, and is primarily determined in proportion to the population of the respective State or Union Territory. Accordingly, the Fourth Schedule of the Constitution contains a tabulated allocation that clearly specifies the number of seats in the Rajya Sabha assigned to each State and Union Territory.
- ◆ The number of members in the Lok Sabha (House of the People) is determined on the basis of the population of the States; however, each Lok Sabha member represents a specific parliamentary constituency. The delimitation and listing of these constituencies are determined from time to time by the Delimitation Commission, and this information is not permanently provided in any Schedule of the Constitution..

Fifth Schedule → Provisions related to administration & control of Scheduled Areas and Scheduled Tribes.

- ◆ It includes 10 states - (1) Rajasthan (2) Telangana (3) Gujarat (4) Jharkhand (5) Madhya Pradesh (6) Chhattisgarh (7) Maharashtra (8) Orissa (9) Himachal Pradesh (10) Andhra Pradesh

Note: Questions from the 5th and 6th Schedules are asked in depth in the UPSC examination; however, such questions are generally not asked in the RPSC examination.

1. Jurisdiction of the Article

- ◆ **Article 244(1):** The Fifth Schedule applies to the administration and control of Scheduled Areas and Scheduled Tribes in all states except Assam, Meghalaya, Tripura, and Mizoram (in these four states, the Sixth Schedule applies).

2. Scheduled Areas

- ◆ Scheduled Areas are notified by the President of India.
- ◆ Before such notification, it is mandatory to consult the Governor of the concerned state.
- ◆ Although no constitutional criteria have been prescribed for the notification of Scheduled Areas, the following parameters are accepted in practice —
 - ✦ 50% or more tribal population
 - ✦ The area should be compact and administratively viable
 - ✦ The area should be backward in terms of development
 - ✦ Economic disparity should exist in comparison to surrounding regions

3. Powers of the Governor

- ◆ The Governor has the power to make regulations to ensure peace and good governance in Scheduled Areas, under which he may —
 - ✦ Prohibit or restrict the transfer of tribal land to non-tribals;
 - ✦ **Regulate activities pertaining to money lending to Scheduled Tribes;**
 - ✦ Through such regulations, declare any law enacted by the State Legislature as inapplicable in Scheduled Areas.
- ◆ It is mandatory for the Governor to submit an annual report to the President regarding the administration of Scheduled Areas.

4. Tribes Advisory Council (TAC)

- ◆ **In every state where Scheduled Areas are notified, it is mandatory to constitute a Tribal Advisory Council.**
- ◆ This Council advises the Governor on matters pertaining to the welfare and advancement of Scheduled Tribes.
- ◆ Composition: The Council may have a maximum of 20 members, out of which $\frac{3}{4}$ (75%) must be elected members belonging to the Scheduled Tribes from the State Legislative Assembly.

5. Powers of the President

- ◆ To declare any area as a Scheduled Area.
- ◆ To alter, increase, or reduce the boundaries of Scheduled Areas.
- ◆ To rescind or redefine any existing Scheduled Area.

6. Amendment of the Schedule

- ◆ Any amendment to the Fifth Schedule can only be done by Parliament through legislation; It does not require the special procedure of amendment under Article 368 of the Constitution.

Sixth Schedule

- ◆ **Article 244(2):** The Sixth Schedule deals with the administration of tribal areas in the four North-Eastern states:
 - ✦ Assam, Meghalaya, Tripura, Mizoram

1. Autonomous District Councils (ADCs)

- ◆ In each tribal area, Autonomous District Councils are established by the Governor.
- ◆ These councils are empowered to make laws on local matters and administer local governance.
- ◆ **Key Powers include:**
 - ✦ Administration of land and forests.
 - ✦ Administration of customary law and justice.
 - ✦ Regulation of social customs and practices.
 - ✦ Management of village markets, schools, health services, and sanitation.

2. Structure of District Councils

- ◆ Maximum Strength: 30 Members
 - ✦ 26 members are elected by the people.
 - ✦ 4 members are nominated by the Governor.
- ◆ Tenure: 5 years

3. Legislative and Judicial Powers

- ◆ Councils have the authority to legislate on:
 - ✦ Land, forests, and water resources
 - ✦ Inheritance, marriage, and social customs
 - ✦ Local taxes and services
- ◆ However, these laws require the Governor's assent for enforcement.
- ◆ Councils also exercise limited judicial powers over tribal matters.

4. Districts & Regional Councils

- ◆ Multiple Autonomous Districts can exist within a single state..
- ◆ If more than one tribal community resides in an autonomous district, Regional Councils may also be constituted.

5. Financial Powers

- ◆ Councils have the power to levy and collect taxes, fees, and cesses.
- ◆ They also receive grants-in-aid from the state government.

6. Limitations and Review

- ◆ The decisions made by the Councils are subject to Judicial Review under Articles 226 and 32 of the Constitution.

Current Affairs

Recently, there has been a demand for the inclusion of Ladakh under the Sixth Schedule of the Constitution.

- ◆ The Councils may be altered or dissolved through a legislative process by the Parliament or the Governor.

Difference between Fifth Schedule and Sixth Schedule

Parameter	Fifth Schedule	Sixth Schedule
Applicability	Scheduled Areas declared by the President in any state (currently in 10 states).	Tribal areas in <i>Assam, Meghalaya, Tripura, Mizoram</i> .
Administration Body	<i>Tribes Advisory Council (TAC)</i>	<i>Autonomous District Councils (ADCs) and Autonomous Regional Councils (ARCs)</i>
Powers	Limited <i>executive powers</i> , created by State Legislative Assemblies.	Extensive powers: executive, legislative, and judicial.
PESA Act, 1996	<i>Applicable</i>	<i>Not Applicable</i>

Seventh Schedule → Division of powers between the Union and the States

	List	Originally	Present
1.	Union List	97	97
2.	State List	66	61
3.	Concurrent List	47	52

- ◆ **By the 42nd Constitutional Amendment, 1976**, 5 subjects were transferred from State List to Concurrent List - **Trick - FEW JAW (Watch the class)**
- (1) Forest (2) Wildlife (3) Judicial Administration
(4) Education (5) Units of Measurement

Eighth Schedule → Languages recognized by the Constitution.

- ◆ Originally there were 14 languages, but at present there are 22 languages –

1. Assamese	6. Kashmiri	11. Sanskrit
2. Bengali	7. Malayalam	12. Tamil
3. Gujarati	8. Marathi	13. Telugu
4. Hindi	9. Orissa	14. Urdu
5. Kannada	10. Punjabi	
Note: In the year 2011, the name of 'Oriya' has been changed to 'Odia'. (96th Constitutional Amendment)		
15. Sindhi → Added as 15th language by 21st Constitutional Amendment, 1967.		TRICK: $21 + 71 = 92$
16. Konkani 17. Manipuri 18. Nepali	By 71st Constitutional Amendment, 1992.	
19. Bodo 20. Dogri 21. Maithili 22. Santhali	By 92nd Constitutional Amendment, 2003.	

- ◆ **Official List of Classical Languages (Total: 11)** They are not mentioned in the Constitution.

The Government of India (Ministry of Culture) has recognized the following 11 languages as "Classical Languages":

- | | | |
|--------------------------------------|----------------------------|---------------------------|
| 1. Tamil (recognized in 2004) | 5. Malayalam (2013) | 9. Marathi (2024) |
| 2. Sanskrit (2005) | 6. Odia (2014) | 10. Pali (2024) |
| 3. Kannada (2008) | 7. Assamese (2024) | 11. Prakrit (2024) |
| 4. Telugu (2008) | 8. Bengali (2024) | |

Ninth Schedule

- ◆ This was added by the First Constitutional Amendment, 1951. If any law is included in this schedule, it is protected from judicial review.
- ◆ This schedule was provided for the protection of the Acts passed by the Parliament to abolish the Zamindari system and implement land reforms.
- ◆ Initially, there were 13 Acts in it but over time their number increased to 284.

I.R. Coelho vs Tamil Nadu case, 2007

- ◆ The Supreme Court ruled that all the Acts included in the Ninth Schedule after April 24, 1973 can be judicially reviewed.
- ◆ The verdict of the Kesavananda Bharati case was given on April 24, 1973 in which 'Judicial Review' was considered the 'Basic Structure' of the Constitution. The concept of basic structure came into existence from this decision.

Tenth Schedule → 'Anti-defection provisions' - Article 102 (2) and 191 (2)

- ◆ This was included by the 52nd Constitutional Amendment, 1985.
- ◆ It deals with disqualification of members of Parliament (MPs)/legislative council on grounds of defection -
 1. On voluntarily giving up the membership of the party.
 2. If a member changes party after the election, his membership of the House will end.
 3. Independent member cannot join any party.
 4. Nominated members may join any party within six months.
 5. If a member violates the whip and his political party does not forgive him within 15 days, then he will lose his membership of the House.

Note : The term "whip" is not mentioned anywhere in the Constitution of India, any statute, or the rules of procedure of Parliament.

- ◆ In India's parliamentary system, the concept and position of the Whip are purely based on convention, inherited from the British parliamentary tradition.
- ◆ Although the Tenth Schedule (Anti-Defection Law) refers to the "directions" issued by political parties — which are generally enforced through the Whip system — the word "Whip" itself is not explicitly used in the Schedule.
- ◆ Thus, the term "Whip" and the position of a party Whip do not enjoy any constitutional or statutory recognition. However, in practice, they play a crucial role in maintaining party discipline within legislatures.

◆ **Exceptions - By the 91st Constitutional Amendment, 2003**

- ✦ If 2/3 members of a party join another party together, it will not be considered defection but will be considered a dissolution in the party.
- ✦ But these members cannot form a new political party.
- ◆ The final decision on disqualification under the anti-defection law is made by the Speaker or the Chairman of the House. (Section 6) Such a decision shall be final.
- ◆ The provisions of defection do not apply to the Presiding Officers of the House.

◆ **Kihoto Holohan case, 1992→**

- ✦ Section 7 of the original Act stated that no court shall have any jurisdiction in matters related to disqualification of a member under this Schedule.
- ✦ The Supreme Court held that the decision of the Speaker or Chairman is subject to judicial review and can be challenged in a court of law.
- ✦ Sanjay Singh vs. Uttar Pradesh Legislative Assembly (2022) : The Supreme Court reiterated that the decision of the Speaker of a Legislative Assembly is subject to judicial review if the decision is mala fide or violates constitutional principles.

◆ **Need for anti-defection law**

1. To provide more political stability by controlling the tendency of MPs/MLAs to change parties.
2. To ensure the loyalty of members towards the political party and their policies.
3. To protect democracy i.e. to respect the will of the people.
4. Allows democratic merger of political parties without disqualifying members.
5. To discourage unethical practices i.e. horse-trading of MPs.

◆ Disadvantages of the law

1. By allowing 2/3 members to join, it promotes whole sale trading instead of retail trading.
2. Controversial role of Speaker/Chairman because he is a member of the ruling party.
3. By allowing merger of parties, it weakens representative democracy and disregards electoral mandate.
4. The law lacks clarity on many issues -
 - ✦ Allows merger but does not allow division in the party.
 - ✦ Disqualified on withdrawal from the party but defection is not applicable on voluntary resignation.
5. No time limit has been set for the presiding officer to give the decision.

◆ Kesham Meghchandra Singh v. Speaker of Manipur Legislative Assembly (2020)

- ✦ The Supreme Court held that the Speaker cannot indefinitely delay the adjudication of disqualification petitions under the Tenth Schedule. It is mandatory for the Speaker to decide such matters within a reasonable time frame.
- ✦ If the Speaker fails to act, the Supreme Court may invoke its special powers under Article 142 of the Constitution to ensure compliance and enforcement of constitutional obligations.

◆ Way forward

1. The definition of defection should be limited and clarified.
2. Participation of Ethics Committee can be helpful in preventing horse-trading.
3. Time limit should be fixed for decision.

4. Deciding Authority:-

- ✦ President and Governor should decide on defection cases.
- ✦ Supreme Court suggested that Parliament should form an independent authority under the chairmanship of a retired judge of Supreme Court. (Karnataka MLAs' Disqualification Case (2020))

The term "Political Party" was constitutionally recognized for the first time through the 52nd Constitutional Amendment Act, 1985, by which the Tenth Schedule (Anti-Defection Law) was added to the Constitution.

- ✦ Prior to this amendment, the term "Political Party" was not mentioned anywhere in the Indian Constitution.
- ✦ However, after the 52nd Amendment, this term has been used in other provisions of the Constitution as well. Notably, the term "Political Party" is also mentioned in Article 75, which relates to the appointment of the Prime Minister and the Council of Ministers.

Question (UPSC Prelims 2025): Consider the following statements:

1. If any question arises as to whether a Member of the House of the People has become subject to disqualification under the 10th Schedule, the President's decision in accordance with the opinion of the Council of Union Ministers shall be final.
2. There is no mention of the word 'political party' in the Constitution of India.

Which of the statements given above is/are correct?

- (a) 1 only (b) 2 only (c) Both 1 and 2 (d) Neither 1 nor 2

Answer: (d)

Eleventh Schedule

- ◆ It was included in the Constitution by 73rd Constitutional Amendment, 1992 which came into effect in 1993.
 - ✦ It mentions the powers and responsibilities given to Panchayats.
 - ✦ A total of 29 subjects have been given to Panchayats in this.
 - ✦ 25 subjects have been given in Rajasthan so far.
 - ✦ 29 subjects have been given in Kerala.

Twelfth Schedule

- ◆ It was included in the Constitution by the 74th Constitutional Amendment, 1992, which came into force in 1993.
- ◆ It mentions the powers and responsibilities given to urban bodies. There are a total of 18 subjects in it.

Note → 11th and 12th schedule will be studied in detail in the chapter on Local Bodies.

The Schedules of the Indian Constitution derive their powers from the Articles of the Constitution.

Article - 1: Name, Territory and Nature of the Union

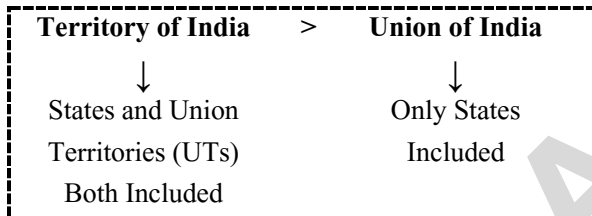
1. **India, that is Bharat, shall be a Union of States.**
2. **The States and their territories shall be as specified in the First Schedule.**
3. **The territory of India shall comprise the following—**
 - (a) the territories of the States;
 - (b) the Union territories specified in the First Schedule;
 - (c) such other territories as may be acquired.

◆ This article clarifies three things -

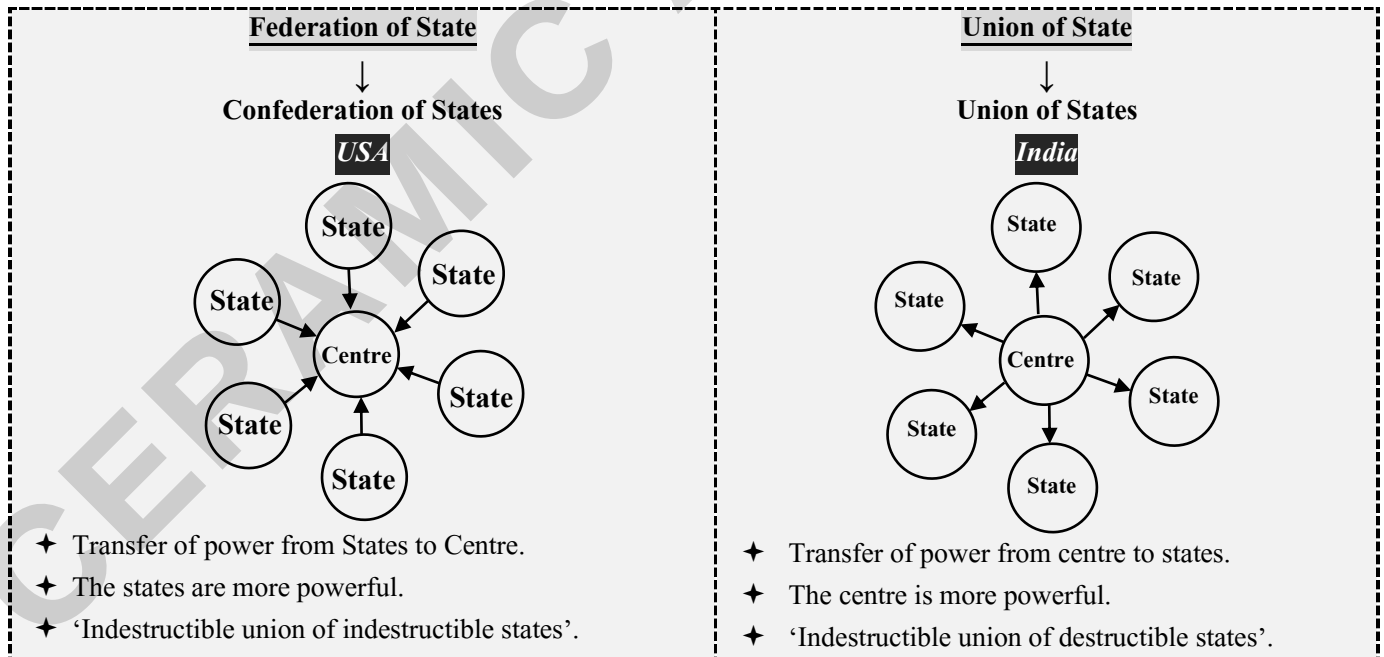
1. **Name of the country** - "India, that is Bharat, shall be a union of states.
2. **Territory of India**

↓
It includes the following -

- (1) Indian Union → All states (2) All Union Territories (3) Other acquired territories



3. **Nature of the state** - 'Union of states'



According to **Dr. Bhimrao Ambedkar**, 'India is 'federal' in peace time and in emergency situations it becomes 'union'. According to him, the basic nature of the Constitution is 'federal'. But the word federal has not been mentioned in it because unlike USA, India is not a result of an agreement between states, rather India is a nation from ancient times. Here states have been created by the country and not the country by the states."

Notes regarding Indian Federation-

1. Semi-federal → K.C. Whare
2. Bargaining federal → Morris Johns
3. Extremely federal → Paul Appleby
4. Cooperative federal → Grenville Austin
5. Federalism with a strong centralizing tendency → Ivor Jennings

Article 2 → Admission or Establishment of New States

- ◆ Parliament has been given the right to merge any state into India and establish a state on the basis of whatever conditions Parliament deems appropriate.
- ◆ This provision is for the states outside the Indian Union.

	Power Given To Parliament	Applies To	Nature of Change
Article 2	Admission or establishment	States/territories that are <i>not</i> part of India	External addition
Article 3	Formation, alteration, renaming	Existing Indian states/UTs	Internal reorganization

Article 3 → Provisions related to the Formation of a New State

Under Article 3, Parliament may, by law, undertake the following actions:

- (a) Form a new State by separation of territory from any State, or by uniting two or more States or parts of States, or by uniting any territory to a part of any State.
- (b) Increase the area of any State.
- (c) Diminish the area of any State.
- (d) Alter the boundaries of any State.
- (e) Alter the name of any State.

- ✦ Article 3 was amended by the 18th Constitutional Amendment Act, 1966, which redefined the expressions “State” and “Union Territory”.
- ✦ The amendment clarified that the term “State” used in clauses (a) to (e) of Article 3 shall include Union Territories as well.

Procedure for Formation of a New State → As per the Constitution (Fifth Amendment) Act, 1955, a new provision was inserted in Article 3: No Bill for the formation of a new State shall be introduced in Parliament unless the President has referred it to the legislature of the concerned State for its views, and the period specified (or extended) by the President for this purpose has expired — whether or not the State Legislature has expressed its opinion.

- ◆ The bill related to the formation of a new state is introduced with the prior permission of the President.
- ◆ The consent or dissent of the state legislature does not affect the passage of the bill.
- ◆ The bill can be introduced in either House of Parliament.
- ◆ It must be passed by a simple majority in both Houses of Parliament.

There is no provision for a joint sitting in case of disagreement between the two Houses. Standard constitutional law texts — such as M.P. Jain and D.D. Basu, as well as authoritative commentaries on the Indian Parliament — clearly state that no joint sitting is permissible in the case of Bills relating to the reorganisation of States.

- ◆ The President cannot return the bill for reconsideration but can either assent or withhold assent.

Current Affairs

Recently, Kerala assembly passed a resolution to change the name of Kerala state to Keralam. Similarly, West Bengal assembly has also passed a resolution to change the name. However, this resolution is only symbolic because the power to change the name of the state lies with the Parliament.

Creation or renaming of new districts in states -

- ◆ Recently new districts were created in Rajasthan and names of some districts were changed in Uttar Pradesh. The power to create districts in a state lies with the state government and an act is not required for this, it can be done on the basis of government notification.

Article 4

- (1) Any law referred to in Article 2 or Article 3 shall contain such provisions for the amendment of the First Schedule and the Fourth Schedule as may be necessary to give effect to the provisions of the law.
- (2) Any such law shall not be deemed to be an amendment of this Constitution for the purposes of Article 368. That is, amendments made to Schedule 1 and Schedule 4 are not considered constitutional amendments.

Berubari Case, 1960

Background

- ◆ The Berubari area, located in West Bengal, was a disputed territory claimed by both India and Pakistan.
- ◆ The dispute arose due to ambiguity in the Radcliffe Line map during the 1947 partition.
- ◆ In 1958, the Nehru–Noon Agreement was signed, under which it was decided to divide the territory between the two countries.

Basic legal questions

1. Can India cede a part of its territory to another country without a constitutional amendment?
2. Does Article 3 (dealing with reorganisation of states) empower Parliament to do so, or is a constitutional amendment under Article 368 necessary?

Supreme Court decision

- ◆ The President of India sought the opinion of the Supreme Court under Article 143 (Advisory Jurisdiction).
- ◆ The Supreme Court clarified the following:
 - ✦ Article 3 only permits changes in the internal boundaries, names, or areas of Indian states; it does not authorise cession of territory to a foreign state.
 - ✦ If any part of Indian territory is to be ceded to another country, it requires a Constitutional Amendment under Article 368.
 - ✦ Parliament must first amend the Constitution to exclude the concerned area from the territory of India, only then can it be lawfully transferred.

Results and effects

- ◆ **9th Constitutional Amendment Act, 1960:** Passed to implement the Nehru–Noon Agreement by amending the Constitution and ceding the Berubari area to Pakistan.
- ◆ **100th Constitutional Amendment Act, 2015:** → The India-Bangladesh Land Boundary Agreement was implemented, under which:
 - ✦ 111 Indian enclaves were transferred to Bangladesh, and
 - ✦ 51 Bangladeshi enclaves were transferred to India.

Maganbhai Ishwarbhai Patel v. Union of India (1969 case)

- ◆ The Supreme Court further clarified (1969) that normal border disputes (where there is no loss of territory) can be resolved by cabinet decision, However, actual transfer of territory requires a constitutional amendment.



Think about it - how was Kachchateevu island given away without a Constitutional Amendment?

Katchatheevu is a small, uninhabited island located in the Palk Strait, strategically positioned between India and Sri Lanka.

- ◆ Historical background: The island had long been a matter of dispute between India and Sri Lanka, as both countries claimed sovereignty over it and the rich fishing grounds surrounding it.
After India's independence, the issue became more contentious—particularly due to its importance to Tamil Nadu fishermen.
- ◆ 1974 Agreement: In 1974, the governments of India (Prime Minister Indira Gandhi) and Sri Lanka (Prime Minister Sirimavo Bandaranaike) signed an agreement through which Katchatheevu was recognized as part of Sri Lanka.
- ◆ 1976 Supplementary Agreement: A subsequent agreement in 1976 further clarified maritime boundaries and fishing rights between the two countries.
- ◆ Constitutional issue and controversy: Despite the precedent set by the Berubari judgment, the decision to cede Katchatheevu was made solely through an executive agreement, without any constitutional amendment or parliamentary approval.
- ◆ Official Stand of the Government of India:
 - ✦ The government maintains that Katchatheevu was not an undisputed part of Indian territory, but rather a disputed region.
 - ✦ Hence, its transfer did not amount to a “cession of territory”,
 - ✦ and no constitutional amendment was deemed necessary.


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Note: This chapter is also included under the topic of Modern Indian History in the RAS Mains examination.

First phase: Before 15 August 1947

There were total **562 (as per RBSE) / 565 (as per NCERT)** princely states in existence, among which India faced challenges in integration with a few- 1. Bhopal 2. Travancore 3. Jodhpur

Second phase: 27 October 1947

◆ Accession of Jammu and Kashmir.

Kashmir

- ◆ Jammu and Kashmir was a princely state before 1947, with a Hindu ruler (Maharaja Hari Singh) and a Muslim majority population.
- ◆ Maharaja Hari Singh initially sought independence and proposed a Standstill Agreement with both India and Pakistan. Pakistan accepted the agreement and India suggested negotiations.

Events related to the merger

- ◆ Tribal invasion (October 1947): On 22–24 October 1947, armed tribal militia from Pakistan invaded Kashmir with the support of the Pakistani army and committed large-scale violence and atrocities.
- ◆ Unable to resist the invasion, Maharaja Hari Singh sought military assistance from India. India insisted on merger as a pre-condition for intervention.
- ◆ Instrument of Accession: On 26 October 1947, Maharaja Hari Singh signed the Instrument of Accession.

Results and political developments

- ◆ United Nations involvement: This conflict turned into the First Indo-Pak War. India then raised the issue before the United Nations in January 1948, resulting in a ceasefire and the Line of Control was determined in 1949.
- ◆ Article 370 was included in the Indian Constitution, granting special autonomy to Jammu and Kashmir.
- ◆ On 6 February 1954, the Jammu and Kashmir Constituent Assembly approved the merger, making it legally and politically binding.
- ◆ Abolition of special status: In August 2019, Article 370 was repealed, and Jammu and Kashmir was reorganised into two union territories: Jammu and Kashmir and Ladakh.

◆ February 1948 - Junagadh princely state was merged into India.

Junagadh

Junagadh was a princely state located in present-day Gujarat.

The Muslim Nawab was Mohammed Mahabat Khan III, while more than 80% of the population was Hindu.

Key events:

1. **15 August 1947** – The Nawab decided to accede to Pakistan.
2. **16 September 1947** – Pakistan accepted the accession, despite the fact that Junagadh did not share a contiguous border with Pakistan.
3. This led to widespread local unrest and opposition, and neighbouring smaller princely states (such as Mangrol and Babariwad) acceded to India.
4. **October 1947** – The Nawab fled to Pakistan along with his family and state treasury.
5. Dewan Shah Nawaz Bhutto requested the Government of India to take over the administration of Junagadh.
6. **9 November 1947** – The Government of India assumed administrative control over Junagadh.
7. **February 1948** – A plebiscite was conducted, in which over 99% of the population voted in favour of accession to India.

◆ **November 1948 – Accession of Hyderabad princely state.**

Hyderabad

- ◆ Hyderabad was the largest princely state, ruled by the Nizam, with a predominantly Hindu population (87%) under Muslim rule.
- ◆ The territory of Hyderabad encompassed parts of present-day Telangana, Andhra Pradesh, Karnataka, and Maharashtra.
- ◆ Ruler: Nizam Mir Osman Ali Khan
- ◆ Demographics: Hindu majority population ruled by a Muslim aristocracy.
- ◆ Political Situation (1947): After independence, princely states were given the option to accede to India or Pakistan, or to remain independent. While most states acceded to either dominion, the Nizam of Hyderabad aspired to remain independent, seeking international recognition for Hyderabad's sovereignty.
- ◆ In November 1947, the Nizam signed a Standstill Agreement with India, which maintained status quo but refused to accede to the Indian Union.
- ◆ To strengthen his position, the Nizam sought assistance from Pakistan and other foreign entities, and lent support to the Razakars, a paramilitary group led by Qasim Razvi (leader of the Razakars).

Causes of the Conflict

- ◆ Geographical location: Hyderabad was a landlocked enclave within Indian territory. Its independent status posed a strategic threat to the unity and security of India.
- ◆ Internal unrest: The Razakars and the Nizam's police committed atrocities on the people, leading to widespread unrest and the Telangana rebellion.
- ◆ Communal tension: The activities of the Razakars triggered communal violence and anarchy in the state.

Operation Polo (police action)

- ◆ Date: 13–17 September 1948.
- ◆ Accession – 18 September 1948.
- ◆ Result: The Nizam's forces surrendered within five days. The Nizam signed the Instrument of Accession on 17 September 1948 and Hyderabad was formally integrated into the Indian Union. In November 1948, the Government of India took over full administrative control of Hyderabad.

Important personalities

- ◆ K.M. Munshi- Agent-General of India in Hyderabad.
- ◆ C. Rajagopalachari (Governor-General) authorized Operation Polo.

Manipur

- ◆ Manipur was a sovereign princely state, accorded special status during British rule.
- ◆ At the time of independence, Maharaja Bodhchandra Singh of Manipur signed the instrument of Accession with the Government of India, agreeing to join the Indian Union. In return, the Government assured that Manipur's internal autonomy would be preserved.
- ◆ In June 1948, Manipur conducted its first legislative elections, leading to the establishment of a constitutional monarchy. This marked the first democratic election in any Indian princely state after independence, held on the basis of universal adult suffrage.
- ◆ For complete merger of Manipur, the Maharaja was invited to Shillong, where on 21 September 1949, he was made to sign the Instrument of Merger.
- ◆ The merger sparked controversy within Manipur's Legislative Assembly. While the Manipur Congress supported accession to India, other political parties opposed it, making the process democratically contentious.
- ◆ The Merger Agreement came into effect on 15 October 1949 and Manipur formally became a part of the Indian Union.
- ◆ In 1950, Manipur was declared a "Part C" state under the Indian Constitution.
- ◆ In 1956, it was made a Union Territory under the State Reorganisation Act.
- ◆ On 21 January 1972, Manipur attained full statehood.

Third phase

- ◆ Areas administered by other European powers (Portuguese and French) →
 - ✦ Chandannagar → was under the control of France.
 - In the public referendum held on 19 June 1949, 97% of the population voted in favour of merger with India. Subsequently, Chandernagore was integrated into West Bengal in 1954.
 - ✦ 1954 A.D. → Yanam, Pudducherry, Karaikal and Mahe were liberated from the French control.
 - Dadra and Nagar Haveli were liberated from the Portuguese rule.
 - ✦ 1961 A.D. → Goa Daman & Diu were liberated from the Portuguese control.

Goa

- ◆ Goa, Daman and Diu had been Portuguese colonies since 1510 AD.
- ◆ Even after India's independence in 1947, these regions remained under Portuguese control.
- ◆ Portugal refused to recognise these regions as an integral part of India, asserting that they were not colonies but its "overseas provinces".
- ◆ During its prolonged colonial rule, Portugal suppressed the rights of the people of Goa, denied them civil liberties and promoted religious conversions.
- ◆ The Government of India repeatedly appealed to Portugal to peacefully transfer these territories, but Portugal rejected all diplomatic overtures.
- ◆ The United Nations, United States and Western countries initially was in favour of Portugal, because it was a member of NATO.
- ◆ The people of Goa initiated a popular movement demanding liberation, supported by socialist satyagrahis from Maharashtra, which significantly strengthened the freedom movement within Goa.
- ◆ Following the failure of diplomatic efforts, the Government of India decided to undertake military action on 17 December 1961.
- ◆ Under 'Operation Vijay', the territories of Goa, Daman and Diu were liberated from Portuguese rule on 19 December 1961.
- ◆ In 1962, Goa, Daman and Diu were declared Union Territories.

10th Constitutional Amendment 1961

Dadra and Nagar Haveli were made UT and Made special provisions in the Constitution

12th Constitutional Amendment 1962

Goa, Daman and Diu were made UT and Made special provisions in the Constitution.

14th Constitutional Amendment 1962

Mahe, Puducherry, Yanam, Karaikal were made UTs and Made special provisions in the Constitution.

Fourth Phase

- ◆ Accession of Sikkim →
 - ✦ **Dynasty** - Chogyal Dynasty
 - ✦ **Ruler** - Dharamraj
 - ✦ Sikkim was granted the status of a Protectorate state of India. The following matters were under India's control - 1. Defence, 2. Foreign Affairs, 3. Communications

35th Constitutional Amendment Act, 1974

- ◆ Sikkim was made an associate state of India.
- ◆ For this, Article 2A and 10th Schedule were included.

36th Constitutional Amendment, 1975

- ◆ Sikkim was completely merged into India.
- ◆ Article 2A and 10th Schedule were repealed.

Difference between Standstill Agreement and Instrument of Accession (For Mains)

Basis	Standstill Agreement	Instrument of Accession
Meaning	This was a temporary agreement to maintain the status quo after independence.	This was a legal document through which the princely state could join India or Pakistan.
Objective	There should be no disruption in the administrative system and communication, postal, rail services should continue as before.	Assigning powers in the field of defence, foreign policy and communication to India or Pakistan.
Scope of Impact	It was limited only to administrative services and maintaining status quo.	Granted powers to the centre in specific subjects (Defence, External Affairs, Communication).
Legal status	Temporary and limited effect – it was not a guarantee of merger.	Legally binding document – the first step towards merger.
Example	Hyderabad signed a standstill agreement with India in 1947.	Bikaner, Jodhpur, Baroda etc. joined India by signing the Instrument of Accession.
Time frame	It remained valid until a new arrangement is made or the state takes a decision.	It remained valid till the Constitution of India came into force (till 26 January 1950).


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Pre- Independence demand by Congress

- ◆ During the Home Rule Movement, there was a demand for formation of states on Linguistic basis.
- ◆ 1920 AD → Congress set up Provincial Committees on a linguistic base.
- ◆ 1946 AD → Congress Election manifesto, there was a demand for formulation of states on linguistic basis.

S.K. Dhar Commission, 1948

- ◆ The S.K. Dhar Commission, also known as the Linguistic Provinces Commission, was established on June 17, 1948, to examine the feasibility of reorganising states on a linguistic basis.
- ◆ **Members of the S.K. Dhar Commission:**
 - ✦ S.K. Dhar – Chairman (Retired Judge of the Allahabad High Court)
 - ✦ Jagat Narayan Lal – Member
 - ✦ Panna Lal – Member
- ◆ **The report of this commission was signed on 10 December 1948.**
- ◆ This commission rejected the demand for reorganization of states on linguistic basis and suggested the following criteria -
 1. Administrative Convenience
 2. Geographical Contiguity
 3. Financial Self-reliance
 4. Potential for Development

J.V.P. Committee 1948

- ◆ **Members -** 1. Jawahar Lal Nehru 2. Sardar Vallabh bhai Patel 3. Pattabhi Sita Ramaiyah
- ◆ **Function-** To review the recommendations of S.K.Dhar Commission.
- ◆ This committee also rejected the demand for reorganization of states on linguistic basis.

Status of states at the commencement of the constitution

- ◆ **In the original Constitution, a total of 28 States were divided into three categories, and the Andaman and Nicobar Islands were placed in the fourth category-**

1. Category A → Former British- Governed Provinces (Part -6)
2. Category B → Former Princely states with legislature (Part -7)
3. Category C → Chief Commissioner's provinces and Some princely states (Part -8)
4. Category D → Andaman and Nicobar Islands Group (Part - 9)

Part A	Part B	Part C	Part D
Assam	Hyderabad	Ajmer	Andaman & Nicobar Island group
Bihar	Jammu & Kashmir	Coorg	
Bombay	Madhya Bharat	Delhi	
Central Province	Mysore	Bhopal	
Madras	Patiala & East Punjab	Bilaspur	
Orissa	Rajasthan	Cooch-Behar	
Punjab	Saurashtra	Himachal Pradesh	
United Province	Travancore-Cochin	Kutch	
West Bengal	Vindhya Pradesh	Manipur	
		Tripura	

Language based Movement

- ◆ Telugu-speaking People were demanding a separate Andhra State. After the death of protestor Potty Sriramulu following a 56 days hunger strike, the movement intensified and become violent. Hence, the government had to accept their demand.
- ◆ In 1953, Andhra Pradesh was formed as the first state on linguistic basis.
- ◆ Andhra State was carved out of Madras State on 1 October 1953, with Kurnool as its capital. In 1956, Andhra State was merged with the Telugu-speaking areas of Hyderabad State to form Andhra Pradesh.
- ◆ Afterwards, this demand spread to other regions as well. **Examples** → Bombay Province : Gujarat (Gujarati speaking), Maharashtra (Marathi speaking)

Note: The first state to be formed on the basis of language was Orissa (1935)

Fazal Ali Commission , 1953

- ◆ **Members:** 1. K. M. Panikkar 2. Hridaynath Kunzru
- ◆ This commission gave its recommendations in 1955.

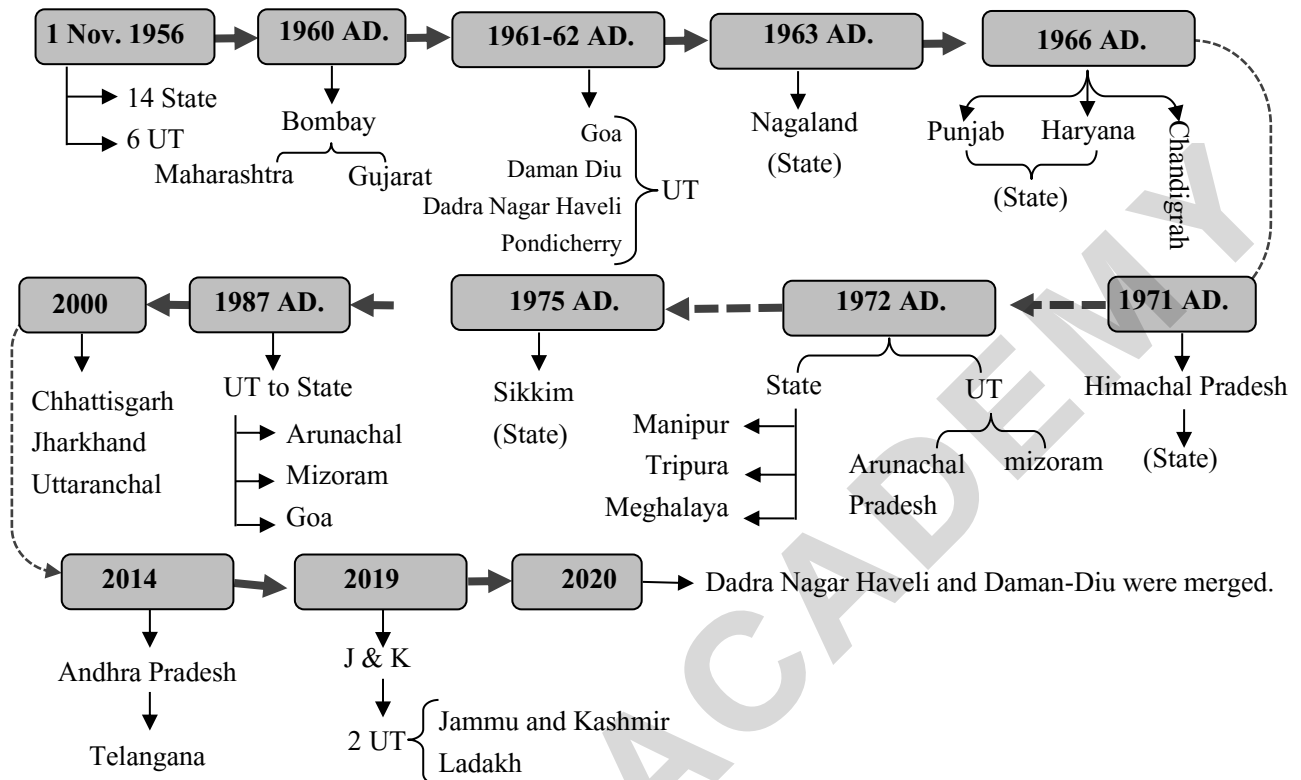
Announcement	Formation	Report submitted
22 Dec 1953	29 Dec 1953	30 Sept 1955

- ◆ **Main Recommendations** →

- ★ Language should be considered as one of the base for reorganization of states, but the principle of 'One Language-One State' should be rejected.
- ★ **The Following factors should be considered for state reorganization:-**

Principles	Factors
(1) Unity and integrity of the country	(1) Cost of change
(2) Linguistic and cultural homogeneity	(2) Unity and security of India
(3) Economic, financial, and administrative convenience	(3) Language and culture
(4) Planning	(4) Requirements of the National Development Council (NDC)
	(5) Regional planning and balanced economic development
	(6) Smaller vs. larger States

- ★ The fourfold classification of states should be abolished and replaced with just two categories:-
1. States (16) 2. Union Territories (3)
- ★ To implement these recommendation, the 7th Constitutional Amendment Act, 1956 (31st august 1956) was passed. **(Date of Assent:** 19th October, 1956).
- ★ Date of Commencement (Came into Force): 1st November, 1956
- ★ Under this, the division of States into three categories was abolished. Parts VII & IX of the constitution were repealed and 14 states and 6 union territories were created.

1 November 1956 - till**Fixing the North-East jigsaw (1971-1991)****1971**

UT Himachal Pradesh was granted statehood

1972

Manipur and Tripura were granted statehood. Mizoram, Meghalaya and North East Frontier Agency were carved out of Assam as UTs

1975

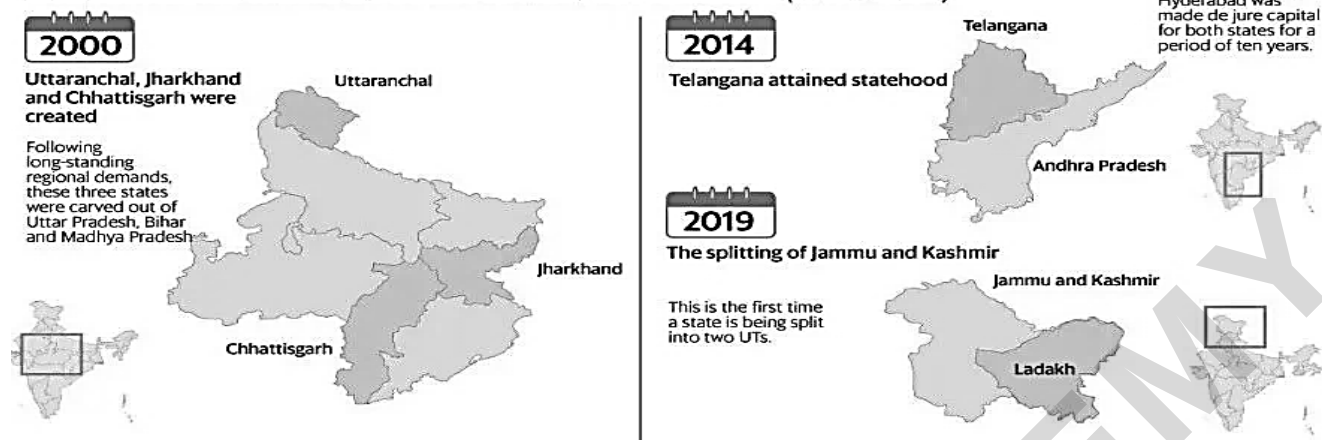
A protectorate of India until then, Sikkim joined the Indian Union after a referendum

1987

UTs Manipur and Arunachal Pradesh became states. The state of Goa, Daman and Diu was split into two: the state of Goa and UT of Daman and Diu

**1991**

Delhi was deemed National Capital Territory and given a legislative assembly, with power jointly shared with the central government

Old faultlines make a return in new millennium (2000-Present)**Major constitutional amendments related to state reorganisation and special powers**

Amendment No.	Year	Article inserted/ major Provisions	What was done/Special powers
5th	1955	—	Clarified the procedure for obtaining the opinion of State Legislatures on State Reorganisation Bills (Amendment to the proviso of Article 3).
7th	1956	—	Enacted the States Reorganisation Act, 1956; created new States and Union Territories on a linguistic basis; abolished classification of states.
9th	1960	—	Alterations in boundaries under Indo-Pakistan Berubari Agreement.
10th	1961	—	Incorporated Dadra and Nagar Haveli as Union Territory.
12th	1962	—	Incorporated Goa, Daman and Diu as Union Territory.
13th	1962	Article 371A	Special constitutional provisions for Nagaland.
14th	1962	—	Incorporated Puducherry (Pondicherry) as a Union Territory.
22nd	1969	Article 244A	Provisions for creation of autonomous state (Meghalaya) within Assam.
27th	1971	Article 239A, 239B, 371C	Mizoram made a Union Territory with legislature; special provisions for Manipur.
32nd	1973	Article 371B, 371C	Provided special provisions for tribal and hill areas of Assam (371B) and Manipur (371C).
35th	1974	Article 2A, 10th Schedule (deleted)	Granted associate state status to Sikkim (later repealed by the 36th Amendment).
36th	1975	Article 371F	Granted full statehood to Sikkim along with special constitutional provisions.
37th	1975	Article 239A	Arunachal Pradesh made a Union Territory with legislature.
49th	1984	Sixth Schedule	Special constitutional provisions for tribal areas of Tripura.
53rd	1986	Article 371G	Special constitutional provisions for Mizoram.
55th	1987	Article 371H	Granted statehood and special provisions to Arunachal Pradesh.
56th	1987	Article 371I	Granted statehood to Goa; Daman and Diu remained as a Union Territory.
100th	2015	—	Implemented the Indo-Bangladesh Land Boundary Agreement (boundary alterations under Articles 3 and 4).

Q. Discuss whether formation of new states is beneficial in the present times or not? (UPSC-2013)

Ans. Reorganization of states has been a challenge since the time of independence. Demand for formation of new states keeps arising due to reasons of administrative efficiency, linguistic and cultural uniformity, better governance and economic development.

The following benefits of state reorganization (creation of new states) can be seen-

◆ **Political/Administrative**

- ✦ Higher possibility of common consensus regarding policies and laws.
- ✦ Better representation - decisions in accordance with regional interests.
- ✦ Better implementation of plans.
- ✦ Administrative efficiency and accountability - easier access to governance for the public.

◆ **Cultural and nationalism**

- ✦ It will act as a 'safety valve' to maintain the unity and integrity of the country.

◆ **Economic**

- ✦ Effective development - After the formation of Uttarakhand, Jharkhand and Chhattisgarh, their development rate was 4-5 percent more than Uttar Pradesh, Bihar and Madhya Pradesh respectively.
- ✦ Better implementation of schemes for economic prosperity.
- ✦ Balanced development will create more opportunities and economic activities, leading to better and rapid economic development.
- ✦ Local control over resources will lead to better use and management of them.
- ✦ It will help in reducing regional disparities.
- ✦ Policy making according to geographical conditions like - Uttarakhand (hilly) and Uttar Pradesh (plains).

However, the following challenges also emerge in the context of creating new states-

◆ **Political**

- ✦ With regard to Uttarakhand, the concept of crony capitalism implies that the government there is influenced by private companies associated with hydropower projects.
- ✦ Exploitation of minorities due to dominance of influential classes.
- ✦ Fear of political instability due to small legislatures.
- ✦ Demand for statehood may arise due to vote-bank politics.
- ✦ **Border and water disputes:** Punjab-Haryana (Yamuna-Sutlej link canal), Assam-Meghalaya (Mikir- Hills).
- ✦ National issues may be neglected.

◆ **In the interest of nationalism:**

- ✦ Maharashtra → regionalism
- ✦ Threat to national unity and integrity because recognition of regional identity may override national identity.-

Nagaland →
 → separate constitution
 → separate flag

- ✦ In Punjab → separatism, demand for Khalistan.
- ✦ May function like the 'domino effect'.
- ✦ People will get emotionally disconnected from their regions.

◆ **Economic**

- ✦ There will be a sudden financial burden on the state. (Construction of capital, secretariat, high court etc.)
- ✦ Challenge of remaining economically self-reliant and fiscally sustainable.

Although the Indian constitution gives power to the parliament for state reorganization, however, the recommendations given by the Fazal Ali Commission for this – linguistic and cultural uniformity, unity of the country, planning and economic, financial, administrative convenience; should be kept at the center and for new parameters, committee may be formed from time to time.

Citizenship

- ◆ Citizenship defines the legal relationship between an individual and the State. It determines who is a member of the nation and who enjoys full political and civil rights. A citizen is a person who is a legal member of the State.
- ◆ In India, citizenship is governed by:
 - ✦ Part II of the Constitution (Articles 5–11)
 - ✦ Citizenship Act, 1955
- ◆ The Indian Constitution provides for Single Citizenship, ensuring:
 - ✦ Equality of citizens across all states
 - ✦ National unity and integration
- ◆ Indian citizens enjoy key rights such as:
 - ✦ Right to vote
 - ✦ Fundamental Rights
 - ✦ Right to contest elections and hold certain public offices
- ◆ Citizenship also involves duties and allegiance to the nation.
- ◆ **Fundamental Rights enjoyed ONLY by Citizens of India**

Article	Right
Article 15	Prohibition of discrimination on grounds of religion, race, caste, sex or place of birth
Article 16	Equality of opportunity in matters of public employment
Article 19	Protection of certain rights regarding freedom of speech, etc. Six freedoms (speech, movement, residence, profession, assembly, association)
Article 29	Protection of interests of minorities.
Article 30	Right of minorities to establish and administer educational institutions.

Aliens

An alien is a person who is not a citizen of India. Aliens live in India but do not belong legally to the Indian State. Aliens do not enjoy political rights but enjoy some fundamental rights.

Types of Aliens**A. Friendly Alien**

- ◆ Citizen of a country that is not at war with India.
- ◆ Enjoys most Fundamental Rights, except those reserved only for citizens.

B. Enemy Alien

- ◆ Citizen of a country that is at war with India.
- ◆ Enjoys very limited rights.
- ◆ During a situation of war or emergency, they do not enjoy the protection of **Article 14 (equality before law)** and **Article 21 (right to life)**.

Single Citizenship in India

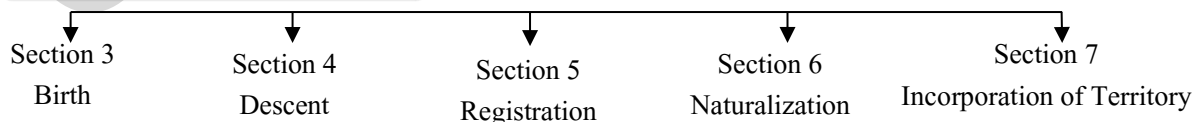
- ◆ The Indian Constitution, though federal in structure with a Union and States, provides for only one citizenship, that is, Indian citizenship.
- ◆ All citizens owe allegiance only to the Union of India.
- ◆ Under the system of single citizenship, all Indian citizens enjoy equal rights throughout India, and no distinction is made between citizens of different states in matters of citizenship rights.

- Article-5** → Citizenship at the commencement of the Constitution
A person shall be a citizen of India if-
- born in the territory of India.
 - or either of his parents was born in the territory of India.
 - or who has been a ordinarily residing in the territory of India for not less than 5 years immediately before the commencement of the Constitution.
- Article-6** → Citizenship rights of certain persons migrating to India from Pakistan-
A person who migrated to India from Pakistan shall be deemed to be a citizen of India if ; He or either of his parents or any of his grandparents (either originally or by enactment), was born in India as defined under the Government of India Act, 1935.
- Article-7** → Citizenship rights of persons migrating to Pakistan-
 - ◆ Notwithstanding any provision in Articles 5 and 6, a person who migrated from India to Pakistan after 1 March 1947 shall not be considered a citizen of India.
 - ◆ However, if he later returns, he may become a citizen of India by registration (provided that he has been residing in India for at least 6 months immediately before applying).
- Article-8** → Citizenship rights of persons of Indian origin residing outside India:-
 1. A person whose parents or any of the grandparents (paternal or maternal) were born in undivided India as defined in the Government of India Act, 1935.
 2. On an application made to the diplomatic or consular representative of India before or after the commencement of this Constitution, such diplomatic or consular representative will register him as a citizen of India.
- Note:** Articles 9, 10, and 11 are more important from the examination point of view.
- Article-9** → If any person voluntarily acquires the citizenship of any other country, then his Indian citizenship shall cease, i.e., the Indian Constitution does not provide for dual citizenship.
- Article-10** → **Continuance of citizenship**
 - ◆ Indian citizenship obtained in accordance with the provisions of the Constitution shall continue to be a citizen subject to any law made by parliament. It cannot be terminated arbitrarily.
- Article-11** → **Parliament's power to regulate the right of citizenship.**
Residuary powers related to citizenship have been given to the Parliament.
Example: Citizenship Act, 1955 (This Act mentions provisions relating to citizenship after 26th January, 1950.)

Citizenship Act, 1955

- ◆ The following amendments have been made in it-
 - ★ Citizenship (Amendment) Act, 1986
 - ★ Citizenship (Amendment) Act, 2003
 - ★ Citizenship (Amendment) Act, 2015
 - ★ Citizenship (Amendment) Act, 1992
 - ★ Citizenship (Amendment) Act, 2005
 - ★ Citizenship (Amendment) Act, 2019

Acquisition of Citizenship, 1955



Trick :- Natural BIRD

The Citizenship Act, 1955

- ◆ The Citizenship Act (1955) provides for acquisition and loss of citizenship after the commencement of the Constitution.
- ◆ Originally, the Citizenship Act (1955) also provided for the Commonwealth Citizenship. But, this provision was repealed by the Citizenship (Amendment) Act, 2003.

Ways of Acquiring Citizenship:

Citizenship Act of 1955 prescribes five ways of acquiring citizenship, viz, birth, descent, registration, naturalisation and incorporation of territory:

1. Citizenship by Birth (Section 3)

Period of Birth	Condition
26 Jan 1950 – 1 July 1987	Irrespective of the nationality of the parents, the person is considered an Indian citizen.
1 July 1987 – 3 Dec 2004	At least one parent must be an Indian citizen at the time of birth.
On or after 3 Dec 2004	Both parents must be Indian citizens, or one parent must be an Indian citizen and the other must not be an illegal migrant.

Not applicable to:

- ◆ **Children of foreign diplomats:** Children of officials of foreign embassies posted in India.
- ◆ **Enemy aliens:** Citizens of an enemy country during a situation of war.

2. Citizenship by Descent (Section 4)

- ◆ For persons born outside India:

Period	Condition
26 Jan 1950 – 10 Dec 1992	Father must be an Indian citizen at the time of birth.
After 10 Dec 1992	Either parent (mother or father) must be an Indian citizen at the time of birth.
After 3 Dec 2004	Registration at an Indian Consulate within one year of birth is mandatory, along with a declaration by the parents that the child does not hold a passport of any other country.

Extra conditions apply if parent is citizen by descent only: Must satisfy at least one:

- ◆ Birth registered at Indian consulate within 1 year, or later with govt permission
- ◆ Parent was serving under Indian government

Dual citizenship rule:

- ◆ Must renounce foreign citizenship within 6 months of attaining adulthood → else Indian citizenship ceases.

3. Citizenship by Registration (Section 5)

The Government may register a person as an Indian citizen **if he/she is not an illegal migrant** and falls under any one of the following categories:

1. **Person of Indian origin** who has been residing in India for **7 years** before applying.
2. **Person of Indian origin** residing in **any country outside undivided India**.
3. **Person married to an Indian citizen** who has been residing in India for **7 years** before applying.
4. **Minor child** whose parents are citizens of India.
5. **Adult person** whose parents are **registered citizens of India**.

6. **Adult person** whose parents were citizens of **independent India** and who has been residing in India for **12 months** immediately before applying.
7. **OCI cardholder** who has been registered as an OCI for **5 years** and has been residing in India for **12 months** immediately before applying.

Oath of Allegiance: All applicants must take an oath of allegiance to the Constitution of India.

4. Citizenship by Naturalisation (Section 6)

Conditions:

1. The applicant must **not be a citizen of a country** where Indians are prevented from acquiring citizenship by naturalisation.
 2. **Renunciation of foreign citizenship** is mandatory on acquiring Indian citizenship.
 3. The applicant must have **resided in India for at least 12 months immediately before** making the application.
 4. The applicant must have **resided in India for a total of 11 years out of the previous 14 years**.
CAA, 2019 relaxation: For **Hindus, Sikhs, Buddhists, Jains, Parsis, and Christians** from **Afghanistan, Bangladesh, and Pakistan**, this period is **reduced to 5 years**.
 5. The applicant must be of **good character**.
 6. The applicant must have **adequate knowledge of any one language** specified in the **Eighth Schedule** of the Constitution.
 7. After acquiring citizenship, the applicant must intend to **reside in India** or **serve under the Government of India**.
- ◆ **Special exemption:** The Government may relax these conditions for persons who have rendered **distinguished service in science, philosophy, art, literature, or the cause of world peace**.
- ◆ **Oath of Allegiance:** Taking an oath of allegiance to the Constitution of India is **mandatory for all applicants**.

5. Citizenship by Incorporation of Territory (Section 7)

- ◆ If a new territory becomes part of India:
- ✦ The **Government of India decides** which persons of that territory will become Indian citizens.
 - ✦ Citizenship starts from date notified by Government
 - ✦ **Example:** When Pondicherry became part of India, the Government issued the Citizenship (Pondicherry) Order, 1962.

Special Provisions

A. Assam Accord (Section 6A) (Citizenship (Amendment) Act, 1985)

1. **Migrants from Bangladesh who entered before 1 January 1966:** They are deemed to be **Indian citizens from 1 January 1966**.
2. **Migrants who entered between 1 January 1966 and 25 March 1971:**
 - ✦ They must **register themselves as foreigners**.
 - ✦ They will be granted **Indian citizenship after 10 years of registration**.
 - ✦ During this **10-year period**, they will not have the right to vote.

B. Citizenship (Amendment) Act, 2019 (CAA 2019) (Section 6B)

It applies to **Hindus, Sikhs, Buddhists, Jains, Parsis, and Christians** who entered India **on or before 31 December 2014** from **Afghanistan, Bangladesh, or Pakistan**.

Provisions:

1. Eligible for citizenship by registration/naturalisation.
2. Citizenship from date of entry.
3. All pending illegal migration cases are cancelled after citizenship.
4. Not applicable in:
 - ✦ Sixth Schedule areas (Assam, Meghalaya, Mizoram, Tripura)
 - ✦ Inner Line Permit areas (Bengal Eastern Frontier Regulation, 1873)

Termination of Indian Citizenship

Indian citizenship can end in three legal ways:

1. Renunciation of Citizenship (Section 8)

- ◆ Any citizen of full age and capacity may voluntarily renounce citizenship.
- ◆ On registration of declaration → citizenship ceases.
- ◆ If renunciation is during a war involving India → registration is withheld by Central Government.
- ◆ Effect on children:
 - ✦ Minor children automatically lose Indian citizenship when parent renounces.
 - ✦ They may resume Indian citizenship within 1 year after attaining 18 years.

2. Termination of Citizenship (Section 9)

- ◆ Automatic loss of citizenship when a person voluntarily acquires foreign citizenship.
- ◆ Must be conscious, voluntary, and without duress.
- ◆ If foreign citizenship is taken during war → Indian citizenship **does not end** unless Government orders.

3. Deprivation of Citizenship (Section 10) : Government may cancel citizenship if the person:

1. Obtained citizenship by fraud / false information / hiding facts
2. Shows disloyalty to the Constitution of India
3. Helps enemy during war
4. Is convicted within 5 years of registration/naturalisation and sentenced to ≥ 2 years imprisonment
5. Lives outside India for 7 continuous years and:
 - ✦ Not a student abroad
 - ✦ Not in international organisation service
 - ✦ Did not register annually at Indian consulate to retain citizenship
 - ✦ Not in Indian govt service

Safeguards (Protection of Individual rights)

- ◆ **Citizenship cannot be removed arbitrarily:**
 - ✦ Government must be satisfied it is not in public interest to keep the person as citizen
 - ✦ Person must get written notice
 - ✦ Person can request Inquiry Committee
 - ✦ Person has right to hearing
- ◆ **Committee of Inquiry:** If requested then the case is sent to a **Committee of Inquiry**
 - ✦ Committee includes:
 - Chairman (being a person who has for at least ten years held a judicial office)
 - Two other members appointed by Government
 - ✦ Committee investigates and submits report
 - ✦ Central Government shall ordinarily be guided by such report in making an order under this section.

Overseas Citizenship of India (OCI)**[1] Registration of Overseas Citizen of India Cardholder (Section 7A)**

The Government may grant OCI status to:

A. Adults who are foreign citizens but:

1. Were Indian citizens at any time after the commencement of the Constitution, OR
2. Were eligible to become Indian citizens at the start of the Constitution, OR
3. Belonged to a territory that became part of India after 15 Aug 1947, OR
4. Are children / grandchildren / great-grandchildren of such persons

B. Minors:

- ◆ Minor child of any eligible person above
- ◆ Minor child whose both parents are citizens of India or one of the parents is a citizen of India

C. Spouse category:

A **foreign spouse** can apply for **OCI (Overseas Citizen of India) Card** if:

- ◆ married to an Indian citizen, or an OCI cardholder registered under Section 7A
- ◆ The marriage is legally registered
- ◆ The marriage has continued for at least 2 years immediately before applying
- ◆ The spouse passes prior security clearance by Indian authorities

OCI registration is not allowed if:

- ◆ The spouse or their parents / grandparents / great-grandparents were citizens of Pakistan, Bangladesh or any other country notified by Indian Government.

Special power: Government may grant OCI in **special circumstances** even if conditions are not fully met.

[2] Conversion of Persons of Indian Origin (PIO) Cardholders into OCI (Section 7A(2))

- ◆ The Central Government may issue a notification in the Official Gazette.
- ◆ All existing Persons of Indian Origin (PIO) cardholders are automatically treated as OCI cardholders from the notified date.

Discontinuation of the PIO Card Scheme

The Government of India, through Gazette Notification dated 9 January 2015, officially announced the discontinuation of the Person of Indian Origin (PIO) Card Scheme.

Under this notification, all PIO cards issued up to 9 January 2015 were deemed to be Overseas Citizen of India (OCI) cards. The Government extended the deadline for conversion of valid PIO cards into OCI cards up to 31 March 2016. After this date, PIO cards ceased to be valid. If such persons wished to obtain OCI status thereafter, they had to apply afresh as new applicants under the OCI scheme.

[3] Conferment of rights on Overseas Citizen of India Cardholder (Section 7B)

- ◆ OCI holders receives rights notified by Government (like long-term stay, economic and educational rights, etc.)

Rights not available to OCI Cardholders (Section 7B(2))

An Overseas Citizen of India Cardholder shall not be entitled to the rights conferred on a citizen of India—

- ◆ No equality of opportunity in public employment (Article 16)
- ◆ Cannot become President of India (Article 58)
- ◆ Cannot become Vice-President of India (Article 66)
- ◆ Cannot be appointed Judge of the Supreme Court (Article 124)
- ◆ Cannot be appointed Judge of a High Court (Article 217)
- ◆ Cannot register as a voter (Representation of the People Act, 1950)
- ◆ Cannot become a member of the House of the People or of the Council of States (Representation of the People Act, 1951)
- ◆ Cannot become a member of the Legislative Assembly or the Legislative Council (Representation of the People Act, 1951)
- ◆ Cannot hold public services and government posts under Union or State Governments (Except posts specifically permitted by the Central Government)

[4] Renunciation of Overseas Citizen of India Card (Section 7C)

- ◆ An **adult and legally competent OCI cardholder** may **voluntarily surrender** the card.
- ◆ Upon such registration, the **OCI status of the person ceases**.
- ◆ **Impact:** The **foreign-origin spouse** of the person and **all their minor children** also **automatically lose their OCI status**.

[5] Cancellation of registration as Overseas Citizen of India Cardholder (Section 7D)

The **Central Government may cancel an OCI Card** if it is satisfied that:

- ◆ The OCI registration was obtained by fraud, false information, or hiding important facts
- ◆ The OCI holder has shown disloyalty to the Constitution of India
- ◆ During war, the OCI holder helped the enemy, or traded/communicated unlawfully with the enemy, or assisted enemy-related business activities
- ◆ Within 5 years of OCI registration, the person is sentenced to at least 2 years' imprisonment
- ◆ The OCI holder has violated provisions of the Citizenship Act or any other law notified by the Central Government
- ◆ Cancellation is required in the interest of the sovereignty and integrity of India, security of India, friendly relations with any foreign country, or in the interests of the general public; or
- ◆ In case of OCI through marriage:
 - ✦ the marriage has been dissolved by a competent court of law or
 - ✦ has not been dissolved but, the person remarries during the subsistence of the marriage (bigamy)

Procedural safeguard:

No cancellation order can be passed without giving the OCI Cardholder a reasonable opportunity of being heard.

Comparison between NRI and OCI

Feature	NRI (Non-Resident Indian)	OCI (Overseas Citizen of India)	PIO (Person of Indian Origin)
Legal status	Indian citizen living abroad	Foreign citizen with special status	Discontinued scheme
Citizenship	Full Indian citizenship	Not Indian citizen	Not Indian citizen
Passport	Indian passport	Foreign passport + OCI card	Merged into OCI
Definition	Indian citizen residing outside India	Foreign national with Indian roots	Now treated as OCI
Eligibility base	Indian citizenship	Indian origin/territory links	No longer separate
Visa requirement	Not required	Not required (OCI = lifelong visa)	Same as OCI
Stay in India	Unlimited	Unlimited	Same as OCI
Registration in India	Not required	Not required	Same as OCI
Voting rights	Yes	No	No
Contesting elections	Yes	No	No
Government jobs	Allowed (some posts restricted)	Not allowed	Not allowed
Private employment	Allowed	Allowed	Allowed
Property rights	Can own property (not agricultural land)	Same as NRI	Same as OCI
Agricultural land	Not allowed (except inheritance/gift)	Not allowed	Not allowed
Political rights	Full political rights	No political rights	No political rights
Constitutional posts	Eligible	Not eligible	Not eligible
Dual citizenship	Not allowed	Not allowed	Not allowed
Citizenship acquisition	Already citizen	Can apply later	Not applicable
Current validity	Fully valid category	Fully valid category	Abolished in 2015

Analysis: Should India modify its policy of Single Citizenship?

Context - In a reply in the **Rajya Sabha**, the External Affairs Minister stated that **more than 1.6 million Indians have renounced their citizenship since 2011.**

- ◆ **In 2023 alone**, the number stood at **225,620**, the **highest ever recorded**.
- ◆ The **most preferred destination countries** for such individuals are the **United States, Canada, and Australia.**
- ◆ As the world becomes increasingly interconnected, the **rigid concept of citizenship is gradually becoming more flexible.**
- ◆ **More than 85 countries**, mostly **Western democracies**, now allow **dual citizenship.**
- ◆ Many countries have adopted the concept of **permanent residence**, which grants almost all rights associated with citizenship.
- ◆ **Economic diplomacy** has played a significant role in this trend.
- ◆ Around **30 countries offer partial or limited citizenship based on investment**, while
- ◆ Only **11 countries provide direct and full citizenship** through such routes.
- ◆ Citizenship is increasingly viewed as a form of “**soft power**”, used by states to **attract global talent, capital, and skills.**
- ◆ Passports of countries like **Japan, France, Germany, and Italy** are considered among the **most powerful in the world.**
- ◆ In contrast, the **Indian passport ranks around 80th**, offering **visa-free access to only about 62 countries.**

Cost-Benefit Analysis of Dual Citizenship

- ◆ Dual citizenship is generally based on the principle of **reciprocity**, meaning **mutual recognition by both countries** is required.
- ◆ It requires supporting **tax arrangements**, such as **Double Taxation Avoidance Agreements (DTAA)**, to avoid double taxation.
- ◆ It helps individuals achieve **better economic, social, and familial adaptation.**
- ◆ However, the **conditions and procedures are often complex**, and it may **not be suitable for every country.**
- ◆ Many **Non-Resident Indians are compelled to renounce Indian citizenship** because India does not permit dual citizenship.

Way Forward

- ◆ Although the idea of dual citizenship appears attractive in theory, its **practical implementation in the Indian context is challenging.**
- ◆ India has **historically not accepted the concept of dual loyalty.** Nevertheless, India has been compelled to adopt **flexibility through mechanisms like Overseas Citizenship of India (OCI).**

Conclusion

India should consider **limited and conditional dual citizenship** with the objective of **strengthening ties with the Indian diaspora** and ensuring **socio-economic benefits.**

- ◆ Several countries have introduced “**Golden Visa**”-type programmes aimed at **attracting investment, talent, and entrepreneurship.**
- ◆ Each country has its **own eligibility conditions and range of benefits**, which may provide pathways ranging from **long-term residency to full citizenship.**

Example: United Arab Emirates

(Part III - Magna Carta of the Indian Constitution)

❖ Originally there were 7 Fundamental Rights in the Indian Constitution but at present there are 6 Fundamental Rights.

- ✦ Article 14-18 → Right to Equality
- ✦ Article 19-22 → Right to Freedom
- ✦ Article 23-24 → Right against Exploitation
- ✦ Article 25-28 → Right to Freedom of Religion
- ✦ Article 29-30 → Cultural and Educational Rights
- ✦ Article 32 → Right to Constitutional Remedies
- ✦ Waiver of Fundamental Rights: In India, an individual cannot waive their Fundamental Rights, whereas in the United States, a citizen may voluntarily waive their rights.

Rights

↓
A citizen's claim against the state.

Why are fundamental rights called 'fundamental'?

- ↓
1. They are essential for the holistic development of an individual.
 2. They are guaranteed by the supreme law i.e. the Constitution.
 3. Parliament cannot make laws against them.

The inclusion of fundamental rights in the Indian Constitution was supported by the 'Nehru Report' (1928 AD).

- ❖ In reality, rights are the pillars of democracy, and as the renowned political thinker Laski said, rights are the name of those facilities without which a person cannot hope for the development of their personality.
- ❖ The demand for Fundamental Rights in India began during the national movement, and this demand was depicted with Tilak's Swaraj Bill in 1895, which was later extensively presented in the Nehru Committee Report of 1928.
- ❖ This part of Fundamental Rights in the Indian Constitution is influenced by the American Constitution. Although there are procedural and substantive differences in the nature of the American and Indian Constitutions, the Charter of Rights in the Indian Constitution has acquired a unique place.
- ❖ Dr. B. R. Ambedkar referred to Part 3 of the Constitution related to Fundamental Rights as the most criticized part, meaning that this part of the Constitution witnessed the most discussion and deliberation.
- ❖ Theoretically, it is believed that Fundamental Rights impose certain restrictions on the duties or responsibilities of the state in the interest of individuals, and hence the nature of Fundamental Rights is fundamentally negative due to being claims of individuals against the state. However, the interpretation made by the Hon'ble Judiciary over time has proved that Fundamental Rights are not only negative or against the state, but they also impose certain obligations on the state—therefore, they also have a positive aspect.

Article-12→ Definition of State

❖ Article 12 states that unless the context otherwise requires, the term 'State' includes the Government and Parliament of India, the Government and Legislature of each State, and all local or other authorities within the territory of India or under the control of the Government of India.

- ❖ The terms 'other authorities' and 'under the control of the Government of India' have not been clearly defined.
- ❖ The meaning of the term 'local authorities' has not been clearly stated.
- ❖ The judiciary has not been explicitly mentioned in Article 12.
- ❖ Private institutions are not mentioned in Article 12 — therefore, judicial interpretation is necessary for them.

‘Other Authorities’ and ‘Under the control of the Govt. of India’

R.D. Shetty vs. International Airport Authority of India (1979) - In this landmark case, Justice P.N. Bhagwati laid down a five-point test to determine whether a body is an instrumentality or agency of the State under Article 12 of the Constitution:

- ✦ It was clarified with the statement that the test is merely illustrative and not conclusive in nature, and hence must be applied with great caution.
- ✦ On this basis, the Supreme Court in Zee Telefilms case (2005) held that BCCI is not 'State' under Article 12,
 - as it was not established by any statute,
 - and merely relying on regulatory control was not sufficient.
 - Furthermore, the government had neither conferred any monopoly status on BCCI nor exercised any financial or administrative control over it.

Institutions declared 'State' by Supreme Court	Institutions not declared as 'State' by Supreme Court
BPCL, FCI, Nationalised Banks, NIT, SAIL, CIL etc	ICAR, NCERT, BCCI etc

◆ **Local Authorities**

- ✦ Although the Constitution does not provide a clear definition of the term "Local Authorities".
- ✦ The Supreme Court, in the cases of Rashid Ahmed vs. Municipal Board (1957) and Ajit Singh vs. State of Punjab (1967), has held that Municipalities and Panchayats fall under the category of "State" within the meaning of Article 12 of the Constitution.

◆ **Article 12: Judiciary**

- ✦ It is undisputed that the judiciary has not been explicitly included under Article 12 of the Constitution, but it has also not been explicitly excluded.
- ✦ Judicial functions are not included within the definition of "State" under Article 12. If they were included, courts would not be able to examine whether an order or law violates fundamental rights or not.
- ✦ However, administrative functions performed by the Supreme Court and High Courts fall within the definition of "State" under Article 12.

Example: If the recruitment process for clerks in the Supreme Court is found to be arbitrary and violative of fundamental rights, a writ petition can be filed.

- ✦ Similarly, judicial and administrative functions of subordinate courts also fall under the category of "State" within Article 12, since they do not possess the power of constitutional interpretation or judicial review of fundamental rights.
- ✦ In addition, some fundamental rights are enforceable even against private individuals, such as—
 - Article 17 (Abolition of Untouchability),
 - Article 19(1)(d) (Freedom of Movement), and
 - Article 25 (Freedom of Religion).

◆ This definition of the state is not exhaustive, it is inclusive in nature and can be expanded from time to time.

Article-13

Article 13(1) → Any pre-Constitution law that is inconsistent with the Fundamental Rights shall be void to the extent of the inconsistency.

Therefore, the nature of Article 13(1) is prospective, not retrospective. This prospective nature forms the basis of the Doctrine of Eclipse.

Doctrine of Eclipse

1. The prospective nature of Article 13(1) was clarified by the Supreme Court in the case of *Bhikaji Narayan v. State of Madhya Pradesh* (1995).
2. This doctrine applies only to pre-Constitutional laws.
3. When a pre-Constitution law is declared unconstitutional, it is not permanently invalidated; If the unconstitutional portion of the law is removed or amended, the law can become valid again. This means that under Article 13(1), such a law is temporarily eclipsed, and can be revived.
4. This doctrine ensures that pre-Constitutional laws declared unconstitutional are not struck down permanently; they may be revived through amendment or removal of inconsistency. This special treatment is applicable only to pre-Constitutional laws.

Article 13(2) → Any law made by the State that is inconsistent with the Fundamental Rights shall be void to the extent of such inconsistency. (For post-constitutional laws)

Doctrine of Severability: Its simple meaning is that only those provisions or parts of a law which violate the Fundamental Rights can be declared unconstitutional, while the remaining parts of the law may continue to remain in force.

This doctrine applies **equally to both Pre-Constitutional and Post-Constitutional laws**.

Its basis lies in the phrase "**to the extent of...**" used in **Articles 13(1) and 13(2)** of the Constitution.

Article 13(3) → The term 'Law' includes-

- Ordinance ▪ Rule ▪ Custom or practice having the force of law
- Order ▪ Regulation
- By-law ▪ Notification

Article 13(4) → Article 13(2) applies only to ordinary laws. It does not apply to amendments made under Article 368 (inserted by the 24th Constitutional Amendment).

Right to Equality

Article-14 → The state shall not deny 'equality before law' or 'equal protection of the laws' to any person within the territory of India.

- ❖ **Definition of Equality as per NCERT:** The concept of equality signifies that all individuals, by virtue of being human, are entitled to equal rights and opportunities to develop their skills and talents and to pursue their goals and aspirations.

<u>Equality before law</u>	<u>Equal Protection of Law</u>
↓	↓
1. This concept is borrowed from Britain. 2. It is a negative interpretation of the rule of law. 3. According to this, everyone is equal before the law. The law will not discriminate against anyone. ❖ No individual is above the law. ✦ Legal Person ✦ Company ✦ Corporation etc.	1. Borrowed from the USA. 2. It is a positive interpretation of the rule of law. 3. The law shall treat equally those who are in similar circumstances. The law can make reasonable/positive/just/rational discrimination.

- ❖ **Rule of law** → "One law for all, and one system of justice for all."
- ❖ **Constitutionalism** – The power of the government must be limited by the Constitution, and the functions of the government must be regulated by law.

- ◆ **Article 14: The backbone of all other rights:** Article 14 of the Indian Constitution, which guarantees the Right to Equality, is often regarded as the backbone of all other fundamental rights. This is because it lays down a foundational principle that underpins the entire framework of fundamental rights in India.

Exceptions to Equality

- Immunities granted to the President and the Governors (Article 361):**
 - ◆ They are not answerable to any court for discharging their official duties. (Article 361(1))
 - ◆ No criminal proceedings or arrest can be initiated against the President and Governor during their term of office. Article 361(2) & (3)
 - ◆ Civil proceedings against the President/Governor for any act done in personal capacity can be initiated only after giving a 2 months of prior notice. Article 361 (4)
- Special privileges of Members of Parliament under Article 105.
- Special privileges of Members of State Legislature under Article 194.
- Immunity to foreign rulers and diplomats (ambassadors and high commissioners) from civil and criminal jurisdiction.
- Immunity for officials working in the United Nations and its agencies.
- Emergency Proclamation:** Under Article 359(1), the President may issue an order suspending the enforcement of Article 14 during the period of Emergency. This implies that although the right to equality continues to exist, individuals cannot move the court for its enforcement during the period of Emergency.

Category	Equality	Equity	Justice
Definition	Providing the same resources or opportunities to everyone.	Providing resources based on individual needs to achieve equal outcomes.	Addressing systemic issues to ensure long-term fairness.
Approach	A uniform solution for all (One-size-fits-all approach).	Customized according to personal circumstances.	Systemic change.

Article-15 → Prohibition of discrimination on certain grounds

- 15(1)** The state shall not discriminate against any citizens on the grounds of religion, race, caste, sex, place of birth.
- 15(2)** There shall be no discrimination on the basis of religion, race, caste, sex, place of birth in private institutions, hotels, restaurants, public wells, stepwells, ponds, temples etc.

Exceptions →

- 15(3)** Special schemes and programmes can be made for the welfare of women and children.
- 15(4)** The state can make special schemes and programmes for socially and educationally backward classes (SC/ST/OBC).

Champakam Dorairajan vs State of Madras, 1951

SC struck down Madras government's decision to reserve seats for non-Brahmin students in medical and engineering colleges (Article 15(1)) Parliament amended the Constitution to repeal the above decision and insert Article 15(4) by the First Constitutional Amendment, 1951.

- 15(5)** Reservation may be provided in educational institutions for socially and educationally backward classes. (93rd CA, 2005)
There can be reservation in both government and private educational institutions but there cannot be reservation in minority educational institutions.
- 15(6)** The state can make special provisions, including reservations in educational institutions and special schemes for economically weaker sections (EWS). (103rd Constitutional Amendment Act, 2019)

Sub Topic 1 - Creamy layer Concept

(For Mains)

Creamy Layer means those members of the backward class (OBC - Other Backward Classes) who have now become relatively prosperous from the social and economic point of view. These people should not get the benefit of reservation.

Year	Important Points
1979	Mandal Commission recommended recognition of backward classes.
1990	V.P.Singh government implemented Mandal report (27% OBC reservation).
1992	Indira Sahni vs Government of India case (Mandal case): Supreme Court said— ✦ Reservation limit should be up to 50% . ✦ Creamy Layer of OBC should be excluded from reservation.

Current Criteria

At the central level, the income limit for creamy layer in OBC is ₹8 lakh per annum.

The following individuals are considered creamy layer, even if their income is below the limit:

- ✦ High ranking (Class I / Group A) government officials
- ✦ Military officials of Colonel and above
- ✦ Big businessmen/industrialists
- ✦ Eminent professionals (like doctors, lawyers who earn huge incomes)

The National Commission for Backward Classes (NCBC) had recommended increasing this limit to ₹15 lakh, but ₹8 lakh is still the applicable threshold as of now.

Positive Dimensions		Negative Dimensions	
Points	Description	Points	Description
Identifying real beneficiaries	This gives reservation to only those who really need it	Emphasis on economic based classification	While backwardness cannot be determined by income alone
Improvement in social justice	Bringing forward the poor OBCs by excluding the rich OBCs	Confusing implementation	In many states, creamy layer is not applicable or different standards are applied
Increased credibility of reservation	The judiciary considered it a balancing decision	Political interference	Pressure to increase income limit due to vote bank
Protection of merit	Exclusion of the creamy layer gives opportunities to more deserving people	Complex process	Difficulty in determination due to lack of correct data

Sub-Topic 2 - Creamy Layer in SC/ST

1. Indra Sawhney vs. Union of India (1992)

- ✦ The creamy layer concept applies only to Other Backward Classes (OBCs).
- ✦ It does not apply to Scheduled Castes (SCs) and Scheduled Tribes (STs), because their backwardness is considered to be more social than economic.

2. Jarnail Singh vs. Lachhmi Narain Gupta (2018)

- ✦ The creamy layer principle is applicable to Scheduled Castes (SCs) and Scheduled Tribes (STs) as well, but only in matters of promotion.
- ✦ **The Supreme Court held:**
 - Exclusion of the creamy layer is not a violation of Article 16(4A).
 - Wealthy individuals from SCs/STs cannot claim reservation in promotions.
 - If a person is economically well-off and holds high-ranking positions, then social backwardness alone is not sufficient to justify reservation.

Note: This is not applicable to initial appointments, only applicable in matters of promotion.

◆ Why creamy layer in promotion for Scheduled Castes / Scheduled Tribes (SC/ST)?

Party		Opposition	
Reason	Description	Point	Criticism
Right to equality (Article 14)	If affluent SC/ST individuals also receive benefits, it is injustice to other backward sections.	SC/ST backwardness is social	Backwardness cannot be determined solely on the basis of economic income.
Protection of merit	Those who are already in high positions should not receive repeated benefits through reservation.	Getting a higher position does not exempt one from caste discrimination	Caste-based discrimination always persists.
Priority to the genuinely deprived	Only the poor and socially weak SC/ST individuals should receive the benefits.	Constitutional protection will weaken	This may endanger the protection granted under Articles 341 and 342 of the Constitution.

Sub-Topic 3 - Sub-classification of OBC community

★ What is sub-classification?

Creating internal sub-categories within the OBC category so that the benefits of reservation can actually reach the more backward groups - this is called sub-classification.

Its objective is to ensure that the "extremely backward" sections within the OBCs should receive special benefits and the dominance of those who have already availed more benefits from reservation is reduced.

- Many states have created three or four categories in OBC:

States	Categories
Bihar	Extremely Backward Class, Backward Class
Uttar Pradesh	Backward (2%), Extremely Backward (15%)
Karnataka, Andhra Pradesh, Tamil Nadu, Kerala	Subgroups such as A, B, C, D groups, or EBC/MBC

★ Major commissions and committees

Commission / Committee	Year	Main suggestions or actions
Kaka Kalelkar Commission	1953	Prepared a list of backward classes for the first time (not implemented)
Mandal Commission	1979/ 990	Recommended 27% reservation (no sub-classification)
NCBC	1993	The concept of Backward Class, Most Backward Class, and Extremely Backward Class was introduced.
Karpuri Thakur Formula	1970s	Sub-classification was first implemented in Bihar.
Justice Rohini Commission	2017-2023	The central OBC list was studied, and sub-classification was recommended.

Article 340

The President of India has the authority to appoint a commission to examine the condition of the Socially and Educationally Backward Classes (SEBC) in the country.

◆ Justice Rohini Commission

- ✦ Constituted: October, 2017
- ✦ **Key findings:** (1) 97% benefits are going to 25% OBC castes. (2) 983 castes have not received any representation.
- ✦ Submitted to the President in July 2023. The report is yet to be made public.

Topic 4 - who can declare any caste group into SC/ST/OBC group

Scheduled Castes (SC), Scheduled Tribes (ST) and Other Backward Classes (OBC)

Features	Scheduled Castes (SC)	Scheduled Tribes (ST)	Other Backward Classes (OBC)
Constitutional Articles	Article 341	Article 342	Article 342A (102nd Constitutional Amendment, 2018)
Who makes the declaration?	President of India by a public notification	President of India by a public notification	President of India by a public notification
Whose advice is taken?	Consultation with the Governor of the concerned state	Consultation with the Governor of the concerned state	Consultation with the Governor of the concerned State
Who can make changes in the list?	Only the Parliament — by making a law	Only the Parliament — by making a law	Only the Parliament — by making a law (only for Central List)
Can states have their own list?	No, states cannot create a separate list	No, states cannot make a separate list	Yes, States can make their own OBC list which is valid only for State level reservation

Topic 5 Subclassification of SC/ST

- ✦ In 2024, a Supreme Court bench headed by Justice B.R. Gavai approved the provision of reservation within reservation for Scheduled Castes (SC) and Scheduled Tribes (ST). This decision grants states the authority to create sub-categories within SC/ST. The verdict was passed by a 7-judge bench with a 6:1 majority.
- ✦ This ruling overturned the 2004 judgment in the case of E.V. Chinnaiah vs. State of Andhra Pradesh, where the court had held that no changes could be made to the SC/ST list, and states had no power to create sub-categories. The new judgment changes this position and allows states to classify SC/ST into sub-groups.

Does the principle of 'creamy layer' apply to Scheduled Castes?

- ◆ **Justice Gavai's recommendation:** Suggested the application of the 'creamy layer' principle to SCs and STs.
- ◆ **Feature of the principle:** It involves setting an income limit for eligibility for reservation benefits, ensuring that the benefits go to those who need them the most.
- ◆ **Agreement:** Four out of seven judges agreed with this suggestion.

Current Affairs

Recently, Telangana became the first state to implement subclassification of Scheduled Castes and Scheduled Tribes.

Topic - 6 EWS Reservation

- ◆ A provision of 10% reservation for Economically Weaker Sections (EWS) has been introduced.
- ◆ This reservation is for those who are economically backward but do not belong to SC, ST, or OBC categories, in government jobs and educational institutions.
- ◆ It was implemented through the 103rd Constitutional Amendment Act, 2019, by inserting Articles 15(6) and 16(6).

◆ **Eligibility criteria for EWS reservation:**

1. The annual family income should be less than ₹8 lakh.
2. The candidate must not belong to SC/ST/OBC (Central List).
3. Asset limits apply — restrictions on agricultural land, residential house, or plot size.
4. State governments may determine separate criteria for state-level EWS reservation.

◆ **Supreme Court Verdict: (Janhit Abhiyan v Union of India, 2022)**

- ★ On 5 May 2022, the Supreme Court by a 3-2 majority upheld the 103rd Constitutional Amendment.

◆ **Majority Opinion (3 Judges):**

- ★ Economic backwardness alone can be a valid ground for reservation.
- ★ The 10% EWS quota is constitutional and does not violate the 50% ceiling set in the Indra Sawhney (1992) case.
- ★ Excluding SC/ST/OBC from the EWS category is constitutionally valid since they already benefit from existing reservations.

◆ **Dissenting opinion (2 Judges – Justice U.U. Lalit and Justice Ravindra Bhat):**

- ★ Excluding SC/ST/OBC from EWS violates equality and the basic structure doctrine.
- ★ They also held that the 50% reservation limit should not be breached.

Article-16 → Equality of opportunity in matters of Public Employment.

16(1) The State shall provide equal opportunity to all citizens in public employment.

16(2) No citizen shall be disqualified on the basis of religion, race, caste, sex, place of birth, descent and residence in public employment.

Exceptions -

16(3) Parliament may impose the residence requirements for local employment in any backward state or Union territory.

16(4) Reservation of posts for backward classes that are inadequately represented in state services.

16(4)(a) Reservation in promotions. (Inserted by the 77th Constitutional Amendment Act, 1995)

Principle of Carry Forward: Reserved posts or unfilled vacancies are carried forward and considered as a separate class in the following year.

16(4)(b) More than 50% reservation allowed to fill backlog vacancies (Inserted by the 81st Amendment, 2000)

16(5) Seats may be reserved in religious institutions for persons belonging to that religion.

16(6) Reservation for economically weaker sections(EWS) (103rd Constitutional Amendment, 2019)

Randhir Singh vs. Union of India case → The Supreme Court held that Articles 14 and 16 read in conjunction with the Preamble of the constitution and Article 39(d) the 'principle of equal pay for equal work' emerges.

Topic - 1 Reservation in promotion (For Mains)

1. Indra Sawhney vs. Union of India

- ◆ The Supreme Court held that reservation in promotions is not permissible under Article 16(4).
- ◆ The limit of reservation cannot exceed 50 percent.
- ◆ Introduced the concept of creamy layer in OBCs, i.e. creamy layer people will not get the benefit of reservation.
- ◆ Reservation applies only to initial appointments.

2. M. Nagaraj vs. Union of India (2006)

- ◆ The Supreme Court upheld the validity of Articles 16(4A) and 16(4B), i.e. reservation in promotions is possible.
- ◆ But for this, it was made mandatory for the state government to fulfill three conditions:
 1. Provide quantitative data on the backwardness of SC/ST category.
 2. **To prove inadequate representation in public services.**
 3. To ensure that reservation does not affect administrative efficiency. (Article - 335)

3. Jarnail Singh vs. Laxmi Narayan Gupta (2018)

- ◆ This decision came as a review of the Nagaraj case.
- ◆ State governments and the central government argued that the conditions of the Nagaraj decision are too strict.
- ◆ **Key points:**
 1. Now it is not mandatory to collect data to prove the backwardness of SC/ST, as they have been considered backward in the Constitution itself.
 2. But the state still has to prove that –
 - ✦ Representation of SC/ST in services is inadequate, and
 - ✦ Administrative efficiency is not being affected by reservation.
 3. The concept of creamy layer will apply to SC/ST in promotions. That is, those who are socially advanced persons of SC/ST category will not get reservation in promotion.

4. Mukesh Kumar vs State of Uttarakhand (2020)

- ◆ The Supreme Court clarified: “Reservation in promotion is not a fundamental right.”
- ◆ It is only an enabling provision of the state, not a compulsion.
- ◆ That means the state may give reservation, but it is not legally bound to do so.

Reservation Policy (For Mains)

- ◆ **What is it?**
It is a form of positive action. It has been adopted to promote equality among marginalized sections.
- ◆ **Why is it needed?**
 1. **‘Principle of Compensatory Justice’:**
According to Dr. Ambedkar, “certain sections of society have been able to attain a better position in the society for a long time; hence, steps should be taken to compensate for the disadvantaged.
Example: Backward classes in the caste system.
 2. **‘Principle of Distributive Justice’**
Even among those being compensated, not everyone suffered the same level of loss, hence compensation cannot be equal for all.
 3. **‘Equal Opportunity’ (Level Playing Field) →**
To ensure merit-based equality, everyone must be brought to the same level before being evaluated on merit.
Example :  # First give women the opportunity, then test their merit.
 4. **‘Principle of Inclusiveness’- Taking all sections along is the real progress.**
Example: → Persons with disabilities, transgenders

Article-17→ Abolitions of Untouchability.

- ◆ The state will abolish all forms of untouchability.
- ◆ It is an absolute right because there is no exception to it.
- ◆ This right is also against a private individual.
- ◆ Untouchability is not defined in the Constitution. Parliament has made a law for this-
Untouchability (Offences) Act, 1955 → Amended in 1976 & renamed as the Protection of Civil Rights Act, 1976.
- ◆ The Supreme Court ruled in the Sabarimala case that any kind of untouchability will be considered under the scope of untouchability.

Article-18 → Abolition of Titles

- 18(1)** State shall not confer any title except educational and military distinctions.
- 18(2)** Indian citizen shall not accept any title from any foreign country.
- 18(3)** Foreign citizen serving the Government of India shall not accept any title from any foreign country without permission of the President.
- 18(4)** Indian citizens employed in Government service shall not accept any title from any foreign country without permission of the President.

Balaji Raghavan case, 1996:-

- ◆ Supreme Court ruled that Bharat Ratna, Padma Vibhushan and other titles are not titles but honours. Hence they do not violate the principle of equality.
- ◆ It also ruled that awardees should not use these honours as a prefix or suffix to their names, otherwise they must renounce the awards.

Bharat Ratna

- ◆ This award was established on 2 January 1954 by the then President Dr. Rajendra Prasad.
- ◆ Bharat Ratna can be given to a maximum of three persons in a year.
- ◆ On the recommendation of a committee headed by the Prime Minister: Formal recommendation is not required for Bharat Ratna; Prime Minister sends the name to the President.
- ◆ Initially there was no provision for posthumous award, added in 1955.
- ◆ Few non-Indians have been awarded this award—Mother Teresa (1980), Khan Abdul Ghaffar Khan (1987), Nelson Mandela (1990).
- ◆ **Fields:**
 - ✦ Initially 4 fields: Art, Science, Literature, Public Service
 - ✦ From 2011: For exceptional service in any field of human welfare;
- ◆ **Suspended twice:**
 - ✦ 13 July 1977 to 26 January 1980 (during Janata Party government).
 - ✦ 1992-1995 (due to constitutional investigation and debate).
- ◆ No monetary benefit: Only certificate is given, no monetary benefit.
- ◆ Not to institution: This award is given only to individuals, not to any institution or organization.

Right to Freedom (Article 19 - 22)

- ◆ **Article-19 →**
 - ✦ This right is against the state, not against a private individual.
 - ✦ It is not available to any company or foreigners.

No one can be forced to sing the national anthem, because

- (1) it would violate Article 19(1)(a).
- (2) there is no law that compels.

19(1)(a) - Freedom of speech and expression

The Supreme Court has also added the following rights in its interpretation →

- ◆ Hoisting the national flag (Naveen Jindal Case)
- ◆ Freedom of the press (Sakal Papers Limited Case)
- ◆ Freedom of advertisement
- ◆ Freedom to remain silent (Emmanuel Vs State of Kerala, 1986)
- ◆ Right against shutdown
- ◆ Right against phone tapping
- ◆ Right to propagate one's views
- ◆ Right to access government activities (RTI)
- ◆ Right to protest and demonstrate (does not include the right to strike)

- 19(1)(b)** → Right to peaceful assembly (without arms)
- 19(1)(c)** → Right to form associations (assemblies, unions, cooperative societies) and to operate them regularly.
Example: Political party, company, NGO
- 19(1)(d)** → Right to move freely (within the country)
- 19(1)(e)** → Right to reside
- 19(1)(f)** → Right to property (Removed by 44th constitutional amendment)
- 19(1)(g)** → Right to livelihood (Right to Trade on the footpath → Sodan Singh Case)
- 19(2)** → **Reasonable restrictions on freedom of speech and expression** →
- | | | |
|--|----------------------------------|---|
| ◆ Sovereignty and integrity of India (16 th C.A.) | ◆ Security of the State | ◆ Friendly relations with foreign States (1 st C.A.) |
| ◆ Contempt of court | ◆ Defamation | ◆ Morality |
| ◆ Public Order (1st C.A.) | ◆ Incitement to Crime (1st C.A.) | |
- 19(3)** → **Restriction on freedom of assembly** →
- ◆ Sovereignty and integrity of India
 - ◆ Public order
- 19(4)** → **Restriction on freedom to form association** →
- ◆ Sovereignty and integrity of India
 - ◆ Public order
 - ◆ Morality
- 19(5)** → **Restriction on freedom of movement and residence**
- ◆ In the interest of the general public
 - ◆ For the protection of the interests of the Scheduled Tribes

Freedom of movement*Within the country → Article-19(1)(d)**Outside the country → Article-21*

Q. "The right to move and reside freely in any part of the territory of India is available to Indian citizens, but it is not absolute." comment. (UPSC-2022)

In the states of Nagaland, Arunachal Pradesh, Manipur and Mizoram, the state government issues permits for the entry of outsiders:

- (1) For Indian citizens - Inner Line Permit (ILP) (2) For foreigners - 'Protected area permit'

- 19(6)** → **Restriction on freedom of livelihood**
- ◆ In the interest of the general public, bans on immoral acts like prostitution, narcotics, regulation by license.
 - ◆ Requirement of professional or technical qualification.
 - ◆ The state may reserve any industry or service partially or wholly for itself.

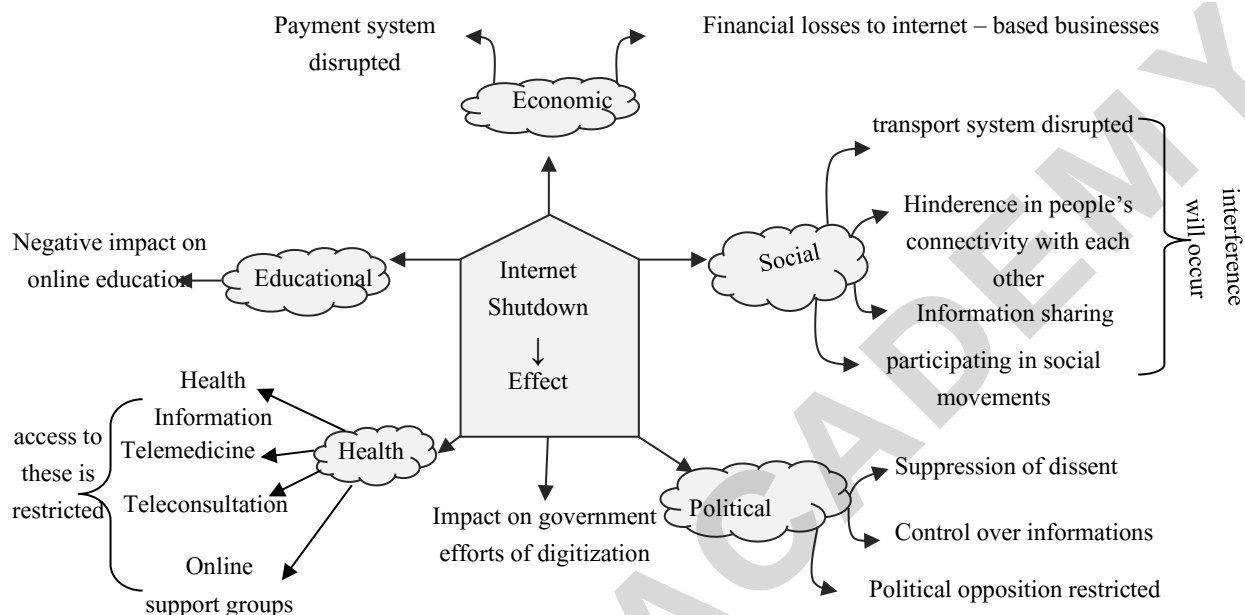
Topic - 1 : Internet Shutdown → (For Mains Only)

- ◆ Under this, digital communication is purposefully disrupted.
- ◆ As a result, people have very limited or no access to the internet.
- ◆ **Reasons** →

1. To improve the law and order situation.	2. To establish peace.
3. To ensure the security and stability of the state.	4. To prevent the spread of fake news.
5. To prevent cheating in exams.	

Related legal provisions→

- Under the Indian Telegraph Act, 1885, the Ministry of Home Affairs can order internet shutdown at the central and state level through the 'Temporary Suspension of Telecom Services (Public Emergency and Public Safety) Rules, 2017.

Impact →**Supreme Court Decision:**

- Anuradha Bashin vs Union of India case, 2020→**

- Internet shutdown does not violate Article 19(1) of the Indian Constitution.
- Internet shutdown should be for a temporary duration only.
- Any order of internet shutdown is subject to judicial review.
- Order should be implemented only when there is a real threat to public or national security.

Topic-2: Phone Tapping→ (For Mains)

- Definition→** Monitoring of internet based communications and phone calls through secret means by a third party.
- Legal Provisions→** Phone tapping is regulated under the 'Indian Telegraph Act, 1885'. (Section-2)
- Through the Indian Telegraph Act, 1985,** the Central Government has given this power to 10 agencies and state police.

Basis → If the Central or State Government is satisfied that-

- | | |
|--|--|
| ★ Public safety | ★ Friendly relations with foreign states |
| ★ Sovereignty and integrity of India | ★ Public order |
| ★ Security of the State | ★ To prevent any crime from happening |
| ★ If it is necessary to do so, then phone tapping may be done. | |

Who will issue the order?

- Under Rule 419A of the Indian Telegraph (Amendment) Rules, 2007,
 - Secretary of the Union Home Ministry
 - Equivalent authority in the state

Procedure?

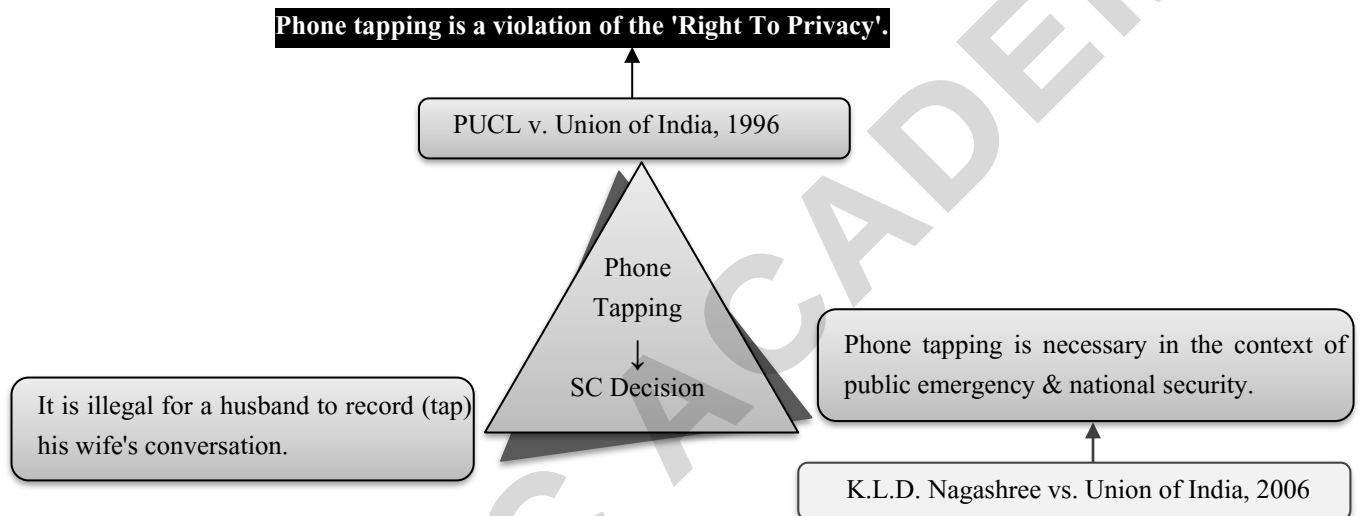
- ◆ The order of phone tapping has to be informed to the service provider in writing.
- ◆ The competent authority has to record the reasons for tapping in writing.

Provisions against misuse of phone tapping →

- ◆ Phone tapping only as a last resort.
- ◆ The order is valid upto 60 days. It may be renewed but not beyond 180 days.
- ◆ Every order is reviewed by a committee headed by the Cabinet Secretary.

Headed in the state → Chief Secretary

If the records are not useful, it will be destroyed after 6 months.

Supreme Court decision →**What is the Right to Protest? (For mains Only)**

- ◆ Individual or collective expression of dissatisfaction or resistance against government inaction or violation of rights.
- Indian citizens have been given the right to protest peacefully.

Law → CrPC → Section-144 (According to the old law)

- ◆ Can be enforced by a magistrate.

{ Violations of public order
 Prevent violence from escalating } In such a situation, people can be prevented from gathering.

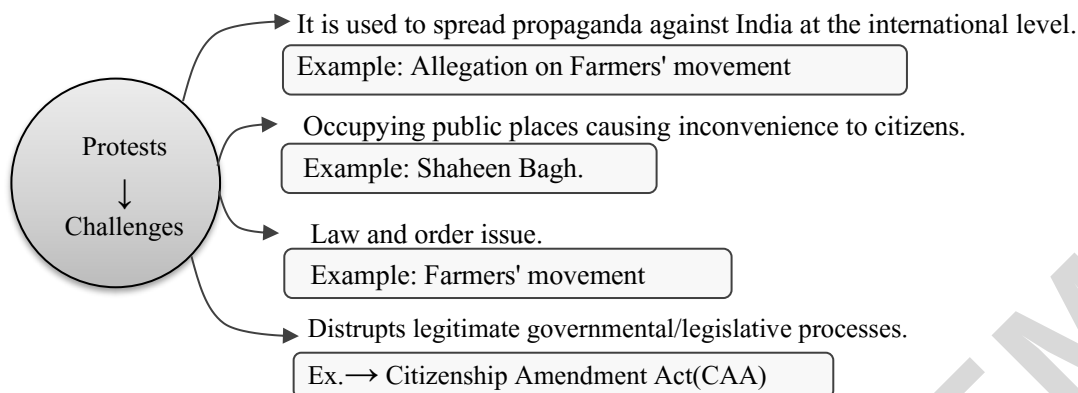
Supreme Court Judgments →

1. **Ramleela Maidan Incident vs Home Secretary, Union of India, 2012**

The Supreme Court ruled that 'citizens have the right to assemble and peacefully protests.' This right cannot be arbitrarily taken away or restricted by the executive or the legislature.

2. The Supreme Court upheld the right to peaceful protest but clarified that public roads and public places cannot be occupied.

Fundamental rights do not have separate existence. The right to protest must be balanced with the rights of commuters.

Challenges:**Significance****◆ Right to protest in a democracy**

- | | |
|---|--|
| <ul style="list-style-type: none"> ◆ India's independence is a result of protests & movements. ◆ Citizens acts as watchdogs by monitoring the actions of the government. ◆ Encourages the development of active and aware citizenship. | <ul style="list-style-type: none"> ◆ Freedom of expression is essential to ensure other types of freedom. ◆ Develops a culture of open dialogue and discussion. ◆ Exposes existing problems in the governance system. ◆ Leads to positive social transformation. ◆ Essential for ensuring human rights. |
|---|--|

"We who engage in nonviolent direct action are not the creators of tension. We merely bring to the surface the hidden tension that is already alive."

-Martin Luther King Jr.

Q. What do you understand by the concept of 'Freedom Of Speech and Expression'? Does it also cover hate speech?

Why are films in India treated differently from other forms of expression?

(UPSC-2014) (250 Words)

Ans. Under Article 19 (Part-3, Fundamental Rights) of the Indian Constitution, 19(1)(a) guarantees Freedom of Speech and Expression to every citizen.

◆ It is noteworthy that hate speech is not included in this right and is recognized as a criminal offence-

1. Indian Penal Code → Section - 153A, 153B etc.
2. Information Technology Act, 2000
3. Bhartiya Nyay Sanhita, 2023 → Section - 196

◆ Films are also seen as a medium of expression and can be said to be distinguished from other forms of expression in the following ways-

1. Due to their visual and audio capabilities, their reach and effectiveness is high.
2. Along with being a means of entertainment, it exposes social evils as a mirror of society.
3. They serve as a means of education and awareness and a medium for artistic expression.

◆ But recently there have been protests against some films like Padmavat, Kashmir Files etc. In the context of these protests, it is argued these films hurt people's cultural and religious sentiments, create hatred and tamper with historical facts. Also, the expression of films is regulated through censorship.

However, according to the Supreme Court, the right to release a film under freedom of expression remains intact if the plot, filming of the film does not have a negative attitude towards national security, public order etc. If there is sufficient evidence of their violation, then restrictions can be imposed.

In conclusion, it is very important to ensure the Freedom Of Expression of an individual in a progressive democratic society.

Article-20 → Protection in Respect of conviction for offences**20(1) → 'No ex-post facto law'.**

No person can be punished under any law other than the law which was in force at the time of the offence.

That is, criminal law cannot be applied retrospectively.

Civil law can be applied retrospectively.

20(2) → 'No double jeopardy'.

No person shall be punished twice for the same offence.

Although departmental actions can be taken separately.

If the accused willingly agrees to give evidence against himself, it would not violate Article 20(3).

20(3) → 'No Self incrimination'.

No accused person shall be compelled to give evidence against themselves.

This right does not provide protection from physical presence, thumb impression, blood sample, signature etc.

This right is not valid in civil cases.

Article-21 → Right to life and personal liberty.

No person shall be deprived of his life or personal liberty except according to procedure established by law.

In Kharak Singh v. State of Uttar Pradesh(1963): The Supreme Court held that the term life refers to more than mere animal existence.

A.K. Gopalan vs. State of Madras, 1950**Narrow interpretation of Article 21****'Judicial Review' →****Established Procedure of Law (POL)**

- # It means the judiciary must strictly follow the law in letter and spirit.
- # Even if the law made by the legislature is arbitrary or against natural justice, the judiciary cannot review it.
- # This term explicitly mentioned in the Constitution.
- # The term is borrowed from Britain and Japan.

Interpretation of 'Right to Life' →

Right to life means a person to remain alive or not to be held captive.

Maneka Gandhi vs Union of India case, 1978**Detailed explanation****'Judicial Review' →****Due Process of Law (DPL)**

- # It means the judiciary is not bound to strictly follow the law.
- # If the law enacted by the legislature is arbitrary or against natural justice, the judiciary can review it.
- # According to the SC, the procedure established by law should be taken in the sense of 'due process of law'.
- # This is borrowed from USA.

Explanation of 'Right to Life' →

Right to life means living with human dignity. It must be a complete, valuable, meaningful life.

◆ The following rights are essential for a dignified life

- | | |
|--|---|
| 1. Right to live with human dignity | 19. Right not to go outside the state |
| 2. Right to clean environment (pollution free water and air, harmful industries) | 20. Right to fair trial |
| 3. Right to livelihood (Olga Tellis Case, 1985) | 21. Right to basic necessities of life for a prisoner Rights |
| 4. Right to privacy | 22. Right to respect and honour towards women |
| 5. Right to shelter | 23. Right against public hanging |
| 6. Right to health | 24. Right to passage in hilly areas |
| 7. Free education upto the age of 14 years | 25. Right to information |
| 8. Right to free legal aid | 26. Right to dignity |
| 9. Right against solitary confinement | 27. Right to appeal against conviction |
| 10. Right to speedy trial (Hussain Aara Khatun Case) | 28. Right to social security and protection of family |
| 11. Right against handcuffing | 29. Right to social and economic justice & empowerment |
| 12. Right against inhuman treatment | 30. Right against shackles |
| 13. Right against delayed execution of death penalty | 31. Right to a reasonable life insurance policy |
| 14. Right to travel abroad (Satwant Singh Sawhney Case, 1967) | 32. Right to sleep |
| 15. Right against bonded labour | 33. Right to freedom from noise pollution |
| 16. Right against exploitation in custody | 34. Right to sustainable development |
| 17. Right to emergency medical facility | 35. Right to opportunity |
| 18. Right to timely and proper treatment in government hospitals | 36. Right to marry a person of one's choice (Hadiya Case, 2018) |
| | 37. Right to die with dignity (passive euthanasia) |

Combination of Article 14,19,21 is known as golden triangle.

Q. The Constitution of India is a living instrument with great dynamism. It is a constitution made for a progressive society. Explain with examples in the context of the continuous expansion of the Right To Life and the Right To Personal Liberty. (UPSC-2023)

Topic-1 Right to Privacy (For Mains) Justice K.S. Puttaswamy v. Union of India (2017)

- ◆ A 9-judge bench of the Supreme Court unanimously ruled that the “Right to Privacy” is an integral part of life and personal liberty under Article 21.
- ◆ The Court held that privacy is an essential aspect of human dignity and autonomy.
- ◆ The Court identified various aspects of privacy:
 - ✦ Bodily autonomy
 - ✦ Informational privacy
- ◆ The right to make personal decisions without unnecessary interference from the state.
- ◆ While the Court recognized it as a fundamental right, it also clarified that: This right is not absolute. It can be limited under certain circumstances.
- ◆ Three-fold test for restriction on privacy:
 - ✦ Legality – Restriction must be established by a valid law.
 - ✦ Necessity/Legitimate state aim – State aim must be clear and legitimate.
 - ✦ Proportionality – Restriction must be necessary and reasonable to achieve the aim.

Q. Examine the scope of Fundamental Rights in the light of the latest decision of the Supreme Court on the Right to Privacy.
(UPSC-2017) (250 Words)

Topic 2 : Right to die (For Mains)

P. Rathinam v. Union of India (1994)

- ◆ Supreme Court held that Article 21 includes the Right To Die.
- ◆ Court declared Section 309 (attempt to commit suicide) of Indian Penal Code unconstitutional.

Gian Kaur v. State of Punjab (1996)

- ◆ Five-judge bench overruled P. Rathinam's decision.
- ◆ The court clarified that Article 21 does not include the Right To Die.
- ◆ However, the court also said that – “Right to Life” includes the right to dignified death and dignified process of dying.

Aruna Shanbaug v. Union of India (2011)

- ◆ The Supreme Court allowed passive euthanasia under certain strict guidelines.
- ◆ That is: removal of life support equipment was allowed under special circumstances.

Article-21A → Right to Education.

- ◆ Under this, compulsory and free education should be provided to children between 6 to 14 years.
- ◆ This article was included by the 86th constitutional amendment, 2002.
- ◆ Earlier it was a Directive Principle under Article-45.
- ◆ Right to Education Act was passed in 2009, which came into force from 1 April 2010.
- ◆ This act mandates that all private schools must reserve 25% seats for children from Economically weaker sections and the government will reimburse their fees.

Article-22 → Protection against arrest and detention in certain circumstances.

At the time of arrest, a person has been given three rights-

1. Right to know the reason for arrest Art. 22(1)
 2. Right to consult a lawyer at the time of arrest Art. 22(1)
 3. Right to be presented before a magistrate within 24 hours. (Excluding travel time) Art. 22(2)
- ◆ Two types of people who are not entitled to these rights- Art. (22(3))
 1. Citizen of enemy country.
 2. Person detained under preventive detention.

Even persons detained under preventive detention have certain rights. Art. 22(4)

1. They can be detained for a maximum of 3 months (reduced to 2 months by the 44th constitutional amendment, but not yet enforced). To extend the detention period beyond this, the recommendation of an advisory board composed of judges of High Court or persons qualified to be a judge of the High Court is necessary.
2. The detained person must be informed of the reason for arrest. Art. 22(5) However, in public interest, disclosure of facts can be denied. Art. 22(6)
3. The detained person can appeal against the detention in the court through his representative.

Preventive detention requires a special law, the power of which is given to Parliament and State Legislature:
Art. 22(7)

- ◆ **Parliament:** Defence, Foreign Affairs, Security of India
- ◆ **Parliament + State Legislature:** Security of the state, public order, ensuring supply of essential goods and services to the community.

◆ **Parliament can also make the following provisions-**

1. Special types of cases and situations in which the period of detention can be more than 3 months.
2. Determination of the maximum period of detention.
3. Procedure of investigation for the Advisory Board.

Topic-1 for UPSC

Aspect	Bailable Offences	Non-Bailable Offences
Right to bail	Getting bail is a right	Grant of bail is at the discretion of the court
Severity	Less serious offence	More serious offences
Punishment	Imprisonment of less than three years or fine	Imprisonment for three years or more
Right to grant bail	Police officer or court	Court only
Example	Theft, causing hurt	Murder, rape, robbery, kidnapping

Topic-2 Bail vs. Parole vs. Furlough For UPSC

Characteristics	Bail	Parole	Furlough
Definition	Temporary release of the accused before or during trial	Temporary release of a convict during sentence on specific grounds	Periodic short-term release of convict as a legal right
Legal status	The accused has not yet been convicted	Person is convicted	Person is convicted
Objectives	Ensuring that the accused appears in judicial proceedings	Humanitarian grounds (illness, death in family etc.)	Reintegration of convict into society and maintenance of family ties
Authority	Court	Prison authority (with legal supervision)	Prison Administration
Relevant laws	Criminal Procedure Code (CrPC)	Prison Act/Prison Manual	Prison Act/Prison Manual
Duration	Until the trial is over or as directed by the court	Generally a few weeks, case-specific	Limited and predetermined period (e.g., 14-21 days); can be repeated
Can it be extended?	Yes, by order of the court	Yes, if there are valid reasons	Yes, with approval; but furlough, unlike parole, is fixed term.
Right or discretion?	Discretionary (depends on the case)	No right, can be granted only on specific grounds.	Considered a legal right for eligible convicts
Effect on sentence	No effect on sentence	Sentence continues to count during parole	During furlough, sentence is considered suspended.
Usage	For accused awaiting trial	Family emergencies, illness, marriage etc.	Festivals, family bonding, mental health.

Topic-3: Bail is the rule and jail is the exception (For UPSC)

1. Bail is not a punishment

- ✦ **Supreme Court (SC)** reiterated that irrespective of the gravity of the offence, bail cannot be denied as a punishment.
- ✦ Right to speedy justice is a fundamental right under Article 21 of the Constitution.

2. Prohibition of bail – strictly limited

- ✦ Suspense on bail should be granted only in very rare and exceptional cases.
- ✦ The gravity of the charges alone is not enough to deny bail.
- ✦ Courts should also consider the following aspects:
 - Period of detention
 - Likely time taken to complete the judicial process.

Right against Exploitation (Article → 23-24)**Article-23 → Prohibition of Human Trafficking and Forced Labour.**

- ✦ Prohibition on buying and selling of human beings (men, women, children).
- ✦ Prohibition on slavery, prostitution and Devdasi system. To punish these acts, Parliament has enacted the 'Immoral Traffic (Prevention) Act, 1956.
- ✦ It also prohibits bonded labour, forced labour such as beggar (unpaid labour).
- ✦ Forced labour also includes compulsion arising out of economic conditions or making someone work for less than the minimum wage.
- ✦ But in public interest, the state can take compulsory service. But the state is not bound to pay wages for such service.
- ✦ However, the state shall not discriminate on the basis of caste, religion, race or class.
- ✦ Note: Dina vs Union of India case - Making prisoners work without proper remuneration would amount to forced labour under Article 23.

Article 23(2)

Article-24 → Prohibition of Employment of Children in Factories etc.

- ✦ **Child and Adolescent Labour (Prohibition and Regulation) Act, 2016**

Children below 14 years of age

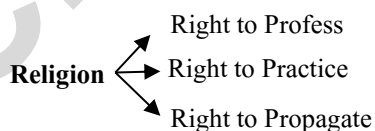
- ✦ Prohibited from employment in any commercial activity.
- ✦ Allowed to help in family business.
- ✦ Permitted in entertainment industry.

Children aged 14-18 years (Adolescents)

- ✦ Prohibited from employment in hazardous industries.

Punishment →

- ✦ 6 months to 2 years imprisonment and ₹ 20,000 - 50,000 fine (or both)
- ✦ For repeat offence - 1 to 3 years imprisonment.

Right to Religious Freedom (Article → 25-28)**Article-25 → Freedom of conscience**

Note: Freedom to propagate religion does not include compulsion to convert (Stanislaus case).

Restrictions →

1. Public order
2. Morality
3. Health
4. Other fundamental rights

Many controversies have arisen in compliance with this article -

- | | | | |
|------------------------------|----------------------------|---------------------|---------------------------------|
| ✦ Jallikattu | ✦ Triple Talaq | ✦ Sabarimala | ✦ Santhara practice |
| ✦ Burning crackers on Diwali | ✦ Azan through loudspeaker | ✦ Hijab controversy | ✦ Issue of religious conversion |

To resolve such disputes, the Supreme Court established the 'Doctrine of Essential Religious Practices'.

Essential Religious Practices Doctrine

{For Mains}

- ✦ The Essential Religious Practices (ERP) Doctrine is an important judicial principle developed by the Supreme Court of India. Its objective is to determine which religious practices are protected under Article 25 of the Indian Constitution.
- ✦ This doctrine plays a crucial role in balancing the right to religious freedom with other constitutional obligations (such as public order, morality, public health, and social interests).

In which case was the ERP Doctrine established?

- ✦ This doctrine was established in the case of Commissioner of Hindu Religious Endowments, Madras v. Sri Lakshmindra Thirtha Swamiar of Sri Shirur Mutt (1954) — commonly known as the Shirur Mutt Case.

According to the Court:

- ✦ The term "religion" in the Constitution includes all those rituals and practices which are integral to religion.
- ✦ However, the Court also stated that only those practices which are considered "essential" to a religion shall be protected by the Constitution.

Role of the Judiciary in ERP Doctrine:

- ✦ The Supreme Court assumed the responsibility of determining which practices are truly "essential" to a religion.
- ✦ The objective was to protect fundamental religious rights, while also regulating those practices which, though religious, violate constitutional rights or social values.

Example → Carrying of Kirpan by Sikhs is valid as it is an essential part of their religion.

Note → The Supreme Court also stated that legally, the word "Hindu" includes Hindus, Buddhists, Jains, and Sikhs.

Q. Does the right to a clean environment also include the legal regulation of firecracker bursting during Diwali?

Discuss in the light of Article 21 of the Indian Constitution and the relevant judgments of the Supreme Court.

(UPSC-2015) (200 Words)

Article-26 → Right to manage religious affairs

- A. Right to establish and administer institutions for religious and charitable purposes.
- B. Right to manage religious activities.
- C. Right to acquire movable and immovable property for religious purposes.
- D. Right to administer property according to the law.

✦ **Limitations:-** Public order, morality and health.

Article 27 → State shall not impose any tax for the promotion of any particular religion.

However, state can charge fee for non-religious activities at any religious place. ((Ratilal vs. State of Bombay case))

Article 28 → Right to not attend religious education class.

- ✦ Religious education cannot be imparted in government schools.
- ✦ Religious education can be imparted in private schools but attending the class cannot be made compulsory.
- ✦ Religious education can be imparted in institution administered by the state and established for a particular religion.

Supreme Court did not consider prayer in government schools as religious education but considered it a prayer for 'human welfare'.



**Do You
Know ?**

Minorities - Indian Constitution mentions two types of minorities in Article 30-

- ✓ Religious minorities
- ✓ Linguistic minorities

- ◆ But both these terms have not been defined.
- ◆ Under Section 2(c) of the National Minority Act, 1992, the Central Government has given minority status to 6 religions-
 - ✓ Muslim ✓ Sikh ✓ Buddhist ✓ Parsi ✓ Christian ✓ Jain

Linguistic minorities → This term is not defined either in the Constitution or in any law.

In the T.M.A. Pai Foundation case (2002), an 11-judge bench of the Supreme Court held that: Minority status of a community shall be decided with reference to the population of the State and not of the country as a whole.

Rights related to Education and Culture (Article → 29-30)

Article-29 → Protection of the interests of minority sections.

- ◆ Citizens residing in any part of the territory of India shall have the right to protect their culture, language, script.
- ◆ No citizen shall be denied admission in state-funded institutions on the grounds of religion, race, caste or language.

Article-30 → Right of minorities to establish and administer educational institutions

30(1) Linguistic and religious minorities shall have the right to establish and administer educational institutions of their choice.

Current Affairs

Topic-1: Minority Status of Aligarh Muslim University (AMU)

Background- AMU was established in 1875 by the Muslim community.

- ✦ In 1967, the Supreme Court (in S. Azeez Basha vs Union of India) held that AMU is not a minority institution as it was established through an Act of Parliament.
- ✦ In 1981, the Parliament passed the AMU (Amendment) Act to restore minority status to AMU.
- ✦ In 2006, the Allahabad High Court declared this amendment as unconstitutional.
- ✦ The dispute was referred to a 7-judge Constitutional Bench, which in 2024 (by a 4:3 majority) overruled the 1967 verdict and restored the minority nature of AMU.

Relevant Constitutional Provisions

Article	Provisions
Article 30(1)	Grants the right to religious or linguistic minorities to establish and administer educational institutions of their choice.
Article 30(2)	Minority institutions cannot be discriminated against in receiving aid from the State.
Article 15(5)	Allows minority institutions to not implement reservation for SC/STs and reserve up to 50% of seats for their own community.

30(1)(a) : Adequate compensation shall be given at the time of acquisition of the property of such institutions. (44th Constitutional Amendment)

Right to Property Article-31→

- ◆ By the 44th Constitutional Amendment, it was removed from the Fundamental Rights and placed in Article 300-A (Part-12).
- ◆ It is no longer a fundamental right but a constitutional right. Under this, no person will be deprived of property except by authority of law.

Article 300A

- ✦ No person shall be deprived of his property except by authority of law. This provision protects individuals from arbitrary deprivation of their property by the State.
- ✦ It ensures that if the State acquires private property for a public purpose, it must do so in accordance with the law and provide fair compensation to the affected person.

Topic-1. What is Bulldozer Justice? (For Mains)

- ✦ "Bulldozer Justice" is a controversial practice wherein state administrative agencies demolish properties of individuals who are merely accused of crimes, without their guilt being proven in a court of law. This is often carried out without following due legal process.

Why is bulldozer justice unconstitutional?**1. Violation of principles of natural justice**

- ✦ Demolishing the properties of the accused without prior notice, hearing or proper investigation is a violation of due process of justice.
- ✦ It violates the principle of natural justice (*audi alteram partem* — listen to the other side).

2. Violation of Articles 14 and 21

Article	Violation
Article 14	Right to equality — If demolition takes place without due process, it is arbitrary and discriminatory.
Article 21	Right to life and personal liberty — It includes the right to shelter and to a fair procedure.

3. Violation of Article 300A

- ✦ **A person's property can be taken away or destroyed only under the authority of law.**
- ✦ If the acquisition or demolition of property takes place without legal authority and due process, it is a direct violation of Article 300A.

4. Collective Punishment

- ✦ Demolishing the property of an accused affects the entire family, even if they are not involved in the alleged crime.
- ✦ This amounts to collective punishment, which goes against the foundational principles of the Indian criminal justice system.

Judicial response and Supreme Court guidelines

The Supreme Court made a clear observation: "Bulldozer justice" is unconstitutional, arbitrary and against the rule of law.

Key directives:

- ✦ Demolition must follow due process.
- ✦ Proper notice, Opportunity to respond and right to a fair hearing are essential.
- ✦ Demolition cannot be punitive — property cannot be destroyed merely on the basis of an accusation.
- ✦ Demolition is possible only in cases where illegal encroachment is proven — that too through a fair and legal process.

- ✦ Collective punishment is unfair, Demolition of the house of an accused deprives his entire family of the right to shelter, which is completely unjust.
- ✦ Ensure accountability of officials.
- ✦ If an official violates the directions of the Supreme Court, a case of contempt can be filed against him.
- ✦ The court can order compensation/damages in such cases, which will be recovered from the salary of the guilty officials.

Article-31A→

- ◆ Added by the first constitutional amendment.
- ◆ In public interest, the state can acquire any private property and nationalize all types of private businesses.
- ◆ The compensation amount given for this cannot be challenged in the court.

Article-31B→ The acts which have been kept in the 9th Schedule cannot be judicially reviewed.

Article-31C→

- ◆ Under this, if the Parliament makes any law to achieve the objectives of Article-39 (b) and 39 (c) and this law violates the fundamental rights of Article- 14, 19 and 31, then this law cannot be declared unconstitutional
- ◆ Such a law cannot be challenged in the court.

Right to Constitutional Remedies (Article-32)
Article-32→

- ◆ Dr. Bhimrao Ambedkar described it as the 'soul and heart of the Constitution'.
- ◆ **Art. 32 (1)** In case of violation of fundamental rights, a person can go to the Supreme Court.
- ◆ The Supreme Court is considered to be the protector and guarantor of the fundamental rights of citizens.
- ◆ **Art. 32 (2)** If the fundamental rights of individuals are violated, the Supreme Court can issue 5 types of writs-
 1. Habeas Corpus
 2. Mandamus
 3. Prohibition
 4. Certiorari
 5. Quo Warranto

The Supreme Court held the Right to Constitutional Remedies as part of the basic structure in L. Chandra Kumar case, 1997.

-	Habeas Corpus	Mandamus	Prohibition	Certiorari	Quo Warranto
Status of issue	If a person is detained illegally, then to present the detainee before the court.	If a person appointed to a public office does not perform his duty.	Issued by a higher court against a lower court if the lower court acts beyond its jurisdiction.	It is issued by a higher court against a lower court if the lower court acts beyond its jurisdiction.	This writ can be issued if a person is appointed to a political or administrative post for which he is not qualified.
Issued against whom	It can be issued against both government and private person or institution. If issued against the government, then it will be issued to the Chief Secretary.	It can be issued only against public officers and authorities.	Can be issued only against the judiciary.	Issued against both judiciary and executive (by the decision of the Supreme Court in 1991)	It is issued against the appointed individual and cannot be issued against the appointing authority.

Literal meaning	The body should be presented.	We Command.	To Prohibit.	To be certified or to be informed.	By what authority or warrant?
Not issued against whom	-	President, Governor, private individuals or institution, when the duty is under discretionary powers, work related to contracts, Chief Justice of High Court	-	This writ is not available against legislative bodies and private individuals and institutions.	It cannot be issued against a ministerial office or a private office.
Other information	-	It is to activate the inactive.	It deactivates the active. Issued while the hearing is going on.	The higher court takes up the case and hears it itself. Issued even after the decision is given.	-

Art. 32 (3) Parliament may by law empower any other court to issue Writ within the local limits of its jurisdiction.

Art. 32 (4) The power conferred by this article shall not be suspended, unless the Constitution otherwise provides.

- ✦ Article 32A was added by the 42nd Constitutional Amendment Act, 1976, and was later deleted by the 43rd Constitutional Amendment Act, 1977 (which came into force on 13 April 1978).
- ✦ This provision meant that if a person filed a petition in the Supreme Court against the violation of fundamental rights under Article 32, the Court could not look into whether a state law was in conformity with the Constitution or not.
- ✦ That is, if a person had to challenge the constitutional validity of a state law, he could not go directly to the Supreme Court under Article 32. He would have to either approach the High Court under Article 226 or resort to some other statutory remedy.

Difference between Writ jurisdiction of the Supreme Court and High Court →

Supreme Court (Article - 32)	High Court (Article - 226)
1. It can issue writs only in case of violation of fundamental rights.	It can issue writs not only for violation of fundamental rights but also in other cases.
2. Supreme Court is bound to issue writ because Article-32 is itself a fundamental right.	The High Court is not bound to issue writs because Article-226 is not our fundamental right.
3. Fundamental rights can be suspended during national emergency. Hence, the writ jurisdiction of the Supreme Court can also be suspended.	The writ jurisdiction of the High Court cannot be suspended even during a national emergency.

Clearly, the writ jurisdiction of the High Court (HC) is wider than that of the Supreme Court (SC).

Article-33

- ◆ Parliament has the power to determine by law how much of the Fundamental Rights (Part-III) shall apply to or may be restricted/abridged on the following persons:
 - (a) Members of the armed forces
 - (b) Members of forces maintaining public order
 - (c) Persons employed in intelligence or counter-intelligence agencies
 - (d) Employees connected with telecommunication systems related to the above agencies
- ◆ Its purpose is – proper discharge of duties and maintenance of discipline in these services.

50th Amendment Act 1984	Brought intelligence, counter-intelligence, and related telecommunication systems under Article 33.
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Article-34

- ◆ If Martial Law is imposed in any area of India, then:
- ◆ Parliament can make a law to:
 - ★ Provide protection to the employees of the Centre or State or other persons who have done any work to maintain or restore order in that area.
 - ★ Validate the punishments, judgments, seizures or other actions given under Martial Law.

National Emergency	Martial Law
1. It is inspired by the German constitution.	It is inspired by British laws.
2. It affects both fundamental rights and centre-state relations.	It affects only the fundamental rights.
3. The government and the ordinary courts continue.	The government and the ordinary courts are suspended.
4. It can be imposed throughout the country or in any specific area.	It is imposed only in a specific disturbed area.
5. It is defined extensively in the constitution.	It is not clearly defined.

Article-35

- ◆ **Legislation to give effect to provisions of this Part**
- ◆ **Notwithstanding anything in the Constitution**
 - (a) **Only the Parliament (not State Legislatures) shall have the power :**
 - (i) to make laws with respect to matters which under sub-clause (3) of Article 16, sub-clause (3) of Article 32, Article 33, and Article 34 require to be provided for by law made by Parliament; and
 - (ii) to make laws for prescribing punishment for those acts which are declared to be offences under this Part; and Parliament shall, as soon as may be after the commencement of this Constitution, make laws for prescribing punishment for the acts referred to in sub-clause (ii).
- ◆ **Special Powers to Jammu & Kashmir through Article 35A and Article 370 :**
 - 1. Dual constitution
 - 2. Separate flag for J&K
 - 3. Dual citizenship
 - 4. Ranbir Penal Code (RPC) in place of IPC
 - 5. Laws made by the Indian Parliament will be applicable in J&K only with the consent of the J&K Legislative Assembly. **Example:** RTE & RTI was not applicable in J&K.
 - 6. SC/ST did not have political reservation in J&K. No right to property (Indian citizen).
- ◆ **Article-35A** → Inserted by Presidential order in 1954 AD. Abrogated by Presidential order in August 2019.

Amendment in Fundamental Rights

- ❖ In the original constitution, the right to property was included as a fundamental right. However, it became an obstacle for the government in implementing several schemes, such as:
 - ✦ Land reforms
 - ✦ Developmental activities
- ❖ Therefore, the government tried to restrict the right to property through the first constitutional amendment.
Example: 31A, 31C, 9th Schedule etc.
- ❖ This attempt was challenged in the Supreme Court.

Shankari Prasad vs Union of India, 1951 →

- ❖ The Supreme Court ruled that Article-13(2) applies only to ordinary laws, not to the Constitution Amendment Act, i.e. Parliament cannot amend the Fundamental Rights through ordinary laws but can do so through Constitutional Amendments.

Sajjan Singh vs State of Rajasthan, 1965 →

- ❖ The Supreme Court reiterated its earlier decision.

In this case, for the first time, the power of Parliament to amend the Constitution was limited by the Supreme Court.

Golaknath vs State of Punjab, 1967 →

The Supreme Court overturned its earlier decision and held that a Constitutional Amendment is also a type of law, Only its procedure is different. Therefore, Constitutional Amendment is included under the definition of the word 'law' in Article-13(2). Hence, Parliament cannot amend Fundamental Rights even through Constitutional Amendments.

24th Constitution Amendment, 1971 →

- ❖ **Article 13(4)** - Constitution Amendment is not included in the term 'law'.
- ❖ **Article 368(3)** - Nothing in Article 13 shall apply to any amendment made under this Article.
- ❖ **Article 368(2)** - The President is bound to give assent to a Constitutional Amendment Bill.

25th Constitution Amendment, 1971 → Article-31C was included.**Kesavananda Bharati vs State of Kerala, 1973 →**

The 24th and 25th Constitutional Amendments were challenged in the Supreme Court. For this, a constitutional bench of 13 judges was formed, which gave the decision with a majority of 7:6.

- ✦ The Court upheld the validity of the 24th and 25th Amendments, meaning that Parliament can amend Fundamental Rights under Article 368.
- ✦ However, Parliament cannot affect the Basic Structure of the Constitution.
- ✦ The second part of the 25th Constitutional Amendment was declared unconstitutional because it limits the power of judicial review, which is part of the basic structure of the Constitution.

42nd Constitutional Amendment, 1976 →

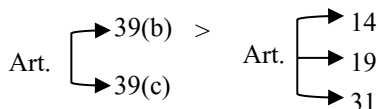
Article 31C was expanded.

↓
All Directive Principles of State Policy (DPSP) > Articles

→ 14
→ 19
→ 31

Minerva Mills vs Union of India case, 1980 →

The extension of Article 31C was repealed and it was restored in its original form. (25th Constitutional Amendment) Fundamental rights and Directive Principles are not contradictory to each other. The objective of both is human welfare. Therefore, both complement each other. Despite this, if there is any contradiction between the two, then Fundamental Rights should be considered supreme compared to the Directive Principles. In some situations, Directive Principles are more important-



Note: Balance between Fundamental Rights and Directive Principles is a part of the basic structure.

Fundamental Rights which are available only to Indian Citizens -

1. Article-15

2. Article-16

3. Article-19

4. Article-29

5. Article-30

Effect of National Emergency on Fundamental Rights →

Article-358	Article-359
✦ With the proclamation of National Emergency, Article-19 will automatically be suspended. ✦ Suspended throughout the country for the entire duration of the National Emergency.	✦ The President may suspend all other Fundamental Rights. ✦ Can be suspended for any period of time, throughout the country or in any specific area.
44th Constitutional Amendment	44th Constitutional Amendment
✦ If the National Emergency is proclaimed on the grounds of 'armed rebellion', then Article-19 will not be suspended.	✦ Articles-20 and 21 can never be suspended under any circumstances.

Q. Explain the constitutional perspective of gender justice with the help of relevant constitutional provisions and judicial decisions. (UPSC-2023)

Ans. The following major constitutional provisions and judicial decisions can be seen to ensure social, economic and political justice, including gender justice as mentioned in the Preamble:-

	Gender Justice	Constitutional Provisions	Decision Methods
1.	<u>Social Justice</u> ↓	Article- 14, Article- 15(3), Article- 16, Article- 21 Article- 25	✦ Vishaka Guidelines (1997)- Protection from sexual harassment at the workplace. ✦ Triple Talaq (Shah Bano case) ✦ Sabarimala case
2.	<u>Economic Justice</u> ↓	Article- 39b Equal pay for equal work Article- 14 and 16 Article- Maternity leave (with pay)	✦ Arjun Garg vs Hotel Association of India case 2008- struck down law that prevented women from working in premises serving alcohol. (Equality in employment) ✦ Air India vs. Nargesh Mirza (1981) ↓ It is illegal to deny employment to a married woman with children.
3.	<u>Political justice</u> ↓	✦ 33 percent reservation in Panchayati Raj ✦ Legislature: Lok Sabha, State Assembly also - 33% reservation	

Hence, continuous efforts are being made to maintain gender justice in its true sense.

- ★ Directive Principles are the ‘soul and philosophy of the Constitution’.
- ★ These are constitutional guidelines or recommendations for the state in legislative, executive and administrative matters.
- ★ Their objective is to establish a welfare state. (The term public welfare is used in Article 38)
- ★ Directive Principles are of a ‘non-justiciable’ nature i.e., they cannot be enforced by the courts in case of their violation.
- ★ They are inspired by the Constitution of Ireland.

◆ **Article-36** → **Definition of the State** (Same as in Article-12).

◆ **Article-37** → Directive Principles are not enforceable by the court but they are the fundamental in the governance of the country. It is the duty of the state to ensure their implementation through laws and policies.

◆ **Article-38** → State to secure a social order for the promotion of welfare of the people

38(1) The state shall strive to promote a social order that ensures social, economic and political justice.

38(2) The State shall strive to minimise the inequalities in income, and endeavour to eliminate inequalities in status, facilities and opportunities, not only amongst individuals but also amongst groups of people residing in different areas or engaged in different vocations.

◆ **Article-39** →

- (a) Equal employment opportunities for men and women.
- (b) The state will “own and control material resources” in such a way that the interests of all can be fulfilled.
- (c) The state will “manage the economy” in such a way that there is no harmful concentration of wealth and means of production.
- (d) Equal pay for equal work to men and women. (This was not considered a fundamental right in the Randhir Singh case.)
- (e) Workers, women, children should not be forced to do work which is not in accordance with their age and ability.
- (f) Children are given opportunities and facilities to develop in a healthy manner and in conditions of freedom and dignity and that childhood and youth are protected against exploitation and against moral and material abandonment.

Article-39A → Equal justice and free legal aid.

◆ **Article-40** → The state will establish and strengthen Panchayati Raj institutions and endow them with such powers and authority as may be necessary to enable them to function as units of self-government.

◆ **Article-41** → Right to work, to education and to public assistance in certain cases.—The State shall, within the limits of its economic capacity and development, make effective provision for securing the right to work, to education and to public assistance in cases of unemployment, old age, sickness and disablement, and in other cases of undeserved want.

◆ **Article-42** → Just and humane conditions at work place, leave/maternity assistance to pregnant women.

◆ **Article-43** → The State shall, by suitable legislation or economic organisation or in any other manner, endeavour to secure to all workers in agriculture, industry or any other form of employment work, living wages, decent living conditions and conditions of work ensuring full enjoyment of leisure and social and cultural opportunities.

It shall endeavour to promote cottage industries in villages on individual or co-operative basis.

Article-43A → Workers should be given participation in the management.

Article-43B → Promotion of co-operative societies.—The State shall endeavor to promote voluntary formation, autonomous functioning, democratic control and professional management of co-operative societies.

97th Constitutional Amendment, 2011



Three provisions have been added by this- 1. Amendment in Article-19(1)(c) ; 2. Article- 43B inserted
3. Part- 9B inserted

◆ **Article 44 - Uniform civil code should be implemented.**

Civil Matters	Criminal Matters
{ Person vs Individual }	{ Individual vs State }
✦ Marriage	✦ Murder
✦ Divorce	✦ Robbery
✦ Will	✦ Quarrel
✦ Property	
No equal laws for all.	Equal laws for all.

Uniform Civil Code (UCC) : Recent Developments

- ◆ **Uttarakhand** became the **first state of independent India** to implement UCC in **February 2024**; received **Presidential assent in March 2024**. Law applies uniformly to **marriage, divorce, inheritance, live-in relationships**, but **excludes Scheduled Tribes**.
- ◆ **Gujarat and Assam** are preparing to enact similar laws, indicating a **phased national rollout**.
- ◆ **Prime Minister Modi** emphasized UCC in his **2024 Independence Day address**, framing it as a **secular, unifying reform**.
- ◆ The **22nd Law Commission** relaunched consultations in **2023**, a **draft national UCC** is expected by **late 2025/early 2026**.

Arguments in favor →

1. Ensures the Right To Equality (Article 14).
2. Civilized society → Progressive society :- modern, progressive laws.
Adjusting to changing social realities and aspirations of the people.
3. To ensure women's rights
4. Nature of Indian State → Secular ,so why separate laws?
Ex. ↪ Preamble
↪ Article -15
5. Discourage vote bank politics
Reduction in inducements offered to communities for votes.
6. Simplification and rationalisation of the legal system ↪ Eliminate complexities and contradictions
↪ Harmony will be established between civil and criminal laws
7. Constitutional directive under Article-44.
8. Strengthening national unity ↪ Similar identities
↪ Constitutional values like equality, fraternity, dignity are strengthened.

Arguments in opposition →

1. It is against the Freedom to Practice Religion under Article 25.
2. Negative impact on cultural traditions
 - Different communities have different traditions.
 - The challenge before them is the coming of uniformity.
3. Challenge to India's diversity.
4. Challenging to take tribal communities into confidence.
5. Influence of majoritarianism.

↓
Fear of majority community's traditions being implemented in the form of UCC.

6. Violation of minorities' freedom (religious freedom, cultural autonomy)
7. Challenge to national security.



Because - better communication about the law is necessary, otherwise it will give rise to rumours.

Ex. - C.A.A. :- Law for granting citizenship, not for snatching it (rumour).

Conclusion: →

- ✦ # Unity > Uniformity
- ✦ # Balance → 'Law Commission'
 - Try to implement step by step.
 - Abolish only those practices which are not in conformity with constitutional standards.

Q. Discuss what are the possible factors that prevent India from implementing a Uniform Civil Code (UCC) for its citizens as per the guidelines provided in the DPSP? (UPSC-2015)

- ◆ **Article-45** → Provision for nutrition and primary education for children up to 6 years of age (86th constitutional amendment).
- ◆ **Article-46** → Economic assistance and education for SC/ST and other weaker sections.
 - ✦ Freedom from all kinds of exploitation and social injustice.
- ◆ **Article-47** → The state shall improve nutrition, standard of living, public health. The state shall prohibit dangerous drugs and alcoholic beverages.
- ◆ **Article-48** →
 - ✦ Modern and scientific techniques should be used in agriculture and animal husbandry.
 - ✦ Efforts should be made to improve and preserve the breed of animals and slaughterhouses should be closed. (Cow slaughter prohibition)
- Article-48A** → Environmental protection and promotion, protection of forests and wildlife.
 - ◆ **Article-49** → The State is bound to protect every monument or place or object of artistic or historical interest which is declared by or under any law made by Parliament to be of national importance, from damage, defacement, destruction, removal, disposal or export, as the case may be.

This covers the obligation of the State in its literal sense.
- ◆ **Article-50** → Separation of judiciary from the executive.
- ◆ **Article-51** →
 - ✦ Promotion of international peace and security.
 - ✦ Promotion of cordial and just relations among different countries.
 - ✦ Respect for international treaties, agreements and laws.
 - ✦ Resolving international disputes through arbitration.

Amendment in Directive Principles of State Policy →

- ✦ 42nd Constitutional Amendment = Article-39(f), Article-39(A), Article-43(A), Article-48(A) were added
- ✦ 44th Constitutional Amendment = Article-38(2) was added
- ✦ 86th Constitutional Amendment = Article-45 was amended
- ✦ 97th Constitutional Amendment = Article-43B was added
- ✦ 7th Constitutional Amendment = Article 49 was amended

Classification of Directive Principles →

This classification was first suggested by political scholars like **M.V. Pylee** and **Granville Austin**. Directive Principles can be classified into three parts-

Socialist	Gandhian	Liberal
Article- 38	Article - 40	Article - 44
Article - 39	Article - 43	Article - 45
Article - 39A	Article - 43(B)	Article - 48(A)
Article - 41	Article - 46	Article - 49
Article - 42	Article - 47	Article - 50
Article - 43	Article - 48	Article - 51
Article - 43A		
Article - 46		

Fundamental Rights vs. Directive Principles

◆ **Champakam Dorairajan case 1951 AD-**

- ✦ The Supreme Court held that if there is any kind of contradiction between Fundamental Rights and Directive Principles, then in this situation Fundamental Rights should be considered supreme.
- ✦ Fundamental Rights cannot be violated to fulfill the Directive Principles.

◆ **First Constitutional Amendment, 1951 AD-**

- ✦ By this, Article 31-A and 31-B were added to the Constitution and the right to property was limited.
- ✦ Under this, it was said that the state can acquire private property for the purpose of social welfare and equitable distribution of resources.
- ✦ If such laws limiting the Fundamental Rights are kept in the Ninth Schedule, then it cannot be judicially reviewed.

◆ **Fourth Constitutional Amendment, 1955 AD -**

- ✦ The state can nationalize all types of private businesses in public interest and the compensation given by the government in return cannot be challenged in the court.
- ✦ Some additional acts were included in the 9th Schedule.
 - Thus, in the first and fourth constitutional amendments, the Directive Principles of Policy were given priority over the Fundamental Rights.

◆ **Kerala Education Bill Case, 1958 -**

- ✦ The court clarified that although the importance of Fundamental Rights is more than the Directive Principles of Policy, but while determining the meaning and extent of Fundamental Rights, the courts will not ignore the Directive Principles of Policy. To maintain the importance of both of these, the courts will adopt the 'principle of coordinated interpretation'.

◆ **17th Constitutional Amendment, 1964 AD -**

- ✦ In this, 44 new acts were included in the 9th Schedule which limited the Fundamental Rights.
- ✦ But if the government acquires the agricultural land of the farmers, then they will have to be given adequate compensation.

◆ **Golaknath case, 1967 AD -**

- ✦ The Supreme Court ruled that the Parliament cannot amend or abolish any fundamental right. That is, the fundamental rights cannot be amended to implement the directive principles of state policy.

◆ **24th Constitutional Amendment, 1971 AD -**

- ✦ In this, the Parliament was given the power to amend or abolish the fundamental rights under the Constitution Act.

◆ **25th Constitutional Amendment, 1971 AD -**

- ✦ Article 31-C was included in the Constitution.
- ✦ It provided that if the Parliament passes an Act to achieve the objectives of Article 39 (b), 39 (c) and this Act limits the fundamental rights of Article 14, 19 and 31, then the Act cannot be declared unconstitutional on such basis.
- ✦ Such a law cannot be challenged in the court.

◆ **Kesavananda Bharati case, 1973 AD**

- ✦ The Supreme Court considered the 24th and 25th Constitutional Amendments as legal, that is, the Parliament can curtail the fundamental rights.
- ✦ But in this, the second provision of Article 31-C was declared unconstitutional because it deprives the court of the right of judicial review, which is the basic structure of the Constitution.

◆ **42nd Constitutional Amendment, 1976 AD**

- ✦ In this, Article 31-C was expanded.
- ✦ If the Parliament passes an Act to achieve the objectives of all the Directive Principles and this violates the Fundamental Rights of Articles 14, 19 and 31, then on this basis this Act will not be unconstitutional.

◆ **Minerva Mills Case, 1980 AD -**

- ✦ In this, the extension of Article 31-C was challenged.
- ✦ The Supreme Court declared this extension illegal and accepted Article 31-C in its previous form.
- ✦ At the same time, the court accepted that the Fundamental Rights and the Directive Principles are not contradictory to each other. The objective of both is the same, that is, 'public welfare', hence both complement each other.
- ✦ Both are like two wheels of the same chariot, which will lead to progress in society. The balance between the two is the Basic Structure of the Constitution.
- ✦ Despite this, if there is any contradiction between the two, then the Fundamental Rights will be considered supreme as compared to the Directive Principles.

◆ **Current Status**

- ✦ Fundamental Rights are superior to Directive Principles.
- ✦ But Directive Principles of Article 39 (b) and 39 (c) are superior to Fundamental Rights of Article 14 and 19.

◆ **Difference between Fundamental Rights and Directive Principles →**

Fundamental Rights	Directive Principles
1. These are enforceable by the court.	1. These are not enforceable by the court.
2. These are the rights of citizens against the state.	2. These are the duties of the state.
3. These are important for political democracy.	3. These are important for social and economic democracy.
4. Its nature is negative.	4. Their nature is positive.
5. Their nature is individual.	5. Their nature is collective.
6. There is no need to make separate laws to implement the Fundamental Rights.	6. There is a need to make laws or plans to implement them.

Q. "The Directive Principles of State Policy are merely an election manifesto." Explain critically. (Only for Mains)

Ans. Directive Principles of State Policy were included in Part-4 of the Constitution with the objective of expanding the Preamble and ensuring socio-economic justice.

However, due to the following shortcomings these are called mere election manifestos-

"A government that rests on abstract principles without force behind it is like a body without soul." — K.T. Shah

"A principle which is not enforceable is not worth the paper it is written on." — Nani Palkhivala

1. These are not enforceable by the court.
2. There is lack of clarity in these.

Example:- How is the relationship between employee and employer under 43A?

3. This is conservative from a 21st century perspective - Article 47 alcohol prohibition.
4. This is more idealistic and less practical.

Example:- Article 38 Equality of income, status, opportunity and facilities.

5. Various controversies between Fundamental Rights and Directive Principles of State Policy.

Example:- Shankari Prasad case, Kesavananda Bharati case, 1973

6. This causes controversy between the Union and the states regarding their implementation.

However, they are important in the following ways-

"The Directive Principles are like the instrument of instructions to the State, a beacon light to achieve the socio-economic goals of the Constitution." — Dr. B.R. Ambedkar

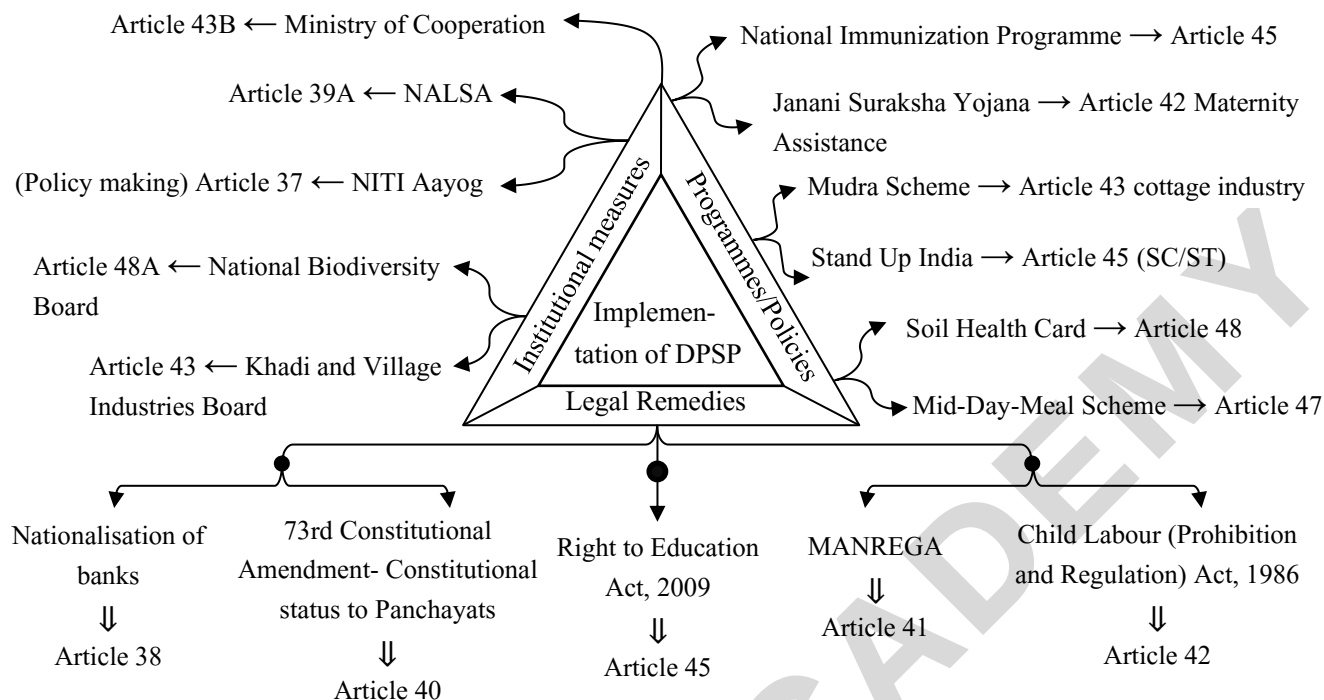
"DPSPs are not enforceable, but they are enforceable by the conscience of the nation." — Justice Hidayatullah

1. Fundamental objectives of governance - They present the concept of 'welfare state' by talking about the establishment of social, economic and political justice.
2. They are the guide, philosopher and friend of the state for policy making.
3. They are useful in the interpretation of the Constitution by the Supreme Court.
4. They address the interests of almost all sections of the society, for the implementation of which the democratic government elected by the public opinion is responsible.
5. They encourage progressive law making. **For example -** Uniform Civil Code.
6. They are complementary to the fundamental rights, that is, by implementing them, a favorable environment is created for the fundamental rights.
7. Promote inclusive and sustainable development.
8. They are the basis for the evaluation of governance - in the form of the extent to which they have been implemented.

Thus, due to the above mentioned importance, they have been called the 'soul and philosophy of the Constitution'.

Q. Write a detailed article on the various measures taken by the Government of India for the successful implementation of the Directive Principles of State Policy. (100 Words)

Ans. The Directive Principles mentioned in Part-4 of the Constitution declare India as a welfare state by expanding the Preamble and propounding the concept of social, economic and political justice. Efforts made for their implementation

**Question (2016 – 2 Marks)**

Enumerate the provisions concerning the protection of environment as mentioned in the Directive Principles of State Policy in the Indian Constitution.

The **Directive Principles of State Policy** include specific provisions related to **environmental protection**, reflecting the commitment to a sustainable and eco-friendly development model.

1. **Article 48A** – (Inserted by the 42nd Amendment Act, 1976)
"The State shall endeavour to protect and improve the environment and to safeguard the forests and wildlife of the country."
2. **Article 47** – (Partially related to environmental health)
Directs the State to improve public health, which is indirectly related to maintaining a clean and pollution-free environment.
3. **Article 39(b)** –
Calls for the **equitable distribution of material resources** to serve the common good, which includes **natural resources like air, water, and forests**.

These articles provide a **moral and constitutional basis** for environmental laws and policies in India, such as the **Environment Protection Act, 1986** and formation of the **National Green Tribunal**.

Basic Structure of the Constitution

- ◆ This doctrine was not part of the original Constitution. It was laid down by the Supreme Court in the Kesavananda Bharati case. It has not been explicitly defined. The Supreme Court will interpret it from time to time.
- ◆ The basic structure is not a fixed fact but a dynamic concept. It limits the power of Parliament to amend the Constitution.

Basic Structure Doctrine

- ✦ Although this doctrine is not explicitly mentioned in the Constitution, it has been developed by the judiciary to preserve the soul of the Constitution and its structural integrity. It is not a specific Article, but a judicial innovation — that is, a concept interpreted by the court as per time and circumstances.

- ✦ This doctrine imposes limitations on the amending power of Parliament, ensuring that fundamental elements like democracy, secularism, rule of law, and justice cannot be abolished through amendments.
- ✦ The initial glimpse of this idea was seen in *Golaknath vs State of Punjab* (1967), but it was firmly established in the landmark judgment of *Kesavananda Bharati vs State of Kerala* (1973).
- ✦ The role of eminent jurist Nani Palkhivala in this decision was extremely important. He successfully persuaded the Supreme Court to adopt this doctrine in order to protect the basic values of the Constitution.
- ✦ The roots of this doctrine are not limited to the Indian context alone. India also learned important lessons from the experience of the Weimar Constitution of Germany. The Weimar Constitution was amended to such an extent that eventually a dictatorship was established.
- ✦ Against this historical backdrop, the ideas of German thinkers Carl Schmitt and Professor Dietrich Conrad inspired the concept of the Indian Basic Structure Doctrine.

Relationship between Basic Structure and Constitutionalism (For Mains)

1. **Limiting the Power of the State:** Constitutionalism implies that there should be limits on the powers of the State. The Constitution grants powers to the organs of the State (such as Parliament), including the power to amend the Constitution.
2. **Role of Basic Structure Doctrine**
 - The Basic Structure Doctrine acts as a limitation on the amending power of Parliament.
 - It ensures that fundamental features (such as democracy, rule of law, secularism) cannot be altered.
3. **Support to Constitutionalism**
 - It safeguards constitutionalism by restricting arbitrary use of power by the legislature.
 - It ensures a balance of power among the various organs of the government.

Relationship between Basic Structure & Rule of Law (For Mains)

1. **Foundation of Rule of Law (as per A.V. Dicey)**
 - No Arbitrary Power
 - Equality Before Law
 - Supremacy of Legal Spirit (Law is supreme)
2. **How the Basic Structure Doctrine Supports Rule of Law:**
 - It prevents Parliament from making amendments to the Constitution that would weaken the rule of law.
 - It ensures that laws remain fair, public, and predictable.

How did the doctrine of Basic Structure evolve?

Case Laws (Evolution Timeline of Basic Structure Doctrine)

Year	Case Name	Key Outcome
1951	Shankari Prasad Case	Parliament can amend fundamental rights.
1965	Sajjan Singh Case	The power of Parliament to amend the Constitution was reaffirmed.
1967	Golaknath Case	Parliament cannot amend Fundamental Rights.
1973	Kesavananda Bharati Case	Establishment of the Basic Structure Doctrine.
1980	Minerva Mills Case	Reaffirmation of the Basic Structure Doctrine.
1981	Waman Rao Case	The Basic Structure Doctrine applies to constitutional amendments and laws under the 9th Schedule.
2006	IR Coelho Case	Judicial review permitted even for amendments made to the 9th Schedule before 1973.

What has been included in the Doctrine of Basic Structure?**Core Constitutional Principles**

Principle	Landmark Case
Supremacy of the Constitution	Kesavananda Bharti v. State of Kerala (1973)
Rule of Law	Indira Gandhi v. Raj Narain (1975)
Separation of Powers	SR Bommai v. Union of India (1994)
Federalism	SR Bommai v. Union of India (1994)
Limitations of amending power (Art. 368)	Minerva Mills v. Union of India (1980)

Core Features: Fundamental Rights & Directive Principles

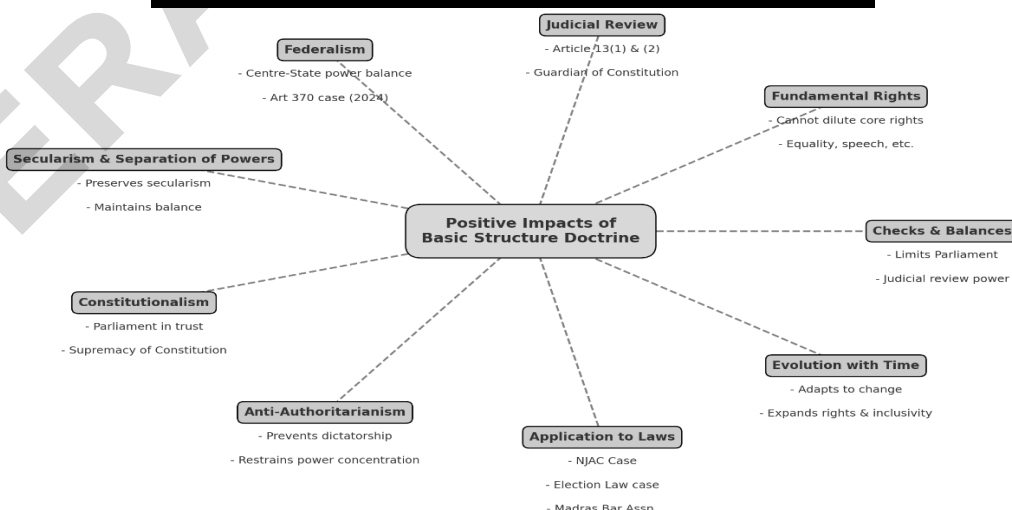
Principle	Landmark Case
Doctrine related to Fundamental Rights	IR Coelho v. State of Tamil Nadu (2007)
Secularism	Kesavananda Bharti v. State of Kerala (1973)
Balance between FRs and DPSPs	Minerva Mills v. Union of India (1980)
Social & Economic Justice (DPSPs)	Bhim Singh Ji v. Union of India (1981)
Objectives of the Preamble	Kesavananda Bharti v. State of Kerala (1973)

Democratic Values

Principle	Landmark Case
Parliamentary System of Government	Kesavananda Bharti v. State of Kerala (1973)
Free & Fair Elections	Kihoto Hollohan v. Zachillhu (1993)
Multi-Party System & Parliamentary Democracy	Kuldip Nayar v. Union of India (2006)

Judicial Features

Principle	Landmark Case
Independence & Efficiency of Judiciary	Sisir Kant Satapathy (1999)
Powers under Art. 32, 136, 141, 142	Delhi Judicial Services Assn. v. Gujarat (1991)
Effective Access to Justice	Central Coal Fields v. Jaiswal Coal Co. (1980)
Judicial Review (Art. 32, 226, 227)	L. Chandra Kumar v. Union of India (1997)
Independence of Judiciary	SC AoR Assn. v. Union of India (1994)

Mind Map : Positive Impacts for the Basic Structure Doctrine

Positive Impact of the Basic Structure Doctrine (For Mains)**1. Judiciary vs Parliament: Checks and Balances**

- ✦ Parliament's power to amend is not unlimited; it is equivalent to the judiciary's power to review and invalidate unconstitutional amendments..
- ✦ This doctrine ensures a balance of power between Parliament and the Supreme Court.

2. Constitutionalism Above All: Parliament is a trustee of the Constitution and cannot alter its foundational values.

- ✦ In the Kesavananda Bharati case, a clear boundary was drawn between constitution-making and its implementation, and constitutionalism was established as a higher principle.
- ✦ The doctrine ensures that popular will (not majoritarian dominance) remains supreme.

3. Domino Effect: Stability in Governance: This doctrine prevents:

- ✦ Military coups or dictatorial regimes (as seen in neighboring countries).
- ✦ India's drift towards an ultra-socialist or authoritarian system.
- ✦ It served as a foundation of constitutional stability during turbulent times.

4. Wider Application by Judiciary: This doctrine has been applied in the following cases:

- ✦ On ordinary legislature (e.g., Madras Bar Association vs. Union of India, 1973)
- ✦ To uphold judicial review (39th Amendment – election-related case)
- ✦ To protect judicial independence (NJAC Case – 99th Amendment, 2014)
- ✦ To safeguard federalism (Article 370 abrogation case – 2024 judgment)
- ✦ When secularism was challenged (pending CAA 2019 case and Sabarimala review case)

5. Judicial Review & Constitutional Supremacy

- ✦ This doctrine re-establishes judicial review as a tool to control legislative arbitrariness.
- ✦ It ensures that the Constitution remains supreme and cannot be overridden by political majorities.

6. Safeguarding Fundamental Rights

- ✦ This doctrine blocks all amendments that weaken:
 - Right to Equality
 - Freedom of Speech
 - Protection against discrimination, etc.
- ✦ It protects individual liberties across all forms of governance.

7. Protection of Federalism:

- ✦ It maintains the autonomy of states.
- ✦ It ensures the balance of power between the Centre and the States.

8. Ensuring Separation of Powers

- ✦ It prevents any amendment that:
 - Effects the **secular nature** of the state.
 - Disrupts the balance between the executive, legislature, and judiciary.

9. Limitations on Constitutional Amendments

- ✦ Parliament, using its powers under Article 368,
 - Cannot alter the basic structure of the Constitution.
 - Cannot remove core values like democracy, rule of law, secularism.

10. Facilitates Progressive Constitutional Evolution

- ✦ While protecting core elements, this doctrine allows expansion through judicial interpretation of:
 - Fundamental Rights
 - Social inclusion
 - Making the justice system more effective and inclusive

Criticism of the Basic Structure Doctrine (for Mains)

Ground	Criticism
Not Explicitly Mentioned in the Constitution	This doctrine is not explicitly mentioned anywhere in the Constitution. Critics believe it is a judicial innovation developed by the judiciary, lacking a concrete constitutional basis.
Judicial Overreach	Limiting the powers of an elected Parliament by a non-elected judiciary reflects the supremacy of the judiciary over democratic will. This raises concerns of judicial supremacy.
Ambiguity	The term " basic structure " is vague . There's no fixed list of features included; it depends on the interpretation of the court.
Inconsistent Application	Courts have not always applied it consistently . At times, it has been applied even to ordinary laws (e.g., NJAC case).
Against Parliamentary Sovereignty	In a democracy, Parliament is considered supreme . This doctrine can be seen as restraint on the will of the people expressed through their representatives.
Limits Constitutional Flexibility	This doctrine limits Parliament's amending power, making it difficult to evolve the Constitution with time.
Subjective Nature	What constitutes a violation of the "basic structure" is subject to judges' interpretation , which may change over time.

Q. "The basic structure principle of the Constitution is very important for the protection of citizens' rights." Analyse.

Q. What do you understand by the doctrine of basic structure? Analyze its significance for the Indian Constitution. (UPPSC-2019) (200 word)



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Evolution of Fundamental Duties

- ❖ Fundamental duties were not included in the original constitution.
- ❖ Fundamental duties in Indian constitution are inspired from the constitution of Soviet Union (USSR).
- ❖ Apart from this, fundamental duties are clearly mentioned in the Constitution of Japan.
- ❖ **Sardar Swarn Singh Committee -**

Sardar Swarn Singh was a Rajya Sabha MP in 1952 and then a Member of Parliament from the Jalandhar Lok Sabha seat for four consecutive terms.

He is one of the longest serving Cabinet Ministers from Nehru Government to Indira Gandhi Government (Defence Minister).

- Members - 12

Members of Swarn Singh Committee –

- | | | | |
|-------------------------|-------------------|--------------------|-------------------|
| 1. S. S. Rai, | 2. V. N. Gadgil, | 3. B. U. Banerjee, | 4. Dinesh Goswami |
| 5. D. P. Singh, | 6. C. M. Stephen, | 7. H. R. Gokale, | 8. Rajni Patel |
| 9. V. N. Syed Muhammad, | 10. A. R. Anulya, | 11. Vasant Sathe | |

- Recommended duties - 8
- Two recommendations were not accepted:-
 - Penalty for violation of fundamental duties.
 - Tax payment should be made a fundamental duty.

42nd Constitutional Amendment, 1976: 10 fundamental duties added.

86th Constitutional Amendment, 2002: 11th fundamental duty added.

Features of Fundamental Duties

- ❖ Fundamental duties are only for Indian citizens, not for foreigners.
- ❖ Fundamental duties are not enforceable by the court but are helpful in law making and interpretation of the constitution
- ❖ There is no penalty for their violation. But Parliament can enforce them by making laws.
- ❖ **Duties can be classified into two parts:-** (i) Civic duties (ii) Moral duties

It shall be the duty of every citizen to -

1. Abide by the Constitution and respect its ideals, institutions, national flag and national anthem. (National Song ×)
2. Cherish and follow the noble ideals which inspired our national movement for independence.
3. Protect and preserve the sovereignty, unity and integrity of India.
4. Defend the country and serve the nation when called upon to do so.
5. Create a feeling of harmony and common brotherhood among all the people of India which is beyond all discriminations based on religion, language, region and class and abandon such practices which are against the dignity of women.
6. Understand the importance of the glorious tradition of our composite culture and preserve it.
7. Protect and improve the natural environment which includes forests, lakes, rivers and wildlife and have compassion towards all living creatures.
8. Develop scientific temper, humanism and the spirit of acquiring knowledge and reform.
9. Safeguard public property and stay away from violence.
10. Make continuous efforts to progress in all spheres of individual and collective activities so that the nation can touch new heights of ever-increasing effort and achievement.
11. Provide educational opportunities to children between 6-14 years of age by their parents or guardians or caretakers, as the case may be.

Verma Committee, 1999:

Identified the current statutory provisions for implementing some fundamental duties.

Jagdish Sharan Verma

- He was the 27th Chief Justice of India.
- He served as the Chairperson of the National Human Rights Commission and Head of the Justice Verma Committee report.
- This committee also recognized the existence of legal provisions for the implementation of fundamental duties.
- Some of the provisions of the committee are as follows:

Sector	Recommendations
Education	Include fundamental duties in curriculum; raise awareness in schools and colleges.
Legal Provisions	Use and enforce existing laws (National Honors Act, Civil Rights Act, etc.)
Public Office Conduct	Make honesty, transparency, accountability and public interest core values.
Leadership	Leaders and officials should set an example in discharging their duties.
Enforcement	No new punitive laws; focus on moral compulsion, education and effective use of existing laws.

Next Sub-topics are For Mains Only**1. Relationship Between Fundamental Rights and Fundamental Duties**

In a report of the Law Commission, Justice Ranganath Mishra stated:

"The Fundamental Rights and Fundamental Duties are complementary and inseparable. While rights empower the citizen, duties ennoble them."

1. Mutual Reinforcement:

- Fundamental Rights grant citizens equality (Article 14), freedom of expression (Article 19), and the right to life and personal liberty (Article 21).
- Fundamental Duties call upon citizens to respect the Constitution, the National Flag, and institutions, to promote harmony, and to protect the environment.
- Example: While Article 19(1)(A) gives citizens the right to freedom of speech and expression, Article 51A(h) lays down the duty to develop scientific temper, humanism, and the spirit of inquiry and reform. This ensures that expression remains rational and constructive.

2. Preventing Misuse of Rights:

- Duties act as a moral check against the misuse of rights.
- Example: Article 25 grants freedom of religion, while Article 51A(e) imposes the duty to promote harmony and the spirit of brotherhood, maintaining balance in a diverse society.

3. Promoting National Unity and Integrity:

- Fundamental Rights empower citizens, while Duties ensure that this power is used in the interest of the nation.
- Example: Article 51A(c) obliges citizens to uphold and protect the sovereignty, unity, and integrity of India, which indirectly supports the right to equality under Article 14..

4. Environmental Protection Linkage:

- **Judicial interpretation of Article 21 (Right to Life) has expanded it to include the right to live in a healthy environment.**
- Article 51A(g) makes it the duty of every citizen to protect and improve the natural environment—this establishes a direct link between rights and duties.

5. Judicial Interpretation & Moral Foundation:

- Although Fundamental Duties are not enforceable in courts, the Supreme Court and High Courts often interpret them in the context of enforcing Fundamental Rights.
- Example: In the *AIIMS Students' Union vs. AIIMS* case (2001), the Supreme Court stated that Fundamental Rights and Duties must be interpreted harmoniously.

Example from Judiciary

- **Rangnath Mishra Committee (2007)** recommended the inclusion of a statutory provision making Fundamental Duties enforceable like Directive Principles.
- In **Ramesh Thapar vs. State of Madras (1950)** and **Indira Gandhi vs. Raj Narain (1975)**, the courts clarified that the exercise of freedom must be accompanied by responsibility and discipline. Hence, duties are essential to maintaining a healthy democracy.

Importance of Fundamental Duties

1. **Promote Responsible Citizenship:** Fundamental Duties develop civic discipline, public morality, and social awareness among citizens.

Example: Promotion of communal harmony and respect for others' beliefs under Article 51A(e) becomes important in managing religious tensions.

Contemporary context: In the Hijab controversy (Karnataka, 2022), the debate over religious expression highlighted the need for mutual respect and social harmony—reflecting this duty.

2. **Strengthening National Unity and Integrity:** Duties like **protecting sovereignty and unity (Art. 51A(c))** counter separatist or extremist tendencies.

Example: During the India-Canada diplomatic tensions (2023), public protests by some diaspora groups sparked discussion on the need to protect national integrity.

3. **Environmental Protection:** It is the duty of citizens to protect the environment (Article 51A(g)).

Example: People's movements like "Save Aarey Forest" (Mumbai, 2023) and court-supported campaigns reflect citizen activism based on environmental duties.

4. **Complement to Fundamental Rights:** Without duties, rights can turn into chaos. Duties ensure responsible use of rights. **Example:** In cases of fake news or hate speech, the right to freedom of expression (Article 19) must be balanced with harmony and scientific temper (Article 51A(h)).

5. **Support in Legal and Judicial Processes:** Courts have started referencing Fundamental Duties in interpreting laws and delivering judgments.

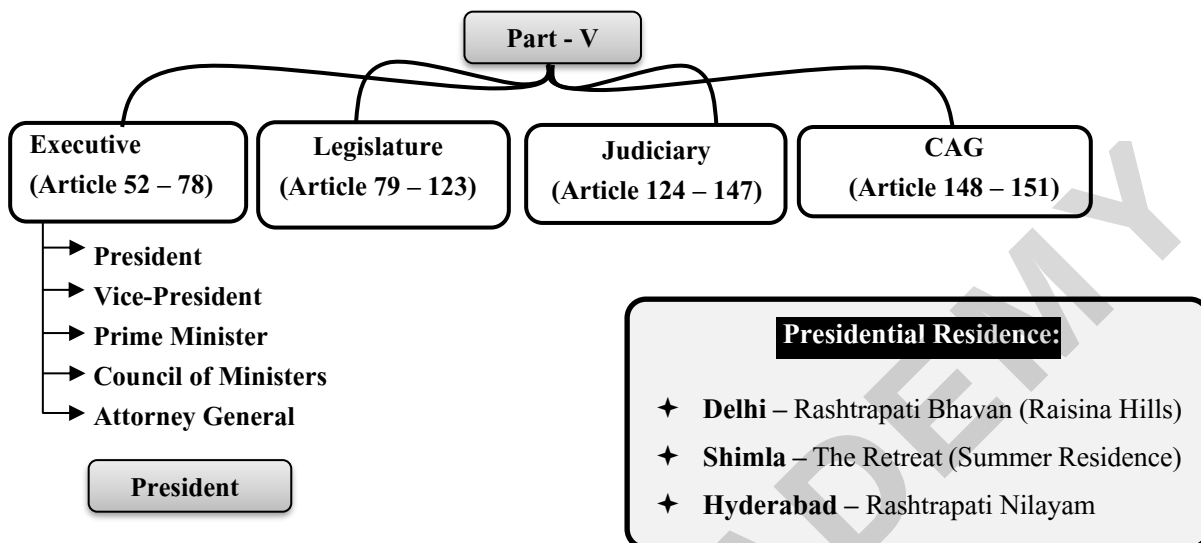
Example: In *M.C. Mehta vs. Union of India*, the Supreme Court invoked Article 51A(g) to promote environmental awareness and justify strict pollution controls.

3. Criticisms of Fundamental Duties

Although Fundamental Duties are symbolically and morally significant, they have been widely criticized on various grounds:

1. **Non-enforceability by Courts (Inapplicability):** There is no legal penalty or restriction for not following these duties..
 - Critics argue that this makes them **ineffective or toothless**.
 - Example: When citizens violate duties (like littering or not standing during the national anthem), often no action is taken against them unless it is punishable under some separate law.
2. **Vague and Abstract Language:** Some duties use subjective terms like "great ideals" or "spirit of inquiry", which are open to multiple interpretations and hard to implement.
 - Example: What exactly is meant by "scientific temper" or "striving for excellence in individual and collective activity"?
3. **One-sided Responsibility on Citizens:** Critics argue that duties are imposed only on citizens, while the State has no such constitutional obligation.
 - In contrast, Fundamental Rights are enforceable against the State. This creates an imbalance in terms of accountability.
4. **Possibility for Misuse:** Vague duties can be misused to suppress dissent or criticism.
 - Example: Arrests made for not standing during the national anthem or for criticizing government policies may be unjustly justified in the name of national honor-related duties.
5. **Lack of Public Awareness:** Due to insufficient emphasis in education and public discourse, most citizens are unaware of their Fundamental Duties.
 - Example: Despite the rise in environmental problems, public awareness about Article 51A(g) is still negligible, especially in areas beyond elite urban movements.

Conclusion: Fundamental Duties help in building a responsible and aware citizen, which is essential for the success of a constitutional democracy. However, their symbolic nature, vagueness, and lack of enforceability limit their effectiveness. Increasing public awareness through law and education and providing legal backing to some key duties can help bridge this gap.



Article 52:- There shall be a President of India.

Article 53 (1) - All the executive powers of the union shall be vested in the President.

Article 53 (2) - The President shall be the Supreme Commander of the all three armed forces of India.

Article 74 (1) - There shall be a Council of Ministers to provide aid and assistance to the President, headed by the Prime Minister.

42th C.A., 1976

44th C.A., 1978

The President is bound to act in accordance with the advice given.

The President can return the given advice once for reconsideration.

Article 74(2) - The advice given by ministers to the President shall not be inquired into in any court.

Article 54 :- Election of President.

- The President of India is elected by an **electoral college** that includes:
 1. **Elected members** of both Houses of **Parliament** (Lok Sabha & Rajya Sabha).
 2. **Elected members** of the **Legislative Assemblies** of States.

Additionally, for this purpose, the term "**State**" also includes the **National Capital Territory of Delhi** and the **Union Territory of Puducherry**. (70th Constitutional Amendment Act, 1992)

Status of members of jammu Kashmir

- The key question is whether the Legislative Assembly of the Union Territory of Jammu and Kashmir is included in the Electoral College under Article 54. The text of Article 54 does not explicitly mention Union Territories other than Delhi and Puducherry. Historically, only these two Union Territories were included via the 1992 amendment because they have elected Legislative Assemblies, and the amendment specifically extended the definition of "State" to cover them.
- Section 13 of the Jammu and Kashmir Reorganisation Act, 2019, states that the provisions of Article 239A of the Constitution (which apply to Puducherry and allow for the creation of a Legislative Assembly) shall also apply to the Union Territory of Jammu and Kashmir. This suggests a similarity in governance structure to Puducherry. However, unlike the case of Delhi and Puducherry, no corresponding constitutional amendment has been made to Article 54 to explicitly include the Union Territory of Jammu and Kashmir in the Electoral College.

- **Only elected** representatives participate in the election of the President of India. The following **do not vote**:
 - **Nominated Members** – of **Parliament & State Legislatures**
 - **Members of Legislative Councils (MLCs)** – in states with bicameral legislatures
 - **Members from Union Territories without a Legislature**– (e.g., Chandigarh, Lakshadweep)

Case Name	Year	Key Decision/Outcome
N. P. Ponnuswami vs. Returning Officer, Namakkal Constituency	1952	Established that election disputes should be resolved through election petitions and not by direct judicial intervention before elections.
Narayan Bhaskar Khare vs. Election Commission of India	1957	Clarified that the Supreme Court has the sole jurisdiction to decide presidential election disputes under Article 71 .
Charan Lal Sahu vs. Giani Zail Singh	1984	Ruled that minor defects in the Electoral College do not invalidate a presidential election. The election process remains valid even if some members of the Electoral College are missing.

Article 55:- Manner of Election of President

1. **Equal Representation:** As far as possible, all states should have **uniform representation** in the Presidential election. (Principle of Homogeneity)
2. **Vote Calculation:**
 - **MLA's Vote Value:** Divide the state's **population** by its **total elected MLAs**.
 - Take **only the multiples of 1000** from the result.
 - If the remainder is **500 or more**, add **1 extra vote** per MLA.
 - **MP's Vote Value:**
 - **Total votes of all MLAs ÷ Total elected MPs (Lok Sabha + Rajya Sabha) (Doctrine of Equivalents)**
 - If the fraction is **more than 0.5**, round up; otherwise, ignore.
3. **Election Process:** Proportional Representation System using Single Transferable Vote (STV).
 - Voting is conducted through a **Secret Ballot**.

Population Definition:

- "Population" refers to the **latest published census**. Until the **first post-2026 census** is published, the **1971 Census** will be used.

{For UPSC/State PSC Mains}

Feature	First Past the Post (FPTP)	Proportional Representation (PR)
Definition	The candidate who gets the most votes in a constituency wins.	Each party gets seats in proportion to the votes it receives.
Usage	Used in India's Lok Sabha and State Assembly elections, as well as in the USA, Britain, and Canada.	Used in India's Presidential elections, Rajya Sabha elections, Germany, Israel, etc.
Voting System	Simple majority system; the candidate with the most votes wins.	Seats are allocated based on a specific formula proportional to the votes received.
Fairness	A party can get more seats than its actual vote share.	All political parties receive more fair representation.
Representation	Smaller parties may have lower representation.	More democratic as it ensures proper representation of all parties.
Stability vs. Diversity	Usually results in a strong and clear majority government.	If no party gets a majority, coalition governments are often formed.

Vote Value of Each State

{Instead of memorizing everything, remember only the important facts (Highlighted) or those related to your state}

State/UT	No of Elected MLA	Population (1971 Census)	Vote Value per MLA	Total Vote Value
Uttar Pradesh	403	83,849,905	208	83,824
Maharashtra	288	50,412,235	175	50,400
Bihar	243	42,126,236	173	42,039
Tamil Nadu	234	41,199,168	176	41,184
West Bengal	294	44,312,011	151	44,394
Madhya Pradesh	230	30,016,625	131	30,130
Karnataka	224	29,299,014	131	29,344
Gujarat	182	26,697,475	147	26,754
Rajasthan	200	25,765,806	129	25,800
Andhra Pradesh	175	27,800,586	159	27,825
Odisha	147	21,944,615	149	21,903
Kerala	140	21,347,375	152	21,280
Telangana	119	15,702,122	132	15,708
Assam	126	14,625,152	116	14,616
Jharkhand	81	14,227,133	176	14,256
Punjab	117	13,551,060	116	13,572
Chhattisgarh	90	11,637,494	129	11,610
Haryana	90	10,036,808	112	10,080
Delhi	70	4,065,698	58	4,060
Uttarakhand	70	4,491,239	64	4,480
Himachal Pradesh	68	3,460,434	51	3,468
Tripura	60	1,556,342	26	1,560
Meghalaya	60	1,011,699	17	1,020
Manipur	60	1,072,753	18	1,080
Nagaland	60	516,499	9	540
Arunachal Pradesh	60	467,511	8	480
Goa	40	795,120	20	800
Mizoram	40	332,390	8	320
Sikkim	32	209,843	7	224
Puducherry	30	1,707	16	480

Tricks to Remember

- ✓ Metro Kings → MP & KA = 131
- ✓ Raja-Chhota Twins → Rajasthan & Chhattisgarh = 129
- ✓ Tea-Farm Warriors → Assam & Punjab = 116
- ✓ 9-8-8-7 Rule → Nagaland (9), Arunachal/Mizoram (8), Sikkim (7)

UPSC PRELIMS 2023

Consider the following statements in respect of election to the President of India:

1. The members nominated to either the House of Parliament or the Legislative Assemblies of States are also eligible to be included in the Electoral College.
2. The higher the number of elective Assembly seats, the higher the value of the vote of each MLA of that State.
3. The value of the vote of each MLA of Madhya Pradesh is greater than that of Kerala.
4. The value of the vote of each MLA of Puducherry is higher than that of Arunachal Pradesh because the ratio of total population to total number of elective seats in Puducherry is greater than compared to Arunachal Pradesh.

How many of the above statements are correct?

- (a) Only one (b) Only two (c) Only three (d) All four

Note :-

1. Vote value of one MP of loksabha = Vote value of one MP of Rajyasabha = 708 (In 2022 it was 700)
2. Vote value of all MP of loksabha > Vote value of all MP of Rajyasabha.
3. Vote value of All MP (LS + RS) = Vote value of all MLA (Approximately)

General facts about election of president

Category	Deposit Amount	Proposers	Seconders	Election Authority	Whip	Voting	How
President	Rs. 15,000 (In RBI)	50	50	Secretary-General of Lok Sabha/ Rajya Sabha	Not Applicable	Secret Ballot	Ballot Paper
Vice President	Rs. 15,000	20	20	Secretary-General of Lok Sabha/ Rajya Sabha	Not Applicable	Secret Ballot	Ballot Paper

➤ Other Important Facts

Legal Framework

- **Presidential & Vice-Presidential Elections Act, 1952:** Regulates the procedural aspects of both elections..
- **Presidential & Vice-Presidential Elections Rules, 1974:** Provides the framework for detailed election rules.

Nomination Process

- A candidate can submit a maximum of four nomination papers.
- **Political parties nominate candidates;** independent candidates can also contest if they meet nomination requirements.
- An elector can propose or second only one candidate's nomination.
- **Nomination can be filed within 14 days** of notification.

Election Notification: Election Commission announces the notification 60 days before the term expires.

Voting Process (For Objective Exams Only)

- Voting takes place in Parliament and State Assemblies.
- Alternative locations allowed if informed 10 days in advance.

Ballot Paper Colors

- **Green** → Used by **MPs**
- **Pink** → Used by **MLAs**

Vote Rejection Criteria

- If **1st preference is missing or unclear**, the vote is invalid.
- Other preferences are **optional**.
- **Numbers (1, 2, 3) must be used**—words (one, two) are not allowed.

Special Provisions

- **Voting via Postal Ballot:** Allowed in certain cases (preventive detention of any elector).
- **Ballot Papers:**
 - For MPs: Printed in **Hindi and English**.
 - For MLAs: Printed in **English and the official language(s) of the State concerned**.
- **Death of a Candidate:** If any candidate dies during the process, a **new election process** is initiated.
- **Challenging the Election Result:** The result can be **challenged in the Supreme Court within 30 days** by a candidate or more than 20 electors.

Category	President/Vice President	Lok Sabha / Rajya Sabha	Legislative Assembly / Legislative Council
Notification	ECI (Election Commission of India)	President	Governor
Conduct	ECI	ECI	ECI

President And their Tenure

Sr.	Name	Tenure	Main rivals	Prime Minister	Specifications
1.	Dr. Rajendra Prasad	1950-52	K. T. Shah	Jawaharlal Nehru	• Elected by the Constituent Assembly
	Dr. Rajendra Prasad	1952-57 (Elected President)	K. T. Shah	Jawaharlal Nehru	• First president of india • Chairman of the Constituent Assembly • First and the only President to hold the post of President twice. • The only President to have held office for the longest period. • President who delivered the maximum number of speeches under Article 87. • The only President to administer the oath to a single Prime Minister (J. L. Nehru) the most times (3 times).
	Dr. Rajendra Prasad	1957-62	N.N. Das	Jawaharlal Nehru	98.99% votes received (highest in percentage terms)
2.	Dr. Sarvepalli Radhakrishnan	1962-67	Choudhary Hari Ram	Jawaharlal Nehru , Lal Bahadur Shastri, Gulzari Lal Nanda, Indira Gandhi	• First vice president of india • The only President to administer the oath to four Prime Ministers. • The first President to administer the oath to a female Prime Minister. • The first President to appoint a Rajya Sabha member (Indira Gandhi) as Prime Minister.
3.	Dr. Zakir Husain	1967-69	K. Subbarao [Manohara Holkar was the first woman to contest	Indira Gandhi	• first muslim president • First President to pass away while in office • The President with the shortest tenure among elected Presidents.

			the presidential election in 1967.]		- The only President who did not administer oath to any Prime Minister. - President with the smallest margin of victory in first preference
	Varahagiri Venkatagiri (VV Giri)	3 May 1969 – 20 July 1969	Acting	Indira Gandhi	First Acting President
	Muhammad Hidayatullah	20 July 1969 – 24 August 1969	Acting	Indira Gandhi	Second Acting President
4.	V.V. Giri	1969 - 1974	N Sanjiva Reddy	Indira Gandhi	The only President to win with the lowest percentage of votes in the second round of counting.
5.	Fakhruddin Ali Ahmed	1974 - 1977	Tridib Chowdhury	Indira Gandhi	
	B. D. Jatti	11 February 1977 – 25 July 1977	Acting	Indira Gandhi, Morarji Desai	- Second Vice President to serve as Acting President - Longest serving Acting President - The only Acting President who administered the oath of office to the Prime Minister.
6.	Neelam Sanjiva Reddy	1977- 82	Unopposed	Morarji Desai, Charan Singh, Indira Gandhi	- The first and only President to be elected unopposed - Just before the election, he was elected unopposed as the Speaker of the Lok Sabha. - The youngest President ever to take office - The first speaker of Lok Sabha to become President.
7.	Giani Zail Singh	1982- 87	H.R. Khanna	Indira Gandhi, Rajiv Gandhi	- first sikh president - The first Home Minister who became President - First President to use pocket veto
8.	R. Venkataraman	1987- 92	V. Krishna Iyer	Rajiv Gandhi, V.P. Singh, Chandrashekhar, P.V. Narasimha Rao	Worked with four Prime Ministers, administered oath to 3 of them
9.	Shankar Dayal Sharma	1992- 97	George Gilbert Swale	PV Narasimha Rao, Atal Bihari Vajpayee, HD Deve Gowda, Inder Kumar Gujral	- Worked with four Prime Ministers, administered oath to three of them - Served as Vice President (1987–1992)

10.	K R Narayanan	1997-2002	T.N. Seshan	Inder Kumar Gujral, Atal Bihari Vajpayee	- first dalit president - winner with the largest margin of votes - Elected members of Delhi and Puducherry Legislative Assemblies participated in these elections for the first time.
11.	Dr. A P J Abdul Kalam	2002-2007	lakshmi sehgal	Atal Bihari Vajpayee, Manmohan Singh	Known as Missile Man
12.	Pratibha Patil	2007-2012	Bhairon Singh Shekhawat	Manmohan Singh	- First woman president of the country 5th woman to contest for the post of President
13.	Pranab Mukherjee	2012-2017	P.A. Sangma	Manmohan Singh, Narendra Modi	- Earlier, he was the Union Finance Minister, Defence Minister and External Affairs Minister and also held the post of Leader in the Lok Sabha and Rajya Sabha. - Former deputy chairman of planning commission - Oldest person to hold the office of President
14.	Ram Nath Kovind	2017-2022	meera kumar	Narendra Modi	- Second dalit president - Highest Valid Votes in any president's election
15.	Draupadi Murmu	From 25th July 2022	Yashwant Sinha	Narendra Modi	Second Woman President

Presidents awarded with Bharat Ratna

1. **Dr. Sarvepalli Radhakrishnan** - 1954, the first President to receive this award before becoming President.
2. **Rajendra Prasad** - 1962
3. **Zakir Hussain** - 1963, the second President to receive this award before becoming President.
4. **V.V. Giri** - 1975
5. **Dr. A.P.J. Abdul Kalam** - 1997, the third President to receive this award before becoming President.
6. **Pranab Mukherjee** - 2019

Comparative Study : Presidential Elections in India, USA and France {For UPSC Mains Only}

Parameter	India	USA	France
Election System	Indirect election; elected Members of Parliament (MPs) and Members of Legislative Assemblies (MLAs) vote.	Indirect election through an Electoral College (538 electors); electors vote based on state-wise population representation.	Direct election; all French citizens vote (Implemented in 1962).
Voting Method	Single Transferable Vote System.	"Winner-Takes-All System"	Two-Round System (If no candidate gets a majority in the first round, the top two candidates go to the second round).
Electoral College	776 MPs (543 Lok Sabha + 233 Rajya Sabha) + 4,120 MLAs. Vote value depends on state population.	538 Electors, distributed among states based on population.	Not applicable, as France now follows a direct presidential election system.
TV Debates	No, no official debates between candidates.	Yes, multiple debates organized by the Presidential Debate Commission.	Yes, the final two candidates face off in a major TV debate before the second round.

Voting Day	Decided by the Election Commission.	Tuesday after the first Monday of November.	Sunday; if no candidate wins in the first round, the second round is held the following Sunday.
Dispute Resolution	Only the Supreme Court can decide disputes.	State-level disputes first, then Supreme Court (as in Bush v. Gore, 2000).	The Constitutional Council reviews election disputes; if serious irregularities occur, results can be canceled.
Term Duration	5 years	4 years	5 years (Previously 7 years before 2000).
Term Limit	No limit.	Maximum two terms (as per the 22nd Amendment, 1951).	Maximum two terms (as per the 2008 Constitutional Amendment).
Mini. Age	35 years	35 years	18 years (youngest among the three).
Citizenship Requirement	Must be a citizen of India.	Must be a Natural-born Citizen of the USA.	Must be a French citizen.
Nomination Process	50 proposers + 50 seconders (MPs or MLAs). Deposit of ₹15,000 in RBI.	Candidates must be supported by major party delegates or win in primaries.	Must secure 500 nominations from elected representatives.

Article 56 :- Term of Office of the President

1. **Term Duration:** The President serves for **five years** from the date they assume office.

Exceptions:

- (a) The President can **resign** by writing to the Vice-President.
 - (b) The President can be **removed** through **impeachment** if they violate the Constitution (as per Article 61).
 - (c) Even after completing the five-year term, the President **remains in office** until the next President takes charge.
2. If the President **resigns**, the Vice-President must **immediately inform** the Speaker of the Lok Sabha.

Article 57:- Eligibility for re-election.

- A person who holds, or who has held, office as President shall, subject to the other provisions of this Constitution, be eligible for re-election to that office.

Country	Presidential Term Limit	Special Rules
India (IN)	No limit	Any person can become President for unlimited number of times, provided they win each election.
United States (US)	2 terms (8 years)	As per the 22nd Amendment (1951) , no person can serve more than two terms as President.
Russia (RU)	2 consecutive terms, then a break is required	A constitutional amendment in 2021 allows Putin to remain President until 2036 .
China (CN)	No limit (after 2018)	Previously, there was a term limit, but it was removed during Xi Jinping's rule .
Mexico is one of the few countries in the World where the President can be elected only once (6 years).		

Article 58 :- Qualifications for Election as President

A person can become the President of India only if they meet the following conditions:

1. Eligibility Criteria:

- (a) Must be a citizen of India.
- (b) Must be at least 35 years old.
- (c) Must be qualified to become a Member of Lok Sabha.

2. Disqualification: A person cannot become President if they hold any office of profit under:

- The Government of India.
- The Government of any State.
- Any local or other authority controlled by the government.

3. Exception: The following people can still contest the election, as their positions are not considered "offices of profit":

- The current President or Vice-President.
- A Governor of any State.
- A Union or State Minister.

What is an "Office of Profit"?**{For Mains}**

The term "Office of Profit" is not explicitly defined in the Indian Constitution, but it generally refers to a position that brings financial gain, advantage, or benefit from the government. The concept ensures that politicians remain independent and are not influenced by the executive, allowing them to perform their constitutional duties impartially.

Key Features of an Office of Profit:

1. **Position Held Under Government:** The person should hold an office under the central, state, or local government.
2. **Financial Benefit:** The office should provide some kind of monetary benefit like salary, allowances, or perks.
3. **Government Control:** The government should have some role in appointment, removal, or control over the powers of the office.
4. **No Constitutional Exemption:** If the Constitution exempts a certain post (like the President, Governor, or Ministers), it is not considered an "Office of Profit".

Supreme Court's Interpretation of "Office of Profit" ⇒

The Supreme Court has ruled in various cases has held that whether a position is an "office of profit" depends on multiple factors, not just on salary. Some key cases include:

1. Jaya Bachchan vs Union of India (2006)

- **Issue:** Jaya Bachchan, a Rajya Sabha MP, was disqualified for holding the post of Chairperson of UP Film Development Corporation, which was considered an "office of profit".
- **Supreme Court Decision:** The court ruled that if a person holds a government position with monetary benefits, they are disqualified.
 - Jaya Bachchan was disqualified under Article 102(1)(a) (for MPs) and Article 191(1)(a) (for MLAs).

2. S. Raghubir Singh Gill vs S. Gurcharan Singh Tohra (1980)

- **Issue:** Whether a person holding a government position without any salary but with perks is disqualified.
- **Supreme Court Decision:** Even if no salary is given, other benefits (like accommodation, staff, transport, etc.) make it an "office of profit".

3. CM of Delhi Case (2018) – AAP MLAs Disqualification

- **Issue:** 20 Aam Aadmi Party (AAP) MLAs were appointed as Parliamentary Secretaries by the Delhi Government.
- **Election Commission Decision:** It ruled that Parliamentary Secretaries hold an "office of profit" and recommended disqualification.
- **Delhi High Court Verdict:** The disqualification was overturned as the MLAs had not been given specific financial benefits at the time of holding the post.

Article 59 :- Conditions of the President's Office

1. **No Dual Membership:** The President cannot be a member of **Parliament** or any **State Legislature**. If an elected MP or MLA becomes President, their seat automatically becomes **vacant**.
2. **No Other Job:** The President **cannot hold any other office** that gives financial benefits (office of profit).
3. **Official Residence & Benefits:** The President gets to **live in the official residence for free** and receives a **emoluments, allowances, and privileges** decided by Parliament (as per the Second Schedule).
4. **Fixed Salary:** Once decided, the **President's emoluments and allowances cannot be reduced** during the term.



- ★ **Eligibility (Article 58):** The rules for determining who can contest the election for the office of the President.
- ★ **Conditions (Article 59):** Rules to determine **how the President should act** after assuming office.

Salary of President

The **President's salary** is determined under **Article 59** of the **Constitution** and the **President's Emoluments Act, 1951**.

- The **current salary** is **₹5,00,000 per month** (effective from **2018**).
- At the time of implementation of the Constitution, the salary of the President was **₹ 10,000 per month**,
 - **1998:** ₹ 50,000 Per month
 - **2008:** ₹ 1,50,000 Per month
 - **2018:** ₹ 5,00,000 Per month

Even **after the tenure**, the **President receives a pension and other benefits**.

Is it taxable ?

- The President's salary is taxable under the Income Tax Act.
- The Indian government pays the tax on their behalf.
- The President does not personally pay tax, but their salary is not officially exempt from taxation.

Article 60:- Oath or affirmation by the President

Before taking office, every person elected as the President must take an **oath or affirmation** in the presence of the **Chief Justice of India** (or, if unavailable, the senior-most Judge of the Supreme Court).

Official Oath (as per the Constitution):

"I, [Name], do swear in the name of God /solemnly affirm that I will faithfully execute the office of the President (or discharge the functions of the President) of India, and will to the best of my ability preserve, protect, and defend the Constitution and the law and that I will devote myself to the service and well-being of the people of India."

1. **Preserve** – To maintain and uphold the Constitution as it is.
 - Ensuring that the Constitution remains unchanged and intact.
 - Example: Following constitutional provisions and not allowing any unconstitutional actions.
2. **Protect** – To guard the Constitution from harm, threats, or violations.
 - Preventing any actions that could weaken or undermine the Constitution.
 - Example: Resisting unconstitutional amendments or misuse of power.
3. **Defend** – To actively fight against attacks or violations of the Constitution.
 - Taking a stand against forces that try to weaken democracy or break constitutional laws.
 - Example: Intervening if someone tries to overthrow democracy or violate fundamental rights.

Article 61 :- Procedure for impeachment of the President.

The President can be removed from office through the process of impeachment for "**violation of the Constitution**."

1. Initiation of Impeachment

- A motion for impeachment against the President can be introduced in either House of Parliament (Lok Sabha or Rajya Sabha).

2. Process of Charge Framing

- The notice must be signed by at least one-fourth (1/4) of the total members of that House.
- A 14-day prior written notice must be given.
- The resolution must be passed by a two-thirds (2/3) majority of the total members of that House.

3. Investigation Process

- After the motion is passed, the other House will investigate the charges.
- The President has the right to appear and defend himself.

4. Final Decision & Removal Procedure

- If the second House also passes the resolution with a two-thirds (2/3) majority, then:
- The President is considered removed from office.
- His office becomes vacant from the date the resolution is passed.

➤ Important Facts

1. The term "violation of the Constitution" is not clearly defined in the Constitution.
2. "Impeachment" is a process used only for the removal of the President.
3. It is a quasi-judicial process (involving both legal and legislative procedures).
4. In India, impeachment proceedings have never been initiated against the President, whereas in America, impeachment proceedings have been initiated thrice.

Process	Nominated MPs (Rajya Sabha/Lok Sabha)	Elected MPs (Rajya Sabha/ Lok Sabha)	Elected MLAs (State Legislative Assemblies)
Presidential Election (Article 54 & 55)	Do not participate	Participate	Participate
Removal of President (Impeachment) (Article 61)	Participate	Participate	Do not participate

Difference between removal procedure of president of USA and India {For Mains}

Aspect	India (Article 61 - Impeachment Process)	United States (Impeachment Process)
Official Process	Impeachment	Impeachment
Legal Basis (Reason)	Only for violation of the Constitution	Treason, bribery, or other high crimes & misdemeanors
Parliamentary Houses Involved	Both houses (Lok Sabha & Rajya Sabha) participate in the process	Both houses (House of Representatives & Senate) participate in the process
Initiation of Process	A motion is introduced in either house (Lok Sabha or Rajya Sabha) with the support of at least 1/4th of the members	A simple majority in the House of Representatives passes the impeachment resolution
Investigation & Hearing	A second house conducts an investigation or an inquiry is held	The Senate conducts a trial (Chief Justice of Supreme Court presides)
Voting for Removal	The resolution must be passed by a 2/3rd majority in both houses	The Senate must pass it with a 2/3rd majority to remove the President
Role of State Legislatures	No role	No role
How many Presidents removed in history?	No Indian President has been removed through impeachment	No U.S. President has been removed through trial, but some (Andrew Johnson, Bill Clinton, Donald Trump) have been impeached by the House but not removed by the Senate

Key Difference

Feature	India (Borrowed from Ireland)	USA
Grounds for Impeachment	Violation of the Constitution	High crimes & misdemeanors
Process	Both Houses (LS & RS) pass with a two-thirds majority	House votes (majority), Senate holds a trial (two-thirds)
Complexity	More difficult	Easier to start, but Senate trial needed
Final Decision Maker	Parliament (both Houses)	Senate after trial

- **Conclusion:** India's **impeachment** process is majorly inspired by **Ireland**, with some procedural influences from the **U.S.**
{If either of the two is in the option then Ireland is correct. Otherwise both}

Article 62: Time of holding election to fill vacancy in the office of President.

1. **Regular Election:** When the President's **5-year term** is about to end, the election for the **next President must be completed before the current term expires.**
2. **Election in Case of Vacancy:** If the President's position **becomes vacant due to death, resignation, removal, or any other reason**, a new election **must be held as soon as possible, but definitely within 6 months** from the vacancy date.
3. **Term of the New President:** The newly elected President will **serve a full term of 5 years** from the date he/she assumes office, **not just the remaining period of the previous President.**

Vice-President

The position of Vice President in India has been established to maintain political continuity.

- The second-highest constitutional office in India.
- No formal responsibilities associated with this position.
- The Vice President can be re-elected, but the Constitution does not explicitly mention it.

Example: Dr. Sarvapalli Radhakrishnan and Md. Hamid Ansari were elected Vice President twice.

Article 63:- There shall be a Vice President of India.**Article 64:- Vice President as Chairman of the Rajya Sabha**

- The Vice President is ex officio Chairman of the Rajya Sabha (Council of States).
- He cannot hold any other government job (office of profit) while in office.
- If the Vice President takes over as Acting President (under Article 65), he stops being the Chairman of the Rajya Sabha during that period.
- During this time, he will not receive the salary or allowances meant for the Chairman of the Rajya Sabha (as per Article 97).

Article 65:- Vice President as Acting President

- If the President's office becomes vacant due to death, resignation, removal, or any other reason, the Vice President will act as the President until a new President is elected and takes office.
- If the President is temporarily unable to perform duties due to absence, illness, or any other reason, the Vice President will take over the President's responsibilities until the President resumes office.
- While acting as President, the Vice President will have all powers and privileges of the President and will receive the same salary, allowances, and benefits as determined by Parliament. Until Parliament decides otherwise, the benefits listed in the Second Schedule will apply.

Similarities Between the Vice President of India & the USA

Feature	India	USA
Second-highest constitutional position	✓	✓
Presides over the Upper House of Parliament	✓ (Rajya Sabha)	✓ (Senate)
Elected position	✓ (Elected indirectly by MPs)	✓ (Elected indirectly through Electoral College)
Can serve multiple terms	Yes	Yes (No limit)
Has no regular legislative vote	✓ (Only votes in case of a tie)	✓ (Only votes in case of a tie)
Can be removed by the Parliament.	✓	✓

Key Differences Between the Vice President of India & the USA

Aspect	India	USA
Executive Role	No real executive powers, except when acting as President.	Actively involved in governance and serves as the President's key advisor.
Election Process	Elected separately from the President by MPs.	Runs on the same ticket as the President and is elected through the Electoral College.
Legislative & Executive Involvement	Serves primarily as the Chairman of Rajya Sabha, with no executive role.	Has responsibilities in both legislative (Senate) and executive (advising the President) functions.

Article 66:- Election of the Vice President

- The Vice President is elected by MPs from both Houses of Parliament (Lok Sabha & Rajya Sabha) using the proportional representation system with a single transferable vote. Voting is done by secret ballot.
- The Vice President cannot be a member of Parliament or a State Legislature. If an MP or MLA is elected as Vice President, they must resign from their seat on the day they take office.
- To be eligible for election as Vice President, a person must:
 - Be a citizen of India
 - Be at least 35 years old
 - Be eligible to be a member of the Rajya Sabha
- A person cannot become Vice President if they hold a government job (office of profit) under:
 - The Central Government
 - Any State Government
 - Any local authority under government control

The 11th Amendment (1961) changed the Vice President's election process by removing the need for a joint sitting of Parliament. Instead, MPs of both Houses vote separately using the proportional representation system with a single transferable vote. This made the process simpler and more efficient.

➤ Members of state assembly /council do not participate in election of vice president

General guidelines for election of vice president as per act 1952 and rules 1974

Election Supervision: Election Commission appoints the Secretary General of Lok Sabha/Rajya Sabha as Returning Officer (RO) on a rotational basis. (2022 – Secretary General of Lok Sabha)

- Assistant Returning Officers (AROs) assist in conducting elections at Parliament House (Room No. 63, 1st Floor, New Delhi).

Nomination Process: Candidates must submit nomination papers in New Delhi during office hours.

- Each nomination requires 20 proposers and 20 seconders (MPs only).
- A candidate can file up to four nomination papers.
- A security deposit of ₹15,000 must be submitted.

Voting Process: Voting is done in Parliament House using a secret ballot.

- Ballot papers must be folded and inserted into the ballot box. (WHITE COLOR)
- Political parties cannot issue a whip to MPs for this election.

Article 67:- Term of Office and Removal of the Vice President

- The Vice President serves a term of five years from the date of assuming office.
- The Vice President can leave office before completing the term in two ways:
 - a. **Resignation:** By submitting a written resignation to the President.
 - b. **Removal:** by a resolution passed by the Rajya Sabha with an effective majority and agreed to by the Lok Sabha. A prior notice of 14 days must be given before introducing such a resolution.
 - c. Even after the completion of the five-year term, the Vice-President continues to hold office until a successor assumes charge.

Difference between the process of removal of various important officials

	Presidential Impeachment (Article 61)	Vice President (Article 67)	Lok Sabha Speaker/ Deputy Speaker (Article 94)	SC/HC Judge CAG/CEC (Article 124)
Basis	Violation of the Constitution (Not defined)	Not mentioned	Not mentioned	Incapacity and misbehavior
Motion/ Proposal	Lok Sabha/Rajya Sabha ↓ 1/4 members' signatures	Can only be introduced in Rajya Sabha	Can only be introduced in Lok Sabha	Lok Sabha/Rajya Sabha anywhere • Lok Sabha - 100 - members' signatures • Rajya Sabha - 50 - members' signatures
Notice	14 days prior	14 days	14 days	-
First House	• Framing of charges • Passed by 2/3 majority of total members	• Chairperson does not preside during discussion • Participates in the process. • Cannot vote • Motion passed by effective majority in Rajya Sabha	• Presiding officer does not remain at the time of the motion. • Participates in the process. • Can vote (but not casting vote) • Lok Sabha - effective majority	• Chairman/Speaker- may accept or not. • Inquiry committee i. CJI/SC senior-most judge ii. HC-CJ iii. Distinguished jurist
Second House	• Conducts an inquiry into the charges. • If found guilty in the inquiry, passed by 2/3 majority of total members.	• Lok Sabha - Simple majority	• Rajya Sabha - does not participate	• Special majority in both Lok Sabha and Rajya Sabha
	• Quasi-judicial process			• Removed by the President.

Recent Developments

- On **December 10, 2024**, the opposition INDIA bloc submitted a notice to remove **Vice President Jagdeep Dhankhar** from office, accusing him of being "**explicitly partisan**" in his conduct as the Chairman of the Rajya Sabha. However, this motion was rejected on **December 19, 2024**, by the Deputy Chairman of the Rajya Sabha. The rejection was based on procedural grounds, including the absence of the mandatory 14-day notice and errors in the spelling of Mr. Dhankhar's name.
- Vice President Dhankhar responded to the motion, criticizing it as a "**rusted knife**" and highlighting the alleged haste in its filing.
It's important to note that no Vice President in India's history has ever been removed from office through this procedure. motion to remove Vice President Jagdeep Dhankhar marks the **first time in India's history** that such an action has been initiated against a Vice President



Do You Know ?

- On 21st July 2025, Vice President Jagdeep Dhankhar submitted his resignation to the President, and on 22nd July, a notification was issued by the Ministry of Home Affairs.

Role of the Ministry of Home Affairs: The Ministry of Home Affairs examines;

- Whether the resignation is voluntary and genuine.
- Whether it is in proper format and language.
- This is similar to the procedure followed for Governors and other constitutional posts.

Advice to the President : The Ministry of Home Affairs sends a formal file with its recommendation to the President through the Prime Minister's Office (PMO).

Article 68:- Situation of Casual Vacancy

- **Regular Election:** The election for a new Vice President must be completed before the current Vice President's term ends.
- **Election in Case of Vacancy:** If the Vice President's office becomes vacant due to death, resignation, or removal, a new election must be held as soon as possible.
- The newly elected Vice President will serve a full **five-year** term from the date they take office.

Article 69:- Oath of Vice-President.

Comparison of Oath of President and Vice President of India

Aspect	Oath of the President	Oath of the Vice President
Administered By	Chief Justice of India (or senior-most judge of the Supreme Court in absence)	President of India (or a person appointed by the President)
Oath/Affirmation Text	"I, [Name], do swear in the name of God/solemnly affirm that I will faithfully execute the office of the President of India, and will to the best of my ability preserve, protect, and defend the Constitution and the law, and that I will devote myself to the service and well-being of the people of India."	"I, [Name], do swear in the name of God/solemnly affirm that I will bear true faith and allegiance to the Constitution of India as by law established and that I will faithfully discharge the duty upon which I am about to enter."
Key Responsibilities Mentioned	Preserve, protect, and defend the Constitution; Serve the people of India	Bear true faith and allegiance to the Constitution; Discharge duties faithfully

Article 70:-

- If there is a situation not already mentioned in the Constitution regarding who will perform the President's duties, Parliament has the power to make necessary rules for handling it.
- The President (Discharge of Functions) Act, 1969
 - If both the offices of the President and the Vice-President fall vacant, the Chief Justice of India shall discharge the functions of the President.
 - If the office of the Chief Justice is also vacant, the senior-most judge of the Supreme Court shall perform this role.

Historical Example – 1969

- On 20 July 1969, President Dr. Zakir Husain passed away, creating a vacancy.
- Vice President V.V. Giri resigned to contest the Presidential election. As a result, there was no President or Vice President in office.
- Chief Justice of India, Justice Mohammad Hidayatullah, took over as Acting President under the provisions of The President (Discharge of Functions) Act, 1969 and Article 70 of the Constitution.
- He served as Acting President from 20 July 1969 to 24 August 1969, until the newly elected President V.V. Giri assumed office.

Article 71:-

1. **Election Disputes:** If there is any doubt or dispute regarding the election of the President or Vice President, the Supreme Court will decide on the matter, and its decision will be final.
2. **Acts Remain Valid:** If the Supreme Court cancels the election of a President or Vice President, any actions taken by them before the cancellation will still be considered valid.
3. **Parliament's Role:** Parliament has the power to make laws regarding the election process of the President and Vice President.
4. **No Challenge Due to Vacancy:** The election of a President or Vice President **cannot be challenged** just because some seats in the electoral college (MPs & MLAs) were vacant at the time of voting

Presidential and Vice Presidential Election Dispute

Aspect	Presidential Election	Vice-Presidential Election
Constitutional Basis	Article 71 of the Constitution	Article 71 of the Constitution
Statutory Provision	Section 14(1)(i) of the Presidential and Vice-Presidential Elections Act, 1952	Section 14(1)(ii) of the Presidential and Vice-Presidential Elections Act, 1952
Who Can File a Petition?	Any candidate or at least 20 electors joined as petitioners	Any candidate or at least 10 electors joined as petitioners
Where to File?	Supreme Court of India	Supreme Court of India
Time Limit for Filing	Within 30 days of result publication (Section 14(2))	Within 30 days of result publication

Vice-President and their Tenure

S.N.	Vice President	Term	Notable Facts
1	Sarvepalli Radhakrishnan	1952-1962	- First Vice President of India. - Served two consecutive terms. - Later became the 2nd President of India. - Renowned philosopher and educationist; his birthday is celebrated as Teacher's Day in India.
2	Zakir Husain	1962-1967	- First Muslim Vice President. - Noted for his contributions to education and as a cofounder of Jamia Millia Islamia University.

3	Varahagiri Venkata Giri	1967-1969	- Resigned in 1969 to contest the presidential election. - Shortest serving vice President of India. - Served as Acting President upon the death of President Zakir Husain.
4	Gopal Swarup Pathak	1969-1974	- First Vice President not to succeed to the presidency.
5	Basappa Danappa Jatti	1974-1979	- Served as Acting President upon the death of President Fakhruddin Ali Ahmed in 1977. - Held various positions including Chief Minister of Mysore State.
6	Mohammad Hidayatullah	1979-1984	- Former Chief Justice of India. - Also served as Acting President in 1969.
7	Ramaswamy Venkataraman	1984-1987	- Later became the 8th President of India. - Resigned to become president
8	Shankar Dayal Sharma	1987-1992	- Subsequently became the 9th President of India. - Served as the Chief Minister of Madhya Pradesh and Union Minister.
9	Kocheril Raman Narayanan	1992-1997	- First Dalit to become Vice President and later the 10th President of India.
10	Krishan Kant	1997-2002	- First Vice President to die in office. - Actively involved in the Indian freedom struggle and post-independence politics.
11	Bhairon Singh Shekhawat	2002-2007	- First person to be elected Vice President without previously holding any parliamentary position. - Served as the Chief Minister of Rajasthan.
12	Mohammad Hamid Ansari	2007-2017	- Served two consecutive terms. - Former diplomat and Permanent Representative of India to the United Nations. - Also served as Vice-Chancellor of Aligarh Muslim University.
13	Muppavarapu Venkaiah Naidu	2017-2022	- Prior to Vice Presidency, served as Union Minister for Housing and Urban Poverty Alleviation, Urban Development and Information and Broadcasting.
14	Jagdeep Dhankhar	2022 - till 22 July 2025	- Current Vice President - Served as the Governor of West Bengal before becoming Vice President.
15	C.P. Radhakrishnan	Election Result – September 9, 2025 Oath - September 12, 2025	Served as Governor of Maharashtra and Jharkhand. Defeated B. Sudarshan Reddy. Won by 152 votes. Total valid votes = 752 Votes received by NDA = 452 Votes received by UPA = 300 Invalid votes = 15

Question :

1. Name the Vice-Presidents of India who have earlier served as Chief Ministers.(Trick: Vice-Presidents who resigned – Giri (V.V. Giri), Venkat (R. Venkataraman), Jag me (Jagdeep Dhankhar))
2. Mention the Vice Presidents of India who died while in office.

Pardoning Powers in the Indian legal system

This acts as an important check and balance under the Indian judicial system, offering protection against possible judicial errors or excessively harsh punishments. It reflects flexibility and compassion within the otherwise rigid framework of criminal law.

Importance of Pardoning Power: (For Mains)

- It allows the executive to mitigate the severity of punishments awarded by the judiciary.
- It provides a mechanism to rectify potential errors of justice within the legal system.
- It enables addressing extraordinary circumstances or humanitarian grounds based on compassion.

Constitutional Provision Regarding Pardoning Powers:

President's Pardoning Power (Article 72): Article 72 of the Indian Constitution empowers the President to grant pardon, reprieve, respite, remission, or commutation of sentence in the following cases:

- In all cases where the punishment or sentence is by a **Court Martial**.
- In all cases where the punishment or sentence is for an offense against any law relating to a matter to which the executive power of the **Union** extends.
- In all cases where the sentence is a **sentence of death**.

Governor's Pardoning Power (Article 161): Article 161 empowers the Governor to grant pardon, reprieve, respite, or remission of punishment under State laws. However, the pardoning power of the Governor is limited in scope compared to the President.

Type of Power	Definition	Effect	Example/Explanation
Pardon	Complete absolution	Removes sentence, conviction, and all disqualifications	Convict is treated as if never convicted
Commutation	Substitution of punishment	Replaces original punishment with a lighter form	Death sentence changed to life imprisonment
Remission	Reduction of sentence period	Shortens duration without changing the nature of punishment	2-year rigorous imprisonment reduced to 1 year
Respite	Lesser sentence due to special circumstances	Considers specific conditions of the convict	Lighter sentence due to pregnancy or disability
Reprieve	Temporary stay of execution	Postpones carrying out of sentence	Allows time to seek pardon or commutation

Aspect	President's Pardoning Power (Article 72)	Governor's Pardoning Power (Article 161)
Constitutional Provision	Article 72	Article 161
Scope	Extends to all offenses against Union laws	Limited to offenses against state laws only
Court Martial Cases	Can pardon sentences by Court Martial	Cannot pardon sentences by Court Martial
Death Sentences	Can pardon death sentences	Cannot pardon death sentences
Geographical Jurisdiction	Applies across India	Limited to that particular state
Types of Clemency	Pardon, Commutation, Remission, Respite, Reprieve	Pardon, Commutation, Remission, Respite, Reprieve
Advice	Exercised on advice of Union Council of Ministers	Exercised on advice of State Council of Ministers
Judicial Review	Subject to judicial review	Subject to judicial review

Year	Case	Key Ruling
1980	Maru Ram vs Union of India	Pardoning power to be exercised on the advice of the Council of Ministers
1988	Kehar Singh vs Union of India	Power under Article 72 has the widest amplitude and can scrutinize evidence on record
2006	Epuru Sudhakar vs Govt. of A.P.	Exercise of pardoning power is subject to judicial review
2014	Shatrughan Chauhan vs Union of India	Laid down guidelines for dealing with mercy petitions

➤ **Drawbacks to pardon (For Mains)**

1. **Lack of Time Limit**

- There is no fixed time frame for the President to decide on mercy petitions, including those related to death sentences.
- This has resulted in petitions remaining unresolved for years, sometimes over a decade.

2. **Consequences of Delay**

- Prolonged delays in mercy decisions, especially for death row convicts, have been criticized as a denial of justice and a violation of human rights.
- The Supreme Court has ruled that unexplained and excessive delays in deciding mercy petitions can justify commutation of death sentences to life imprisonment.

3. **Key Supreme Court Ruling**

- **Shatrughan Chauhan Case (2014):** The Supreme Court held that **delays of 6-12 years** in deciding mercy petitions, **without valid justification**, could be grounds for commuting a death sentence.

4. **Arguments for Setting a Time Limit**

- Ensures **certainty and closure** for convicts and victims' families.
- Prevents prolonged **mental suffering** for death row prisoners.
- Helps in **timely justice delivery** and avoids indefinite delays.

5. **Arguments Against a Fixed Time Limit**

- Some cases require thorough review due to their complexity.
- Flexibility is needed to consider new evidence or changing circumstances.
- A rigid deadline may lead to hasty decisions in matters of life and death.

6. **Possible Middle Ground**

- Instead of a strict time limit, **guidelines or norms** could be established to ensure **mercy petitions are decided within a reasonable timeframe**, maintaining both **justice and fairness**.

➤ **Criticisms of Pardoning Power (Mains)**

1. **Risk of Misuse** – It may be used not on the basis of merit, but for political gains or to protect influential individuals.
2. **Threat to Legal Principles** – By overriding judicial decisions, it may undermine judicial authority, potentially reducing public trust in the justice system.
3. **Lack of Transparency** – Decisions are often opaque, with little public scrutiny, leading to concerns of bias.
4. **Weakening Judicial Authority** – Pardons may reduce the impact of court verdicts, thereby affecting judicial independence.
5. **Challenge of Balance** – Ensuring fairness between mercy and justice is often difficult.
6. **Risk of Inconsistency** – In the absence of clear guidelines, there may be uneven application in different cases.
7. **Public Perception** – Controversial pardons can damage public faith in the justice system and executive integrity.

➤ **Conclusion (Mains)**

1. **Vital Safeguard** – Protects against judicial errors and ensures mercy in deserving cases.
2. **Need for Prudent Use**– Arbitrary decisions can weaken public trust in justice.
3. **Judicial Review as a Check** – Acts as a mechanism to prevent misuse of the pardoning power.
4. **Need for Transparency** – Essential to ensure balanced use of pardoning power and maintain accountability.
5. **Clear Guidelines Required** – To ensure consistency and objectivity in the exercise of mercy powers.
6. **Federal Structure Reflected** – Different jurisdictions of the President and Governors reflect India's federal nature.
7. **Tool for Justice** – When used wisely, it upholds fairness within the legal system.

Question: The discretion of the President in expediting death sentences is a matter of public debate and is ethically questionable as an example of justice presentation (Himalaya). Should a specific time limit be prescribed for the President to accept or reject such petitions? Analyze. (UPSC-2014)

Article 73: Extent of Executive Power of the Union

- 1(a) **Union's Authority** – The central government's executive power applies to subjects where Parliament can make laws.
 - **Example:** The Union government controls defense, foreign affairs, and atomic energy because Parliament has legislative power over these subjects.
- 1(b) **International Rights** – The Union also exercises authority derived from treaties or international agreements.
 - **Example:** If India signs a trade agreement with another country, the central government enforces the terms, even if it involves economic policies impacting states.
 - State Limitation** – The Union cannot interfere in state matters unless explicitly allowed by the Constitution or a parliamentary law.
 - **Example:** Police and public order are state subjects, so the Union government cannot intervene unless there is President's Rule (Article 356) or national security concerns.
2. **State Continuation** – Until Parliament decides otherwise, states and their officials can continue managing matters even if Parliament has the power to make laws on them.
 - **Example:** Before GST was introduced, states managed their taxation systems, even though Parliament had the power to legislate on indirect taxes.

Article 74: Council of Ministers to Aid and Advise the President1. **Council of Ministers & Prime Minister:**

- There shall be a Council of Ministers, headed by the Prime Minister, to aid and advise the President in the exercise of his functions.
- **President bound to act on advice:** The President shall act in accordance with the advice tendered by the Council of Ministers..
- **Reconsideration of Advice:** The President may require the Council of Ministers to reconsider such advice once.
- After reconsideration, the President shall have to accept the advice tendered thereafter by the Council.

2. **Confidentiality of Advice: Courts cannot question or inquire** about the advice given by Ministers to the President.

- **42nd Constitutional Amendment Act, 1976:** Made it mandatory for the President to act according to the aid and advice of the Council of Ministers.
- **44th Constitutional Amendment Act, 1978:** Added a provision allowing the President to ask the Council of Ministers to reconsider its advice once.

The Indian Constitution mentions the Prime Minister under Article 74, Article 75, Article 78, Article 352.

Article 75: Provisions Related to Ministers**1. Appointment of Ministers:**

- The **Prime Minister is appointed** by the **President**.
- Other **Ministers are appointed** by the **President** on the **advice of the Prime Minister**.

(1A) Limit on the Number of Ministers (91st Amendment Act, 2003): The total number of Ministers, including the Prime Minister, cannot exceed 15% of the total members of the Lok Sabha (House of the People).

Minimum Limit:

- There is no explicit minimum limit specified in the Constitution for the Union Council of Ministers. Theoretically, it could be as small as one (the Prime Minister alone), though in practice, it is larger to manage various portfolios.
- But there is limit of minimum ministers in state assembly Provided that the number of Ministers, including the Chief Minister in a State shall not be less than twelve (article 164 (1)A)

(1B) Disqualification of Ministers (91st Amendment Act, 2003):

- A **disqualified MP (under the Anti-Defection Law – Tenth Schedule)** cannot be appointed as a **Minister** until:
- Their disqualification period ends, or
- They contest and win a fresh election before their term expires.

2. Tenure of Ministers: Ministers hold office **at the pleasure of the President** (can be removed anytime by the President on the advice of the Prime Minister).

3. Collective Responsibility:

- The Council of Ministers is collectively responsible to the Lok Sabha (House of the People).
- If the Lok Sabha passes a no-confidence motion, the entire Council of Ministers must resign.

4. Oath of Office & Secrecy:

- Before taking charge, Ministers must take an oath of office and secrecy before the President, as per the Third Schedule of the Constitution.

5. Non-MP Ministers (Temporary Tenure Rule): A person can become a Minister without being an MP, but they must become a member of either House of Parliament within six months, or else they cease to be a Minister.

- **S.P. Anand vs H.D. Devegoda Case (1997):** The constitutional validity of appointing a non-member as a minister (or Prime Minister) for a period of six months was upheld in this case.
- **S.R. Chaudhuri vs Punjab state case (2001):** The scope of such appointments was restricted by prohibiting the reappointment of a non-member as a minister after the expiry of the six-month period without getting elected.

6. Salaries & Allowances of Ministers:

- Parliament decides the salaries and allowances of Ministers.
- Until Parliament makes a law, salaries are provided in the Second Schedule of the Constitution.

Union Council of Ministers (CoM):

- The Union Council of Ministers (CoM) is the core of the **executive branch** of the Indian government. It wields significant influence in shaping national policies and ensuring their implementation, serving as the country's primary decision-making body.
- It is a central body within the executive branch of the Union Government. It functions as the true executive authority under India's parliamentary system, as outlined in the Constitution. The Council serves as the **main advisory body** to the President of India.

➤ Responsibility of the Council of Ministers**1. Collective Responsibility (Article 75)**

- The entire Council of Ministers is collectively responsible to the Lok Sabha.
- If a no-confidence motion is passed, all ministers must resign.
- All ministers must support cabinet decisions; those who disagree should resign.

2. Individual Responsibility (Article 75)

- A minister holds office during the pleasure of the President.
- The Prime Minister may ask a minister to resign or advise the President to remove them.
- It ensures unity within the cabinet.

Salary and Allowance of Ministers-

Aspect	Details
Determining Authority	Parliament of India
Oath of Office	Article 75(4), Third Schedule (Form I)
Oath of Secrecy	Article 75(4), Third Schedule (Form II)
Administered by	President of India

Article 77: Conduct of Business of the Government of India

1. **Executive Actions in the name of the President**– All executive actions of the Government shall be expressed to be taken in the name of the President.
2. **Authentication of Orders** – Orders and instruments made and executed in the name of the President shall be authenticated as per rules specified by the President. Once authenticated, their validity cannot be questioned on the ground of non-authentication.
3. **Rules for Governance** – The President shall make rules for the convenient transaction of business and allocation of work among the ministers.

Under Article 77, the Government of India (Allocation of Business) Rules, 1961 were framed, which classify ministers into four broad categories:

1. Cabinet Ministries

- The **highest-ranking ministers**, including the **Prime Minister**.
- They **head major ministries** like Home, Finance, Defence, and External Affairs.
- Have **collective decision-making authority** in the Cabinet.

2. Minister of State (Independent Charge)

- **Not attached to any Cabinet Minister** but heads a specific ministry.
- Can take independent decisions **without needing approval from a Cabinet Minister**.
- Examples: Ministries like **Youth Affairs & Sports, Skill Development**, etc.

3. Minister of State (MoS)

- **Junior ministers assisting a Cabinet Minister** in a specific department.
- Works under the guidance of the Cabinet Minister.
- Example: **Minister of State for Home Affairs** works under the **Home Minister**.

4. Deputy Ministers (Rarely Appointed)

- They **assist Cabinet or State Ministers in their work**.
- They do not hold independent charge of any department.
- Generally not appointed in the current administration.

Aspect	Cabinet Ministers	Ministers of State	Ministers of State with Independent Charge
Rank	Highest-ranking ministers	Junior to Cabinet Ministers	Intermediate between Cabinet Ministers and regular Ministers of State
Role	Head important ministries/departments	Assist Cabinet Ministers	Head smaller ministries/departments independently
Decision-making power	Significant authority in policy decisions	Limited decision-making power	Significant authority within their ministry, but not at Cabinet level
Cabinet membership	Full members of the Cabinet	Not members of the Cabinet	Not members of the Cabinet, but may be invited for relevant discussions
Reporting structure	Report directly to the Prime Minister	Report to and assist Cabinet Ministers	Report directly to the Prime Minister

➤ **Difference between Council of Ministers & Cabinet-**

Aspect	Council of Ministers	Cabinet
Definition	The larger body that includes all ministers (Cabinet, Ministers of State, and Deputy Ministers).	The core decision-making body within the Council of Ministers.
Composition	Includes Cabinet Ministers, Ministers of State (with and without independent charge), and Deputy Ministers.	Includes only Cabinet Ministers.
Constitutional Reference	The term "Council of Ministers" is used multiple times in the Constitution.	The term "Cabinet Council" appears only once in Article 352 , introduced by the 44th Constitutional Amendment .

- **Kitchen Cabinet:** The Kitchen Cabinet refers to an informal group of close advisors and confidants of the Prime Minister. These individuals may not hold official ministerial positions but influence key decisions.
- **Shadow Cabinet:** The Shadow Cabinet is a feature of parliamentary systems, particularly in the UK. It consists of opposition leaders who "shadow" government ministers, scrutinizing policies and presenting alternative governance plans. India does not have a formal shadow cabinet system.

Article 78- Duties of the Prime Minister

- Communication with the President:** The Prime Minister must inform the President about all decisions of the Council of Ministers.
- Providing Information:** The Prime Minister is obligated to furnish information regarding:
 - Administration of affairs
 - Proposals for legislation, whenever requested by the President.
- Council of Ministers' Opinion:** If the President requires the opinion of the Council of Ministers on any matter in which a decision has already been taken by a Minister but has not been considered by the Council, then the Prime Minister shall present it before the Council of Ministers for its consideration.

Prime Minister's Office (PMO)

- PMO is the staff agency that assists the Prime Minister in the discharge of his daily duties.
- It is a non-constitutional but highly important executive office.
- It formally came into existence in 1947 as the Prime Minister's Secretariat.
- In 1977, it was renamed as the Prime Minister's Office (PMO).

➤ **Headed by**

- Principal Secretary to the Prime Minister (P.K. Mishra).**
- The PMO includes the Principal Secretary, National Security Advisor, Additional Secretaries, Deputy Secretaries, and other officials. Their rank is equivalent to Cabinet Ministers. **Location** - New Delhi.

➤ **Functions****It assists the Prime Minister in the following:**

- Policy formulation and inter-ministerial coordination.
- Monitoring key programmes/schemes.
- Handling appointments and administrative responsibilities.
- Managing communication between the Prime Minister and the President as well as Parliament.
- Representing the Prime Minister on national and international issues.

PMO functions as the nerve center of the Indian executive authority.

Prime Ministers of India

No.	Name	Tenure	Special Notes
1.	Jawaharlal Nehru	15.08.1947 - 27.05.1964	First PM, longest-serving PM, died in office.
2.	Gulzarilal Nanda (Interim)	27.05.1964 - 09.06.1964	First acting PM.
3.	Lal Bahadur Shastri	09.06.1964 - 11.01.1966	Died in Tashkent, Gave slogan "Jai Jawan, Jai Kisan".
4.	Gulzarilal Nanda (Interim)	11.01.1966 - 24.01.1966	Second time acting PM.
5.	Indira Gandhi	24.01.1966 - 24.03.1977	First woman PM, imposed Emergency (1975).
6.	Morarji Desai	24.03.1977 - 28.07.1979	First non-Congress PM, ended Emergency.
7.	Charan Singh	28.07.1979 - 14.01.1980	Shortest tenure PM who never faced Parliament.
8.	Indira Gandhi	14.01.1980 - 31.10.1984	Assassinated during office.
9.	Rajiv Gandhi	31.10.1984 - 02.12.1989	Youngest PM (at 40 years).
10.	Vishwanath Pratap Singh	02.12.1989 - 10.11.1990	Implemented Mandal Commission report.
11.	Chandra Shekhar	10.11.1990 - 21.06.1991	
12.	P.V. Narasimha Rao	21.06.1991 - 16.05.1996	Introduced economic liberalization.
13.	Atal Bihari Vajpayee	16.05.1996 - 01.06.1996	Shortest tenure PM (13 days).
14.	H.D. Deve Gowda	01.06.1996 - 21.04.1997	from rajyasabha.
15.	Inder Kumar Gujral	21.04.1997 - 19.03.1998	from rajyasabha.
16.	Atal Bihari Vajpayee	19.03.1998 - 13.10.1999	First non-Congress PM to complete 5 years..
17.	Atal Bihari Vajpayee	13.10.1999 - 22.05.2004	
18.	Manmohan Singh	22.05.2004 - 22.05.2009	
19.	Manmohan Singh	22.05.2009 - 26.05.2014	First Sikh PM
20.	Narendra Modi	26.05.2014 - 30.05.2019	First PM born after Independence
21.	Narendra Modi	30.05.2019 - 09.06.2024	First non-Congress PM with two full terms..
22.	Narendra Modi	09.06.2024 - Present	Third consecutive term as PM

➤ Prime Ministers Who Have Served as Chief Ministers

Name	State
Morarji Desai	Bombay State
Chaudhary Charan Singh	Uttar Pradesh
V.P. Singh	Uttar Pradesh
P.V. Narasimha Rao	Andhra Pradesh
H.D. Deve Gowda	Karnataka
Narendra Modi	Gujarat

➤ Prime Ministers who is selected from Rajya Sabha Seat

Name	Year	State (Rajya Sabha Seat)
Indira Gandhi	1966	Uttar Pradesh
H.D. Deve Gowda	1996	Karnataka (he was not a member of either houses initially)
Inder Kumar Gujral	1997	Bihar
Manmohan Singh	2004, 2009	Assam

➤ Bharat Ratna Awardee Prime Ministers of India

Name	Year
1. Pt. Jawaharlal Nehru	1955
2. Lal Bahadur Shastri	1966
3. Indira Gandhi	1971
4. Rajiv Gandhi	1991
5. Morarji Desai	1991
6. Gulzarilal Nanda	1997 (Posthumous, Acting PM)
7. Atal Bihari Vajpayee	2015
8. Charan Singh	2024
9. P.V. Narasimha Rao	2024

➤ list of Indian Prime Ministers who died while in office:

1.	Jawaharlal Nehru	27 May 1964 (Natural causes)
2.	Lal Bahadur Shastri	11 January 1966 (Heart attack in Tashkent)
3.	Indira Gandhi	31 October 1984 (Assassinated by her bodyguards)

Other Important Facts

- Gulzarilal Nanda was the first Acting Prime Minister of India.
- He is the only Acting Prime Minister who served twice but was never appointed as a full-time Prime Minister.
- Indira Gandhi was the first woman Prime Minister of India.
- Morarji Desai became Prime Minister at the age of 81, making him the oldest person to become Prime Minister.
- Rajkumari Amrit Kaur was the first woman to hold the position of Cabinet Minister.
- Syama Prasad Mukherjee was the first minister to resign from the Union Cabinet.
- Morarji Desai was the only Prime Minister of India to be sworn in by Acting President B.D. Jatti.
- Visva-Bharati University (West Bengal) is the only Central University whose Chancellor is the Prime Minister of India.
- Jagjivan Ram had the longest tenure as a Cabinet Minister in India, serving for over 30 years.
- Jawaharlal Nehru served the longest term as Prime Minister. Jawaharlal Nehru served the longest uninterrupted term as Prime Minister.

➤ Prime Ministers with Longest Tenures:

- (1) Jawaharlal Nehru (2) Indira Gandhi
(3) Narendra Modi

➤ PMs who took oath three times:

- ✓ Jawaharlal Nehru ✓ Indira Gandhi
✓ Atal Bihari Vajpayee ✓ Narendra Modi

➤ Deputy Prime Minister of India

1. **First Deputy Prime Minister** – Sardar Vallabhbhai Patel (1947–1950), served the **longest tenure** as Deputy PM.
2. **Only person to serve twice as Deputy PM** – Chaudhary Devi Lal (1989–1990, 1990–1991).
3. **Deputy Prime Ministers who later became Prime Ministers** –
 - Chaudhary Charan Singh (1979)
 - Morarji Desai (1977)
4. **Last Deputy Prime Minister of India** – Lal Krishna Advani (2002–2004).
5. **Deputy Prime Minister's role** – The position is **not constitutionally mandated**; it is created at the discretion of the Prime Minister.
6. **Participation in Cabinet meetings** – The Deputy Prime Minister **does not automatically** have executive powers unless assigned a portfolio.
7. **Number of Deputy Prime Ministers so far** – Seven individuals have held the position.

➤ List of Deputy Prime Ministers of India

Name	Tenure Period	Prime Minister Under Whom Served	Remarks (Editable)
Sardar Vallabhbhai Patel	1947-1950	Jawaharlal Nehru	first deputy prime minister and longest period
Morarji Desai	1967-1969	Indira Gandhi	
Charan Singh	1977-1979	Morarji Desai	
Jagjivan Ram	1977-1979	Morarji Desai	
Yashwantrao Chavan	1979-1980	Charan Singh	
Chaudhary Devi Lal	1989-1990	V.P. Singh	only person who became Deputy prime minister for twice
Chaudhary Devi Lal	1990-1991	Chandra Shekhar	
Lal Krishna Advani	2002-2004	Atal Bihari Vajpayee	

Article 88 - Rights of Ministers and Attorney-General in Parliament

1. **Right to Speak in Both Houses:** Ministers and the Attorney-General have the right to **speak in either the Lok Sabha or the Rajya Sabha**.
 2. **Participation in Proceedings:** They can participate in:
 - Sessions of either House
 - Joint sittings of Parliament
 - Parliamentary Committees, if they are members.
 3. **Voting Rights:** They cannot vote unless they are members of the respective House.
- **Significance:** Ensures that **Ministers and the Attorney-General** can actively engage in legislative discussions, **even if they are not elected members** of a House.

Article 76: Attorney-General for India

- The President shall appoint a person who is qualified to be appointed a Judge of the Supreme Court to be Attorney-General for India
- **Advocate General vs Attorney General**

Attorney General of India (Article 76)		Advocate General of State (Article 165)	
He is the chief legal advisor to the Central Government.		He is the chief legal advisor to the State Government.	
Appointed by	By the President (Art. 76(1)) on the advice of the Council of Ministers.	By the Governor (Art. 165(1))	
Qualification	Same as that of a Judge of the Supreme Court (Art. 76(1))	Same as that of a Judge of the High Court (Art. 165(1))	
Salary	Decided by the President (Not mentioned explicitly in Article 76, determined by executive discretion)	Decided by the Governor (Not mentioned explicitly in Article 165, determined by executive discretion)	
Tenure	Holds office during the pleasure of the President (Art. 76(4))	Holds office during the pleasure of the Governor (Art. 165(1))	

➤ **Functions**

Attorney General of India		Advocate General of State	
Gives legal advice to the Central Government in legal matters. (Art. 76(2))		Gives legal advice to the State Government in legal matters. (Art. 165(2))	
Appears on behalf of the Central Government in the Supreme Court. (Art. 76(2))		Appears on behalf of the State Government in the High Court. (Art. 165(2))	
Represents the Central Government in legal matters where it is concerned. (Art. 76(2))		Represents the State Government in legal matters where it is concerned. (Art. 165(2))	
Performs legal duties assigned by the President. (Art. 76(2))		Performs legal duties assigned by the Governor. (Art. 165(2))	
Has the right to attend Parliament sessions but cannot vote. (Art. 88)		Has the right to participate in the proceedings of the State Legislature but cannot vote. (Art. 177)	

Note: Unlike the post of the Attorney General of India, which is a constitutional position, the posts of Solicitor General and Additional Solicitor General are neither constitutional nor statutory. They function under the Attorney General.

➤ **List of Attorneys General of India**

Name	Tenure	Important Facts
M. C. Setalvad	1950–1963	- First Attorney General of India - Served for the longest term (13 years)
C. K. Daphtary	1963–1968	- Also served as Solicitor General before
Niren De	1968–1977	- Served during Emergency period
S. V. Gupte	1977–1979	- Handled key cases during Janata Party rule
K. Parasaran	1983–1989	- Later became Rajya Sabha member - Conferred Padma Bhushan
Soli Sorabjee	1989–1990, 1998–2004	- Two terms (under V. P. Singh and Vajpayee) - Strong proponent of civil liberties - Padma Vibhushan awardee
G. Ramaswamy	1990–1992	- Served under multiple PMs during turbulent political transitions
Milon K. Banerji	1992–1996, 2004–2009	- Also had two terms
Ashok Desai	1996–1998	
Goolam E. Vahanvati	2009–2014	- First Muslim to be Attorney General
Mukul Rohatgi	2014–2017	- Appointed by NDA government
K. K. Venugopal	2017–2022	
R. Venkataramani	2022–Present	

Questions**{For Mains}**

Q1. The size of the Council of Ministers should be such that it ensures the efficient functioning of the government. It should be large enough for the Prime Minister to operate it as a team. To what extent does the stability of the government depend on the size of the Council of Ministers? Discuss." (UPSC mains-2014)

Answer :

Aspect	Large Council of Ministers - Drawbacks	Small Council of Ministers - Drawbacks
1	Increases complexity	Increased workload on ministers
2	Difficulty in gathering feedback	Compromises efficiency
3	Coordination problems	Risk of underrepresentation in decision-making (affects social justice)
4	Higher burden on the treasury	Higher chances of power centralization
5	Leads to political favoritism	-
6	Administrative inefficiency	-

Ideal Structure of the Council of Ministers:

To ensure **work efficiency and good governance**, the Council should be:

1. **Limited in size but efficient**
2. **Competent in execution**
3. **Free from unnecessary political favoritism**
4. **Suitable for effective decision-making**
5. **Balanced in representation and accountability**

Q2. How has the Indian government applied the principle of "Maximum Governance, Minimum Government" in recent reforms?

Answer:- The principle of "Maximum Governance, Minimum Government" emphasizes efficient, transparent, and accountable governance with minimal bureaucratic interference. It aims to streamline administrative processes, reduce red tapism, and enhance citizen participation while ensuring effective policy implementation.

1. Administrative Reforms:

- **Simplification of Procedures:** Bureaucratic red-tapism has been reduced through e-governance and digital platforms (e.g., DigiLocker, UMANG App).
- **Mission Karmayogi (2020):** Aims at capacity-building for civil servants with a focus on performance-based governance.
- **Abolition of Interview Process (2016):** Interviews for Group B and C government jobs were removed to reduce subjectivity and corruption.

2. Ministerial Reforms:

- **Merger & Rationalization of Ministries:**
 - Merging of the **Ministry of Railways with the Ministry of Transport** to improve coordination.
 - Merger of **Ministry of Labour & Employment** schemes for simplification and efficiency.
- **Lateral Entry in Bureaucracy:** Allowed domain experts from private sectors to join at Joint Secretary levels to improve decision-making.

3. Digital & E-Governance Reforms:

- **Digital India Initiative:** Expanded online government services to minimize physical interaction and increase transparency (e.g., *MyGov Portal*).
- **Faceless Tax Assessment (2020):** Eliminated human interface in tax scrutiny to prevent corruption and delays.
- **E-Courts Project:** Speeding up justice delivery through virtual hearings.

4. Economic & Regulatory Reforms:

- **Privatization & Disinvestment:** Reducing government's role in businesses by privatizing PSUs (e.g., *Air India privatization*).
- **Labour Law Reforms:** Simplified 44 labor laws into 4 codes for ease of compliance.
- **Scrapping of Outdated Laws:** Repealed over 1,500 obsolete laws to streamline governance.

Conclusion:

Through digital transformation, bureaucratic restructuring, and economic liberalization, the government has taken significant steps toward "**Minimum Government, Maximum Governance**", making administration more efficient, transparent, and citizen-friendly.

Q3. The Attorney General is the chief legal advisor and lawyer of the Government of India." Discuss.

(UPSC Mains – 2019, 250 Words)

1st General Election

- ❖ Conducted from **25th October 1951 to February 1952**.
- ❖ **489 seats** (86 seats were 2 member constituency (1 General Candidate, 1 SC/ST)
 - Seat was three member constituency from west Bengal
- ❖ **Rajasthan had 20 seats**
- ❖ **Total voter turnout was 44.87%.**
- ❖ **India's first voter** - Shyam Sharan Negi (Himachal Pradesh)
- ❖ **Party-wise Performance:**

Political Party	Seats Won	Vote Share
Indian National Congress (INC)	364 - 76% seats	45%
Socialist Party	12	11%
Communist Party of India (CPI)	16	3%

- ❖ **Important Individuals:**
 - First Elected Prime Minister: Jawaharlal Nehru
 - Chief Election Commissioner: **Sukumar Sen** (21 March 1950 – 19 Dec 1958)
- ❖ **Lok Sabha (House of the People):**
 - First Speaker: G.V. Mavalankar
 - Deputy Speaker: M.A. Ayyangar (1952–56)
- ❖ **Speakers Timeline:**
 1. **G.V. Mavalankar** - From 15 May 1952 to 27 Feb 1956 (died in office)
 2. **M.A. Ayyangar (1956–57)**
- ❖ **Deputy Speakers Timeline:**
 1. **M.A. Ayyangar (1952–56)**
 2. **Sardar Hukam Singh (1956–57)**

2nd General Election - 1957

- Total seats 494– impact of first delimitation commission

Political Group	Seats Won	Vote Share
Indian National Congress (INC)	371 – 75% seats	47.78%
Praja Socialist Party (PSP)	19	10.41%
CPI	27	9 %
Independents	42	19.32%

- Independents were the highest of any Indian general election
- Speaker – M.A. Ayyangar 1956–1962
- Deputy Speaker – sardar hukum singh 1956–1962
- Chief Election Commissioner: K. V. K. Sundaram (Succeeded Sukumar Sen in Dec 1958 and remained till 1967 – longest serving Chief Election Commissioner)

3rd General Election - 1962

- ❖ **Selected Parties & Independents – 1962 (3rd Lok Sabha)**

Political Group	Seats Won	Vote Share
Indian National Congress (INC)	361	44.72%
Communist Party of India (CPI)	29	9.94%
Swatantra Party	18	7.89%
Independents	20	11.05%

Prime Ministers

Jawahar Lal Nehru - He represented **Phulpur** in the **1st, 2nd, and 3rd Lok Sabha** (1952, 1957, and 1962).

- He remained in office for **17 years** until his death on **27 May 1964**.
- Nehru holds the record for the **longest-serving Prime Minister** of India to date.

During the **Third Lok Sabha (1962–1967)**, India had **two Prime Ministers** due to the death of Jawaharlal Nehru in 1964 and subsequent political transitions.

Prime Ministers during the Third Lok Sabha (1962–1967)

Name	Term	Remarks
Jawaharlal Nehru	15 August 1947 – 27 May 1964	Died in office during 3rd Lok Sabha
Gulzarilal Nanda	27 May 1964 – 9 June 1964 (<i>Acting</i>)	Served as interim PM after Nehru's death
Lal Bahadur Shastri	9 June 1964 – 11 January 1966	Died in Tashkent (heart attack)
Gulzarilal Nanda	11 January 1966 – 24 January 1966 (<i>Acting</i>)	Second time as interim PM
Indira Gandhi	24 January 1966 – (beyond 3rd LS)	Took over during last year of 3rd Lok Sabha

- The 3rd Lok Sabha saw **four different Prime Ministerial tenures**.
 - **Radhakrishnan** was the **President of India from 14 May 1962 to 13 May 1967**. He was the only president to administer the oath for 4 different prime minister.
 - **Speaker – Sardar Hukum Singh** ○ **Deputy speaker – Krishnamurti Rao**
 - **Voter Turnout: 55.42% – First time turnout crossed 50%**

Fourth General Election - 1967

Total seats - 520

Selected Parties – 1967 (4th Lok Sabha)

Political Party	Vote Share (%)	Seats Won
Indian National Congress (INC)	40.78%	283
Bharatiya Jana Sangh (BJS)	9.31%	35
Swatantra Party	8.67%	44
Communist Party of India (CPI)	5.11%	23

Prime minister – Indira Gandhi

❖ Key Office Holders – Fourth Lok Sabha

Position	Name	Tenure/Remarks
Speaker	Neelam Sanjiva Reddy	Resigned because of president election
	Gurdial Singh Dhillon	8 August 1969 – 27 December 1970
Deputy Speaker	R.K. Khadilkar	1967 – 1969 (resigned after becoming minister)
	G.G. Swell	1969 – 1970 (1971 – 1977 again deputy speaker)
President of India	Dr. Zakir Husain	13 May 1967 – 3 May 1969 (died in office)
	Varahagiri Venkata Giri	Acting President: 3 May 1969 – 20 July 1969
	V.V. Giri	Elected President: 24 August 1969

- G.G.swell - G.G. Swell served as Deputy Speaker during both the 4th and 5th Lok Sabha.
- He holds the record for the longest tenure as Deputy Speaker in Indian parliamentary history.
- He was from Meghalaya, and one of the most respected parliamentarians from the Northeast

❖ Deputy Prime Minister – Fourth Lok Sabha

Name	Tenure	Prime Minister
Morarji Desai	13 March 1967 – 16 July 1969	Indira Gandhi

- Morarji Desai was also the **Minister of Finance** during this period.
- He resigned in **July 1969** due to differences with Indira Gandhi, especially over the nationalization of banks and the presidential election (where Indira supported V.V. Giri against the party's official candidate).

❖ What Makes the 1967 Election Special?

1. End of the One-Party Dominance

- Indian National Congress (INC) faced a **major setback**: won 283 seats (just above majority mark).
- Lost power in 8 states** — a **massive political shift** in Indian democracy.
- Marked the beginning of the **coalition era in Indian states**.

2. Rise of Opposition Parties

- Swatantra Party, Bharatiya Jana Sangh (BJS), and Samyukta Socialist Party (SSP)** gained ground.
- Formation of **coalition governments** in states under the banner of "**Samyukta Vidhayak Dal**" (SVD).

3. First Signs of Intra-Congress Rift

- Power struggle within Congress: Between **Indira Gandhi** and the **Syndicate** (senior Congress leaders).
- This rift **culminated in the 1969 split** of the Congress into:
 - **Congress (O)** – Organisation
 - **Congress (R)** – Requisitionists (led by Indira Gandhi)

4. Rise of Regionalism

- Regional parties like **DMK in Tamil Nadu** gained major traction.
- Marked the beginning of **decline in centralised national dominance** over regional politics.

5. Political Instability Begins

- Several **short-lived coalitions** in states.
- Frequent **president's rule** and **floor-crossings**.
- Laid the foundation for the **anti-defection law (52nd Amendment, 1985)** years later.

The 1967 general election marked a democratic turning point in India — it challenged the Congress hegemony, introduced coalition politics, and opened the gates to a more competitive multi-party system.

After the split, **Congress (R)** didn't have a clear majority on its own. Indira Gandhi's government was **surviving with outside support**, particularly from the **Communist Party of India (CPI)**. So **Fourth Lok Sabha** was dissolved on **27 December 1970**, almost one year before completing its 5-year term.

5th Lok Sabha

❖ Selected Parties – 1971 (5th Lok Sabha)

Political Party	Vote Share (%)	Seats Won
Indian National Congress (R)	43.68%	352
Indian National Congress (Organisation)	10.43%	16
Bharatiya Jana Sangh (BJS)	7.35%	22
Communist Party of India (Marxist)	5.12%	25

This election marked the **landslide victory of Indira Gandhi's Congress (R)**, under the powerful slogan **"Garibi Hatao."**

❖ Speaker of the 5th Lok Sabha (1971–1977):

Name	Tenure
Gurdial Singh Dhillon	22 March 1971 – 1 December 1975
Bali Ram Bhagat	15 January 1976 – 25 March 1977

G.S. Dhillon **resigned voluntarily** because he was **appointed as a minister in the Union Cabinet** – agriculture minister, shortly after his resignation as Speaker.

Deputy speaker – G.G. Swell

❖ Term Extended Beyond 5 Years

- Due to Emergency, the 5th Lok Sabha's term was **extended by 1 year** (via the **42nd Constitutional Amendment**).
- It remained in effect **till March 1977** — total **6 years** instead of 5.

All Parliamentary Terms of Indira Gandhi

House	Constituency/ State	Type	Term	Remarks
Rajya Sabha	Uttar Pradesh	Upper House	1964 – 1967	First entry into Parliament, became information and broadcasting minister. PM in 1966
Lok Sabha	Rae Bareilly (U.P.)	Direct Election	1967 – 1971 (4th LS)	First time elected to Lok Sabha
Lok Sabha	Rae Bareilly (U.P.)	Direct Election	1971 – 1977 (5th LS)	Won in a landslide victory; Emergency declared in 1975
Lok Sabha	Rae Bareilly (U.P.)	Direct Election	1977 (6th LS)	Defeated by Raj Narain after Emergency
Lok Sabha	Chikmagalur (Karnataka)	By-election	1978 – 1980 (7th LS)	Re-entered Parliament after 1977 defeat
Lok Sabha	Medak (Andhra Pradesh)	Direct Election	1980 – 1984 (7th LS)	Became PM again; remained MP till her assassination

6th Lok Sabha, 1977

1977 Indian general election -

Number of seats – 542 (because of 3rd delimitation commission)

❖ Selected Parties – 1977 (6th Lok Sabha)

Political Party	Vote Share (%)	Seats Won
Janata Party	41.32%	295
Indian National Congress (R)	34.52%	154
Communist Party of India (Marxist)	4.29%	22
All India Anna Dravida Munnetra Kazhagam (AIADMK)	2.90%	18

This election marked the **first electoral defeat** of **Indira Gandhi** and brought the **first non-Congress government** to power at the Centre under the **Janata Party**.

❖ Speakers – 6th Lok Sabha

Name	Tenure
N. Sanjiva Reddy	26 March 1977 – 13 July 1977
K. S. Hegde	21 July 1977 – 21 January 1980

- **N. Sanjiva Reddy** was elected Speaker but **resigned** to contest the **Presidential election** in July 1977.
 - He later became the **6th President of India** (1977–1982).
- **K. S. Hegde**, a former judge, succeeded him and served as Speaker till the **end of the 6th Lok Sabha**.

Deputy Speaker: **Godey Murahari**, a senior parliamentarian from **Andhra Pradesh**, served as the **Deputy Speaker** during the **6th Lok Sabha**. He had earlier served as the **Deputy Chairman of Rajya Sabha** too.

❖ Prime Ministers during the 6th Lok Sabha

Prime Minister	Tenure	Remarks
Morarji Desai	24 March 1977 – 28 July 1979	First non-Congress PM , First prime minister who resigned .
Charan Singh	28 July 1979 – 14 January 1980	Formed government with outside support of Congress (I); resigned before trust vote.

- Morarji Desai's government collapsed due to **internal conflicts** within the Janata Party.
- Charan Singh was sworn in as PM but **could not prove majority** in the Lok Sabha.

❖ All Deputy Prime Ministers in the 6th Lok Sabha

Name	Tenure	Prime Minister	Key Portfolios	Remarks
Babu Jagjivan Ram	24 March 1977 – 28 July 1979	Morarji Desai	Defence Minister	Former Congress leader; major figure during 1971 war as Defence Minister
Charan Singh	24 March 1977 – 1 July 1979	Morarji Desai	Home Affairs	Became PM after Morarji Desai's resignation in July 1979
Y.B. Chavan	28 July 1979 – 14 January 1980	Charan Singh	Finance Minister	Appointed as Deputy PM in Charan Singh's short-lived government

❖ **Special Notes:** Both **Charan Singh** and **Jagjivan Ram** served **simultaneously** as **Deputy Prime Ministers** in Morarji Desai's cabinet. The Lok Sabha was **dissolved in August 1979**, leading to fresh elections in 1980.

7th Lok Sabha -1980

❖ Selected Parties – 1980 (7th Lok Sabha)

Political Party	Vote Share (%)	Seats Won
Indian National Congress (Indira)	42.69%	353
Janata Party	18.97%	31
Janata Party (Secular)	9.39%	41
Communist Party of India (Marxist)	6.24%	37

Position	Name	Tenure
Speaker	Balram Jakhar	22 January 1980 – 15 January 1985

- Re-elected as Speaker in the 8th Lok Sabha as well (1984–1989), making him longest-serving Speaker.
- Balram Jakhar holds the distinction of being the first Speaker of Lok Sabha to have contested and won from two Lok Sabha constituencies simultaneously. Ferozepur and Sikar. After winning both, he retained Sikar (Rajasthan) and vacated Ferozepur (Punjab).
- Deputy Speaker - G. Lakshmanan, 1980-84

8th Loksabha - 1984

Political Party	Vote Share (%)	Seats Won
Indian National Congress (Indira)	49.10% (82% seats won – highest ever)	404
Bharatiya Janata Party (BJP)	7.74%	2
Janata Party	6.89%	10
Lok Dal	5.97%	3
Communist Party of India (Marxist)	5.87%	22
Telugu Desam Party (TDP)	4.31%	30

- This election marked a historic landslide for Congress (I) under Rajiv Gandhi, after the assassination of Indira Gandhi.
- TDP emerged as the first regional party to become the main opposition party in the Lok Sabha (by seat count).
- Prime minister – Rajiv Gandhi, Rajiv Gandhi became PM at the age of 40, making him the youngest elected Prime Minister of India.
- Speaker – Balram Jharkhar
- Deputy Speaker – M. Thumbi Durai

9th Loksabha-1989

❖ Selected Parties – 1989 (9th Lok Sabha)

Political Party	Vote Share (%)	Seats Won
Indian National Congress (Indira)	39.53%	197
Janata Dal	17.79%	143
Bharatiya Janata Party (BJP)	11.36%	85
Communist Party of India (Marxist)	6.55%	33

❖ 9th Lok Sabha (1989–1991) Prime Ministers

Prime Minister	Tenure	Party
Vishwanath Pratap Singh	2 Dec 1989 – 10 Nov 1990	Janata Dal (supported by BJP and Left)
Chandra Shekhar	10 Nov 1990 – 21 June 1991	Samajwadi Janata Party (minority govt supported briefly by Congress)

❖ Lok Sabha Speaker

Speaker	Tenure
Rabi Ray	19 Dec 1989 – 9 July 1991

- Rabi Ray was a senior leader from **Janata Dal**, known for his **non-partisan and disciplined conduct** as Speaker.

❖ Deputy Speaker

Deputy Speaker			Tenure
Shivraj Patil			19 March 1990 – 13 March 1991
Deputy Prime Minister in the 9th Lok Sabha			
Name	Tenure	Prime Minister	
Devi Lal	2 Dec 1989 – 1 Aug 1990	V. P. Singh	
	10 Nov 1990 – 1 Aug 1991	Chandra Shekhar	
- Devi Lal was Deputy Prime Minister in both V.P. Singh's and Chandra Shekhar's governments. He was agriculture minister - In the 1989 general election, Devi Lal contested from three Lok Sabha constituencies: - Rohtak (Haryana) - Sikar (Rajasthan) - Farrukhnagar (Haryana) - He won all three seats, a rare feat in Indian parliamentary history. - He eventually retained Rohtak and vacated the other two.			

10th loksabha-1991

Political Party	Vote Share (%)	Seats Won
Indian National Congress (Indira)	36.26%	244
Bharatiya Janata Party (BJP)	20.11%	120
Janata Dal	11.84%	59
Communist Party of India (Marxist)	6.16%	35

Prime Minister

Name	Tenure	Party
P. V. Narasimha Rao	21 June 1991 – 16 May 1996	Indian National Congress

- Led the **first full-term minority government** in India.

Speaker of Lok Sabha.

Shivraj V. Patil
Had earlier served as Deputy Speaker

- Deputy Speaker of Lok Sabha - S. Mallikarjunaiah

11th loksabha - 1996

❖ Selected Parties – 1996 (11th Lok Sabha)

Political Party	Vote Share (%)	Seats Won
Indian National Congress	28.80%	140
Bharatiya Janata Party (BJP)	20.29%	161
Janata Dal	8.08%	46
Communist Party of India (Marxist)	6.12%	32

- This election led to a fractured mandate, with no party securing a majority
- It marked the beginning of the United Front era, with three Prime Ministers during the 11th Lok Sabha.

Prime Ministers during the 11th Lok Sabha (1996–1998)

Prime Minister	Tenure	Party/ Alliance	House	Remarks
Atal Bihari Vajpayee	16 May – 1 June 1996	BJP	Lok Sabha	Resigned after 13 days; couldn't prove majority
H.D. Deve Gowda	1 June 1996 – 21 April 1997	Janata Dal/ United Front	Rajya Sabha	Became PM with Congress' outside support
I.K. Gujral	21 April 1997 – 19 March 1998	Janata Dal/ United Front	Rajya Sabha	Took over after Deve Gowda lost Congress support

- **Deve Gowda** was later **elected to Lok Sabha** from Hassan constituency.
- **I. K. Gujral** continued as a **Rajya Sabha member** during his entire tenure.

12th loksabha - 1998

❖ Selected Parties – 1998 (12th Lok Sabha)

Political Party	Vote Share (%)	Seats Won
Bharatiya Janata Party (BJP)	25.59%	182
Indian National Congress (INC)	25.82%	141
Communist Party of India (Marxist)	5.16%	32
Telugu Desam Party (TDP)	3.20%	12

- The BJP emerged as the single largest party and formed a coalition government under Atal Bihari Vajpayee, known as the NDA (National Democratic Alliance).
- This election saw the rise of formal pre-poll alliances as a key trend in Indian politics.

❖ Speaker of the 12th Lok Sabha (1998–1999)

Name	Tenure
G. M. C. Balayogi	24 March 1998 – 3 March 2002

- **Ganti Mohana Chandra Balayogi** was the **first Dalit Speaker** of the Lok Sabha from **Andhra Pradesh**.
- Elected on a **Telugu Desam Party (TDP)** ticket, he was **backed by the ruling NDA**.
- He **continued as Speaker into the 13th Lok Sabha** as well.

13th loksabha - 1999

Political Party	Vote Share (%)	Seats Won
Indian National Congress (INC)	28.30%	114
Bharatiya Janata Party (BJP)	23.75%	182
Communist Party of India (Marxist)	5.40%	33

❖ Speaker of the 13th Lok Sabha (1999–2004)

Name	Tenure
G. M. C. Balayogi	22 October 1999 – 3 March 2002 (<i>died in office</i>)
Manohar Joshi	10 May 2002 – 2 June 2004

G. M. C. Balayogi was re-elected as Speaker after holding the post in the 12th Lok Sabha. He was the **first Dalit Speaker** and from the **Telugu Desam Party (TDP)**.

- He **died in a helicopter crash** in March 2002 while serving as Speaker.
- **Manohar Joshi**, a senior leader from **Shiv Sena**, succeeded him and served till the end of the 13th Lok Sabha.

❖ **Deputy Prime Minister - L. K. Advani (29 June 2002 – 22 May 2004)**

- **L. K. Advani** was appointed as **Deputy Prime Minister** midway during the Vajpayee government's second full term.
- He also held the **Home Ministry** throughout the NDA tenure.
- He was the **last person to officially hold the post** of Deputy Prime Minister till now.
- Since **2004**, **no one** has been appointed as Deputy PM in any Lok Sabha.

14th Lok Sabha - 2004

Political Party	Vote Share (%)	Seats Won
Indian National Congress (INC)	26.53%	145
Bharatiya Janata Party (BJP)	22.16%	138
Communist Party of India (Marxist)	5.66%	43
Bahujan Samaj Party (BSP)	5.33%	19
Communist Party of India (CPI)	1.41%	10
Nationalist Congress Party (NCP)	1.80%	9

❖ **14th Lok Sabha (2004–2009)**

Somnath Chatterjee - **Speaker of Lok Sabha**

- Veteran leader of the **Communist Party of India (Marxist)**.
- Known for **impartial conduct** and **strengthening of parliamentary committees**.
- He was **expelled by CPI(M)** in 2008 for not resigning as Speaker after the party withdrew support from the UPA.

Deputy Speaker of Lok Sabha – Charanjit Singh Atwal

Leader from the **Shiromani Akali Dal (SAD)**, part of NDA.

- Although **EVMs were introduced in India in a limited pilot in 1982**, they were **first used nationwide for all constituencies** in the **2004 General Elections**, which elected the **14th Lok Sabha**.
- This made **India the first country in the world to conduct a nationwide parliamentary election entirely using EVMs**.

Political Party	Vote Share (%)	Seats Won
Indian National Congress (INC)	28.55%	206
Bharatiya Janata Party (BJP)	18.80%	116
Samajwadi Party (SP)	3.36%	23

15th Lok Sabha (2009–2014)

Speaker of the 15th Lok Sabha (2009–2014) – Meira Kumar

- **Meira Kumar** was the **first woman Speaker** of the Lok Sabha.
- A senior leader from the **Indian National Congress**.
- Represented the **Sasaram** constituency in **Bihar**.

Deputy Speaker of the 15th Lok Sabha (2009–2014)- Kariya Munda

16th Lok Sabha (2014–2019)

Political Party	Vote Share (%)	Seats Won
Bharatiya Janata Party (BJP)	31.34%	282
Indian National Congress (INC)	19.52%	44
All India Anna Dravida Munnetra Kazhagam (AIADMK)	3.31%	37

❖ **Speaker of the 16th Lok Sabha (2014–2019)- Sumitra Mahajan**

- **Sumitra Mahajan** was the **second woman Speaker** of the Lok Sabha, after Meira Kumar.
- Senior BJP leader from **Indore (Madhya Pradesh)**.
- She served as an MP for **eight consecutive terms (1989–2019)**.

❖ **Deputy Speaker of the 16th Lok Sabha (2014–2019)- M. Thambidurai**

M. Thambidurai was a senior leader of the **AIADMK** from **Tamil Nadu**.

- He also served as **Deputy Speaker** earlier.

17th Lok Sabha -2019

Political Party	Vote Share (%)	Seats Won
Bharatiya Janata Party (BJP)	37.36%	303
Indian National Congress (INC)	19.49%	52
Dravida Munnetra Kazhagam (DMK)	2.29%	23

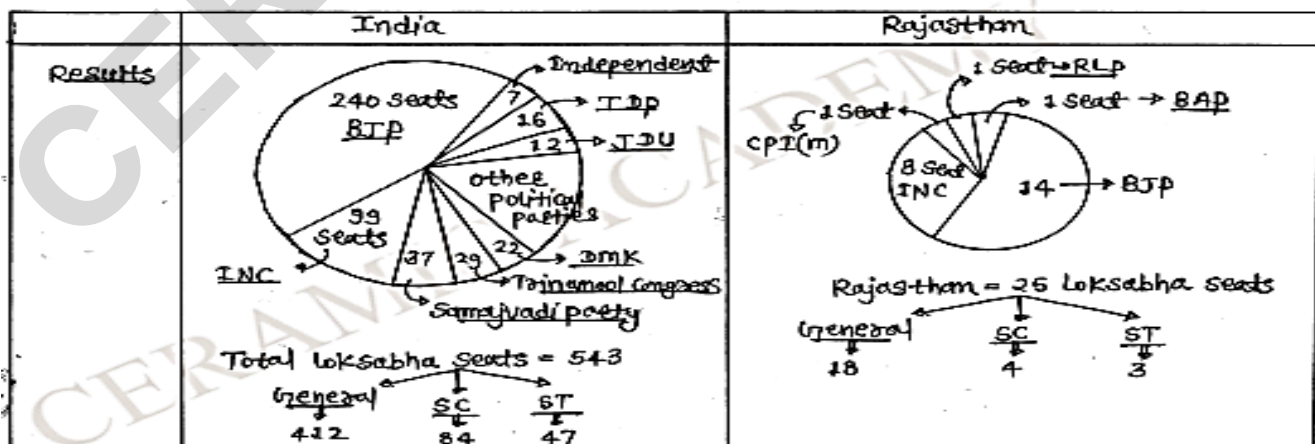
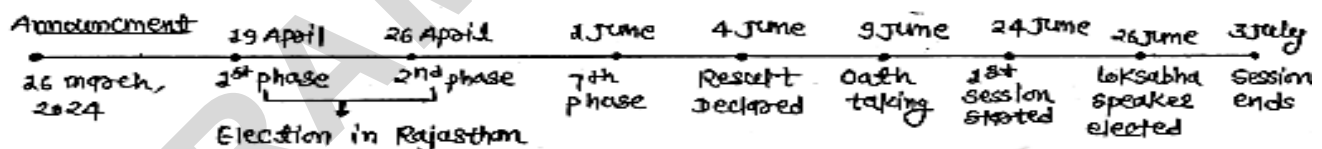
- The BJP crossed the 300-seat mark for the first time on its own.
- Congress again failed to get Leader of Opposition status (needs 55 seats).
- DMK emerged as the 3rd largest party, riding a strong wave in Tamil Nadu.
- Speaker – Om birla
- Deputy speaker – there was no deputy speaker in this loksabha

17th Lok Sabha (2019–2024)**1. First Lok Sabha Election with 100% VVPAT Usage**

- **VVPAT (Voter Verifiable Paper Audit Trail)** machines were used in **all polling booths** for the first time in a Lok Sabha election.
- The Supreme Court also directed **VVPAT verification of 5 randomly selected EVMs per constituency**.

2. Highest-Ever Voter Turnout (67.4%)

- The 2019 general election recorded the **highest voter turnout in Lok Sabha history** (approx. 67.4%).

National Current Affairs**★ Lok Sabha Election 2024 →**

Voting	total $\Rightarrow$ 65.79% maximum $\rightarrow$ Lakshadweep = 84% Assam = 81% minimum $\rightarrow$ Bihar = 56.19% U.P. = 56.92%	total = 62.60% maximum $\Rightarrow$ Bamee (73%) minimum $\Rightarrow$ Tonk (56%)
Highest Victory margin	Rakibul Hussain (INC) $\rightarrow$ Assam By 10,12,000 votes	Mahima Kumari (BJP) $\rightarrow$ Raigarh By 3,92,933 votes
Lowest Victory margin	Ravindra Dattaram Wajkar $\rightarrow$ Mumbai (Shiv Sena) By 48 votes	Rep. Rajendra Singh (BJP) $\rightarrow$ Jaipur Rural By 1615 votes
Women	74	3
Youngest women elected	MP 1. Shambhavi Chaudhary 25 yrs LJP Samastipur (Bihar) 2. Priya Srini 25 yrs SP Machhali Sahar (UP)	Sanjana Jaiswal $\rightarrow$ 26 years INC Bharatpur (Raj.)
Oldest member elected	T. R. Bhalu $\rightarrow$ 82 years DMK Tamil Nadu	Bajendra Lal $\rightarrow$ 72 years Congress Jhunjhunu

❖ Comparison Between 17th & 18th Lok Sabha

Feature	17th LS	18th LS
Average Age of MPs	59 years	56 years
Female MPs	78	74
Total Voter Turnout (%)	67.40%	65.73%
Turnout in Rajasthan (%)	66.09%	62.60%

❖ Unopposed Elected MPs (General Info)

- **Mukesh Chandrakant Patel (BJP)** – Elected unopposed from **Surat, Gujarat**
 - 29th MP to be elected unopposed since 1952
 - 28th MP was **Dimple Yadav** (Samajwadi Party)
- **Historical Facts:**
 - 5–5 MPs were elected unopposed in Lok Sabha elections of **1952, 1957, and 1962**
 - **Maximum unopposed MPs** were from **Jammu & Kashmir** (4 times)
 - **Only Independent MP** elected unopposed: **Anand Chand** from **Himachal Pradesh (1952)**
- **Pro tem speaker**
 - **1st Pro Tem Speaker:** G.V. Mavalankar (who was also the first full-time Speaker).
 - **No female Pro Tem Speaker till now.**

- 17th Lok Sabha Pro Tem Speaker: Shri Virendra Kumar

- 18th Lok Sabha Pro Tem Speaker: Bhartruhari Mahtab (from Cuttack, Odisha) – a 7-time MP

18th Lok Sabha Speaker: Om Birla (re-elected) 5th person to become Lok Sabha Speaker for a **2nd consecutive term**.

➤ **Previous 2-Term Speakers:**

1. M.A. Ayyangar (1956–1962)
2. G.S. Dhillon (1969–1975)
3. Balram Jakhar (1980–1989)
4. G.M.C. Balayogi (1998–2002)
5. Om Birla (18th MP from BJP)

Leader of house

Lok Sabha (LS): Narendra Modi

Rajya Sabha (RS): Jagat Prakash Nadda

Leader of opposition : 18th Lok Sabha: Rahul Gandhi

Lok Sabha	Election Year	Seats Won	Largest Party	PM at Start	Speaker	Deputy Speaker
1st	1951–52	364	INC	Jawaharlal Nehru	G.V. Mavalankar	M.A. Ayyangar
2nd	1957	371	INC	Jawaharlal Nehru	M.A. Ayyangar	Sardar Hukam Singh
3rd	1962	361	INC	Jawaharlal Nehru	Sardar Hukam Singh	Krishnamurthy Rao
4th	1967	283	INC	Indira Gandhi	Neelam Sanjiva Reddy	R.K. Khadilkar / G.G. Swell
5th	1971	352	INC (R)	Indira Gandhi	G.S. Dhillon / B.R. Bhagat	G.G. Swell
6th	1977	295	Janata dal	Morarji Desai	N. Sanjiva Reddy/K.S. Hegde	Godey Murahari
7th	1980	353	INC (I)	Indira Gandhi	Balram Jakhar	G. Lakshmanan
8th	1984	404	INC (I)	Rajiv Gandhi	Balram Jakhar	M. Thambidurai
9th	1989	197	INC	V.P. Singh	Rabi Ray	Shivraj Patil
10th	1991	244	INC	P.V. Narasimha Rao	Shivraj Patil	S. Mallikarjunaiah
11th	1996	161	BJP	Atal Bihari Vajpayee	P.A. Sangma	None
12th	1998	182	BJP	Atal Bihari Vajpayee	G.M.C. Balayogi	None
13th	1999	182	BJP	Atal Bihari Vajpayee	Manohar Joshi	P.M. Sayeed
14th	2004	145	INC	Manmohan Singh	Somnath Chatterjee	Charanjit Singh Atwal
15th	2009	206	INC	Manmohan Singh	Meira Kumar	Kariya Munda
16th	2014	282	BJP	Narendra Modi	Sumitra Mahajan	M. Thambidurai
17th	2019	303	BJP	Narendra Modi	Om Birla	Vacant
18th	2024	240	BJP	Narendra Modi	Om Birla	

Article 79

- The Parliament consists of **three parts**:
 - The **President of India**
 - The **Lok Sabha** (House of the People)
 - The **Rajya Sabha** (Council of States)

Why Are the President and Governor Part of the Legislature?

- Although not elected members of the legislature, both the **President (at Union level)** and the **Governor (at State level)** are considered part of their respective legislatures due to their **constitutional roles in law-making**.
- The President and Governor play a vital role in:
 - Law-making
 - Maintaining the constitutional machinery
 - Acting as a bridge between the executive and the legislature
 - Hence, they are **constitutionally considered part of the legislature**, despite not being its members.

- In new parliament Lok Sabha hall inspired by **peacock**, Rajya Sabha hall by **lotus**, and Central Lounge by **banyan tree** – India's **national symbols**.

Parliament House

Aspect	Old Parliament House	New Parliament Building
Official Name	Parliament House (Sansad Bhavan)	New Parliament Building
Inauguration Year	1927 (January 18)	2023 (May 28)
Inaugurated By	Lord Irwin (British Viceroy)	Prime Minister Narendra Modi
Architects	Sir Edwin Lutyens & Sir Herbert Baker	HCP Design, Planning and Management Pvt. Ltd.
Design Style	Circular colonial architecture inspired by Chausath Yogini Temple, Morena	Triangular, modern Indian design with traditional motifs
Location	Sansad Marg, Central Delhi	Adjacent to Old Building (Central Vista Project)
Constructed During	British Rule (1921-1927)	2020-2023
Lok Sabha Capacity	~ 552 seats	888 seats
Rajya Sabha Capacity	~ 250 seats	384 seats

Aspect	Lok Sabha	Rajya Sabha
Official Name	House of the People	Council of States
Constitutional Article	Article 81	Article 80
Also Known As	Lower House, First Chamber, Popular House, Temporary House	Upper House, Second Chamber, House of Elders, Permanent House
Establishment Year	1952	1952
House Nature	Temporary – can be dissolved	Permanent – cannot be dissolved
Tenure of House	5 years	Continuous (1/3rd members retire every 2 years)
Member Tenure	5 years	6 years

Mode of Election	Direct election by the people	Indirect election by State Legislative Assemblies
Election System	First-Past-The-Post	Proportional Representation by Single Transferable Vote
Constituency Type	Territorial constituencies	States and Union Territories
Strength of House (Current)	543 elected members	245 members (233 elected + 12 nominated)
Maximum Strength (Allowed)	550 (550 elected + 2 nominated)* <i>Anglo-Indian nomination removed by 104th Amendment, 2020</i>	250 (238 elected + 12 nominated)
Minimum Age	25 years	30 years
Presiding Officer	Speaker of Lok Sabha	Chairman (Vice-President of India, ex-officio)
Deputy Presiding Officer	Deputy Speaker	Deputy Chairman
Quorum Requirement	10% of total membership	10% of total membership
Dissolution	Can be dissolved by President before term ends	Cannot be dissolved
Reservation	▪ 131 seats reserved for SC/ST ▪ 33% seats reserved for women (after delimitation as per 106th Amendment)	No reservation
Legislative Powers	Can introduce and pass all types of bills including Money Bills	Can introduce and pass all types of bills except Money Bills
Special Powers	• Can pass Money Bills • No-Confidence Motion • Approves Proclamation of Emergency • Government accountability	• Can transfer subject from State List to Union List (Article 249) • Creates All India Services • Approves Emergency Proclamations when Lok Sabha is dissolved
Role in Government Formation	Crucial, Government is formed from and is accountable to Lok Sabha	No role in government formation

Rajyasabha (Article 80)

- Key Historical Facts about Rajya Sabha
 - **3 April 1952 – Rajya Sabha was constituted**
 - **13 May 1952 – First sitting of Rajya Sabha** was held

The term “Rajya Sabha” (as the Hindi name for the **Council of States**) was officially adopted on **23 August 1954**.

Number of seats have gradually increased from 216 in 1952 to 245, its present membership.

Article 80(1) – Constitution of the Council of States (Rajya Sabha)

The Council of States shall consist of —

- (a) **12 members nominated by the President in accordance with the provisions of clause (3), and**
- (b) **238 representatives of the States and Union Territories.**

Article 80(3) - Persons having special knowledge or practical experience in the following fields, namely, literature, science, art, and social service.

Article 80(2) – Rajya Sabha: Allocation of Seats

The allocation of seats to be filled by representatives of the States and Union Territories in the Rajya Sabha shall be in accordance with the provisions contained in the Fourth Schedule.

Rajya Sabha Members from Union Territories

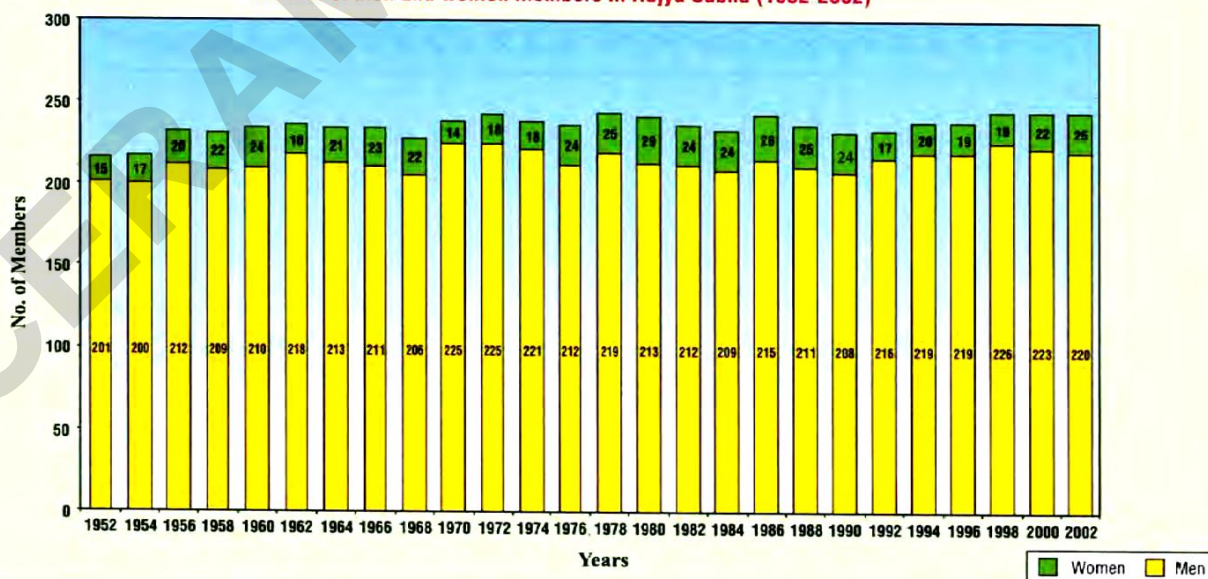
Union Territory	Rajya Sabha Seats	Remarks
Delhi (NCT)	3	Elected by the Delhi Legislative Assembly
Puducherry	1	Elected by the Puducherry Legislative Assembly
Jammu & Kashmir	4	Elected by J&K Legislature (UT with legislature)

Rajya Sabha Seats by State

State	Seats	State	Seats
Uttar Pradesh	31	Maharashtra	19
Tamil Nadu	18	Bihar	16
West Bengal	16	Karnataka	12
Andhra Pradesh	11	Gujarat	11
Madhya Pradesh	11	Odisha	10
Rajasthan	10	Kerala	9
Punjab	7	Telangana	7
Assam	7	Jharkhand	6
Chhattisgarh	5	Haryana	5
Uttarakhand	3	Himachal Pradesh	3
Tripura	1	Manipur	1
Meghalaya	1	Nagaland	1
Goa	1	Arunachal Pradesh	1
Mizoram	1	Sikkim	1

Chart A

Number of men and women members in Rajya Sabha (1952-2002)



Q. Which of the following statement regarding Rajya Sabha is not correct?

(EO/RO 2025)

- (1) The members nominated by the President to Rajya Sabha are persons having special knowledge or practical experience in respect of such matters as literature, science, art and social service,
- (2) Rajya Sabha is a permanent House and is not subjected to dissolution. One-third members of Rajya Sabha retire after every second year.
- (3) Odisha and Rajasthan send similar number of representatives to Rajya Sabha.
- (4) In 1970, the Women members in Rajya Sabha were the highest when Indira Gandhi was the Prime Minister.
- (5) Question not attempted

ARTICLE 80(4) The representatives of each State in the Council of States shall be elected by the elected members of the Legislative Assembly of the State in accordance with the system of proportional representation by means of the single transferable vote.

Election Process of Rajya Sabha

1. **Conducted by:** Election Commission of India
2. **Method:** Indirect election by elected MLAs of State Legislative Assemblies
3. **Seat Allocation:** Based on the **population** of each state
4. **Voting System:**
 - **Proportional Representation**
 - **Single Transferable Vote (STV)**
 - MLAs rank candidates in order of preference
5. **Winning Formula:**

$$\left(\frac{\text{Total MLA votes}}{\text{Seats} + 1} \right) + 1$$

Key Terms and Issues

Term	Description
Cross Voting	When an MLA votes for a candidate from a different party. Recent cases in UP and Himachal Pradesh .
Anti-Defection Law	Not applicable to Rajya Sabha elections.
Open Ballot	MLAs must show their vote to the party agent.
Draw of Lots	Used in case of a tie . E.g., Himachal Pradesh: both candidates got 34 votes. Decision was made by lottery , as per Section 102, RPA 1951 .
Reservation	No SC/ST reservation in Rajya Sabha elections.

Kuldip Nayar vs. Union of India (2006)

- *Kuldip Nayar vs. Union of India*, 2006
- **Context:** Challenge to constitutional validity of the Representation of the People (Amendment) Act, 2003 and Rule 39AA of the Conduct of Elections Rules, 1961.

Key points of the Supreme Court judgment:

1. Party whip does not apply in Rajya Sabha elections:

- Rajya Sabha elections are not a legislative (law-making) process; they are an electoral process.
- Therefore, if a legislator votes against the directions of their party, they cannot be disqualified under the Anti-Defection Law (Tenth Schedule).
- That means, voting against the party line in Rajya Sabha elections will not lead to loss of membership.

2. Open Ballot is Constitutional:

- The rule introduced in 2003, under which an MLA has to show their vote (if they belong to a party), was upheld by the Court. It is meant to increase transparency.
- However, even then, if an MLA votes against the party, they cannot be legally disqualified.

Prelims Question (UPSC 2012)**Q. Consider the following statements:**

1. Union Territories are not represented in the Rajya Sabha.
2. It is within the purview of the Chief Election Commissioner to adjudicate election disputes.
3. According to the Constitution, the Parliament consists of only Lok Sabha and Rajya Sabha.

Which of the statements is/are correct?

- (a) 1 only (b) 2 and 3 (c) 1 and 3 (d) None **Answer: (d)**

Q. Describe election process of the members of Rajyasabha – [RAS Mains 2023, 10 Marks]

Article 80(5) The representatives of the Union territories in the Council of States shall be chosen in such manner as Parliament may by law prescribe

- **Note:** **Rajya Sabha is a permanent House because, unlike the Lok Sabha, it is not subject to dissolution. The term of its members is 6 years (although this is not explicitly mentioned in the Constitution).**

One-third of the members of the Rajya Sabha retire every second year.

The Rajya Sabha represents the federal character of our country. However, equal representation is not given to all states. In India, representation is based on population. It is noteworthy that in the U.S. Senate, equal representation is given to all states (i.e., 2 representatives per state).

➤ **Special Powers of the Rajya Sabha**

While the Lok Sabha has more powers in money and financial matters, the **Rajya Sabha also enjoys some exclusive special powers**, which reinforce its role in India's federal system.

1. Power to Make Laws on State List Subjects

- **Article 249** of the Constitution.
- Rajya Sabha can **empower Parliament to legislate on subjects in the State List**.
- Requires a **special majority** (2/3rd of members present and voting).
- Valid for **one year** and can be renewed.

2. Creation of All-India Services

- **Article 312** of the Constitution.
- Rajya Sabha can pass a resolution to create **All India Services** (e.g., IAS, IPS, IFS).
- Requires a **special majority** (2/3rd of members present and voting).
- Parliament can then create these services **in the national interest**.

3. Approving Continuation of Emergency

- If the **Lok Sabha is dissolved** during a national emergency:
 - Approval of the Rajya Sabha alone is sufficient to continue the emergency (Articles 352, 356, 360).
 - Ensures **legislative continuity** during times of crisis.

4. The process to remove the Vice President can be initiated only in the Rajya Sabha.

{Mains Only}

Question - Rajya Sabha is an ineffective chamber” – Critically Examine**➤ Significance of Rajya Sabha**

- Inspired by British House of Lords, but found to be more productive and effective.
- Called the Permanent House, ensuring continuity in law-making and governance.
- Acts as a check on populist decisions of the Lok Sabha.
- Represents state interests in the Union Parliament.
- It is the "Voice of the Voiceless" – raises concerns of minorities and those left out of electoral politics.
- Serves as a deliberative chamber allowing critical review, amendments, and restraint in hasty legislation.
- Helps preserve national unity by:
 - Representing all states
 - Empowering the creation of All India Services (Art. 312)
- Described by scholars as:
 - M. Ananthasayanam Ayyangar – “Second chamber will act as a check on hurried legislation.”
- **Rajya Sabha is constituted to represent the states in the federal structure of India.**

➤ Limitations of Rajya Sabha {For Mains}

1. Unequal representation of states – violates the federal principle (unlike USA Senate).
2. Not directly elected – lacks popular legitimacy.
3. Cannot form or dissolve the government – limited role in executive accountability.
4. Money bills can only originate in Lok Sabha, limiting Rajya Sabha's financial authority.
5. Nominated members dilute federal representation.
6. Sometimes, politicians who fail in general elections are elected to the Rajya Sabha.
7. Political misuse due to party dominance and whip culture.
8. In joint sittings and fast-track legislations, it is often reduced to a mere rubber stamp
9. Low attendance and low participation reduce its deliberative capacity.

- It neither represents the will of the people like Lok Sabha, nor serves as an effective council of states."
—Nani Palkhivala
- "A second chamber is not essential. It delays legislation and adds little value in a parliamentary system."
— Dr. Rajendra Prasad
- The Rajya Sabha is not a secondary chamber, but a chamber of serious thought."
— Jawaharlal Nehru

- Despite limitations, Rajya Sabha plays a critical constitutional role in India's federal and parliamentary structure. With reforms in representation, independence, and active participation, its status as a deliberative, balancing institution can be further enhanced.

LOKSABHA

❖ Key Facts Related to Lok Sabha

- **17 April 1952** – The Lok Sabha was constituted
- **13 May 1952** – First meeting of the Lok Sabha was held
- **14 May 1954** – “House of the People” was officially renamed as **Lok Sabha**

➤ Article 81(1) – Composition of the Lok Sabha

❖ According to the Constitution:

1. **Lok Sabha** shall have:
 - (a) **Not more than 530 members** elected **directly by the people** from **states**, through territorial constituencies.
 - (b) **Not more than 20 members** to represent the **Union Territories**, chosen in a manner decided by **Parliament** through law.

➤ Article 81(2) – Seat Distribution and Constituency Division in Lok Sabha

For the purpose of electing members from the states to Lok Sabha:

(a) **Seat Allocation to States:**

- Each state is given seats in the Lok Sabha **based on its population**.
- The goal is to maintain a **similar ratio of population to seats** across all states **as much as possible** (so that each MP represents roughly the same number of people in every state).

(b) **Division into Constituencies:**

- Each state is divided into **territorial constituencies**.
- These constituencies are created in such a way that **each constituency has, as far as possible, an equal population per seat** within the state.

❖ **Special Clause:**

- The rule in (a) **does not apply to any state with a population of 6 million or less**.

That means **small states** can be given **more flexible representation** even if the population-seat ratio is not equal. (**31st Constitutional Amendment Act, 1973**)

Important Constitutional Amendment

➤ **31st constitutional amendment, 1973**

Article 81 was amended and following changes were made:

- Increased the upper limit of **elected members from states to 525**.
- Reduced the limit for **UTs from 25 to 20**, since their actual representation was only 16.
- Add a **provision** exempting states with a population of less than **six million** from the seat-allocation formula, thereby protecting smaller states like Himachal Pradesh, Manipur, Meghalaya, etc., from losing representation.

➤ **56th constitutional amendment, 1987**

- Through which special provision were made for Goa, Daman – Diu
- Maximum elected members were increased to 530 for states.

Loksabha Seats by State/UT

State/UT	Seats	State/UT	Seats	State/UT	Seats
Uttar Pradesh	80	Maharashtra	48	West Bengal	42
Bihar	40	Tamil Nadu	39	Madhya Pradesh	29
Karnataka	28	Gujarat	26	Rajasthan	25
Andhra Pradesh	25	Odisha	21	Kerala	20
Telangana	17	Assam	14	Jharkhand	14
Punjab	13	Chhattisgarh	11	Haryana	10
Delhi (NCT)	7	Jammu & Kashmir	5	Uttarakhand	5
Himachal Pradesh	4	Tripura	2	Manipur	2
Meghalaya	2	Goa	2	Arunachal Pradesh	2
DNH & Daman & Diu	2	Nagaland	1	Mizoram	1
Sikkim	1	A & N Islands	1	Chandigarh	1
Puducherry	1	Ladakh	1	Lakshadweep	1



The number of Lok Sabha seats allocated to each state is not directly listed in the Constitution article-wise in tabular form. Instead, it is governed by the **Representation of the People Act, 1950**, particularly under its **First Schedule**, which provides the **allocation of seats in the House of the People (Lok Sabha) to each state and union territory**.

❖ Political Reservation in India

Type	Candidate From	Voters	Introduced when?
General Reservation	Reserved Category	All voters	In Independent India
Separate Electorate	Reserved Category	Same category voters	In British India

❖ Political Reservation in India -

Political reservation in India in legislature is only for **SCs, STs, and Women (as per 106th Amendment)**.

Level of Legislature	SC/ST Reservation	Women Reservation (106th CAA)	OBC	Anglo-Indian
Lok Sabha (Lower House)	Yes (Art. 330)	Yes (Art. 330A) (after census)	No	Removed (104th CAA, 2020)
Rajya Sabha (Upper House)	No	No	No	No
State Legislative Assembly	Yes (Art. 332)	Yes (Art. 332A) (after census)	No	Removed (104th CAA, 2020)
State Legislative Council	No	No	No	No

❖ No provision of reservation exists in Rajya Sabha or State Legislative Councils.

Although there is reservation for SC,ST,OBC,WOMEN in Local Governance but that is not a part of legislature.

➤ Article 330 – SC/ST Reservation in Lok Sabha

- Seats are reserved in **proportion to their population** in each state/UT.

➤ Article 331 – Nomination of Anglo-Indians in Lok Sabha

- Allows the **President of India** to **nominate up to 2 Anglo-Indian members** to the Lok Sabha **if the community is not adequately represented**.

Note: Though the Article still exists, the provision is no longer in effect due to the time-limit imposed under Article 334 (after the 104th Amendment).

➤ **Article 332 – SC/ST Reservation in State Legislative Assemblies**

- Also applies to **Union Territories with legislatures** (like Delhi, J&K).

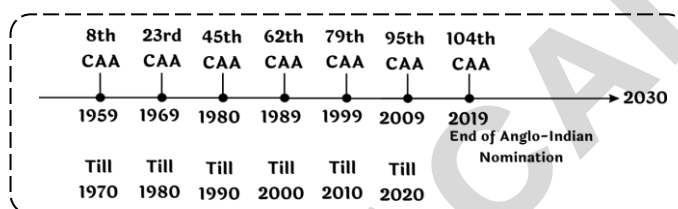
➤ **Article 333 – Nomination of Anglo-Indians in State Assemblies**

- Allows the **Governor** of a state to **nominate one Anglo-Indian member** to the **State Legislative Assembly** if the community lacks adequate representation.

Note: Like Article 331, this provision has lapsed due to the expiry of time-frame under Article 334.

➤ **Article 334 – Time-Limit on Political Reservation**

- Originally, **Articles 330 to 333** were to remain in force for **10 years** (from 1950 to 1960).
 - But Parliament **repeatedly extended** this period via amendments.
- Till now 7 amendments have been made in Article 334



❖ **The 104th Constitutional Amendment (2019)**

- Reservation for **Scheduled Castes (SC)** and **Scheduled Tribes (ST)** extended till **2030**.
- Nomination of **Anglo-Indian community** under **Articles 331 and 333** abolished from **25 January 2020**.

Provision	Effect
Extended SC/ST reservation	Till 2030 in Lok Sabha & State Assemblies
Ended Anglo-Indian nominations	In both Lok Sabha (Art. 331) & State Assemblies (Art. 333) via time-expiry under Art. 334
Articles 331 & 333	Still exist, but inactive in effect
Enforced on	25 January 2020

➤ **Article 366(2) – Definition of Anglo-Indian**

“An Anglo-Indian means a person whose father or any of the male progenitors in the male line is or was of European descent but who is domiciled within the territory of India and is or was born of parents habitually resident therein and not established there for temporary purposes only.”

Reserved Seats in Lok Sabha for SC/ST

Category	Seats (India)	Seats (Rajasthan)
Scheduled Caste (SC)	84	4 (• Bikaner • Bharatpur • Ganganagar • Karauli-Dholpur)
Scheduled Tribe (ST)	47	3 (• Udaipur • Dausa • Banswara)
Total	131	7

Women Reservation in Legislature

106th Constitutional Amendment Act, 2023 provides for Women's Reservation in Lok Sabha & State Assemblies

1. Aim:

- 33% (1/3) seats for women
 - Lok Sabha
 - State Legislative Assemblies
 - Delhi /Legislative Assembly

2. New Articles Inserted

Article	Provision
330A	1/3rd seats reserved for women in Lok Sabha
332A	1/3rd seats reserved for women in State Assemblies
239AA (3)(b)	Women reservation applicable to Delhi Legislative Assembly
334A	Reservation will become effective only after delimitation and census

3. Key Features

Feature	Details
Reservation Coverage	Lok Sabha, State Assemblies, Delhi Assembly
Percentage Reserved	33% (1/3rd) of total seats
Within SC/ST Quota	1/3rd of SC/ST reserved seats also reserved for women from SC/ST
Rotational Basis	Seats will rotate after every delimitation
Effective From	After the next census and subsequent delimitation
Validity Period	Initially for 15 years, but can be extended by Parliament

Note:

- As per **Article 334A**, this reservation will **not come into immediate effect**.
- It will be implemented **only after**:
 - Completion of **next Census**
 - A new **Delimitation Commission** draws fresh constituency boundaries.

Women's Reservation in Jammu & Kashmir and Puducherry

- The **Lok Sabha** passed two key bills in 2023 to extend the provisions of the **106th Constitutional Amendment** to the following Union Territories:
 - **Jammu and Kashmir Reorganisation (Second Amendment) Bill, 2023**
 - **Government of Union Territories (Amendment) Bill, 2023**

Why was this necessary?

- The original **106th Constitutional Amendment** does not automatically apply to Union Territories like **Jammu & Kashmir** and **Puducherry**.
- For **Puducherry**, a separate amendment to the *Government of Union Territories Act, 1963* was required.
- For **Jammu & Kashmir**, an amendment to the *Jammu and Kashmir Reorganisation Act* was necessary.

Q: Examine the challenges and benefits of implementing 33% reservation for women in the Lok Sabha and State Assemblies. How can these challenges be addressed?

➤ **Challenges of Implementing 33% Women's Reservation: (for Mains)**

1. **Patriarchal Mindset:**

- **Challenge:** Deep-rooted patriarchal norms in Indian society discourage women's active participation in politics.
- **Fact:** Despite women making up 48% of India's population, their representation in the **16th Lok Sabha** was only **14%**.
- **Addressing the Challenge:** Awareness campaigns and sensitization programs can promote gender-neutral attitudes. Political parties should actively recruit and support women candidates at all levels.

2. **Lack of Political Will:**

- **Challenge:** Political parties may be reluctant to support women's reservation due to concerns over losing their dominance.
- **Fact:** The **Women's Reservation Bill** was introduced in Parliament multiple times since 1996, but has not been passed due to political opposition.
- **Addressing the Challenge:** Political consensus should be built through continuous dialogue and highlighting the positive impact of women's participation in governance. Engaging both men and women in political parties is essential.

3. **Reservation within Reservation:**

- **Challenge:** Ensuring that women from deprived sections (SC/ST/OBC) get a fair share of reserved seats.
- **Fact:** **SC/ST women's representation** has been historically low, even in reserved constituencies.
- **Addressing the Challenge:** A **sub-reservation** or **quota within the quota** for SC/ST/OBC women needs to be explicitly defined to avoid exclusion.

4. **Limited Scope of the Reservation:**

- **Challenge:** The proposed **33% reservation** might not address the broader issue of **gender inequality** in political leadership roles.
- **Fact:** **Women's representation in decision-making roles** remains disproportionately low, even with reservation policies in place.
- **Addressing the Challenge:** Reservation should be part of a larger framework that includes **education, economic independence, and leadership development** for women.

5. **Rotation of Reserved Seats:**

- **Challenge:** The **rotation system** may discourage women from building a long-term political career, as they may have to contest elections from different constituencies after every delimitation.
- **Fact:** The rotation system could lead to a **lack of political continuity** and **public familiarity** with female candidates.
- **Addressing the Challenge:** A **gradual and well-planned** system of seat rotation, coupled with **mentoring programs** for women politicians, can ensure stability and sustainability in their political careers.

➤ **Benefits of Implementing 33% Women's Reservation: (for Mains)**

1. **Increased Representation:**

- **Benefit:** More women in decision-making roles can ensure that **women's issues** are better addressed in legislative policies.
- **Fact:** Countries with higher female representation in parliaments, such as **Rwanda (61%)**, see better outcomes in **healthcare, education, and gender equality** policies.

2. **Enhanced Governance:**

- **Benefit:** Women bring different perspectives, which can enhance governance and public policy.

- **Fact:** Research shows that **gender-balanced decision-making** leads to **inclusive policies** that are more responsive to the needs of both men and women.
3. **Empowerment of Women:**
 - **Benefit:** **Political participation** directly correlates with increased **social, economic, and political empowerment** for women.
 - **Fact:** Women involved in politics are more likely to promote laws on **domestic violence, child marriage, and gender-based violence**.
 4. **Encouragement for Future Generations:**
 - **Benefit:** Increased representation of women in politics sets a positive **role model** for young girls and women, encouraging them to pursue leadership roles.
 - **Fact:** Countries like **Nordic countries** with strong women's political representation have seen improved **gender equality indicators** across all sectors.
 5. **Balanced Political System:**
 - **Benefit:** Women's representation will result in a more **inclusive political system**, leading to better outcomes for diverse populations, including marginalized groups.
 - **Fact:** **Diversity in leadership** improves the **quality of democracy** and leads to **equitable development**.
- **How Challenges Can Be Addressed:** (for Mains)
1. **Political and Social Support:**
 - Building social infrastructure such as women's political networks, leadership training, and mentorship programs to encourage women's active participation.
 - Political parties need to take responsibility for fielding more women candidates and actively supporting them.
 2. **Increased Funding and Resources:**
 - Providing financial and logistical support to women candidates in elections will ensure they can run effective campaigns.
 - Government funding for political parties that prioritize gender equality and women's participation in elections.
 3. **Incentivize Political Parties:**
 - Electoral reforms such as giving additional seats or benefits to parties that field a higher percentage of women can encourage greater participation.
 4. **Public Awareness Campaigns:**
 - Conducting campaigns to educate voters on the importance of electing women, and the impact of women in leadership, to help reduce biases.
 5. **Gradual Implementation of Rotation System:**
 - Implementing a smooth transition for the rotation of reserved seats, with long-term planning for women candidates to continue their political careers across multiple constituencies.

Conclusion: Implementing **33% women's reservation** in the **Lok Sabha** and **State Assemblies** is a significant step toward **gender equality** in India's political system. While there are challenges, they can be effectively addressed through **sustained efforts** from both the government and civil society, ensuring that the benefits of this amendment reach all sections of society, especially marginalized women.

➤ **Key Committee Recommendations on Women's Reservation Bill**

1. **Margaret Alva Committee (1987)**

- 33% reservation for women in Lok Sabha and State Assemblies.
- Recommended phased implementation of reservation, covering both urban and rural constituencies.

2. Geeta Mukherjee Committee (1996)

- 33% reservation for women at all levels, including panchayats and municipalities.
- Suggested rotation of reserved seats and representation for backward classes and minorities.

➤ Key Takeaways:

1. **Rwanda** leads the world with **61.3%** women in parliament, with a **gender-balanced** approach to political representation.
2. **India** has only **14.4%** women in the **Lok Sabha**, placing it at **147th** globally, far behind other countries like **Rwanda, Bolivia, and Mexico**, which have significantly higher representation.
3. **Sweden and Finland** have **strong policies** that have promoted **women's political participation**, achieving **47%** representation, making them global leaders in terms of gender equality in politics.

➤ Article 81 (3)

In this article, the term "**population**" refers to the population count from the **last census**, for which the figures have been published.

However, until the data from the first census conducted after 2026 is published:

1. For purposes of **sub-clause (a)** (which relates to seat allocation for states in the Lok Sabha):
 - The population reference will be based on the **1971 census**.
2. For purposes of **sub-clause (b)** (which deals with the division of constituencies within a state):
 - The population reference will be based on the 2001 census. (87th CA, 2003)

➤ Article 82 - Delimitation commission**❖ Constitutional Provisions**

- **Article 82:** Mandates the constitution of a Delimitation Commission after each census to redefine electoral constituencies for the Lok Sabha.
- **Article 170:** Extends the delimitation process to the Legislative Assemblies of states, ensuring their constituencies are also redefined

❖ Functions of the Delimitation Commission

1. Determine the total number of seats in the Lok Sabha and State Assemblies.
2. Define the geographical boundaries of constituencies based on population and other factors.
3. Identify and allocate reserved seats for Scheduled Castes (SC) and Scheduled Tribes (ST) in constituencies (Including the seats reserved for women as well).

❖ Key points

- Parliament forms the "Delimitation Commission through an act, thus it is a statutory body.
- The Delimitation Commission is constituted by the Central Government.
- The recommendations of the Delimitation Commission cannot be challenged in a court of law.
- The recommendations of the Delimitation Commission regarding the Lok Sabha and State Assembly boundaries are final and cannot be changed.

❖ Composition of the Delimitation Commission:

- **Chairperson:** A retired or serving Supreme Court judge.
- **Members:**
 - Chief Election Commissioner.
 - Election Commissioners from relevant State Election Commissions

Year	Delimitation Exercise	Chairperson	Seats in Lok Sabha	Key Details
1952	First Delimitation	Justice N. Chandrasekhara Aiyar (Retired Supreme Court Judge)	489 (Later 494 in 1957)	- The first delimitation post-independence, was done under the Delimitation Commission Act of 1952. - Initial number was set at 489, which was later adjusted to 494 in 1957.
1963	Second Delimitation	Justice Jaganmohan Reddy	522	- Based on the 1961 census, following the Delimitation Commission Act of 1962. - Seats increased due to population growth and State Reorganisation.
1973	Third Delimitation	Justice J.L. Kapur	542 (Later 543 after 1975)	- Based on the 1971 census, was done under the Delimitation Act of 1972. - Sikkim added after it became a state in 1975.
2002	Fourth Delimitation	Justice Kuldeep Singh	543 (Frozen)	- Based on the 2001 census, under the 84th Constitutional Amendment. - Seats frozen at 543 until 2026, but boundaries were redrawn.

Significant Amendments:

- 42nd Amendment (1976):** Seats in Lok Sabha and State Assemblies were fixed based on the 1971 census data.
- 84th Amendment (2001):** This amendment fixed the seats in Lok Sabha till 2026, and population-based delimitation was delayed until 2026.
- 87th Amendment (2003):** Based on the 2001 census, it restricted delimitation to only those states where population data was accurate.

4th Delimitation Commission - Constituted in 2002

- Chairperson:** Justice Kuldeep Singh
- Functions:**
 - Redefining electoral constituencies.
 - Delimiting SC/ST reserved seats.
 - The delimitation was based on the 2001 Census as per the 87th Constitutional Amendment (2003).
- The Commission submitted its report in 2008, and it was applicable for 22 states. However, it did not include the following states:
 - Jammu & Kashmir (J&K), Uttarakhand, Nagaland
 - Jharkhand, Assam, Manipur

➤ Delimitation in Jammu Kashmir

- Delimitation Commission:** Chaired by Justice (Retd.) Ranjana Prakash Desai, it was responsible for redefining Assembly and Parliamentary constituencies in Jammu and Kashmir based on the 2011 Census, in accordance with the **Jammu & Kashmir Reorganisation Act, 2019**.
- Total Seats in Jammu & Kashmir:** The region has 90 Assembly Constituencies, with 43 in Jammu and 47 in Kashmir.
- Reserved Seats:** A total of 9 seats were reserved for Scheduled Tribes (STs), with 6 in Jammu and 3 in the Valley, and 7 seats were reserved for Scheduled Castes (SCs).

➤ **Article 83 - Duration of Houses of Parliament****(1) Rajya Sabha (Council of States):**

- Rajya Sabha is a permanent house — it cannot be dissolved.
- Approximately one-third of its members retire every 2 years.
- The retirement process is governed by a law made by Parliament.

(2) Lok Sabha (House of the People):

- The normal tenure of the Lok Sabha is 5 years from the date of its first meeting.
- It can be dissolved earlier by the President.
- After completion of 5 years, the Lok Sabha automatically stands dissolved.

❖ **During Emergency:**

1. If a National Emergency is in force, Parliament may extend the term of the Lok Sabha.
2. The extension can be done by law, but not more than 1 year at a time.
3. Once the Emergency ends, the term cannot be extended beyond 6 months.

Historical Example➤ The tenure of the Lok Sabha was extended twice during the **Emergency period (1976–77)**

- Extended twice 14 march 1976 to 14 march 1977 and in December 1976 it was extended again from 14 march 1977 to 14 march 1978 but Loksabha was dissolved prematurely and elections were held in march 1977 during emergency period (25 june 1975 to 21 march 1977)

❖ **42nd Constitutional Amendment Act (1976):**

- Extended the term of the Lok Sabha from 5 to 6 years during the period of Emergency.
- This amendment also extended the term of State Legislative Assemblies to 6 years.

❖ **44th Constitutional Amendment Act (1978):**

- Restored the original 5-year term of the Lok Sabha as well as the State Legislative Assemblies.

➤ **Article 84 – Qualifications for Members of Parliament**

- **The person must be a citizen of India.**
- The person must make and subscribe an oath or affirmation (as per the form in the Third Schedule) before a person authorized by the Election Commission.
- **Minimum age requirement:** For Rajya Sabha: 30 years, For Lok Sabha: 25 years
- The person must possess any additional qualifications that may be prescribed by law made by Parliament
- ❖ **Relevant Constitutional Amendment:**
 - 16th Constitutional Amendment Act, 1963
 - Added a new requirement to the oath/affirmation under Third Schedule, which directly impacts Article 84(a).
 - Now the candidate must swear allegiance to the Constitution of India and uphold the sovereignty and integrity of India.

❖ **Important Facts About Candidature – Lok Sabha & Rajya Sabha****1. Maximum number of seats a candidate can contest**

- As per Section 33(7) of the Representation of the People Act, 1951:
A candidate can contest from a maximum of 2 constituencies in any general election (Lok Sabha or State Assembly).
- Before 1996, there was no such limit.
For Example: Atal Bihari Vajpayee, Devi lal, Mayawati contested from 3 seats before 1996.

Question: Consider the following statements:

UPSC 2021

1. In India, there is no law restricting the candidates from contesting in one Lok Sabha election from three constituencies.
2. In 1991 Lok Sabha Election, Shri Devi Lal contested from three Lok Sabha constituencies.
3. As per the existing rules, if a candidate contests in one Lok Sabha election from many constituencies, his/her party should bear the cost of by-elections to the constituencies vacated by him/her in the event of his/her winning in all the constituencies.

Which of the statements given above is/are correct?

[A] 1 only [B] 2 only

[C] 1 and 3

[D] 2 and 3

{Ans: B}

2. Security Deposit: Comparison of Security Deposits (as per RPA, 1951)

Type of Election	General Category	SC/ST Category
Lok Sabha (House of the People)	₹ 25,000	₹ 12,500
Rajya Sabha (Council of States)	₹ 10,000	₹ 5,000
State Legislative Assembly	₹ 10,000	₹ 5,000
State Legislative Council	₹ 5,000	₹ 2,500

3. Maximum Limit of Election Expenditure:

House	Expenditure Limit
Lok Sabha	₹95 lakh (in larger states), ₹75 lakh (in smaller states/UTs)
Rajya Sabha	No specific limit, as it's elected by MLAs (not a public vote)

- The Election Commission revises this limit from time to time.
- Exceeding the limit is a violation of election law.

4. Eligibility of Lok Sabha Candidates (Representation of the People Act, 1951) – Electoral Roll Rule:

- To contest Lok Sabha elections, a candidate must be registered as a voter in any constituency in India and not just his own constituency.
- To contest from a Scheduled Caste (SC) or Scheduled Tribe (ST) reserved seat, the candidate must belong to SC or ST in any State or Union Territory.
- An SC/ST individual is allowed to contest from a general (non-reserved) seat as well.
- **Exceptions: Assam, Sikkim, Lakshadweep**

In the following Union Territory and States, **additional restrictions** apply:

1. Assam
2. Sikkim
3. Lakshadweep

In these areas, a candidate must be a registered voter in the same territorial region (i.e. must be enrolled in the voter list of that specific state/UT) to be eligible to contest from there.

5. Provision for Rajya Sabha member to be in the state only

The residency requirement for members of the Rajya Sabha was abolished in 2003 by a legal amendment, the Representation of the People (Amendment) Act, 2003. Originally, a candidate was required to be an elector of the state from which he was contesting.

The Supreme Court upheld this amendment in *Kuldip Nair v Union of India*, 2006.

➤ **Article 85: Sessions of Parliament****(1) Summoning of Parliament:**

The President summons each House of Parliament from time to time.

He decides the time and place of the session.

Important condition: The gap between two sessions of a House must not exceed six months.

(2) Powers of the President:

The President may prorogue (i.e. end) either House or both Houses of Parliament.

The President may dissolve the Lok Sabha (House of the People) – but not Rajya Sabha, as it is a permanent house.

Regular Sessions of Parliament (as per current practice):

Three regular sessions are held in a year:

1. Budget Session
2. Monsoon Session
3. Winter Session

Additional Information:

- The **President can also summon a Special Session** of Parliament whenever necessary.
- There is **no fixed duration** for any session — it depends on the government's legislative agenda

Important Parliamentary Functions & Authorities Involved

Function	Meaning	Authority
Summoning of Session	Calling Parliament to meet for a new session	President
Adjournment	Temporary suspension of a sitting (hours/days) by the presiding officer	Presiding Officer (Speaker/Chairman)
Prorogation	Formal end of a session by the President	President (on advice of Council of Ministers)
Dissolution (Lok Sabha)	Ending the entire term of Lok Sabha (leads to general elections)	President (only Lok Sabha can be dissolved, not Rajya Sabha)
Special Session	A session convened for a special purpose, outside the usual calendar	President (No need to mention reason)

➤ **Special Session**

- The term “**Special Session**” is NOT mentioned in the Constitution of India.
- However, under Article 85, the President has the power to summon Parliament “from time to time” — and this provision is used to call Special Sessions when needed.
 - **August 14-15, 1947** – Independence Session
 - **November 8-9, 1962** – Sino-India War (China aggression)
 - **August 15, 1972** – 25th Anniversary of Independence
 - **August 9, 1992** – 50th Anniversary of Quit India Movement
 - **August 15, 1997** – 50th Anniversary of Independence
 - **June 30, 2017 (Midnight)** – Launch of GST (Goods and Services Tax)
 - **September 18-22, 2023** – 75 Years of Parliamentary Journey & shift to New Parliament

➤ **Article 86 – Right of President to Address Parliament**

- **The President has the right to address:**
 - Either House (Lok Sabha or Rajya Sabha) or
 - Both Houses together (in a joint sitting).
- The President can also require the members to be present for this address.

➤ **Article 87 – Special Address by the President**

- The President shall address both Houses of Parliament together:
 - At the start of the first session after every general election to the Lok Sabha.
 - At the beginning of the first session of each year (usually Budget Session).
- In this address, the President **informs Parliament about the reasons** why it has been summoned (i.e. the government's agenda and priorities).

➤ **First Constitutional Amendment Act, 1951:** Amended Article 87(1) by removing the requirement of the President's address at the start of every session.

❖ **Motion of Thanks**➤ **What is Motion of Thanks?**

- After the President's Address to the joint sitting of both Houses (as per Article 87), a formal “Motion of Thanks” is moved in both Lok Sabha and Rajya Sabha.
- This is a parliamentary tradition.
- This motion allows MPs to discuss the policies and agenda of the government for the year.

❖ **Constitutional Basis:**

- Indirectly arises from Article 87 of the Constitution (Special Address by the President).
- It is not explicitly mentioned in the Constitution but **followed as a parliamentary convention**.

❖ **Procedure:**

1. **Moved by:** A member of the ruling party moves the motion in each House.
2. **Debate:** All political parties participate in a detailed discussion on the President's Address.
3. **Amendments:** Members can **move amendments** to the Motion of Thanks — but only on matters **contained in the President's Address**.
4. **Voting:** After the debate, the Motion of Thanks is **put to vote**.

➤ **What If Motion of Thanks is Not Passed?**

- If the Motion of Thanks is **defeated in Lok Sabha**, it is considered a **serious matter**:
 - It amounts to a **lack of confidence in the government**.
 - It may lead to **resignation of the Council of Ministers**.

❖ **Importance:**

- Reflects the **political strength** of the ruling government in the House.
- Provides an opportunity for **MPs to raise national issues**, criticize government policies, or appreciate them.
- Sets the tone for the **government's legislative agenda** for the year.

➤ **Example from Parliament History:**

- In 1978, for the first time in Indian parliamentary history, the government faced defeat on an amendment to the Motion of Thanks.

❖ **Article 88 – Already Discussed**

Lok Sabha Speaker

- The **Government of India Act, 1919** introduced the post of **Speaker** in the Indian legislative system.
- In **1921**, Sir **Frederick Whyte** became the **first Speaker** of the Central Legislative Assembly.
- In **1925**, **Vithalbhai Patel** became the **first Indian Speaker**.
- The Speaker has been mentioned in the **Constitution** under **Articles 93 and 94**.
- **G.V. Mavalankar** was the first Speaker after the adoption of the Constitution.
- **Neelam Sanjiva Reddy** is the only Speaker who later became the **President of India**.
- **M.A. Ayyangar**, **Hukum Singh** and **Shivraj Patil** are among those who have served both as **Speaker and Deputy Speaker**.
- **Meira Kumar** (2009–2014) was the **first woman Speaker** of Lok Sabha.

S.	Speaker	Tenure	Lok Sabha	Special Facts
1	Ganesh Vasudev Mavalankar	15 May 1952 – 27 Feb 1956	1st	First Speaker of Lok Sabha; previously Speaker of Central Legislative Assembly (1946–1947). Died while in office.
2	M. A. Ayyangar	1956–1957	1st	Served as Deputy Speaker before becoming Speaker; first to hold both positions.
		1957–1962	2nd	
3	Sardar Hukam Singh	1962–1967	3rd	
4	Neelam Sanjiva Reddy	1967–1969	4th	Resigned in 1969; later became the 6th President of India (1977–1982).
5	Gurdial Singh Dhillon	1969–1971	4th	
		1971–1975	5th	resigned from the post
6	Bali Ram Bhagat	1976–1977	5th	Served during the Emergency period in India.
7	Neelam Sanjiva Reddy	1977–1977	6th	Shortest tenure as Speaker; resigned to contest Presidential election.
8	K. S. Hegde	1977–1980	6th	Later became a judge in the Supreme Court of India.
9	Balram Jakhar	1980–1985	7th	Longest-serving Speaker; introduced live telecast of Lok Sabha proceedings.
		1985–1989	8th	
10	Rabi Ray	1989–1991	9th	
11	Shivraj Patil	1991–1996	10th	Later served as Union Home Minister (2004–2008).
12	P. A. Sangma	1996–1998	11th	First Speaker from the northeastern region; co-founder of the Nationalist Congress Party (NCP).
13	G. M. C. Balayogi	1998–1999	12th	First Dalit Speaker;
		1999–2002	13th	died in a helicopter crash while in office.
14	Manohar Joshi	2002–2004	13th	First Shiv Sena member to become Speaker; former Chief Minister of Maharashtra.
15	Somnath Chatterjee	2004–2009	14th	Expelled from CPI(M) during his tenure for refusing to resign; known for impartiality.
16	Meira Kumar	2009–2014	15th	First woman Speaker of Lok Sabha; daughter of freedom fighter Jagjivan Ram.
17	Sumitra Mahajan	2014–2019	16th	Second woman Speaker; longest-serving woman MP, representing Indore for eight consecutive terms.
18	Om Birla	2019–2024	17th	
19	Om Birla	2024-present	18th	

Lok Sabha Speakers Who Died While in Office:

1. Ganesh Vasudev Mavalankar
2. G. M. C. Balayogi

Speakers Who Resigned from the Post:

Speaker	Lok Sabha	Reason for Resignation
Neelam Sanjiva Reddy	4th & 6th	Resigned in 1969; later contested and become President of India (1977)
G.S.Dhillon	5th	Resigned to join the Union Cabinet

➤ Lok Sabha Speakers who held the post for two terms:

1. M. A. Ayyangar (Continuous)
2. Gurdial Singh Dhillon (Continuous)
3. Balram Jakhar (Continuous)
4. G. M. C. Balayogi (Continuous)
5. Neelam Sanjiva Reddy (4th and 6th Loksabha, Resigned twice)
6. Om Birla (Continuous)

Election of Speaker: The Lok Sabha elects the Speaker and Deputy Speaker from among its members.

➤ Functions of the Speaker:

- The Speaker continues to function even **after the Lok Sabha is dissolved**, until a **new Speaker is elected**.
- The Speaker **presides over the meetings**, ensures discipline, and conducts the business of the House.
- Also has the power to **suspend members** for disorderly conduct.
- Allocates time for debates and discussions in the House.
- Has final authority in matters of **legislative procedures**.
- Plays a key role in appointing **Parliamentary Committees**.
- Decides on the **disqualification of MPs under the Anti-Defection Law** (as per the **10th Schedule**).

➤ Speaker's Term of Office

- The Speaker's term **does not end with the dissolution of the Lok Sabha**.
He/she **continues in office until the first meeting of the new Lok Sabha** and until a new Speaker is elected.
- All members of the outgoing Lok Sabha **cease to be members** after dissolution, **except the Speaker**, who **remains in office**.

➤ Process of Removal of the Speaker

- A motion for removal must be **introduced in the Lok Sabha** with at least **14 days' notice**.
- It must be **passed by an effective majority** (i.e. majority of the total membership **excluding vacancies**) of the Lok Sabha.
- If the Speaker is unable to discharge duties (due to resignation or removal), the **Deputy Speaker presides**.
- The Speaker may **resign by submitting a letter to the Deputy Speaker**.
- In the absence of the Deputy Speaker, the resignation is submitted to the **Secretary-General of Lok Sabha**.

Deputy Speaker of Lok Sabha

- **Election and Removal Process** – Same as the Speaker.
- **Elected by** – The Speaker of Lok Sabha.
- **Tenure** – Continues until the **dissolution of Lok Sabha**.

➤ Functions:

- In the **absence of the Speaker**, the **Deputy Speaker presides** over the proceedings of the Lok Sabha.
- If the post of Speaker becomes vacant, the Deputy Speaker assumes the Speaker's responsibilities until a new Speaker is elected.
- The Deputy Speaker is also made the **Chairman of important Parliamentary Committees** this power is similar to the Speaker's.

➤ **Powers and Position:**

- The Deputy Speaker also enjoys **equal powers** like the Speaker when presiding over the House.
- If the Speaker and Deputy Speaker both are absent, then **any other member appointed by the President** presides over the sitting.
- If the Deputy Speaker wishes to resign, they must submit their resignation to the **Speaker of Lok Sabha**.

➤ **Panel of Chairpersons:**

- The Speaker prepares a **panel of 10 members** to chair the House when both the Speaker and Deputy Speaker are unavailable. (**As per Rule No.-9 of Procedure and Conduct of Business Rules, Lok Sabha**)
- Any member from this panel presides temporarily as per Speaker's discretion.
- Members of the panel are appointed by the Speaker under Lok Sabha rules.

Lok Sabha Deputy Speakers:

- **First Deputy Speaker** – M. A. Ayyangar
- **Recently** – No deputy speaker was there in 17th loksabha (2019-24)
- **There is no Deputy Speaker in the 18th Lok Sabha (2024 - present) also.**

Deputy Speakers of Lok Sabha

1	M.A. Ayyangar	(1952–56)	1st Deputy Speaker; later became Speaker
2	Hukam Singh	(1956–57)	Later became Speaker
3	S.V. Krishnamoorthy Rao	(1962–67)	–
4	R.K. Khadilkar	(1967–69)	Later Union Minister
5	G.G. Swell	(1969–77)	1st from Northeast, Longest serving deputy Speaker (Continuous)
6	Godey Murahari	(1977–79)	–
7	G. Lakshmanan	(1980–84)	–
8	M. Thambidurai	(1985–89 and 2014–19)	Longest serving deputy Speaker (in two terms)
9	Shivraj Patil	(1990–91)	Later Speaker & Home Minister
10	S. Mallikarjunaiah	(1991–96)	Liberalisation era
11	Suraj Bhan	(1996–97)	Later Governor
12	P.M. Sayeed	(1998–2004)	Longest-serving MP from UT
13	Charanjit S. Atwal	(2004–09)	–
14	Kariya Munda	(2009–14)	–
15	{Vacant}	(2019–2024)	17th Lok Sabha had no Deputy Speaker
16	{Vacant}	(2024–Present)	18th Loksabha also has no Deputy Speaker

❖ **Pro Tem Speaker (Temporary Speaker)**

- After the general elections to Lok Sabha, the President appoints the senior-most member of the House as the Pro Tem Speaker (a practice derived from the French system).
- **17th Lok Sabha (2019)** – Dr. Virendra Kumar
- **18th Lok Sabha (2024)** – Bhartruhari Mahtab

➤ **Two Main Duties of the Pro Tem Speaker:**

1. Administering the oath to all newly elected members of Lok Sabha.
2. Conducting the election of the new Speaker (The date of Speaker's election is fixed by the President.)

➤ **Additional Points:**

- The Pro Tem Speaker takes oath from the President (as he is already a member of the House).
- Once the new Speaker is elected, the office of the Pro Tem Speaker automatically ends.
- The Pro Tem Speaker enjoys all the powers of a regular Speaker during his term.

❖ **Chairman of the Rajya Sabha**

- The Vice President of India is the ex-officio Chairman of the Rajya Sabha.
- Term – 5 years
- Powers – Same as those of the Speaker of the Lok Sabha
- **Exceptions (Limitations of the Chairman):**
 1. No power over Money Bills.
 2. No power regarding Joint Sitzings of Parliament.
 3. No power in matters related to the leadership of the Parliamentary Party/Group.
- **Deputy Chairman of Rajya Sabha**
 - The election and removal procedure is the same as that of the Speaker and Deputy Speaker of Lok Sabha.
 - The Deputy Chairman presides over the meetings of Rajya Sabha in the absence of the Chairman (Vice President).
 - When the Deputy Chairman is presiding, he does not possess special powers like the Chairman, but only the powers granted to a presiding officer.
 - The Deputy Chairman is elected from among the members of Rajya Sabha for a term of 6 years.
 - The removal of the Deputy Chairman can be done by passing a resolution with a majority of all the members of Rajya Sabha.
- **Panel of Vice-Chairpersons**
 - A **panel of 6 members** of Vice-Chairpersons is prepared in the Rajya Sabha. (As per Rule No.-8 of Procedure and Conduct of Business Rules, Rajya Sabha)
 - The panel is nominated by the Chairman, and the members in the panel do not resign after presiding.
 - In the absence of both the Chairman and Deputy Chairman, members from the panel preside over the meetings.
 - If both the Chairman and Deputy Chairman are vacant, the President appoints a member to act as Chairman.

Role of the Vice President as Chairman of the Rajya Sabha**{For Mains}****Q. Discuss the role of the Vice President of India as the Chairman of Rajya Sabha. (UPSC Mains- 2022)**

Role	Key Responsibilities	Example
1. Maintaining Order and Decorum	- Conducts Proceedings - Maintains discipline - Can suspend or adjourn sittings during disruptions or lack of quorum	In 1989, Chairman Dr. Shanker Dayal Sharma suspended 7 members for disrupting the Bofors debate.
2. Interpreting Rules and Procedures	- Final authority on rules and constitution within the House - Sets Precedents for future rulings	In 2013, Hamid Ansari ruled that state issues can't be raised in Zero Hour unless they have national importance.
3. Legislative Functions	- Decides if a bill or motions is admissible - Refers bills to committees - Certifies Money Bills - Can Correct errors in passed bills	Referring bills to committees and correcting legislative and technical errors.
4. Administrative Role	- Heads the Rajya Sabha Secretariat - Appoints parliamentary committees and their heads - Manages the administration of the House	Vice President K.R. Narayanan started computerization of Rajya Sabha Secretariat (1992-1997).
5. Representing Rajya Sabha	- Interacts with other constitutional authorities - Leads parliamentary delegations - Builds international parliamentary relations	In 2003, Bhairon Singh Shekhawat led a delegation to China to improve ties.

6. Quasi-Judicial Functions	- Decides on disqualification of members under the anti-defection law - Rules on breach of privilege matters	In 1993, K.R. Narayanan disqualified 4 Janata Dal MPs under the anti-defection law.
7. Casting Vote	- Can use casting vote in case of a tie (Article 100)	In 1991, Narayanan cast the deciding vote on President's Rule in Haryana.

	Speaker of Lok Sabha	Deputy Speaker of Lok Sabha	Rajya Sabha Chairman	Rajya Sabha Deputy Chairman
Election	From the Lok Sabha members	From the Lok Sabha members	Vice President (ex officio Chairman)	From the Rajya Sabha members
Who conducts the elections?	By Protem Speaker	By the Speaker		By Rajya Sabha Chairman
Election Date fixed by	By President	By the Rajya Sabha Chairman		By Rajya Sabha Chairman
Tenure	Till the first meeting of the next Lok Sabha	Until the dissolution of the Lok Sabha	5 Years	As long as remains a member.
Removal Process	Passed by a majority of all the then members of Lok Sabha	Passed by a majority of all the then members of Lok Sabha	Passed by the majority of all the then members of Rajya Sabha and agreed to by Lok Sabha	Passed by a majority of all the then members of Rajya Sabha
Resignation	Deputy Speaker of Lok Sabha	Speaker of Lok Sabha	To the President	To the Rajya Sabha Charman
In case of Absence	Speaker/Deputy Speaker - Panel of 10 Members		Chairman/Deputy Chairman → Panel of 6 members	
In case of vacant Post	Appointment of temporary Speaker by the President		Appointment of the temporary Chairman by the President.	

Rajya Sabha	Lok Sabha
Article 89 - Chairman : Ex-Officio (Vice President) Deputy Chairman : Election	Article 93 - Speaker & Deputy Speaker - Election
Article 90 - Tenure and removal procedure of Deputy Chairman	Article 94 - Tenure and removal procedure of Speaker and Deputy Speaker.
Article 91 - Discharge of duties in absence of Chairman - 1. Deputy Chairman 2. Panel (Rule No.-8) If Both office are Vacant-Temporary Chairman Appointed by President	Article 95 - Discharge of duties in absence of Speaker- 1. Deputy Speaker 2. Panel (Rule No.-9) If Both office are Vacant-Temporary Speaker Appointed by President
Article 92 - The Chairman or the deputy Chairman not to preside while a resolution for his removal from office is under consideration.	Article 96 - The Speaker or the Deputy Speaker not to preside while a resolution for his removal from office is under consideration.

Notable Deputy chairperson of Rajya Sabha

- **S. V. Krishnamoorthy Rao (1952–1962)** – He was the first-ever Deputy Chairperson of the Rajya Sabha after independence.
- **Violet Alva (1962 - 1969)** - First woman Deputy Chair Person of the Rajya Sabha.
- **Godey Murahari (1972–1977).**
- **Ram Niwas Mirdha (1977-1980)**
- **Najma Heptulla (1985–1986 & 1988–2004)** – Second woman to hold the position of Deputy Chairperson. She has been the **longest serving Deputy Chairperson** of Rajya Sabha.

Harivansh Narayan Singh (2018–at present)

➤ **Article 97 – Salaries & Allowances**

- Chairman, Deputy Chairman (Rajya Sabha) and Speaker, Deputy Speaker (Lok Sabha) get salary and allowances as fixed by Parliament by law.
- Till such a law is made, they receive salaries mentioned in the Second Schedule.

➤ **Article 98 – Secretariat of Parliament**

1. **Each House** (Lok Sabha and Rajya Sabha) has **separate secretarial staff**. But some posts can be common to both Houses.
2. **Parliament** can make laws to decide:
 - Recruitment of secretarial staff.
 - Service conditions of secretariat staff.
3. **Until Parliament makes a law**, the **President**, after consulting the **Speaker (Lok Sabha)** or **Chairman (Rajya Sabha)**, can make **rules** on:
 - Recruitment
 - Service conditions
 - These rules are valid unless replaced by a law.

- **Secretariat of Parliament:** The Secretariat of Parliament refers to the administrative staff and officers who assist in the smooth functioning of the Lok Sabha and Rajya Sabha.
- **Secretary-General of Parliament:** The Secretary-General is the top administrative officer of the Lok Sabha or Rajya Sabha.
 - There is **one Secretary-General for each House**:
 - ✓ **Secretary-General of Lok Sabha**
 - Secretary-General of Rajya Sabha**
 - Appointment:** The Secretary-General of the Lok Sabha is appointed by the Speaker of the Lok Sabha.
The Secretary-General of the Rajya Sabha is appointed by the Chairman (Vice President).
 - Status:** Has the **rank equivalent to Cabinet Secretary** (top-most bureaucrat).
 - Functions:**
 - ✓ Assists the Presiding Officer in conducting proceedings.
 - ✓ Advises on parliamentary procedures.
 - ✓ Prepares agenda, maintains records, and supervises secretariat work.
 - ✓ Acts as link between members and administration.
 - ✓ Swears in new members under the authority of the President, if so appointed.
- **Cabinet Secretary (CS)**
 - **Appointed by:** Appointments Committee of the Cabinet (ACC)
 - **Basis:** *Seniority-cum-merit*

- **Tenure:** 2 years (as per latest appointment from Aug 30, 2024)
- **Rules Administered:**
 - Government of India (Allocation of Business) Rules, 1961
 - Government of India (Transaction of Business) Rules, 1961
- **Functions:**
 - Ensures **inter-ministerial coordination**.
 - Resolves **differences among ministries**.
 - Ex-officio **Chairman of Civil Services Board (CSB)**.
 - Considered *primus inter pares* (first among equals) among Union secretaries.
 - **No direct authority** over working departments.

Question: Which of the following is/are the function/functions of the Cabinet Secretariat? [UPSC Pre 2014]

1. Preparation of agenda for Cabinet Meetings
2. Secretarial assistance to Cabinet Committees
3. Allocation of financial resources to the Ministries

Select the correct answer using the code given below:

- (a) 1 only (b) 2 and 3 only (c) 1 and 2 only (d) 1, 2 and 3

➤ **Article 99 – Oath or Affirmation by Members**

- Every **MP (Lok Sabha or Rajya Sabha)** must take **oath or affirmation before taking their seat**.
- The oath is taken **before the President** or a person **appointed by the President**.
- The form of oath is given in the Third Schedule of the Constitution.

➤ **Article 100 – Voting, Quorum, and Validity of Proceedings**

1. **Decisions in Parliament** (Lok Sabha/Rajya Sabha or Joint Sitting):
 - Made by majority of members present and voting.
 - Speaker/Chairman does not vote initially, but can give casting vote in case of tie.
2. **Vacancies do not affect the validity** of proceedings.
 - Even if later found that someone participated wrongfully, the work done remains valid.
3. **Quorum = {Minimum attendance required to commence a sitting of the House}**
 - **Must be 1/10th of total members** of the House.
4. **If quorum not present** during a meeting: Speaker or Chairman must adjourn or suspend the meeting till quorum is met.

❖ **Leader of the House**

- Not mentioned in the Constitution but referred to in Rules of Procedure (Rule no 2)
- The Prime Minister is considered the Leader of the House (of any house he/she is a member)
- In another house, any minister (nominated by the PM) can be the Leader.
- **Current Leader in Rajya Sabha:** JP Nadda.

❖ **Leader of the Opposition**

- Post created in 1969.
- In 1977, statutory recognition was given — the Leader of Opposition is given the status of a Cabinet Minister. (in Lok Sabha Y.V.Chahvan, in Rajyasabha Kamalapati Tripathi)
- A party must secure at least 10% of the total strength of the House to qualify.
- In 2024, Rahul Gandhi was elected as Leader of the Opposition in Lok Sabha (Congress: 99/543 seats).
- **Deputy Leader (2024): Gaurav Gogoi**
- First leader of opposition was Ram Subhag singh (INC-I) in Lok Sabha and Shyam Nandan Mishra was in rajyasabha

❖ **Whip**

- Not mentioned in the Constitution or parliamentary rules — it is a convention of parliamentary government.
- Every political party appoints a Whip to ensure party discipline during voting.
- MPs must follow the Whip's instructions,
 - (a) They may face disqualification under the Anti-Defection Law.
 - (b) Disqualification applies if defiance is not condoned by the party within 15 days.
- Whip is NOT applicable in secret voting (e.g., for President or Vice-President).
- The Chief Whip of the ruling party is often the Parliamentary Affairs Minister.

❖ **Lame Duck Session**

- Refers to the last session of the current Lok Sabha, after the general election has been held, but before the new House is formed.
- Called "lame-duck" because many sitting MPs have already lost or not contested.

❖ **Yielding the Floor**

- A practice where the Speaker allows a member to give up their time to let another member speak.
- It's voluntary and with Speaker's permission.

❖ **Crossing the Floor**

- When a member moves to the other side of the House (e.g., ruling to opposition) during a session.
- Seen as a serious violation of parliamentary conduct and often triggers disqualification under the Anti-Defection Law.

❖ **Sine Die**

- "Sine Die" is a Latin term meaning "without assigning a day for the next meeting."

When a House of Parliament is adjourned without fixing any date for the next sitting, it is called a Sine Die adjournment.

➤ **Article 101 – Vacation of Seats****1. Dual Membership in Parliament Not Allowed**

- A person cannot be a member of both Lok Sabha and Rajya Sabha at the same time.
- Parliament will make a law to decide which seat must be vacated if someone is elected to both Houses.

Representation of the People Act, 1951**Section 68: Elected to Both Lok Sabha & Rajya Sabha**

- If a person is elected to both Lok Sabha and Rajya Sabha but hasn't taken oath in either, they must choose one House within 10 days.
If they don't choose, their Rajya Sabha seat gets vacated automatically. The decision, once made, cannot be changed.
- Example: Dr. Subramanian Swamy (BJP leader) was elected to both Houses earlier in his career. He opted for Rajya Sabha, and Lok Sabha seat became vacant.

Section 69: Already MP in One House, Then Elected to Other

- If someone is already a sitting MP in Lok Sabha or Rajya Sabha, and they get elected to the other House, their old seat becomes vacant automatically on the date of new election.

Example: Smirti Irani

Section 70: Elected to More Than One Seat

- If someone wins more than one seat (e.g., 2 Lok Sabha seats, or 1 Lok Sabha + 1 Vidhan Sabha), they must resign all but one.
If they don't resign in time → All seats are vacated automatically.
- Narendra Modi won from Varanasi (U.P.) and Vadodara (Gujarat) in 2014 Lok Sabha elections. He kept Varanasi and resigned from Vadodara.

2. Membership in Parliament and State Legislature Not Allowed Together

- A person cannot be a member of both Parliament and a State Legislature at the same time.
- If someone is elected to both, They must resign from one post within a time period set by rules made by the President.

Section – 70 of RPA ACT 1951 – 14 days from date of election result

- They Fail to do so :- Their seat in Parliament becomes vacant automatically after the 14 - Day Period.

3. Disqualification or Resignation

- **A member's seat becomes vacant if:**
 - (a) They become disqualified under Article 102(1)
 - (b) They resign by writing to the Chairman (Rajya Sabha) or Speaker (Lok Sabha), and it is accepted.
- **Important Condition:** If the resignation is found to be not voluntary or genuine, the Chairman or Speaker can reject the resignation after an inquiry. (added by 33rd Constitutional Amendment Act, 1974)

4. Vacancy of a member's seat due to absence without permission

- If a member is absent for **60 days** continuously without permission, the House may declare the seat vacant.

Note:

- The 60-day count does not include days when the House is adjourned for more than 4 days or prorogued.

Summary

Clause Type	Condition	Time Limit	Result if Not Complied
Dual Membership – LS + RS	Elected to both Lok Sabha & Rajya Sabha	10 days	Rajya Sabha seat becomes vacant
LS → RS (or vice versa)	Already MP of one House, elected to other	Same day (auto)	Previous House seat vacated
2 LS Seats	Elected to two Lok Sabha constituencies	14 days	Both seats become vacant
LS + State MLA	Elected to Parliament + State Assembly	14 days	Parliament seat becomes vacant
Absence	Absent for 60 days without permission	—	Seat can be declared vacant
Resignation / Disqualification	Disqualified under Art. 102 or resigns	—	Seat vacated if resignation is genuine



Do you Know ?

By-elections are held when a member of the Lok Sabha or State Assembly dies or resigns, creating a vacancy.

By-elections are held in a single constituency to fill a seat left open by a member's death or resignation.

- It has to be conducted before six months have passed since the seat became vacant.
- The representative is chosen to serve out the remaining term.
- If remaining tenure is less than 1 year, then by election is not required.

➤ **Article 102 – Disqualification of Member of Parliament**

- ❖ **Art. 102(1):** A Member of Parliament (MP) can be disqualified under the following conditions:
 - A. If the MP **holds an office of profit** under the Union or any State Government.
 - B. If declared of **unsound mind** by a competent court.
 - C. If declared **insolvent by a court**.
 - D. If the MP is **not a citizen of India**
 - E. Other disqualifications may be **laid down by Parliament by law**.
- ❖ **Art. 102(2):** A person shall be disqualified for being a member of either House of Parliament if he is so disqualified under the Tenth Schedule. (52nd CA 1985)
- ❖ **Disqualifications under the Representation of the People Act, 1951:**

Section	Ground of Disqualification	Section	Ground of Disqualification
8(1)	Conviction for serious offences (e.g. rape, terrorism, etc.)	8(2)	Conviction for hoarding, food/drug adulteration, dowry
8(3)	Any other offence with ≥ 2 yrs imprisonment	8(4)	<i>(Now inoperative)</i> Appeal protection for sitting MP/MLA
8A	Guilty of corrupt practices (election-related)	9	Dismissal from govt. service for corruption/disloyalty
9A	Holding government contract (supply or work)	10	Holding office in govt. company ($\geq 25\%$ govt. share)
10A	Failure to submit election expenses	11	EC's power to remove disqualification (except Sec 8A)

Major Supreme Court Judgements Related To Disqualification

2002	ADR Case – Union of India vs. Association for Democratic Reforms	SC mandated disclosure of criminal records, assets, education in nomination forms.
2005	Ramesh Dalal Case	SC ruled convicted sitting MP is also disqualified from contesting if sentenced to 2+ years.
2013	Lily Thomas vs. Union of India (Landmark Judgment)	SC struck down Section 8(4) as unconstitutional. Effect: Immediate disqualification upon conviction.
2013	Govt attempted Ordinance	Tried to reinstate 8(4); withdrawn after strong public and political backlash.
2019	P.S. Tamang Case (Sikkim CM)	EC used Section 11 RPA to reduce disqualification duration – highlighted EC's discretionary powers.

➤ **Article 103 – Decision on Disqualification of Members**

- ❖ **Clause (1):** If there is any **question** about whether a **Member of Parliament** has become **disqualified** under **Article 102(1)** (e.g., office of profit, foreign citizenship, etc.):
 - The matter will be decided by the President.
 - The President's decision is final.
- ❖ **Clause (2):** Before making a decision, the **President must consult the Election Commission**.
 - The President is bound to act according to the opinion of the Election Commission.

Rahul Gandhi (Lok Sabha MP- Waynad Kerala)– Disqualification

1. In March 2023, convicted in a defamation case over “Modi surname” remark; sentenced to 2 years.
2. Disqualified under Section 8(3) of RPA the very next day, losing Lok Sabha membership (Wayanad). the Lok Sabha Secretariat issued a notification declaring his disqualification.
3. His case drew criticism for speedy disqualification and political targeting.
4. Gujarat HC refused to stay conviction, but later SC granted stay in August 2023.
5. Disqualification was revoked, and he was reinstated as MP from Wayanad.

❖ **Relevant Legal & Political Facts**

- Disqualification based on Representation of the People Act, Section 8(3).
- Stay on conviction (not just sentence) is necessary to reverse disqualification.

Lacunae in Article 103 & 192 {Mains}

Issue	Problem	Example
No time Limit for decision	Leads to long delays in deciding disqualification	17 MLAs in Karnataka (2018) defection case delay in decision worsened political instability
Political influence	Ruling party may stall or manipulate the process	Andhra Pradesh MLCs' disqualification pending for years despite clear grounds
No interim action	Member continues to enjoy power despite serious charges	Convicted MPs/MLAs functioning until final decision under Article 103/192
No Appeal clarity	Unclear if and how President's/ Governor's decision can be challenged	Court had to intervene in multiple EC advice cases; eg. Jaya Bachchan's case
Legal basis is in the RPA, not in the Constitution.	Most disqualifications are described in the Representation of the People Act, 1951, while the Constitution provides only the general framework.	Automatic disqualification under Section 8(3) of the Representation of the People Act, 1951, on the basis of conviction. (<i>Example – Rahul Gandhi case, 2023</i>)
Tension with Tenth Schedule	Under Article 192, the Governor is the decision-maker, whereas in defection cases, the decision is made by the Speaker under the Tenth Schedule; this creates constitutional ambiguity.	Maharashtra (2022) – The decision on MLAs related to defection was taken by the Speaker, whereas Article 192 of the Constitution mentions the Governor.



1. Right to Vote (While in Jail)

Provision	What It Says
Section 62(5) of the Representation of the People Act, 1951	A person confined in prison (whether under conviction or under-trial), cannot vote in any election.
Exception	Only persons under preventive detention are allowed to vote.
Constitutional Basis	Right to vote is a Constitutional Right (Article-326).

Case Reference: Anukul Chandra Pradhan vs Union of India (1997)

The Supreme Court upheld Section 62(5), stating that denying voting rights to prisoners is not unconstitutional.

2. Right to Contest Election (While in Jail)

Provision	What It Says
Section 8(3) of the Representation of the People Act, 1951	If a person is convicted and sentenced to 2 years or more, they are disqualified from contesting elections.
Under-trial Prisoners	A person not yet convicted (i.e., under-trial) can contest elections.
Convicted Person	Cannot contest elections during sentence + 6 years after release (as per Sec 8(3)).

Status	Right to Vote	Right to Contest
Under-trial in jail	Not allowed	Allowed
Convicted (< 2 yrs)	Not allowed	Allowed
Convicted (≥ 2 yrs)	Not allowed	Not allowed
Preventive Detention	Allowed	Allowed (if not convicted)

➤ Article 104 – Penalty for Sitting or Voting Illegally in Parliament

❖ If a person: **Sits or votes in Parliament**

- Without taking the oath/affirmation under Article 99 Or
- Even though they are not qualified, disqualified, or prohibited by law,
- Then, they will have to pay a penalty of ₹500 for each day they sit or vote illegally.
- This penalty will be collected as a debt owed to the Union Government.

➤ Article 105– Powers and Privileges of Parliament, its Members, and Committees

❖ **Clause (1) – Freedom of Speech in Parliament**

- Every Member of Parliament (MP) has **freedom of speech inside Parliament**.
- But this freedom is **subject to**:
 - Provisions of Constitution
 - Rules and procedures of Parliament

❖ **Clause (2) – No Legal Action for Parliamentary Work**

- MPs **cannot be taken to court** for:
 - Anything they **say** in Parliament or its committees
 - Any **vote** they give in Parliament or its committees
- Also, **no one can be punished** for **official publication** of Parliament reports, votes, or proceedings if done under the authority of the House.

❖ **Clause (3) – Other Privileges (Defined by Law or Practice)**

- Parliament can make laws to define other **powers and privileges** of:
 - Each House (Lok Sabha & Rajya Sabha)
 - MPs
 - Committees of the House
- Until such laws are made, these privileges will be the same as they existed before the 44th Amendment Act, 1978.

❖ **Clause (4) – Non-Members with Speaking Rights**

- These protections also apply to non-Members (like the Attorney General or Ministers not elected yet)
 - If they have the constitutional right to speak or participate in Parliament or its committees

Sources of Parliamentary Privileges – (Inspired by the British Parliament)

- They will enjoy same privileges as MPs for that purpose-
 - Constitutional provisions
 - Parliamentary rules
 - Parliamentary conventions
 - Judicial decisions
 - Parliamentary Acts

Parliamentary Privileges

Collective Privileges (of the house)	Individual Privileges (of the Member)
1. Power to publish proceedings, debates, and prevent others from unauthorized publishing. 44th Amendment allows press to publish true reports (except secret sittings)	1. Protection from arrest in civil cases 40 days before and after the session.
2. Can exclude Strangers and hold secret sittings.	2. Freedom of speech in Parliament - no court action for speeches or votes.
3. Power to make rules to manage proceedings and internal functioning.	3. Exempted from judicial service - can refuse to give evidence or appear in court during session.
4. Power to punish for breach of privilege - censure, warning, imprisonment, or expulsion.	
5. Right to immediate information in any MP is arrested, detained, convicted, or released.	
6. Power to summon witnesses, conduct inquiries, and demand documents.	
7. No Person (MP or outsider) can face legal proceedings inside House premises without permission of Presiding Officer.	
8. Courts cannot interfere in the internal proceedings of the house.	

❖ **Parliament Privileges Committee**

Aspect	Lok Sabha	Rajya Sabha
Formed by	Speaker	Chairman (VP)
Number of Members	Usually 15 members	Usually 10 members
Membership	Only MPs from Lok Sabha	Only MPs from Rajya Sabha
Function	Examine and report on breach of privilege	Same
Final Action	By the related House	By the related House

❖ **Two Separate Ethics Committees:**

	Committee Formed In	Members Appointed By
Lok Sabha	2000 (based on Speaker's direction)	Speaker of Lok Sabha
Rajya Sabha	1997 (based on Chairman's direction)	Chairman of Rajya Sabha (Vice-President)

❖ **Composition:**

- Membership varies (usually 15 members in Lok Sabha, 10 in Rajya Sabha).
- Members are nominated based on party strength.
- It is chaired by a presiding officer nominated by the Speaker of the Lok Sabha or the Chairman of the Rajya Sabha.

❖ **Difference from privileges Committee:**

Ethics Committee	Privileges Committee
Deals with moral & Ethical misconduct	Deals with breach of privilege/contempt of the House
Focuses on code of conduct	Focuses on Parliament's institutional dignity
May act on external behaviour too	Concerned mostly with actions inside parliament

❖ **Mahua Moitra Case (Cash for Query) Controversy (2023)**

- **Allegation:** Mahua Moitra (TMC MP) was accused of accepting **gifts and cash** for asking questions in Parliament on behalf of a businessman.
- BJP MP Nishikant Dubey alleged she shared her **MP portal login** with the businessman.
- The matter was referred to the Ethics Committee of the Lok Sabha, not to the Privileges Committee.
- **Issues Involved:**
 - Breach of ethical conduct
 - Undermining dignity of the House
 - Misuse of parliamentary privileges
- **Outcome:**
 - In Dec 2023, Lok Sabha expelled her.
 - A rare case of expulsion based solely on ethical grounds.
 - Moitra later challenged the decision in court.

Major Problems in Parliamentary Privileges {Mains}

Problem	Impact	Example
Uncodified Privileges	Ambiguity in scope, misuse passible	Parliament has not passed any law under article 105(3) to define privileges
Misuse for protection	Used to block media/citizen scrutiny	Tamil Nadu Assemble (2017): Privilege motion against journalists for reporting corruptions
Clash with Fundamental Rights	Conflicts with freedom of speech/media	Privilege vs "Right to Know" in Jagdeep S. Chhokar case (ADR)
Judicial Ambiguity	Courts hesitant to interfere, no clear rules	Keshav Singh Case (1965): Allahabad HC vs UP Assembly on privilege
Ethics vs Privilege Overlap	Grey zone; weak accountability	Mahua Moitra case (2023): Cash-for-query raised ethical + privilege concerns

False Sense of Immunity	Encourages misuse of speech protection	MPs making defamatory remarks in parliament and claiming immunity
Lack of Awareness & Transparency	Public doesn't know limits; weak scrutiny	Few citizens know difference between privilege and criminal protection; no regular updates from committee

❖ **UPSC 2014 – GS Paper II (Parliamentary Privileges)**

Q: The powers, privileges and immunities of Parliament and its members as enshrined in Article 105 of the Constitution leave a number of ambiguities and undefined areas. Critically examine the absence of legal codification of parliamentary privileges and suggest a way forward.

❖ **UPSC 2013 – GS Paper II (Private Member's Role & Anti-Defection Law)**

Q: There has been a significant decline in the personal role of Members of Parliament over the years, resulting in a lack of creative, independent debate on policy matters. To what extent can the anti-defection law, originally intended for a different purpose, be held responsible for this?

❖ **UPSC 2019 – GS Paper II (Role of Individual MPs in Law-Making)**

Q: The role of individual MPs (Members of Parliament) as national law-makers is on a decline, which in turn has adversely impacted the quality of debates and their outcomes. Discuss.

➤ **Article 106 – Salaries and Allowances of Members of Parliament**

- **Salaries and Allowances** of Members of Parliament will be **determined by Parliament**.
(Note: These are **not charged on the Consolidated Fund of India**.)
- There is **no mention of pension** for Members of Parliament in the Constitution.
➤ Pensions are also **determined by Parliament** through laws.
- **In the year 2018, Parliament:**
 - Increased the **salary of MPs** from ₹50,000 to ₹1 lakh.
 - Increased the **pension** from ₹20,000 to ₹25,000.
- **March 2025** - After a gap of seven years, the Centre approved a hike in the salaries of MPs, raising them by 24% to Rs 1.24 lakh, from the previous Rs 1 lakh per month.

Legislative process

➤ **Article 107 - Provisions for the introduction and passing of bills in Parliament.**

❖ **Difference Between Private Member Bill and Government Bill**

- The terms "Private Member Bill" and "Government Bill" are not explicitly mentioned in any specific Article of the Indian Constitution. Instead, these are part of parliamentary procedure and practice, governed by the Rules of Procedure and Conduct of Business in both Houses of Parliament

Point of Difference	Government Bill	Private Member Bill
Introduced By	A minister (from ruling government)	Any MP who is not a minister (ruling or opposition)
Represents	The official policy of the government	The individual view of the MP
Government Support	Backed by the Cabinet	Generally not backed by the government
Chance of Passage	High, due to ruling party majority and whip	Low, due to lack of government support
Debate Priority	Gets higher priority in business scheduling	Taken up only on Fridays, limited time
Bill Examples	GST Bill, Citizenship Amendment Bill, etc.	Transgender Persons Rights Bill (2014), Right to Education Bill (before govt adopted it)

❖ **Recent Example of Private Member Bill:**

- **Uniform Civil Code Bill, 2022** introduced by BJP MP Kirodi Lal Meena in Rajya Sabha — example of a Private Member's Bill that generated wide discussion but not passed.

❖ **History of Private Member Bills (PMBs)**

- A **Private Member Bill** is introduced by any MP **who is not a minister**.
- It is a **non-government bill**, meant to raise public issues or suggest legal reforms.
- First PMB introduced in 1952 during the First Lok Sabha session. (muslim waqf bill)
- last time a private member's bill was passed by both **Houses was in 1970**.
- It was the **Supreme Court** (Enlargement of Criminal Appellate Jurisdiction) Bill, 1968.
- **14 private member's bills** — five of which were introduced in Rajya Sabha — have become law so far.
- PMBs are usually **debated on Fridays**, with **less priority** in legislative business.
- Despite low passage rate, PMBs are important for the followingg:
 - Raising non-government perspectives
 - Initiating public debates
 - Highlighting grassroots issues

❖ **A Bill is Passed Through Three Readings in the Parliament:****1. First Reading**

- A general introduction of the bill is given.
- No discussion or voting takes place at this stage.
- If the bill is already published in the Gazette, it is considered to have undergone the first reading.

2. Second Reading

This has three sub-stages:

(i) General Discussion

- General discussion on the bill's principle and objectives.
- The bill may be referred to a Select Committee or Joint Committee, or scheduled for clause-wise discussion on a later date.
- A summary may be published in newspapers for public awareness.

(ii) Committee Stage

- The bill is examined clause by clause.
- Each clause is discussed in detail and necessary amendments are suggested.

(iii) Consideration Stage

- The bill is considered clause-wise in the House.
- Amendments proposed are discussed and voted on.
- The amended bill is then adopted by the House.

3. Third Reading

- Final discussion on the complete bill (limited to acceptance or rejection).
- No further amendments can be proposed, but grammatical and language corrections may be allowed.
- The bill is passed by voting.
- Once passed in one House, the bill is sent to the other House.

❖ **Process in the Second House**

- The same three-reading process is followed.
- The second House can withhold a bill for a maximum of 6 months.
- If the second House passes the bill with amendments, it is sent back to the first House.
- If both Houses pass the bill in identical form, it is sent to the President for assent

❖ Provisions of article 107

Clause	Summary
1	A Bill can start in either House (except Money/Finance Bills)
2	A Bill passes only if both House Agree
3	Prorogation doesn't end a pending Bill
4	Rajya Sabha Bills Survive Lok Sabha Dissolution
5	Lok Sabha Bills Lapse on Dissolution (unless joint sitting applies)

➤ Article 111 – President's Assent on a Bill

When a bill is sent to the **President**, he has **three options**:

1. **Give assent** to the bill
2. **Withhold assent** (i.e. reject the bill)
3. **Return the bill** to the Parliament for **reconsideration** (except Money Bills)

Veto Power of President

President of India can exercise three types of veto powers namely Absolute, Suspensive and Pocket Veto.

1. Absolute Veto	If the President withholds his assent to a bill, that is, rejects the bill, it is called absolute veto. ❖ Till now this veto power has been used twice- i. By Dr. Rajendra Prasad withholding his decision on the PEPSU Appropriation Bill in 1954. ii. By stopping the Members of Parliament Salary, Allowances and Pension (Amendment) Bill by Dr. R. Venkataraman in 1991.
2. Suspensive Veto	• If the President sends a bill back to the Parliament for reconsideration, it is called suspensive veto. • The President can send back a bill for reconsideration only once. This was used by President APJ Abdul Kalam on the Office of Profit Bill, 2006. • Regarding the Member of Parliament (Prevention of Disqualification) Amendment Bill. • The President cannot exercise this veto on a money bill.
3. Pocket Veto	• There is no mention of the time limit for signing a bill by the President in the Indian Constitution. • If the President neither agrees nor disagrees with the bill nor sends it back for reconsideration but keeps the bill with himself indefinitely, it is called pocket veto. • So far this veto has been used only once. 1986-President Giani Zail Singh Indian Post Office (Amendment) Bill. • The President has no veto power over a Constitution Amendment bill.

Veto Powers of the U.S. President

{Mains}

In the United States, the President plays a significant role in the legislative process through various **veto powers** granted by the U.S. Constitution (Article I, Section 7).

1. **Regular Veto (Qualified Veto)**

The President refuses to sign a bill and **returns it to Congress** with objections.

Override Possibility: Congress can override this veto if both the House of Representatives and the Senate pass the bill again with a **two-thirds majority**.

2. **Pocket Veto:** If the President takes **no action on a bill within 10 days** and Congress **adjourns** during that period, the bill **does not become law**.
 - The President doesn't need to provide any reason.
3. **Line-Item Veto (No Longer Allowed)**
The power to veto **specific provisions or items** in a bill (usually budget-related) without rejecting the whole bill. In 1998 the Supreme Court declared it unconstitutional.

➤ Article 108 - Joint Sitting

- If there is a disagreement between both the houses of the bill (one House passes the bill and the other does not), then the President can summon both the Houses to meet in a joint sitting.

❖ When can a Joint Sitting be called?(Article 108(1))

- A joint sitting may be summoned by the President **only under three conditions**:
 - If a bill has been passed by one House and **rejected** by the other.
 - If the Houses **disagree on amendments** to be made.
 - If **more than six months elapse** without the other House passing the bill.

- **Note:** "Six months" excludes periods during which the House is prorogued or adjourned for more than 4 consecutive days.(Article 108(2)).

Article 108(3) -Once the President issues a notification for a joint sitting, neither House can take any further action on the bill.

The President can summon both Houses to meet for a joint sitting **any time after the notification**, and they must meet for the purpose mentioned in it.

❖ Bills Not Subject to Joint Sitting

- As per the Constitution and parliamentary practice, the following bills **cannot** be referred to a joint sitting:
 - **Money Bills** – as per Article 110, can only be introduced and passed in Lok Sabha.
 - **Constitutional Amendment Bills** – governed by Article 368; must be passed **separately** by both Houses with a special majority.

❖ Voting Procedure

- Decision is taken by simple majority of members present and voting.
- The voting process is collective for both Houses—there is no separate provision for a Voice Vote or Division Vote for any specific House.

❖ Comparison with Other Countries

{For Mains / Interview}

- In the **USA**, no provision of joint sitting to resolve legislative deadlock; instead, a bill must be passed in identical form by both Houses.
- In **Australia**, joint sittings are allowed but under a much stricter process involving double dissolution.

❖ Till now joint sitting has been called three times:

1. 1962 - Dowry Prohibition Act
2. 1978 - Banking Service Commission (Repeal) Act
3. 2002 - Prevention of Terrorism Act (POTA)

Very Important

Article 118 (3) **Rules for Joint Sitzings:**

The **President**, after consulting the **Chairman of Rajya Sabha** and the **Speaker of Lok Sabha**, may make rules regarding:

- Procedure for **joint sittings** of both Houses
- **Communication** between the two Houses

Article 118(4) **Presiding Officer in Joint Sitting:**

At a joint sitting:

- The **Speaker of Lok Sabha** presides
- If absent, such person as may be determined by **rules of procedure** made under clause (3), shall preside.

➤ **Article 110 – What is a Money Bill?**

A bill is called a **Money Bill** only if it deals with **all or any** of the following matters:

❖ **Matters Covered in a Money Bill (Clause 1):**

1. **Taxes** – Imposing, removing, increasing, decreasing, or regulating any kind of tax.
2. **Government Borrowing** – Taking loans or giving guarantees by the Government of India.
3. **Consolidated & Contingency Funds** – Managing money kept in or withdrawn from these funds.
4. **Appropriation of Funds** – Permission to take money out of the Consolidated Fund of India.
5. **Charged Expenditure** – Declaring any expense as compulsory (charged) on the Consolidated Fund or increasing such expenditure.
6. **Receipts & Audits** – Receiving money into Consolidated/Public Account of India or related to audit of Union/State accounts.
7. **Related Matters** – Any matter **incidental (connected)** to the above 6 points.

❖ **What is NOT a Money Bill (Clause 2):** A bill is **not considered a Money Bill** just because it includes:

- Fines or penalties,
- Fees for licences or services,
- Taxes collected by **local bodies or authorities**.

❖ **Who decides if it's a Money Bill? (Clause 3):**

- The **Speaker of Lok Sabha** decides whether a bill is a Money Bill or not.
- His decision is **final** and **cannot be challenged**.

❖ **Certification (Clause 4):**

- The Speaker must **certify** the bill as a **Money Bill** when:
 - It is sent to the Rajya Sabha (Article 109), and
 - It is sent to the President for approval (Article 111).
- This certificate is **signed by the Speaker**.

➤ **Article 109 – Procedure in respect of Money Bill**

- A Money Bill can be introduced only on the **recommendation of the President**.
- A Money Bill can be introduced only in the **Lok Sabha**.
- Whether a bill is a Money Bill or not is **decided by the Speaker** of Lok Sabha, and his decision is final.
- The **Rajya Sabha cannot reject or amend** a Money Bill. It can only withhold the bill for a maximum period of **14 days**.
- Rajya Sabha can only make **recommendations**. Lok Sabha may accept or reject all or any of those recommendations.
- The **President cannot return** the Money Bill to Parliament for **reconsideration**.
- A Money Bill is always a **Government bill**.

	Ordinary Bill (Article 107)	Money Bill (Article 109)	Finance Bill (Article 117(1))	Constitution Amendment Bill (Article 368)	States Reorganisation Bill (Article 3)
Presented	- In any house - Government/ Private Bill (Both) - No Prior approval of the President is required	- Only in LS - Only Government Bill - Prior Permission Required	- Only in LS - Only Government Bill - Prior Permission required	- In any House - Government/ Private Bill (Both) - No prior permission required	- In any House - Government/ Private Bill (Both) - Prior Permission Requirement
Lok Sabha	- Simple procedure - Simple majority	- Decided by signature of LS Speaker - Simple Majority	- Simple procedure - Simple Majority	Special Majority	Simple Majority
Rajya Sabha	- Normal Procedure - Simple Majority	- Can only hold for 14 Days. - Cannot amend - Cannot reconsider	- Simple Procedure - Simple Majority	Special Majority	Simple Majority
President Powers	- Agree - Disagree - Reconsideration	- Agree - Disagree	- Agree - Disagree - Reconsideration	Agree (24th CA)	- Agree - Disagree
Joint Sitting	Possible	Not possible	Possible	Not possible	

Article 110	Article 117(1)	Article 117(3)
If any bill has provisions only of Article 110 and no other provisions (Money Bill)	If a bill contains provisions of Article 110 as well as other provisions.	If any bill has no provisions of Article 110, but there are provisions related to Consolidated Fund of India
It can be introduced by President's prior consent.	It is introduced with the prior permission of the President.	
It can be introduced in Lok Sabha only.	It can be introduced only in the Lok Sabha.	Prior consent of the President is not required to introduce this bill.
Lok Sabha speaker certifies it- While sending to Rajya Sabha While sending to the President	After this, it is passed like an ordinary bill. Rajya Sabha can reject it. Provision of joint sitting also.	It can be introduced in any of the House.
President cannot return for reconsideration.	The President can return it for reconsideration. It should be passed within 75 days.	Discussion can only take place after the President's recommendations.

❖ **All money bills are finance bills but all finance bills are not money bills.**

Explanation

- A **Money Bill** is a **type of Finance Bill**, dealing **only** with matters listed in Article 110 (like taxation, borrowing, Consolidated Fund, etc.).

- A **Finance Bill** includes **all financial legislation**, including **Money Bills** and other financial matters not strictly covered under Article 110.

So:

- **Money Bill $\subset$ Finance Bill**
- But **Finance Bill $\neq$ Money Bill** always

Speaker's Certification & Related Controversy

{Mains}

➤ Expansive Interpretation

- Critics argue the Speaker's power has been stretched to classify bills with only minor or indirect financial content as Money Bills.

➤ Bypassing the Rajya Sabha

- Such classification enables the government to avoid scrutiny by the Upper House, especially when it lacks a majority there.
- This practice undermines bicameralism and the role of the Rajya Sabha.

Notable Examples

- Aadhaar Act, 2016
- Finance Act, 2017 – included provisions related to tribunals
- Amendments to the Prevention of Money Laundering Act (PMLA)

Constitutional Challenges & Judicial Review on Money Bills

1. **Jairam Ramesh vs Union of India**

- Challenged the classification of the Aadhaar Act (2016) as a Money Bill.
- Argued that it bypassed the Rajya Sabha unconstitutionally.

2. **Supreme Court's Initial View (Puttaswamy Judgment, 2018)**

- In a 4:3 majority, the Court upheld the Speaker's certification of Aadhaar as a Money Bill.
- However, the dissenting judges raised strong objections over parliamentary procedure being misused.

3. **Reconsideration (2019)**

- A 5-judge bench of the Supreme Court referred the matter to a larger bench, citing its constitutional significance.

4. **Pending Review**

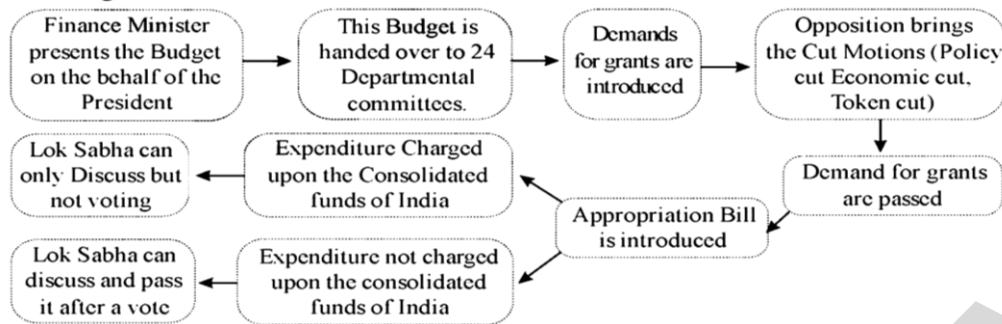
- A 7-judge Constitution Bench is expected to hear and decide this issue.
- The verdict could redefine the scope and application of Article 110 and the Speaker's powers.

❖ **Significance vs Issues of Money Bills**

Significance	Issues
Financial Control	Bypassing Rajya Sabha
Efficient Fiscal Management	Broad Interpretation
Parliamentary Supremacy	Speaker's Discretion
Accountability	Controversial Usage
Constitutional Balance	Constitutional Challenges
	Impact on Federalism
	Legislative Strategy

Article 112 - 'Annual Financial Statement' (Budget)

The word 'budget' is not mentioned in the Constitution.



- The **President** shall lay before both Houses of Parliament a statement of the **estimated receipts and expenditure** of the Government of India for every financial year.
✓ This statement is called the **Annual Financial Statement**.
- The statement shall show expenditure in two separate parts:
 - Amounts required for **expenditure charged** on the Consolidated Fund of India.
 - Amounts required for **other expenditure** proposed from the Consolidated Fund of India.
 It must also separate **revenue expenditure** from **other expenditure**.
- The following shall be treated as **expenditure charged on the Consolidated Fund of India**:
 - President's salary, allowances, and office-related expenditure.
 - Salaries and allowances of:
 - Chairman and Deputy Chairman of the Rajya Sabha
 - Speaker and Deputy Speaker of the Lok Sabha
 - Debt charges, including:
 - Interest payments
 - Sinking fund charges
 - Repayment of loans and associated costs
 - Salaries, allowances, and pensions of Judges of the Supreme Court
 - Pensions of Judges of the Federal Court (historical)
 - Pensions of Judges of any High Court within Indian territory (present or pre-Constitution era)
 - Salary, allowances, and pension of the Comptroller and Auditor General (CAG) of India
 - Any sum required to satisfy a judgment, decree, or award of a court or arbitral tribunal
 - Any other expenditure declared as charged on the Consolidated Fund of India by the Constitution or Parliament by law

Article 113 – Procedure in Parliament with Respect to Estimates

- Expenditure charged on the Consolidated Fund of India:**
 - This part of the estimates is **not put to vote** in Parliament.
 - However, both Houses of Parliament **can discuss** these estimates.
- Other expenditures** (not charged):
 - These are submitted to the **Lok Sabha** as **Demands for Grants**.
 - The Lok Sabha has full power to:
 - Approve** the demand,
 - Reject** the demand, or
 - Approve with a reduction** in the amount.
- No demand for a grant** can be made **without the recommendation of the President**.

Article 114 – Appropriation Bills

1. **Introduction of Appropriation Bill:** After the **Lok Sabha approves the Demands for Grants** (under Article 113), an **Appropriation Bill** is introduced in Parliament.
 - This Bill provides legal authority to withdraw money from the **Consolidated Fund of India** for:
 - (a) The **grants approved** by the Lok Sabha.
 - (b) The **charged expenditure** (which is not voted), but **only up to the amount** mentioned in the annual financial statement.
2. **Restriction on Amendments:**
 - No amendment can be proposed in either House of Parliament that:
 - Changes the **amount or purpose** of any grant approved.
 - Alters the **amount of charged expenditure**.
 - The decision of the **Presiding Officer** on whether an amendment is valid or not is **final**.
3. **Legal Withdrawal Condition:**
 - Except as provided under **Articles 115 and 116** (Supplementary and Vote on Account), **no money can be withdrawn** from the Consolidated Fund of India **unless** it is through a law passed under **this Article** (i.e. Appropriation Bill).

Associated Topics**1. Types of Cut Motions**

Type of Cut Motion	Amount of Reduction	Purpose	Key Features
Policy Cut	Rs. 1	To disapprove the policy underlying the demand	- Represents disapproval of policy - Must specify particular policy for discussion - Allows advocacy for alternative policies
Economy Cut	Specified amount	To effect economy in the expenditure	- Can be lump sum reduction or specific item reduction - Must indicate matter to be discussed - Speeches confined to how economy can be affected
Token Cut	Rs. 100	To ventilate a specific grievance	- Used to raise a specific grievance - Discussion limited to the specified grievance - Symbolic in nature

❖ Common Features of All Cut Motions

- Can be introduced **only in the Lok Sabha**
- Require **admission by the Speaker**
- **Notice must be given at least one day** in advance
- Must relate to **only one demand for grant**
- **Cannot relate to charged expenditure** (which is non-votable)
- **Cannot propose amendments to existing laws**
- **Cannot raise issues** that are **sub judice** (under judicial consideration)

❖ Significance of Cut Motions

- If passed, it amounts to a **censure of government policy**.
- Can lead to **resignation of the government** (if treated as a loss of confidence).
- In practice, **rarely passed** due to the **majority enjoyed by the ruling party**.

Comparison of Government Funds in India

Aspect	Consolidated Fund of India	Contingency Fund of India	Public Account of India
Constitutional Provision	Article 266(1)	Article 267(1)	Article 266(2)
Nature	Main fund for all government receipts and expenditures	Buffer for urgent unforeseen expenditures	Repository for funds held in trust
Contents	All government revenues, loans, and recoveries	Through Finance Act 2021-2022	Provident funds, small savings, reserve funds, deposits
Withdrawals	Requires parliamentary approval through Appropriation Bills	No prior parliamentary approval needed	No parliamentary approval needed
Operation	Operated by the government	Operated by Finance Secretary on behalf of the President	Government acts as a banker
Usage	All regular government expenditures	Emergency or unforeseen expenses	Repayment of money received in trust
Auditing	Audited by Comptroller and Auditor General (CAG)	Audited by CAG	Audited by CAG
Replenishment	Through regular government receipts	Through parliamentary approval after use	Through deposits and interest
State-level Equivalent	Consolidated Fund of the State	Contingency Fund of the State	Public Account of the State

Article 115

1. Supplementary Grant

- Given when the **amount sanctioned in the Appropriation Act (budget)** for a service is **not sufficient** during the current financial year.
- Example: Increase in subsidy or defence spending during the year.

2. Additional Grant

- Sanctioned when a **new need arises** during the current financial year, which was **not included in the original budget**.
- Example: Launching a new welfare scheme not planned at the time of the original budget.

3. Excess Grant

- Required when **expenditure exceeds the amount already approved** for a service.
- Must be approved** by both: The **Public Accounts Committee**, and The **President**.
- Presented to **Lok Sabha** for approval just like regular demands.

➤ **Common Constitutional Process:** All these grants are governed by the **same rules as Annual Financial Statement**, i.e. Articles 112, 113, and 114 also apply.

- No grant demand can be made without the President's prior approval.**

Article 116 - Votes on account, votes of credit and exceptional grants

1. Vote on Account

- Used **when the new financial year begins (April 1)** but the full budget process may continue until May.
- It allows the government to withdraw money to meet **routine expenses temporarily**.
- Usually equals **1/6th of the total estimated expenditure** (i.e. 2 months' expenditure).
- It is a **temporary arrangement** till the budget is passed.

Based on Clause(1)(a) of Article 116 — Grant made in advance pending full budget approval.

2. Vote of Credit

- Used for **urgent or unforeseen expenditure** where the **exact details are not known**.
- It does **not mention the detailed purpose**, only the need for funds.
- Introduced **with prior approval of the President**.

Based on Clause (1)(b) of Article 116 — For unexpected demands of undefined nature.

3. Exceptional Grant

- Given for a **special objective** that is **not part of the current year's budget**.
- Requires **President's prior approval**.
- Not related to the regular service of the year.

Based on Clause (1)(c) of Article 116 — For non-budgeted services in any financial year.

4. Interim Budget (Extra-Constitutional Practice)

- Not mentioned in the Constitution.
- Used during **election years** when the **tenure of the government is short**, and the next government is expected to present the full budget.
- Contains estimates similar to a regular budget but **only for a temporary period**.

Article 118 – Rules of Procedure

- 1) **Each House of Parliament** (Lok Sabha and Rajya Sabha) can make its own rules for conducting its business, subject to the Constitution.
- 2) Until such rules are made, the **old rules** (used before the Constitution came into force) will apply, with **necessary changes** made by:
 - **Chairman** (for Rajya Sabha), or
 - **Speaker** (for Lok Sabha)
- 3) The President, after consulting the Chairman and Speaker, can make rules for:
 - **Joint sittings** of both Houses
 - **Communication** between the two Houses
- 4) In a joint sitting, the Speaker of Lok Sabha will preside.
 - If the Speaker is absent, someone else (as per rules made under clause 3) will preside

➤ **Question Hour (Lok Sabha: 11:00 AM – 12:00 PM)**

- Members of Parliament (MPs) ask **questions to ministers**.
- The purpose is to seek **information on national and international matters of public importance**.
- It is a **crucial accountability tool** that holds the executive responsible.
- The practice began under the **Indian Councils Act, 1892**.
- Conducted in both Lok Sabha and Rajya Sabha.

❖ **Types of Parliamentary Questions (3 Types)**

Type of Question	Key Features
Starred Questions	- Answered orally in the House. - Supplementary questions allowed. - Daily Limit: 20 in Lok Sabha, 15 in Rajya Sabha.
Unstarred Questions	- Answered in written form. - No supplementary questions. - Daily Limit: 230 in Lok Sabha, 160 in Rajya Sabha. - An MP can ask maximum 5 questions per day.
Short Notice Questions	- Raised on notice of less than 10 days. - For urgent matters. - Answered orally, with Minister's consent. - Daily Limit: 1 in each House.

➤ **Half-an-Hour Discussion (5:00 PM – 5:30 PM)**

- Raised when a reply to a **Starred, Unstarred, or Short Notice Question** requires **further clarification** on a matter of public importance.
- Discussion is limited to **half an hour**.
- In **Lok Sabha**: Conducted on **Monday, Wednesday, Friday**.
- In **Rajya Sabha**: Can be held on **any day** with **Chairman's permission**.
- **Written notice must be given at least 3 days in advance**.

➤ **Zero Hour (12:00 PM – 1:00 PM in Lok Sabha)**

- MPs can **raise matters without prior notice**, typically of **urgent public importance**.
- Ministers may respond, making it an **unofficial Question-Answer session**.
- **Introduced in 1962** – a **purely Indian innovation**, not mentioned in the **Rules of Procedure**.
- Though not formally recognised in the Constitution or rules, it is a **time-honoured practice**

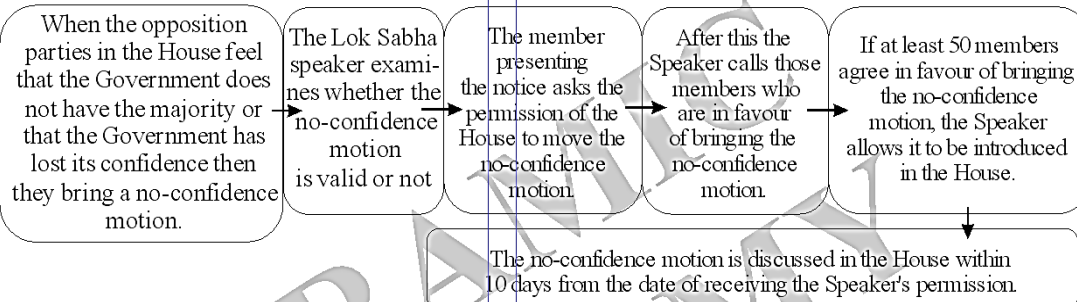
Important motions**1. Confidence Motion**

- It is introduced in the Lok Sabha by the ruling party to prove its majority.
- If it is not passed, the government has to resign.
- Generally required in a coalition government.
- Like zero hour, the confidence motion is also a gift of the Indian parliamentary system.
- In 1979, Chaudhary Charan Singh was first asked to seek a vote of confidence in the House. He resigned before the confidence motion could be considered.
- In 1990 (Shri V.P. Singh) and 1997 (Shri H.D. Deve Gowda), they resigned due to not being able to secure a vote of confidence.

2. No Confidence Motion

- There is no mention of no-confidence motion in the Constitution of India.
- It can be introduced only in the Lok Sabha by the opposition.
- Must be backed with the signature of 50 members.
- There is no need to mention the reason for its adoption.
- It is introduced against the whole council of ministers and not against any particular minister.
- If it is passed, then Council of Ministers has to resign.
- Lok Sabha has made rules for the procedure of no-confidence motion against the Council of Ministers under its rule 198.
- The time for consideration of no-confidence motion is generally decided by the 'Business Advisory Committee'.
- So far, no-confidence motion has been moved 28 times in Lok Sabha. In which -

First – Against the JLN (by Acharya Kripalani in 1963)	Maximum – Against Indira Gandhi	In 1978, Morarji Desai resigned before the proposal was passed.	28th No-Confidence Motion (2023) Against the Narendra Modi Government.
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General procedure for no-confidence motion

3. Censure Motion

- It can be introduced in the Lok Sabha only because the Council of Ministers is responsible only to the Lok Sabha, thus only Lok Sabha has the right to censure Council of Ministers.
- Must be backed with the signature of 50 members
- It should mention the reason for adaptation of censure motion.
- It can be moved against a minister or group of ministers or the entire Council of Ministers.
- If it is passed, then Council of Ministers need not resign.

4. Adjournment Motion

- If Major incident takes place then to adjourn the regular proceedings of Parliament, This motion is introduced to discuss that incidence immediately.
- This is called adjournment motion or stop work motion.
- This motion should have following features-
 1. Only be related to a particular subject.
 2. Matter of recent occurrence that needs immediate discussion.
 3. Clear and factual matter,
 4. Related to public importance,
- The passing of the 'Adjournment Motion' by the Lok Sabha is humiliating for the government, but it does not require the government to resign due to this.
- It should be signed by 50 members.

5. Calling Attention Motion

- It is for calling attention of the House and the minister towards any particular incident.
- In one day, a maximum of 2 calling attention motions can be introduced.
- In one motion, there can be names of a maximum of 5 members.
- It requires a statement from the minister.
- There is no provision of discussion and voting.
- It's an Indian innovation which started in 1954.
- It is mentioned in rules and procedures of the House.
- As it does not involve criticism of Government, therefore can be introduced in both the Houses.

6. Short Duration Discussion -

- It began in the the year 1953.
- Under this, any matter of public importance is raised. (By non-official member)
- It requires signature of 2 members.
- It should have prior approval of Business Advisory Committee.
- Its discussion time is fixed; therefore it is also called short duration discussion. (Lok Sabha- 2 hours, Rajya Sabha- 2:30 hours) (Two days a week - Tuesday and Thursday)
- The decision regarding the admissibility of the discussion is taken by the Speaker/Chairman.

➤ Rule 377

- First time introduced in 1966.
- It is a rule of Lok Sabha.
- To discuss any such matter of public importance, which has not been raised during question hour, calling attention motion, short duration discussion.
- It does not require presence of a minister or statement not mandatory to give.
- Every day, a maximum of 20 questions (matters) can be raised.

➤ **Rule 388**

- All rules can be set aside in the House and any topic can be discussed.
- This rule was introduced during the much talked about fast by Anna Hazare in August 2011 for the Jan Lokpal Bill.

Proposal

Confidence Motion	No confidence motion	Censure Motion	Adjournment motion	Calling attention motion	Short Term Discussion	Rule 377
In LS by ruling party	By Opposition in LS	By Opposition in LS	By Opposition in LS	LS/RS 5 members signature/ support	LS/RS	LS
Indian innovation	50 members support If passed, entire council of ministers resigns	50 members support No resignation	50 members support	Discussion on new topics Features- 1. Clear 2. Facts 3. One topic 4. Topic related to public interest.	2 hours in LS 2:30 hours in RS Since 1953	1966
Resignation if not passed First introduced- by Ch. Charan Singh in 1979	No reason for the proposal needs to be given	Reasons must be given	Discussion on new topics Features- 1. Clear 2. Facts 3. One topic 4. Topic related to public interest.	2 motions a day Started in 1954.	Consent of Business Advisory Committee	Minister neither - Answer - Not present - No discussion
Useful in coalition governments	10 days prior notice	Against a Minister/ Group of Ministers/ Council of Ministers		Minister responds.		20 questions/ topics per day

7. Closure Motion: These are brought to end discussions in Parliament.

- I. Simple Closure:** If the discussion is completed on any bill and if the points are being repeated, then the discussions are ended by simple closure.
- II. Kangaroo Closure:** If there is a lack of time and it is not possible to discuss all aspects of the bill, then the Presiding officer calls all party meeting and makes consensus for Kangaroo closure. Only important aspects of the bill are discussed and the discussion is ended.
- III. Guillotine Closure:** If there is a lack of time and it is not possible to discuss all the aspects, then in such a situation first the discussion time is fixed and as the discussion period is completed, the discussion is ended.

Impact of Dissolution of Lok Sabha on any pending Bill

- If a bill comes in contact with the Lok Sabha, then it will lapse with the dissolution of Lok Sabha.
- If any bill comes directly or indirectly in contact with the President, then it will not lapse.

For Example:

1. If any bill is introduced in Lok Sabha and pending in Lok Sabha, then it will lapse with the dissolution of Lok Sabha.

2. If any bill has been passed by Lok Sabha and pending in Rajya Sabha then, with the dissolution of Lok Sabha, the bill will lapse.
3. If any bill passed by Rajya Sabha is pending before Lok Sabha, then it will lapse with the dissolution of Lok Sabha.
4. If any bill is introduced in Rajya Sabha and pending in Rajya Sabha, then it will not lapse with the dissolution of Lok Sabha.
5. If any bill is introduced in Rajya Sabha and passed by it, and it has not been sent to Lok Sabha, then it will not lapse with the dissolution of Lok Sabha.
6. If a bill is pending before the President, returned for reconsideration or a Joint Sitting has already been called, then the bill will not lapse.

Role & Importance of Parliamentary Committees**{For Mains}**❖ **Essential for efficient functioning of Parliament amidst time and workload constraints:**

1. **Division of Work** – Distributes Parliament's workload systematically.
2. **Detailed Scrutiny** – Enables in-depth analysis of bills, budgets & policies.
3. **Specialization & Expertise** – Informed decisions by subject-specific members.
4. **Confidentiality** – Handles sensitive issues like national security discreetly.
5. **Legislative Oversight** – Enhances control over executive functioning.
6. **Political Coordination** – Promotes harmony between Houses and parties.
7. **Efficiency** – Speeds up legislative business through task division.
8. **Public Participation** – Involves citizens via hearings & submissions

Some committees conduct **public hearings and invite submissions**, enhancing **transparency and democratic engagement**.

Bridge Between Stakeholders**{For Mains}**

Role of Parliamentary Committees in Democracy: Parliamentary Committees act as vital connectors among key participants in the democratic framework. Their bridging role enhances transparency, accountability, and inclusiveness in governance.

❖ **Bridge between Parliament and Executive**

- Committees critically examine government policies, functioning, and expenditure.
- They ensure **executive accountability** by compelling ministries to justify their actions and decisions before the legislature.

❖ **Bridge between Parliament and Public**

- These committees create an avenue for **citizens, civil society organizations, and interest groups** to present their viewpoints.
- Public participation in committee hearings helps integrate **grassroots concerns into policymaking**, thereby enriching legislative outcomes.

❖ **Bipartisan Cooperation**

- Committees function in a **non-confrontational setting**, promoting **constructive dialogue across political lines**.
- They allow members from various parties to collaborate on national issues beyond the adversarial politics of the main chamber.

Criteria for Parliamentary Committee

- **Appointed/Elected/Nominated:** Appointed or elected by the House, or nominated by the Speaker (Lok Sabha) or Chairman (Rajya Sabha).
- **Guidance:** Functions under the **direction and control** of the Speaker or Chairman.
- **Reporting Authority:** Submits its report to the **House** or to the **Speaker/Chairman**.
- **Secretariat Support:** Provided with a **secretariat by the Lok Sabha or Rajya Sabha**, depending on which House the committee belongs to.

❖ Types of Parliamentary Committees

Feature	Standing Committees	Ad Hoc Committees
Nature	Permanent	Temporary
Reconstitution	Reconstituted regularly (usually every year)	Formed as and when needed
Purpose	Deal with specific subjects or ministries	Formed for a specific issue or purpose
Duration	Continuous existence	Dissolved after completing their task
Function	Provide regular parliamentary oversight and expertise	Address urgent or specialized matters
Examples	Public Accounts Committee, Estimates Committee	JPC on 2G Spectrum, Committee on Data Protection Bill

❖ Categories of Parliamentary Committees

Category	Examples / Description
Financial Committees	- Public Accounts Committee (PAC) - Estimates Committee - Committee on Public Undertakings
Departmental Standing Committees	- 24 Committees - Cover all Ministries/Departments - Subject-specific scrutiny
Committees to Inquire	- Committee on Petitions - Committee of Privileges - Ethics Committee
Committees to Scrutinize & Control	- Committee on Government Assurances - Committee on Subordinate Legislation - Committee on Papers Laid on the Table
Committees on Day-to-Day Business	- Business Advisory Committee - Rules Committee
House-keeping Committees	- House Committee - General Purposes Committee - Library Committee
Ad hoc Committees	- Select Committees on Bills - Joint Parliamentary Committees (JPCs) - Temporary and task-specific

❖ History of Parliamentary Committees in India

Time Period	Key Development
Pre-1950 (British India)	- The tradition of legislative committees began during colonial rule. - Committees like the Public Accounts Committee (PAC) were first set up in 1921 under the Montagu-Chelmsford Reforms.
1950s (Post-Constitution)	- With the commencement of the Indian Constitution in 1950, the system of parliamentary committees was formalized. - PAC was re-established under Article 105 of the Constitution.
1950–1989	- Ad hoc Committees were primarily used for scrutinizing Bills and reports. - Committees like Estimates Committee and Committee on Public Undertakings were created.
1993	- Major structural change: 24 Department-Related Standing Committees (DRSCs) were established. - This was to improve parliamentary scrutiny over ministries.

Financial Committees of Parliament (Standing Committees)

Committee	Key Facts	Functions
Estimates Committee	- Formed in 1950 on John Mathai Committee's recommendation - 30 members (Lok Sabha only) - Elected by proportional representation - Tenure: 1 year - Ministers not allowed to become members	- Reviews budget estimates - Suggests efficiency measures - Ensures policy conformity - Also called Standing Economy Committee.
Public Accounts Committee (PAC)	- Formed in 1921 under GOI Act, 1919 - 22 members (15 LS + 7 RS) - Elected by proportional representation - Chairperson from Opposition - Tenure: 1 year - Ministers not allowed to become members	- Examines CAG reports - Approves demand for excess grants - Ensures control over public expenditure - Called Twin sister of Estimates Committee
Committee on Public Undertakings (COPU)	- Formed in 1964 (Krishna Menon Committee) - 22 members (15 LS + 7 RS) - Elected by proportional representation - Tenure: 1 year - Ministers not allowed to become members	- Examines CAG reports on Public Sector Undertakings (PSUs)

❖ **Business Advisory Committee**

Feature	Details
Separate Committees	Separate for Lok Sabha and Rajya Sabha
Membership (Lok Sabha)	15 members; Speaker is ex-officio Chairman
Membership (Rajya Sabha)	11 members; Chairman of Rajya Sabha is ex-officio Chairman
Report Submitted To	Speaker of Lok Sabha / Chairman of Rajya Sabha
Key Functions	- Regulates programme and time table of the House - Allocates time for discussions on Bills, motions, etc.

❖ **Departmental Standing Committees (DRSCs)**

Feature	Details
Origin	Inspired by U.S. Congressional Committees
Initial Setup (1993)	17 Committees were set up
Expansion (2004)	Increased to 24 Committees (16 for LS + 8 for RS)
Membership	Each committee has 31 members (21 from Lok Sabha + 10 from Rajya Sabha)
Appointment	- Chairmen of 16 committees: Lok Sabha Speaker - Chairmen of 8 committees: Rajya Sabha Chairman
Key Function	After Finance Minister presents the budget , it is referred to these committees for detailed examination

❖ **Committee on Petitions**

- Separate committees exist in **Lok Sabha and Rajya Sabha**.
- **Lok Sabha** Committee has **15 members**; **Rajya Sabha** Committee has **10 members**.
- Examines **petitions from the public** on grievances, legislative suggestions, or public interest matters.
- Recommends **administrative or legislative action**.
- Acts as a **bridge between citizens and Parliament**.
- **Chairperson** is appointed by the **Speaker (LS)** or **Chairman (RS)**.

❖ **Committee on Subordinate Legislation**

- Exists separately in **Lok Sabha and Rajya Sabha**.
- **Lok Sabha Committee** has **15 members**, **Rajya Sabha Committee** has **15 members**.
- Examines whether the **rules, regulations, by-laws, and other subordinate legislation** made by the Executive are:
 - Within the powers given by the **parent Act**
 - Consistent with the **Constitution and legal framework**
- Ensures that **delegated legislation does not override legislative intent**.
- **Chairperson** is appointed by the **Speaker (LS)** or **Chairman (RS)**.
- Strengthens **parliamentary control over executive law-making** through delegated authority.
- Enhances **accountability and public participation** in governance

❖ **Joint Parliamentary Committee (JPC)**

- A **Joint Parliamentary Committee (JPC)** is an **ad hoc committee** constituted by members from **both Lok Sabha and Rajya Sabha** to examine specific matters of national importance. It is a **temporary** committee, set up for a **specific purpose and duration**.
- **Formation:**
 - Set up by a **motion passed in one House and agreed to by the other**.
 - **Membership and scope** of investigation are defined by Parliament in the motion.
 - Usually comprises more members from **Lok Sabha** (2:1 ratio approximately).
- **Composition:**
 - Varies depending on the motion.
 - Includes members from **both Houses**.
 - Chaired typically by a **senior MP from the ruling party** (but not mandatory).
- **Functions:**
 - Inquires into specific issues like legislative scrutiny, scams, or major public interest matters.
 - Can **summon witnesses**, demand documents, and call officials for testimony.
 - Submits a **report to Parliament**.
- **Limitations:**
 - Its **recommendations are not binding** on the Government.
 - It does **not have judicial powers** like a court of law.

❖ **Recent Development: JPC on One Nation One Election**

- A **31-member JPC** was formed in **2024** to examine key bills related to *One Nation, One Election*.
- **Composition:**
 - **21 members** from **Lok Sabha**
 - **10 members** from **Rajya Sabha**
- **Bills under review:**
 - Constitution (129th Amendment) Bill, 2024
 - Union Territories Laws (Amendment) Bill, 2024

❖ Notable Past JPCs:

Year	Subject
1987	Bofors Scandal
1992	Harshad Mehta Stock Market Scam
2001	Ketan Parekh Scam
2011	2G Spectrum Allocation
2013	VVIP Chopper Scam
2016	Land Acquisition Bill (Fair Compensation)
2024	One Nation, One Election Bills

❖ Issues Related to Parliamentary Committees: Solutions and Challenges { For Mains}

S. N.	Issue	Description	Impact	Possible Solutions	Challenges in Implementation	Example
1.	Structural Weakness – Short Tenure	Most committees have a 1-year term and are reconstituted annually.	Affects continuity in long-term issues; weakens expertise development.	Match tenure with Lok Sabha term (5 years); staggered membership changes; allow ongoing study continuation.	Balancing continuity with infusion of fresh perspectives.	Annual reconstitution of Estimates Committee.
2.	Lack of Technical Support	Inadequate research staff and domain experts.	Poor quality of scrutiny; less impactful reports.	Establish in-house research units; collaborate with think tanks and universities; allocate budget for experts.	Budget constraints; ensuring expert neutrality.	Limited expert input on Data Protection Bill.
3.	Partisan Functioning	Committees often operate along party lines, especially on sensitive matters.	Undermines objectivity and cross-party consensus; weakens recommendations.	Secret voting on key issues; rotation of chairperson; training on non-partisan functioning.	Resistance from political parties; balancing party interests with national concerns.	2G spectrum JPC witnessed government-opposition clashes.
4.	Absenteeism & Lack of Quorum	Poor attendance by MPs; meetings often fall short of quorum.	Delays decision-making; questions seriousness of committee work.	Enforce strict attendance rules; link attendance to privileges; make records public.	Resistance from MPs with multiple commitments; quality of participation matters too.	Many committees fail to submit reports on time.
5.	Limited Powers	Recommendations are advisory, not binding on the government.	Reduces policy influence; weakens executive accountability.	Mandate government response to reports; parliamentary debate on key recommendations; statutory status to some.	Maintaining balance of power between executive and legislature.	PAC recommendations often not implemented.
6.	Lack of Public Engagement & Transparency	Committee proceedings not open to public; low civil	Public trust declines; valuable civil inputs are missed.	Live stream selected proceedings; hold public consultations; publish simplified reports.	Balancing transparency with confidentiality; logistical challenges.	Foreign policy committee reports are rarely public.

		society participation.				
7.	Overburdened Committees	Too many subjects for limited number of committees.	Leads to delayed or superficial scrutiny.	Increase number of committees; better subject distribution; prioritize key areas.	Coordination challenges; avoiding duplication of work.	DRSCs handle multiple ministries' budgets.
8.	Inadequate Time for Scrutiny	Especially during urgent bills or ordinances.	Leads to rushed or flawed legislation.	Fix minimum time for scrutiny; allow extensions; limit use of ordinances.	Balancing urgency with thoroughness; tight parliamentary calendar.	Farm laws passed without adequate committee scrutiny.
9.	Weak Follow-Up Mechanism	Poor monitoring of whether recommendations are implemented.	Reduces long-term policy impact; weakens governance cycle.	Create tracking unit; regular reports to Parliament; periodic reviews with ministries.	Executive may not cooperate; focus may shift from older recommendations.	Several PAC reports remain unacted for years.
10.	Discretionary Powers of Presiding Officers	Speaker/Chairman can avoid referring bills to committees.	Politically sensitive bills may escape scrutiny; weakens system.	Define clear referral criteria; make justification mandatory; allow challenges to decisions.	Balancing Speaker's autonomy with accountability; risk of politicization.	UAPA Bill passed without committee scrutiny.
11.	Limited Financial Oversight	Despite financial committees, control over government expenditure is limited.	Public funds misused; low fiscal accountability.	Strengthen financial committees; coordinate with CAG; evaluate scheme performance regularly.	Technical complexity in tracking finances; data access issues.	MPLADS funds often poorly monitored.
12.	Declining Referral of Bills	Only 25% of bills were referred to committees in 16th Lok Sabha (vs 71% earlier).	Less legislative scrutiny; govt can push bills quickly.	Make referrals mandatory; fix minimum scrutiny period; ask for written justifications for non-referral.	Government may resist for speedy passage; efficiency vs scrutiny debate.	Farm Bills & Data Protection Bill skipped referral.

Associated topic

❖ Cabinet Committees:

➤ What are Cabinet Committees?

Cabinet Committees are **small groups of ministers** that deal with specific functions or issues to **streamline governance and decision-making** at the highest executive level.

➤ Key Features:

1. Extra-Constitutional in Nature

- Not mentioned in the Constitution of India.
- However, they derive authority from the Government of India (Transaction of Business) Rules, 1961.

2. **Purpose:**

- Designed to facilitate decision-making in specific areas such as security, appointments, economy, etc.
- Reduces the burden on the full Cabinet and improves administrative efficiency.

3. **Membership:**

- Usually comprise only Cabinet Ministers, but non-Cabinet Ministers are not barred from being members.

❖ **Major Cabinet Committees**

Cabinet Committee	Area of Focus	Chairperson
Appointments Committee of the Cabinet	Senior bureaucratic appointments (like Cabinet Secretary, Secretaries, Chiefs of Services, CBI Director)	Prime Minister
Cabinet Committee on Political Affairs	Foreign affairs, Centre-State relations, internal political issues	Prime Minister
Cabinet Committee on Economic Affairs	Economic policy, price controls, industrial policy	Prime Minister
Cabinet Committee on Parliamentary Affairs	Scheduling of Parliament sessions, legislative business	Minister of Parliamentary Affairs
Cabinet Committee on Security (CCS)	Defense policy, national security, intelligence coordination	Prime Minister
Cabinet Committee on Investment & Growth	Expedite clearances for infrastructure & investment projects	Prime Minister
Cabinet Committee on Employment & Skill Development	Job creation, labor policy, skill programs	Prime Minister
Cabinet Committee on Accommodation	Allotment of government residences to Ministers/MPs	Home Minister

❖ **PYQ Example:**

Q. Which of the following Cabinet Committees is NOT headed by the Prime Minister?

- (a) Political Affairs (b) Economic Affairs
(c) Security (d) Parliamentary Affairs

Ans: (d)

➤ **Article 119 – Regulation by law of procedure in Parliament in relation to financial business**

- Parliament may make **laws to regulate the procedure** and conduct of business **for timely completion of financial matters**.
- Includes **Bills related to appropriation** from the **Consolidated Fund of India**.
- If such a law is **inconsistent with rules under Article 118(1) or 118(2)**, the **law shall prevail**.

➤ **Article 120 – Language to be Used in Parliament**

1. **Business in Parliament** shall be conducted in **Hindi or English**.
Chairman (Rajya Sabha) or Speaker (Lok Sabha) may permit a member to **speak in their mother tongue**, if unable to express in Hindi/English.
2. After **15 years from the commencement of the Constitution**, Article 120 shall have effect as if “**or in English**” were omitted, unless **Parliament provides otherwise by law**.

➤ **Article 121 – Restriction on Discussion on Judges’ Conduct**

- **No discussion** shall take place in Parliament on the **conduct of a Supreme Court or High Court Judge** in discharge of duties.
- Exception: **Only during a motion for removal (impeachment)** of a judge under the Constitution.

➤ Article 122 – Courts Not to Inquire into Parliamentary Proceedings

1. **Validity of parliamentary proceedings** cannot be questioned in any court **on procedural irregularity grounds**.
2. No **MP or officer of Parliament** exercising powers related to **procedure, conduct, or order** shall be subject to court jurisdiction for those actions.

➤ Article-123 (Ordinance)

❖ Ordinance – Article 123 & 213

Article 123 →

- An **ordinance can be issued by the President** of India.
- If **Parliament is not in session** and there is an **urgent need for a law** by the government, an ordinance may be issued. (For example, the Criminal Law (Amendment) Ordinance, 2013 was issued in response to public protests after the Delhi gang rape incident.)
- The President **issues the ordinance on the advice of the Council of Ministers**. It is a **temporary law**.
- The **tenure of the ordinance** = Until **6 weeks after the Parliament reassembles**.
Maximum time period = **6 months (+) 6 weeks**
- It is effective **like an ordinary law**.
- It can be **implemented retrospectively**.
- The Constitution **cannot be amended** through an ordinance. When the government presents the ordinance for approval in Parliament, it must **justify the urgency** for its promulgation. This justification is **subject to judicial review**.

Note :- **38th Constitutional Amendment Act, 1975**

Made the **President's and Governor's satisfaction** in issuing ordinances **final and beyond judicial review**.

Aimed to **protect ordinance power from court scrutiny** during the Emergency period.

➤ Major Supreme Court Judgments Related to Ordinances

1. **D.C. Wadhwa vs State of Bihar (1987)**

- **Issue:** Bihar government re-promulgated the same ordinances multiple times without getting legislative approval.
- **Judgment:** Re-promulgation of ordinances without intent to present them before the legislature is **a fraud on the Constitution**.
- **Ordinance-making power is not absolute**, it is subject to **judicial review**.

2. **Krishna Kumar Singh vs State of Bihar (2017) – 7 Judge Bench**

- **Issue:** Whether **re-promulgated ordinances** without placing them before legislature are valid.
- **Judgment:** Re-promulgation violates constitutional scheme.
- The satisfaction of the President and the Governor is subject to judicial review. (can be reviewed by courts).
- Ordinance is **not a parallel source of lawmaking**, only for **exceptional circumstances**.

3. **A.K. Roy v. Union of India (1982)**

- **Issue:** Challenge to the *National Security Ordinance, 1980* and *National Security Act, 1980*.
- Ordinance-making is a **legislative** function under Article 123.
- Ordinances are treated as "law" under Article 21.
- **Judicial review** of ordinances is permissible, though not applied in this case due to lack of evidence.

2. **R.C. Cooper vs Union of India (1970) (Bank Nationalisation Case)**

- **Issue:** Validity of the ordinance nationalizing 14 major banks in 1969.
- The **ordinance and the Act** were struck down as unconstitutional.

- The ordinance was misused to **bypass parliamentary scrutiny**.
- It **violated Articles 14, 19(1)(f), and 31** – equality, freedom of profession, and property rights.

➤ **Sarkaria Commission – Ordinance Power**

- **Use ordinances sparingly**, only in **exceptional situations**.
- **Avoid re-promulgation** without placing before the legislature.
- **President/Governor's satisfaction** must be based on **real urgency**, not political reasons.
- Ordinances should be **promptly laid before the legislature** for approval.
- Ordinance power should remain **subject to judicial review**.

➤ **International Scenario – Ordinance Power (For mains)**

- Only **three parliamentary democracies** allow ordinance powers: **India, Pakistan, and Bangladesh**.
- Major democracies like the **US, UK, Canada, and Australia** do **not** have similar provisions.
- Reason: Their **legislatures function year-round**, reducing the need for emergency law-making.
- India's ordinance provision comes from the **Government of India Act, 1935** (colonial legacy).
- In contrast:
 - **US**: Emergency powers lie with **Congress**, not the President.
 - **UK**: Uses **ordinary laws** or delegates powers temporarily.
 - **Germany & France**: Constitutionally allow **limited emergency powers** to the executive.
- These countries follow **strict separation of powers**, avoiding ordinance-like tools.
- Some use alternatives like "**mini-parliaments**" or **legislative committees** during emergencies.
- These countries follow strict separation of powers and avoid instruments such as ordinances.
- Use alternatives such as "mini parliaments" or legislative committees during emergencies.

❖ **Frequency of Ordinances in India (1950–2023)**

➤ **Historical Overview:**

Period/ Government	Avg. Ordinances per Year	Notable Points
1950–2009	10.85	Total of 651 ordinances promulgated
PV Narasimha Rao (1991–96)	21.8	Highest total : 109 ordinances
UPA-I (2004–14)	7.2	Decreasing trend in number of ordinances
Modi Government (2014–19)	10	Slight increase from UPA-II
1993 (Single Year)	34	Highest in any single year

➤ **Recent Trends (2019–2023):**

Year/ Period	Average Ordinances	Notable Points
2019	16	Highest in recent years
2020 (Mar–Sept)	11	Highest in a short period
2022	0	First time in 59 years , no ordinances had been promulgated
2023	1	–

➤ **Additional Insights:**

- Only **42 central ordinances** have been **re-issued** overall.
- **States show higher re-promulgation**:
 - For example, **Kerala re-issued 140 out of 144 ordinances** in 2021.

❖ Impact of Ordinances on Constitutional Principles

{For Mains}

1. Parliamentary Democracy

- Bypasses **legislative debate** and scrutiny, weakening **democratic law-making**.
- Frequent use leads to "**Ordinance Raj**", reducing **Parliament's role** and **public participation**.

Example: Farm Laws (2020) were introduced first through ordinances, drawing criticism for avoiding debate.

2. Separation of Powers

- Blurs the line between **executive and legislature**, affecting the **basic structure** of the Constitution.
- Concentrates **law-making in executive hands**, weakening **checks and balances**.

3. Federalism

- Centre can **legislate on state matters** via ordinances during **President's Rule**.
- Excessive use on **Concurrent List** items may undermine **state autonomy**.

Example: Central ordinances on agriculture and labour without state consultation.

4. Judicial Review

- Courts allow review if there's **malafide intent**, **arbitrary use**, or **re-promulgation**.

Key Cases:

- **D.C. Wadhwa (1987)**: Re-promulgation = unconstitutional.
- **Krishna Kumar Singh (2017)**: Ordinances **must be laid before legislature**.
- **S.R. Bommai (1994)**: President's satisfaction is reviewable.

❖ Benefits of Ordinances

{For Mains}

1. Ensures Swift Action in Urgent Situations

- Allows the government to act quickly on **pressing matters when Parliament is not in session**.
- Reflects the **responsiveness** of the executive to national emergencies and public concerns.

2. Fills Legal and Policy Gaps

- Provides **legal certainty** in cases of **judicial ambiguities or legislative gaps**.
- Can deliver **timely justice** and stronger legal mechanisms (e.g., **Criminal Law (Amendment) Ordinance, 2018**, after the **Kathua case**).

3. Supports Economic & Administrative Reforms

- Enables **swift action on financial matters** (e.g., **Fugitive Economic Offenders Ordinance, 2018** to tackle economic fugitives).
- Used to **improve business environments**, such as amendments to the **Commercial Courts Act** to boost India's **Ease of Doing Business**.

4. Bypasses Procedural Delays

- Helps **implement policies without legislative delays or obstruction**, especially when time-sensitive.

Q. The frequent use of ordinance-making powers has often raised concerns about violating the spirit of the doctrine of separation of powers. The power to promulgate ordinances needs to be analyzed in the context of urgency. Have the Supreme Court's decisions made it easier to rely on this power? Should the power to promulgate ordinances be abolished?

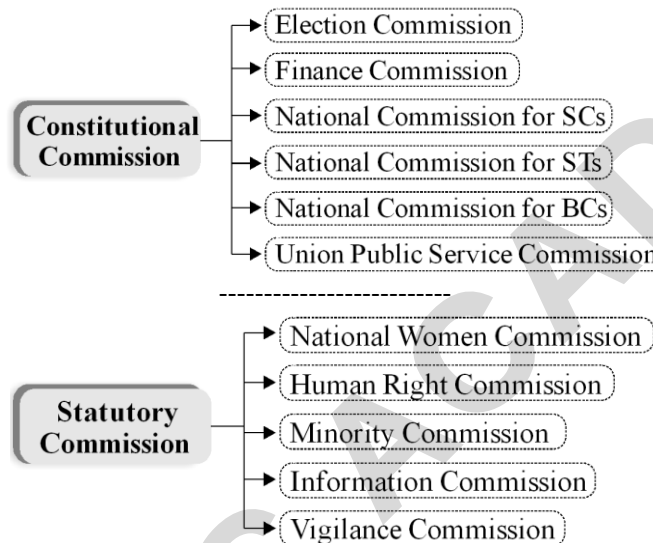
(UPSC – 2015)

Powers of President

❖ Executive Power

- President is the head of the executive.
- All the executive powers of Union are vested in President.

- All executive powers of Union are exercised in the name of President.
- President appoints Prime Minister and appoints other ministers on recommendation of Prime Minister.
- Ministers hold the office till the pleasure of the President.
- President can make rule-regulations for the efficient working of executive.
- President appoints Governors in all the states. (Appoints the CM in the Union Territory.)
- Appoints Lieutenant Governors and Administrator in the UT's.
- Appoints Attorney General, who remains on his post till the pleasure of the President.
- Appoints Comptroller and Auditor General.
- Appoints chairperson and members of various commissions.



➤ **Executive Commission** – Niti Aayog (advice of council of ministers)

- President constitutes Inter-State Council.
- President declares Schedule and Tribal Areas.

❖ **Legislative Power**

- President is a part of Parliament.
- President can summon and prorogue the sessions of both Houses of the Parliament.
- President can dissolve Lok Sabha but on completion of tenure, Lok Sabha dissolves by itself.
- The President is bound to convene at least two meetings of the Parliament in a year.
- President **nominates 12 members** in Rajya Sabha.
- If the offices of Chairman and Deputy- Chairman fall vacant, President can appoint a temporary Chairman for the Rajya Sabha.
- If the offices of Speaker and Deputy- Speaker fall vacant, President can appoint a temporary Speaker for the Lok Sabha.
- The President can send a message to the Parliament and he can address both the Houses.
- The President gives a '**Special Address**' to the Parliament (in the first session after the general election, in the first session every year).
- The decision on the disqualification of MPs is taken by the President (on the advice of the Election Commission)
- If the offices of Speaker and Deputy- Speaker fall vacant, President can appoint a temporary Speaker for the Lok Sabha.
- President can summon the '**joint sitting**' of both the Houses of Parliament which is presided by Speaker of Lok Sabha.

- Some Bills can only be introduced after the prior approval of President eg – Money Bill, Bill for the formation of New State etc.
- After being passed in the Parliament every bill is sent to the President and only after his assent it becomes a law.
- **When any bill is sent to President then he has 3 options–**
 1. Can give his assent to the bill.
 2. Can withhold his assent to the bill (Reject)
 3. Can return the bill for reconsideration.
- If the Governor reserves the bills passed by State Legislature for the consideration of the President, he can return the bill for reconsideration any number of times (while President can return a bill passed by the Parliament once only)
- **Bills which require prior approval of the President –**
 1. Money Bill. (Article 109)
 2. Bills creating a new state or altering the area, boundaries or name of an existing state. (Article 3)
 3. Expenditure from the Consolidated Fund of India.
 4. Related to land acquisition.
 5. Any bill of the state ending the freedom of trade. (Article 304)
 6. A bill related to taxation which affects the interest of the state. (Article 274)
- **President can make rules and regulations for the peace, development and good governance in following Union Territories –**
 1. Andaman and Nicobar Islands
 2. Dadra Nagar Haveli and Daman and Diu
 3. Lakshadweep
- **President lays following reports before the Parliament –**
 1. Report of UPSC
 2. Report of Comptroller and Auditor General
 3. Report of Finance Commission
- President can promulgate ordinance.

❖ Financial Powers

- The budget is presented by the Finance Minister with the prior approval of the President.
- Money bill is presented after prior permission of the President.
- Demands for grants are introduced after the prior approval of the President.
- President constitutes Finance Commission and appoints its chairperson and members. (Art. 280)
- Contingency fund of Rs. 500 cr lies under the control of the President.

❖ Judicial Powers

- President appoints the judges of Supreme Court.
- President appoints the judges of High Court.
- President can seek advice from the Supreme Court.
- President has pardoning powers.

❖ Diplomatic Powers

- All the international agreements and treaties with the other nations are done on the name of President. But these have to be ratified by the Parliament.
- He appoints ambassadors and High Commissioners to other countries.

- He receives diplomats like ambassadors, high commissioners from other countries.

❖ Military Powers

- He is the Supreme Commander of the all three armed forces of India. (Art. 53)
- He can declare war or conclude peace, subject to the approval of Parliament.

❖ Emergency Power

- President can declare 3 types of Emergencies-
 1. National Emergency (**Article 352**)
 2. President Rule in States (**Article 356**)
 3. Financial Emergency (**Article 360**)

Parliamentary form of Governance

Aspect	Parliamentary System	Presidential System
Example	Britain, India	USA
Head of State	Dual – President (nominal) & Prime Minister (real)	Single – President (Real Head)
Election of Head of State	Indirect	Direct
Relationship between Executive and Legislature	Executive is part of the Legislature	Executive and Legislature are independent
Separation of Powers	No clear separation	Clear separation of powers
Accountability	Executive is accountable to the Legislature	Executive is not accountable to the Legislature
Removal of Executive	Can be removed by no-confidence motion, adjournment motion, etc.	Not easily removable before term ends

❖ Features of Parliamentary Form of Governance

Feature	Explanation
1. Dual Executive	Consists of a nominal head (President/Monarch) and a real head (Prime Minister).
2. Collective Responsibility	Council of Ministers is collectively responsible to the lower house of Parliament.
3. Majority Rule	The party/coalition with majority in the lower house forms the government.
4. Leadership of Prime Minister	Prime Minister is the real executive and leader of the majority party.
5. Fusion of Powers	Legislature and Executive are interconnected; ministers are members of legislature.
6. Bicameral Legislature (generally)	Usually has two Houses – Lower and Upper (e.g., Lok Sabha & Rajya Sabha).
7. Accountability to Parliament	The executive is directly accountable to the legislature for its actions/policies.
8. Dissolution of Lower House	Head of State can dissolve the lower house on advice of PM; leads to fresh elections.
9. Party Discipline	Strong party discipline ensures stability and loyalty in Parliament.
10. Parliamentary Privileges	MPs enjoy certain privileges to ensure independence of the legislature.
11. Presence of Opposition	A strong opposition ensures checks and balances in policymaking.
12. Flexible System	Government can change mid-term through no-confidence motion or loss of majority.

❖ Parliamentary System in India: Benefits & Lacunas with Recent Examples

{For Mains}

Aspect	Benefits	Indian Example	Lacunas/ Drawbacks	Indian Example
1. Accountability	Executive is accountable to the legislature.	PM & Ministers answerable during Parliament Sessions (e.g., Pegasus, Manipur issue)	Can lead to instability if majority is fragile.	Fall of Karnataka coalition govt (2019) after MLAs resigned.
2. Responsiveness	Quick decisions due to coordination.	Quick passage of Women's Reservation Bill (2023)	May lead to hasty legislation without debate.	Farm Laws (2020) passed with minimal discussion.
3. Collective Leadership	Reduces chances of autocracy.	Cabinet decisions like Agnipath Scheme (2022) involve joint approval.	The decision making system mostly becomes PM-centric – power imbalance.	PM-led centralization on COVID-19 lockdown decision (2020) .
4. Flexibility	Govt can be changed without bloodshed.	Uttarakhand CM changed 3 times in 2021 without elections.	Leads to political instability .	Maharashtra Govt changes (2022) due to Eknath Shinde faction.
5. Representation	Coalition ensures diverse voices.	I.N.D.I.A. bloc formation in 2023 includes regional parties.	Coalition pressures can affect governance.	UPA-era policy paralysis (2010–14) due to alliance contradictions.
6. Adaptability	Responsive to public mood and needs.	Govt rollback of farm laws (2021) after protest.	Encourages populism over reforms.	Loan waivers before elections in states like MP & Rajasthan.
7. Control over Executive	Legislature questions executive regularly.	Opposition questions in Lok Sabha on Adani-Hindenburg row (2023).	Strong majority may reduce scrutiny .	Majority in Lok Sabha (2019) led to faster bills with less debate.
8. Strong opposition	Keeps govt in check.	Debates by Congress, TMC, etc. during Parliament sessions.	Sometimes opposition disrupts proceedings.	Frequent adjournments over issues like Manipur violence.
9. Prevention of dictatorship	Separation of roles in Cabinet system.	Role of President as nominal head ensures balance.	May still lead to executive dominance .	Ordinance route used frequently bypassing legislature.

Q1. Why did India adopt the Parliamentary form of government?

❖ Reasons Why India Adopted Parliamentary Form of Government

{For Mains}

Reason	Explanation
1. Historical Legacy	India was governed under a parliamentary structure during British rule—especially after the Government of India Act, 1935 . The familiarity with this system made it a natural choice.
2. Democratic Ideals	The parliamentary system reflects democratic ideals by ensuring the executive is accountable to the legislature , which represents the people.
3. Responsible Government	It ensures a collectively responsible executive , headed by the Prime Minister, who must retain the confidence of the elected Lok Sabha.
4. Heterogeneous Society	India is a diverse country with multiple religions, castes, languages, and regions. The parliamentary system, with its coalition and consensus-building nature , helps accommodate this diversity.
5. Avoids Authoritarianism	The Prime Minister remains accountable to the legislature, unlike in a Presidential system where the President has fixed tenure and considerable independence, potentially leading to authoritarian tendencies.
6. Checks and Balances	Frequent debates, Question Hour , motions , and committees provide instruments of continuous checks on the executive.
7. Role of Political Parties	India has a vibrant multi-party democracy. A parliamentary system allows a better framework for accommodating and managing multiple parties, especially in a coalition era .
8. Flexibility	The Prime Minister can be replaced without dissolving the entire government or holding fresh elections (unlike the rigidity of a Presidential system).

❖ Dr. B.R. Ambedkar's Statement (on choosing between the American Presidential system and British Parliamentary system):

{For Mains}

“For a democratic executive, two conditions must be fulfilled:

- (1) It must be a stable executive, and
- (2) It must be a responsible executive.
 - Unfortunately, so far, it has not been possible to devise a system which can ensure both in equal measure.
 - A system that provides more stability tends to be less responsible, and one that is more responsible tends to be less stable.
 - The American and French systems offer more stability but less responsibility.
 - On the other hand, the British system provides more responsibility but less stability.
 - While recommending the Parliamentary system, the Drafting Committee preferred responsibility over stability.”

❖ K.M. Munshi's Statement (in favor of adopting the Parliamentary system):

“We must not forget the important fact that over the past two centuries, Indian public life has, by and large, adopted the conventions of the British constitutional law.

Most of us have looked upon the British model as the ideal. Over the past thirty or forty years, a certain sense of responsibility has developed in our governance system. Our constitutional traditions have become parliamentary.

After such long experience, why should we abandon a path well known and well trodden, and choose a completely new and untested path?

Q. How is the Indian form of Parliamentary governance different from the British model?

❖ Differences between Indian and British Parliamentary Systems

{For Mains}

India	Britain
1. Republic – Head of State is the President (elected)	Monarchy – Head of State is the Monarch (hereditary)
2. Written Constitution – Codified, supreme law	Unwritten Constitution – Based on laws, conventions, judicial decisions
3. Parliamentary Sovereignty is Limited – Constitution is supreme	Absolute Parliamentary Sovereignty – Parliament can make or undo any law
4. Federal Structure – Power divided between Centre and States	Unitary Structure – Power centralized in the national government
5. Judicial Review – Supreme Court can invalidate unconstitutional laws	No formal judicial review – Courts cannot override Parliament
6. Fundamental Rights – Guaranteed and enforceable	No codified fundamental rights ; based on conventions
7. Role of Upper House – Rajya Sabha has significant but limited powers	House of Lords is mostly ceremonial; limited legislative power
8. Secular State – India is secular by Constitution	State religion – The Monarch is Head of the Church of England
9. Emergency Provisions Exist – For national crises	No explicit emergency provisions in constitution
10. Impeachment of Head of State – President can be impeached	Monarch is immune from legal proceedings

ONE LINER {For Mains}

"Parliamentary democracy means government by explanation." —

George Bernard Shaw

"Parliamentary system provides for a daily assessment of responsibility." —

Dr. B.R. Ambedkar


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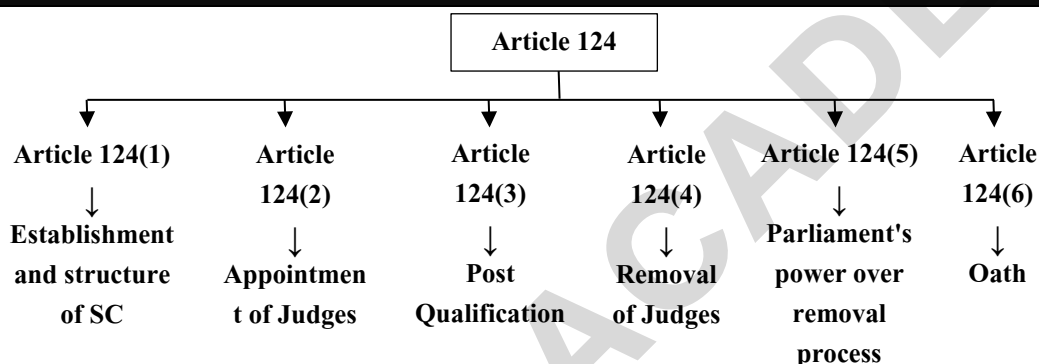
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Supreme Court

- India's **highest appellate court**
- **Final interpreter** of the Constitution
- **Protector / Guardian / Custodian** of the Constitution
- India has a **unified judiciary**
- **Established on** – 28th January, 1950 (till 1958 Supreme Court was situated at Parliament House)
- The Court moved into a new building in 1958. The first President of India Dr. Rajendra Prasad inaugurated the present building of the Supreme Court of India on 4 August 1958.
- The building is shaped to project the image of scales of justice
- Slogan of SC- '**Yato Dharmastato Jai:**'
- The Supreme Court replaced: **Privy Council, Federal Court**

Article 124

➤ **Article 124(1) – Establishment and Constitution of the Supreme Court**

- ❖ **Original Provision:** There shall be a Supreme Court of India consisting of a Chief Justice of India and, until Parliament by law prescribes a larger number, not more than seven other Judges.

The **Supreme Court (Number of Judges) Amendment Act, 2019** increased the maximum number of Supreme Court judges from **30 to 33**, excluding the **Chief Justice of India**.

The original Constitution of 1950 envisaged a Supreme Court with a Chief Justice and 7 Judges. Considering the increase in workload, Parliament increased the number of Judges from 8 in 1950 to 11 in 1956, 14 in 1960, 18 in 1978, 26 in 1986, 31 in 2009 and 34 in 2019 (current strength).

➤ **Article 124(2) – Appointment of Judges of the Supreme Court**➤ **President appoints the judges of the Supreme Court after consultations with the Chief Justice.**

- ❖ **What does 'Consultation' mean under Article 124(2)?**

First Judges Case (1982) – S.P. Gupta vs Union of India

- This decision was given by a majority of 4:3.
- The Supreme Court did not consider the consultation mandatory.
- SC interpreted "consultation" as **non-binding** exchange of views between the **President and the CJI**.
- Appointment of judges was to be done with the **advice of the Council of Ministers**.

Second Judges Case (1993) – Supreme Court Advocates-on-Record Association Case

- This decision was given by a majority of 7:2.
- Reversed 1982 ruling.
- Held that the advice of the **CJI + 2 senior-most judges** would be **binding** on the President.
- **Collegium System** emerged (though the term was formally used in 1998).
- If the President rejects the recommendation, **reasons must be recorded**.

Appointment of CJI

- **Seniority** became key in appointing the CJI (not merit).
- **In the past, political interference led to appointments against seniority:**
 - A.N. Ray (1973)s and M.H. Beg (1976) were appointed by **superseding senior judges**.
 - After backlash, **Janata Party government** promised to restore **seniority principle**.

Third Judges Case (1998)

- SC expanded the Collegium to **CJI + 4 senior-most judges**.
- Their collective opinion would be binding on the President.
- If **2 judges dissent**, the President is **not bound** to accept the recommendation.
- Strengthened **judicial primacy** in appointments.
- Collegium term was used for the first time
- If President does not accept recommendation, he has to give reason.

❖ Appointment Process of Other Judges of the Supreme Court**[For Prelims only]**

1. **Initiation of proposal:** The **Chief Justice of India (CJI)** initiates the proposal in **consultation with the Collegium**, which consists of the **CJI + 4 senior-most judges** of the Supreme Court.
2. **Written Opinions:** The **views of the consultee judges** are obtained and **recorded in writing**.
3. **Forwarding to Law Minister:** The recommendation is sent to the **Law Minister**.
4. **Role of Prime Minister:** The Law Minister forwards the proposal to the **Prime Minister**, who then **advises the President** for the final appointment.

National Judicial Appointments Commission (NJAC)

- To reform this, the **99th Constitutional Amendment Act, 2015** created the NJAC.
- **Composition of NJAC (Total 6 Members):**
 - Chief Justice of India (CJI)
 - 2 senior-most judges of the Supreme Court
 - Union Law Minister
 - 2 Eminent Persons (1 from SC/ST/OBC/Minority/Women)
 - Decisions by **5:1 majority**
 - President could return recommendation once, but must accept if reiterated.
- **Functions of NJAC:**
 - Appointment of: CJI, Supreme Court Judges, High Court Judges, Transfer of High Court Judges
- **16 October 2015 judgement:** NJAC declared **unconstitutional** (**Supreme Court Advocates-on-Record Association v. Union of India**) By **4:1 Majority**

Judge	Verdict	Remark
Justice J.S. Khehar	Against NJAC	Independence of judiciary is basic structure
Justice Madan B. Lokur	Against NJAC	Executive interference is unacceptable
Justice Kurian Joseph	Against NJAC	NJAC lacks transparency
Justice Adarsh Goel	Against NJAC	Constitutional principles violated
Justice Chelameswar	Supported NJAC	Collegium system is opaque & flawed

- **Impact:** The independence of the judiciary is part of the basic structure of the Constitution, and the NJAC was declared unconstitutional on the grounds that it violated this structure.
- Consequently, the collegium system was reinstated, which is currently in force.

Collegium System (Mains Only)

❖ Criticisms of the Collegium System

[Mains]

1. **Opaque and Non-Transparent:** There is no official procedure or written guidelines for how judges are selected. Meetings are secretive, and decisions are rarely explained.
2. **Lack of Accountability:** The Collegium is not accountable to any external authority not even to the legislature or public which raises concerns in a democratic setup.
3. **No Defined Criteria for Selection:** Appointments are made without clearly stated benchmarks such as merit, integrity, or past performance.
4. **Dominance of Seniority:** Overemphasis on seniority often sidelines merit-based selections, innovation, and younger talent.
5. **Nepotism and Favouritism:** Relatives of former judges and senior lawyers often get preference, leading to accusations of “judicial dynasty” or in-breeding.
6. **Reversal of Decisions Without Justification:** Collegium has reversed its own previous recommendations without public reasons, affecting its credibility.
7. **Exclusion of Executive Scrutiny:** While independence is important, completely excluding the executive eliminates any checks and balances.
8. **Inconsistency in Appointments:** There is no uniformity in the selection process across cases, leading to arbitrary outcomes.
9. **Limited Diversity:** The system has failed to ensure representation of women, minorities, and marginalized communities in higher judiciary.

❖ Collegium system is a blessing in disguise

{Mains} Arguments in favor

1. **Protects independence of judiciary:** The framers of the Constitution were aware of the potential threat to judicial independence. They designed the judiciary to function autonomously, free from executive interference.
2. **Historical viewpoint:** On May 23, 1949, K.T. Shah emphasized in the Constituent Assembly that the Judiciary, as the main protector of civil liberties, must be completely independent from the Executive—both directly and indirectly.
3. **NJAC declared unconstitutional:** In 2015, the Supreme Court struck down the 99th Constitutional Amendment and the National Judicial Appointments Commission (NJAC), stating it violated the basic structure of the Constitution by undermining judicial independence.
4. **Distrust on political executive:** The Supreme Court strongly opposed giving any role to the political executive in judicial appointments. It warned that “reciprocity and feelings of payback to the political executive” would severely damage judicial independence.

❖ Alternatives to the Collegium System in India

{Mains}

- a. **National Judicial Appointments Commission (NJAC)** (*struck down in 2015*)
- b. **Reformed Collegium with Transparency** – Retain the collegium but introduce reforms such as:
 - Written criteria for selection
 - Public disclosure of reasons
 - Independent secretariat to assist in evaluation
 - Inclusion of civil society/legal experts
- c. **Judicial Appointments Commission (Revamped Model)**– A balanced body with representatives from:
 - **Representatives of the Judiciary** (e.g., CJI, senior-most judges of the Supreme Court)
 - **Representatives of the Executive** (e.g., Law Minister or a person nominated by them)
 - Independent eminent persons (chosen unanimously) – Modeled after successful international practices (like UK).
- d. **Parliamentary Oversight Committees** (*Not preferred in India but exists abroad*)
Introduce limited legislative scrutiny of appointments to ensure democratic legitimacy while preserving independence.
- e. **Comparative Judicial Appointment Systems**

{Mains}

Country	Appointment System	Role of Executive	Role of Judiciary	Other Bodies Involved
India	Collegium System (<i>judicial primacy</i>)	No formal Role	Dominant Role	None Officially (post-NJAC)
USA	Presidential Nomination + Senate Confirmation	Strong Role	No direct Role	Legislative Oversight
UK	Judicial Appointments Commission (JAC)	Limited	Consultative	Independent Statutory Body
Canada	Judicial Advisory Committees	Strong Role	Consultative	Non-partisan Advisory Panels
Germany	Selection Committee of Parliament	Yes	Consultative	Equal role of legislative/ judicial
South Africa	Judicial Service Commission (JSC)	Included	Included	Includes Civil Society & Lawyers

❖ **Key Takeaways**

{Mains}

- Most **mature democracies follow a balanced model** where the executive, judiciary, and sometimes legislature or civil society **share roles** in judicial appointments.
- India's **Collegium system lacks accountability and diversity** and is often viewed as opaque.
- A **reformed, transparent, and participatory mechanism**, possibly a new version of NJAC with proper safeguards, is seen as a viable alternative.

➤ **Article 124(2A) – Determination of Age of Supreme Court Judges**

- The age of a Judge of the Supreme Court shall be determined by such authority and in such manner as Parliament may by law provide. It was added by the 15th Constitutional Amendment Act, 1963.
- According to Article 124(2) - Every Judge of the Supreme Court shall be appointed by the President and shall hold office until the age of 65 years.

➤ **Article 124(3) – Qualifications for Supreme Court Judges**

To be appointed as a **Judge of the Supreme Court**, a person **must be**:

- **A citizen of India, and must fulfil any one of the following three criteria:**
 1. **Judicial Experience:** Has been a **High Court judge** for **at least 5 years**, or in **two or more High Courts in succession**.
 2. **Advocacy Experience:** Has been an **advocate** in a **High Court** (or multiple High Courts in succession) for **at least 10 years**.
 3. **Distinguished Jurist:** In the **President's opinion**, the person is a **distinguished jurist** (legal scholar or expert).

Explanation: While counting the **10 years of advocacy**, if a person also worked as a **judicial officer (like District Judge)** after becoming an advocate, **that time will also be counted**.

❖ **Removal of Judges of the Supreme Court [Article 124(4)]**

➤ A Supreme Court judge can be removed only on **two grounds**:

1. **Proven misbehavior**
2. **Incapacity**

➤ **Who Can Start the Process?**

- Any **House of Parliament** (Lok Sabha or Rajya Sabha)
- Motion must be signed by:
 - **50 Members** (Rajya Sabha), **100 Members** (Lok Sabha)

- The step-by-step process of removal from office:
 1. **Admission of Motion:** Speaker (Lok Sabha) or Chairman (Rajya Sabha) can **admit or reject** the motion.
 2. **Investigation Committee Formation:** If admitted, a **3-member committee** is formed to examine the charges:
 - A Chief Justice or SC judge
 - A Chief Justice of a High Court
 - A distinguished jurist
 3. **Committee Report:** If allegations are found **true**, the motion is **taken up for voting** in both Houses.
 4. **Voting Requirement:** Passed in **both Houses** by a **Special Majority** (i.e., majority of total membership + 2/3rd of members present and voting)
 5. **Presidential Approval:** After both Houses pass the motion, an **address is sent to the President**.
 - President issues the removal order.
- **Judicial Review:** The entire process is **subject to judicial review**.
- **Important Fact:** Till date, **no Supreme Court judge has been removed** through this process.

➤ Judges Faced Removal Proceedings in India

- Till date, **7 judges** from the Supreme Court or High Courts have faced **formally initiated removal proceedings**, but **none were actually removed**.
- 1. **Justice V. Ramaswami (SC) – 1991–1993**
 - Accused of: Extravagant spending
 - Inquiry: Found guilty
 - Outcome: Motion failed in Lok Sabha (Congress abstained) ➤ **Not removed**
- 2. **Justice Soumitra Sen (Calcutta HC) – 2009–2011**
 - Accused of: Misappropriating ₹33.23 lakh
 - Rajya Sabha: Passed motion
 - Outcome: Resigned before Lok Sabha vote ➤ **Resigned**
- 3. **Justice P.D. Dinakaran (Sikkim HC) – 2009–2011**
 - Accused of: Corruption & illegal land acquisition
 - Inquiry ordered
 - Outcome: Resigned before proceedings ➤ **Resigned**
- 4. **Justice J.B. Pardiwala (Gujarat HC) – 2015**
 - Accused of: Casteist remarks on reservation
 - Outcome: Remarks withdrawn, motion dropped ➤ **Motion dropped**
- 5. **Justice S.K. Gangele (MP HC) – 2015–2016**
 - Accused of: Sexual harassment
 - Inquiry cleared him
 - Outcome: Motion lapsed ➤ **Not removed**
- 6. **Justice Dipak Misra (CJI) – 2018**
 - Accused of: Corruption & irregularities
 - Motion rejected by Vice President ➤ **Motion rejected**

Current Affairs

1. Justice Shekhar Kumar Yadav (Allahabad High Court) – 2024–2025

Controversial speech – 55 MPs moved a resolution at a Vishva Hindu Parishad (VHP) event, but it has not been accepted by the Speaker yet.

2. Justice Verma case

Q-1 Can an FIR be filed against Supreme Court/High Court judges?

Q-2 Do they fall under the definition of public servant?

Answer: An FIR can be filed against a judge of the Supreme Court or High Court, but only under specific circumstances.

As per the Supreme Court judgment in the landmark case of K. Veeraswamy vs Union of India (1991), a criminal case cannot be initiated against a serving judge unless the CJI grants prior permission.

Under the Prevention of Corruption Act, 1988, judges of the Supreme Court and High Courts are considered "public servants". However, the permission of the Chief Justice is mandatory for any prosecution or FIR relating to criminal offences (especially corruption).

Q-3 What is the recently constituted In House Inquiry of the Supreme Court?

Answer: Chief Justice of India (CJI) Sanjiv Khanna constituted a three-member committee to inquire into the allegations of recovery of large sums of cash after a fire broke out in the residence of Delhi High Court judge Yashwant Verma. (Justice Sheel Nagu, Justice G.S. Sandhawalia, Justice Anu Sivaraman)

In-House Judicial Investigation Procedure

1. **Origin:** Ravichandran Iyer v Justice A.M. Bhattacharya (1995)

- Came into existence in 1995 following allegations against Justice A.M. Bhattacharya (Bombay High Court)
- Drafted by the Supreme Court in 1997, adopted in 1999 to deal with judicial misconduct that does not fall under the purview of impeachment.

Procedure:

1. The complaint can be submitted to the CJI or the Chief Justice of the concerned High Court:
2. The Chief Justice may seek a preliminary report from the concerned High Court
3. Formation of a 3-member committee (if required) – Based on the report, the Chief Justice constitutes a 3-member inquiry panel
4. The committee submits the report to the Chief Justice

Possible outcomes:

- A. **Charges not proven:** No action is taken
- B. **Charges proven but not serious:** The Chief Justice advises the accused judge and the report is placed on record
- C. **Serious and removable charges:** The judge is advised to resign or take voluntary retirement

If not:

- The judge is barred from judicial duties
- The matter is referred to the Prime Minister and the President to initiate impeachment

After this, a motion to remove Justice Verma was moved in Parliament and accepted. Now further proceedings will be completed under Article 124 (4) and 124 (5) (updated by 1 August 2025)

Article 124(5) Parliament may by law regulate the procedure for the presentation of an address and for the investigation and proof of the misbehaviour or incapacity of a Judge under clause (4).

Legal Basis	Provision
• Constitution	• Article 124(4) and (5)
• Parliamentary Act	• The Judges (Inquiry) Act, 1968
• Supporting Rules	• Judges (Inquiry) Rules, 1969

Article 124 (6) Every person who is appointed as a Judge of the Supreme Court must take an oath or affirmation **before starting the job**. This must be done **in front of the President**, or someone the President appoints for this purpose. The oath or affirmation must be in the **format given in the Third Schedule** of the Constitution.

Article 124 (7) A person who has **served as a Judge of the Supreme Court** is **not allowed to work as a lawyer** or act in **any court or authority** within the territory of India after leaving office.

Article 125 – Salaries of Judges, etc.

- (1) The salaries of Supreme Court Judges will be decided by **Parliament through a law**. Until such a law is made, their salaries will be the same as mentioned in the **Second Schedule** of the Constitution.
- (2) Every Judge will also get **allowances, benefits, leave rights, and pension** as decided by a law made by Parliament. Until Parliament decides, these will also be as mentioned in the **Second Schedule**.
 - But these benefits (allowances, leave, pension) **cannot be reduced or made worse** after the Judge has been appointed.

➤ Current Salaries:

- **Chief Justice of India (CJI): ₹2.8 lakh/month**
- **Other Judges: ₹2.5 lakh/month**

➤ Pension: Judges receive **50% of their salary** as pension after retirement

Provisions Related to Judges – Articles 126, 127 & 128

Provision	Acting CJI (Art. 126)	Ad hoc Judges (Art. 127)	Retired Judges (Art. 128)
When Applicable	If the office of the CJI is: – Vacant – Temporarily absent – Temporarily unable to perform duties	If there is lack of quorum in the Supreme Court	When workload in SC is high
Appointing Authority	President appoints one of the SC judges as Acting CJI	CJI appoints ad hoc judges with prior permission of the President	CJI appoints retired judges with prior permission of the President
Eligibility	Must be a sitting SC judge	Judges from High Court who have qualifications of SC judges	Retired Judges of SC or HC
Consultation Required	Not applicable	With the Chief Justice of the concerned High Court	Appointment needs consent of the retired judge
Salary & Allowances	As per serving judges		Decided by President
Tenure	Temporary	Temporary (as required to meet quorum)	Maximum 2 years
Powers	Same as CJI during tenure	Same as regular SC judge	Same powers as SC judge, but no use of designation (not called SC judge officially)

Article 130 – Seat of Supreme Court

"The Supreme Court shall sit in Delhi or in such other place or places, as the Chief Justice of India may, with the approval of the President, from time to time, appoint."

❖ **Contextual Relevance**

{Only for Mains}

- There have been ongoing demands, especially from **southern states**, to set up **regional benches** of the Supreme Court to improve access to justice.
- The **21st Law Commission** also recommended the establishment of **regional benches**.
- Though there is a constitutional provision in Article 130, no regional bench has been established yet and at present the Supreme Court functions only from Delhi.

❖ **Regional Benches of the Supreme Court: Benefits & Challenges**

{Mains}

➤ **Benefits**1. **Access to Justice**

- As per the *Law Commission of India*, 70% of appeals filed in the Supreme Court come from just four northern states.
- Litigants from far-off regions like the South and Northeast face high costs and travel time to reach Delhi.

2. **Reduction in Case Pendency**

- As per the Supreme Court's official data, the total pending cases as of 2024 exceeded 70,000.
- Regional benches can help distribute caseload and speed up hearings.

3. **Support from Law Commission**

- The 21st Law Commission recommended four Benches (North, South, East, West) for appeals, while retaining a Constitution Bench in Delhi.

4. **Use of Article 130**

- Article 130 empowers the Chief Justice of India (CJI), with the President's approval, to establish Supreme Court sittings at other places besides Delhi.

5. **Digital Divide Still Exists**

- Despite e-courts and virtual hearings, many rural and tribal regions lack internet infrastructure, making physical access critical.

➤ **Challenges {Mains}**1. **Threat to Judicial Uniformity:** Concerns over conflicting interpretations of law by multiple benches.

- Chief Justice Y.V. Chandrachud (1970s) had observed that a single seat ensures coherence and consistency.

2. **Constitutional Philosophy:** The Constituent Assembly intended the Supreme Court to be a centralised apex court (as debated on 24 May 1949).

- Fragmenting it might affect its unitary character.

3. **Administrative Complexity:** Requires multiple high-security court buildings, judges' transfers, digital records synchronization, etc.

- Increased logistical and budgetary demands on the Ministry of Law and Justice.

4. **Bar Council Resistance:** The Supreme Court Bar Association (SCBA) and senior advocates have opposed decentralization, citing risks to judicial prestige and cohesion.5. **Forum Shopping Risk:** Multiple benches may lead to manipulative filing practices, as parties choose favorable jurisdictions, affecting fairness.

Chief Justices of India {For Prelims only}

S.n	Name	Tenure	Key Facts
1	Harilal Jekisundas Kania	26/01/1950 – 06/11/1951	First CJI of India after Constitution came into effect. Death while in office
2	M. Patanjali Sastri	1951 – 1954	
3	Mehr Chand Mahajan	1954 – 1954	Was Prime Minister of J&K before joining SC.
4	B.K. Mukherjea	1954 – 1956	First CJI to resign
5	S.R. Das	1956 – 1959	
6	B.P. Sinha	1959 – 1964	
7	P.B. Gajendragadkar	1964 – 1966	
8	A.K. Sarkar	1966 – 1966	
9	K. Subba Rao	1966 – 1967	He also resigned
10	K.N. Wanchoo	1967 – 1968	He was the second Chief Justice of Rajasthan High Court
11	M. Hidayatullah	1968 – 1970	Later became Vice President of India; renowned jurist.
12	J.C. Shah	1970 – 1971	Headed the <i>Shah Commission</i> on Emergency excesses.
13	S.M. Sikri	1971 – 1973	First CJI appointed directly from the Bar.
14	A.N. Ray	1973 – 1977	Controversially superseded three senior judges post-Kesavananda Bharati.
15	M.H. Beg	1977 – 1978	Upheld Emergency actions; dissented with fundamental rights curtailment.
16	Y.V. Chandrachud	1978 – 1985	Longest-serving CJI (over 7 years)
17	P.N. Bhagwati	1985 – 1986	Introduced Public Interest Litigation (PIL) ; champion of judicial activism.
18	R.S. Pathak	1986 – 1989	Later became judge at the International Court of Justice.
19	E.S. Venkataramiah	1989 – 1989	
20	Sabyasachi Mukherjee	1989 – 1990	Died in office due to illness.
21	Ranganath Misra	1990 – 1991	Later became Chairman, NHRC; headed inquiry on anti-Sikh riots.
22	K.N. Singh	1991 – 1991	Shortest tenure as CJI – 18 days.
23	M.H. Kania	1991 – 1992	Grandson of first CJI; opposed judicial overreach.
24	L.M. Sharma	1992 – 1993	Tenure known for maintaining judicial restraint.
25	M.N. Venkatachaliah	1993 – 1994	Headed the National Commission to Review the Constitution (2000).
26	A.M. Ahmadi	1994 – 1997	
27	J.S. Verma	1997 – 1998	Architect of the Vishaka Guidelines; pro-women jurisprudence.
28	M.M. Punchhi	1998 – 1998	Later chaired Punchhi Commission on Centre-State relations.
29	A.S. Anand	1998 – 2001	
30	S.P. Bharucha	2001 – 2002	
31	B.N. Kirpal	2002 – 2002	
32	G.B. Pattanaik	2002 – 2002	Tenure lasted just 40 days.
33	V.N. Khare	2002 – 2004	
34	S. Rajendra Babu	2004 – 2004	Also served as NHRC Chairperson.
35	R.C. Lahoti	2004 – 2005	
36	Y.K. Sabharwal	01/11/2005 – 13/01/2007	

37	K.G. Balakrishnan	2007 –2010	First Dalit CJI ; later NHRC Chairperson.
38	S.H. Kapadia	2010 –2012	
39	Altamas Kabir	2012 –2013	
40	P. Sathasivam	2013 –2014	First ex-CJI to be appointed as Governor (Kerala).
41	R.M. Lodha	2014 –2014	
42	H.L. Dattu	2014 –2015	Later appointed Chairperson of NHRC; pro-rights judgments.
43	T.S. Thakur	2015 –2017	
44	J.S. Khehar	2017 –2017	First Sikh CJI ; led bench in Triple Talaq case.
45	Dipak Misra	2017 –2018	Landmark verdicts: Sabarimala, Section 377, Aadhaar .
46	Ranjan Gogoi	2018 –2019	Delivered Ayodhya verdict ; nominated to Rajya Sabha.
47	S.A. Bobde	2019 –2021	
48	N.V. Ramana	2021 –2022	
49	U.U. Lalit	2022 –2022	Known for criminal law expertise; tenure just 74 days.
50	D.Y. Chandrachud	2022 –2024	Pro-rights judge; major decisions in abortion, EWS quota, same-sex rights .
51	Sanjiv Khanna	11/11/2024 – 13/05/2025	
52	B.R. Gavai	14 May 2025 to present	Judge from Bombay High Court

➤ **Supreme Court Inauguration (28 January 1950)**

{for Prelims Only}

Sanctioned Strength: 8 Judges

Present at First Sitting (6 Judges):

- Harilal J. Kania (Chief Justice)
- Patanjali Shastri
- B.K. Mukherjea
- S. Fazl Ali
- Mehr Chand Mahajan
- S.R. Das

Later Appointed to Complete Strength:

- N. Chandrasekhara Aiyar – September 1950
- Vivian Bose – 1951

➤ **Women Judges in the Supreme Court of India (as of 2025)**

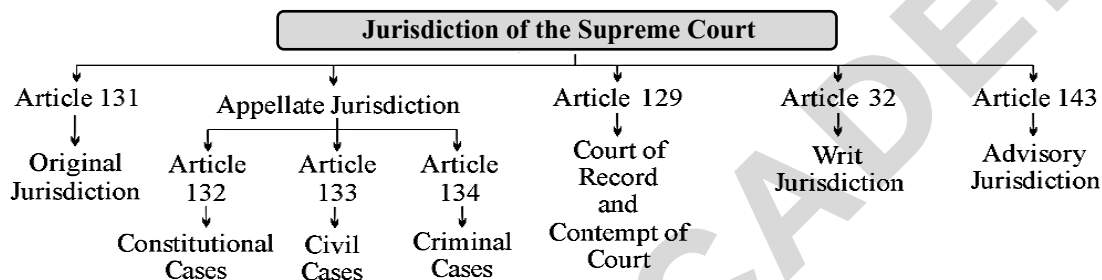
{for Prelims only}

No.	Name	Tenure	Notable Highlights
1	Fathima Beevi	6 Oct 1989 – 29 Apr 1992	First woman judge of SC, first Muslim woman judge
2	Sujata Vs Manohar	1994 –1999	
3	Ruma Pal	2000 –2006	Longest-serving woman SC judge
4	Gyan Sudha Misra	2010 –2014	
5	Ranjana Prakash Desai	2011 –2014	
6	R. Banumathi	2014 –2020	
7	Indu Malhotra	2018 –2021	First woman directly from Bar
8	Indira Banerjee	2018 –2022	
9	Hima Kohli	2021 –2024	
10	Bela M. Trivedi	31 Aug 2021 – 9 June 2025	First woman SC judge from Gujarat
11	B.V. Nagarathna	31 Aug 2021 – Present	Likely to become first woman CJI in 2027

➤ Important Women Chief Justices in Indian High Courts

(Importants Only - For Prelims)

Name	High Court	Year Appointed as CJ	Notable Highlights
Leila Seth	Himachal Pradesh HC	1991	First woman CJ of a HC in India
Kanta Kumari Bhatnagar	Madras HC (Acting CJ)	1992	First woman judge of Madras High Court First chairperson of Rajasthan Human Rights Commission
Sujata V. Manohar	Bombay HC → Kerala HC	CJ of Kerala in 1994	She was the first woman Chief Justice of both Kerala and Bombay High Courts
Indira Banerjee	Madras HC	2017	Later became SC judge
Hima Kohli	Telangana HC	2021	First woman CJ of Telangana HC

**Article 131 – Original jurisdiction of the Supreme Court**

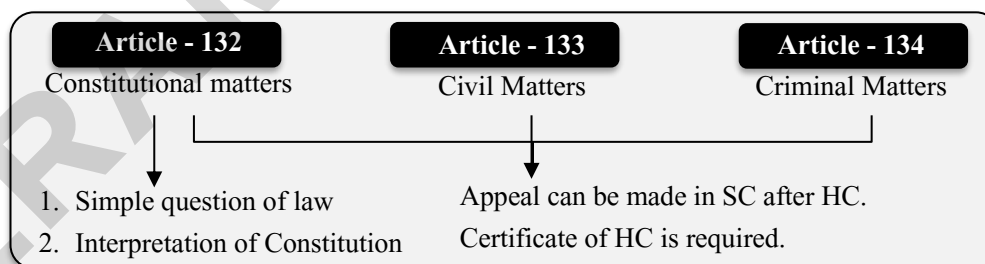
The **Supreme Court** has **exclusive original jurisdiction** in disputes involving:

- Government of India vs one or more States
- Union + one or more States vs one or more other States
- Two or more States

The dispute must involve a question (of law or fact) affecting **legal rights**.

Exception: Jurisdiction **does not apply** to disputes arising from:

- Pre-Constitution treaties, agreements, covenants, engagements, sanads, or similar instruments
- If such instruments **expressly exclude** SC's jurisdiction

Appellate Jurisdiction**Certificate of HC is not required in the following circumstances -**

1. If a person has been acquitted by the subordinate court but HC has given a sentence of 10 years or more.
2. If HC has taken over any case or suit from the subordinate court and has given a sentence of 10 years or more to the accused.

Before the 30th Amendment of the Constitution (1972), an appeal in civil cases could be made to the Supreme Court only if the value of the suit was more than Rs. 20,000. However, the 30th Amendment of 1972 removed the limit of rupees for the suit.

Article 134A – Certificate for Appeal to Supreme Court (ADDED BY 44th CA, 1978)

Whenever a High Court passes a **judgment, final order, or sentence** under:

- **Article 132(1)** (Constitutional matters)
- **Article 133(1)** (Civil cases)
- **Article 134(1)(c)** (Criminal cases)

Then the High Court:

- May* give a certificate **on its own**, if it feels it's needed.
- Must* decide on the certificate **if the aggrieved party applies orally right after the judgment.**

This certificate allows appeal to the **Supreme Court**.

Article 135 – Federal Court's Jurisdiction continues

Even though the **Federal Court** (pre-1950) was abolished after the Constitution came into force:

- The **Supreme Court can still exercise** the same **jurisdiction and powers** that the **Federal Court** had in **any matter not covered** by the Constitution but allowed by law.

Article 136 – Special Leave to Appeal (SLP)

- Supreme Court can give special permission to appeal against any decision (judgment, order, sentence, etc.) made by any court or tribunal in India.
- This power **does not apply** to decisions given by **military courts or tribunals** (i.e., under laws related to the Armed Forces).

❖ **Examples of Article 136 in Action**

- Curative Petition – *Rupa Ashok Hurra v. Ashok Hurra* (2002)**

The Supreme Court held that a curative petition can be filed under Article 136 even after the dismissal of the review petition. It showed the **exceptional nature** of SLP power.

- Pritam Singh v. State of Punjab* (1950):** One of the **first major cases** where SC defined that Article 136 is **not a matter of right**, but a **discretionary power used only in rare and exceptional circumstances**.

Article 137 – Review of Judgments or Orders by the Supreme Court

- The **Supreme Court** has the **power to review** any of its own **judgments or orders**, but this power is subject to:
 - Any **law made by Parliament**, and
 - **Rules made by the Supreme Court** under Article 145.

Topic 1 : Review Petition

- To **reconsider** a Supreme Court judgment if there's an **error apparent on the face of record**.
- **Time Limit:** Within **30 days** of judgment.
- **When Filed:** Immediately after original judgment, before curative stage.
- **Hearing:** Usually **in chambers** (not open court).

Topic 2 : Curative Petition

- **Purpose:** To correct **gross miscarriage of justice** even after review petition is dismissed.
- **No fixed time**, but must be filed **within reasonable time**.
- **When Filed:** **After review petition is rejected**.
- **Hearing:** Initially in **chamber**, may go to **open court** if Bench allows.
- **Constitutional & Legal Basis**

Provision	Details
Article 137	SC can review its own judgments.
Curative Petition	Judicially evolved concept, not explicitly mentioned in Constitution .
Key Case	<i>Rupa Ashok Hurra v. Ashok Hurra</i> (2002) – Landmark judgment that recognized curative petition under Article 137 + Article 32.

Article 129 – Supreme Court as a Court of Record❖ **What It Means:**

- **Supreme Court is a Court of Record**, i.e., its **proceedings, decisions, and judgments** have **evidentiary value** and can't be questioned in any lower court. It has the **inherent power to punish for contempt of court** (civil or criminal). Contempt of court is not defined in constitution.

❖ **Associated & Related Topics**1. **Court of Record – Meaning & Characteristics**

Feature	Explanation
Judgments are recorded	As legal precedent and public record
Evidentiary value	Cannot be challenged in subordinate courts
Power to punish	For contempt of court

2. **Types of Contempt (as per Contempt of Courts Act, 1971)**

Type	Meaning
Civil Contempt	Willful disobedience of court's order or direction
Criminal Contempt	Scandalizing the court, prejudicing a proceeding, or obstructing justice

3. **Punishment for Contempt (Section 12, Contempt of Courts Act, 1971)**

- Up to 6 months imprisonment, or Fine up to ₹2000, or Both

4. **Related Articles**

Article	Provision
Article 129	SC as Court of Record with contempt power
Article 215	High Courts also have same power as courts of record
Article 19(2)	Reasonable restriction on freedom of speech includes contempt of court

❖ **Important Case Laws**

1. **Arundhati Roy Case (2002)** – She was held guilty of contempt for scandalizing the judiciary.
2. **Prashant Bhushan Case (2020)** – Controversial tweets led to SC contempt proceedings.
3. **Baradakanta Misra vs. Bhimsen Dixit (1972)** – Clarified what constitutes “scandalizing the court”.

❖ **Key Points**

- **Contempt power is necessary** to maintain **public confidence** in the judiciary.
- However, this power must be exercised in a balanced manner with freedom of expression (Article 19(1)(a)).
- SC has clarified that **criticism of judgments is allowed**, but **intentional attack on integrity** of judges or court is **not**.

Article 138 – Enlargement of Jurisdiction of the Supreme Court

- Parliament can **expand SC's jurisdiction** in matters from the **Union List**.
- SC can also be given extra powers over any matter through a **special agreement between the Centre and a State**, if **Parliament passes a law for it**.

Article 139 – SC's Power to Issue Writs

- Parliament can pass a law to give SC the **power to issue writs** like: **Habeas Corpus, Mandamus, Prohibition, Quo Warranto, Certiorari**
- These writs can be used for **purposes other than those under Article 32(2)** (i.e., not for Fundamental Rights only).

Article 140 – Ancillary Powers of the SC

- Parliament can make a law to give **additional supportive powers** to SC.

- These powers must be:
 - Not inconsistent with the Constitution
 - Helpful in better exercising its existing jurisdiction

❖ **Comparison Table – Articles 138, 139 & 140**

Article	Purpose	Who Can Confer Power?	Scope
138	Expand SC's jurisdiction	Parliament or Parliament + Agreement between Centre & State	On Union List or by special agreement
139	Give writ-issuing power for non-FR purposes	Parliament	Writs beyond Article 32(2)
140	Give supplemental/ support powers	Parliament	Must help SC use its existing powers more effectively

Article 139A – Transfer of Certain Cases

(It was inserted by the 42nd Constitutional Amendment Act, 1976)

- **Clause (1):** If **similar or same legal questions** are pending in:
- SC and one or more HCs, or
 - Two or more High Courts
- And if these are **important questions of general public interest**, → then **Supreme Court can withdraw** those cases from the High Courts and **hear and decide them itself**.

After deciding the legal issue, SC can **send the case back to the HC** with its judgment. The HC must then decide the case according to the SC's judgment.

Note :- Who can initiate the process?

1. **Supreme Court itself** (*suo motu*)
2. **Attorney General of India**
3. **Any party** to such a case (by filing an application)

- **Clause (2):** SC can **transfer any case, appeal, or proceeding** from **one High Court to another** if it thinks it's necessary **for the ends of justice**. (note :- The **Chief Justice of India (CJI)** may constitute a Bench to hear transfer petitions.)

Article 141. Law declared by Supreme Court to be binding on all courts.

The law declared by the Supreme Court shall be binding on all courts within the territory of India.

Note: Thus, in India, the **doctrine of precedent** has been given **constitutional validity under Article 141**.

Since the **doctrine of precedent does not apply to the Supreme Court itself**, the SC is **not bound by its previous decisions**.

- **Examples: Shayara Bano vs Union of India (2017)**
- **Triple Talaq** (Talaq-e-Biddat) declared unconstitutional.
 - All courts must treat it as **illegal** under Article 141.

Article 142 – Complete Justice & Enforcement Powers of Supreme Court

- **Clause (1): Power to Do Complete Justice**
- The **Supreme Court** can **pass any order or decree** that it feels is **necessary to do complete justice** in any case **pending before it**.
 - These orders are **enforceable across the whole of India**.
 - **Until Parliament makes a law**, the **President** can prescribe how these orders are to be enforced.
- **Clause (2): Powers Related to Investigation & Enforcement**
- SC can **release orders (applicable across India)** for:
 - Ensuring the **attendance** of any person
 - **Discovery or production** of documents
 - **Investigation or punishment** for **contempt of court**
 - This power is subject to any law made by Parliament.

Article 142 – Associated Constitutional & Legal Issues {Mains}

1. **Scope of “Complete Justice” – Undefined but Wide**
 - SC can go beyond statutes to ensure complete justice in any case.
 - Issue: Where to draw the line?
 - Is it judicial creativity or judicial overreach?
 - Used in cases like *Bhopal gas tragedy*, *Vishaka Guidelines*.
2. **Separation of Powers (Article 50) vs Judicial Power**
 - Critics argue: SC sometimes performs legislative or executive functions.
 - Supporters argue: Article 142 is a tool to fill legislative gaps.
3. **Lack of Statutory Framework**
 - Parliament has not passed a detailed law guiding use of Article-142.
 - Creates ambiguity: No clear limits = More judicial discretion.
4. **Binding Nature of Article 142 Orders**
 - Orders passed under Article 142 are binding under Article 141.
 - But: These are case-specific; may not apply as general law.
 - Creates confusion in judicial consistency.

Article 143 – Advisory Jurisdiction

The **President of India** can refer matters to the **Supreme Court** for advice.

Two Types of References under Article 143:

Type	Matter	SC's Opinion	President's Duty
143(1)	Any question of law or fact of public importance	SC <i>may</i> give opinion	President <i>not bound</i> to accept
143(2)	Disputes under proviso to Article 131 (eg. pre-Constitution treaties / agreements)	SC <i>must</i> give opinion	President <i>not bound</i> to accept

- **Need for a Constitution Bench**
 - The matter is heard by a **Constitution Bench** of at least **5 judges**.
- **SC Is Not Bound To Advise When:**
 - The President refers **non-significant** or **politically sensitive** matters.
 - Example: In **Ram Janmabhoomi–Babri Masjid dispute**, SC **refused to give opinion** in 1994.

Article 144 – Duty of All Authorities to Aid the Supreme Court

- All **civil and judicial authorities** in India must **act in aid of the Supreme Court**.
- **Means:** They are **bound to enforce SC orders** and **assist** in implementation.

Article 145 – Rules of the Supreme Court

- **Clause (1): Power to Frame Rules:** SC can **make its own rules** for procedure & practice — with **President's approval**.
 - These rules may include the following subjects:
 - Who can **practice** before the court?
 - **Appeal procedure** and time limits
 - **Fundamental Rights** enforcement (Art. 32 cases)
 - Cases under **Article 139A**
 - **Review** procedure and time limits
 - **Fees, costs, bail, stay** rules
 - **Frivolous appeals** (can be dismissed quickly)
 - Inquiries under **Article 317** (removal of UPSC/State PSC members)

➤ **Clause (2): Bench Composition Rules**

- **The Supreme Court may determine the following:**
 - Minimum number of judges for any case
 - Powers of single judge and division benches

➤ **Clause (3): Provision of constitution bench**

- **In the following cases, a Constitution Bench of at least five judges is required:**
 - Substantial question of constitutional law
 - References under Article 143 (President's advisory jurisdiction)
- If a smaller bench finds such a question, it must refer it to a larger bench.

➤ **Clause (4): Open Court Judgment**

- All judgments and advisory opinions must be delivered in open court (not in chambers/private).

➤ **Clause (5): Majority Opinion Required**

- A judgment or opinion is valid only if majority of judges agree.
- However, dissenting judges can deliver separate opinions.

Topic : What is "Master of the Roster"? {for Mains}

- **"Master of the Roster"** refers to the **authority to decide:**
 - Which judge will hear which case,
 - Which bench will be constituted,
 - What type of cases are listed before each bench.
- This power is vested in the Chief Justice of India (CJI).

Legal & Constitutional Basis

Basis	Explanation
Article 145	The Supreme Court has the power to make rules regarding its procedure, composition of benches, etc.
SC Judgments	Several judgments have reiterated that the Chief Justice is the 'Master of the Roster'.
Administrative Power	This is not a judicial power – the CJI acts as the head of the institution, not as a judge.

Campaign for Judicial Accountability vs. Union of India (2018)

- Supreme Court ruled that **only the CJI is the Master of the Roster**.
- CJI has **exclusive authority** to constitute benches.

❖ **Why is it Controversial?**

- Allegations of **favouritism** or **bench-fixing** in sensitive cases.
- The issue peaked during the **2018 press conference by four senior SC judges**, where they raised concerns about **case allocation**.

❖ **Master of the Roster – Arguments For & Against**

Arguments in Favour (Pros)	Arguments Against (Cons)
Ensures discipline and management in listing of cases	May lead to lack of transparency
Maintains institutional coherence	Possibility of abuse of discretion
Prevents chaos in bench allocation	Requires codified internal rules for fairness

While **Master of the Roster** is necessary for administrative efficiency, it must be exercised with **transparency, integrity**, and **institutional accountability**, especially in **politically sensitive or constitutional matters**.

Article 146 – Officers, Staff & Expenses of the Supreme Court➤ **Clause (1): Appointment of Officers & Servants**

- **Chief Justice of India (CJI)** has the power to **appoint officers and staff** of the Supreme Court.
- CJI can **delegate** this power to another **judge or officer** of the Court.

- **Provision:** The **President** can make the following rules:
 - For certain posts, if the person is not already in SC, then appointment must be made after consultation with UPSC.

➤ **Clause (2): Service Conditions**

- **CJI (or authorized judge/officer)** can make **rules regarding service conditions** of Supreme Court staff.
- These include: Salaries, allowances, leave, pensions, etc.
- **Provision:** These specific rules (on salary, etc.) must be **approved by the President**.

➤ **Clause (3): Expenses of the Supreme Court**

- **All administrative expenses** of SC (including salaries, pensions) are:
 - Charged on the Consolidated Fund of India
 - This ensures financial independence of the SC.
- **Fees collected** by the Court also go to the **Consolidated Fund of India**.

❖ **Summary Table**

Clause	Subject	Key Point
(1)	Appointments	Made by CJI or delegate; some may need UPSC consultation .
(2)	Service Rules	Made by CJI; salary-related rules need President's approval .
(3)	Expenses	Charged on Consolidated Fund of India (ensures autonomy).

Article 147 – Interpretation Clause

- ❖ **Purpose:** To clarify what is meant by "substantial question of law as to the interpretation of the Constitution" — a phrase used in **Article 132(1)** and **Article 145(3)**.
- ❖ **Simplified meaning:** Whenever the Constitution refers to a "substantial question of law relating to the interpretation of the Constitution," it also includes the interpretation of the following subjects –
 1. Interpretation of the **Government of India Act, 1935**
 2. Any law that **amended or supplemented** that Act
 3. Any **Order-in-Council** or order under the 1935 Act
 4. Interpretation of the **Indian Independence Act, 1947**
 5. Orders made under the 1947 Act

Mains Related Topics

Judicial Review

A. Definition of Judicial Review:

Judicial Review is a fundamental feature of the Indian Constitution that empowers the judiciary—particularly the Supreme Court and High Courts—to **examine the constitutionality of legislative and executive actions**, and to **strike them down if they are found to be in violation of constitutional provisions**.

Judicial review is not only a means for checking excesses, but a necessary mechanism to maintain the supremacy of the Constitution. - **Justice H.R. Khanna** (in *Kesavananda Bharati Case*, 1973)

B. Constitutional Basis of Judicial Review in India

Though the term **judicial review** is not explicitly mentioned, it is **implicitly embedded** in several constitutional provisions:

1. Article 13 – Fundamental Rights Protection

This empowers courts to **invalidate laws** violating Fundamental Rights.

It is considered the **cornerstone** of judicial review.

2. Powers of the Supreme Court

- **Article 32** – *Right to Constitutional Remedies*; enables issuance of writs.
- **Article 136** – Discretionary power to grant **special leave to appeal** from any court or tribunal.
- **Article 141** – Supreme Court's decisions are **binding on all courts**.
- **Article 142** – Court can pass orders to do **complete justice**.

3. Powers of High Courts

- **Article 226** – Issue writs for the **enforcement of both fundamental and legal rights**. Broader in scope than Article 32.

4. Other Relevant Articles

- **Articles 131–136** – Define the **jurisdiction of the Supreme Court**.
- **Article 143** – Allows the **President to seek advisory opinion**.
- **Article 246** – Basis for judicial review of laws violating the **distribution of legislative powers**.
- **Articles 251 & 254** – Handle **Union–State law conflicts**.
- **Article 372(1)** – Extends judicial review to **pre-Constitution laws**.

C. Key Features of Judicial review in India

- 1) Judicial review is implicit in the Constitution (e.g., Articles 13, 32, 226) although the term is not mentioned.
- 2) It is a part of the basic structure, as held in *Kesavananda Bharati vs State of Kerala (1973)*.
- 3) This concept is inspired from the constitution of USA.
- 4) The power of judicial review is not limited to the Supreme Court but is also vested in the High Courts.
- 5) The Indian judiciary has broadened the scope of judicial review by incorporating the doctrine of 'due process of law' through judicial interpretation.
- 6) Extent of Review
 - **Can be applied to:**
 - **Pre-Constitutional laws** (Article 372)
 - **Post-Constitutional laws**
 - **Administrative actions**
- 7) Principle of Supremacy of the Constitution

It ensures that all organs of the State act within constitutional limits, reinforcing the doctrine of limited government and constitutional supremacy.
- 8) Subject to Reasonable Limitations
 - Judicial review cannot interfere with purely political questions.
 - Cannot be exercised in the absence of a specific challenge.

D. Evolution of Judicial Review in India (Post-Independence)

- Judicial Review in India has **evolved from a limited procedural tool** to a **robust constitutional safeguard**, thanks to the dynamic interpretation by the higher judiciary. Though the term itself is not mentioned in the Constitution, its **spirit is embedded in Articles 13, 32, 226, 136**, etc.

Phase I: Conservative Approach (1950–1967)

- Judiciary upheld the **Supremacy of Parliament** in many cases.
- Limited interpretation** of fundamental rights.
- Key Case: *A.K. Gopalan v. State of Madras (1950)***
→ Article 21 interpreted narrowly as “procedure established by law.”
→ Courts avoided questioning the **reasonableness** of laws.

Phase II: Assertive and Expansive Phase (1967–1973)

- Marked by the judiciary **asserting its role as the guardian of the Constitution**.
- Expanded the meaning of judicial review to include **legislative competence** and **constitutional amendments**.
- Key Case: *Golaknath v. State of Punjab (1967)***
→ Held that **Fundamental Rights cannot be amended** using Article 368.
→ Parliamentary power **made subject to judicial review**.

Phase III: Basic Structure Doctrine (1973)

- A constitutional revolution in Indian jurisprudence.
- Key Case: *Kesavananda Bharati vs State of Kerala (1973)***
→ Introduced the **Basic Structure Doctrine**.
→ Held that Parliament can amend the Constitution but **cannot alter its basic structure** (e.g., judicial review, fundamental rights, secularism).

Phase IV: Post-Emergency Judicial Activism (1978 onwards)

- Judiciary took a **pro-rights, activist approach**.
- Expanded the scope of judicial review to include **administrative actions and policies**.
- Key Case: *Maneka Gandhi v. Union of India (1978)***
→ Redefined **Article 21** by linking it with Articles 14 and 19.
→ Introduced the “**due process of law**” element.
→ Opened the door for **substantive review** of laws.

Phase V: Contemporary Expansion

- Judicial review has been applied in:
 - Internet shutdowns
 - Environmental governance
 - Surveillance and privacy
 - Electoral transparency
- **Key Case: *K.S. Puttaswamy v. Union of India (2017)***
 - The **right to privacy** has been recognized as a **fundamental right** under Article 21.

E. Classifications of Judicial Review in India

1. Based on Nature of Law or Action Reviewed

Type	Description
Judicial Review of Legislation	Validates Parliamentary/State laws against the Constitution.
Judicial Review of Constitutional Amendments	Ensures they don't violate Basic Structure Doctrine .
Judicial Review of Administrative Actions	Scrutinizes rules, orders, and decisions of the executive.

2. Based on Scope or Depth of Review

Type	Description
Narrow Review	Only checks for procedural compliance .
Broad Review	Also examines reasonableness, proportionality, and fundamental rights violations . (Post <i>Maneka Gandhi</i> , 1978)

3. Based on Source of Law

Type	Description
Constitutional Review	Applies to constitutional provisions and amendments.
Statutory Review	Applies to ordinary laws and subordinate legislation .
Customary Review	Rare, but applies to personal/customary laws (e.g., <i>Shayara Bano case</i> on triple talaq).

4. Based on Legal Approach

Type	Description
Formal Review	Based strictly on textual or literal interpretation .
Transformative Review	Emphasizes spirit of the Constitution , social justice, and evolving rights (<i>Puttaswamy</i> , <i>Navtej Johar case</i>).

F. Important cases related to this topic

➤ Landmark Cases on Judicial Review in India

Case	Issue	Judgment	Key Contribution to Judicial Review
A.K. Gopalan vs State of Madras (1950)	Validity of preventive detention under Article 21	Upheld detention law	Adopted narrow view of Article 21— <i>procedure established by law</i> without requiring fairness.
Shankari Prasad vs Union of India (1952)	Constitutionality of the First Amendment Act, 1951	Upheld the amendment	First case affirming judicial review; upheld Parliament's power to amend the Constitution under Article 368.
Kesavananda Bharati vs State of Kerala (1973)	Extent of Parliament's amending power	Established Basic Structure Doctrine	Landmark ruling: constitutional amendments are subject to judicial review if they violate the basic structure.
Maneka Gandhi vs Union of India (1978)	Interpretation of "procedure established by law" in Article 21	Expanded Article 21	Shift from <i>A.K. Gopalan</i> ; declared that law must be just, fair, and reasonable—broadened scope of judicial review over personal liberty.
Minerva Mills vs Union of India (1980)	Validity of parts of the 42nd Amendment Act	Struck down clauses	Reaffirmed that judicial review and fundamental rights are part of the basic structure; balanced DPSP and FRs.
S.R. Bommai vs Union of India (1994)	Misuse of Article 356 (President's Rule)	Made President's Rule justiciable	Asserted judicial review over President's Rule to prevent its arbitrary use; strengthened federalism.
L. Chandra Kumar vs Union of India (1997)	Tribunalization and judicial review	Declared Articles 32 & 226 as part of basic structure	Held that power of judicial review of Supreme Court & High Courts cannot be excluded by constitutional amendment.
I.R. Coelho vs State of Tamil Nadu (2007)	Review of laws under Ninth Schedule	Subject to Judicial Review	Reaffirmed that even Ninth Schedule laws are open to judicial review if they violate basic structure.

RAS 2021 (Mains – Paper III):

Que Describe the features and evolution of Judicial Review in India.

UPSC 2014 – (General Studies Paper II):

Que Starting from inventing the ‘basic structure’ doctrine, the judiciary has played a highly proactive role in ensuring that India develops into a thriving democracy. In light of the statement, evaluate the role played by judicial activism in achieving the ideals of democracy.

UPSC 2016: (General Studies Paper II)

Que: What was held in the Coelho case? In this context, can you say that judicial review is of key importance amongst the basic features of the Constitution?

Practice Questions

P1 “Judicial review acts as the constitutional conscience of a democracy.” Discuss in the context of India’s constitutional framework.

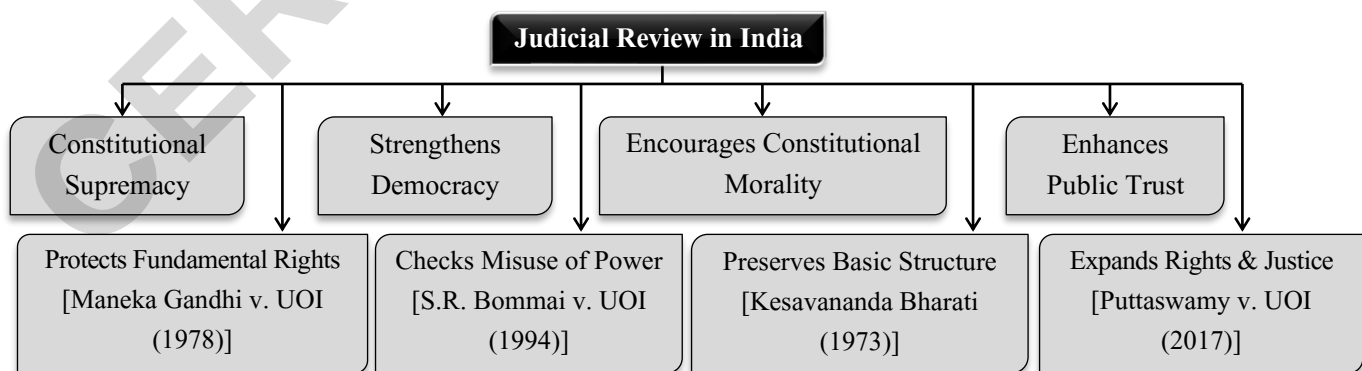
P2 Examine the role of judicial review in protecting the fundamental rights of Indian citizens. Cite relevant case laws.

In both P1 and P2 questions basically they are asking the positives of judicial review.

G. Benefits of Judicial Review in India

Benefit	Description	Example
1. Upholds Constitutional Supremacy	Ensures laws/actions don’t violate the Constitution; maintains rule of law.	–
2. Protects Fundamental Rights	Strikes down laws infringing Part III (FRs).	<i>Maneka Gandhi vs UOI (1978)</i> – widened Article 21.
3. Strengthens Democracy	Maintains balance among Legislature, Executive, Judiciary.	–
4. Checks Misuse of Power	Prevents arbitrary executive acts (e.g., misuse of President’s Rule).	<i>S.R. Bommai v. UOI (1994)</i>
5. Preserves Basic Structure	Invalidates amendments violating basic structure.	<i>Kesavananda Bharati v. State of Kerala (1973)</i>
6. Encourages Constitutional Morality	Promotes fair, just, and equitable governance.	–
7. Expands Rights & Justice	Interprets Constitution dynamically with changing needs.	<i>Puttaswamy v. UOI (2017)</i> – Right to Privacy.
8. Builds Public Trust	Citizens gain confidence in legal remedies.	–

❖ **Conclusion:** Judicial review ensures that constitutional values prevail over political expediency and that the rights of people remain protected.



A. Definition of Judicial Activism

Judicial Activism refers to a judicial philosophy where courts, especially constitutional courts, take an active role in interpreting laws and the Constitution.

In the **Indian context**, judicial activism signifies the **proactive role of the Supreme Court and High Courts** in **upholding constitutional values, protecting citizens' rights**, and **ensuring accountability of the State**, especially through tools like **Public Interest Litigation (PIL)** and expansive interpretation of **Fundamental Rights**.

Judicial activism transforms the judiciary from a mere interpreter of law into a guardian of constitutional ideals.

B. Difference between Judicial Review, Judicial Activism & Judicial Overreach

Aspect	Judicial Review	Judicial Activism	Judicial Overreach
Meaning	Power of courts to examine the constitutionality of legislative or executive acts.	When courts take a proactive stance to protect rights and uphold constitutional goals.	When judiciary crosses its constitutional limits and enters into legislative/executive domain.
Nature	Constitutional obligation	Progressive interpretation	Undesirable interference
Source of Legitimacy	Articles 13, 32, 226, 136 , etc. of the Constitution	Rooted in PILs and expansive interpretation of Fundamental Rights	Not backed by constitutional provisions
Purpose	To check constitutionality and maintain the rule of law	To fill governance gaps and ensure social justice	Results in violation of separation of powers
Examples	<i>Kesavananda Bharati v. State of Kerala (1973)</i>	<i>Vishaka v. State of Rajasthan (1997)</i> – guidelines for workplace sexual harassment	Ordering policy decisions like bans, appointments, etc., without legal backing
Judicial Role	Interpreter and guardian of the Constitution	Protector of public interest and rights	Intruder into executive/legislative functions

One-liner Summary:

- **Judicial Review** ensures **constitutional compliance**.
- **Judicial Activism** ensures **social justice** and fills governance voids.
- **Judicial Overreach** undermines **separation of powers**.

C. Methods of Judicial Activism in India

Method	Description	Constitutional Basis	Notable Examples
Judicial Review	Examination of the constitutionality of laws and executive actions	Articles 13, 32, 136, 142, 226	<i>Kesavananda Bharati vs State of Kerala (1973)</i>
Public Interest Litigation (PIL)	Any public-spirited individual can approach court for rights of others	Judicially evolved (no explicit article)	<i>Hussainara Khatoon vs State of Bihar (1979)</i>
Constitutional Interpretation	Expansive and purposive interpretation of constitutional provisions	Inherent judicial power	<i>Maneka Gandhi vs Union of India (1978)</i>

Suo Motu Cognizance	Courts take up cases on their own initiative in public interest	Articles 32 and 226	<i>Recent case of Abhay Jain (environmental issue)</i>
Judicial Guidelines/Policy Directives	Courts lay down guidelines in absence of laws	Article 142 (Complete Justice)	<i>Lily Thomas vs Union of India (2013)</i> – disqualification of convicted MPs/MLAs

D. Evolution of Judicial Activism in India

Period	Case Law	Year	Significance	Impact
Early Foundations	<i>A.K. Gopalan vs State of Madras</i>	1950	Upheld procedure established by law; limited view of personal liberty	Laid foundation for judicial review
	<i>Golaknath vs State of Punjab</i>	1967	Parliament cannot amend Fundamental Rights	Introduced concept of judicial limits on Parliament
	<i>R.C. Cooper vs Union of India</i>	1970	Struck down Bank Nationalisation Act	Strengthened fundamental rights and economic justice
	<i>Kesavananda Bharati vs State of Kerala</i>	1973	Introduced Basic Structure Doctrine	Limited Parliament's power to amend the Constitution
Emergence of Judicial Activism	<i>Hussainara Khatoon vs State of Bihar</i>	1979	Focused on rights of undertrial prisoners	Initiated the era of PILs
	<i>M.C. Mehta vs Union of India</i>	1986	Environmental protection	Landmark for judicial intervention in environmental governance
Maturation of Judicial Activism	<i>Vishaka vs State of Rajasthan</i>	1997	Guidelines for sexual harassment at workplace	Court acted as a law-maker in absence of legislation
	<i>Vineet Narain vs Union of India</i>	1998	Accountability in CBI and corruption investigations	Led to creation of Central Vigilance Commission (CVC)
Recent Developments	<i>NEET-UG Paper Leak Case (Suo Motu)</i>	2024	Court took suo motu cognizance of student concerns	Showed responsiveness to public interest and youth welfare
	<i>Property Rights in Marriage Case</i>	2024	Equal property rights for spouses	Strengthened gender equality within family law

F. Arguments in Favour of Judicial Activism

1. **Failure or inaction of the legislature and executive** often compels the judiciary to intervene in the public interest.
2. **Public Interest Litigation (PIL)** has brought crucial social, environmental, and governance issues into mainstream legal discourse.
3. Through expansive interpretation of **Article 21**, the judiciary has expanded the *Right to Life* to include dignity, health, education, and clean environment.
4. Courts have clarified and applied **administrative laws** to protect individual rights (e.g., Tis Hazari Court case).
5. Landmark judgments on **women's rights, marriage, divorce, child marriage** have filled legislative gaps.
6. Judicial activism has helped **expose corruption, mafia control, and criminalisation of politics**.
7. The judiciary has played a crucial role in **environmental protection** (e.g., *MC Mehta v. Union of India*).
8. It has **strengthened democracy** by holding authorities accountable.

9. Judicial activism has enabled **access to justice for marginalised sections**, especially through PIL (e.g., *Hussainara Khatoon case*).
10. The judiciary, as the **guardian of the Constitution**, is duty-bound to uphold constitutional values (*Kesavananda Bharati v. State of Kerala*, 1973).
11. Courts have inspired **policy changes and legislation** (e.g., *Vishaka Guidelines* against workplace harassment).

G. Arguments Against Judicial Activism / Judicial Overreach

1. Excessive judicial intervention **violates the doctrine of separation of powers**.
2. It **undermines the authority of elected legislatures**, weakening the spirit of representative democracy.
3. Judiciary is not a policy-making body, yet **acts beyond its constitutional mandate** in some cases.
4. Judicial interference has often **delayed developmental and economic projects**.
5. **PIL misuse** wastes valuable judicial time and resources.
6. Activism sometimes transforms into **media-driven or populist judgments**.
7. There is often a **lack of consistency** in activist judgments, leading to legal uncertainty.
8. Fear of **contempt of court** discourages healthy criticism of judicial decisions, reducing accountability.
9. Activist decisions may **override electoral mandates**, conflicting with democratic values.
10. Excessive activism may lead to the judiciary being perceived as an **“unelected super-legislature”** or an **invisible government**.

Judicial Restraint – A Concept Opposite to Judicial Activism

A. Definition:

Judicial restraint is a theory of judicial interpretation that encourages judges to **limit the exercise of their own power** and **defer to the elected branches** of government.

It is considered the **opposite of judicial activism**, where judges are more willing to reinterpret laws or strike them down.

B. Judicial Restraint Implies That Judges Should:

- Refrain from injecting their own preferences into legal rulings.
- Be hesitant to strike down laws unless they are **clearly unconstitutional**.
- Defer to **legislative intent** and **judicial precedent** (*stare decisis*).
- Avoid deciding constitutional questions unless **absolutely necessary**.
- Show **substantial deference** to the views of elected government branches.

C. Key Methods of Judicial Restraint:

- **Respecting Precedent (Stare Decisis):** Upholding previous rulings.
- **Deferring to Legislative Intent:** Respecting the intent of lawmakers.
- **Constitutional Avoidance:** Resolving cases on non-constitutional grounds where possible.
- **Presumption of Constitutionality:** Assuming laws are valid unless proven otherwise.

D. Significance:

Judicial restraint is valued because it:

- Maintains **separation of powers**.
- **Protects judicial independence** by limiting activism.
- However, critics argue that **judicial assertiveness** may be necessary to protect minority rights and constitutional values.
- Allows the **democratic process** to function effectively.

E. Case Laws Demonstrating Judicial Restraint:

Year	Case	Description
1977	<i>State of Rajasthan vs Union of India</i>	The SC declined intervention in a political issue, citing judicial restraint.
1994	<i>S.R. Bommai vs Union of India</i>	Article 356 use deemed a political question, beyond judicial review.
2000	<i>Almitra H. Patel vs Union of India</i>	SC refused to direct administrative policy, only directed performance of duties.

Public Interest Litigation (PIL)

A. Definition:

Public Interest Litigation refers to legal action taken to protect the **rights and interests of the public**, especially **deprived sections**, by allowing **any public-spirited person** to approach the courts.

- Initiated in courts for enforcing public or general interest.
- Designed for those **unable to afford** litigation.
- Originates from **wider public concern** like pollution, prison reforms, road safety, etc.

B. Facts:

- PIL originated in the Supreme Court of the USA.
- In India, PIL began with the case of undertrial prisoners detained in the Bhagalpur (Bihar) jail. In this connection, K. Rustam wrote a letter to advocate Kapila Hingorani, who raised the issue before the Supreme Court under Article 32. Therefore, Kapila Hingorani is known as the **“Mother of PIL.”**
- The credit for introducing PIL in the Indian judiciary goes to Justice P. N. Bhagwati and Justice V. R. Krishna Iyer.
- The constitutional basis of PIL is Article 32.
- PIL is one aspect of judicial activism.
- PIL can be filed only in the Supreme Court or the High Courts.
- The Court used the words **“appropriate proceedings”** given in Article 32 as the basis of Public Interest Litigation.
- The Court also treated news published in newspapers and complaints received through post as the basis for Public Interest Litigation.

C. Evolution of PIL in India:

Year	Case	Significance
1976	<i>Mumbai Kamgar Sabha vs Abdul Thai</i>	Justice Krishna Iyer pioneered the PIL concept.
1979	<i>Hussainara Khatoon vs State of Bihar</i>	Focused on undertrial prisoners, leading to release of 40,000+ detainees. In this case, Justice P. N. Bhagwati accepted Public Interest Litigation for the first time.
1981	<i>S.P. Gupta vs Union of India</i>	Justice P.N. Bhagwati expanded PIL scope to any bona fide person/social group.
1983	<i>Bandhua Mukti Morcha Case</i>	For the welfare of bonded laborers working in mining, Justice P. N. Bhagwati treated a postal card itself as a Public Interest Litigation (PIL).

D. Key Contributions of PIL:

1. Expanded Access to Justice

- Allows any person to appear before the court through a Public Interest Litigation on behalf of the aggrieved.
- Extremely beneficial for disadvantaged sections who are unable to bear the cost of litigation.

2. Enforcement of Constitutional Rights

- Ensures the protection and enforcement of Fundamental Rights.
- Operationalizes **Directive Principles** like **Article 39A** – Equal justice and free legal aid.

3. **Addressing Social Issues:** Tackles environmental protection, public health, social reforms (e.g., **Triple Talaq ban, LGBTQ+ rights**).
4. **Promoting Government Accountability:** Courts monitor government institutions (e.g., **prisons, protective homes**).
5. **Judicial Innovations:** Introduces innovation in problem inspection and resolution through the appointment of fact-finding commissions, expert panels, etc.
6. **Fostering Judicial Activism:** Encourages **proactive judiciary** in protecting rights and shaping policy.
7. **Raising Public Awareness:** Media and civil society use PILs to spark **public debates and reforms**.

E. Challenges and Criticisms of PIL:

1. **Misuse and Abuse:** **Fraudulent litigation**, political motives, or attention-seeking petitions.
2. **Overburdening Judiciary:** Contributes to **case backlog, resource diversion, and delays**.
3. **Judicial Overreach:** Courts often seen **encroaching on executive/ legislative domains**.
4. **Implementation Challenges:** **Weak follow-up** and enforcement mechanisms for PIL rulings.
5. **Access Issues:** Costs still prohibitive; lack of awareness in **rural areas**.
6. **Impact on Development:** PILs **delay infrastructure projects** or policy implementation.
7. **Procedural Issues**
 - **No uniform criteria** for admitting PILs.
 - **There is no effective pre-screening of frivolous or baseless petitions.**

F. Proposed Solutions:

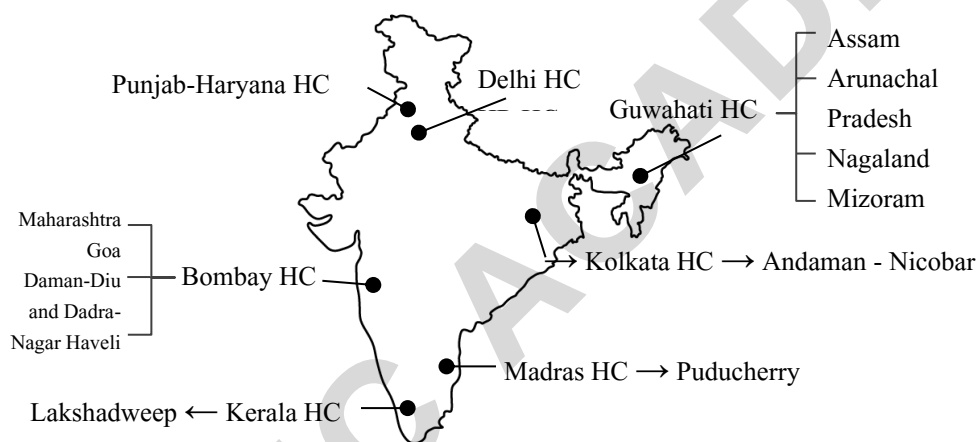
Solution Area	Measures
Admission Control	Clear guidelines and robust screening for PIL admission
Penalties	Hefty fines for frivolous or politically motivated PILs
Transparency	Mandatory disclosure of identity, funding, and interests
Capacity Building	Judicial training on handling PILs
Public Awareness	Public awareness Campaigns to promote genuine use of PILs
Alternative dispute resolution (ADR) Use	Encouragement of mediation and settlement processes in suitable PIL cases.
Efficient Procedures	Streamlined and fast-tracked PIL handling
Regular Review	Periodic review to ensure PIL system evolution
Balance Judicial Activism	Clear guidelines to prevent overreach , ensure constitutional balance
Implementation Monitoring	Strong follow-up and reporting mechanisms for the implementation and enforcement of PIL judgments.
Cost Reimbursement	Recovery of public losses in failed PILs (e.g., <i>Raunaq Int'l v. IVRCL</i>)

➤ **Historical Evolution:**

- **1862:** Establishment of High Courts at **Calcutta, Bombay, and Madras.**
- **1866:** **Allahabad High Court** established.
- **By 1947:** Total of **11 High Courts** existed.
- **Post-Independence:** **Orissa High Court** was set up. (first high court after independence)
- **Article 214:** There shall be a **High Court for each State.**
- **Article 231:** A **common High Court** may be established for **two or more states.** (7th constitutional amendment)

➤ **Present Status:**

- As of now, India has **25 High Courts.**
- **Newest High Court:** **Andhra Pradesh High Court** (established in **Amaravati**).



Category	Supreme Court	High Court
Strength	Sanctioned: 1 CJI + 33 (Art. 124(1)); Current: 34 (1 CJI + 33) Parliament can increase the number of judges	Article 216: Composition decided by President in consultation with CJI & Governor.
Eligibility	Article 124(3): Must be citizen of India. Either 5 years as HC judge OR 10 years as advocate in HC(s) OR distinguished jurist in President's opinion. No minimum age. Retirement at 65.s	Article 217(2): Citizen of India + 10 years in judicial office OR 10 years as advocate in HC(s). No minimum age. Retirement age: 62 years.
Appointment	Article 124(2): Appointed by President in consultation with SC and HC judges.	Article 217: Appointed by President after consultation with CJI, Governor of State & HC CJ.
Oath	Article 124(6): Oath before President or appointee. Content in Third Schedule. Constitutional & Judicial Oaths include allegiance to Constitution and impartial justice.	Third Schedule: Oath taken before Governor or appointee. Same content as Supreme Court judge oath.
Seat	Article 130: Supreme Court shall sit in Delhi or such other place as the CJI may appoint with President's approval.	Principal seat usually in state capital or major city.
Salary & Service	Articles 125 & 112: Salaries charged on Consolidated Fund of India. Regulated by SC Judges (Salaries & Conditions of Service) Act, 1958.	Articles 221 & 202: Salaries from Consolidated Fund of State; Pensions from Consolidated Fund of India. Governed by HC Judges Act, 1954.
Removal Process	Article 124(4): Removed for "proved misbehaviour or incapacity."	Article 217(1)(b): Same process as Supreme Court.

Article 216: Constitution of High Courts

"Every High Court shall consist of a Chief Justice and such other Judges as the President may from time to time deem it necessary to appoint."

- The **President of India** determines the **strength of each High Court** based on its **workload**, in consultation with:
 - The **Chief Justice of India (CJI)**
 - The **Governor** of the respective State

❖ **Overview of Judicial Power (For Mains)**

Criteria	Number
Total Sanctioned Strength	1,114 Judges
Working Strength	785 Judges
Vacancies	329 Judges
Vacancy Rate	~30%
Full Strength in High Courts	3 out of 25

❖ **High Court with the Highest and lowest Sanctioned Strength: {For Prelims Only}**

- **Allahabad High Court** (Uttar Pradesh): 160, **Bombay High Court** :- 94
- **Sikkim High Court**:- 3 judges

Article 217 – Appointment and Conditions of Office of High Court Judges**1. Appointment:**

Appointing Authority: The **President of India** appoints every Judge of a High Court.

- **In Consultation With:**
 - Chief Justice of India
 - Governor of the concerned State
 - Chief Justice of that High Court (in case of a judge other than Chief Justice)

2. Tenure: Term-Judges hold office until the age of 62 years. (15th constitutional amendment, 1963)**3. Resignation & Removal:**

- Resignation:** A judge can resign by writing to the President.
- Removal:** Can be removed as per the **procedure in Article 124(4)** (same as Supreme Court Judges – impeachment).
- Vacancy of Office:** If appointed as SC judge or transferred to another High Court.

4. Qualifications: Be an **Indian citizen**, and either:

- Have **10 years** of judicial office in India, **or**
- Be an **advocate of a High Court** (or multiple High Courts in succession) for **at least 10 years**.

5. Explanation/Clarifications: Time served as advocate or in legal posts (tribunals or legal administrative posts) **can be counted** toward eligibility.

- Pre-1947 judicial/legal experience within British India is also considered.

6. Disputes Regarding Age: The **President**, after consulting the **Chief Justice of India**, will **decide** on any **age-related dispute** of a High Court Judge.

- The President's decision is **final**.

❖ **Appointment {For Prelims Only}**

Stage	Details
1. Proposal Initiation	Initiated by the Chief Justice of the High Court in consultation with two senior-most judges of that High Court.
2. State-Level Recommendation	The Chief Minister advises the Governor to forward the recommendation to the Union Law Minister.

3. Law Ministry Review	The Ministry of Law and Justice reviews and sends the recommendation to the Supreme Court Collegium .
4. Supreme Court Collegium	Comprises the Chief Justice of India + two senior-most Supreme Court judges .
5. Background Check	Conducted by the Ministry of Home Affairs (MHA) for character and antecedents.
6. Presidential Approval	Final list is forwarded to the President of India , who makes the appointment.

Article 219 – Oath or Affirmation by High Court Judges

- Every **High Court Judge** must take an **oath or affirmation before entering office**.
- It is made **before the Governor** of the State or a person appointed by him.
- The format is prescribed in the **Third Schedule** of the Constitution.

Article 220 – Restriction on Practice After Retirement

- A **permanent Judge** of a High Court, after retirement, **cannot plead or act**:
 - In any court or authority in India, except: The **Supreme Court**, Other **High Courts**

Article 221 – Salaries and Allowances of Judges

- (1) **Salaries** of High Court Judges are determined by **Parliament by law**.
 - Until then, they are as per the Second Schedule of the Constitution.
- (2) **Judges are entitled to:** Allowances, Leave of absence, Pension, as determined by Parliament., Until such laws are made, the rights specified in the Second Schedule apply
Pensions: Charged upon the Consolidated Fund of India (As per Article 202 of the Constitution).
 - **Conditions of Service Governed by:** High Court Judges (Salaries and Conditions of Service) Act, 1954
 - Supreme Court Judges (Salaries and Conditions of Service) Act, 1958 (where applicable)
 - These cannot be varied to a judge's disadvantage after appointment.

Article 222 – Transfer of a High Court Judge

- (1) **Power of Transfer:** The **President of India** can transfer a Judge from **one High Court to another**.
 - this power is exercised **based on the recommendation of the Chief Justice of India (CJI)** after consultation.
- (2) **Compensatory Allowance** – will be given (determined by parliament by law)

Comparison: Supreme Court vs High Court Judge Appointments (Acting, Additional, Retired)

Aspect	Supreme Court	High Court
Acting Chief Justice	Article 126 – When CJI is unable to perform duties, President may appoint a SC Judge to act as CJI.	Article 223 – President may appoint a Judge to act as CJ of High Court.
Ad hoc Judges	Article 127 – With President's consent, CJI can appoint a HC judge to sit temporarily in SC if quorum not met.	Article 224(1) – President can appoint additional judges for up to 2 years due to increased workload.
Retired Judges	Article 128 – With President's consent, CJI may request a retired SC judge to sit temporarily.	Article 224A – CJ of HC may, with President's consent, request retired HC judge to sit & act.
Acting Judges	Not Applicable	Article 224(2) – President may appoint acting judges during absence or temporary promotion of other judges.
Age Limit	65 years	62 years

Jurisdiction of High Court

Article 215 – High Courts to be Courts of Record (SC – Article 129)

- Every High Court is a court of record.
- It has all powers of a court of record, including the power to punish for contempt of court.

Article 225 – Jurisdiction of Existing High Courts

- High Courts will continue with the same jurisdiction and powers they had before the Constitution came into effect.
- Subject to:
 - Provisions of the Constitution.
 - Laws made by the competent legislature.
- Original jurisdiction restrictions related to revenue matters existing before the Constitution no longer apply.

Article 230 – Extension of Jurisdiction of High Courts to Union Territories

Parliament has the power to -

- Extend/exclude the jurisdiction of the High Court of a State to a Union Territory (UT), this power is not vested in the State Legislature

Article 226 – Power of High Courts to Issue Writs (SC article 32)

- (1) **Writ Jurisdiction:** High Courts can issue writs (like habeas corpus, mandamus, certiorari, prohibition, quo warranto) to enforce:
 - Fundamental Rights (Part III), and for any other legal purpose.

Note- This power is even broader than the power conferred on the Supreme Court under Article 32.

- (2) **Cause of Action Clause:** Writ jurisdiction can be exercised even if the authority/person is residing outside jurisdiction, as long as the cause of action arises wholly or in part within HC territory.

- (3) **Not in Derogation of Supreme Court Powers:**

The writ power conferred on the High Courts under Article 226 does not abridge or affect the writ powers of the Supreme Court under Article 32 (2).

Landmark Case: *L. Chandra Kumar vs Union of India* (1997) — Article 226 is a part of the basic structure of the Constitution.

Article 227 – Superintendence over Subordinate Courts by High Court

- (1) **General Power:** Every High Court has superintendence over all courts and tribunals within its jurisdiction.
- (2) **Powers Include:**
 - (a) **Calling for returns** from subordinate courts.
 - (b) **Issuing rules** to regulate court practices and procedures.
 - (c) **Prescribing forms** for books, entries, and accounts.
- (3) **Fee Regulation:** Can fix **tables of fees** for sheriffs, officers, and advocates.
- (4) **Limitation:** No superintendence over **military/armed forces tribunals**.

Note- Governor's Approval is needed for rules, forms, and fees under this article.

Article 228 – Transfer of Certain Cases to High Court

Subordinate Court

- If a subordinate court case involves a substantial constitutional question, the High Court must withdraw the case.
- It may:
 - (a) **Decide the case itself**, or
 - (b) Decide only the **constitutional question** and return the case with its decision to the original court.

Article 229 – Officers, Servants & Expenses of High Court

- (1) **Appointments:**

- Made by the **Chief Justice** or an authorised Judge/officer.
- **Governor may require PSC consultation** for new appointments.

- (2) **Service Conditions:** Set by rules made by the **Chief Justice**, subject to **Governor's approval** (for salary, pension, leave, allowances).

(3) Expenses:

- Entire **administrative expenses** (salary, pension, etc.) are **charged on the State's Consolidated Fund**.
- Court fees collected** also go into that fund.

Power of Judicial Review of High Court

High Courts also have the **power of judicial review** → Under **Article 13(2)** and **Article 226** of the Constitution.

- The **42nd Constitutional Amendment** ► Had **curtailed** the power of High Courts to review central laws.
- The **43rd Constitutional Amendment** ► **Restored** the power of judicial review of central laws to the High Courts.

Therefore, High Courts can now review central laws, And the decisions of High Courts will be binding within their respective jurisdictions only.

But power of judicial review to high court is not same as SC because SC can review its own decision (article 137) which is not given to High court

Similarities & Differences: Supreme Court vs High Court (Powers) {Mains}

Aspect	Supreme Court	High Court	Similarity / Difference
Constitutional Basis	Articles 124–147	Articles 214–231	Similar (Constitutionally established courts)
Writ Jurisdiction	Article 32 – For Fundamental Rights only	Article 226 – For Fundamental Rights + other legal rights	Similar, HC has wider scope
Judicial Review	Has power to strike down laws violating Constitution	Also has power over central law	Supreme Court can also review its decision
Original Jurisdiction	Article 131 – In disputes between Union & States	No such federal original jurisdiction	Supreme Court has more power
Appellate Jurisdiction	Final court of appeal (civil, criminal, constitutional)	Hears appeals from subordinate courts only within state	Supreme Court is apex, High Court is intermediate
Supervisory Powers	No supervisory powers over High Courts	Article 227 – Supervisory control over subordinate courts	Only High Court
Binding Nature of Judgments	Binding on all courts in India under Article 141	Binding within the jurisdiction of the High Court	Supreme Court judgments binding nationally
Public Interest Litigation (PIL)	Can entertain PILs under Article 32	Can entertain PILs under Article 226	Similar
Court of Record	Yes – Article 129	Yes – Article 215	Similar
Contempt Powers	Can punish for its own contempt – Art 129	Can punish for its own contempt – Art 215	Similar
Advisory Jurisdiction	Article 143 – Can advise President	No advisory role	Supreme Court only
Territorial Jurisdiction	Entire territory of India	Only within the state (or states) it serves	Jurisdictional scope differs

❖ Points of Conflict Between Judiciary and Legislature/Executive (For Mains)**1. Judicial Review vs Parliamentary Sovereignty**

- Judiciary** strikes down laws violating the Constitution through judicial review.
- Legislature** considers this interference in its law-making power.

Example: Striking down of constitutional amendments (e.g., **Kesavananda Bharati**, **Minerva Mills**).

2. Basic Structure Doctrine

- Judiciary restricts Parliament from amending the Constitution in a way that affects its basic structure.
- Parliament resents this as a check on its constituent power.

Conflict: 42nd Amendment curtailed judicial power, reversed by 43rd Amendment.

3. Judicial Activism vs Separation of Powers

- Courts have issued guidelines where laws were absent (e.g., **Vishaka Guidelines**).
- Executive sees this as **overstepping into policy-making**, undermining its authority.
- Termed as **judicial overreach** by critics.

4. Collegium System vs NJAC

5. Delays in Judicial Appointments

- Executive often delays approvals of names recommended by the collegium.
- Judiciary sees it as **interference** and **lack of cooperation**.
- Leads to **high judicial vacancies** and **pendency of cases**.

6. Contempt Powers vs Freedom of Speech

- Judiciary uses contempt powers to **restrict criticism**.
- Legislature and civil society argue it curtails **free speech and accountability**.

Example: **Prashant Bhushan Contempt Case (2020)**.

7. Intervention in Administrative Decisions

- Judiciary often intervenes in policy matters (reservations, admissions, environment).
- Executive accuses judiciary of **micro-management of governance**.

Example: SC's intervention in **NEET, coal block allocations**, etc.

8. Judicial Delay in Resolving Key Issues

- Executive/Legislature blame the judiciary for **slow disposal of constitutional cases**, affecting national policy.
- Example:* Delay in deciding **Electoral Bonds, Caste Census**, etc.

➤ **Conclusion:** While the **Constitution provides checks and balances**, friction is inevitable. The need is for **respectful coordination**, not confrontation, among the three organs to uphold **constitutional morality and democratic governance**.

Que. Discuss the structural and functional dimensions of the doctrine of supremacy between the Parliament and the Supreme Court in the constitutional framework of India. *RAS MAINS 2018*

Que. Despite being the guardian of constitutional rights, the Indian higher judiciary suffers from chronic vacancies. Critically examine the causes, consequences, and suggest measures to address the issue.

Answer: Current Status (As of 2024–25):

{Mains}

- **Supreme Court:** Sanctioned Strength – 34 | Current Strength – 34 (No vacancy)
- **High Courts:**
 - **Sanctioned:** 1114 judges
 - **Working:** 785 judges
 - **Vacancies:** 329 judges (~30% vacancy rate)
 - Only **3 out of 25** High Courts are functioning at **full strength**
- **Causes of Vacancy:**
 1. **Delay in Collegium Recommendations:** Long gestation periods in initiating, approving, and processing names.
 2. **Executive Hold-up:** Government often delays concurrence or returns files for reconsideration.
 3. **Lack of Transparency in Collegium System:** No formal timeline or accountability mechanism.

4. **Pending Creation of Posts:** No new posts despite rising caseload and population.
5. **Lack of Institutional Mechanism:** Absence of a permanent body for judicial appointments.

➤ **Consequences:**

- **Justice Delayed = Justice Denied:** Case pendency crosses 5 crore; High Courts alone have over 60 lakh cases.
- **Undermines Citizens' Rights:** Fundamental rights enforcement suffers.
- **Increased Burden on Judges:** Affects quality of judgments and leads to burnout.
- **Weakens Trust in Judiciary:** Delays erode public faith in the judicial process.

➤ **Way Forward:**

1. **Reform the Collegium System:** Make it more transparent and time-bound.
2. **Establish All-India Judicial Service (AIJS):** To fill lower judiciary quickly and build a talent pipeline.
3. **Strengthen Judicial Infrastructure:** More courtrooms, staff, and technology.
4. **Fast-Track Appointments:** Institutionalize timelines for approvals.
5. **Periodic Review Mechanism:** Joint coordination between judiciary and executive.

Conclusion: Vacancies in the higher judiciary directly impact access to justice and the constitutional promise of equality. While judicial independence must be preserved, **cooperative federalism and institutional synergy** are essential to resolve this long-standing issue.

Q. Discuss the desirability of increasing the representation of women in the higher judiciary to ensure diversity, equality and inclusiveness. (UPSC - 2021)

Ans: At present, there are 11% women judges in SC and about 11% women judges at the High Court level. It is noteworthy that till date not a single woman has held the post of CJI.

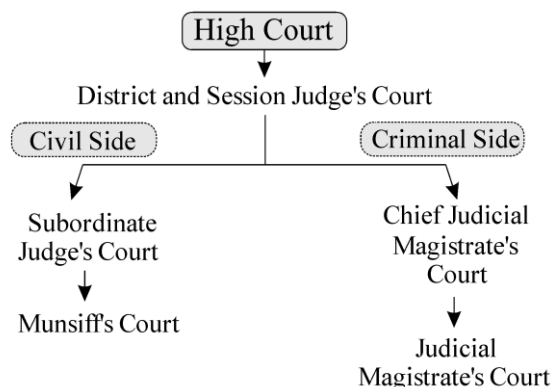
➤ **The importance of increasing the representation of women in the judiciary**

Diversity	Equality	Inclusiveness
• Sends a positive message • Adequate representation of women will increase the recognition of the court → It will gain credibility rather than being seen as an acceptable bastion.	• Taking into account the views and experiences of all groups in the decision-making process → Fairness • Conservatism → Gender equality	• Balanced justice system ensured. • Women from cultural backgrounds with different life experiences important in understanding the nuances of cases. • Balanced and sensitive approach → in cases of sexual violence.

➤ **Reasons for low representation of women in the court -**

Work-Life Balance	Glass Ceiling Effect	Opaque collegium system	Male dominated recruitment structure	Lack of role models	There is no women reservation policy in SC and HC
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- It is noteworthy that to move towards SDG-5 (gender equality), former CJI N.V. Ramana had also called for 50% women representation in the higher judiciary. For this, a certain percentage can be maintained in the court.



Appointment, transfer, promotion of District Judges are done by the Governor in consultation with the Chief Justice of the High Court of the State.

Qualifications for District Judge -

- i. He must have been a lawyer for at least 7 years.
 - ii. The High Court must have recommended his appointment.
 - iii. He must not be in public service under the Central or State Government.
- The District Judge can sentence a criminal to life imprisonment or death penalty, although the death sentence given by him can be implemented only after the approval of the High Court.
 - The District Judge has the power to inspect all the subordinate courts of the district.

An appeal can be made to the High Court against the decision of the District Judge.

National Legal Services Authority

- Article 39A:- Equal justice and free legal aid.
- In 1980, Supreme Court judge P.N. Bhagwati formed a committee.

In 1987, the Parliament passed the Legal Services Authority Act and under this, Lok Adalat was given statutory status and National Legal Services Authority (NALSA) was formed.

NALSA (Patron-in-Chief – CJI)

↓
SALSA (CJ of High Court)

↓
DLSA (District Judge)

- 9 November, 1995 – Act came into force. (CJI – R.N. Mishra)
- 9 November – Legal Service Day
- 1998 – Commencement of work (CJI - A.S. Anand)
- Nyay Deep - Newsletter of NALSA.

❖ National Legal Services Authority- Providing free legal services to the weaker sections of the society and running Lok Adalat.

❖ Vulnerable Persons

- | | | |
|----------------------------|----------------------|----------------------------------|
| • Scheduled Castes/Tribes | • Mentally ill | Income (determined by the state) |
| • Victims under Article 23 | • Disaster victims | |
| • Women and children | • Industrial workers | |
| | • In custody | |

Lok Adalat

- Lok Adalat is a forum where cases (pending in court/initial stage) are settled amicably.
- **Lok Adalat according to Supreme Court-**
 - It is an old form of justice system prevalent in ancient India which is still relevant today.
 - It is based on Gandhian philosophy.
 - This is a part of alternative dispute resolution.
- **1982 AD** – Lok Adalat was established in Gujarat. Due to the increasing success and popularity of Lok Adalats, it was given statutory status under the Legal Services Authority Act, 1987 and the award of Lok Adalat was considered equal to the decree of a civil court.
- If one is dissatisfied with the decision of the Lok Adalat, no appeal can be made but the parties can file a case in the court of appropriate jurisdiction by following the necessary procedure.
- **A Lok Adalat can be established by-**
 - Statutory Services Authority of the Supreme Court.
 - High Court
 - State Government
- **Structure of Lok Adalat-**
 - A judicial officer (serving or retired)
 - a lawyer
 - a social worker

❖ Nature of cases referred to Lok Adalat:

- Any case pending before any court.
- Any dispute which has not been brought before any court.

Note -

1. Non-compoundable cases can be heard in Lok Adalat.
2. Lok Adalat does not have the authority to give decision in divorce cases, it can only mediate in marriage cases.

National Lok Adalat

- From Supreme Court to Taluka level, all the courts across the country convene on the same day.
- National Lok Adalat is being organised every month since February 2015 on a specific topic.

Permanent Lok Adalat

- They are organised under Section 22B of the Statutory Services Authorities Act, 1987.
- There is a pre-petition conciliation mechanism for matters relating to public utility services like transport, post etc.
- Established as a permanent body with a Chairman and two members.
- Permanent Lok Adalats have jurisdiction up to an amount of Rs 10 lakh.
- Its decision is final and binding.

Mobile Lok Adalat

- Lok Adalats moving from one place to another for settlement of disputes.

❖ Benefits of Lok Adalats :-

- There is no court fee or stamp duty charged for these.
- The expenses of cases pending in the court will also be refunded.
- Not strictly following the laws.

- The process is recorded.
- Reducing the burden on the court by resolving pending cases in the court.
- Complex judicial process can be avoided by taking the dispute directly to the Lok Adalat.
- After the consent of both the parties, the case is brought to the Lok Adalat.
- In this, compromise/reconciliation is done between both the parties. There is no win or loss for any party, hence there is no mutual animosity.

Gram Nyayalay

- 2008 – Act for Gram Nyayalayas was passed.
- Gram Nyayalayas were established in 2009.

Objective -

1. To provide justice to the citizens at their doorstep.
2. To ensure that no citizen is deprived of the opportunity to obtain justice due to his social, economic and other disabilities.
3. To bring courts up to the Gram Panchayat level.
 - With the permission of the High Court, the State Government establishes a Gram Nyayalaya and appoints a first class magistrate.
 - This is a travelling court.
 - It hears both criminal and civil cases.
 - The case will be heard and disposed of within 6 months.
 - An appeal can be made against its decision within one month. An appeal can be made against the decision in criminal cases in the Sessions Court and against the decision in civil cases in the District Court.
 - Gram Nyayalayas have not been very successful.

Plea Bargaining

- This is an American concept.
- In this, a settlement is made between the two parties outside the court.
- It was made statutory by amending the Code of Criminal Procedure (CrPC) in 2005.
- Plea bargaining is not allowed in the following cases-
 - i. Those where punishment is 7 years or more.
 - ii. Crimes committed against women.
 - iii. Crimes committed against children below 14 years of age.
 - iv. Crimes against social and economic reforms.

A. What is Federalism?**Definiton:**

- i. Federalism is a system of governance in which power is constitutionally divided between a **central/national government** and **regional governments** (like states or provinces).
- ii. Both levels of government are **independent and autonomous** in their respective spheres and derive authority directly from the Constitution.
- iii. It promotes a **balance between unity and diversity**, allowing local governments to address regional needs while maintaining national cohesion.

B. Federal vs Unitary Features

Federal Features	Unitary Features
1. Written Constitution	1. Constitution may be written or unwritten
2. Supremacy of the Constitution	2. Constitution is not necessarily supreme
3. Division of powers -Centre & States	3. Power mainly concentrated in Centre
4. Dual Government	4. Single Government
5. Independent authority – States	5. Subordinate authority – Centre
6. Dual Citizenship	6. Single Citizenship
7. Bicameral Legislature – LS & RS	7. May be unicameral/bicameral
8. Rigid Constitution	8. Flexible Constitution
9. Independent Judiciary	9. Judiciary under control of Centre
10. States have more powers	10. Centre holds supreme authority
11. Example: USA	11. Example: UK

C. Federal Features of Indian Constitution

1. Written Constitution
2. Supremacy of Constitution
3. Division of powers
4. Bicameral Legislature(Lok Sabha & Rajya Sabha)
5. Dual Polity (Centre & States)
6. Independent Judiciary

D. Unitary Features of Indian Constitution

1. Single Constitution
2. Strong Centre (more powers to Union government)
3. Single Citizenship
4. Unified Judiciary
5. Parliament can change federal structure
6. More power and financial control with Centre
7. Appointment of Governors by Centre
8. Emergency Provisions
9. Article 3 (Centre can alter state boundaries)
10. All India Services (like IAS, IPS under central control)

E. What is India's Model of Federalism?

The nature of Indian federalism is highly debated, and scholars have offered different perspectives:

- i. India has a **unique federal structure** that blends both federal and unitary features, tailored to its vast diversity, size, and socio-political context.
- ii. The Indian Constitution describes India as a **"Union of States"** (Article 1), not as a federation formed by agreement of the states, giving it a **centralized character**.
- iii. Despite having federal features like dual polity and division of powers, the **Centre holds overriding authority** in many areas, especially during emergencies.

The word "federal" is nowhere used in the Constitution. Instead, the term "Union" has been used throughout. According to Dr. B.R. Ambedkar, "Though the Indian Constitution is federal, in times of emergency it becomes unitary."

Various committees, commissions, government reports, and even recent Supreme Court judgments have recognized the federal character as the basic structure of the Constitution.

Those who accept the Constitution's federal structure as its foundational framework describe Indian federalism using various terms:

❖ Different Opinions on Indian Federalism

Scholar/Thinker	Description Given
K.C. Wheare	Quasi-federal (A unitary system with subsidiary federal features)
Morris Jones	Bargaining Federalism
Granville Austin	Co-operative Federalism
Ivor Jennings	Strong centralisation with federalism

- ❖ **Conclusion:** India's federalism is **flexible and pragmatic**, designed to maintain **national unity** while respecting **regional diversity**. It **leans toward centralization**, especially during crises, but allows for **cooperation and coordination** under normal circumstances.

F. Why Did India Choose Quasi-Federalism?

Quasi-federalism is a governance model that blends both **federal** and **unitary** features. India adopted this model due to multiple **historical, social, economic, and administrative reasons**:

- Historical Context:** After the **1947 partition**, India faced communal tensions and fear of disintegration.
 - A **strong central government** was seen as essential to preserve **national unity** and manage emergencies.
 - The **Constituent Assembly** favored central dominance to avoid further fragmentation.
 - Social Context:** Post-independence India was deeply **hierarchical and divided** by caste and region.
 - A strong Centre was necessary to promote **social justice, national identity**, and equality.
 - Centralized governance aimed to weaken entrenched social inequalities.
 - Economic Context:** The vision of a **welfare state** needed **centralized control** for effective **redistribution of resources**.
 - A strong Centre could implement **rights-based policies** more uniformly.
 - Significant **regional disparities** required **national planning** and **coordinated economic intervention**.
 - Influenced by ideas in the Nehru Report (1928) and Bombay Plan (1944).
 - Administrative & Functional Efficiency:** Quasi-federalism helped tackle **regional conflicts and separatism** (e.g., via **Article 356**).
 - Ensured **better coordination** of national programs and crisis management.
 - Example: **COVID-19** response—central distribution of oxygen and vaccines.
 - GST implementation** created a **unified national market**, promoting economic integration.
- ❖ **Conclusion:** India's quasi-federal system offers the **flexibility** to maintain **unity in diversity**, allowing **central leadership** in times of crisis while ensuring **regional participation** in governance.

G. Development of Federalism in India

1. 1950s–1967: Centralized Federalism

During this period, the **Congress party was in power** at both the Centre and the States.

- As a result, the Centre held dominant control over state governments.
- There was **very little political opposition**, so the structure functioned more like a **unitary system** under a federal shell.

2. 1967–1989: Confrontational Federalism

- The Congress party was at the **Centre**, but different **regional parties came to power in various States**.
- This led to **frequent Centre–State conflicts**, especially on issues like President's Rule (Article 356) and fund allocation.
- The **federal structure was challenged** due to political hostility.

Modern Comparison: West Bengal, Kerala, and Delhi governments have often had **confrontational relations** with the Centre even today.

3. 1989–2014: Cooperative Federalism

- With the rise of **coalition governments**, the Centre had to **work with regional parties**.
- Cooperation was essential for **stable governance**.
- This led to negotiation and coordination between the Centre and the States.

Examples: GST (Goods & Services Tax) – required consensus from all states.

- **Inter-State Council, Planning Commission**, and later **NITI Aayog** promoted Centre–State coordination.

4. Post 2014: Competitive Federalism

- Introduced under the **NITI Aayog model** post-2015.
- Encourages **States to compete** in development to attract investment and improve service delivery.
- Promotes **performance-based ranking** and fund allocation.

Examples:

Health Index by NITI Aayog

- SDG (Sustainable Development Goals) Index
- Ease of Doing Business Rankings among States
- **PM Gati Shakti Yojana, Atal Innovation Mission**, and other centrally sponsored schemes reward well-performing states.

❖ Key Policy Themes under Cooperative & Competitive Federalism:

- DPSP (Directive Principles) implementation
- One Nation, One Ration Card
- One Nation, One Tax (GST)
- Aspirational Districts Programme
- Centrally Sponsored Schemes (CSS) and performance-linked grants

➤ As Modi ji Said future of Indian federalism will be

1. **Creative Federalism:** It refers to **innovative state-level initiatives** that are later adopted or adapted at the national level. It strengthens **bottom-up innovation**.

Example: Delhi's Mohalla Clinics – A decentralized public healthcare model, now influencing national urban health missions.

Rajasthan's Indira Rasoi Yojana – Inspired by Tamil Nadu's Amma Canteens, later influencing **PM Gareeb Kalyan Ann Yojana**.

2. **Collaborative Federalism:** It focuses on **equal participation of Centre and States in policy formulation and execution**, ensuring mutual trust.

Examples: GST Council – Decisions made through consensus of both Union and State governments.

COVID-19 Pandemic Response – Coordinated efforts for vaccine distribution, containment zones, and lockdown strategies.

National Education Policy (NEP) – Joint consultations with state education ministries before rollout.

3. **Converging Federalism:** This implies **harmonization of diverse policies and programs across levels of government**, ensuring uniformity without compromising diversity.

Examples: Ayushman Bharat + State Health Schemes (like Rajasthan's Chiranjeevi Scheme) – Integration of databases and beneficiaries for seamless delivery.

PM-KISAN and State Agrarian Relief Schemes like **Odisha's KALIA** – States converging their schemes with the Centre's DBT model.

One Nation, One Ration Card – Combining state PDS systems into a centralized, portable mechanism.

❖ **Conclusion: TEAM INDIA for NEW INDIA :** For a stronger and self-reliant New India, Centre and States must function as a **TEAM INDIA** – not as superior-subordinate, but as **equal stakeholders**.

- States should be **laboratories of democracy** and innovation.
- The Centre should act as an **enabler and facilitator**.

1. UPSC 2023

Q. Explain the significance of the 101st Constitutional Amendment. To what extent does the concept of “One Nation, One Tax” reflect the spirit of cooperative federalism?

2. UPSC 2014

Q. It is said that “Indian federalism is a unique federalism based on a unitary bias.” Discuss with reference to the constitutional provisions.

3. UPSC 2015

Q. In recent years, the concept of cooperative federalism is being increasingly emphasized. In this context, how will the structural arrangement of legislative institutions overcome the limitations of cooperative federalism?

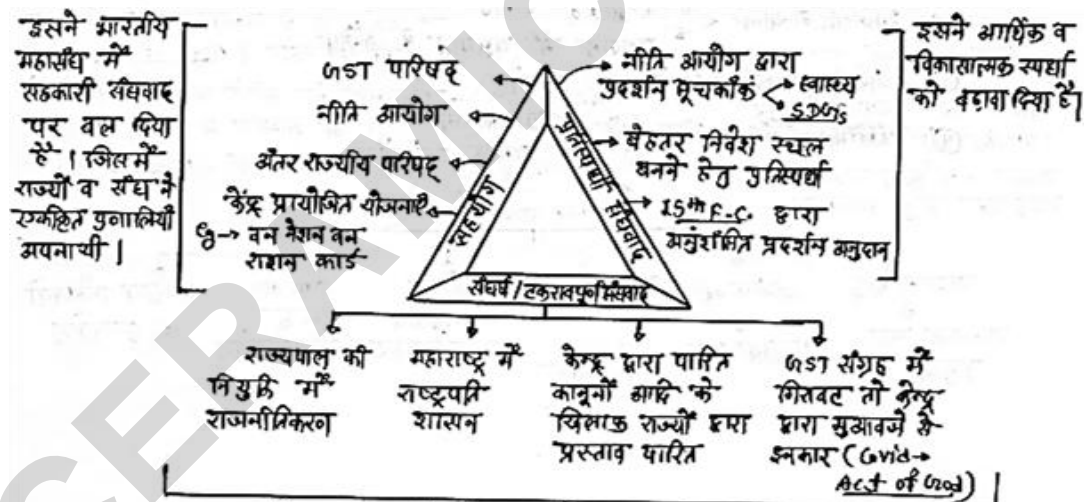
4. UPSC 2020

Q. In your opinion, how far have cooperative and competitive federalism reshaped the nature of Indian federalism? Present suitable examples to substantiate your views.

Q. आपके विचार में सहयोग और स्पर्धा एवं संघर्ष ने किस प्रकार से भारत में महासंघ को किस सीमा तक आकार दिया है? अपने उत्तर को प्रमाणित करने के लिए कुछ हालिया उदाहरण प्रस्तुत कीजिए। (UPSC-2020)

Ans. → भारतीय संविधान के अनुच्छेद-1 के अनुसार, भारत राज्यों का संघ होगा। अर्थात् संघ एवं राज्यों का संवैधानिक अस्तित्व है।

सहयोग, स्पर्धा एवं संघर्ष ने भारतीय संघ को निम्न प्रकार आकार दिया है-



वस्तुतः केंद्र व राज्यों में विभिन्न राजनीतिक (पृथक्-पृथक् दलों की सरकारें), उद्योगिक (राष्ट्रपति शासन) एवं आर्थिक युद्धों को लेकर तनाव उत्पन्न होता रहता है।

निष्कर्षतः भारतीय संघ में केंद्र व राज्यों द्वारा Cooperation & Creation के स्थान पर Co-operation & Creation को महत्व देकर संयुक्त उन्नति की ओर बढ़ना चाहिए।

९. हाल के वर्षों में सहकारी परिसंघवाद की संकल्पना पर आधिकारिक बल दिया जाता रहा है। विद्यमान संरचना में सहकारी संघवाद किस सीमा तक इन असुविधाओं का हल निकाल लेगा। इस पर प्रकाश डालिए। (UPSC-2015)

Ans. → सहकारी संघवाद समस्याओं के समाधान के लिए केंद्र, राज्य एवं स्थानीय निकायों की सामूहिक भागीदारी पर बल दिया जा रहा है।

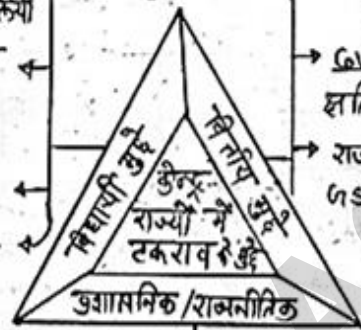
Dr. Ambedkar ⇒ परिसंघीय भारत बूट आरंभ में लागू न हो सका।

विद्यमान संरचना में समस्या →

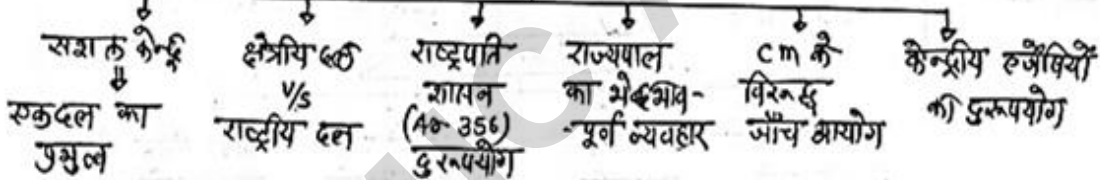
संविधान में संघ की प्राथमिकता अधिकारों

राज्य सूची के विधियों पर संघ द्वारा अतिक्रमण
Ar. 249
Ar. 250

विधियों पर टकराव होने पर 'परिधि' की सर्वोच्चता -
राज्यों के विधायक राज्यपाल द्वारा राष्ट्रपति हेतु आरक्षित।



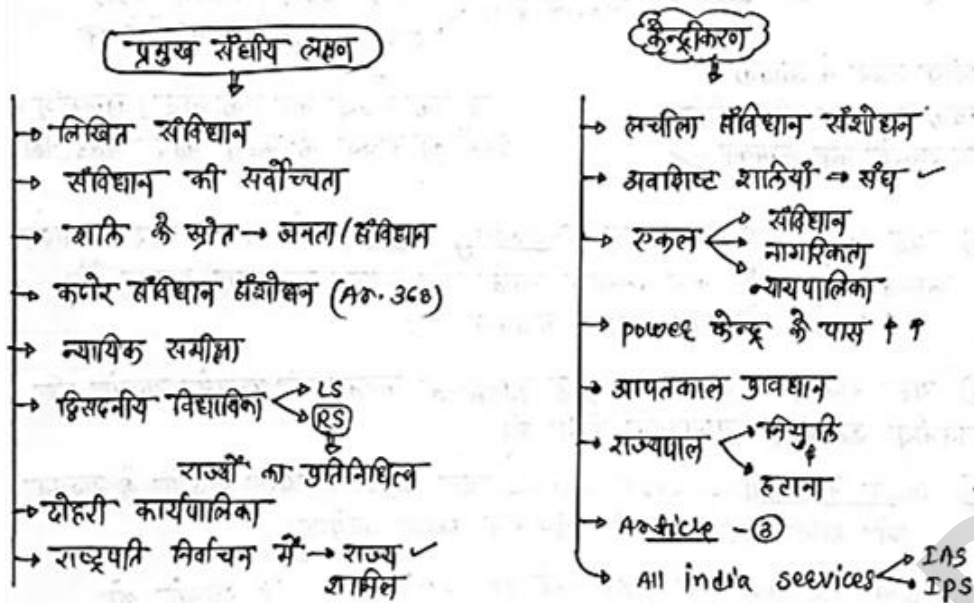
वित्तीय संसाधनों के वितरण में भेदभाव
eg. → योजना आयोग
Covid-19 के समय राज्यों की GST क्षतिपूर्ति नहीं (ACST और GST)
राज्यों की मांगों पर कुछ मदों की GST में शामिल न करना।
eg. → पेट्रोल, Alcohol etc.



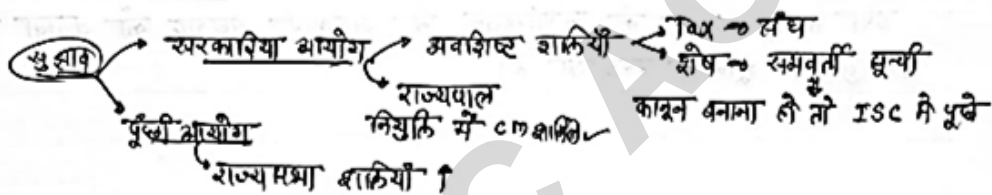
Conclusion → संविधान में रचनात्मकता, समन्वयता, सहयोग } को बढ़ावा दे।

९. यदि 'परिसंघीय सिद्धान्त' हमारे संविधान में प्रबल है और यह संविधान के आधारीक लक्षणों में से एक है, परन्तु यह भी इतना ही सत्य है कि भारतीय संविधान के अधीन परिसंघवाद (Federalism) सशक्त केन्द्र के पक्ष में झुका हुआ है। यह एक ऐसा लक्षण है जो प्रबल परिसंघवाद की संकल्पना के विरोध में है। चर्चा कीजिए। (UPSC-2014)

Ans. → स्पष्ट शक्ति विभाजन तथा राज्यों को अधिक शक्ति
परिसंघवाद → केशवानीद भारतीय & S.P. चौधरी वाद में मूल ढाँचा की लक्ष्यकिया



वस्तुतः भारतीय संघवाद केन्द्र की ओर झुका है जिससे यदा-कदा संघ & राज्यों में तनाव उत्पन्न हुआ संविधान सहकारी संघवाद का भी उल्लेख करता है - GST Council, भारत राज्य परिषद आदि।



Q. 101 वें संविधान संशोधन का महत्व बताइए। यह किस हद तक संघवाद के समावेशी भावना को दर्शाता है? (UPSC-2023)

Ans. → 101 वें संविधान संशोधन द्वारा देश की अखंडता को ब्यवस्था में बहाल करने हेतु केन्द्र & राज्यों द्वारा एकत्रित कर प्रणाली को अपनाया गया। इसने संघवाद को निम्नलिखित प्रकार से बढ़ावा दिया है →

- ① GST Council → केन्द्र, राज्यों & UTs के प्रतिनिधि शामिल (Art. 279A)
 - निर्णय → मतदान द्वारा
 - केन्द्र → 33% | निर्णय 75%
 - राज्य → 67% | मत होने पर
 - राष्ट्रीय स्तर के व्यापक आर्थिक उर्वरण के निर्णयों में राज्यों की भूमिका ✓
 - उत्प्रेत राज्य का एक वोट। विनिर्माण & औद्योगिक राज्य के महत्व को दर्शाता है।

② यह करों के सोपानीकरण (Cascading effect) को समाप्त कर उत्पादन लागत में कमी कर निर्यात नीति को अधिक प्रतिस्पर्धी बनाता है। (राज्यों में प्रतिस्पर्धी संघवाद ↑)

③ यह राजस्व संग्रहण में वृद्धि सुनिश्चित करता है जिससे राज्यों की वित्तीय स्वायत्तता सुनिश्चित होती है।

- ④ GST सुझावजा = GST Council की अनुमति पर राज्यों के राजस्व में हानि पर क्षतिपूर्ति सुगम किया जाएगा।
- ⑤ कुछ कर GST से बाहर रखे (VAT शराब पकड़) राज्यों को लाभ
- इस तरह GST के कार्यान्वयन ने सरकारी संघर्ष को बढ़ावा देने में मुख्य भूमिका निभायी है।

Que: Differentiate the working of Planning Commission and NITI Aayog and its impact on Indian Federalism.

[RAS Mains 2021]

Ans: Will discuss in NITI Aayog Topic.

H. What are the Reasons for the Development of Federalism in India

India's federalism has evolved from a centralized structure to cooperative and competitive models due to various political, economic, social, and administrative factors -

1. Political Diversification:

- Rise of regional parties post-1967 weakened one-party dominance.
- Coalition governments at the Centre (1989–2014) promoted power-sharing and negotiation.
- Resulted in more cooperative federal relations between Centre & States.

2. Socio-cultural Diversity:

- India is home to diverse languages, religions, castes, and ethnic groups.
- Federalism evolved as a tool to manage pluralism, ensure local autonomy, and avoid secessionist tendencies (e.g., linguistic reorganization of states in 1956).

3. Economic Reforms & Liberalization :

- Post-1991 economic liberalization led to increased competition among states for investment.
- Encouraged competitive federalism where states strive for better governance and ease of doing business.

4. Administrative Efficiency:

- Effective service delivery and implementation of development schemes required decentralization.
- Federalism enables localized governance for targeted interventions (e.g., Aspirational Districts Programme).

5. Role of NITI Aayog:

- Replaced the top-down Planning Commission with a collaborative think-tank model.
- Promotes cooperative federalism through:
 - Joint planning with States
 - Performance-based indices (Health Index, SDG Index)
 - Financial support linked to outcomes

6. Judicial Interpretations:

- **Supreme Court judgments** (e.g., *S.R. Bommai case*) upheld the basic structure doctrine and federal principles.
- Strengthened protection of State autonomy against arbitrary dismissal of state governments.

7. Global Influence :Global shift towards decentralization and inclusive governance inspired India's move toward empowering states and local bodies.

Conclusion: The development of federalism in India reflects a dynamic response to its evolving political landscape, social needs, and governance challenges. From centralized federalism to cooperative and now competitive federalism, India continues to refine its federal structure to balance unity with diversity.

I. Fiscal Federalism in India

- **Fiscal Federalism** refers to the **division of financial powers and responsibilities** between the **Union, States, and local governments** in a federal structure.
- **Key Issues in India's Fiscal Federalism**
 1. **Imbalance in Revenue Powers:** The Union has greater control over major tax sources (e.g., income tax, corporate tax), while states rely more on transfers and grants.
 - **Example:** States demanded a greater share in GST collections post-COVID slowdown.
 2. **GST Compensation Disputes:** States faced a shortfall in GST compensation after 2020.
 - Centre delayed payments citing revenue shortfall during COVID-19.
 - Led to tensions over fiscal autonomy and trust.
 3. **Vertical and Horizontal Imbalance:** Vertical imbalance: States depend heavily on Union transfers (41% share from divisible pool via 15th FC).
 - Horizontal imbalance: Richer states generate more resources; poorer states remain dependent.
 - Creates inequality in development opportunities.
 4. **Discretionary Grants and Centrally Sponsored Schemes (CSS)**
 - CSS often violate state autonomy as funds come with conditions.
 - Funds are not always aligned with state-specific needs.
 5. **Borrowing Restrictions (Article 293 & 292):** States need Centre's consent for borrowing from external sources or raising loans, curbing their fiscal independence.
 6. **Centralization of Decision-Making:** Formation of bodies like GST Council and Finance Commission centralizes key fiscal decisions, sometimes sidelining regional concerns.

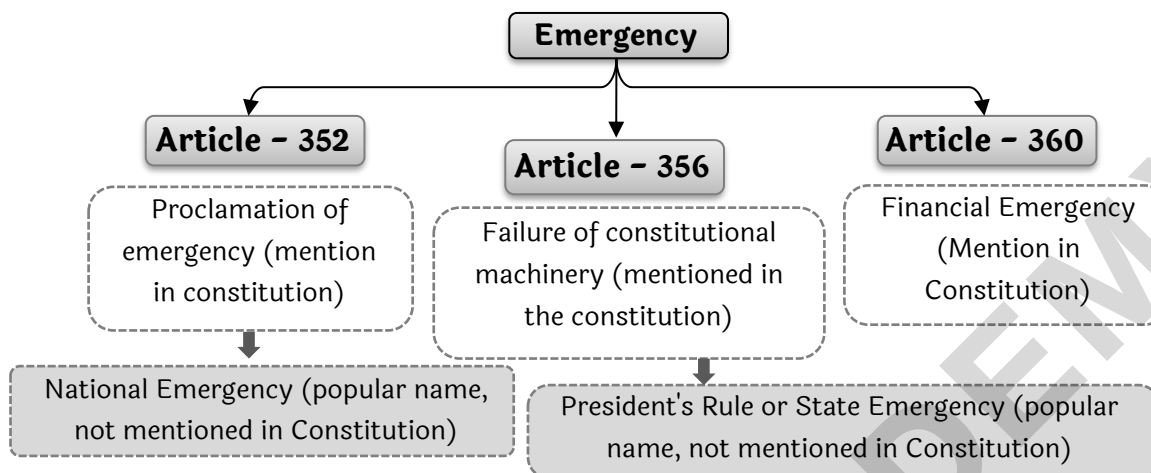
❖ Resolutions & Reforms

1. Finance Commission Recommendations

- 15th Finance Commission (2021–26) suggested:
 - Vertical devolution of **41% of the total tax revenue** to states.
 - Weighted distribution based on criteria like:
 - Income distance (45%)
 - Population (15%)
 - Demographic performance (12.5%)
 - Forest cover (10%)
 - Tax effort (2.5%)
- 2. **GST Council – Cooperative Mechanism:** Brings both Centre and States together for consensus-based decision-making.
 - Resolution of GST rate disputes, compensation mechanisms, and rationalization of slabs.
- 3. **Grants-in-aid (Article 275):** The Centre provides performance-based grants, especially to backward states.
 - Example: Aspirational Districts Programme.
- 4. **NITI Aayog and Competitive Federalism:** Promotes data-based rankings (e.g., Health Index, SDG Index, School Education Index) to encourage state-level innovation and accountability.
- 5. **Borrowing Framework Relaxation during COVID:** In 2020–21, the Centre allowed states to borrow up to 5% of GSDP, easing fiscal constraints.

❖ Recent Examples

- **2023:** Kerala moved Supreme Court against Centre for borrowing restrictions under Article 293(3).
- **2020–21:** GST Compensation Cess debate—Centre proposed loan model, later accepted by most states.
- **2022:** Delay in devolution funds led Tamil Nadu and West Bengal to raise concerns about fiscal centralization.
- **2023:** NITI Aayog's SDG India Index praised states like Kerala and Himachal Pradesh, promoting healthy fiscal competition.



❖ Article 352 – Proclamation of Emergency

- (1) Proclamation of Emergency by President
 - If the President is satisfied that the security of India is threatened by war, external aggression or armed rebellion (before 44th CA, it was internal disturbance), he can declare an emergency for the whole or any part of the country (42nd CA, 1976).
 - This proclamation can also be made when the danger is “likely to occur” — i.e. war or rebellion has not occurred but is in imminent danger.
- (2) A proclamation of emergency issued by the President can be later amended or revoked.
- (3) Written recommendation of Cabinet required
 - The President cannot declare an emergency unless he receives the written recommendation of the Prime Minister and the Cabinet ministers (44 CA, 1978).
- (4) **Parliament approval required:** For the proclamation of emergency to continue, it must be approved by both the Houses (Lok Sabha and Rajya Sabha) within 1 month.
 - If Lok Sabha is dissolved, approval is required within 30 days of Rajya Sabha approval after the new Lok Sabha meets, otherwise the emergency will automatically end.
- (5) Renewal in 6 months
 - Emergency once approved remains in effect for 6 months.
 - If Parliament approves again by both the Houses, it can be extended for a further 6 months.
 - This process can be repeated again and again, until the emergency is revoked.
- (6) Procedure for passing a resolution in Parliament
 - To pass a resolution confirming or extending the emergency in a House: Majority of the total members of the House, and a two-thirds majority of the members present and voting is required.
- (7) **The President must revoke the prorogation:** If the Lok Sabha passes a resolution disapproving the emergency or its extension, the President must revoke the emergency.
- (8) Provision for calling a special meeting
 - If at least 1/10th of the members want to move a resolution against the emergency in a written notice to the Lok Sabha:
 - If the House is in session: The Speaker is informed.
 - If the House is not in session: The President is informed.
 - In such a situation, it is mandatory to call a special meeting within 14 days.

(9) Different proclamations in different circumstances (38th Constitutional Amendment Act, 1975)

- The President can issue different proclamations on different grounds (such as war, external aggression, armed rebellion or imminent threat thereof) whether a proclamation is already in force or not.
 - **38th Constitutional Amendment** - Proclamation of emergency cannot be subjected to judicial review
 - **44th Constitutional Amendment** - Judicial review can be subjected to

Provisions before the 44th Constitutional Amendment:

- ✓ There was no provision for written advice of the Cabinet.
- ✓ The term 'internal disturbance' was used in place of 'armed rebellion'.
- ✓ A time period of 2 months was fixed for approval of the emergency from the Parliament.
- ✓ There was a provision for approval of the emergency by a simple majority by the Parliament.
- ✓ The emergency could remain in force indefinitely.

Effects of Emergency**Effects of National Emergency****1. On Centre-State Relations**

- i. **Effect on Executive:** The Union Executive can give all kinds of instructions to the State Executive. (Article 353)
- ii. **Legislative Effect:** Parliament can make laws on all subjects of the State List. This law remains in force for 6 months even after the end of the emergency. (Article 250)
 - The President can issue ordinances on subjects of the State List.
 - The executive and legislative relations will be affected even in those areas where the emergency is not in force.
 - The term of the Lok Sabha can be extended for one year at a time. (Infinity)
1976 - The term of the fifth Lok Sabha was extended twice. (During 1976-77)
 - If the emergency ends, the extended term of the Lok Sabha can last only for 6 months after the end of the emergency.
 - The term of the State Assembly can also be extended by the Parliament. (Similar to Lok Sabha)
- iii. **Financial effect- (Article 354)**
 - The President can reduce/adjust the share given to the states in the central expenditure.
 - The grants given by the Center to the states can be reduced.
 - All or any of the provisions of articles 268 to 279 may be suspended for such period as the President may think fit, but these Financial Amendments will remain in force till the end of the financial year.
 - Any such order of the President must be placed before both Houses of Parliament as soon as possible after it is issued.

2. Effect of National Emergency on Fundamental Rights

Article-358	Article-359
▪ With the declaration of National Emergency, Article-19 will automatically be suspended. ▪ Suspended throughout the country for the entire duration of the National Emergency.	▪ The President can suspend all other Fundamental Rights. ▪ Can be suspended for any period of time, throughout the country or in any area.
44th Constitutional Amendment:-	44th Constitutional Amendment:-
<i>If the National Emergency is imposed on the basis of 'armed rebellion', then Article-19 will not be suspended.</i>	<i>Articles-20 and 21 can never be suspended.</i>

- National emergency has been declared thrice so far -

			President
i.	26 October 1962 - 1967	On the ground of external aggression (Chinese aggression)	Sarvepalli Radhakrishnan
ii.	1971 - 1977	On the ground of external aggression (Pakistani aggression)	V.V. Giri
iii.	25 June 1975 - 21 March 1977	On the ground of internal disturbance	Fakhruddin Ali Ahmed

President's Rule (Failure of Constitutional Machinery)

❖ Article 355 – Duty of the Union to protect the States

- It shall be the duty of the Union to protect every State from external aggression and internal disturbance, and to ensure that the administration of every State is conducted in accordance with the provisions of the Constitution.

❖ Article 356 – Provisions in case of failure of constitutional machinery in a State

- (1) Presidential Proclamation
 - If the President is satisfied from the report of the Governor or any other source that the administration of a State is not being conducted in accordance with the Constitution, he may proclaim President's Rule.
 - By this Proclamation the President can:-
 - (a) Take over the functions of the State Government and the powers of the Governor or other bodies (except the State Legislature).
 - (b) Exercise the powers of the State Legislature through Parliament or an authorised body of Parliament.
 - (c) Make other provisions as may be necessary, such as suspending the powers of any state institution either partially or fully. But the President cannot take over the powers of the High Court.
- (2) Any such proclamation can be revoked or altered by a subsequent proclamation.
- (3) Approval of Parliament
 - The proclamation must be approved by both the Houses of Parliament within 2 months.
 - If the Lok Sabha is dissolved, it can remain in force for 30 days with the approval of the Rajya Sabha unless the Lok Sabha also approves it within 30 days of the first meeting of the new Lok Sabha.
- (4) Duration and maximum limit
 - A proclamation once approved remains in force for 6 months.
 - If approved by both the Houses, it can be extended every 6 months.
 - However, no President's rule can last for more than 3 years.
 - In the case of Punjab (Proclamation of 11 May 1987) this limit was extended to 5 years (by constitutional amendment).
- (5) Conditions for extension beyond 1 year
 - Two conditions are necessary for extension of President's rule beyond 1 year:
 - (a) National Emergency (Article 352) is in force at that time in the whole of India or in that state.
 - (b) Election Commission certifies that it is not possible to hold elections to the state assembly.

Punjab Issue

- The constitutional amendments made in Article 356 were made keeping in mind the Punjab issue.
- These amendments were made during the long period of President's rule in Punjab in the 1980s and 1990s, when there were serious law and order problems and threats to the democratic process in the state.
- The period extended in the case of Punjab —

Amendment Number	Year	Extended Limit	Pertains to Proclamation Dated
64th	1990	Three years and six months	11 May 1987
67th	1990	Four years	11 May 1987
68th	1991	Five years	11 May 1987

❖ Article 365 – Effect of non-compliance of directions given by the Centre

- If a State fails to comply with or does not carry into effect any direction given by the Union in the exercise of its executive power under the Constitution, it shall be lawful for the President to hold that:

"A situation has arisen in the State in which the Government of the State cannot be carried on in accordance with the provisions of the Constitution."

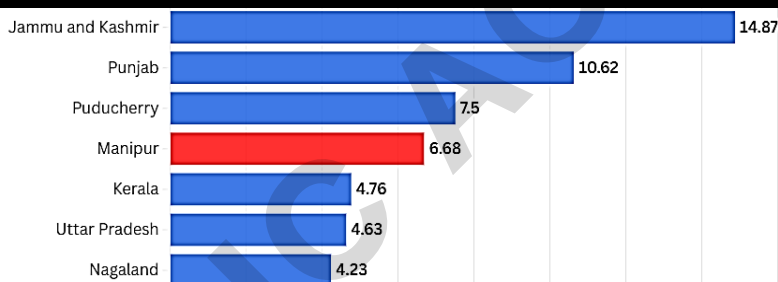
Effects of President's rule

- Executive effect:-** The Council of Ministers of the state is dissolved and the executive powers of the state come to the President, which he hands over to his representative (Governor).
- Effect on the legislature:-** The legislature of the state can be dissolved or suspended by the President. If it is dissolved, all the legislative powers of the state come to the Parliament.
 - The Parliament passes the bills and budget of the state.
 - Under Article 357, the Parliament can hand over the legislative powers of the state to the President or to any other authority through the President.
 - Even after the emergency ends, all the laws made by the Parliament will remain effective, unless they are changed, repealed or amended by any competent legislature or authority.
 - There is no effect on the fundamental rights.
 - It does not affect the High Court.

Important facts related to President's rule

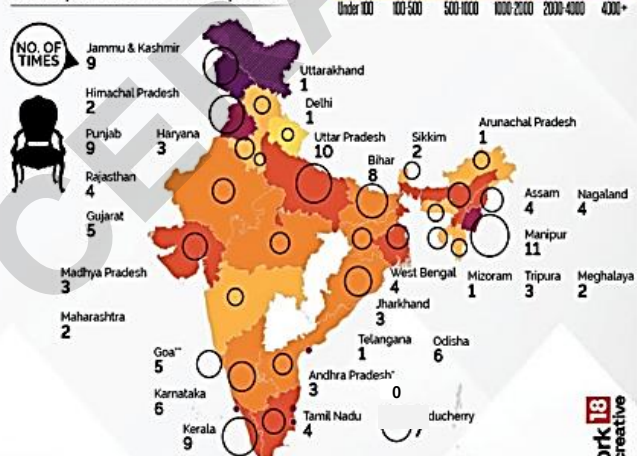
- For the first time in India, President's rule was imposed in Punjab (PEPSU) on 20 June 1951.
- The longest continuous period of President's rule in India was in Jammu and Kashmir, which lasted from 19 January 1990 to 9 October 1996 for about 2062 days (about 5 years and 8 months).
- President's rule was not imposed even once in Chhattisgarh and Telangana.
- The most number of times President's rule was imposed in Manipur (11 times).
- Last imposed:** Manipur (continuously from 13 February 2025)
- Total:** About 135 times
- Maximum during Indira Gandhi's tenure:** (i) 1966–1977: 35 times (ii) 1980–1984: 15 times

Total duration of all instances of President's rule imposed in States/Union Territories (in years)



PRESIDENT'S RULE IN INDIA

How often has it been imposed?



As of Feb 2025

Figures for Andhra include President's Rule in Andhra State. Goa includes two instances of President's Rule on the UT Goa, Daman, and Diu. Telangana was part of Andhra. Chhattisgarh a part of MP and Ladakh was part of J&K when President's rule was imposed. Figures for J&K include President's Rule in J&K state

WHO IMPOSED PRESIDENT'S RULE

Prime Minister	Term as prime minister	President's Rule Imposed
Jawaharlal Nehru	August 1947 - May 1964	8
Lal Bahadur Shastri	June 1964 - January 1966	1
Indira Gandhi	January 1966 - March 1977	35
Morarji Desai	March 1977 - June 1979	16
Charan Singh	July 1979 - January 1980	4
Indira Gandhi	January 1980 - October 1984	15
Rajiv Gandhi	October 1984 - December 1989	6
VP Singh	December 1989 - November 1990	2
Chandrashekhar	November 1990 - June 1991	5
PV Narasimha Rao	June 1991 - May 1996	11
HD Deve Gowda	June 1996 - April 1997	1
Atal Behari Vajpayee	March 1999 - May 2004	5
Manmohan Singh	May 2004 - May 2014	12
Narendra Modi	May 2014 - present	6

Misuse of President's rule - S.R. Bommai case, 1994

- In this, the Supreme Court gave the following decisions regarding the imposition of President's rule under Article 356-
- Article 356 should not be used with political malice.
- This article should be used only if the constitutional mechanism fails in the state.
- There should be clear and explanatory evidence of the failure of the constitutional mechanism which any common man can understand.
- The state assembly should not be dissolved unless both the houses of Parliament approve the President's rule.
- Judicial review of the reasons for imposing President's rule can be done.
- If President's rule is imposed with malice, then the court can reinstate the Council of Ministers and the Legislative Assembly of the state.
- If any other political party wins in the general elections of the Lok Sabha, then President's rule cannot be imposed on this basis.
- The court held that the imposition of President's rule in BJP-ruled states in 1992 was justified because those governments were not following secularism.

• **Question:** Describe the legal and political reasons responsible for the low frequency of use of Article 356 by federal governments since the mid-1990s. (UPSC-2023) (15 marks; 250 words)

❖ **Rameshwar Prasad Case, 2006:** The advice given by the Central Government to the President must be based on objective and factual grounds.

❖ **Reasons for low frequency of use of Article 356 in the last three decades**

Legal reasons	Political reasons
1. Strict guidelines were laid down for the use of Article 356 in S.R. Bommai case, 1994.	1. The rise of coalition governments has promoted collaborative governance.
2. In Rameshwar Prasad vs State of Bihar case, 2005, the Supreme Court ruled that the Governor should not play an active role in the use of Article 356.	2. The political equation in Rajya Sabha has led to a change in the attitude of the ruling party due to the participation of various political parties in bill approval.
3. The scope of the basic structure of the Constitution has increased due to various judicial interpretations.	3. The growing influence of regional parties in Indian politics.
4. The Sarkaria Commission has emphasized on strengthening cooperative federalism.	4. Public resistance - The dismissal of Kalyan Singh's government in UP in 1997 AD was strongly opposed by the public.

- **Conclusion** - It is noteworthy that the repeated use of Article 356 in the democratic structure of governance reflects democratic decline. Therefore, it is necessary to promote inter-governmental dialogue, strengthen constitutional security mechanisms, build judicial monitoring and political consensus to ensure equitable, harmonious and good governance in accordance with constitutional values.

Financial Emergency**Article 360:**

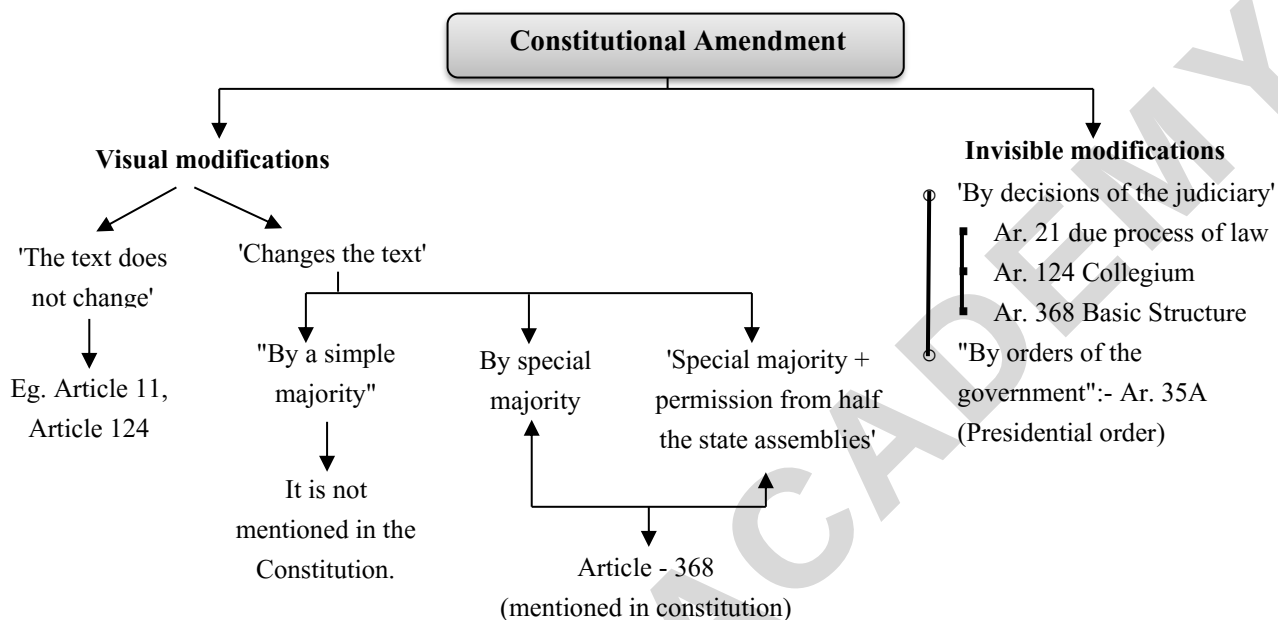
- If the financial stability or credit of India or any part of its territory is threatened, the President may proclaim a Financial Emergency.
- Within 2 months of the proclamation, it should be approved by both the houses of the Parliament with a simple majority.
- After the approval of the proclamation, it remains in force for an unlimited time until it is withdrawn.
- Economic crisis has not been defined.
- It has not been used even once so far.

Effects of Financial Emergency -

- The share given to the states in central taxes can be reduced.
- The grants given to the states can be reduced.
- The Center can give financial instructions to the states.
- The salaries and allowances of the employees of the Center and the States can be reduced.
- Those whose salaries are charged on the Consolidated Fund can also be reduced.
- State money bill can be reserved for the President.
- There is no impact on fundamental rights, legislature and executive.

Article 368 of Part-20 of the Constitution gives the Parliament the power to amend the Constitution. But the Parliament cannot amend those provisions which are related to the basic structure of the Constitution.

The process of amending the Indian Constitution is inspired by the Constitution of South Africa.



Types of amendments in the Constitution:- Constitution can be amended in three ways-

1. **By simple majority of the Parliament** → 'Provision for such amendment has not been made under Article-368.' The following amendments can be made by simple majority:-

- Formation of new states
- Formation of Legislative Council in a state
- Rules of procedure in Parliament
- Parliamentary privileges
- 'Acquisition and termination' of citizenship
- In the following schedules- first, second, fourth, fifth

2. **By special majority of the Parliament** → Constitution amendment under Article-368.

Example

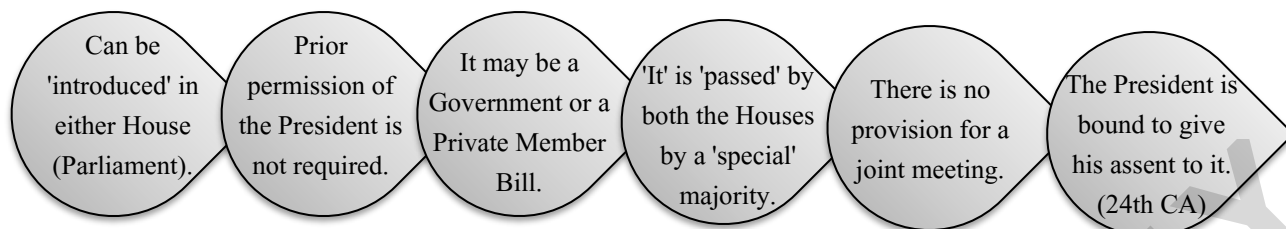
- In fundamental rights
- Directive principles of state policy

Simple majority of Parliament
and
Special majority of Parliament and approval of the
Legislative Assemblies of 'half the states'

Constitutional amendment in
addition to the above.

3. **Special majority of Parliament + approval by the legislatures of at least half of the States** →

- It includes- (Article 368(2))
 - (a) in article 54, article 55, article 73, article 162 or article 241, article 279(A) or
 - (b) in Chapter 4 of Part V (Union Judiciary), Chapter 5 of Part 6 (High Court) or Chapter 1 of Part 11 (Centre-State Legislative Relations), or
 - (c) in any list in the Seventh Schedule, or
 - (d) in the representation of states in Parliament, or
 - (e) in the provisions of this article,

Procedure for Constitution Amendment Bill (Article-368) →**If consent of states is required →**

- It must be passed by a simple majority in the State Legislature.
The Legislature cannot amend the Bill; it can only accept or reject it.

Note:

- If the Centre-State relations are affected, then only the Bill should be passed by the Legislative Assemblies of the concerned active states.
- Although the Parliament has unlimited power to amend the Constitution, according to the Kesavananda Bharati case, the Parliament cannot amend against the basic structure of the Constitution. (Article 368(5))
- The process of amendment in the Indian Constitution is of 'mixed nature' in which there is a mixture of rigid (USA) and flexible (Britain) constitutional amendment.

Question. The 'Supreme Court' of India controls the 'constitutional right' of the Parliament to amend the Constitution." Discuss critically. (UPSC-2013)

Important Constitution Amendments →

- **1st CA, 1951** → Article 31(a), 31(b) and 9th Schedule added. Article 15(4)
- **5th CA, 1955** → Article-3 (President will fix time limit for states to submit their advice).
- **7th CA, 1956** → A, B, C, D classification of states abolished.
- **8th CA, 1959** → Reservation for SCs and STs in the Lok Sabha and State Legislative Assemblies was extended for 10 years.
- **9th CA, 1960** → Berubari case.
- **10th CA, 1961** → Dadra and Nagar Haveli was included in India and given the status of Union Territory.
- **11th CA, 1961** → Election of Vice President by electoral college consisting of members of both the Houses of Parliament
- **12th CA, 1962** → Special provision for inclusion of Goa, Daman and Diu as Union Territory.
- **13th CA, 1962** → Special provision for Nagaland.
- **14th CA, 1962** → Special provision for Puducherry Union Territory.
- **15th CA, 1963** → Retirement age of High Court Judge increased from 60 years to 62 years.
- **16th CA, 1963** → Added the words sovereignty and integrity to impose restrictions on freedom of speech.
- **18th CA, 1966** → In Article-3 it has been clarified that Union Territories are also included under the word State.
- **19th CA, 1966** → The Election Tribunals for disputes related to MP and MLA elections were abolished.
- **21st CA, 1967** → Sindhi language (included as 15th language in 8th Schedule).
- **22nd CA, 1969** → Autonomous state in Assam- new state of Meghalaya separated from Assam.
- **23th CA, 1969** → Reservation for SC and ST in Lok Sabha and Vidhan Sabha was extended for 10 years.

- **24th CA, 1971** → Parliament was made capable of curtailing fundamental rights.
- **25th CA, 1971** →
- **26th CA, 1971** → Abolition of Privy Purse. Article 362 was removed and 363(a) was added.
- **28th CA, 1972** → The privileges and special rights of former ICS officers were abolished.
- **30th CA, 1972** → The limit of value of more than ₹20 thousand for appeal in civil disputes in SC was abolished.
- **31st CA, 1973** → Number of Lok Sabha members increased from 525 to 545.
- **35th CA, 1975** → Terms and conditions for inclusion of Sikkim in the Union of India. Article 2 (A) and 10th Schedule were added.
- **36th CA, 1975** → Sikkim was made the 22nd state of India. Article 2(A) and 10th Schedule removed
- **39th CA, 1975** → Article 329A added (no one can challenge the election of Prime Minister and Lok Sabha Speaker, but it was declared void in Indira Gandhi vs Raj Narain case, 1976).
- **41th CA, 1976** → Retirement age limit of Chairmen and Members of State Public Service Commission and Joint Public Service Commission increased from 60 years to 62 years.
- **42th CA, 1976** →
- **43th CA, 1978** → Anti-freedom amendments repealed.
- **44th CA, 1978** → Right to property removed from Fundamental Rights and placed in the category of Legal Rights in Article 300(A).
- **45th CA, 1980** → Reservation for SCs and STs in the Lok Sabha and State Legislative Assemblies was extended for 10 years.
- **52th CA, 1986** → Anti-defection provision: included in 10th Schedule.
- **53th CA, 1986** → Special provision for Mizoram in Ar 371(G)
- **55th CA, 1986** → Arunachal Pradesh given the status of 24th state of India. Article 371(H) added
- **56th CA, 1987** → Goa given the status of full state and Daman and Diu included in the remaining territory. Article 371(I) added
- **58th CA, 1987** → Empowered the President to publish the Constitution in the Hindi language.
- **61th CA, 1989** → Article-326 (Voting age reduced from 21 years to 18 years).
- **62nd CA, 1989** → Reservation for SCs and STs in the Lok Sabha and State Legislative Assemblies was extended for 10 years.
- **69th CA, 1992** → Provision of Legislative Assembly and Council of Ministers for the Union Territory of Delhi.
- **70th CA, 1992** → MLAs of Delhi and Puducherry included in the election of President
- **71th CA, 1992** → Konkani, Manipuri and Nepali languages included in the 8th Schedule.
- **73th CA, 1992** → Panchayati Raj institutions got constitutional recognition from Articles 243 to 243 (A) and 11th Schedule was added.
- **74th CA, 1992** → Urban bodies (Nagar Palika) got constitutional status and 12th Schedule was added.
- **77th CA, 1995** → New Article 4(A) was added in Article 16.
- **79th CA, 1999** → Reservation for SCs and STs in the Lok Sabha and State Legislative Assemblies was extended for 10 years.
- **80th CA, 2000** → Corporate tax in Article 270.
- **81th CA, 2000** → New Article 4(B) added in Article-16.
- **84th CA, 2001** → Related to delimitation.
- **86th CA, 2002** → Free and compulsory education for all children between 6 to 14 years.
- **87th CA, 2003** → Related to delimitation.
- **89th CA, 2003** → National Commission for Scheduled Tribes (NCST). Article 338A
- **91th CA, 2003** → Size of Council of Ministers limited (15% of LS).

- **92th CA, 2003** → Bodo, Dongri, Maithili and Santhali languages- included in 8th Schedule.
- **93th CA, 2005** → 27% reservation for OBCs in government and private educational institutions.
- **94th CA, 2006** → Chhattisgarh, Jharkhand, Madhya Pradesh and Odisha will have a minister in charge of tribal welfare who can also be in charge of the welfare of scheduled castes and backward classes or any other work. (Article 164(1)) Chhattisgarh and Jharkhand added in place of Bihar
- **95th CA, 2009** → SC/ST reservation in Vidhan Sabha/Lok Sabha extended for 10 years
- **96th CA, 2011** → Odia language included as Odia in 8th Schedule.
- **97th CA, 2011** → Constitutional recognition to cooperative institutions.
- **99th CA, 2014** → Formation of National Judicial Appointments Commission (NJAC).
- **100th CA, 2015** → Land Agreement (LBA) between India-Bangladesh.
- **101th CA, 2016** → Goods and Services Tax.
- **102th CA, 2018** → National Commission for Backward Classes (NCBC) (Article-338B).
- **103th CA, 2019** → 10% reservation to economically weaker sections.
- **104th CA, 2019** → Reservation for SCs and STs in the Lok Sabha and State Legislative Assemblies was extended for 10 years
- **105th CA, 2021** → Restoring the power of State Governments to identify socially and educationally backward classes (OBCs) and prepare their lists.
- **106th CA, 2023** → Providing one-third reservation for women in the Lok Sabha and State Legislative Assemblies.
- **129th CA, Bill** → One nation ,one election
- **130th Amendment Bill, 2025 :-**
 - ✓ The Bill proposes significant amendments to Articles 75, 164, and 239AA of the Indian Constitution.
 - ✓ **Grounds for Removal:** A Union Minister, Chief Minister (CM), or Minister of State will be removed from office if they are arrested for an offense punishable with imprisonment for five or more years and detained for 30 consecutive days.
 - ✓ **Procedure for Removal:**
 - 1. For Union Ministers (except the Prime Minister):** The President must remove the minister on the advice of the Prime Minister, which must be given by the 31st day of detention. If no advice is given, the minister will automatically lose office on the 31st day.
 - 2. For State Ministers (except the Chief Minister):** A similar provision applies, where the Governor acts on the advice of the Chief Minister. If the Chief Minister does not give advice by the 31st day, the minister automatically loses office.
 - 3. The Government of Union Territories Act, 1963:** Extends governance to the Union Territory's ministers, empowering the Administrator/LG to act similarly.
The Jammu and Kashmir Reorganization Act, 2019: Similar provisions apply to Jammu and Kashmir; the Lieutenant Governor can remove the Chief Minister/Ministers. For Delhi ministers (except the Chief Minister): The President removes the minister on the advice of the Chief Minister of Delhi. If no advice is given, the minister automatically resigns.
 - 4. For Prime Ministers or Chief Ministers (Central/State/Delhi):** The Prime Minister or Chief Minister must resign by the 31st consecutive day of detention. If they do not resign, they will automatically be relieved of office the following day.
 - ✓ Reappointment of a Minister, Prime Minister, or Chief Minister is permitted

Part XI: Legislative & Administrative Relations (Article 245–263)

Legislative Relations

Territorial Extent of Central and State Legislation: Article 245

Category	Nature and Scope
Territorial Jurisdiction	Parliament and State legislature can make laws for the whole or any part of the territory of India and State, respectively.
Extraterritorial Legislation	Only the Parliament has the power to make laws with respect to Indian citizens and their property, situated in any part of the world.
Constitutional Restrictions Over Union Territories (UTs)	The President can make regulations for the peace, progress, and good governance of the UTs. These regulations have the same force and effect as an act of Parliament and may also repeal or amend any act of Parliament in relation to these UTs.
Legislation on Scheduled Areas	Governor can direct that an act of Parliament does not apply to a Scheduled Area in the state or apply with specified modifications and exceptions.
Legislation on Tribal Areas	Governor of Assam may direct that an act of Parliament does not apply to a Tribal Area (autonomous district) in the state or apply with specified modifications and exceptions. The President has the same power with respect to Meghalaya, Tripura, and Mizoram.

Subject-wise Distribution (Articles 246–248)

Article 246 – The Parliament has exclusive powers to make laws on the Union List, while State Legislatures can make laws on the State List. Both can legislate on the Concurrent List.

- This **division of legislative subjects** is defined in the **Seventh Schedule** of the Constitution.
- If a subject overlaps between Union and State List, **Union List prevails** — this is called the **Principle of Supremacy of Parliament**.

Harmonious Construction

- **Meaning:** Courts attempt to interpret conflicting laws in a manner that allows both to coexist rather than striking one down.
- **Significance:** Ensures cooperative federalism and avoids legislative invalidation unless conflict is unavoidable.
- **Judicial Interpretation:**
 - **Hoechst Pharmaceuticals v. State of Bihar (1983)** – reinforced that overlapping laws should be interpreted in a way that allows compliance with both, unless directly contradictory.
 - **ITC Ltd v. Agricultural Produce Market Committee (2002)** – applied the doctrine of ‘harmonious construction’ to resolve overlaps in the regulation of tobacco trade.

Division of Lists under the Seventh Schedule

List	Articles	No. of Subjects	Examples
Union List	Article 246	100 Subjects	Defence, Foreign Affairs, Atomic Energy, Railways, Post, Telephones, Currency, RBI, Citizenship, Airways, National Highways, Patents
State List	Article 246	61 Subjects	Police, Prisons, Public Health, Pilgrimage, Water, Agriculture, Local Government
Concurrent List	Article 246	52 Subjects	Criminal Law, Marriage, Divorce, Education, Forests, Trade Unions, Welfare, Newspapers, Electricity, Labour Welfare

Note: In case of conflict in Concurrent List, Union law prevails.

Article 248 – Residuary Powers

Parliament has exclusive power to make laws on **subjects not mentioned** in any of the three lists of the Seventh Schedule of the Constitution.

- **Canada:** Residuary powers lie with the Centre
- **USA:** Residuary powers lie with the States
- **India (as per Government of India Act 1935):** Governor-General held residuary powers
- **At present:** Centre holds residuary powers

❖ **Article 247 – Parliament may establish additional courts for better administration of laws under the Union List.**

Special Provisions Enabling Parliament to Legislate on State List Subjects

Article	Provision	Description
Article 249	By Rajya Sabha's Resolution	If the Rajya Sabha passes a resolution with a two-thirds majority that it is necessary in the national interest , for Parliament to make laws on a subject of the State List, then Parliament shall have the power to make laws on that subject for the whole or any part of the territory of India.
Article 250	Legislation during National Emergency	During a National Emergency , Parliament can make laws on any subject in the State List . These laws remain in force up to 6 months after the Emergency ends.
Article 252	Legislation on Request of Two or More States	When two or more State Legislatures pass resolutions requesting Parliament to legislate on a State List subject, Parliament may make the law. It applies only to the consenting states. Other states may adopt it later. Only Parliament can amend or repeal such laws.
Article 253	Legislation related to International Treaty Implementation	Parliament has exclusive power to make laws for the entire or any part of India to implement international treaties, conventions, or agreements with other countries.
Article 356	Legislation during President's Rule	During President's Rule in a state, Parliament assumes the power to legislate on State List subjects for that state. Such laws continue to operate even after President's Rule ends , unless modified/re-enacted by the State Legislature .

Doctrine of Pith and Substance**The Secretary of Govt. of Kerala Irrigation Dept. vs. James Varghese & Ors. (2022)**

When a State law is challenged for allegedly encroaching on Parliament's domain, the Doctrine of Pith and Substance is used to determine which list it primarily falls under.

❖ **Court's Ruling:**

- Focus should be on the true nature and main purpose of the law (its "pith and substance").
- If the law primarily falls within the State's subject, it is valid, even if it incidentally touches upon Union subjects.
- Minor or indirect overlaps with Parliament's powers should be ignored.

❖ **Conclusion:** Laws should be judged by their core intent, not by small overlaps in subject areas.

Part 11 – Legislative and Administrative Relations

(Article 256–263)

Administrative Relations

1. Distribution of Executive Power

- Executive powers are generally distributed in accordance with the distribution of legislative powers.
- States implement central laws on concurrent subjects unless stated otherwise.

2. Obligations of States (Art. 256)

- It is mandatory for the States to comply with the laws made by the Parliament and the directions of the Central Government.
- If the States fail to do so, President's Rule can be imposed under Article 365.

3. Centre's Directions to States (Art. 257): Central Government may direct States on the following matters-

- Maintain roads/railways of national importance.
- Ensure education for linguistic minorities.
- Implement welfare schemes for Scheduled Tribes.

4. Mutual Delegation of Functions

- Centre and States can delegate executive functions through agreement or by law.
- Centre can delegate its executive functions to States without their consent via Parliament; whereas States require approval of the Centre.

5. Mechanisms of Cooperation

- **Inter-State Council** (Art. 263) and **Water Disputes Tribunal** (Art. 262).
- Parliament can regulate inter-state trade and commerce and appoint relevant authorities.

Other Instances of Centre-State Relations

All India Services (Art. 312)- Created by Parliament.

The control of these services is shared, but the final authority rests with the Central Government.

❖ **Public Service Commissions**

- State PSC members are appointed by the Governor and removed by the President.
- Joint PSCs can be created by Parliament.
- UPSC may assist states upon request.

❖ **Integrated Judicial System**

- India does not have a dual judiciary. The Supreme Court is at the top, and High Courts function under it.
- Some High Courts serve more than one state (e.g., Punjab & Haryana, Kerala & Lakshadweep).

❖ **During Emergencies**

- **National Emergency(Art. 352)**: The Centre can issue directions on any subject.
- **President's Rule(Art. 356)**: The Centre can take over the administrative functions of the State.
- **Financial Emergency(Art. 360)**: The Centre controls the financial matters of the States.

❖ **Key Judgments on Administrative Relations**

Case	Key Point
State of Rajasthan vs. Union of India (1977)	Centre can intervene when a State acts against legal provisions.
State of Karnataka vs. Union of India (1978)	Centre can issue binding directions to States.
Swaraj Abhiyan vs. Union of India (2017)	Both the Centre and States must honour their legal responsibilities.

Article 256 – Obligation of States and the Union

- States must ensure compliance with Parliamentary laws.
- The Union can give directions to States to ensure such compliance.

Article 257 – Control of the Union over States

1. States shall not obstruct executive power of the Union.
2. Union can direct States regarding:
 - Construction/maintenance of means of communication of national/military importance.
 - Protection of railways.
3. If such directives lead to extra expenditure, Union shall compensate the State.

Article 258 – Power of Union to Confer Powers on States

- President, with the consent of the State, may entrust Union functions to States or its officers.
- Parliament may impose duties or confer powers even on matters outside State List.
- Provision exists for compensation of administrative expenditure incurred by States.

Article 258A – Power of States to Entrust Functions to the Union

- Governor, with the consent of the Union, may entrust State functions to the Union or its officers. *(Inserted by 7th Amendment, 1956)*

Part 12 – Financial Relations*(Article 264–300A)***Financial Relations****Article 265 – Levy of taxes only by authority of law.***No tax shall be levied or collected except by authority of law.***❖ Meaning and Significance**

- **Two-fold restriction:**
 1. **No tax can be levied without the authority of law.**
 2. **No tax can be collected without the authority of law.**
- This ensures that **taxation is not arbitrary** and must be backed by a **valid legal enactment** passed by the **Parliament or State Legislature**.

Tax Distribution under Articles 268 to 271

Article	Tax Levied By	Collected By	Used By / Distributed To	Recent Examples
268	Union Govt (Stamp Duties)	States (except UTs)	States (added to State's Consolidated Fund)	Stamp duty on insurance policies – collected by states
269	Union Govt (Inter-state sale/consignment)	Union Govt	Distributed among States (as per Parliamentary formula)	Inter-state sale of goods like e-commerce transactions
269A	Union Govt (IGST on inter-state supplies)	Union Govt	Shared between Union & States (based on GST Council recommendation)	IGST on services like air travel from Delhi to Mumbai
270	Union Govt (All Union List taxes except 268, 269, 269A)	Union Govt	Shared between Union & States (on Finance Commission's recommendation)	Income Tax, GST (inter-state) shared via 15th Finance Commission
271	Union Govt (Surcharge)	Union Govt	Only Union (added to Consolidated Fund of India)	Health/Education Cess & surcharge on income tax – retained by the Union

Royalty is NOT a tax**Mineral Area Development Authority v. Steel Authority of India (2024)****Supreme Court Verdict (9-Judge Bench | 8:1 Majority):**

- Royalty shall NOT be considered a tax**
 - Royalty = *Payment for using natural resources (like minerals)*
 - This is a contractual consideration and cannot be classified as a compulsory tax.
 - **Overruled:** *India Cement Ltd. v. State of Tamil Nadu (1990)*
- States have power to levy tax on mineral rights**
 - **Constitutional Basis:** Under **Entry 49 & 50 of the State List (Schedule II)**
 - These entries empower States to legislate and impose levies on matters related to minerals.
- Retrospective application:-** Ruling applicable **from 1 April, 2005.**

Tax vs. Royalty

Aspect	Tax	Royalty
Nature	Compulsory exaction by law	Contractual payment for resource use
Authority	Imposed by law/ government mandate	Based on agreement or statute
Compulsion	Mandatory	Conditional on resource usage
Example	Income Tax, GST	Mining Royalty, Patent Royalty

Grants-in-Aid➤ **What are Grants-in-Aid?**

Grants-in-aid are financial assistance (aid, donations, or contributions) given by one government to another government, institution, or organization.

➤ **Who Gives Grants-in-Aid?**

- **Union Government** — State Governments, Panchayati Raj Institutions, Universities, hospitals, NGOs, etc.
- **State Governments** — Local bodies, cooperative societies, institutions, etc.

➤ **Types of Grants-in-Aid:**

Type	Meaning
Statutory Grants	Given as per law under Article 275 of Constitution.
Discretionary Grants	Given at the Centre's discretion under Article 282.

❖ **Grants-in-Aid: Types & Comparison**

Category	Statutory Grants	Discretionary Grants
Constitutional Basis	Article 275	Article 282
Nature	Mandatory (based on Finance Commission's recommendation)	Optional (at Centre's discretion)
Purpose	For States in financial need, tribal welfare	For any public purpose, plan targets, national priorities
Obligation	Yes – charged on Consolidated Fund of India	No – Centre decides whether to provide or not
Scope	Specific (e.g., Scheduled Areas, Assam)	Broader, covers more states and schemes

❖ **Institutional Interrelations in Indian Federalism**

These key bodies collectively **strengthen Centre-State relations** and promote both **Cooperative** and **Competitive Federalism**.

- 1) Finance Commission (Art. 280) – {Detailed study under: Indian Economy / State Finances}
- 2) GST Council (Art. 279A) – {Indian economy}
- 3) NITI Ayog – {will study separately}
- 4) **Inter-State Council (ISC) – Article 263**

Sub-Topic 01 Inter-State Council (ISC) – Article 263

- Constitutional Basis- Article 263** of the Indian Constitution empowers the **President** to establish the **Inter-State Council** if it is in the public interest.
- Nature of the Body- It is a Constitutional body but non-permanent** (i.e., not always remain active; activated as and when needed).
It is advisory in nature, and its recommendations are not binding.
- Functions of the ISC:-** As per Article 263, ISC may perform the following functions:
 - Inquire and advise** upon disputes between States.
 - Discuss and investigate** subjects of common interest between Centre and States or among States.
- Make recommendations for better coordination of policy and its implementation.

Composition:- ISC was reconstituted in 1990 by the V.P. Singh government based on **Sarkaria Commission's recommendation**.

Position	Type of Membership
Prime Minister	Chairman
Union Ministers	Permanent & Invitees
Chief Ministers of all States	Members
Chief Ministers of Union Territories with Legislative Assemblies	Members
Administrators of UTs without legislature	Invitees
6 Union Cabinet Ministers	Permanent invitees (since 2005, per Punchhi Commission)

- Objectives**
 - To promote **cooperative federalism**.
 - To facilitate **Centre-State and inter-State coordination**.
 - To act as a **forum for dialogue** on governance, reforms, and inter-governmental disputes.
- Recommendations of Commissions**
 - Sarkaria Commission** : Recommended making the Inter-State Council a **permanent constitutional body**.
 - Punchhi Commission** : Suggested **restructuring** the Council and creating **three standing committees**:
 - Committee on Financial Relations
 - Committee on Internal Security
 - Committee on Social Sector
- Limitations:** It is only an advisory body; its recommendations are not binding on the Centre or States.
 - Meetings are not held regularly**; last full ISC meeting was held in 2016.
 - This issue is often rendered ineffective by more active bodies such as the NITI Aayog or the GST Council.

Sub-Topic 02 Zonal Councils – States Reorganisation Act, 1956

- Legal Basis** -Established under the **States Reorganisation Act, 1956**
 - These are **statutory bodies**, not constitutional in nature.
- Number & Zones**

There are **5 Zonal Councils**, each covering a specific geographical region.

Zonal Councils and the States under them –

Zonal Council	Included States
Northern	Haryana, Himachal Pradesh, Jammu & Kashmir, Punjab, Rajasthan, NCT of Delhi, Chandigarh
Central	Chhattisgarh, Uttarakhand, Uttar Pradesh, Madhya Pradesh
Eastern	Bihar, Jharkhand, Odisha, West Bengal
Western	Goa, Gujarat, Maharashtra, Rajasthan, Daman & Diu, Dadra & Nagar Haveli
Southern	Andhra Pradesh, Karnataka, Kerala, Tamil Nadu, Telangana, Puducherry

Note: North-Eastern Council is **not** formed under this Act. It is a separate **statutory body constituted under North Eastern Council Act, 1971**.

3. Composition of Each Zonal Council

- **Chairman:** Union Home Minister (ex-officio)
- **Vice-Chairman:** Chief Minister of the host state (rotational)
- **Members:** Chief Ministers & Governors of respective states
- **Advisory Members:** Union Ministers and required officials

4. Objectives / Functions

- To promote **cooperation and coordination** among states in the zone.
- To recommend measures to achieve **balanced regional development**.
- To act as a **bridge between Centre and States** at the regional level.

Inter-State Water Disputes

What are they?

Disputes between two or more states over the **use, distribution, and control** of rivers that flow across state boundaries.

Constitutional Provisions:

Provision	Description
Article 262	Allows Parliament to make laws for resolving inter-state water disputes. It also allows exclusion of Supreme Court/High Court jurisdiction on such disputes.
Union List – Entry 56	Union Govt can regulate and develop inter-state rivers and river valleys if declared necessary in public interest.
State List – Entry 17	State Govt can legislate on subjects like water, irrigation, canals, hydropower, etc.

Legal Framework: ISRWD (Inter State River Water Disputes) Act, 1956

- This Act was enacted under Article 262.
- Its objective is to provide a legal mechanism for the resolution of inter-state water disputes.

Key Provisions:

1. **Constitution of Tribunal** – If states fail to resolve disputes through mutual negotiations, the Central Government constitutes a Tribunal for adjudication.
2. **Binding Awards** – The Tribunal's award is final and binding, and not subject to judicial review by any court.
3. **Amendment Bill, 2019** – Aimed at making the **tribunal process faster, transparent, and more effective**.
4. **Proposal:** Establishment of a **permanent tribunal with multiple benches**.

Sub-Topic 03 What is Special Category Status (SCS)?

- **Introduced:** In 1969 on the recommendation of the Fifth Finance Commission.
- **Objective:** To support holistic development of states with **geographical & socio-economic disadvantages**.
- **No constitutional backing:** SCS is **not mentioned in the Constitution** but granted based on **Planning Commission and NDC (National Development Council) recommendations**.

Key Criteria for SCS

1. Hilly & difficult terrain
2. Low population density or tribal population
3. Strategic border location
4. Economic & infrastructure backwardness
5. Non-viable state finances

Benefits

- **Funding Pattern in Centrally Sponsored Schemes:** 90:10 (Centre: State)
- **Unutilized funds can be carried forward to the next financial year**
- **Tax incentives:** Exemptions in custom duty, excise duty, income & corporate tax

Concerns Related to SCS

- **Lack of fixed criteria** → Leads to increasing **political demands**
- **Increases inter-state inequality**
- **Encourages fiscal indiscipline** (over-borrowing)
- Heavy financial burden on the Centre due to 90% grants

Present Status

- After **14th Finance Commission (2015)**, SCS was **abolished**.
- Currently, **Northeastern & 3 hilly states** (e.g., Himachal, Uttarakhand, Jammu & Kashmir) receive **special funding**, but **not classified as SCS states**.

Way Forward

- Promote **local industries**- for self-reliance and employment generation.
- **Revise SCS criteria** to cover **low-resource capacity states**.
- Encourage **inter-state cooperation**- to ensure balanced and inclusive regional development.

Sub-Topic 04 Role of Governor**Why in News?**

Recently, **Kerala, Tamil Nadu, and Punjab** approached the Supreme Court against their **Governors delaying assent** on state bills.

❖ **Constitutional Provisions**

- **Article 200:** Governor's assent is necessary for a bill to become law.
- **Reservation for the President** (obligatory in some cases): If the bill violates the Constitution, DPSPs, or is of national importance, it must be sent to the President.
- **Discretionary Powers:** Governor must act on the advice of CoM (Council of Ministers) under **Article 163**, except in rare discretionary matters.

❖ **Issues with Governor's Role**

- **Pending Bills:** Delayed assents disrupts the democratic processes.
- **Administrative Deadlock:** Conflicts between state and Governor affects governance.
- **Judicial Burden:** Inaction or actions beyond constitutional limits often result in legal disputes.

❖ **Key Supreme Court Judgments**

- **Shamsher Singh Case (1974):** The Governor must act in accordance with the advice of the Council of Ministers, not on personal discretion.
- **Nabam Rebia Case (2016):** Any discretionary action taken beyond constitutional limits is invalid.
- **Punjab Case (2023):** A bill cannot be kept pending indefinitely; it must be returned for reconsideration.
- **Tamil Nadu Case (2023):** A bill passed again cannot be sent back to the President once more.

Way Forward – Commission Recommendations

Sarkaria Commission-Discretionary power should be used only if the bill violates Constitutional provisions.

Punchhi Commission-Governor should decide on bills within **6 months**.

Venkatachaliah Commission-Governor must follow the **Council of Ministers' advice** in day-to-day administration.

Supreme Court Ruling on Governor's Assent to Bills (April 8, 2025)

Context & Background: Governor of Tamil Nadu, R.N. Ravi, caused excessive delay in granting assent to 10 Bills, prompting the Supreme Court to intervene.

- SC ruled the **inaction illegal**, reinforcing **cooperative federalism** and curbing **politicisation of the Governor's office**.
- The ruling laid down **constitutional timelines** and strengthened the scope of **judicial remedies**.

❖ Key Rulings & Constitutional Guidelines

1. **Strengthened the Writ of Mandamus:** The **Supreme Court held** that the **Governor can be compelled** through a *writ of mandamus* to perform his constitutional duties.
 - Unreasonable delay, indefinite withholding, or arbitrary reservation of bills can be **challenged in court**.
2. **Clear Timelines Set:**
 - **1 month:** Governor must act on Bills (assent/reservation).
 - **3 months:** Bill must either be returned to the legislature or sent to the President.
 - **1 month:** If the bill is re-passed, the Governor must give assent.
 - **3 months:** President must decide on reserved Bills under Article 143.
3. **Pocket Veto Declared Unconstitutional:**
 - SC declared that **indefinite pending ("pocket veto") is unconstitutional**.
 - Use of terms like "shall" and "as soon as possible" imply **mandatory action** within a reasonable period.
4. **Article 143 – President's Role:**
 - President **"ought to" seek SC's opinion** if a Bill is reserved for constitutional reasons.
 - Though not binding, the SC's opinion under Article 143 holds **high persuasive value**.
 - This prevents political misuse and ensures judicial scrutiny.
5. **Judicial Review & Article 142:**
 - Invoking Article 142, SC deemed all 10 pending Bills as assented.
 - Strongly criticised the Governor's lack of reasons and disregard for previous judgments.
6. **Limits on Discretionary Powers:**
 - SC clarified that the Governor's discretionary powers cannot be used arbitrarily or for political motives.
 - Reservation of bills for the President must be based strictly on **clear constitutional grounds**, not personal disagreement.
7. **Comparative Examples & Commissions:**

Sri Lanka: If a bill appears to be unconstitutional, the President is mandatorily required to refer it to the Supreme Court for advice.

Kiribati: If a bill is passed again, the President has only two options – either refer it to the court or give assent.

India – Suggested Reform: The Supreme Court has stated that India could also consider adopting such constitutional transparency and a mandatory mechanism.

Sarkaria & Punchhi Commissions: Both recommended seeking the opinion of the Supreme Court under Article 143, especially in cases where the validity of a bill is in dispute.

❖ Impact & Significance

- Empowers **State Governments** with a **clear constitutional remedy**.
- Prevents **executive interference** in the **legislative process**.
- Sets a judicial precedent for addressing **future delays** — including potential delays in **judicial appointments**.
- Strengthens the **principles of federalism, accountability, and democratic governance**.

❖ Conclusion-

This landmark judgment brings **clarity, accountability, and time-bound responsibility** to the roles of the **Governor and President** in State legislation. It ensures that **constitutional duties cannot be delayed or avoided**, and that the **courts remain a guardian of legislative sanctity**.

Sub-Topic 05 Government of NCT of Delhi (Amendment) Act, 2023:**Why in the news?**

Parliament passed the GNCTD (Amendment) Act 2023, replacing the earlier ordinance. It brings changes in the power-sharing structure between the Delhi Government and the LG (Lieutenant Governor).

❖ Key Provisions of the Act:

- **NCCSA Formation:** Setting up of **National Capital Civil Services Authority (NCCSA)** to advise LG on service matters.
 - Chairperson: Delhi CM;
 - Members: Principal Home Secretary, Chief Secretary.
 - Decisions based on **majority vote**.
- **LG's Discretionary Powers:**
LG can act on own discretion in the following cases:
 - Matters outside Delhi Legislative Assembly's legislative powers.
 - Matters where **law allows discretionary** action.
 - LG has the authority to approve or return NCCSA's recommendations.
- **Final Word in Case of Conflict:** If NCCSA and LG differ, **LG's decision is final**.
- **Matters Requiring LG's Prior Opinion:** Peace, security, summoning/ proroguing/ dissolving Assembly, etc.

❖ Key Issues:

- **Centralisation of Power:** This Act transfers the authority of transfers and postings in Delhi to the Central Government.
- **Breakdown of Three-tier Accountability Chain:** Ministers' control over officials has been limited, thereby weakening executive accountability.
- **Violation of Collective Responsibility:** By Excluding the Council of Ministers from decision-making **violates the principle of constitutional accountability**.
- **Expansion of LG's Discretion:** The democratic mandate of the elected government is undermined, weakening representative governance.
- **Ambiguity on "Disputed Matters":** No clear definition of "Disputed Matters", leading to administrative uncertainty.

❖ Governance Challenges in Delhi:

- **Ambiguous Constitutional Status:** Article 239 gives President administrative control, leading to governance confusion.
- **Delhi's National/International Role:** As the capital city, Delhi is expected to maintain high standards of governance.
- **Impact on National Prestige:** Administrative decisions in Delhi have a direct bearing on India's global image.
- **Frequent Delays:** Regular conflicts between LG and elected government result in delays and inefficiencies.

Centre-State Conflicts in India**1. Legislative Conflicts**

- a) **Encroachment in Concurrent List (Art. 254) :** If both Centre and State make laws on the same subject and conflict arises, Union law prevails.
Example: *National Education Policy (NEP), 2020* – Driven by the Centre, but states have differing needs.
- b) **Encroachment on State List:** Parliament legislates on State List subjects citing "national interest."
Example: *Farm Laws (2020)* – Agriculture is a State subject, yet the Centre enacted laws, leading to opposition from Punjab, Haryana, and other states.
- c) **Governor Withholding Bills (Art. 200):** Governor withholds bills indefinitely or refers them to the President.
Examples: Kerala Lok Ayukta Bill & Punjab School Education Bill – Delayed assent.
 - *Tamil Nadu (2023)* – Governor referred re-enacted bills to the President.

d) Article 252 – Transfer of Powers to Centre

Once a State grants legislative power to the Centre on a subject, it cannot reclaim it automatically.

Example: *Wildlife Protection Act*- Initially a State subject, later brought under Centre in national interest.

2. Administrative Conflicts**a) Control over All India Services**

- Dual control over services creates friction over posting, transfers, etc.
- **Example:** *West Bengal vs Centre (2021)* – Dispute over Centre summoning Chief Secretary Alapan Bandyopadhyay.

b) Misuse of Governor's Role: Governor acting as agent of Centre.

- **Example:** *Maharashtra (2022)* – Delay in floor test.
 - *Tamil Nadu & Kerala- Governor absent from Assembly address.*

c) Interference of CBI & ED in States: These central agencies act without the state's consent.

- **Example:** *West Bengal, Chhattisgarh, and Punjab* withdrew "general consent" to CBI.

d) Deployment of Central Forces in States

- Paramilitary forces deployed by Centre without state consent.
- **Example:** CAPF deployment in *Jammu & Kashmir, Manipur* without clear state consultation.

e) Delhi Governance Dispute (GNCTD Act, 2023)

- *GNCTD Act, 2023* gives LG primacy over Delhi government.
- **Example:** SC judgment (May 2023) gave Delhi govt control over services, which was later overturned by GNCTD Act, 2023.

3. Financial Conflicts**a) Vertical Fiscal Imbalance**

- Centre collects nearly 70% of taxes, while states depend on revenue sharing for their expenditure.
- **Example:** *14th Finance Commission* increased states' share to 42% from 32% to address imbalance.

b) GST Compensation Dispute

- Delayed or denied compensation by Centre post-COVID-19.
- **Example:** *Punjab, Kerala, Chhattisgarh* publicly objected to delays in 2020–21 compensation disbursement.

c) Central Sponsored Schemes (CSS)

- Designed by Centre but financial burden shifted to states.
- **Example:** *Smart Cities Mission* – Uniform structure, ignored differing state needs and created imbalance in financial contribution.

d) Finance Commission Bias

- Population-based formula discriminates against better-performing states.
- **Example:** *Southern states (Tamil Nadu, Kerala)* opposed 15th FC's use of 2011 population data, as their population growth is under control.

e) Denial of Special Category Status

- States like Bihar and Andhra Pradesh demand SCS for more central aid and concessions.
- **Example:** *14th FC* scrapped SCS provision, retaining it only for Northeast and 3 hill states.

Commissions on Centre–State Relations

Commission Name	Year	Chairperson
Administrative Reforms Commission (1st ARC)	1966	Morarji Desai/K. Hanumanthaiah
Rajamannar Committee (constituted by Tamil Nadu Govt)	1969	P.V. Rajamannar
Sarkaria Commission	1983	Justice R.S. Sarkaria
National Commission to Review the Working of the Constitution	2000	Justice M.N. Venkatachaliah
Punchhi Commission	2007	Justice M.M. Punchhi

Administrative Reforms Commission (1st ARC)

Establishment Year: 1966

Chairperson: Morarji Desai (initially), later K. Hanumanthaiah

- ❖ **Context & Mandate:** Set up by the **Government of India** to examine **administrative reforms** across departments.
 - One of its important tasks was to look into the **Centre-State administrative machinery**, especially regarding coordination, overlapping roles, and federal responsibilities.
- ❖ **Key Recommendations of the ARC on Centre-State Relations (Total 22 Recommendations)**
 - Establishment of an Inter-State Council under Article 263 of the Constitution.
 - A non-partisan person should be appointed as Governor (Political neutrality).
 - Maximum possible devolution of powers to the States.
 - Transfer of more financial resources to the States to reduce their revenue dependence.
 - Deployment of Central armed forces in the states either on their request or otherwise.

No concrete action was taken by the Central government on these recommendations.

Sarkaria Commission

Establishment and Background:

- **Date of Formation:** 24 March 1983
- **Chairman:** Ranjit Singh Sarkaria
- **Other Members:** B. Shivraman, Dr. S.R. Sen
- **Report Submitted:** In the year 1987
- **Total Recommendations:** 247

Que. 1 The Governor serves as a vital bridge between the Union and the State."

Explain this statement in the context of the Sarkaria Commission's observations on the Governor's role in the Indian federal structure.

Ans: The office of the Governor holds importance in India's federal structure because the Sarkaria Commission highlighted five roles of the Governor. Viewing the institution of the Governor as a faint presence like the full moon at midday would be a grave misconception.

1. Governor's Significant & Multi-Faceted Role

- The Governor plays a unique role in India's federal structure.
- He acts as a bridge between the Union and State, ensuring coordination and resolution of mutual disagreements.
- He functions as the custodian of the Constitution, ensuring state actions are constitutionally valid.
- Governor informs the Union if state actions threaten national security or constitutional integrity.
- He helps in maintaining democratic governance and the unity and integrity of India.

2. Governor as the Linchpin of Constitutional Machinery

- He plays a central role in state administration; all executive actions are taken in the Governor's name.
- **He appoints the Chief Minister** and ensures that the government enjoys the confidence of the legislative assembly.
- **No bill becomes law** without Governor's assent; he plays a crucial role in budget approval and assembly dissolution.
- In special situations, such as a *hung assembly* or *President's Rule*, the Governor exercises discretionary powers within constitutional limits.

3. Ensures Continuity of Governance

- Unlike the CM, the Governor's tenure does not depend on the majority in the assembly.
- Governor remains in office during **government changes, assembly dissolution or constitutional crises**.
- He ensures that **no governance vacuum arises** during transitions or emergencies.

4. Multi-Functional Role & Limitations

- Commission rejected the idea of assigning additional roles (like Chief Justice or Speaker duties) to Governor, to avoid overload.
- While performing executive duties, the Governor must ensure adherence to constitutional limits and maintain the continuity of governance.

5. Indispensability of the Governor's Office

- The post of Governor is vital for federal governance, constitutional functioning, and crisis management.
- He acts as a **neutral constitutional authority**, especially when no Council of Ministers is in place.
- This office should remain free from political interference and **must be interpreted in light of constitutional conventions and propriety**.

Major recommendations of Sarkaria Commission (Regarding Appointment of Governor)

❖ Recommended Criteria for Appointment

The Sarkaria Commission reaffirmed the guidelines earlier suggested by **Pandit Jawaharlal Nehru**, and proposed the following criteria for appointment:

1. **A person of eminence** in any field of political, social, or public life.
2. **Should not be a resident** of the concerned state (should be from outside the state).
3. **Completely detached from local politics**.
4. **Should not have participated in active politics** in the recent past.
5. **Representation of minority communities** should also be duly considered.

Selection Process

➤ Consultation with Chief Minister

- Consultation with the Chief Minister should be made *constitutional* (through amendment of Article 155).
- The consultation should be *genuine and not merely formal*, to strengthen the spirit of federalism.

Additionally, informal consultation should also be held with the **Vice President** and the **Speaker of the Lok Sabha**.

➤ Tenure & Security of Office

- Although the Governor's tenure is fixed at 5 years, in practice, most are removed before completion of their term.
- **Premature removal** affects the **impartiality and dignity** of the office.
- Commission suggests allowing Governors to **explain reasons** before removal and **present explanation in Parliament**.

➤ Eligibility for Further Office

- After the completion of the tenure, a Governor **should not aspire for any further office**.
- They should **not return to active politics**.
- Exceptionally, they may be reappointed as **Governor** or for **constitutional roles** like President/Vice-President.

Sarkaria Commission vs Punchhi Commission

❖ Role & Selection of the Governor

Aspect	Sarkaria Commission (1983–87)	Punchhi Commission (2007–10)
Purpose of Governor	- Communication bridge between Centre and State - Acts as Constitutional Head - Should maintain neutrality and impartiality	- Reaffirmed Sarkaria Commission's views - Must preserve constitutional framework - Must not be seen as agent of the Centre
Need for Reforms	- Criticism of appointments based on political allegiance - Appointments made on partisan basis rather than merit	- Stronger critique: Governors often appointed to reward party loyalty or accommodate Centre's political interests

Criteria for Appointment	1. Person of eminence in public life 2. From outside the state 3. Detached from local/ state politics 4. Not recently active in politics 5. Minority groups should be given fair representation	1. Support for uniform criteria 2. No active politics after retirement 3. A person should not be appointed if they are controversial or closely associated with the ruling party at the Centre.
Selection Process	- Consultation with Chief Minister is necessary - Article 155 should be amended to give constitutional status to this consultation - PM should informally consult Vice President & Speaker of Lok Sabha	- Endorsed mandatory consultation with CM - Suggested creation of an independent committee or collegium to shortlist names - Rejected idea of Inter-State Council making the selection
Role in Hung Assembly	- 4-tier priority to form govt: i) Pre-poll alliance ii) Largest party iii) Post-poll coalition iv) Outside support	- Support for uniform criteria. - The Governor must record in writing the reasons before inviting any party to form the government.
Removal of Governor	- Should be allowed to complete full 5-year term - Removal only in rare & valid circumstances - Should be given opportunity to explain in Parliament	- Supported Sarkaria Commission's recommendations. - Removal should be only on constitutional grounds, not for political reasons. - The concept of "Pleasure of the President" under Article 156 should be regulated.
Discretionary Powers	- Use discretionary powers in a limited, just, impartial and accountable manner (e.g., appointment of CM, report under Article 356, etc.)	- Suggested defining limits of discretionary powers. - Governor should not misuse these powers under influence of Centre.

Conclusion

Point of Agreement	Differences
❖ Both Commission's (Sarkaria and Punchhi) agreed that Governor must be non-partisan, neutral, and trustworthy. ❖ Both Commissions demand consultation with CM and discourage appointment of active politicians. ❖ Both emphasized fair and limited use of discretionary powers.	❖ Punchhi Commission recommended complete detachment from political positions, (no political posts post-Governorship). ❖ Punchhi proposes institutional mechanism (like collegium) for selection. ❖ Punchhi is more detailed on codifying the limits of Governor's discretionary powers.

Emergency Provisions

Comparison: Emergency Provisions – Sarkaria vs Punchhi Commission

Theme	Sarkaria Commission	Punchhi Commission
Approach to Article 356 (President's Rule)	- Article 356 should be used only in exceptional circumstances and as a last resort. - Must be based on a clear and detailed Governor's report.	- Strongly reaffirmed Sarkaria Commission's stand. - Floor test must be mandatory in case of doubt about majority.

	- Assembly should be suspended, not dissolved, until Parliament approves the proclamation. - Strict adherence to constitutional morality must be ensured.	- Governor should explore alternatives like change in leadership before recommending Art. 356. - Suggested amending Art. 356 to reduce initial approval period from 6 months to 2 months.
Role of Governor during Emergencies	- Governor should not act as an agent of the Centre. - Governor's report must be factual, non-political, and justified.- - Judicial review of President's rule proclamation should be allowed.	- Governor's discretionary powers must be limited by codified guidelines. - Avoidance of politically motivated reports. - Judicial review and documentary evidence should be mandatory.

Punchhi commission also advocated legal **codification of grounds** for declaring emergency.

Inter state council

Sarkaria Commission vs Punchhi Commission on Inter-State Council

Aspect	Sarkaria Commission (1983–87)	Punchhi Commission (2007–10)
Status of ISC	Recommended converting the Inter-State Council into a permanent and effective body .	Agreed with Sarkaria. Emphasized that ISC should be a active forum for regular consultation .
Frequency of Meetings	Suggested that the Council should meet at least twice a year .	Recommended holding at least three meetings annually , including sectoral and zonal meetings .
Composition	Accepted existing composition under Article 263 but suggested a stronger Secretariat under Home Ministry .	Recommended a restructured and independent secretariat , free from political influence.

Other recommendations

1. Legislative Relations

Subject	Recommendations
Concurrent List (List III)	- Parliament should consult States before legislating on matters in the Concurrent List. - Set up a mechanism (like Inter-State Council) for regular consultation.
Article 249 (<i>Parliament's power to legislate on State List in national interest</i>)	- Use only in exceptional circumstances. - States should be consulted before resolution is passed in Rajya Sabha.
Article 252 (<i>Legislation on State subjects at the request of two or more States</i>)	- Should be used carefully; consent of States must be clearly and consistently expressed.
Residuary Powers (Entry 97, List I)	- Residuary powers may remain with Centre but used with restraint. - Should be used only when the matter is clearly of national importance.

Article 200 (Reservation of Bills by the Governor)	– Governor should not reserve bills arbitrarily. – Reservations must be based on constitutional necessity, not political considerations.
Rajya Sabha's Role	– The Rajya Sabha should perform its role as the Council of States more actively. – It should ensure better representation of States' interests.

2. Executive Relations

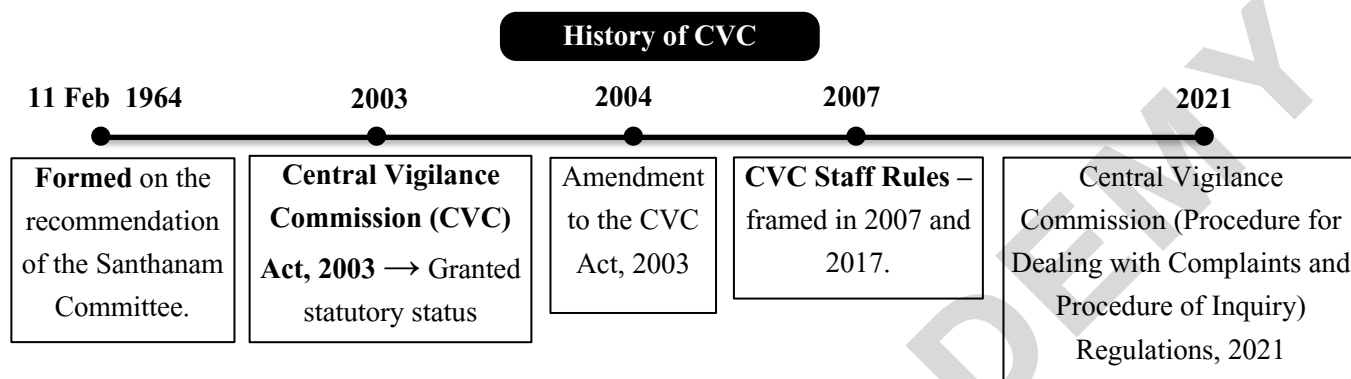
Subject	Recommendations
All India Services	– All India Services should be retained for national unity and maintaining high administrative standards. – States should be granted greater authority in appointments and cadre management.
Union's directions to States (Articles 256 & 257)	– Union directives should be used sparingly, only when required by the Constitution.
Role of Planning Commission (Now NITI Aayog)	– Greater state involvement in planning. – Avoid overlapping with Finance Commission.

3. Financial Relations

Subject	Recommendations
Tax Devolution	– Full implementation of Finance Commission recommendations must be ensured. – Ensure fair and adequate resource allocation to States.
Grants-in-aid (Art. 275)	– Should be need-based and transparently allocated. – Distribution must be free from political bias.
Loans to States	– Encourage States to raise own resources. – Central loans must be extended on mutually agreed terms.
Planning vs Finance Commission	– Roles of both institutions should be clearly demarcated to avoid duplication. – Finance Commission should be given precedence in matters of financial transfers.

Overall Vision of Sarkaria Commission: “Strengthen the Union without weakening the States. Promote cooperative federalism through dialogue, transparency, and mutual respect.”

Central Vigilance Commission (CVC) is an apex governmental body in India that is responsible for promoting integrity, transparency, and accountability in the country's public administration. It was established in 1964 as a result of the recommendations of the **Santhanam Committee** on Prevention of Corruption.



❖ Structure of the Central Vigilance Commission (CVC)

- **Composition:** Commission comprises one Central Vigilance Commissioner (Chairperson) and a maximum of two Vigilance Commissioners (Members).
- **Major Wings:**
 - **Secretariat:** Headed by Secretary; includes Additional Secretary, Directors, Under Secretaries & support staff
 - **Chief Technical Examiners' Wing (CTE):** Responsible for technical audits & inspections.
 - **Commissioners for Departmental Inquiries (CDIs):** Conduct departmental inquiries.
 - **Chief Vigilance Officers (CVOs):** Act as representatives of the CVC in Ministries/Public Sector Undertakings (PSUs); serve as a link between the CVC and the concerned organization.

Section 3: Constitution of the Central Vigilance Commission:

1. **Statutory Body:** Central Vigilance Commission (CVC) is a statutory body constituted under the *Central Vigilance Commission Act, 2003*.
 - **Amendment, 2004**
 - **CVC Staff Rules** — 2007 and 2017
 - **Central Vigilance Commission (Procedure for Dealing with Complaints and Procedure of Inquiry) Regulations, 2021**
2. **Composition: 1 Central Vigilance Commissioner (Chairperson)**
 - **Up to 2 Vigilance Commissioners (Members)**
3. **Eligibility:** Members may be from following areas:
 - All India/Central Civil Services with experience in vigilance, policy- making, or police administration.
 - Central PSUs or Government companies with expertise in finance, law, vigilance, or investigations (A maximum of two members can be from the same category)
4. **Secretary:** The Central Government shall appoint a Secretary to the Commission on such terms and conditions as it deems fit. The Secretary shall exercise such powers and discharge such functions as may be specified by the Commission through regulations. **He heads the Secretariat of the CVC.**

Note: Appointments made under the 1999 Ordinance/resolution shall be deemed valid under the Act, with continuity in terms and conditions.
5. **Headquarters:** New Delhi

Section 4: Appointment of CVC and Vigilance Commissioners – Summary

1. **Appointing Authority:** Central Vigilance Commissioner (CVC) and Vigilance Commissioners are appointed by the **President of India** by warrant under his hand and seal.
2. **Selection Committee:** Appointments are made on the **recommendation of a Committee** comprising:
 - **Prime Minister** – Chairperson
 - **Home Minister** – Member
 - **Leader of the Opposition in Lok Sabha** (or leader of the largest opposition group) – Member
3. **Vacancy Clause:** Appointment remains **valid even if there is a vacancy** in the Committee.

Section 5: Terms and Conditions of Service

1. **Tenure:** The CVC and VCs hold office for **4 years** or until the age of **65 years**, whichever is earlier.
 - The **CVC is not eligible for reappointment**.
 - A **VC can be appointed as CVC**, but the total tenure in both roles **cannot exceed 4 years**.
2. **Oath of Office:** Prior to entering office, they must take an **oath or affirmation before the President**, or a person appointed by the President.
3. **Resignation:** CVC and VCs may resign by writing to the **President of India**.
4. **Removal:** CVC can be removed only as per the **procedure specified in Section 6** of the Act same as CIC/NHRC
5. **Post-Tenure Restrictions:** After leaving office, they are **ineligible** for:
 - Holding any **diplomatic assignment**
 - **Becoming the administrator of a Union Territory**
 - Holding any **office of profit under the Government** (Central or State)
6. **Salary and Service Conditions:**
 - **CVC:** Equivalent to **Chairman of UPSC**
 - **VCs:** Equivalent to **Members of UPSC**
 - If already receiving pension or retirement benefits, their **salary is reduced accordingly**.
 - Salary and service conditions **cannot be altered to their disadvantage** after appointment.
 - **Section 13** — All expenses of the Commission (administrative expenses, salaries, allowances, and pensions) are charged on the Consolidated Fund of India.

Section 8. Functions and Powers of Central Vigilance Commission –

- **To supervise the CBI (Delhi Special Police Establishment) in cases of corruption under the Prevention of Corruption Act, 1988.**
- Acting on references made by the Lokpal.
- The role of the Central Vigilance Commission (CVC) is to advise on and investigate complaints against Central Government employees, employees of public sector undertakings, and other persons within its jurisdiction.
- Monitors the progress of investigations and reviews sanction for prosecution (criminal proceedings).
- Provides advice to the Central Government and concerned bodies on vigilance-related matters.
- Inspects and supervises vigilance administration in ministries, public sector undertakings, and other central institutions.
- Supervises Group A officers and other notified officers, and also acts on references made by the Lokpal for Group B, C, and D employees.

Jurisdiction

Section 8 (1) (d), read with Section 8 (2) of the CVC Act, 2003, along with subsequent notifications from Govt. of India, Department of Personnel and Training (DOPT) define the jurisdiction of the Commission. The following levels/category of officials are covered under the jurisdiction of the Central Vigilance Commission:

- Members of All India Services serving in connection with Union affairs and Group 'A' officers of the Central Government;
- Chief Executives and Executives on the Board and other officers of E-8 and above in Schedule 'A' and 'B' Public Sector Undertakings of the Central Government.
- Chief Executives and Executives on the Board and other officers of E-7 and above in Schedule 'C' and 'D' Public Sector Undertakings of the Central Government
- Officers of the rank of Scale V and above in the Public-Sector Banks;
- All these officers fall under the jurisdiction of the CVC and are monitored by the Commission.
- Officers in Grade 'D' and above in Reserve Bank of India, NABARD and SIDBI;
- Managers and above in respect of General Insurance Companies;
- Senior Divisional Managers and above in Life Insurance Corporation of India; and
- Officers drawing salary of Rs 8700/- per month (pre-revised as on 12.09.2007) and above on Central Government DA pattern, as may be revised from time to time, in societies and local authorities owned or controlled by the Central Government.

Alphabetical order of covered categories (A to L):

Alphabets

- A** All India Services & Group A officers
- B** Board-level executives in PSUs (Schedule A & B, E-8 and above)
- C** Chief Executives & E-7 and above in Schedule C & D PSUs
- D** Divisional Managers (LIC – Sr. Divisional Manager and above)
- E** Executive-level officers in financial institutions (RBI, NABARD, SIDBI – Grade D and above)
- F** Financial sector banks – Scale V and above
- G** General Insurance Companies – Managers and above
- H** High-salary officers in Govt-controlled societies/local bodies (₹8700+ pre-revised)
- L** Local Authorities controlled by Central Govt (same pay rule applies)

8A & 8B: Action on Preliminary Inquiry and Investigation

❖ Section 8A - Action on Preliminary Inquiry (Group C & D Officials)

- After **preliminary inquiry**, if **prima facie corruption** is found:
 - (a) **Investigation** by CBI or any another agency
 - (b) **Disciplinary proceedings** by the competent authority
 - (c) **Closure of false case** and possible action against **false complainant**
- **Time limit:** Inquiry to be completed within **90 days**, extendable by **another 90 days** for valid reasons.

❖ Section 8B – Action related to Investigation

- CVC can direct **CBI or any other agency** to investigate and the report must be submitted in **6 months**: extendable by another 6 months if needed.
- Report is to be submitted **to the CVC**, not court (Violation of CrPC Section 173).

- CVC may decide to:
 - (a) **File chargesheet or closure report** in Special Court
 - (b) **Initiate departmental proceedings** or other appropriate action

Facts:

- First Central Vigilance Commissioner of India - Nittoor Srinivasa Rau (1964-1968)
- Present Central Vigilance Commissioner – Praveen Kumar Srivastava [28 December 2022 – January 2026 (present)]
- Present Vigilance Commissioner – A.S. Rajeev, Praveen Vashisht (16 January 2026)

India's first woman Vigilance Commissioner (not CVC) — Ranjana Kumar

Sections 15 to 21 – CVC Act, 2003

Section No.	Heading	Summary
15	Protection of action taken in good faith	No legal proceedings can be initiated against CVC officials for actions done in good faith under the Act.
16	CVC officials to be deemed public servants	CVC, Vigilance Commissioners, Secretary, and staff are deemed public servants under Section 21 of IPC.
17	Report of inquiry to be submitted to Commission	Agencies must submit inquiry reports to the Commission, which then advises appropriate action. If the government does not follow the Commission's advice, it is mandatory to state the reasons for such non-compliance.
18	Power to call for information	CVC may seek reports and data from the Central Government, PSUs, and related bodies for vigilance oversight.
19	Power to consult in certain matters	Central Government must consult CVC before making rules on vigilance/disciplinary matters for Union & AIS officers.
20	Power to make rules	Central Government may frame rules via notification to implement provisions of the Act.
21	Power to make regulations	CVC can make regulations (with Central Govt approval) to give effect to the Act and define internal procedures.

NITI Aayog (National Institution for Transforming India) is the **premier policy think tank** of the Government of India, established on **1st January 2015**, replacing the **Planning Commission**.

❖ Functions/Objectives of NITI Aayog

1. **Shared Vision:** Formulate a common national development strategy with active **State participation**.
2. **Cooperative Federalism:** Promote **structured collaboration with States** to strengthen the nation.
3. **Bottom-up Planning:** Enable credible **village-level planning**, integrated at higher governance levels.
4. **National Security Integration:** Ensure **economic policy** incorporates **national security concerns** where referred.
5. **Inclusive Growth:** Focus on **vulnerable sections** to ensure equitable development.
6. **Strategic Policy Design:** Formulate long-term **policy and program frameworks** with continuous feedback and improvement.
7. **Think Tank Collaborations:** Encourage partnerships with **national and international institutions**.
8. **Innovation Ecosystem:** Build a collaborative **knowledge and innovation support system**.
9. **Issue Resolution Platform:** Act as a forum for **inter-sectoral and inter-departmental coordination**.
10. **Resource & Best Practices Hub:** Serve as a **repository of research, best practices, and governance models**.
11. **Monitoring & Evaluation:** Continuously **monitor and evaluate** schemes to improve outcomes.
12. **Technology & Capacity Building:** Promote **technological upgradation** and **capacity building**.
13. **Supportive Initiatives:** Undertake any other activity necessary to advance the **national development agenda**.

It is supported by an attached office, Development Monitoring and Evaluation Organisation (DMEO), a flagship initiative, Atal Innovation Mission (AIM) and an autonomous body, National Institute of Labour Economics Research and Development (NILERD).

NITI Aayog's entire gamut of activities can be divided into four main heads:

1. Policy and Programme Framework
2. Cooperative Federalism
3. Monitoring and Evaluation
4. Think Tank and Knowledge & Innovation Hub

❖ Structure of NITI Aayog

1. Policy and Programme Framework:

Developing long-term strategic policies and national development agendas.

Initiative	Purpose
Strategy for New India @75	Roadmap for India's growth across 41 sectors by 2022-23
India@2047 Vision	Long-term vision to make India a developed nation by 2047
National Energy Policy	Integrated approach towards energy security & sustainability
Gig and Platform Workers Report (2023)	Reforms & protections for India's growing gig economy
Electric Mobility Policy Framework	Boosting EV adoption and green transport

2. Cooperative Federalism:

Fostering collaboration between Centre and States through structured platforms.

Initiative	Purpose
Governing Council	Involves all Chief Ministers & LGs for national consensus-building
Regional Councils & Sub-Groups of CMs	Joint decision-making on reforms (e.g., rationalisation of CSS)
State-Specific SDG Dialogues	Customised support to States on sustainable development goals
Support for District-Level Planning	Bottom-up planning models through collaboration with States

3. Monitoring and Evaluation:

Data-driven, real-time tracking and outcome-based reviews of schemes.

Initiative	Purpose
Development Monitoring & Evaluation Office (DMEO)	Independent evaluation wing tracking performance
Output-Outcome Framework for Budgeting	Results-based budgeting for ministries
Aspirational Districts Programme (ADP)	Monitors 112 backward districts through performance-based ranking
Scheme Evaluation Reports (e.g., PMAY, Poshan Abhiyaan)	Evidence-based reviews for mid-course correction

4. Think Tank, Knowledge & Innovation Hub:

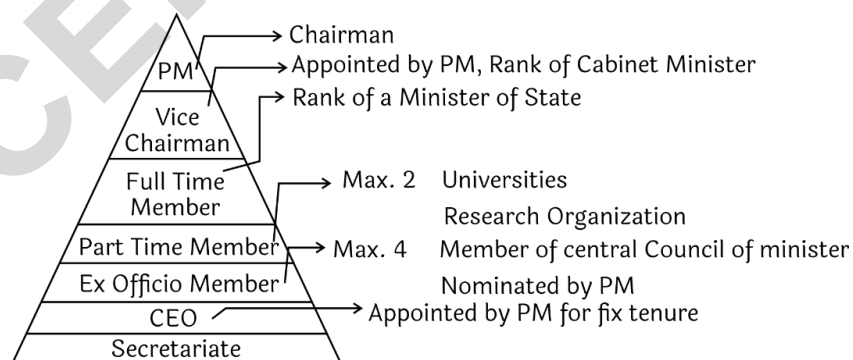
Policy research, innovation, global best practices, and index-based reforms.

Initiative	Purpose
Atal Innovation Mission (AIM)	Building an innovation culture through ATLs & AICs
India Innovation Index	Ranking States by their innovation potential
SDG India Index	Measuring States/UTs progress on Sustainable Development Goals
School Education Quality Index (SEQI)	Benchmarking State-level learning outcomes
Export Preparedness Index	Ranking States' readiness to boost exports
Global Collaborations (UNDP, WHO, WEF)	Enhance capacity building, research, and policy standards

❖ Structure of NITI Aayog

➤ Composition:-

1. **Chairperson** - Prime minister
2. **Governing council** - CM of all state and UTs with legislatures; Lt. Governor of other UTs. Meetings convened by the PM.
3. **Regional Councils** – Chaired by a person nominated by the NITI Aayog Chairperson (PM)
4. **Special invitees/Experts:** Domain-specific experts/practitioners nominated by the Prime Minister
5. **Organizational Structure:**



	Planning Commission	National Development Council (NDC)	NITI Aayog
Establishment	15 March 1950	6 August 1952	1 January 2015
Nature	Non-constitutional / Extra-constitutional body (via executive resolution)		
Key Functions	1. Five-Year Plans 2. Grants	Approval and implementation of Five-Year Plans	Policy think tank of Government of India • Chairperson: Prime Minister- • Vice Chairperson: Nominated by PM (Equivalent to Cabinet Minister rank) • CEO: Equivalent to Secretary • CM of States • Part-time/Full-time members
Abolition	Abolished on 13 August 2014	Not officially abolished, but currently defunct	
Structure	• Chairperson: Prime Minister	• Chairperson: Prime Minister • Members: Chief Ministers, Planning Commission members	

❖ Difference Between Functions of Planning Commission and NITI Aayog

Aspect	Planning Commission	NITI Aayog
Planning Model	Followed a top-to-bottom centralized planning approach	Adopted a bottom-to-top approach to encourage participatory planning
Policy Role	Focused on formulating Five-Year Plans and annual plans	Acts as a policy think tank and strategic advisory body
Fund Allocation	Had the power to allocate funds to States	No fund allocation powers; only advisory
Federal Structure	Dominated by Centre; limited State role	Promotes cooperative and competitive federalism
Role in Implementation	Involved in both planning and implementation	Provides strategic inputs; implementation left to ministries and States
Monitoring & Evaluation	Periodic and report-based monitoring	Real-time monitoring and evaluation with data analytics
Focus Areas	Economic growth, resource allocation, target-based development	Innovation, inclusive growth, sustainability, capacity building
Stakeholder Engagement	Limited external participation	Broad engagement with experts, institutions, and private sector
Technology Use	Traditional, paper-based monitoring	Heavy use of tech platforms and dashboards (e.g., SDG Index, India Data Platform)
Flexibility & Innovation	Rigid structure; long-term plans	Agile, allows mid-course corrections and innovation
Special Programs	Implemented centrally-designed schemes	Designs and operates programs like Aspirational Districts, Atal Innovation Mission, etc.

❖ NITI Aayog & Federalism

1. Cooperative Federalism

Initiative/Mechanism	Function	Recent Example
Governing Council Meetings	Involves all CMs & LGs to shape national policy together	8th Governing Council Meet (May 2023) focused on agriculture, skill development & health systems
Sub-Groups of CMs	Joint Centre-State task forces on key reforms	Sub-group on Rationalisation of Centrally Sponsored Schemes successfully submitted actionable roadmap (2023)
State-Specific SDG Consultations	Region-wise dialogues for custom state planning	SDG Progress Review 2023 involved one-on-one sessions with States like Kerala, Sikkim & Gujarat

District Planning Support	NITI Aayog supported district-level planning with States	Supported block-level development plans in Bihar and Odisha under Aspirational Districts 2.0
Joint Reports & Research	Collaborative policy papers and recommendations	EV adoption framework 2023 created jointly with several State transport departments

2. Competitive Federalism

Initiative	Purpose	Recent Example
Aspirational Districts Programme (ADP)	Ranks 112 districts on education, health, agriculture, etc.	Barwani (MP) and Namsai (Arunachal) recorded major improvement in health indicators in 2023
SDG India Index	Ranks States/UTs on Sustainable Development Goals	Kerala, Himachal Pradesh, and Chandigarh topped the SDG Index 2023
Export Preparedness Index	Assesses States' readiness for export promotion	Tamil Nadu, Gujarat & Maharashtra ranked top in 2023 Index
India Innovation Index	Evaluates innovation ecosystem in States	Karnataka topped 2022 Index , with Telangana and Haryana emerging as fast climbers
School Education Quality Index (SEI)	Sets benchmark framework for state education performance	SEI highlighted Odisha as a strong performer in foundational literacy (latest release 2023)
State Health Index (in partnership with MoHFW & WHO)	Ranks states based on health outcomes	Kerala, Tamil Nadu & Telangana topped in Health Index 2023

Type	How NITI Aayog Helps	Outcome
Cooperative Federalism	Dialogue and Joint Working with States	Builds consensus, encourages inclusivity
Competitive Federalism	Rankings and Performance-based models	Encourages reforms, peer pressure for better governance

❖ Attached Bodies of NITI Aayog

1. Atal Innovation Mission (AIM)

Established By	NITI Aayog (2016)
Objective	To promote a culture of innovation and entrepreneurship across India
Atal Tinkering Labs (ATLs)- Established in schools to foster curiosity and STEM skills among students Atal Incubation Centres (AICs)- Provide support to startups through funding, mentorship, and infrastructure Mentor India Network- To connect youth with industry mentors ARISE Program- Promotes R&D in MSMEs and startups	
Recent Update	As of 2023, over 10,000 ATLs and 75+ AICs have been established across India

2. Development Monitoring and Evaluation Office (DMEO)

Established by	NITI Aayog (2015)
Objective	To monitor and evaluate the performance of government policies and programs
Role	- Conducts real-time, data-driven evaluations of flagship schemes - Develops output and outcome-based frameworks for ministries - Provides evidence-based policy feedback to enhance governance

Key Reports/Tools

- Output-Outcome Framework** for Union Budget
- Monitors schemes like **Poshan Abhiyaan, PM Awas Yojana, Swachh Bharat Mission**

3. National Institute of Labour Economics Research and Development (NILERD)

Established by	1962 (as IAMR), later renamed under NITI Aayog
Objective	Acts as a research and training institute in labour economics, development, and human resource planning
Functions	- Conducts labour market research, skill gap analysis, and employment planning - Provides capacity building programs for govt officials & researchers - Supports policy formulation in areas like employment, livelihoods, and demography
Recent Initiatives	Study on future job trends & skilling for India@2047, labour market reforms and gender participation (2023)

Body	Focus Area	Significance
AIM	Innovation & Startups	Boosts entrepreneurship ecosystem
DMEO	Monitoring & Evaluation	Strengthens results-based governance
NILERD	Labour & HR Research	Informs employment and workforce policies

❖ Problems and Limitations of NITI Aayog

Category	Issue	Explanation
Lack of Statutory Status	No constitutional or legal backing	Being a non-statutory body, its recommendations are not binding and its role can be altered anytime by the executive.
Lack of Fund Allocation Powers	Cannot allocate funds like Planning Commission	This limits its influence over States and Ministries, reducing its leverage to push reforms.
Overlapping Functions	Overlaps with functions of ministries and other bodies	Multiple policy think tanks and ministries sometimes perform similar advisory roles, leading to overlap.
Limited Implementation Role	Only Advisory, lacks executive role	NITI Aayog does not implement schemes, which weakens its accountability and field impact.
Concerns regarding Federal Structure	States feel it's still Centre-dominated	Despite being formed to promote cooperative federalism, some States feel excluded , especially those not politically aligned with the Centre.
Delayed Policy Output	Slow turnaround on some critical policy areas	Reports like India@2047 or SDG dashboard are delayed or under-updated, affecting utility.
Limited Private Sector participation	Less structured involvement of industry or startups	Though AIM works in innovation, broader private sector involvement in policymaking is still shallow.
Lack of Parliamentary Oversight	No accountability to Parliament	Unlike constitutional bodies such as CAG or ECI, NITI Aayog is not answerable to any legislative oversight mechanism.
Excessive Centralization in Appointments	All key members appointed by PMO	Critics argue it lacks pluralism and diversity of thought, with limited regional or opposition voice.
Focus on Data, But Limited Field Verification	Relies heavily on secondary data	Schemes are monitored via dashboards without adequate on-ground verification of data.

❖ Recent Criticisms:

- Opposition-ruled States** like Tamil Nadu and Kerala have questioned its **role in true federalism**.
- Delay in SDG Index updates** and inconsistencies in **Aspirational District data** were noted in civil society reports.
- Gig Economy Report (2023)**, while progressive, was criticized for **lack of follow-through mechanisms**.

- **The National Human Rights Commission was established on 12 October 1993.** Its function is to protect human rights, as provided under the **Protection of Human Rights Act, 1993** (amended in **2006** and **2019**) and the **Human Rights Rules, 1997**.
- It is in conformity with the Paris Principles, adopted at the first international workshop on national institutions for the promotion and protection of human rights held in Paris in October 1991, and endorsed by the General Assembly of the United Nations by its Resolutions 48/134 of 20 December, 1993. This commission symbolizes India's commitment to the protection and promotion of human rights.
- Section 2(1)(d) of the PHRA defines "Human Rights" as the rights relating to life, liberty, equality and dignity of the individual guaranteed by the Constitution or embodied in the International Covenants and enforceable by courts in India.

❖ Vision and mission

- Section 12 of the Act outlines the functions of the NHRC. Among its key responsibilities is to inquire into complaints of violation of human rights or negligence in the prevention of such violations by public servants.
- The Commission also studies treaties and international instruments on human rights and suggests effective implementation measures to the Government.
- Another major duty of the Commission is to spread awareness about human rights among the general public.
- NHRC of India actively coordinates with other National Human Rights Institutions across the globe to promote human rights awareness. It has also hosted delegations from UN Bodies and other National Human Rights Commissions.

❖ Section 3 – Composition

Establishment of the National Human Rights Commission (NHRC): The Central Government shall constitute the NHRC.

Members:

- (a) a Chairperson, who has been the Chief Justice of India or a Judge of the Supreme Court.
- (b) one Member who is, or has been, a Judge of the Supreme Court;
- (c) one Member who is, or has been the Chief Justice of a High Court;
- (d) Three members, of whom at least one shall be a woman, having knowledge or practical experience in matters relating to human rights.

Ex-Officio Members:

The Chairpersons of the following commissions/bodies shall be ex-officio members of the NHRC –

- National Commission for Backward Classes (NCBC)
- National Minority Commission – (NMC)
- National Commission for Scheduled Castes (NCSC),
- National Commission for Scheduled Tribes (NCST)
- National Commission for Women (NWC)
- National Commission for Protection of Child Rights – NCPCR
- Department of Empowerment of Persons with Disabilities (PwD)

Secretariat and Administrative Structure: NHRC shall have a Secretary-General as the Chief Executive Officer. Secretary-General shall work under the control of the Chairperson and exercise all administrative and financial powers (excluding judicial powers).

❖ Section 4 - Appointment

- (a) The Chairperson and Members shall be appointed by the President based on the recommendation of a Committee.
- (b) This Committee will consist of the following members:-
 - (a) The Prime Minister -Chairperson;
 - (b) Speaker of Lok Sabha

- (c) Minister in-charge of the Ministry of Home Affairs in the Government of India
- (d) Leader of the Opposition in Lok Sabha
- (e) Leader of the Opposition in Rajya Sabha
- (f) Deputy Chairman of Rajya Sabha

Note: The absence of any member of the committee will not affect the appointment.

❖ Section 5 – Resignation and Removal:

1. **Resignation:** The Chairperson or any Member can **resign** from office by **writing to the President of India**.
2. **Removal:**
 - (A) **After inquiry by Supreme Court:** The President may remove the Chairperson or any member for proven misbehavior or incapacity, after an inquiry by the Supreme Court confirms such charges.
 - (B) **Immediate removal without Supreme Court inquiry:** The President may also remove the Chairperson or any member without a Supreme Court inquiry in the following circumstances, if they –
 - Have been adjudged insolvent by a court,
 - During their tenure, engage in any paid employment other than official duties,
 - Are unfit to continue in office due to mental or physical infirmity,
 - Have been declared of unsound mind by a court,
 - Have been convicted of an offence involving moral turpitude.

❖ Section 6 - Term of office of Chairperson and Members:

- Chairperson and Members hold office for 3 years or until the age of 70, whichever is earlier.
- They are eligible for re-appointment.
- After retirement, they are ineligible for further employment under the Government of India or under the Government of any State.

❖ Section 7- In case of absence or vacancy:

- Member to act as Chairperson or to discharge his functions in certain circumstances President may, by notification, authorize one of the Members to act as the Chairperson until the appointment of a new Chairperson to fill such vacancy.

❖ Section 8- Terms and conditions of service:

No unfavorable alteration shall be made to the salary, allowances, or service conditions of the Chairperson or any member after their appointment.

❖ Section 10 - Procedure of the Commission

1. **Meetings:** The Commission will meet at **times and places decided by the Chairperson**.
2. **Framing of Procedure:** Subject to the Act and its rules, the Commission has the **authority to frame its own procedures** through regulations.
3. **Authentication of Decisions:** All orders and decisions of the Commission must be **authenticated by the Secretary-General** or another officer **authorized by the Chairperson**.

❖ Section 11 - Officers and Staff of the Commission:

The **Central Government** shall provide the NHRC with:

1. A **Secretary-General** of the rank of **Secretary to the Government of India**.
2. Adequate **police and investigative staff**, headed by an officer not below the rank of **Director General of Police (DGP)**.
3. Other necessary **officers and staff** for the **efficient functioning** of the Commission.

❖ Section 12 – Functions of the Commission:

1. **Investigation into Human Rights Violations:**
 - The Commission can investigate complaints of human rights violations:
 - On its own (suo motu)
 - On someone's petition
 - On the direction of any court
 - If a public servant has been negligent in preventing violations

2. **Judicial Intervention**-NHRC can participate in court cases involving human rights issues—if the court permits.
3. **Inspection of Prisons**- It can inspect **prisons, detention centers, and reform homes** to check inmates' living conditions and make recommendations.
4. **Review of Laws and Safeguards**- It reviews the **Constitutional and legal protections** related to human rights and suggests improvements.
5. **Study of Factors Affecting Rights**- It studies things like **terrorism or other threats** that reduce people's rights and suggest solutions.
6. **Study of International Human Rights Treaties**-It looks at global agreements on human rights and advises the government on their effective implementation.
7. **Research Activities**-It supports and conducts **research** in the area of human rights.
8. **Spreading Awareness**-It promotes **human rights education** through books, media, seminars, etc., to inform the public.
9. **Support to NGOs** - It encourages and works with **NGOs and institutions** involved in human rights protection.
10. **Other Functions** -It can take up **any task** it feels is important for the promotion of human rights.

❖ Section 13 - Powers Related to Investigation

1. **Powers like a Civil Court:** While investigating a complaint, the NHRC has powers similar to those of a **Civil Court**, such as:
 - Calling witnesses and making them take an **oath**.
 - Receiving **affidavits** (written statements under oath).
 - Appointing someone to examine witnesses or documents.
 - Asking for **documents** and evidence.
 - Asking for official **records** from any court or office.
2. **Power to ask for Information:** NHRC can require any person (unless protected by law) to furnish relevant information that may help in the inquiry. The person must provide true information as providing false information is punishable under Indian Penal Code (IPC).
3. **Search and Seizure of Documents:** NHRC or an authorized officer can **enter any place** and **seize documents** if they believe important records related to the case are present there. This is done as per the rules of the **Criminal Procedure Code**.
4. **Power to Report Offences:** If someone commits an offence (e.g., refusing to answer, giving false information, misbehaving in front of the Commission), NHRC can **record the facts** and **send the case to a Magistrate** for trial.
5. **Treated as Judicial Proceedings:** Every inquiry by NHRC is legally treated like a **court trial**—lying or insulting the Commission during an inquiry is punishable under IPC.
6. **Transfer of Complaints to State Commission**
 - NHRC can transfer a complaint to the State Human Rights Commission, if that State Commission has the power to handle it.
 - The State Commission will treat it as if the complaint was filed there directly.

❖ Section 14- Investigation Powers of NHRC

1. **Use of Government Agencies**
 - NHRC can seek assistance from Central or State Government officers or investigation agencies (like police or CBI) for conducting an investigation.
 - Such assistance requires prior permission (concurrence) from the concerned government.
2. **Investigation Powers of Assisting Officers:**
Officers or agencies assisting NHRC can:
 - Summon people, make them attend, and question them.
 - Demand and collect documents.
 - Request records from any public office.
3. **Statements Treated Like Court Evidence**
 - Any statement made before these officers is treated just like a statement made before the NHRC itself—legally valid.

4. Report Submission

- The officer or agency must submit a report to the NHRC within the time limit set by the Commission.

5. NHRC's Review of Report

- NHRC will verify the truth and accuracy of the report and its conclusions.
- If needed, the NHRC can question the officers who conducted the investigation.

❖ Section 17 – Inquiry into Complaints

- NHRC may demand a report from the government or authority.
- If no report is received within time, NHRC may act *suo motu*.
- If satisfied with the response, it may close the case.

❖ Section 18 – Action During/After Inquiry

- If human rights violation is found, NHRC may:
 - Recommend **compensation**.
 - Suggest **prosecution** or action against guilty persons.
 - Seek court directions.
 - Recommend **interim relief** to the victim.
- NHRC sends its report to the government, which must reply in one month.
- NHRC may publish the report and the government's reply.

❖ Section 19 – Cases Involving Armed Forces

- NHRC can **only seek a report** from the Central Government.
- It can give **recommendations**, but **cannot directly investigate**.
- Government must respond within **3 months**.
- Report and government's reply are **shared and published**.

❖ Section 20 – Annual and Special Reports

- NHRC sends an **annual report** to the **Central and State Governments**.
- It can also submit **special reports** on urgent matters.
- These reports must be **placed before Parliament or State Legislatures**.

FACT

- **Statutory body**
- **Motto** — *Sarve Bhavantu Sukhinah* (सर्वे भवन्तु सुखिनः)
- **1st Chairperson**– Justice Shri Ranganath Misra
- **Current Chairperson (2025)**– Justice V. Ramasubramanian
- **Longest Tenure**– K.G. Balakrishnan
- **Acting Chairpersons**– Shivraj Patil, G.P. Mathur, Cyriac Joseph, P.C. Pant, Vijaya Bharati Sayani

Present Members

No.	Member	Role
1	Justice Shri V. Ramasubramanian	Current Chairperson
2	Vijaya Bharati Sayani	Full-time Member
3	Dr. Justice Vidyut Ranjan Sharangi	Full-time Member
4	Shri Priyank Kanoongo	Full-time Member
Ex-Officio Members		
5	Iqbal Singh Lalpura	Chairperson – National Minority Commission
6	Kishore Makwana	Chairperson – National Commission for Scheduled Castes

7	Antar Singh Arya	Chairperson – National Commission for Scheduled Tribes
8	Vijaya K. Rahatkar	Chairperson – National Commission for Women
9	Tripti Gurha (Addl. Charge)	Chairperson – National Commission for Protection of Child Rights
10	Hansraj Gangaram Ahir	Chairperson – National Commission for Backward Classes
11	Rajesh Agrawal	Chief Commissioner for Persons with Disabilities

Note: The CEO and Secretary-General of the Commission is Mr. Bharat Lal.

Operational Challenges of NHRC [Only for Mains]

Issue	Explanation	Recent Example	Govt / NHRC Report Reference
1. Lack of Enforcement Powers	NHRC can only recommend actions, not enforce them.	In many custodial death cases, NHRC's recommendations for compensation/action are not implemented.	NHRC Annual Reports (e.g., 2019–2020): Many cases show "recommendations not acted upon".
2. Delayed Interventions	Investigations and responses are often slow , reducing effectiveness.	Delay in NHRC response in Manipur alleged encounter cases , reported by civil society groups.	Supreme Court's remarks on NHRC delay in extra-judicial killings case (Manipur, 2017).
3. Limited Jurisdiction over Armed Forces	NHRC has restricted powers in cases involving the military- can only seek reports, no inquiry.	NHRC couldn't independently probe reported violations in AFSPA areas .	Section 19 of Protection of Human Rights Act restricts NHRC's role in armed forces cases.
4. Political & Executive Influence	Appointment process lacks full independence; can affect objectivity.	Appointment of ex-CJ without wider consultation criticized by activists for being politically aligned.	HRW and PUCL critiques in 2023; Lack of transparency in appointments noted in civil society reports.
5. Staff & Resource Shortages	NHRC faces shortage of investigators , experts, and regional offices.	In 2022, NHRC handled over 80,000 complaints, but had limited investigation staff.	NHRC Activity Reports (2018–22): Repeated calls for strengthening infrastructure.
6. Limited Public Engagement	Awareness and accessibility of NHRC among common people is still very low .	Most complaints come from a few urban states; rural/tribal areas underrepresented.	NHRC's own outreach audit (as mentioned in Action Taken Report to Parliament, 2020).
7. Non-binding Nature of Recommendations	State & central govts are not legally bound to follow NHRC orders.	In many cases (e.g., police brutality), states simply "note" recommendations without acting.	NHRC Annual Reports cite low implementation rate of final orders (less than 40% in some years).
8. Overburdened Case Load	Thousands of complaints received annually lead to backlog .	Over 1 lakh pending cases at different levels (as per 2021–22 data).	NHRC Report to Ministry of Home Affairs, 2022.

Enhancing the Functioning of NHRC Challenges and Recommendations

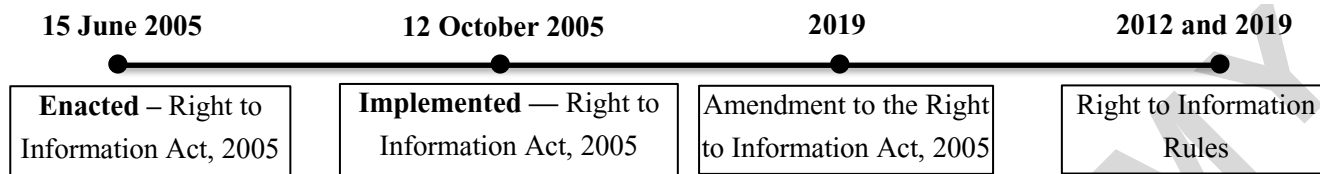
Challenge	Recommendation
Limited Enforcement Powers	Elevate NHRC status to a constitutional body to grant it authority akin to other constitutional entities.
Non-Binding Recommendations	Amend the Protection of Human Rights Act to make NHRC's recommendations binding on concerned authorities.
Resource Constraints	Allocate increased financial and human resources to NHRC to manage its expanding mandate effectively.
Delayed Responses	Implement a proactive approach by NHRC, including preventive measures and early interventions.
Limited Jurisdiction Over Armed Forces	Amend Section 19 of the Protection of Human Rights Act to grant NHRC direct investigatory powers in cases involving armed forces.
Political & Executive Influence	Ensure a transparent and inclusive appointment process for NHRC members to uphold the institution's independence and credibility.
Limited Public Engagement	Enhance public outreach and awareness programs to make NHRC more accessible, especially in rural and marginalized communities.
Overburdened Case Load	Establish regional offices and delegate certain functions to State Human Rights Commissions to manage the caseload efficiently.
Lack of Diversity in Leadership	Ensure representation from diverse social groups, including women and minorities, in NHRC's composition to reflect pluralism.
Alignment with International Standards	Align NHRC's processes and functions with the Paris Principles to maintain its 'A' status accreditation with GANHRI.

NHRC: A "toothless tiger"?

1. In 2016, then NHRC Chairperson Justice H.L. Dattu, in an interview, described the Commission as a "toothless tiger," citing the lack of power to enforce its recommendations as the reason.
2. In the above-mentioned 2016 Manipur extrajudicial killings case, a Supreme Court bench also referred to the NHRC as a "toothless tiger."
3. In 2017, during the hearing of the same Manipur case, the Supreme Court reiterated that the NHRC had "unfortunately become a toothless tiger."
 - Extra Judicial Execution Victim Families Association v. Union of India (2016) – While hearing a case of extrajudicial killings in Manipur, the Supreme Court called the NHRC a "toothless tiger," highlighting its inability to effectively investigate and take action against armed forces.
 - D.K. Basu v. State of West Bengal (1997) – While laying down guidelines relating to arrest and detention, the Supreme Court pointed out the limitations of the NHRC in enforcing its recommendations.

❖ Introduction

History of CIC



- The jurisdiction of the Commission extends over all Central Public Authorities.
- The Commission has certain powers and functions mentioned in sections 18, 19, 20 and 25 of the RTI Act, 2005. These mainly include adjudication in second appeals, giving directions to maintain records, receiving and investigating complaints regarding inability to file RTI, imposing penalties, and preparing annual reports related to monitoring and reporting. The decisions of the Commission are final and binding.

❖ Vision

- To play a dynamic role in ensuring effective and efficient participation of all the stakeholders as envisaged by the RTI Act, through exercise of powers conferred on, and by performing functions assigned to the Central Information Commission in an accountable, responsive and transparent manner.

❖ Mission

- To ensure seamless and accessible access to information envisaged under the RTI Act, 2005, for the Indian citizens through a citizen-centric approach.

❖ Key Objectives

- To receive and inquire into complaints from any citizen as provided in Section 18 of the RTI Act, 2005.
- To receive and decide upon the second appeals from any citizen as provided in Section 19 of the RTI Act, 2005 and RTI rules 2012.
- To exercise the powers conferred on CIC under the RTI Act, 2005.
- To perform the duty of "Monitoring and Reporting" as provided in Section 25 of the RTI Act, 2005.

Constitution of Central Information Commission

- Under the provision of Section-12 of RTI Act 2005 the Central Government shall, by notification in the Official Gazette constitute a body to be known as the Central Information Commission.
- The Central Information Commission shall consist of the Chief Information Commissioner (CIC) and such number of Central Information Commissioners, not exceeding 10, as may be deemed necessary.

What is the eligibility criteria and appointment procedure for CIC/IC?

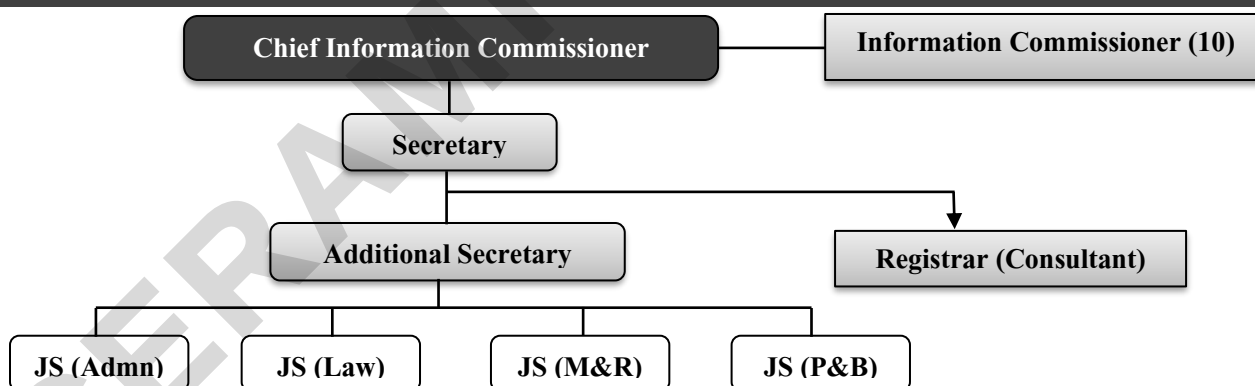
- Section 12(3) of the RTI Act 2005 provides as follows:
 - (i) The Prime Minister, who shall be the Chairperson of the committee;
 - (ii) The Leader of Opposition in the Lok Sabha; and
 - (iii) A Union Cabinet Minister to be nominated by the Prime Minister.

Note: The President will make the appointment based on the recommendation of the committee.
- Section 12(5) of the RTI Act 2005 provides that the Chief Information Commissioner and Information Commissioners shall be persons of eminence in public life with wide knowledge and experience in law, science and technology, social service, management, journalism, mass media or administration and governance.
- Section 12(6) of the RTI Act 2005 provides that Chief Information Commissioner or an Information Commissioner shall not be a Member of Parliament or Member of the Legislature of any State or Union Territory as the case may be, or hold any other office of profit or connected with any political party or carrying on any business or pursuing any profession.

Term of office, salaries of the Chief Information Commissioner and Information Commissioner in the Central Information Commission

- ❖ **Term of office** —The Chief Information Commissioner, or Information Commissioners, as the case may be, shall hold office for a period of three years from the date on which he enters upon his office.
- ❖ Under the original Act, the tenure of the **Chief Information Commissioner** and **Information Commissioners** was fixed at **5 years**. However, after the **2019 amendment**, the tenure was left to the **discretion of the Central Government**. Accordingly, through the **Right to Information Rules, 2019**, their tenure has been fixed at **3 years or up to the age of 65 years**, whichever is earlier.
 1. The **Chief Information Commissioner** is **not eligible for reappointment**.
 2. **Other Information Commissioners** may be reappointed, but their **total tenure as Information Commissioner and Chief Information Commissioner combined shall not exceed 5 years**.
- ❖ **Oath**—President
- Resignation** — President
- Removal (by the President under Section 14)** — as applicable to a **Member of the National Human Rights Commission**:
 - A. **After inquiry by the Supreme Court** — on grounds of **proved misbehaviour or incapacity**.
 - B. **Without inquiry by the Supreme Court** — on grounds of **insolvency, holding an office of profit, mental infirmity, physical incapacity, or moral turpitude**.
- ❖ **Deemed retirement from parent service on appointment** — If the Chief Information Commissioner or an Information Commissioner was in the service of the Central or State Government, they shall be deemed to have retired from such service from the date of their appointment in the Central Information Commission.
- ❖ **Salary** — **Salary fixed by the Central Government under the Right to Information Rules, 2019**.
 1. The Chief Information Commissioner shall receive a pay of Rs. 2,50,000 (Rupees two lakh and fifty thousand)(fixed) per month.
 2. Each Information Commissioner shall receive a pay of Rs. 2,25,000 (Rupees two lakh and twenty five thousand) (fixed) per month.

Organisational Structure



❖ Powers and Functions of Information Commissions (Central & State)

1. Disposal of Complaints (Section 18)

The Information Commissions can receive complaints if:

- No Public Information Officer (PIO) is appointed.
- The PIO or Assistant PIO refuses to accept an RTI application.
- No response is given within the RTI time limit.
- Information is denied or unreasonable fee is charged.
- False, incomplete, or misleading information is given.
- Any other issue arises while accessing records under the RTI Act.

Powers (Similar to Civil Court):

- Call and question witnesses under oath.
- Examine public records.
- Ask for documents and evidence.
- Issue summons.

2. Appellate Procedure (Section 19)**➤ First Appeal:**

- Should be filed to a **senior officer** in the same department (within 30 days).
- The time limit can be extended on valid grounds.

➤ Second Appeal:

- Must be submitted to the **Information Commission** within 90 days.
- The time limit can be extended on valid grounds.

➤ Third Party Participation: If the case involves third-party information, their views must be heard.**Powers of the Commission in Appeals:**

- Ensure public authority follows RTI provisions.
- May issue directions regarding:
 - ✓ Appointment of PIOs.
 - ✓ Publication of certain data.
 - ✓ Changes in record-keeping.
 - ✓ Training for staff.
- Can **compensate complainant, impose penalties, or reject** the application.
- **Its decisions are binding.**

3. Penalties (Section 20)**If the PIO:**

- **Refuses** to accept or respond without valid reason.
- **Delays or misleads.**
- Provides **wrong or incomplete information.**
- **Destroys information or obstructs access—**

Then:

- **Penalty** of ₹250 per day (up to ₹25,000 total).
- PIO shall be given an opportunity to be **heard before penalty is imposed.**
- Burden of proof shall be on PIO to prove their conduct was justified.
- In case of serious or repeated violations, **disciplinary action** can be recommended.

4. Reporting Procedure (Section 25)

Annual Reports: Central/State Information Commissions prepares an **annual report** on RTI implementation.

Each Ministry/Department Must:

- Must provide necessary data to the Commission.

The Report shall include:

- Total RTI requests received.
- Appeals filed and their outcomes.
- Fees collected under RTI.
- Efforts made by public authorities to improve RTI implementation.
- Suggestions for reforms or amendments to the RTI Act.
- Requests denied and under what sections.
- Disciplinary actions taken.

Central Information Commission (CIC) vs State Information Commission (SIC)

Criteria (RTI Act Section)	CIC	SIC
Establishment (Sec. 12)	- Statutory body under RTI Act, 2005 - Chief Information Commissioner (CIC) + up to 10 Information Commissioners (ICs) - Present Composition: CIC + 2 ICs	- Statutory body under RTI Act, 2005 - State Information Commission (e.g., RIC – 18 April 2006) - CIC + up to 10 ICs - Rajasthan: 1 CIC + 3 ICs
Appointment (Sec. 12)	- Appointed by the President 3-member selection committee: - Prime Minister - Leader of Opposition - Union Minister nominated by PM	- Appointed by the Governor 3-member selection committee: - Chief Minister - Leader of Opposition - Cabinet Minister nominated by CM (section -16)
Tenure (Sec. 13)	- Up to 3 years or 65 years, whichever is earlier as determined by Central Government - Reappointment not allowed, but IC can become CIC	- Up to 3 years or 65 years, whichever is earlier as determined by Central Government No reappointment allowed
Eligibility (Sec. 13)	- Expertise in law, science, technology, social services - Not a Member of Parliament - Should not hold office of profit Salary decided by Central Government	- Knowledge of law, science, tech, social service, administration - Not a Member of Legislature - Should not hold office of profit Salary decided by Central Government
Resignation	To the President	To the Governor
Removal (Sec. 14)	By President on proven misbehavior/incapacity or after reference to Supreme Court	By Governor on proven misbehavior/incapacity or after reference to Supreme Court
Annual Report (Sec. 25)	CIC → Central Government → Parliament (both Houses)	SIC → State Government → State Legislature
Penalty (Sec. 20)	CIC may impose penalty on PIO: ₹250/day up to ₹25,000	SIC may impose penalty on PIO: ₹250/day up to ₹25,000
Chairpersons	- First CIC: Wajahat Habibullah - First Female CIC: Deepak Sandhu - Current CIC (2023): Rajkumar Goyal (15 December 2025)	- First CSIC (Rajasthan): M.D. Korani (2006) - Current CSIC (as of July 2024): Mohan Lal Lather

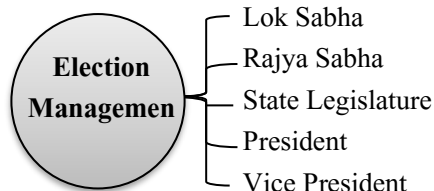
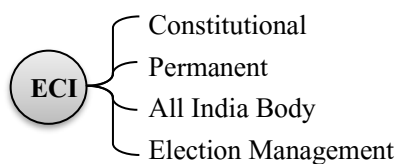
Factual Information of Rajasthan Information Commission (RIC)

- RIC Constituted on : **18 April 2006**
 - RIC Office** – Jaipur
 - RIC Bench** – Jodhpur (2023)
- Current State Chief Information Commissioner (SCIC) – Mohan Lal Lather**

Chief State Information Commissioners (Rajasthan)

S.N.	Name	Tenure	Special Notes
1	M.D. Korani	2006–2011	- First Chairperson - Longest tenure
2	T. Srinivasan	2011–2015	Served both as Member & Chairperson

3	Suresh Choudhary	2015–2018	
4	D.B. Gupta (Devendra Bhushan)	2020–2024	Former Chief Secretary, Rajasthan
5	M.L. Lather (Mohan Lal)	From 2024 onward	- Also served earlier as member - Former DGP of Raj. - Recipient of President's Police Medal



Composition of Election Commission

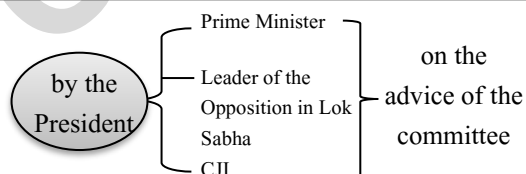
- **25 January, 1950 - 1989** → Initially, it was a **single-member commission**.
- **16 October 1989** → The President issued a notification appointing two additional Election Commissioners, making it a multi-member commission.
 - 1 → Mr. R. V. Perishastri (Chief Election Commissioner)
 - + 2 → S. S. Dhanoya
 - V. S. Sehgal
- **1 January 1990** → Following intense criticism, the President revoked the notification, restoring the Commission as a single-member body.

(S.S. Dhanoo vs Union of India controversy, 1990)

- The Supreme Court held that under Article 324(2), the power to create and abolish the office of other Election Commissioners is vested in the President.
- **1 October 1993** → The President issued an ordinance and again constituted the Commission as a multi-member body.
 - 1 → Mr. T. N. Seshan (Chief Election Commissioner)
 - + 2 → GVV Krishnamurthy
 - M.S. Gill
- **Current Status:** →
 - ① → Gyanesh-Kumar (26th, took charge from 19 Feb., 2025)
 - + ② → Dr. Vivek Joshi
 - Sukhbir Singh Sandhu

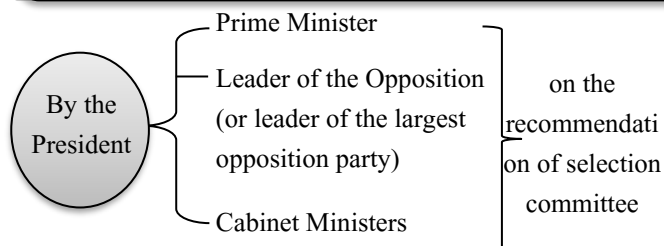
Anoop Barnwal vs Union of India case, 2023

A five-judge bench of the Supreme Court gave a unanimous decision that the appointment of the Chief Election Commissioner and two others →

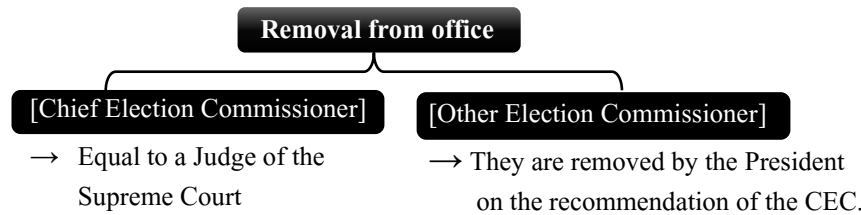


Chief and other Election Commissioners (Appointment, Conditions of Service and Tenure of Office) Act – 2023

Appointment of Chief Election Commissioner and two others



Resignation	– To the President.
Salary Allowances	– Similar to a judge of the Supreme Court. There is no disadvantageous change in these after appointment. (Determined since 1972)
Term	– Chief Election Commissioner – 6/65 years (whichever is earlier)

**Article 324**

→ Superintendence, Direction, and Control of Elections

324(1) → The Election Commission is entrusted with the superintendence, direction, and control of elections to the offices of the President, Vice-President of India, Parliament and State Legislatures.

324(2) → The Election Commission shall consist of the Chief Election Commissioner and such number of other Election Commissioners as the President may from time to time fix. The **Chief Election Commissioner** and **other Election Commissioners** are appointed by the **President**, in accordance with the **law made by Parliament**.

324(3) → When any other Election Commissioner is so appointed the Chief Election Commissioner shall act as the Chairman of the Election Commission.

324(4) → The **President** may also appoint **Regional Commissioners** after consultation with the **Election Commission**.

324(5) → The **conditions of service and tenure** of **Election Commissioners** and **Regional Election Commissioners** are determined by the **President**, subject to any **law made by Parliament**.

→ The **Chief Election Commissioner (CEC)** can be removed from office **in the same manner as a Judge of the Supreme Court of India**.

→ After appointment, the **service conditions of the Chief Election Commissioner shall not be varied to his disadvantage**.

→ **Other Election Commissioners and Regional Commissioners** may be removed by the **President**, **but only on the recommendation of the Chief Election Commissioner**.

324(6) → The necessary staff and officers required for the Election Commission's functioning shall be provided by the President or the Governor, as the case may be.

Article 324(1) — 19th Constitutional Amendment Act, 1966: The power of the **Election Commission** to constitute **Election Tribunals** for disputes relating to **Parliamentary and State Legislature elections** was **abolished**.

Article 325

→ No Person to be Ineligible for Inclusion in Electoral Roll on Grounds of Religion, Race, Caste, or Sex

No person shall be disqualified from being included in an electoral roll **only on the grounds of religion, race, caste, sex, or any of these factors**.

→ This Article guarantees the right to equality in voting.

→ It ensures that the voter list is based on citizenship and qualifications, not on social or religious identity.

Article 326

→ Elections Based on Adult Suffrage

“Elections to the Lok Sabha and State Legislative Assemblies shall be conducted on the basis of adult suffrage.”

61st Constitutional Amendment Act, 1988 – Reduced the minimum voting age from 21 years to 18 years.

- In India, as per the current law, the Right to Vote is a statutory right, not a fundamental or constitutional right.
- The Constituent Assembly had rejected the proposal to include it in the list of fundamental rights.
- The Supreme Court, in the Kuldip Nayar case (2006) and later in the Anoop Baranwal case (2023), also clarified that it is only a legal right conferred under Section 62 of the Representation of the People Act, 1951.
- However, UPSC, in Civil Services Prelims 2017, considered the right to vote and the right to be elected as constitutional rights.

Article 327 → Parliament has the power to make laws concerning all matters related to elections.

Article 328 → The **State Legislature has the power to make laws on matters relating to elections, provided Parliament has not enacted a law on that subject.**

Article 329 → Prohibition of judicial interference in electoral matters.
Once the election process has begun, courts cannot interfere in it. (An election can be challenged only through an election petition in the High Court, and only after the election is over.)

- **Delimitation of constituencies or allocation of seats shall not be questioned in any court.**
- **Election disputes** relating to **Parliament or State Legislatures** can be questioned **only through an election petition.**

39th Constitutional Amendment Act, 1975: Article 329A, which barred judicial interference in the elections of the **Prime Minister and the Speaker of the Lok Sabha.**

44th Constitutional Amendment Act, 1978: Article 329A was repealed.

Constitutional Provisions Ensuring Independence of the Election Commission

- It is a constitutional body, i.e., created by the Constitution, not by the Parliament or Executive.
- Appointment of the Chief Election Commissioner + 2 Election Commissioners is done by the President.
- The **Chief Election Commissioner** can be removed **only through the same procedure as that prescribed for a Judge of the Supreme Court.**
- The status of the Chief Election Commissioner is equivalent to a judge of the Supreme Court.
- No post-retirement benefits or office can be offered that might influence their independence.
- Their salaries and allowances are charged upon from the Consolidated Fund of India.

Advisory Functions of the Election Commission

Advisory functions

- Advising the President on matters relating to disqualification of Members of Parliament (Article 103 (2)).
- Advising the Governor on disqualification of members of the State Legislature (Article 192 (2)).
- Advising the President on the feasibility of conducting elections in a state under President's Rule.

Administrative Functions

- Preparing the electoral rolls and revising them from time to time.
- Granting recognition to political parties and allotting election symbols to them.
- Notifying the schedule and programmes of elections and scrutinizing nomination papers.
- Determining the territorial constituencies on the basis of the Delimitation Commission Act.
- Framing the Model Code of Conduct.
- Cancelling polling in case of rigging or booth capturing.
- Registering political parties for elections and granting them the status of national or state parties based on their electoral performance.

Limitations of the Election Commission:

1. Doubts over independence and impartiality:
 - Appointed by the Central Government, which raises suspicion of political interference.
 - Suspected benefit after retirement.
2. Controversy regarding the accuracy of the electoral roll and Electronic Voting Machines (EVMs).
3. Allegations of bias in enforcing the Model Code of Conduct.
4. Lack of control over election expenditure and black money.
5. Inability to implement electoral reforms effectively.
6. The number of members is not mentioned in the Constitution.
7. The qualifications are not mentioned in the Constitution.
8. Lack of self-reliance of the Commission.

Committees for Reform

Santhanam Committee - 1962	Dinesh Goswami Committee - 1990	Tarkunde Committee - 1974	Inderjit Gupta Committee - 1998
• Provision for minimum eligibility criteria for candidates involved in elections. • Recommendation for periodic delimitation of constituencies.	• Use of Electronic Voting Machines (EVMs) in elections. • Speedy disposal of election-related petitions. • Photo-based voter identity cards.	• Recommendation to reduce the voting age to 18 years. • Political parties should submit details of their candidates' election expenditure to the Election Commission. • Provision for a fixed amount of nomination deposit.	• The expenditure of Lok Sabha and Legislative Assembly elections should be borne by the government.

EVM (Electronic Voting Machine)

(1982)	(1988)	(1999)	(2004)
• Used in 1st Kerala Assembly elections.	• Amendment in the Representation of the People Act, 1951 to allow the use of EVMs.	• Experiment for the first time for the entire state in Goa elections.	• Used for the first time in Lok Sabha elections.

- An EVM can record a maximum of 2,000 votes.
- A maximum of 5 votes can be cast in one minute.

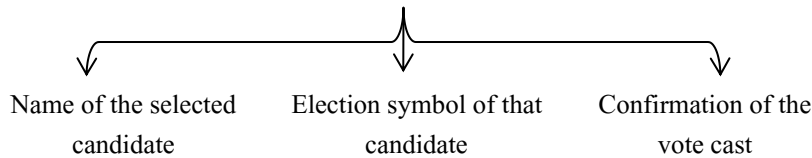
NOTA

- It provides the voter with an option to not vote for any of the candidates.
- In the **People's Union for Civil Liberties (PUCL) v. Union of India (2013)** case, the **Supreme Court recognized the right of voters to choose NOTA (None of the Above)**.
- The Election Commission used NOTA for the first time in the 2014 Lok Sabha elections.
- If NOTA receives the highest number of votes, the election will not be cancelled; rather, the candidate with the next highest number of votes will be considered elected.

Recommendations of the 255th Report of the Law Commission:**(Published in 2015)**

1. Transparency should be brought in the process of appointment of Election Commissioners (it recommended the formation of a collegium).
2. The Election Commission should be given constitutional protection and powers (the removal procedure for other Election Commissioners should be the same as that for the Chief Election Commissioner).
3. The Election Commission should be granted more powers (e.g., punitive powers to take strict action in case of violation of the Model Code of Conduct).
4. Control over criminalization of politics (candidates charged with serious offences should be disqualified from contesting elections).
5. Increase transparency in election expenditure limits.
6. The Election Commission should be given the power to act suo motu.

VVPAT (Voter Verifiable Paper Audit Trail): It is a device connected to the EVM. When a voter casts a vote on the EVM for any candidate, the VVPAT prints a paper slip which contains:



(2013) → First used in Noksen Assembly constituency, Nagaland.

(2014) → Used in some parliamentary constituencies on a trial basis.

(2019) → For the first time, VVPATs were deployed at all polling stations during the Lok Sabha elections.

Note → The Supreme Court directed that in every Assembly constituency, the paper slips of 5 VVPAT machines must be matched with the EVM results. (Direction given in 2019)

Facts

- First Chief Election Commissioner (CEC) – Sukumar Sen (1950–1958)** — Also served as the CEC of the African country Sudan.
- Longest Serving CEC – *K.V.K. Sundaram (1958 - 1967)*
- Shortest tenure — V. S. Ramadevi (16 days)** — Padma Bhushan Award
- Current Chief Election Commissioner – *Shri Gyanesh Kumar (Since 2025)* [26th CEC]
- Other Election Commissioners:** (i) Dr. Sukhbir Singh Sandhu (2024) (ii) Dr. Vivek Joshi
- From the tenure of the **third Chief Election Commissioner**, the provision of a **term of 6 years or up to 65 years of age** (whichever is earlier) came into practice.
- Mrs. V.S. Rama Devi* was the only female Chief Election Commissioner (Acting).
- T.N. Seshan* was the only CEC of India who contested the Presidential election after retirement.

List of Chief Election Commissioners of India

S.No.	Name	Tenure
1	Sukumar Sen	1950 – 1958
2	K.V.K. Sundaram	1958 – 1967
3	S.P. Sen Verma	1967 – 1972
4	Dr. Nagendra Singh	1972 – 1973
5	T. Swaminathan	1973 – 1977
6	S.L. Shakdhar	1977 – 1982
7	R.K. Trivedi	1982 – 1985
8	R.V.S. Peri Shastri	1986 – 1990
9	V.S. Rama Devi (<i>Acting</i>) (First female CEC of India)	1990 - 1990
10	T.N. Seshan	1990 – 1996
11	M.S. Gill	1996 – 2001
12	J.M. Lyngdoh	2001 – 2004
13	T.S. Krishnamurthy	2004 – 2005

S.No.	Name	Tenure
14	B.B. Tandon	2005 – 2006
15	N. Gopalaswami	2006 – 2009
16	Naveen Chawla	2009 – 2010
17	S.Y. Quraishi (First Muslim CEC)	2010 – 2012
18	V.S. Sampath	2012 – 2015
19	H.S. Brahma	2015-2015
20	Nasim Zaidi	2015 – 2017
21	Achal Kumar Jyoti	2017 – 2018
22	Om Prakash Rawat	2018 - 2018
23	Sunil Arora	2018 – 2021
24	Sushil Chandra	2021 – 2022
25	Rajiv Kumar	2022 – Feb 2025
26	Shri Gyanesh Kumar	From 19 Feb 2025

Sub-Topic 01 Political Party Registration

In India, any political party must register with the Election Commission to receive recognition as a valid political entity. This process is governed by Section 29A of the Representation of the People Act, 1951.

Registration Process:

1. **Time Limit for Application:** A political party must apply for registration with the Election Commission within 30 days from its formation.
 2. **Proposed Name:** The party's name should not be similar to the name of any recognized political party, alliance, or any other well-established party.
 3. **Required Documents:** At the time of application, the following points must be **clearly specified**:

• Name of the political party • Name of the party president, secretary, etc. • Process for acquiring membership • Internal democracy • Disciplinary procedures	• Address of the headquarters • Party's aims and objectives • Organizational structure • Transparency in funds and accounts
--	--
 4. **Publication of Information:** After submission of the application, the party must publish the details in two national and two local newspapers to inform the public, allowing space for objections, if any.
 5. **Discretionary powers of Election Commission:** The Election Commission reviews any objections and, if satisfied, registers the party.
- **Section 29B — Political parties have the right to accept donations.**
 - **Section 29C — Disclosure of donations received by political parties is mandatory.**

Benefits to a registered party:

- ❖ A registered party can obtain electoral symbols under the Election Symbols (Reservation and Allotment) Order, 1968.
- ❖ It can avail tax exemptions under the Income Tax Act.
- ❖ It gains the right to file appeals with the Election Commission.
- ❖ The party enjoys official recognition and legitimacy in political activities.

Chief Election Commissioner and Other Election Commissioners (Conditions of Service and Term of Office) Act, 2023

This act replaces the Election Commission Act, 1991 and sets the conditions for the appointment, service, and tenure of the Chief Election Commissioner (CEC) and Election Commissioners (ECs).

Key Provisions:

1. **Appointment Process:** The CEC and EC will be appointed by the President.
 - A selection committee will be constituted for the appointment, which will consist of the following members.
 - Prime Minister
 - Leader of the Opposition in the Lok Sabha
 - A Union Cabinet Minister recommended by the Prime Minister
 - The Selection Committee will make recommendations from a list of five candidates prepared by a Search Committee, which will be chaired by a Cabinet Secretary.

The **Search Committee** shall be **chaired by the Law Minister**, and the **two members** shall be officers of the **rank of Secretary to the Government of India**.

2. **Eligibility Criteria:** Candidates must be honest and impartial.
 - They must have sufficient experience in public administration, electoral process, or constitutional matters.
 - They should have held a senior position in the Indian government or at an equivalent level.
3. **Tenure:** The tenure of the CEC and ECs is fixed at 6 years or until the age of 65, whichever is earlier.
 - Reappointment is not allowed. If an EC is promoted to the position of CEC, their total term will not exceed 6 years.
4. **Service Conditions:** The **Chief Election Commissioner (CEC)** and **Election Commissioners (ECs)** are entitled to **salary and allowances equivalent to those of a Judge of the Supreme Court**, and **other facilities** (such as transport allowance, medical facilities, etc.) are determined by the **President from time to time (Sections 10 and 15)**.
 - Previously, their benefits were similar to those of Supreme Court judges.
5. **Removal Process:** The CEC can only be removed through a process similar to that of a Supreme Court judge under Article 124(4) of the Constitution.
 - Any Election Commissioner can only be removed on the recommendation of the Chief Election Commissioner.

Controversies and Criticism:

- ❖ **Reduction in the role of the judiciary:** This Act excludes the Chief Justice of India (CJI) from the selection committee, whereas the Supreme Court, in the Anoop Baranwal v. Union of India (2023) case, had recommended including the CJI.
- ❖ **Question on independence:** Fixing the salary of the CEC and ECs at par with the Cabinet Secretary may affect their independence, as this salary is determined by the government, while the salaries of Supreme Court judges are enacted by Parliament.

Conclusion: This Act does establish the appointment process of the Election Commission within an institutional framework, but its legality and the Commission's independence are still subject to judicial review. Some provisions of the Act potentially conflict with the constitutional autonomy and the principle of impartiality of the Election Commission.

Sub-Topic 03 One Nation One Election

'One Nation, One Election' refers to the idea of conducting the Lok Sabha (National Parliament) and all State Legislative Assembly elections at the same time, so as to streamline the electoral process.

Constitutional Context:

- According to Article 83(2) and Article 172(1), the term of the Lok Sabha and State Legislative Assemblies is five years unless dissolved earlier.
- To implement "One Nation, One Election", amendments are required in the Constitution, specifically to Article 82A and Article 324A, to ensure the smooth conduct of elections.

Historical Background:

- Elections for Lok Sabha and State Legislative Assemblies were held together in 1952, 1957, 1962, and 1967.
- The **premature dissolution of certain assemblies in 1968-69** disrupted this cycle, leading to asynchronous elections

Recent Developments:

- **Ramnath Kovind Committee (2023):-** A committee headed by former President Ram Nath Kovind submitted its report in March 2024.

Key Recommendations:

- A fixed election date should be established for holding elections together starting from 2029.
- 18 constitutional amendments should be made, particularly to Articles 83, 172, 324A, and 325.
- The term of State Legislative Assemblies may need to be extended or shortened to synchronize their schedules.
- The Election Commission should create a unified voter list and a shared identification card for the elections.
- **129th Constitution Amendment Bill:** A bill was presented in the Lok Sabha, but it was not passed. The bill was forwarded to a Joint Parliamentary Committee (JPC) for further discussion.

- **Statement by Finance Minister Nirmala Sitharaman (April 2025):** The government has indicated that the One Nation, One Election system could be implemented after 2029.

Benefits:

- Significant reduction in election expenditure.
- Policy stability and reduced impact of Model Code of Conduct.
- Efficient deployment of administrative and security resources.
- Potential increase in voter participation.
- Reduction in populist election promises.

Challenges:

- Requires **extensive constitutional and statutory amendments**
- Synchronization issues in case of **no-confidence motions** or **premature dissolutions**
- **Possible impact on federal structure and state autonomy**
- Logistical and financial feasibility
- **Need for political consensus**

Conclusion: "One Nation, One Election" is an ambitious proposal aimed at simplifying the electoral process and making it more efficient. However, its implementation requires constitutional amendments, political consensus, and administrative preparedness. Currently, the plan is moving towards implementation possibly after 2034.

Sub-Topic 04 Special Intensive Revision

- "Special Intensive Revision" is a process in which the Election Commission of India (ECI) conducts a complete verification of the electoral roll to add new eligible Voters, remove the names of deceased or permanently relocated persons, and correct incorrect entries.
- This is carried out when there are major changes, migration, law-and-order situations, or any other special requirement in a state.
- Under Section 21 of the Representation of the People Act, 1950, the preparation and revision of the electoral roll is carried out under the supervision of the Election Commission.
- As per Section 21(3), the Election Commission may order a special revision at any time.

Sub-Topic 05 Removal of Registered Unrecognised Political Parties (RUPP) from the List

- At present, the Election Commission has six national parties, 67 state-level parties, and 2,854 Registered Unrecognised Political Parties (RUPPs).
- On 9 August 2025, after conducting an inquiry, the Election Commission of India (ECI) removed 334 Registered Unrecognised Political Parties (RUPP) from its list.
- As per the guidelines on registration of political parties, if a party does not contest elections continuously for six years, it will be removed from the list of registered parties. In addition, under Section 29A of the Representation of the People Act, 1951, parties are required to furnish details at the time of registration, including the party name, its address, and the names of office bearers, and must inform the Election Commission without delay of any changes therein.
- At present, the ECI has six national parties, 67 state parties, and 2,854 RUPPs registered.
- These RUPPs will not be entitled to any benefits under the relevant provisions of the Income Tax Act, 1961, and under Sections 29B and 29C of the Representation of the People Act 1951, and with the Election Symbols (Reservation and Allotment) Order, 1968.
- Any aggrieved party may appeal to the Commission within 30 days from the date of issuance of this order.

Attributes	Union Public Service Commission (UPSC)	State Public Service Commission (SPSC)	Joint Public Service Commission (JPSC)
Constitution of the body	By the Constitution of India	By the Constitution of India	Under the Act passed by Parliament
Appointment	By the President	By Governor	By the President
Terms of Service	At least half of the members have 10 years of experience in the Central or State Public Service Commission.	At least half of the members have 10 years of experience in the Central or State Public Service Commission.	At least half of the members have 10 years of experience in the Central or State Public Service Commission.
Tenure of office	6 Years/65 years	6 Years/ 62 years [By the 41st Constitutional Amendment]	6 Years/ 62 years [By the 41st Constitutional Amendment]
Resignation	To the President.	To the Governor	To the President.
Removal Power	After the investigation by the S.C. based on Charges of misconduct by the President	After the investigation by the S.C. based on Charges of misconduct by the President	After the investigation by the S.C. based on Charges of misconduct by the President
Reappointment	Chairman → ✗ Member → They can be the Chairman, but not members.	Chairman → They can be the Chairman and Members of UPSC. Member → They can be the Chairman and Members of UPSC.	Chairman → They can be the Chairman and members of UPSC and JPSC. Member → They can be the Chairman and Members of UPSC.
Report	To the President.	To the Governor	To the President.
Salary & Expenses	Charged on the Consolidated Fund of India	Charged on the Consolidated Fund of the State	Charged on the Consolidated Fund of the State (division among the respective States)
Suspended by	President	Governor	President

Article 315 → Public Service Commission for Union and States

Article 316 → Appointment and tenure of members

Note → (The Constitution does not prescribe the number of members and qualifications.)

Article 317 → Removal and suspension of members of the Public Service Commissions.

On the ground of misconduct

- ✓ By President, based on the investigation of S.C.

Other grounds

- ✓ Declared bankruptcy
- ✓ Mental/physical Incapacity
- ✓ Pay Out of Duty
- ✓ Direct removal by the President

Article 318

→ The number of members and employees of the Public Service Commissions and the conditions of service shall be determined by the President.

Article 319

→ Restriction on the members and Chairman of the Commission from holding any office after retirement.

Article 320

→ Functions of Public Service Commissions

Functions of UPSC :

- Organize examinations for All India Services.
- Organize examinations for State Services upon the request of two or more states.
- To formulate and amend the rules of recruitment for various services and posts under the Government.
- To recommend appointments, promotions and transfers to civil services posts.
- To recommend disciplinary action against civil servants.
- The UPSC submits the report to the President → every year and the President lays it on the table of the House.

Article 321

→ Power to extend the functions of Public Service Commissions (Parliament by law).

Article 322

→ Expenditure of the Public Service Commission.

UPSC → Charged on the Consolidated Fund of India

SPSC → Charged on the Consolidated Fund of the State

Article 323

→ Reports of the Public Service Commission.

UPSC → President → Parliament

SPSC → Governor's → Legislature

Current Status of UPSC Members → 1 + 8

Chairman → Dr. Ajay Kumar

Members (8) →

Lt Raj Shukla	Suman Sharma	Vidyut Bihari Swain	Dr. Dinesh Dasa	Sheel Vardhan Singh	Sanjay Verma	Sujata Chaturvedi	Anuradha Prasad
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Drawbacks / Criticisms in UPSC

- Excessively lengthy selection process.
- Lack of accountability.
- Slow pace of reforms.
- Inequality of optional subject system.
- Minimal contributions in training and pre-service suggestions.
- Lack of transparency in the recruitment process.
- Inadequate digital transparency.
- Regional imbalance & language bias.
- Lack of sufficient resources and manpower.
- Absence of institutional dialogue.

Some of the key committees for reforms

1. Gopalaswamy Parthasarathy Committee (1970's)
2. Kothari Commission (1974-76)
3. Chattopadhyay Committee (1989)
4. Venkatachaliah Commission (2000-02)
5. Second Administrative Reforms Commission (2008)
6. Reforms initiated by UPSC on its own discretion.
7. Special Details –
→ **First Chairman** – Ross Barker (1926–1932)

- **Chairman at the time of Independence** – H.K. Kripalani (April 1947–1949)
- **First Woman Chairman** – R.M. Bathew (1992–96)

Limitations of the Commission

1. The Commission is not consulted while providing reservations in government jobs.
2. The President can modify the posts, services, and subjects under the Commission's jurisdiction.
3. As per the Constitution, the President can make rules regarding All India Services and posts, for which consultation with the Commission is not required.

NOTE: Rules made by the President must be laid before both Houses of Parliament for at least 14 days. Parliament may amend or annul them.

Special Details –

- First Chairman – Ross Barker (1926–1932)
- Chairman at the time of Independence – H.K. Kripalani (April 1947–1949)
- First Woman Chairman – R.M. Bathew (1992–96)

List of UPSC Chairmen

No.	Name of Chairman	Tenure
1.	Sir Ross Barker	1926–1932
2.	Sir David Petrie	1932–1936
3.	Sir Eyre Gordon	1937–1942
4.	Sir F. W. Robertson	1942–1947
5.	H. K. Kripalani	1947–1949
6.	R. N. Banerjee	1949–1955
7.	N. Govindarajan	1955–1955
8.	V. S. Hejmadi	1955–1961
9.	B. N. Jha	1961–1967
10.	K. R. Damle	1967–1971
11.	Randhir Chandra Sharma Sarkar	1971–1973
12.	Akhlaqur Rahman Kidwai	1973–1979
13.	M. L. Sharahre	1979–1985
14.	H. K. L. Kapoor	1985–1990
15.	J. P. Gupta	1990–1992
16.	R. M. Bathew	1992–1996
17.	S. J. S. Chhatwal	1996–1996
18.	J. M. Qureshi	1996–1998
19.	Surendra Nath	1998–2002
20.	Purna Chandra Hota	2002–2003
21.	Mata Prasad	2003–2005
22.	S. R. Hashim	2005–2006
23.	Gurbachan Jagat	2006–2007
24.	Subir Dutta	2007–2008
25.	D. P. Agrawal	2008–2014
26.	Rajni Razdan	2014–2014

27.	Deepak Gupta	2014–2016
28.	Alka Sirohi	2016–2017
29.	David R. Syiemlieh	2017–2018
30.	Vinay Mittal	2018–2018
31.	Arvind Saxena	2018–2020
32.	Pradeep Kumar Joshi	2020–2022
33.	Dr. Manoj Soni	2022–2024
34.	Preeti Sudan	From August 2024 to May 2025
35.	Dr. Ajay Kumar	From 15 May 2025 – Ongoing

Current UPSC Chairman and Members

No.	Officiate	Tenure
1	Dr. Ajay Kumar (Chairman)	From 15 May 2025 – Present
2	Raj Shukla (Member)	Since 2022 – Present
3	Suman Sharma (Member)	Since 2023 – Present
4	Vidyut Bihari Swain (Member)	Since 2023 – Ongoing
5	Dinesh Dasa (Member)	Since 2023 – Present
6	Sheelvardhan Singh (Member)	Since 2024 – Present
7	Sanjay Verma (Member)	Since 2024 – Present
8	Sujata Chaturvedi (Member)	Since 2025 – Present
9	Anuradha Prasad (Member)	Since 2025 – Present

If the legislatures of two or more states demand the formation of a Joint Public Service Commission (JPSC), then the Parliament can establish it through an Act.

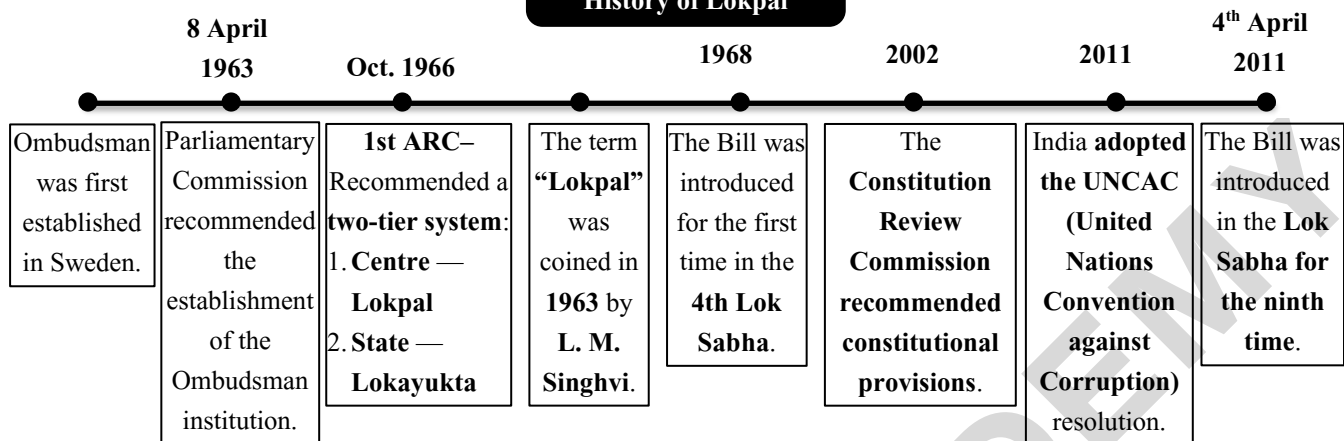
- ❖ **Appointment** – Chairman and members are appointed by the President.
- ❖ **Tenure** – 6 years or 62 years of age (whichever is earlier)
- ❖ **Resignation** – The Chairman and members can be removed by the President.
 - They can also resign by submitting a resignation letter addressed to the President.
- ❖ **Annual Report** – Submitted to the Governor of the concerned state.

	UPSC	RPSC/SPSC	JPSC
Nature	Constitutional	Constitutional	Statutory
Formation	President	Governor	Parliament (with state legislatures' consent)
Appointment of Chairman & Members	President	Governor	President
Tenure	6 years / 65 years	6 years / 62 years	6 years / 62 years
Resignation	President	Governor	President
Qualification	- Not mentioned in Constitution - At least half the members must have 10 years' experience under Central/State government		
Report	President	Governor	President
Functions Determined By	Parliament	Legislature	Parliament
Suspension	President	Governor	President
Removal	President	President	President
Resignation	President	Governor	President
Number of Members Decided By	President	Governor	President

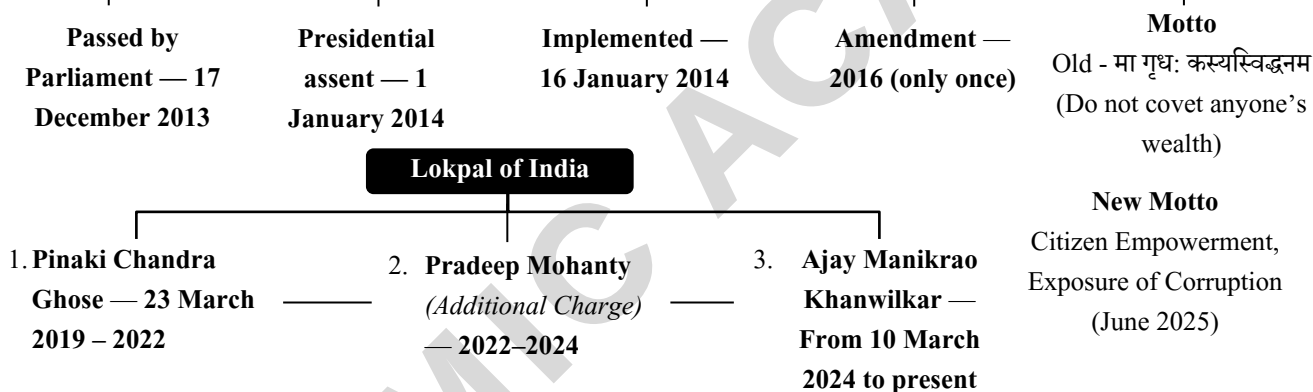
❖ **Constitutional Provisions related to Union and State Public Service Commissions:**

Article	Subject Matter
315	Public Service Commissions for the Union and the States
316	Appointment and term of office of members
317	Removal and suspension of members of a Public Service Commission
318	Power to make regulations as to conditions of service of members and staff
319	Prohibition on holding of office by members or chairman after retirement
320	Functions of Public Service Commissions
321	Power to extend functions of Public Service Commissions
322	Expenses of Public Service Commissions
323	Reports of Public Service Commissions

History of Lokpal



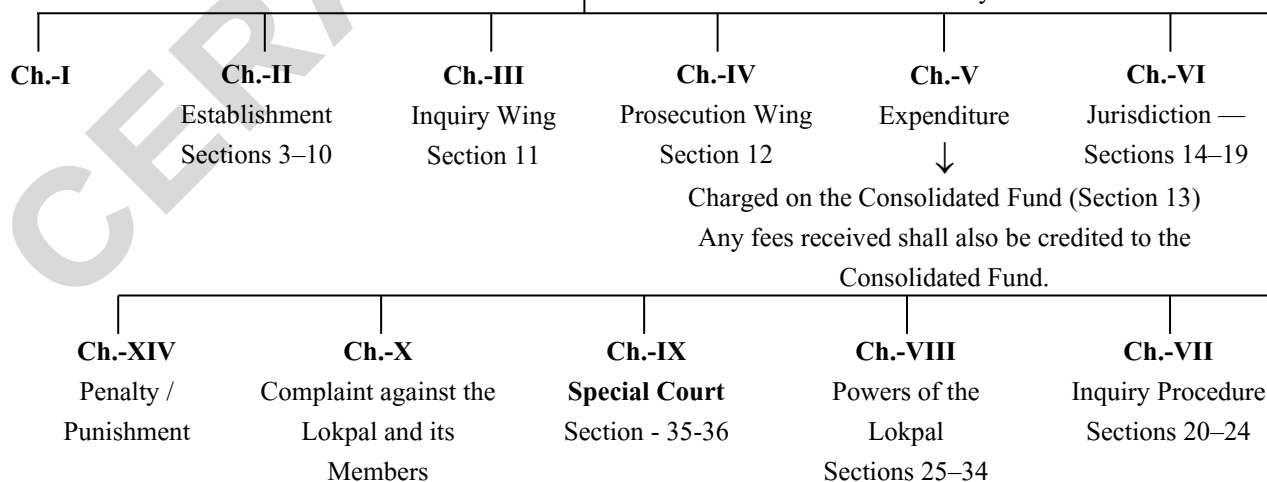
Lokpal and Lokayuktas Bill, 2011



Lokpal Act, 2013

(Act No. 01 of 2014)

- Part I — Definitions
- Part II — Lokpal
- Part III — Lokayukta



Establishment of Lokpal (Section 3)

- **Chairperson** — A former or sitting Chief Justice or Judge of the Supreme Court, or a distinguished person with special knowledge and at least 25 years' experience in anti-corruption policy, public administration, vigilance, or finance.
- **Members** — Up to 8 members = 50% shall be Judicial Members + 50% shall be Non-Judicial Members.
- **At least 50% of the Members** shall be from SC, ST, OBC, minorities, and women categories.
- **Members must not be MPs or MLAs.**
 - Minimum age — 45 years
 - Must not be a member of a Panchayati Raj Institution or Municipality
 - Must not have been removed or dismissed from Union or State service
 - Must not hold an office of profit or any political office

Appointment — By the President**Section 4 — Selection Committee**

- **Selection Committee** consists of:
 1. **Prime Minister** — *Chairperson*
 2. **Speaker of the Lok Sabha**
 3. **Leader of the Opposition in the Lok Sabha**
 4. **Chief Justice of India or a Judge of the Supreme Court nominated by the CJI**
 5. **One eminent jurist** — *recommended by the above members*

→ **Appointment** is made by the **President**.

Search Committee —

1. **Minimum 7 members**
2. **Constituted by the Selection Committee**
3. **At least 50% members from SC/ST/OBC/Minorities/Women**

Selection Committee —

1. May consider names other than those recommended by the Search Committee.
2. May frame its own procedure for selection.

Section 5 — The President may initiate the process of appointing a new Chairperson or Members three months before the expiry of the incumbent's term.

Section 6 — **Tenure: 5 years or up to 70 years of age**, whichever is earlier.

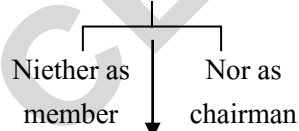
Resignation: To the President; or removal as provided under **Section 37**.

Section 7 — **Salary and Conditions of Service:**

- **Chairperson** — Same as the **Chief Justice of India**.
- **Members** — Same as **other Judges of the Supreme Court**.

Section 8 — **After Demitting Office (Lokpal and Members) -**

(i) No reappointment

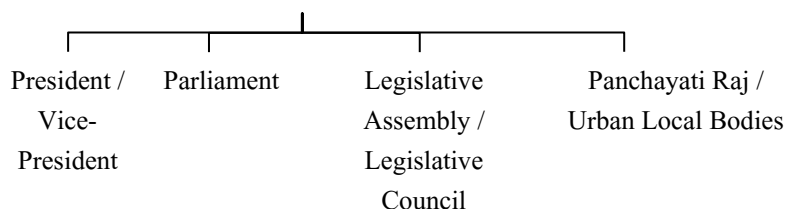


Note: A Member may be eligible for appointment as Chairperson, but the total tenure as a Member and as Chairperson together shall not exceed 5 years.

(ii) No diplomatic assignment or administrative post

(iii) Shall not hold any office of profit

(iv) Not eligible to contest elections for 5 years



Section 9 — Lokpal (Chairperson)

- In case of a **vacancy or temporary absence** of the Chairperson, the **President appoints the senior-most Member as the Acting Chairperson.**

Section 10 — Secretary of the Lokpal

- The **Secretary** shall be an officer of the **rank of Secretary.**
- Appointed by the **Chairperson** (from a panel of names sent by the **Central Government**).
- **Service conditions** are decided by the **Lokpal Chairperson**, with **approval of the President.**

Who can file a complaint?

- Any person / organisation / trust
- Individually or online
- Generally in English
- non-Indians as well
- No fee
- Identity proof must be attached with the complaint

Section 11 — Inquiry Wing

- The **Inquiry Wing** shall be **constituted by the Lokpal (Chairperson).**
- It shall be headed by the **Director of Inquiry.**
- The **Inquiry Report** shall be submitted to the **Lokpal within 60 days.**
- Until the Inquiry Wing is formally constituted, the **Central Government shall provide officers for conducting inquiries.**

Section 12 — Prosecution Wing

- The **Prosecution Wing** is constituted **on the same lines as the Inquiry Wing.**
- **Note:** The **Chairperson appoints** both the **Director of Inquiry** and the **Director of Prosecution.**

Section 14 — Jurisdiction of the Lokpal

1. **Prime Minister / Former Prime Minister**
 - (i) **No inquiry** in matters relating to **international relations, external security, public order, space, atomic energy, or internal security.**
 - (ii) In **other matters**, inquiry can be conducted **only if at least two-thirds of the Lokpal Members approve it.**
2. **Former and present Union Ministers**
3. **Former and present Members of Parliament (MPs)**
4. **Central Government officials of Group A, B, C, and D**
5. **Persons serving or having served in any body/board/corporation/authority/autonomous body:**
 - Established by an **Act of Parliament**, or
 - **Wholly or partly funded or controlled by the Central Government**
(If such body is created by a State law, prior permission of the State Government is required)
6. **Directors, Managers, Secretaries, or other office-bearers of any society, trust, or body receiving foreign contribution of ₹10 lakh or more**
7. **Officers of the above institutions whose salary is higher than the salary fixed by the Central Government**
8. **Persons accused of corruption under the Prevention of Corruption Act, 1988, relating to the Central Government**

No Jurisdiction (Exceptions):

1. Matters relating to **votes or opinions expressed by MPs inside Parliament**
2. **Section 37** — No inquiry into **complaints against the Lokpal Chairperson or Members themselves**

Section 15 — Matters pending before a court or a committee shall not be affected.

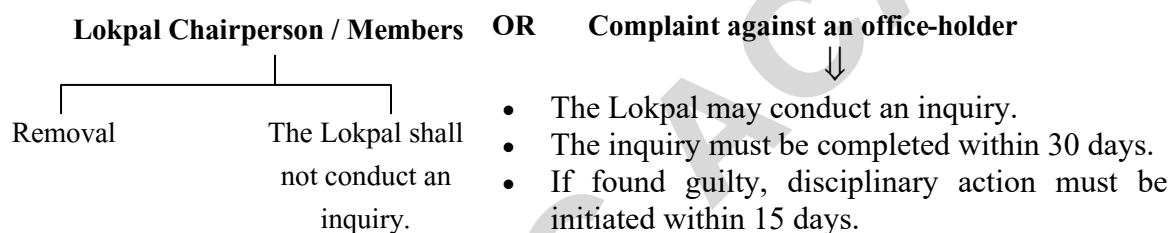
Section 16 — Benches of the Lokpal

- The Chairperson of the Lokpal exercises these powers.
- The Chairperson shall constitute Benches consisting of two or more Members.
- At least one Judicial Member must be included.
- Presiding authority: The Lokpal Chairperson or a Judicial Member.
- Place: New Delhi or any other place as decided by the Lokpal.
- Allocation and transfer of work among Benches, and their locations, are decided by the Lokpal.
- Decisions are taken by majority.
- A Bench of at least three Members shall consider the report and may permit the investigating agency to initiate proceedings.

Lokpal — Powers

- The Lokpal has powers to summon persons, conduct searches, and exercise powers of a civil court, etc.
- It also has the authority to attach (seize) property.
- The Central Government may establish Special Courts to assist the Lokpal, in such number as specified by the Lokpal.

Section -37:-



Method – I

Removal on the ground of proved misbehaviour

- For this purpose, a petition signed by 100 Members of Parliament shall be submitted to the President, who will refer it to the Supreme Court for inquiry.
- During the inquiry, the President may suspend the concerned person.
- After the inquiry, if the charges are proved, the President shall remove the person from office by an order.

Method – II

Removal by the President without inquiry, if the person is:

- | | |
|--|---|
| (i) Insolvent | (ii) Holding an office of profit |
| (iii) Disqualified under service rules | (iv) Mentally or physically incapacitated |

CHAPTER – 14

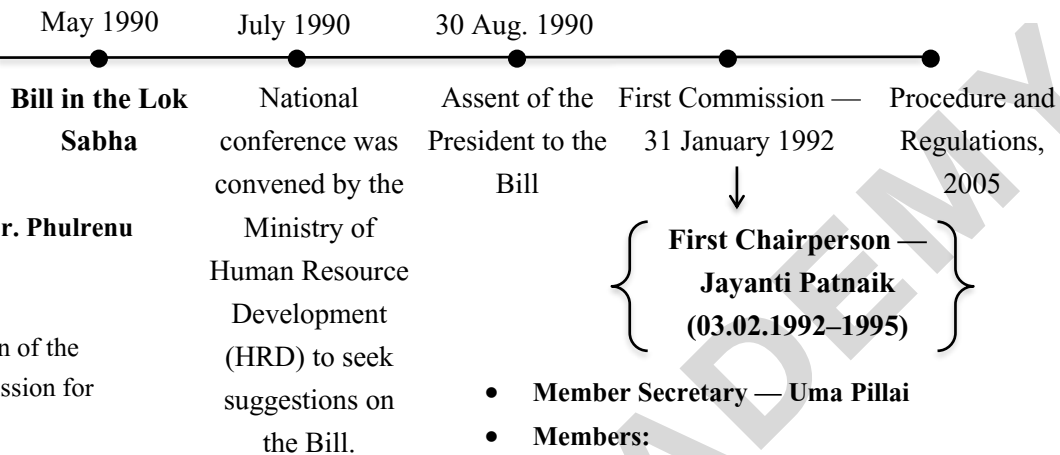
Punishment:

1. False, frivolous, or vexatious complaint — ₹1 lakh fine or 1 year imprisonment.
2. Lokpal — Shall submit a report annually to the President regarding such cases.

History

Committee on the Status of Women in India (CSWI)

- 1971
- **Chairperson: Dr. Phulrenu Guha**
- **Report : 1974**
- Recommendation of the National Commission for Women



National Commission for Women (NCW)

- Statutory Commission
- It works for women on issues such as child marriage, legal awareness programmes, family women's Lok Adalats, the Dowry Prohibition Act, 1961, and related matters.
- In certain cases, National Commission for Women may also take suo motu cognizance.

National Commission for Women Act, 1990

→ Act No: 20 (In the 41st year of the Republic)

Chapter-1Preliminary
Sections 1–2Chapter-2National
Commission
Sections 3–9Chapter-3Functions
Section 10Chapter-4Finance,
Accounts, and
Audit
Sections 11–14Chapter-5Miscellaneous
Sections 15–17Important Sections

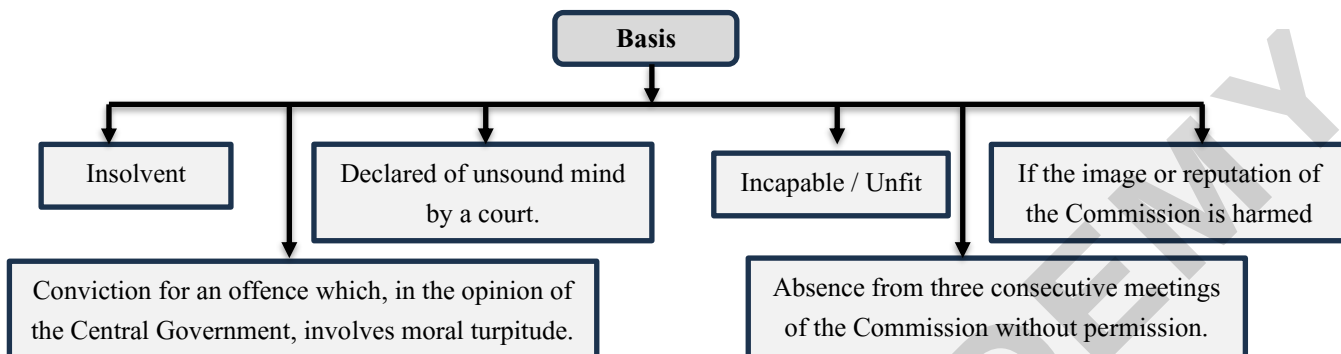
- Section 3 — Composition
- Section 10 — Functions

Section 3 — Composition

1. **Chairperson** — Nominated by the Central Government.
2. **Five Members** — Nominated by the Central Government, drawn from fields such as law and legislation, trade unions, industrial management, organizations promoting women-related industries, women social workers, economic development, health, education, and social service.
 - At least one member each must belong to the SC/ST categories, with relevant qualifications and experience in the above fields.
3. **Member Secretary** — Nominated by the Central Government, who shall be:
 - An expert in management, organizational administration, or social movements, or
 - An officer of the Central Civil Services / All India Services with adequate experience.

Section 4 — Conditions of Service

- **Tenure** — Up to 3 years (or as determined by the Central Government).
- **Resignation** — The Chairperson or Member may resign by submitting it to the Central Government.
- **Removal** — The Chairperson or Members may be removed by the Central Government.



- **The Chairperson / Member shall be given an opportunity of being heard.**
- **Salary and allowances** — To be determined by the Central Government and paid through budgetary grants provided by the Central Government.

Section 5

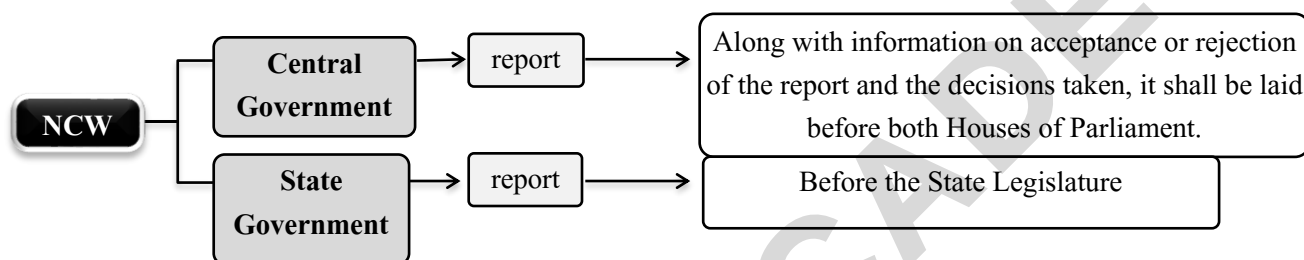
- The Central Government shall provide the Commission with adequate officers and staff.
- For assisting in its functions, the Commission may appoint committees.
 - External members may also be appointed to such committees.
 - The number of members of the committee shall be decided by the Commission.
 - The number and place of meetings of the Commission/committees shall be determined by the Chairperson.
- All orders and decisions of the Commission shall be authenticated by the Member Secretary.

Section 10 — Functions of the Commission (National Commission for Women)

- The Commission shall perform all or any of the following functions, namely:
 - (a) **Investigate and examine** all matters relating to the safeguards provided for women under the **Constitution and other laws**.
 - (b) **Submit annual reports** (and special reports, if necessary) to the **Central Government** on the working of such safeguards.
 - (c) **Recommend measures** to the Union or States for **effective implementation** of safeguards to improve the condition of women.
 - (d) **Review existing constitutional and legal provisions** affecting women and **recommend amendments** to remove deficiencies or inadequacies.
 - (e) **Take up cases of violation** of constitutional and legal provisions relating to women with appropriate authorities.
 - (f) **Inquire into complaints and take suo motu cognizance** of matters relating to:
 - (i) deprivation of women's rights;
 - (ii) non-implementation of laws enacted to protect women and to achieve equality and development;
 - (iii) non-compliance with policy decisions, guidelines, or instructions aimed at reducing hardships, ensuring welfare, and providing relief to women— and take up such matters with appropriate authorities.
 - (g) **Conduct special studies or investigations** into specific problems or situations arising from discrimination and atrocities against women and recommend action plans to remove obstacles.

- (h) **Undertake promotional and educational research** to suggest measures ensuring due representation of women in all spheres and to identify factors hindering their advancement (e.g., lack of housing and basic services, occupational health hazards, inadequate support services and technology).
- (i) **Participate in and advise on** the planning process for women's **socio-economic development**.
- (j) **Evaluate progress** in the development of women under the Union and the States.
- (k) **Inspect or cause inspection** of jails, remand homes, women's institutions, or other places of custody where women are kept, and interact with authorities for remedial action, if required.
- (l) **Provide financial assistance** for litigation involving issues affecting a large number of women.
- (m) **Report to the Government** from time to time on matters relating to women, especially the difficulties faced by them.
- (n) **Perform any other function** as may be specified by the **Central Government**.

Section 13 — Annual Report



Section 15 — The Chairperson, Members, officers, and employees of the Commission shall be deemed to be public servants within the meaning of Section 21 of the Indian Penal Code, 1860.

• List of Chairperson

S. No.	Name	From	To
1	Jayanti Patnaik	03.02.1992	30.01.1995
2	V. Mohini Giri	21.07.1995	20.07.1998
3	Vibha Parthasarathi	18.01.1999	17.01.2002
4	Purnima Advani	25.01.2002	24.01.2005
5	Girija Vyas	16.02.2005	15.02.2008
		09.04.2008	08.04.2011
6	Mamta Sharma	02.08.2011	01.08.2014
7	Lalitha Kumaramangalam	29.09.2014	28.09.2017
8	Rekha Sharma (<i>Acting Chairperson</i>)	29.09.2017	06.08.2018
9	Rekha Sharma	07.08.2018	06.08.2024
10	Vijaya K. Rahatkar	22.10.2024	Present

• Chairperson and Current Members

- **Chairperson** — Vijaya K. Rahatkar (22.10.2024 – present)
- **Members** — (1) Delina Khongdup (2) Mamta Kumari
- **Member Secretary** — Sudip Jain (9 September 2025 – present)

National Commission for Protection of Child Rights (NCPCR) emphasizes the principle of universality and inviolability of child rights and recognizes the tone of urgency in all the child related policies of the country. For the Commission, protection of all children in the 0 to 18 years age group is of equal importance. Thus, policies define priority actions for the most vulnerable children. This includes focus on regions that are backward or on communities or children under certain circumstances, and so on

Brief History

- ◆ India participated in the United Nations (UN) General Assembly Summit in 1990, which adopted a Declaration on Survival, Protection and Development of Children
- ◆ India has also acceded to the Convention on the Rights of the Child (CRC) on the 11th December, 1992. CRC is an international treaty that makes it incumbent upon the signatory States to take all necessary steps to protect children's rights enumerated in the Convention;
- ◆ Government have taken for Children is the adoption of National Charter for Children, 2003;
- ◆ UN General Assembly Special Session on Children held in May, 2002 adopted an Outcome Document titled “A World Fit for Children” containing the goals, objectives,.

Commissions for Protection of Child Rights Act, 2005

- | | |
|--|------------------------------------|
| ◆ 20th January, 2006. | ◆ ACT NO. 4 OF 2006 |
| ◆ It came into force on 5th February, 2007 | ◆ Fifty-sixth Year of the Republic |

CHAPTER I - Preliminary (section 1 -2)

Section 1 :- It extends to the whole of India except the State of Jammu and Kashmir.

Section 2 :- Definition - “child rights” includes the children's rights adopted in the United Nations convention on the Rights of the Child on the 20th November, 1989 and ratified by the Government of India on the 11th December, 1992

CHAPTER II - The National Commission for Protection of Child Rights

Section 3:- Constitution of National Commission for Protection of Child Rights—

- (1) The Central Government shall, by notification, constitute a body
- (2) Composition
 - (a) A Chairperson who is a person of eminence and has done outstanding work for promoting the welfare of children
 - (b) Six Members, out of which at least two shall be women, from the following fields, to be appointed by the Central Government from amongst persons of eminence, ability, integrity, standing and experience in,—
 - (i) education; (ii) child health, care, welfare or child development; (iii) juvenile justice or care of neglected or marginalized children or children with disabilities; (iv) elimination of child labour or children in distress; (v) child psychology or sociology; and (vi) laws relating to children.
- (3) The office of the Commission shall be at Delhi.

Section 4:- Appointment of Chairperson and Members.—

The Central Government shall, by notification, appoint the Chairperson and other Members: Provided that the Chairperson shall be appointed on the recommendation of a three member Selection Committee constituted by the Central Government under the Chairmanship of the Minister in-charge of the Ministry or the Department of Women and Child Development (Subs. by Act 4 of 2007 for “Minister in-charge of the Ministry of Human Resource Development” (w.e.f. 29-12-2006).)

Section 5 :- Tenure

- ◆ **Chairperson** – 3 years / till the age of 65 years
- ◆ **Member** – 3 years/till the age of 60 years
- ◆ No Chairperson or a Member shall hold the office for more than two terms
- ◆ **Resign** – To Central Govt.

6) Salary and allowances-

As may be prescribed by the Central Government

7) Removal from office –

By Central Government

- ◆ **Grounds** - on the ground of proved misbehaviour or incapacity or grounds of removal of members of national commission for women

Section 10 :-**Procedure for transaction of business.—**

- (1) The Commission shall meet regularly at its office at such time as the Chairperson thinks fit, but three months shall not intervene between its last and the next meeting.
- (2) All decisions at a meeting shall be taken by majority: Provided that in the case of equality of votes, the Chairperson, or in his absence the person presiding, shall have and exercise a second or casting vote.
- (3) If for any reason, the Chairperson, is unable to attend the meeting of the Commission, any Member chosen by the Members present from amongst themselves at the meeting, shall preside.
- (4) The Commission shall observe such rules of procedure in the transaction of its business at a meeting, including the quorum at such meeting, as may be prescribed by the Central Government.
- (5) All orders and decisions of the Commission shall be authenticated by the Member-Secretary or any other officer of the Commission duly authorised by Member-Secretary in this behalf.

11. Member-Secretary, officers and other employees of Commission—

- (1) The Central Government shall, by notification, appoint an officer not below the rank of the Joint Secretary or the Additional Secretary to the Government of India as a Member-Secretary of the Commission and shall make available to the Commission such other officers and employees as may be necessary for the efficient performance of its functions.
- (2) The Member-Secretary shall be responsible for the proper administration of the affairs of the Commission and its day-to-day management

12. Salaries and allowances to be paid out of grants

CHAPTER III – Functions and Powers of the Commission**13. Functions of Commission-**

- (1) The Commission shall perform all or any of the following functions, namely
 - (a) Examine and review the safeguards provided by or under any law for the time being in force for the protection of child rights and recommend measures for their effective implementation;
 - (b) Present to the Central Government, annually and at such other intervals, as the Commission may deem fit, reports upon the working of those safeguards;
 - (c) Inquire into violation of child rights and recommend initiation of proceedings in such cases;
 - (d) Examine all factors that inhibit the enjoyment of rights of children affected by terrorism, communal violence, riots, natural disaster, domestic violence, HIV/AIDS, trafficking, maltreatment, torture and exploitation, pornography and prostitution and recommend appropriate remedial measures;
 - (e) Look into the matters relating to children in need of special care and protection including children in distress, marginalized and disadvantaged children, children in conflict with law, juveniles, children without family and children of prisoners and recommend appropriate remedial measures;
 - (f) Study treaties and other international instruments and undertake periodical review of existing policies, programmes and other activities on child rights and make recommendations for their effective implementation in the best interest of children;
 - (g) Undertake and promote research in the field of child rights;
 - (h) Spread child rights literacy among various sections of the society and promote awareness of the safeguards available for protection of these rights through publications, the media, seminars and other available means;
 - (i) Inspect or cause to be inspected any juvenile custodial home, or any other place of residence or institution meant for children, under the control of the Central Government or any State Government or any other authority, including any institution run by a social organisation; where children are detained or lodged for the purpose of treatment, reformation or protection and take up with these authorities for remedial action, if found necessary;
 - (j) Inquire into complaints and take suo motu notice of matters relating to,—
 - (i) Deprivation and violation of child rights;
 - (ii) Non-implementation of laws providing for protection and development of children;
 - (iii) Non-compliance of policy decisions, guidelines or instructions aimed at mitigating hardships to and ensuring welfare of the children and to provide relief to such children, or take up the issues arising out of such matters with appropriate authorities; and
 - (k) Such other functions as it may consider necessary for the promotion of child rights and any other matter incidental to the above functions.
- (2) The Commission shall not inquire into any matter which is pending before a State Commission or any other Commission duly constituted under any law for the time being in force.

Powers of Civil Court is being given

15. Steps After Inquiry— The Commission may take any of the following steps upon the completion of an inquiry held under this Act, namely:—

- (i) Where the inquiry discloses, the Commission of violation of child rights of a serious nature or contravention of provisions of any law for the time being in force, it may recommend to the concerned Government or authority the initiation of proceedings for prosecution or such other action as the Commission may deem fit against the concerned person or persons; 8
- (ii) Approach the Supreme Court or the High Court concerned for such directions, orders or writs as that Court may deem necessary;
- (iii) Recommend to the concerned Government or authority for the grant of such interim relief to the victim or the members of his family as the Commission may consider necessary.

Section 16 — Annual Report

The annual report shall be prepared **in such form and manner** and shall contain **such details** as may be **prescribed by the Central Government**.

Chairpersons:

1. **Shanta Sinha** — First Chairperson (2007–2013)
2. **Kushal Singh**
3. **V. S. Oberoi**
4. **Nutan Guha Biswas**
5. **Stuti Kakkar**
6. **Rakesh Shrivastava**
7. **Priyank Kanoongo** (2018–2024) — **Two terms**
8. **Tripti Gurha**
9. **Valeti Premchand** — *Present*

Current Member: – Mrs. Preeti Bhardwaj

❖ **Vision** (*Our vision represents what we aspire to become*)

Continue to provide independent and credible assurance on public resources and be a global leader in public sector auditing.

❖ **Mission** (*Our mission enunciates our current role and describes what we are doing today*)

Mandated by the Constitution of India, we promote accountability, transparency and good governance through high quality auditing and accounting and provide independent and timely assurance to the Legislature, the Public and the Executive, that public funds are being collected and used effectively and efficiently.

❖ **Core Values**

(*Our core values are the fundamental beliefs that guide our institution and our people*)

❖ **Institutional Values:** Maintaining professional standards, objective and balanced approach, independence and transparency.❖ **People Values:** Ethical behaviour, integrity, professional competence, fairness and social awareness.**Article 148: Comptroller and Auditor-General of India (CAG)**1. **Appointment & Removal**-Appointed by the **President of India**.

- Can be removed only like a Supreme Court Judge (i.e., via impeachment).

2. **Oath**-Takes oath before the **President** or a person appointed by the President. (*Form — as per the Third Schedule*)3. **Salary & Service Conditions**-Decided by **Parliament** through law.

- Until then, provisions in Second Schedule apply.
- Salary, pension, leave, retirement age cannot be changed to CAG's disadvantage after appointment.

4. **Post-Retirement Restrictions:** Not eligible for any further office under the Central or State Government after retirement.5. **Indian Audit and Accounts Department**-Rules regarding service conditions of its staff and administrative powers of CAG are made by the President in consultation with CAG.6. **Expenses**-All expenses of CAG's office are **charged on the Consolidated Fund of India**, meaning **they are not subject to Parliamentary vote**.**Article 149: Powers and Duties of CAG**

- CAG performs duties related to Union, States, and other authorities' accounts.
- Parliament can define these by law.
- Until Parliament enacts a law, CAG continues to exercise powers similar to those of the Auditor-General before 1950 (British era setup).

Article 150: Form of Accounts

- The format of Union and State accounts is prescribed by the President based on the advice of the CAG.

Article 151: Audit Reports1. **Union Government Reports**-CAG submits them to the President, who places them before both Houses of Parliament.2. **State Government Reports**-CAG submits them to the Governor, who places them before the State Legislature.**Independence of office of CAG**

- Security of tenure:** He can be removed by the president only in accordance with the procedure mentioned in the Constitution. Thus, he does not hold his office till the pleasure of the president, though he is appointed by him.
- Re-appointment:** He is not eligible for further office, either under the Government of India or of any state, after he ceases to hold his office.
- His salary and other service conditions are determined by the Parliament. His salary is equal to that of a judge of the Supreme Court.
- Neither his salary nor his rights in respect of leave of absence, pension or age of retirement can be altered to his disadvantage after his appointment.

- The conditions of service of persons serving in the Indian Audit and Accounts Department and the administrative powers of the CAG are prescribed by the president after consultation with the CAG.
- The administrative expenses of the office of the CAG, including all salaries, allowances and pensions of persons serving in that office are charged upon the Consolidated Fund of India. Thus, they are not subject to the vote of Parliament.
- No minister can represent the CAG in Parliament (both Houses) and no minister can be called upon to take any responsibility for any actions done by him.

Duties and powers of Comptroller and Auditor General of India (CAG)

❖ Constitutional Basis:

- **Article 149:** Authorizes Parliament to define duties and powers of the CAG.
- **Article 150:** CAG advises on the form of accounts.
- **Article 151:** CAG submits audit reports to the President/Governor.
- **Article 279:** CAG certifies net tax proceeds (binding).

Schedule-6 → Article 244 → District Council and Regional Council → The form of their accounts and audit shall be as prescribed by the Comptroller and Auditor General (CAG), with the approval of the President.

❖ Governing Law: CAG's (Duties, Powers and Conditions of Service) Act, 1971

- **Salary:** Same as that of a Judge of the Supreme Court
- **Tenure:** 6 years or up to 65 years of age, whichever is earlier
- **Resignation:** To the President
- **Functions:**
 - Compilation and maintenance of accounts (Section 11)
 - Audit of accounts (Section 13)

Audit Responsibilities of CAG:

- **Funds Audited:**
 - Expenditure charged on the Consolidated Fund of the Union, the States, and Union Territories having Legislatures.
 - **Contingency Fund** of India and each State
 - **Public Account** of India and each State
- **Account Types Audited:**
 - Trading, manufacturing, P&L, balance sheets of govt. depts.
 - Government transactions on debts, advances, deposits, etc.
 - Assessment and allocation of revenue
 - Receipts and stock accounts (with President's approval)
- **Bodies Audited by CAG: All authorities that receive substantial financial grant from the Central or State Government** (Grant $\geq$ ₹25 lakh & $\geq$ 75% of total expenditure)
 - Government companies and corporations.
 - Local bodies or others when requested by President or Governor.
- **Other Functions:**
 - Advises on format of government accounts (Art. 150)
 - Submits audit reports:
 - ✓ **To President** → Tabled in **Parliament**
 - ✓ **To Governor** → Tabled in **State Legislature**
 - Certifies net tax proceeds (Art. 279) – Final Authority
 - **Guide, friend, philosopher** of the Public Accounts Committee (PAC)
 - **The CAG generally compiles and maintains the accounts of the Union and the States, but the President and the Governors may relieve the CAG, wholly or partly, from this responsibility.** (Central accounts delinked since 1976)

Facts

- The post of Comptroller and Auditor General (CAG) was created during the tenure of Lord Canning.
- The first CAG was Edward Drummond (1860–1862).
- At the time of independence, the CAG was Sir Bertie Monro Stagg (1945–1948).
- The first CAG after independence was V. Narahari Rao.
- The shortest tenure was held by Rajiv Mehrishi.
- A.K. Chanda was a CAG who also served as Chairman of the Finance Commission.

Comptroller and Auditor Generals of India

S. No.	Name	Tenure
1	V. Narahari Rao	1948–1954
2	A. K. Chanda	1954–1960
3	A. K. Roy	1960–1966
4	S. Ranganathan	1966–1972
5	A. Bakshi	1972–1978
6	Gyan Prakash	1978–1984
7	T. N. Chaturvedi	1984–1990
8	C. G. Somayya	1990–1996
9	V. K. Shunglu	1996–2002
10	V. N. Kaul	2002–2008

11	Vinod Rai	2008–2013
12	Shashi Kant Sharma	2013–2017
13	Rajiv Mehrishi	2017–2020
14	Girish Chandra Murmu	2020–2024
15	K. Sanjay Murthy	21 Nov, 2024–Present

- **Types of Audit:**

1. **Performance Audit** – Assesses economy, efficiency & effectiveness.
2. **Financial Audit** – Evaluates financial statements.
3. **Compliance Audit** – Checks adherence to laws and regulations.

- **Types of Reports:**

- **Appropriation Accounts Report** – Actual vs. sanctioned expenditure.
- **Finance Accounts Report** – Annual receipts & disbursements.
- **Public Undertakings Report** – PSU evaluation.

- **Submission & Examination:**

- Reports are laid before Parliament/Legislature
- Examined by Public Accounts Committee (PAC)

Criticism of the CAG of India**1. Lack of Transparent Appointment Process:**

- Government unilaterally appoints the CAG, without any public consultation or fixed criteria.
- No involvement of state governments, undermining federalism.
- Opaque selection process— public is unaware of shortlisted names or selection basis.

2. Conflict of Interest: Appointing retired secretaries or administrators (e.g., GC Murmu) raises concerns about the independence of the CAG.

- Leads to perceived bias, as they audit departments they previously served.

3. Post-Facto Audit: CAG audits are retrospective— it reviews expenditures after they have been made, limiting proactive oversight.**4. No Parliamentary Membership:** Unlike the UK, where the CAG is a member of the House of Commons, the Indian CAG is not a Parliament member, reducing direct legislative engagement.**5. Overstepping Mandate:** Criticisms over 2G and Coal Block audits where CAG was accused of exceeding jurisdiction.

- Creates fear among bureaucrats of the "3 Cs": CBI, CAG, and CVC, leading to risk-averse governance.

6. Lack of Sectoral Expertise: Economic and technical expertise is often lacking in CAG and Indian Audit & Accounts Service, especially in complex areas like natural resource audits.**7. Limitations in Auditing Secret Expenditure:** CAG cannot audit secret service expenses in detail.

- Has to accept certificates from competent authorities without verifying actual spending.

8. Delay in Access and Reporting: Documents are delayed or withheld, affecting the quality and depth of audit.

- CAG reports are often delayed in being tabled before Parliament, reducing their timeliness and impact.

Institution	NHRC	CIC	CVC	Lokpal	ECI	CAG
Established	12 Oct 1993	12 Oct 2005	11 Feb 1964 (Santhanam Committee)	16 Jan 2014	25 Jan 1950	—
Nature	Statutory	Statutory	Statutory (since 2003)	Statutory	Constitutional	Constitutional
Appointment by	President	President	President	President	President	President
Composition	1 + 7 + 5 (ex officio)	1 + 10 (maximum)	1 + 2 (maximum)	1 + 8 (4 judicial, 4 from weaker sections)	1 + 2 (number decided by President)	—
Selection Committee	1. PM, 2. LoP (LS), 3.LoP (RS), 4.Speaker (LS), 5.Dy. Chairman (RS), 6.Home Minister	1.PM, 2.LoP (LS), 3.Cabinet Minister	PM, LoP (LS), Home Minister	PM, LoP (LS), Speaker (LS), CJI/ Judge, Jurist	PM, LoP (LS), Cabinet Minister	—
Search Committee	—	—	—	7 members (minimum 50% from weaker sections);	Chairman — Law Minister + 2 members	—
Tenure	3 years / 70 years	As decided by Central Govt	4 years / 65 years	5 years / 70 years (minimum age 45)	6 years / 65 years (<i>not mentioned in Constitution</i>)	6 years / 65 years (<i>not mentioned in Constitution</i>)
Oath	—	President	President	—	—	President
Resignation to	President	President	President	—	President	President
Salary	Fixed by Central Govt	Fixed by Central Govt	Same as UPSC Chairman & Members	Chairman— Chief Justice of India; Members— Judges of Supreme Court	Same as Judge of Supreme Court	Same as Judge of Supreme Court
Reappointment	✓ Possible in NHRC; X Not eligible for other Govt posts	X	X	X	X	X

Government of India Act 1919

Chronology-



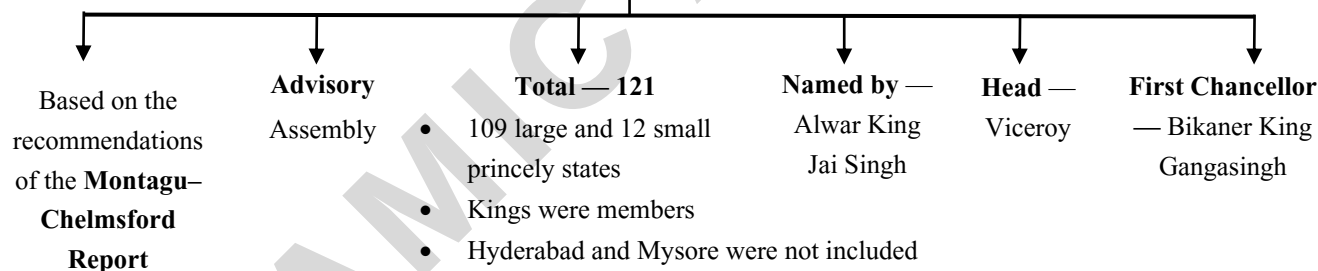
The then office-bearer – 1. Secretary of State for India: Montagu
3. British Prime Minister: David George

2. Viceroy: Chelmsford
4. King George V

Various commissions were established by this Act. -

- (A) Central Public Service Commission – on the recommendation of Lord Lee Commission (1923)
 - Formed on October 1, 1926 → Later UPSC (Union Public Service Commission)
- (B) Provision for holding the I.C.S. examination in India (earlier it was in London)
1922 examination in Allahabad
- (C) The CAG (Auditor General) was made independent of the government by giving him statutory status, although the post had been established in 1858 itself.
- (D) Proposed the establishment of the Chamber of Princes (Narendra Mandal). It was inaugurated on 9th Feb, 1921 in New Delhi.

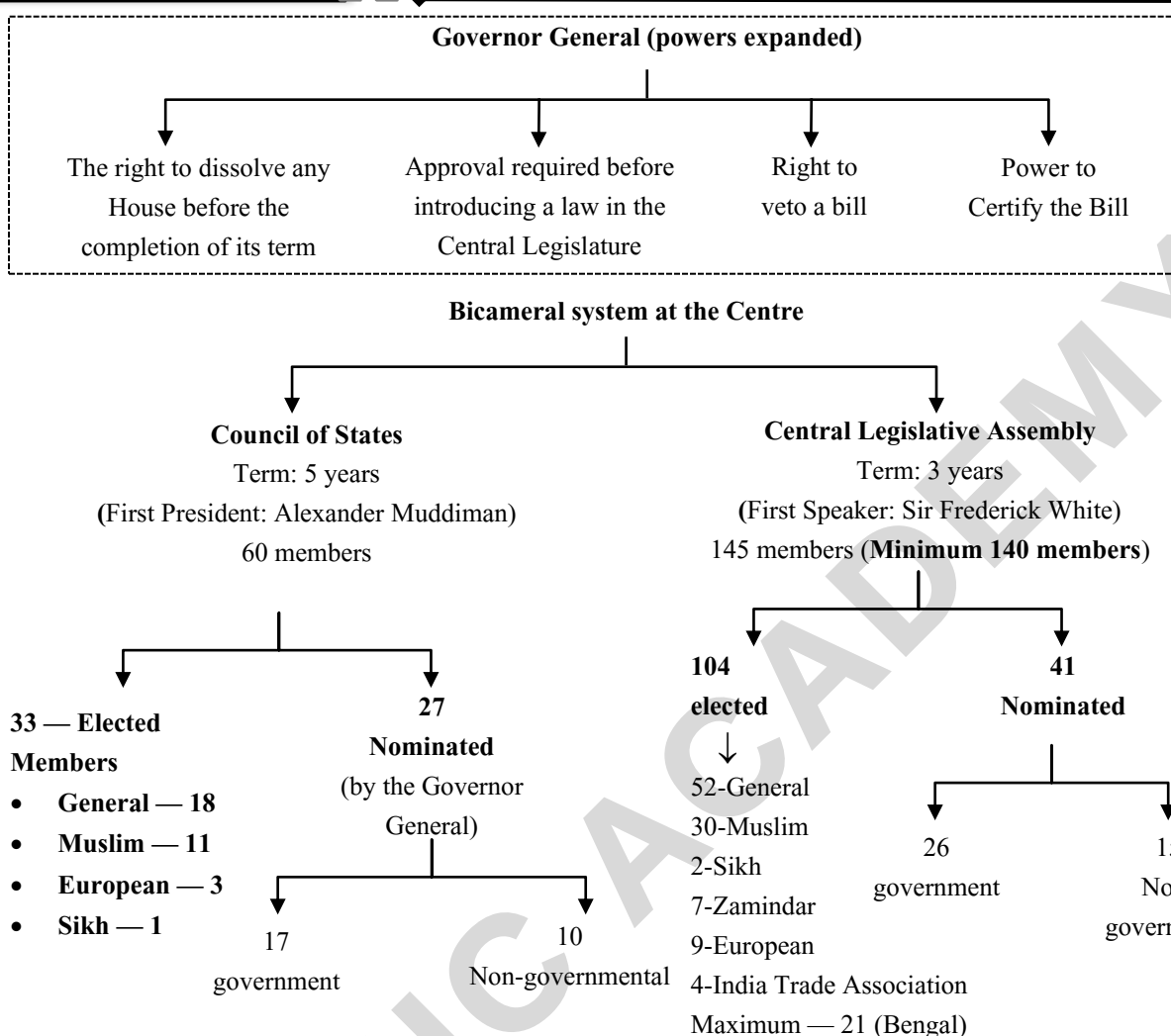
Chamber of Princes



- (E) Establishment of the Public Accounts Committee in 1921.
- (F) **Section 41** — Provided for the **appointment of an Indian Law Commission (Simon Commission)** to review the functioning of the Act and submit a report 10 years after its commencement.

Governor General's Executive

- The **number of Indian members** was increased from 1 to 3 (total 8 members), but they were assigned **less important departments** such as **Law, Education, Labour, Health, or Industry**.
- Each member was a **member of one of the Houses** and had the **right to participate in debates and proceedings**.
- Members were **responsible to the Governor-General**, who in turn was **responsible to the Secretary of State for India**.
- The **powers of the Governor-General** were expanded.
- **Eligibility of members**: Indian lawyers with 10 years' experience in a High Court (e.g., Tej Bahadur Sapru — first Indian legal member).
- **First member**: Satyendra Prasad Sinha (under the Government of India Act, 1909).



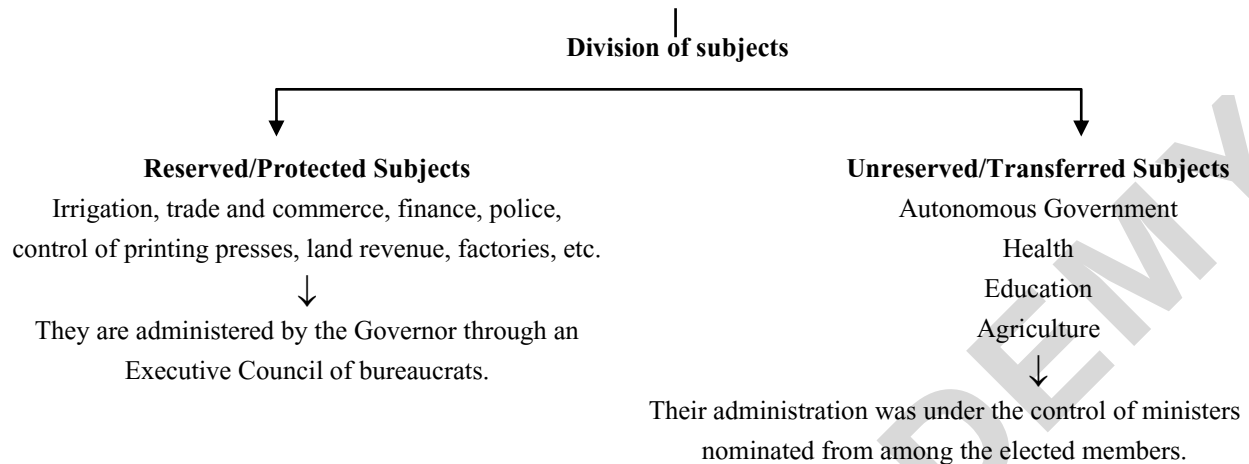
- **Functions** - Re-discussing bills passed by the lower house (conservative house)
- **Legislature reforms** - Members were given the right to ask questions and supplementary questions.
- Members were given the right to pass adjournment motions and discuss the budget and vote on certain parts (although 75 percent of the budget was still unvoted).
- **Separation of subjects** - For the first time, the provincial budget was separated from the central budget.
- Central subjects – 47 subjects including **Army, Railways, Posts & Telegraphs, Income Tax, Stamping, Trade, Shipping, Civil and Criminal matters**, foreign affairs, defense, communications, currency, public debt, census, customs duties, etc.

Provincial government

- Provincial subjects - 50 subjects including **Health, Education, Sanitation, Public Works, Irrigation, Famine Relief, Revenue and Agriculture, Forests, Sports, Police, Judiciary**, autonomous institutions, etc.
- **Dyarchy implemented in 8 provinces** - (Assam, Bengal, Bihar, Bombay, Punjab, Madras, United Provinces, Central Provinces) – from 1st April, 1921
- **North-West Frontier Province (1932)**
 - Promotion of Decentralization
 - Administration / Revenue — Transferred to the Provinces
 - For the first time, provinces had the power to borrow and levy taxes
 - Separate Budget from the Centre — Allowed partial responsible government

Dual Government (Di-Archy) — A term from Greek meaning rule by two separate authorities, each having distinct powers and responsibilities.

Dyarchy in the Provinces (Father- Leonce Curtis)



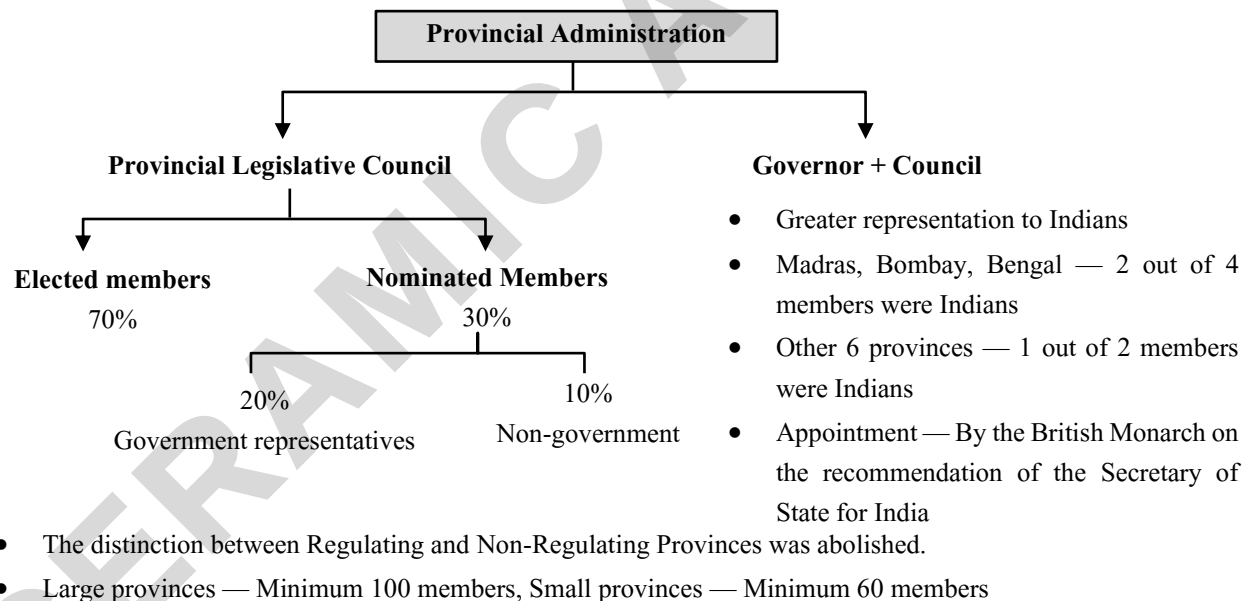
In the event of a failure of the constitutional machinery in the province, the Governor could also take over the administration of transferred subjects.

Legislative Reforms -

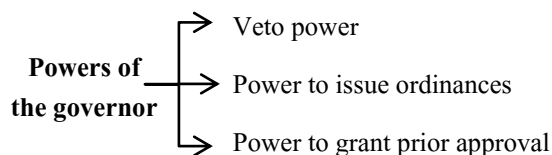
1. Provincial Legislative Councils were expanded.

Maximum Members - Bengal – 140

Minimum Members - Assam – 53



2. Women were granted the right to vote.
3. The provincial legislative council was given the power to reject the budget. However, the Governor had the special power to re-enact even a rejected budget.



Elections

- **Direct elections** were held.
- **About 10% of the Indian population** had the right to vote.
- **Women were granted voting rights.**
- The **Montagu–Chelmsford Report** opposed **communal electorates**, but this Act **expanded them** (e.g., reservations for Sikhs and Europeans).

Changes in Home Rule / Council of India

Secretary of State for India — A minister in the British Cabinet

Indian Council — Salary increased from £1,000 to £1,200

- The **number of Indian members** was increased from **2 to 3**.
- **Tenure** reduced from **7 years to 5 years**.
- **Minimum members** set at **8** and **maximum at 12** (previously minimum 12, maximum 14).

All expenses were charged to the British budget.

Conditions:

- **At least 50% of members** must have **resided in India for 10 years before appointment**.
- Must have **resided in India for the last 5 years**.

Note:

1. The **Home Government** now came **directly under the British Parliament**.
2. **Control of the Secretary of State for India** was reduced compared to before.

Provisions / Objectives of the Act

1. Increase Indian participation in administration
2. Keep India as an integral part of the British Empire
3. Development of self-governing institutions
4. Implement responsible government as per British policy
5. Gradual constitutional development

Structure of the Act:- 47 Sections, 5 Schedules, 6 Parts

Part 1 — Local Government

Part 2 — Government of India

Part 3 — Council of State

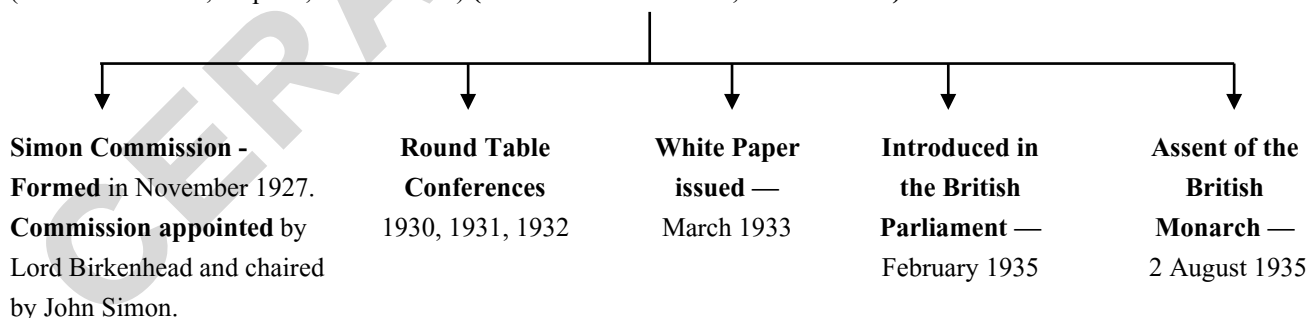
Part 4 — Public Service

Part 5 — Statutory Commissions

Part 6 — General Provisions

Government of India Act-1935

(Total 321 articles, 14 parts, 10 schedules) (RBSE — 451 Sections, 15 Schedules)



British PM - Stanley Baldwin

7 members - British (John Simon, Clement Attlee, Hartshorne, Levy-Lawson, Lane Fox, Cadogan, Howard)

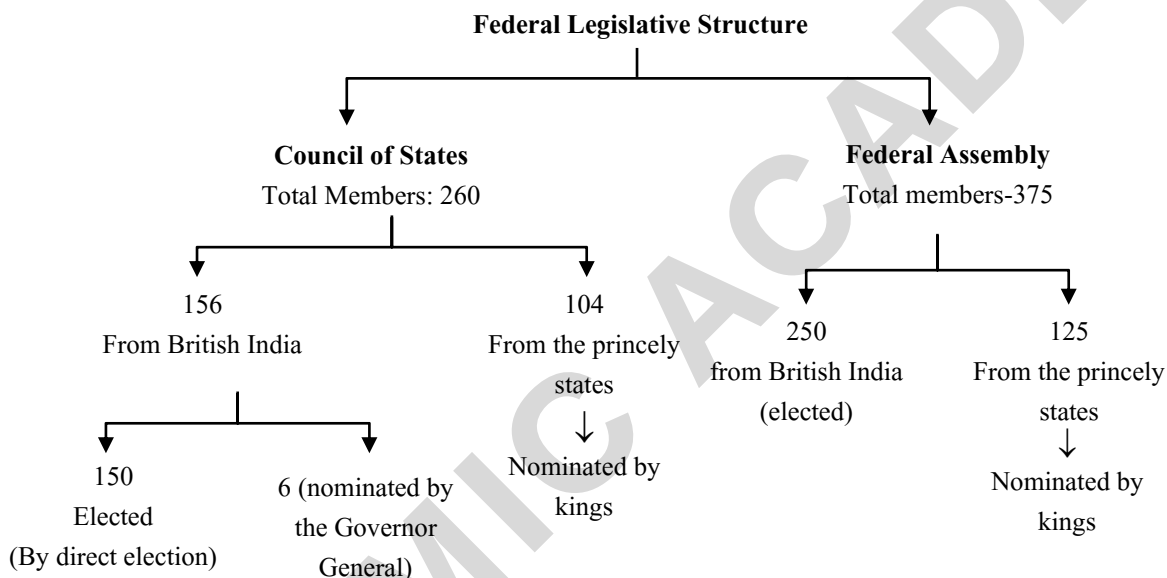
Note: This Act did not have a separate preamble.

Federal Governance System**1. All-India Federation**

- Planned to include **11 British provinces (mandatory members)**, **6 Chief Commissariat provinces**, and **princely states (voluntary members)**.
- Establishment required at least half of the princely states representing 50% of the population** — the federation **was never formed**.
- A **Federal Court** was proposed to **settle disputes between units of the federation**.
- The federation provided for **internal self-governance** within its units.

2. Dual Government at the Centre

- Dual governance in provinces was abolished** and applied to the **Centre**.
- In provinces, the **Governor was given the power to legislate** on matters of **security, foreign affairs, religion, and tribal areas**.

3. Federal System (Bicameral Legislature)

Tenure - 9 years (1/3 members retire after 3 years)

Special Allocation (Province Wise):-

- Bengal, Madras, United Province → 20-20 members
- Bombay, Bihar, Punjab → 16 – 16 members

Caste/religion based representation -

General - 75, Muslim - 49, Sikh - 4, ,Muslim - 82

Scheduled Castes – 6, Anglo-Indians – 7, Women – 6

Special Allocation (Province Wise):-

- Bengal, Madras → 37-37
- Bombay, Bihar, Punjab → 30 – 30

Caste/religion based representation

General - 96, Women-9, Landowners-6

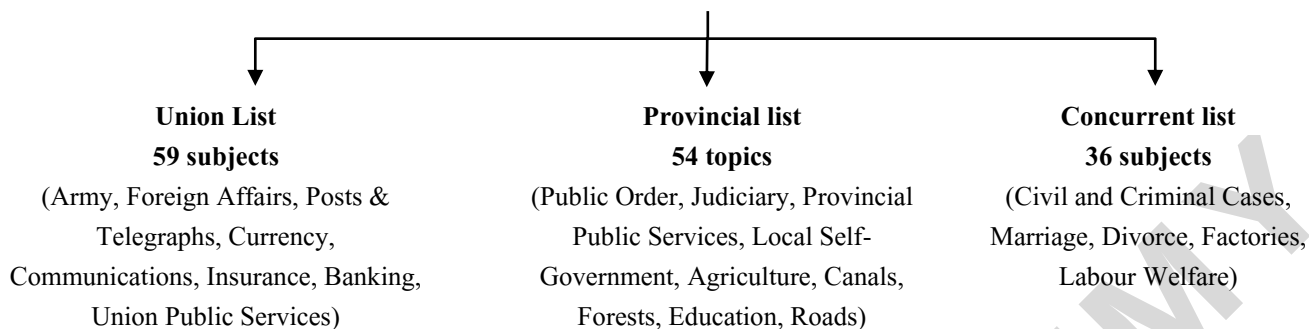
Labor-10, Commerce-11 , Dalit - 9

Anglo-Indians – 4

- Legislatures** were given **comparatively greater powers** than before.
- The **Council of Ministers** was made **responsible to the Legislative Assembly**.
- The Assembly had the **power to remove the Ministry through a no-confidence motion**.
- The Assembly was granted the **right to vote on 80% of the budget**, including **questions and supplementary questions**.

4. Distribution of Subjects (Seventh Schedule)

Distribution of subjects (in the 7th Schedule)

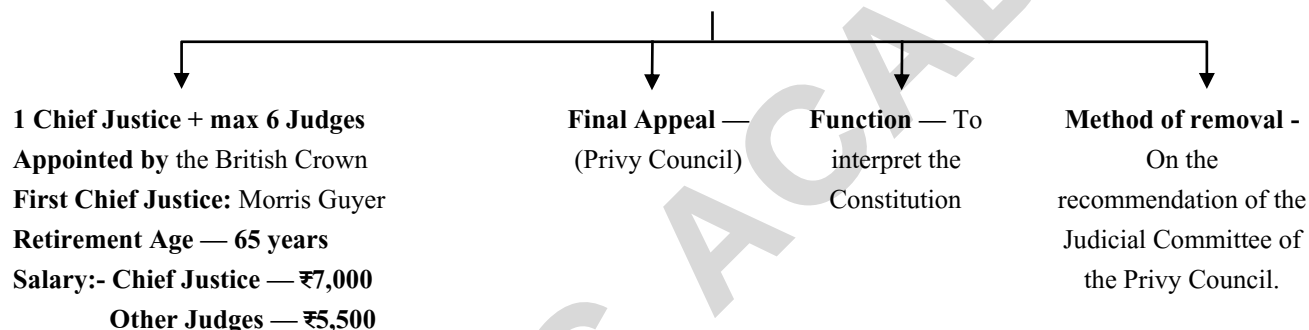


- Residual subjects remained with the Governor General.

5. Federal Court -

Established - October 1, 1937 (as per the 1935 Act)

Structure



6. Supremacy of the British Parliament

- The British Parliament had the authority to amend the 1935 Act.
- The Central and Provincial Legislatures could send recommendations for amendments within certain limits.

7. The Council of India was abolished.

8. Expansion of the Communal Electoral System

- Anglo-Indians, Indian Christians, and Dalits were also included in the reservation process.
- Muslims were given one-third representation in both Houses of the Central Legislature.

9. Geographical Changes

- Orissa and Sindh were granted provincial status.
- Burma was separated from India.
- Berar was separated from the Nizam and merged with the Central Provinces.
- The Aden Harbour was detached from the Government of India and placed under the control of the British Colonial Office from 1 April 1937.

Section 4 of this Act provides for the appointment of the Commander-in-Chief.

There shall be a Commander-in-Chief of His Majesty's Forces in India, appointed by warrant under the Royal Sign Manual.

Provincial Provisions

- Dual government was abolished, and autonomy was granted to the provinces.
- For the first time, provinces were recognized as self-governing political units.
- Provision was made for an executive and legislature in each province.
- Dyarchy in the provinces was abolished and responsible government was established.
- Bicameral legislatures were established in six of the 11 provinces (Bengal, Bombay, Madras, Bihar, United Provinces, and Assam).
- Public Service Commissions were established at the provincial level.

Summary of Provincial Autonomy

- During emergencies, the Central Legislature was given the power to make laws.
- In case of constitutional machinery failure, the Governor was given the authority to govern.
- The Governor could submit passed bills to the British Monarch for assent.

Elections — 8 April 1937

- Out of 11 provinces, the Congress secured a clear majority in 6 provinces (including Assam, Bengal, and the largest party in the North-West Frontier Province).
- In Punjab, the Communist Party gained a majority, and in Sindh, the Muslim League gained a majority.

Names given to the 1935 Act:

- **Jawaharlal Nehru:** "An Act of Slavery" and "A Train Without an Engine but with Brakes."
- **Jinnah:** "A Rotten Plan."
- **Madan Mohan Malaviya:** "Outwardly Democratic but Inwardly Hollow."
- **C. Rajagopalachari:** "Worse than the Dyarchy System."
- **Attlee:** "Symbol of Distrust."


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✓ Books: Free books will be provided during class (as per syllabus)	✓ PDFs: Provided during class (as per syllabus)	✓ PDFs: Provided during class (as per syllabus)	✓ PDFs: Provided during class (as per syllabus)
✓ Mentorship: Available (RAS selected mentors)	✓ Mentorship: Available (selected mentors)	✓ Mentorship: Available (selected mentors)	✓ Mentorship: Available (selected mentors)
✓ Test Report: Provided regularly	✓ Test Report: Provided regularly	✓ Test Report: Provided regularly	✓ Test Report: Provided regularly
₹65,000/- One time Payment		₹27,000/- One time Payment	
OR ₹36,000/- 1st Installment ₹36,000/- 2nd Installment (After 2 months)			

This topic is included under Rajasthan Polity in RAS Syllabus, while in PSI it falls under Indian Polity. Hence, only short notes are given here ; details will be given in Rajasthan Polity Book.

[A] Citizen Charter

- ❖ The document issued by the government to the common citizens for their rights is called Citizen Charter.
- ❖ It is a **public document** prepared by the government office.
- ❖ The public document of this institution will contain the following information:
- ❖ **Institution/Department -**
 - Objectives and vision of the organization/department - Which services will be provided ?
 - Services and division of function (Example - Information on Room No.)
 - Process
 - The organization's expectations from citizens.
 - Commitments
 - Timeframe
 - Grievance redressal mechanism
 - Promote various methods to avail services.

Note:-

1. This is an idealistic concept.
2. It is a kind of moral obligation on the institution.
3. The government expects that every institution should follow the Citizen Charter.

❖ **Development of Citizen Charter-**

- This concept was started by the British Prime Minister- John Major in 1991.
- John Major- Officers who perform well will be rewarded. (Charter Mark Scheme)

❖ **Beginning of Citizens' Charter in India-**

- The first attempt and beginning of Citizens' Charter in India was initiated by a movement by an NGO named '**Common Cause**' founded by **HD Shourie**.
- In 1996, Citizens' Charter was first discussed in the Chief Secretaries' Conference (New Delhi) in India. (A nine-point action plan was prepared)
- In 1997, it was decided to implement Citizens' Charter in the Chief Ministers' Conference. (**Chairman- Inder Kumar Gujral**)
- Citizens' Charter was first started by the Ministry of Food and Civil Supplies.

❖ **In Rajasthan-**

- In Rajasthan, it was started in 1998 from the **Food and Civil Supplies Department** during the time of the then **Chief Minister Shri Ashok Gehlot**.
- The Citizens' Rights and Grievance Redressal Bill (Bill) was introduced in the Parliament in 2011, but it could not be passed.
- Hence, civil rights are not justiciable in the court.

❖ **Importance of Citizens' Charter-**

- Increases awareness among common citizens about their rights.
- Spreads awareness among people about accessing services.
- Helps in providing quality and timely services.
- Increases administrative transparency.
- Reduces administrative corruption.
- Ensures quality administration.
- Establishes accountable government.
- Sets clear targets for services at all levels.
- Establishes citizen-oriented governance.
- Increases accountability of public servants.
- Effective means of redressal of public grievances.
- Promotes public participation in government schemes.
- Improves the quality of public services.

❖ In 2004, the Department of Administrative Reforms and Public Grievances gave the guiding principles of the Model Citizen Charter which includes-

1. Objectives and mission statement of the organization.
2. Details of the names of the services provided by the organization.
3. Details of the customer groups associated with the organization.
4. Details of the public grievance redressal mechanism.
5. Details of the work done by the organization.
6. Details of the time period for providing services.
7. To promote various methods for availing the services.
8. Expectations of public records (expectations from customers).

❖ **Features of Citizen Charter-**

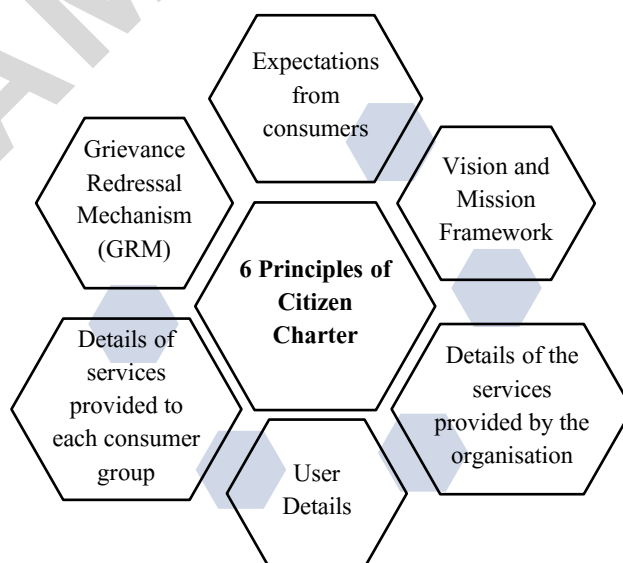
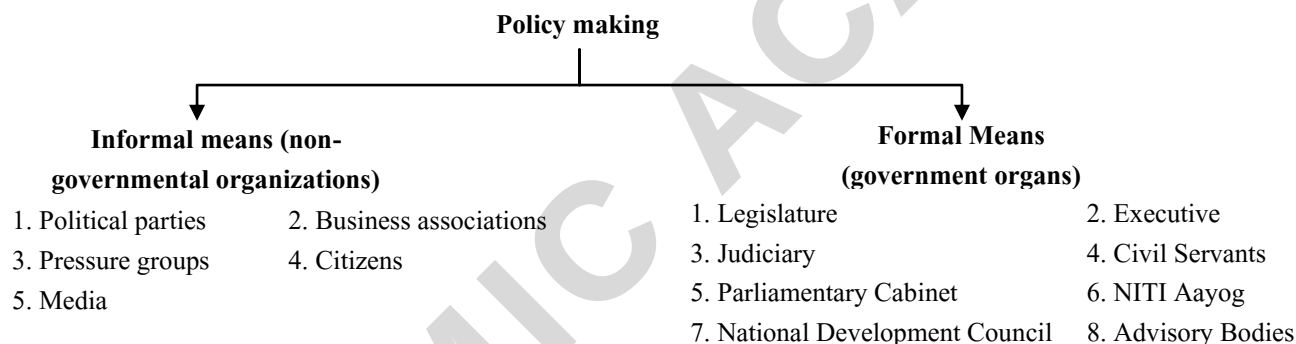
1. Citizen Charter is a commitment towards the citizens regarding the quality of services.
2. Citizens' Charter contains the organization's expectations from citizens to fulfil its commitments.
3. Citizens' Charter is not legally binding and hence not admissible in court.

❖ **Citizens' Charter is a written document which-**

- Provides quality services to citizens with prescribed standards.
- Makes the organization transparent, accountable and citizen-oriented.

❖ **Citizens' Charter includes-**

- Standards of the organization's own services
- Information, choices and consultations related to the organization
- Non-discriminatory access to services
- Commitments to its citizens regarding grievance redressal and courtesy etc.



[B] Legal Rights

Legal Rights -

- Rights that are protected, recognized, and enforceable by law, that is, enforced by law.
 - Source of Legal Rights - Constitution, Acts, and various judicial decisions.
 - There is a provision for compensation or punishment for violation of a person's legal rights by a duty-bound person.
- ❖ **Ihering** - Legal rights are interests protected by law.
- ❖ **John Salmond** - Legal rights are those interests of a person that are recognized and protected by law.

Some of the major legal rights available to ordinary citizens are as follows:

(A) Legal rights passed by the Rajasthan Legislative Assembly:

1. Rajasthan Guarantee of Delivery of Public Services Act, **2011**
2. Rajasthan Right to Public Hearing Act, **2012**

(B) Legal rights passed by Parliament:

1. Right to Information Act, 2005
2. Consumer Protection Act, 1986 [Amendment-2019]
3. National Rural Employment Guarantee Act, 2005 (MNREGA)
4. National Food Security Act (NFSA), 2013
5. Right to Free and Compulsory Education Act, 2009

(C) Legal rights granted by the Constitution:

- ❖ Article 39A – Right to free legal aid.
- ❖ Article 300A - Right to Property
- ❖ Article 326 - Right to Vote

Consumer Protection Act, 1986 (Replaced by Consumer Protection Act, 2019)

❖ **Worldwide -**

March 15, 1963 - The Consumer Rights Act was first enacted in the United States. Therefore, March 15 is celebrated as 'World Consumer Day'.

- ❖ 1904 - The first movement for consumer rights in India began in Maharashtra.
- ❖ 1986 - The Consumer Protection Act, 1986 was passed by Parliament, integrating two existing laws: the MRTP Commission Act, 1969 and the Standards of Weights and Measures Act, 1976.
- ❖ **Consumer Protection Act, 1986**
 - Notified - December 24, 1986
 - Effective - July 1, 1987 (except Jammu and Kashmir)
 - December 24 - National Consumer Day
- ❖ The said law was replaced by a new law in 2019.

Consumer Protection Act, 2019

- ❖ Assented and notified by the President - August 9, 2019
- ❖ Applicable - July 20, 2020 (all over India)
- ❖ Consumer Protection Rules - Notified in December 2021.

Important facts in context of Rajasthan -

- ❖ Rajasthan Consumer Protection Commission established in Jaipur (May 26, 1988).
 - Circuit Bench - Jodhpur
- ❖ **Rajasthan Consumer Protection Rules, 2021 - Effective September 7, 2021.**
- ❖ This law applies to all goods, services, unfair trade practices, misleading advertisements, etc., and to all sectors, including public, private, and cooperative.
- ❖ **Three-tier Grievance Redressal System** - This law provides for a three-tier grievance redressal mechanism at the central, state, and district levels.
- ❖ **Consumer Rights - Section 2(9)**
- ❖ **6 Types of Rights -**
 1. **Right to Safety** - Protection from goods and services that are unsafe for life and property.
 2. **Right to Information** - Right to information regarding the quality, purity, standards, and prices of goods and services.
 3. **Right to Choice (Access)** - Right to choose from a variety of goods and services at competitive prices.
 4. **Right to Hearing** - Right to have a consumer's complaint heard at an appropriate forum.
 5. **Right to Grievance Redressal.**
 6. **Right to Consumer Education/Awareness.**
- ❖ **Methods of filing a complaint -**
 1. In person
 2. Online filing through electronic means.
- ❖ **eDaakhil-Portal-**
 - E-Complaint
 - E-Notice
 - Case Document Download Link
 - Video Conferencing Hearing

} etc. facilities available.
- ❖ **Who will be the Complainant - Section 2(5), CPA, 2019**
 - The consumer himself.
 - Recognized NGOs (related to consumer protection).
 - One or more consumers with similar interests.
 - Legal heirs in the event of the death of the consumer.
 - For a minor consumer, his/her parents/legal guardians.
 - The State/Central Government or the Central Consumer Protection Authority.
- ❖ **Reasons for consumer exploitation:**
 - Ignorance/lack of literacy.
 - Lack of information.
 - Limited supply and limited competition (monopoly tendencies)

❖ **Grievance/Complaint-**

Time limit for filing a complaint: ▪ Generally up to a period of 2 years ▪ Complaints may be accepted even after 2 years if there are valid reasons.	Grievance Redressal Period - ▪ Generally - 3 months (90 days) ▪ In cases requiring laboratory testing - 5 months.
--	---

❖ **Mediation Provisions -**

- Both parties (complainant and respondent) are given 5 days for mediation/conciliation.
- There is no right to appeal in cases resolved through mediation.

❖ **Features of the Act -**

- Central Consumer Protection Authority - [Section 10(1)] CCPA, 2019 I
- Regulatory Authority.

❖ **Objective -** To regulate matters related to unfair trade practices, misleading advertisements, and violations of consumer rights.

To promote, protect, and enforce consumer rights.

❖ **Penalty of the Authority -** (against false and misleading advertisements)

₹10 lakh fine or 1 year imprisonment

❖ **For repeat offenders -**

₹50 lakh fine or 3 years imprisonment

❖ **Consumer Protection Council [Section 3]**

These have been constituted at the central, state, and district levels.

Objective: To advise the government on the promotion and protection of consumer rights.

Council		
Central Consumer Protection Council (NCPC)	Central Consumer Protection Council (SCPC)	(District CPC) District Consumer Protection Council DCPC
		Total = 23 (1 + 1 + 21)
❖ Composition- 1 + 35 members	1 + 10 members (Rajasthan 1 + 23 members)	1 + Others (as determined by the Govt.) (in Rajasthan 1 + 1 Vice-President + 21 members)
❖ Chairman - Minister, Department of Consumer Affairs	Minister, Department of Consumer Affairs	District Collector - Chairman CEO, District Council - Vice President
❖ Meeting – once a year (at least)	2 times a year (at least)	2 times a year (at least)

❖ **Consumer Disputes Redressal Commission-**

- **CDRC-** Consumer Dispute Redressal Commission
- **Chairperson** – Chapter 4 (Sections 28-73) CDA, 2019
- Establishment of Consumer Disputes Redressal Commissions at the central, state, and district levels to address complaints filed by consumers.

Commission

National Commission (NCDRC) Section 53	State Commission (SCDRC) Section 42	District Commission or District Consumer Forum or District Forum (DCDRC) Section 28
Established in- 1988 in Delhi	Rajasthan – May 26, 1988 (in Jaipur)	One or more in each district by the State Government
Composition- 1 + 4 members (minimum 1 woman) (maximum – 1 + 10)	1 + 4 members (minimum 1 woman)	1+2 members (minimum 1 woman)
Chairman – sitting or retired judge of the Supreme Court	Sitting or retired High Court judges	Present or retired Judge of the District and Sessions Court
Appointment of Chairman/Members - Central Government	State government	State government
Term of Office: Chairman - 5/70 years Member - 5/67 years	5/67 years	5/65 years
Jurisdiction - Appeals against the decisions of the State Commission	Appeal against the decisions of the District Forum	Admission of case in original jurisdiction
CPA, 2019 – Cases above Rs 10 crore	1 crore to 10 crore	Cases up to 1 crore
CP (Rules), 2021 - More than 2 crores	50 lakh to 2 crore	Cases up to Rs 50 lakh
(Financial Empowerment) Note:- Financial Empowerment amended by Consumer Protection (Rules), 2021.		
Appellate Jurisdiction: Appeal to the Supreme Court against the order of the National Commission (within 30 days). Extension of time for justifiable reasons.	Appeal against the order of the State Commission to the National Commission (within 30 days). (Time can be extended).	Appeal against the order of the District Forum to the State Commission (within 45 days). (Time can be extended).

Mediation – [Section 74] CPA, 2019

- ❖ This Act also provides for an alternative dispute resolution mechanism.
- ❖ Consumer Mediation Cells have been established at all three levels – Central, State, and District.
- ❖ Objective: To facilitate conciliation/agreement between the parties to any dispute (saving money and time).

Product Liability – [Section 82]

- ❖ Liability in respect of a defective/deficient good, product, or service:
 - Product manufacturer
 - Product seller
 - Service provider (individual/company)
- ❖ A suit for compensation will be filed against the above.

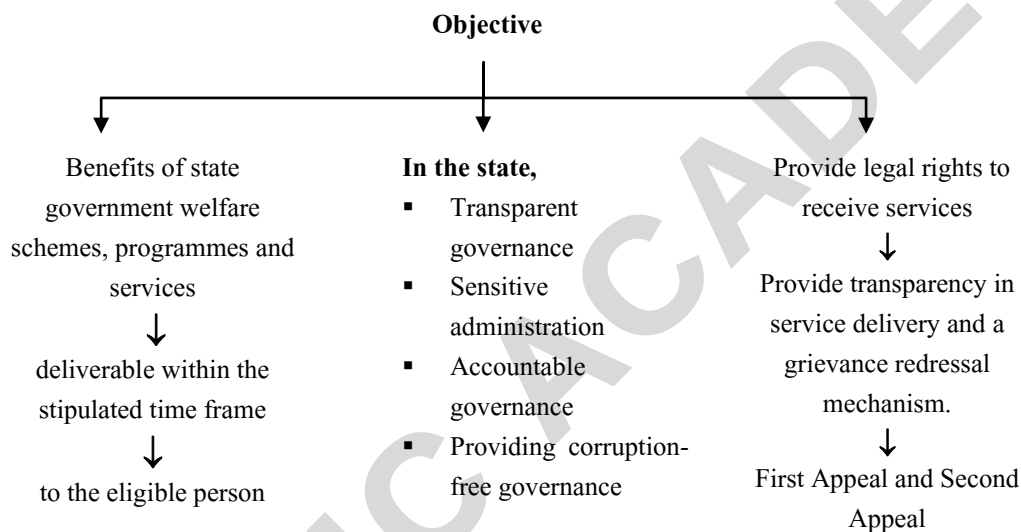
Defective Product Grounds – [Section 84]

- Defective manufacturing.
- Defective design.
- Products that differ from the specifications provided.
- Failure to comply with the warranty provided.
- Services that do not meet the prescribed standards.

[C] Rajasthan Public Services Guarantee Act 2011 (PSGA)

Definition: Public service is the provision of services within a specified timeframe by a government body or public servant in a state.

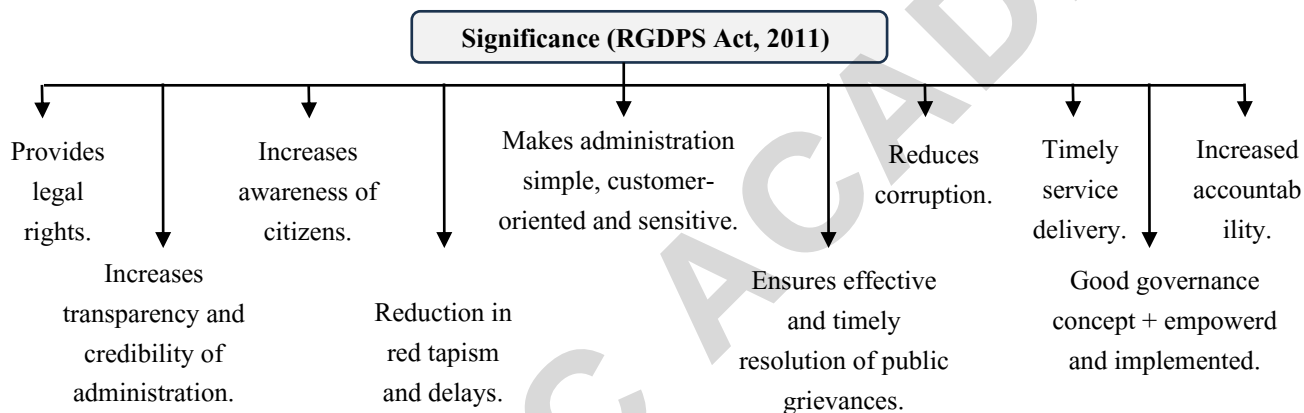
- ❖ **Governor's assent and notification (Gazette)** - September 21, 2011
- ❖ Notification of order of enforcement date - October 5, 2011 by the Governor
- ❖ **Effective - November 14, 2011 [Act No. 2011 (23)]**
- ❖ **Nodal agency** - Department of Administrative Reforms and Coordination.
- ❖ **Enacted in the 62nd year of the Republic of India.**
- ❖ Madhya Pradesh is the first state in India to introduce the PSGA Act, enacted by the Government of Madhya Pradesh on August 18, 2010.



❖ Provisions/Features:

- ❖ Initially, 108 services from 15 departments (currently 28 departments, 306 services)
- ❖ This is an extension of the Citizens' Charter, as it provides for the availability of departmental services within a set timeframe.
- ❖ Under this law, all services of all departments and offices must be displayed on notice boards outside the offices.
- ❖ The applicant must submit an application to the designated officer (with a timeframe for service delivery).
- ❖ No application fee is payable.
- ❖ **Appellate Provisions (Section 6) -**
- ❖ The applicant must submit all documents related to their work to the office. The concerned officer or a person authorized by the officer will issue an acknowledgement/receipt to the applicant, which will state the timeframe for the work.
- ❖ **First Appeal** - If a departmental officer rejects an application or fails to provide service within the stipulated timeframe, the applicant must file a complaint with the **First Appeal Officer** within 30 days. No fee is payable for filing the complaint. The appeal must contain the complainant's full name, address, and complete information.
 - The First Appeal Officer will resolve the complaint within 21 days.
- ❖ **Second Appeal Officer** - If the applicant is dissatisfied with the First Appeal Officer's decision or the First Appeal Officer rejects the complaint, they may appeal to the Second Appeal Officer within 60 days.
- ❖ **There is no time limit specified for the Second Appeal Officer to resolve the complaint.**
- ❖ [Section 7] Provision for Penalties/Fines -

- ❖ **The Second Appellate Officer may impose the following penalties upon the officer of the concerned department or the First Appellate Officer if found guilty:**
 - Failure to provide service within the stipulated time limit: → A fine of ₹250-₹5,000.
 - Denial of service (rejection of application): → A fine of ₹500-₹5,000.
 - If the complaint against the concerned officer is found to be true, the Appellate Officer may recommend disciplinary or punitive action to the competent authority.
- ❖ **The First and Second Appellate Officers have the power/authority to take action under the Code of Civil Procedure, 1908.**
 - Can summon any government document.
 - Issue summons to a public servant.
 - Take a statement on affidavit.
 - Summoning the concerned public servant for testimony.
- ❖ **The First Appellate Authority or the public servant can appeal against the Second Appellate Authority to the authority or appellate authority designated by the State Government.**
 - Under the Rajasthan Public Service Guarantee Act, the Second Appeal is the final or highest appeal for availing services.
 - The Second Appeal is presented before the Second Appellate Authority.
 - Court intervention is barred under this Act.



Drawbacks-

- ❖ Lack of awareness.
- ❖ Complex terminology.
- ❖ First and second appeal officers are from the same hierarchy (same department).
- ❖ Excessive low fines.
- ❖ Disposal of appeals by the first appeal officer within 21 days is a sign of delay in this digital age.
- ❖ Lack of coverage (only 28 departments, 306 services).
- ❖ Vacant posts of first and second appeal officers.
- ❖ Recommendations made by the appeal authorities are not taken seriously.
- ❖ Limitation on the jurisdiction of the court.
- ❖ Complaints are not resolved immediately.

Measures/Suggestions/Solutions to make the law effective:

- ❖ Extensive publicity should be done at the rural level (media, seminars, IFC, advertising).
- ❖ Legal terminology should be in the local language.
- ❖ A separate department or tribunal should be created for appeals.
- ❖ The First Appellate Authority should provide service on applications within 1 week (7 days).
- ❖ All departments should expand their scope or the number of departments and services.
- ❖ Vacant posts should be filled immediately.
- ❖ Limited intervention by the court should be allowed.
- ❖ The amount of fines should be increased.

[D] Rajasthan Right to Hearing Act, 2012 (RTHA)

- ❖ The authority to hear complaints made against any government policy, programme, public service or public servant is called the Right to Hearing Act, Rajasthan.
- ❖ Governor's assent - May 21, 2012
- ❖ Enacted/Implemented - August 1, 2012 (entire Rajasthan)
- ❖ Published in the Gazette - May 22, 2012
- ❖ Act No. 22 of 2012
- ❖ **Rajasthan is the first state in the country to enact an Act to provide legal rights and address public problems.**
- ❖ **Nodal Agency** - Department of Administrative Reforms and Coordination.
- ❖ **Objective** - To provide citizens the right to a timely hearing of complaints against a public servant for failure to deliver services under a policy, program, or scheme implemented by the State Government or the Central Government.

Definitions-

❖ Section 2(b)-

- **Time limit** - The right of a citizen to be heard on a complaint within a prescribed time limit.
- This also includes the right to be informed about the decision on the complaint.

Note:- The complainant is informed of this within 7 days.

❖ Section 2(C) Public Hearing Officer (PHO)- The officer of the concerned department to whom a citizen makes a complaint for an opportunity to be heard.

❖ Section 2(d) Information and Facilitation Centre (IFC)- For publicity and grievance redressal.

- Established by the State Government for efficient and effective redressal of public grievances.
- IFC includes the following:
 - Help Desk
 - Customer Service Center
 - Public Assistance Center
 - Call Center

❖ Section 2(e) – Public Authority

❖ Provisions/Features –

- It is an extension of the Citizens' Charter as it provides for both complaint and penalty.
- It is a supplementary law to the Public Service Guarantee Act.
- Opportunity for timely hearing of complaints (at the nearest place of residence)
- Complaints will be filed free of charge (application and appeal memorandum free of charge)
- Complaints will be filed on plain paper with name, address, and subject written on it.
- IFC formed for assistance.
- Hearing - Fixed time limit (on the day the complaint is made to the Public Hearing Officer).
- The Public Hearing Officer will issue a receipt to the complainant/petitioner.

❖ Appellate Provisions (Section 6) -

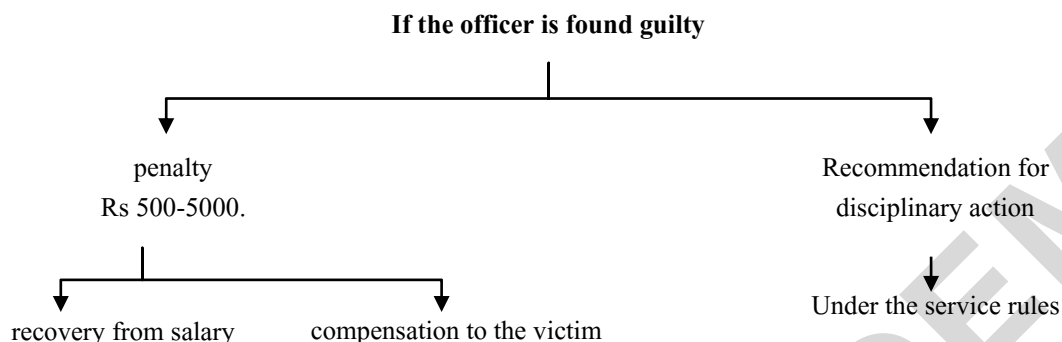
❖ A Public Hearing Officer is appointed in every office who will resolve public grievance appeals within 15 days.

❖ At various levels -

- Gram Panchayat – VDO
- Tehsil level – TDR
- Panchayat level - BDO
- Subdivision level - SDO

❖ First Appeal - Within 30 days.

- ❖ **Second Appeal** - An appeal against the First Appeal Officer can be made to the Second Appeal Officer within 30 days.
- ❖ **Section 7 - Penalty** - If the Second Appeal Officer finds the Public Hearing Officer and the First Appeal Officer guilty.



Note: The Public Hearing Officer and the Authority are nominated by the State Government.

- ❖ **The First and Second Appellate Officers have the power/authority to take action under the Code of Civil Procedure, 1908:**

- Requisition any government document.
- Taking a statement on affidavit.
- Issuing summons to a public servant.
- Summoning the concerned public servant for testimony.
- The First Appellate Officer or the public servant can appeal against the Second Appellate Officer to an authority or appellate officer designated by the State Government.
- Bar of jurisdiction of courts (Section 10)
- Various committees have been constituted under this Act.

For example, at the subdivision level - Subdivision Level Public Grievances and Vigilance Committee,

At the district level - District Level Public Grievances and Vigilance Committee.

Section 8: Revision

- ❖ A Public Hearing Officer or First Appellate Officer aggrieved by the order of the Second Appellate Authority may, within 60 days from the date of such order, apply for revision to the officer or authority designated by the State Government.
- ❖ The designated officer or authority may consider the application even after the expiry of the 60-day period if it is satisfied that the applicant was prevented by sufficient cause from filing a timely appeal.

Weaknesses:

- Complex terminology.
- The First and Second Appellate Officers are from the same hierarchy (the same department).
- The penalty is excessively low.
- The First Appellate Officer's 30-day disposal of an appeal is a sign of delay in this digital age.
- Lack of comprehensiveness.
- Vacant posts of First and Second Appellate Officers.
- Recommendations made by appellate authorities are not taken seriously.
- Restrictions on the jurisdiction of the court.
- Lack of awareness.

Measures/Suggestions/Solutions to make the law effective:

- Extensive publicity should be done provided at the rural level (media, seminars, IFC, advertisements)
- Legal terminology should be available in the local language.
 - A separate department or tribunal should be created for appeals.
 - The First Appellate Authority should provide service on applications within one week.
 - All departments should expand their scope and the number of departments and services.
 - Vacant posts should be filled immediately.
 - The court should be allowed limited intervention.
 - The amount of fines should be increased.

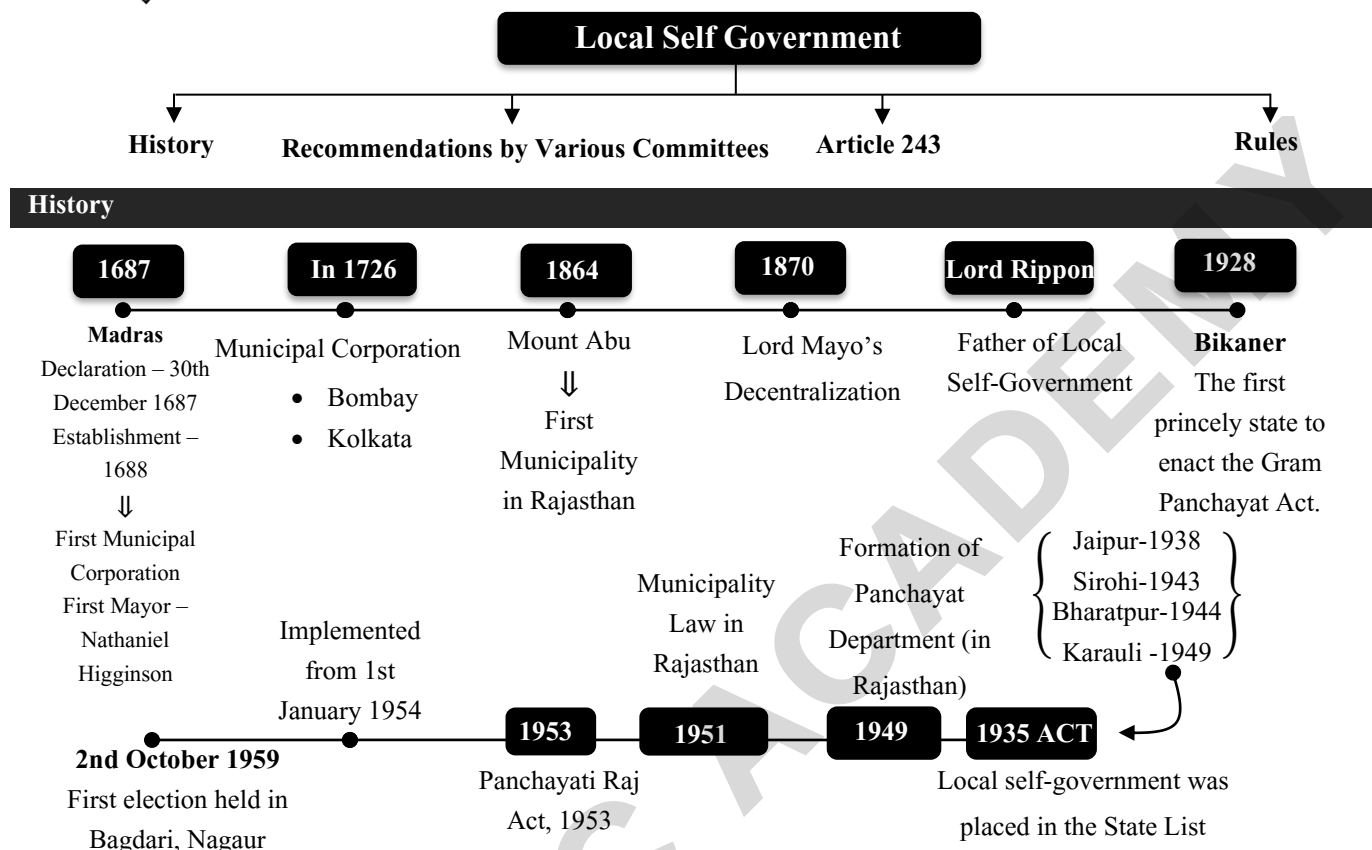
❖ The Rajasthan Government has notified the following as officers at the Panchayat level for matters other than revenue:

At the Panchayat Level	Public Officer	Hearing	First Appeal	Second Appeal
Revenue Matters	Patwari		Tehsildar	Sub-Division Public Grievances and Vigilance Committee
Non-Revenue Matters	Village Development Officer		Block Development Officer	Sub-Division Public Grievances and Vigilance Committee

Difference			
PSGA, 2011		RTHA, 2012	
1.	Effective November 14, 2011	1.	Effective - August 1, 2012
2.	Timely delivery of services to citizens.	2.	Providing citizens with an opportunity to have complaints against public servants heard in a timely manner.
3.	Appointment of a designated officer in each department.	3.	Appointment of a Public Hearing Officer (PHO) in each department.
4.	Two-tier system: → Appeal to the First Appeal Officer within 30 days, resolution within 21 days. → Appeal to the Second Appeal Officer within 60 days.	4.	Three-tier system: PHO (hearing within 15 days) → Appeal to the First Appeal Officer within 30 days → Appeal to the Second Appeal Officer within 30 days.
5.	Second appeal period – 60 days.	5.	Second appeal - 30 days.
6.	Two types of fines: ✓ ₹250 – ₹500 ✓ ₹500 – ₹5000	6.	One type of fine - Rs. 500 - Rs. 5000

Similarities:

- ❖ Both Acts are extensions of the Citizen Charter.
- ❖ Both Acts are implemented by the Department of Administrative Reforms and Coordination.
- ❖ First appeal period in both – 30 days.
- ❖ Penalties are provided in both.
- ❖ Legal obligations for the rights of the general public.



Various Committees

❖ Balwantrai Mehta Committee

- **Community Development Programme (1952)** → Failed - Committee formed to review it
 - **National Extension Service (1953)** →
- Formation:** January 1957
Report Submitted: November 1957
- Based on this report, on **2nd October 1959**, Panchayati Raj system was inaugurated in **Bagdari village, Rajasthan** (Inaugurated by Jawaharlal Nehru)
- | | | |
|--------|----------------------|--|
| Launch | First State - | Rajasthan |
| | II nd | Andhra Pradesh – Shadnagar (Mahbubnagar) |
| | III rd | Tamil Nadu |

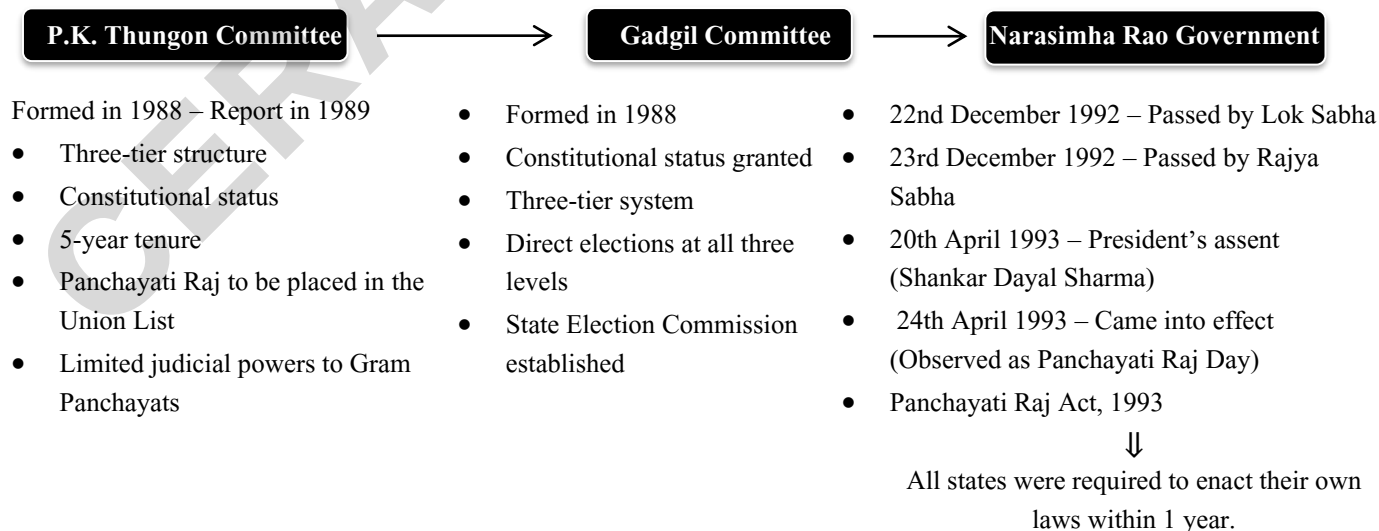
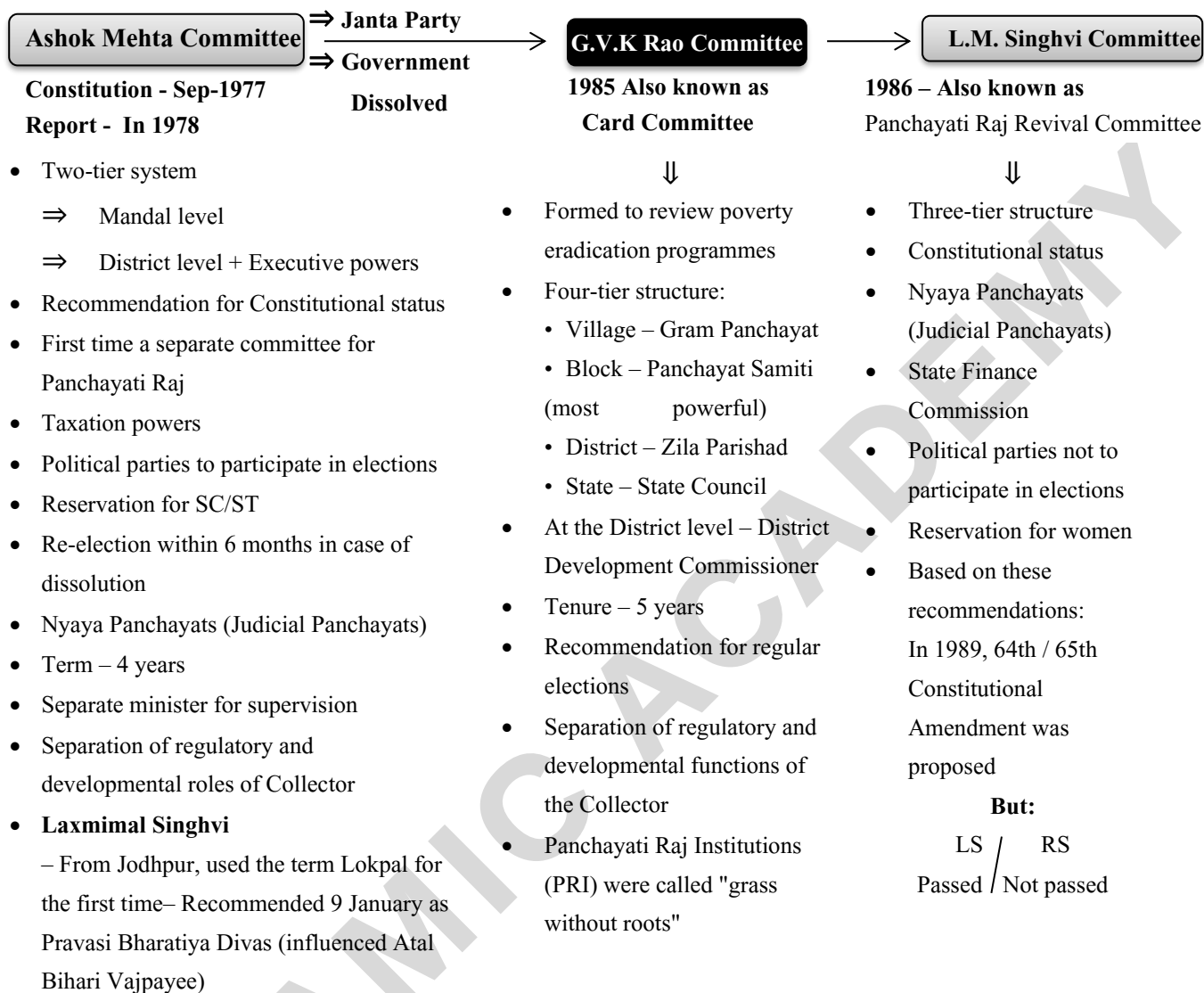
❖ Main Recommendations

- **Three-tier system** (For states with population less than 20 lakhs – two-tier system)

Village →	Gram Panchayat →	Direct election		
Block →	Panchayat Samiti →	Indirect election	-	Executive Body
District →	Zila Parsihad →	Indirect election	-	Advisory Body
- Based on this, **Panchayati Raj institutions** were established in different states, but **lacked uniformity** →

RJ - Three-tier,	TN – Two-tier,	WB – Four-tier
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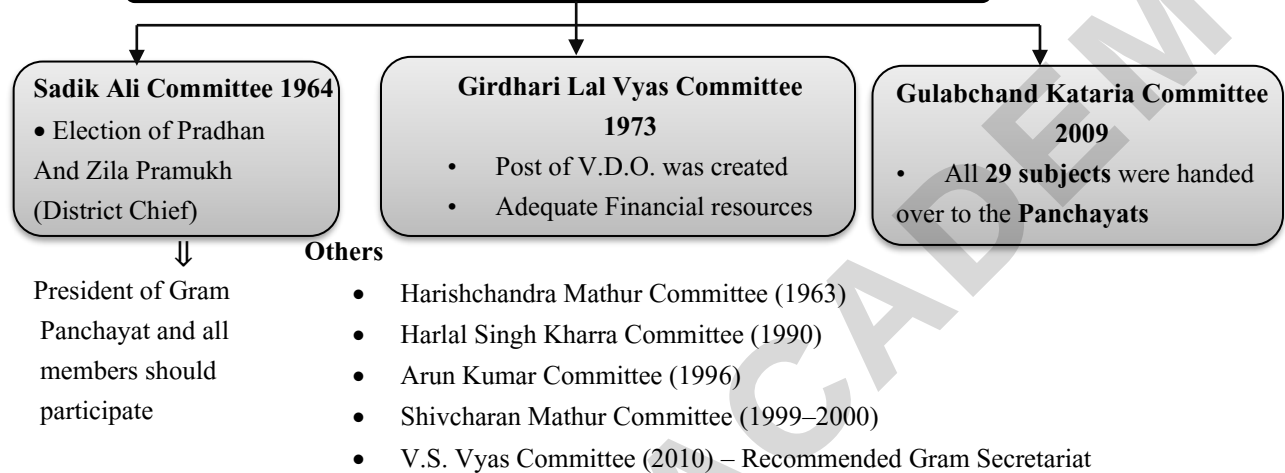
Ashok Mehta Committee



All states must enact their own law within one year.

Karnataka	Rajasthan	First-time elections	Elections in Rajasthan	Rajasthan Panchayati Raj Act, 1996 implemented
First State (to enact the Act) 10 May 1993	23 Apr. 1994	In Madhya Pradesh (May-June 1994)	In 1995	30 December 1996

Committees of the State Government Related to Panchayati Raj



	73rd CA	74 th CA
Part	9	9(A)
Title	Panchayats	Municipalities
Article	243 - 243(0)	243 (P) - 243 (ZG)
Schedule	11 th	12 th
Subject	29	18
Implemented	24 April 1993	1 June, 1993
In Rajasthan	23 April 1994	9 August 1994

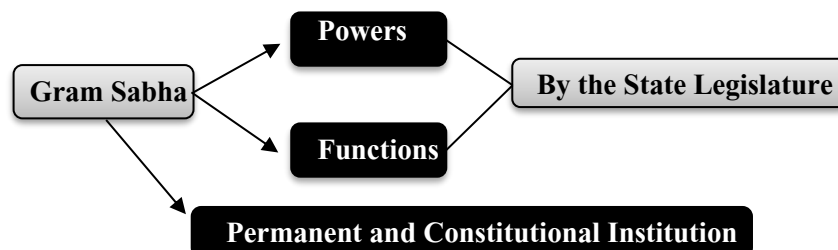
Panchayati Raj and Urban Local Governance

Ar. 243:- Definition

Gram Sabha: Comprises all Voters of the village registered in the electoral roll.

↪ Constitutional body

Ar. 243 (A)



Meeting of the Gram Sabha

Who will call ?	How many time (in a year)	Presided by?	Gram Sabha meeting	Quorum	Panchayati Raj Act, 2011
Sarpanch Time Place Date ↓ Up-Sarpanch ↓ VDO	- Min. 2 times - In Raj.- 4 times { 15 August 26 January 1 May 2 October }	Sarpanch ↓ absent Up-Sarpanch ↓ Any other member of the Gram Sabha	- Notice – 7 days in advance - Details of proceedings of the meetings ↓ V.D.O.	1/10 If quorum is not met → Meeting is adjourned If quorum is not met in 3 consecutive meetings → Notice to Sarpanch	Joint meeting quorum – 5% or 10 members Special meeting – minimum 5% or 25 members

Rajasthan's first Gram Sabha – Muhana Mandi (1999)

Ar. 243 (B) Three-tier system		243 (B) (ii)
243 (B)	Lower Level (Village Level) – Gram Panchayat Intermediate Level (Block Level) – Panchayat Samiti Higher Level (District Level) – Zila Parishad	If the population of a State is less than 20 lakh, the intermediate level is not constituted.
Naming – Optional (i.e., as per the discretion of the State)		

❖ Ar. 243 (C)

Structure of Panchayats

	Member	Chairperson
Village	Direct	Optional {Decided by State Legislature} → Direct (in Rajasthan)
Intermediate	Direct	Indirect
District	Direct	Indirect
MPs/MLAs can be given representation by the State Legislature.		

❖ Ar. 243 (R)

Structure of Municipalities

Members	Chairperson
Direct	Discretionary

❖ **Reservation {Article 243 D + 243 (T)} – Village**

- SC/ST → In proportion to population
- Women → Minimum 1/3 → In 2009, 50% reservation implemented in Rajasthan → 2010, MP became the first state to implement 50% reservation.
- OBC → Optional {In Rajasthan, 21% reservation from 1999}
- Reserved seats → On rotation (cyclical basis)

❖ **Tenure – Article 243 (E) + 243 (U)**

- 5 years from the first session
- Elections must be held before the end of the term
- If post becomes vacant/dissolved – by-elections must be held within 6 months for the remaining term

Disqualifications {Article 243 (F) + (V)} Trick – F = Fail = Disqualify

- **Determined by the State Legislature**

- ✓ But minimum age maximum limit – 21 years

- ✓ Any state can set minimum Age – 20 years

- ✓ But – not 22 years

- ❖ **Article 243 (E) (2): Disputes – By law of the State Legislature**

In Rajasthan, following Qualifications / Disqualifications –

- i. No more than 2 children after 27 Nov. 1995
- ii. Contesting election from 2 places
- iii. Must be a voter of the concerned area
- iv. Education requirement under R.P. Act 1994, Section 19 – ended in 2019

- ❖ **Article 243 (G) + 243 (W): Functions, Powers, Authority**

Trick – G = General Task

- To make and implement programmes of social justice and economic development
- In Rajasthan, 25 subjects have been transferred to Panchayats
- (Report of PIB, Reply by Panchayati Raj Minister) – reference link

On 2nd October, 2010, 5 more subjects were added –

- (i) Agriculture
- (ii) Primary Education
- (iii) Medical & Health
- (iv) Women & Child Development
- (v) Social Justice & Empowerment

- ❖ **Article 243 (H) + 243 (X)**

Power to impose taxes and their funds

- State Legislature makes laws
- Example – Market tax, Fair tax, Land tax, Power to withdraw funds

- **Funds –**

Gram Panchayat Fund – Sarpanch & VDO

Panchayat Samiti Fund – Pradhan & BDO

Zila Parishad Fund – CEO

Trick – H = House Tax Power

- ❖ **Article 243 (I) & (Y)**

State Finance Commission ⇒ Structure ⇒ By law of State Legislature

Trick – I & Y = Fight (I and You) – Over Finance

- Formation ⇒ Governor
- Appointment of Chairperson and Members ⇒ Governor
- Members ⇒ 1 + 4
- Tenure ⇒ 5 years

- ❖ **Article 243 (I) (Y)**

- Annual report ⇒ To Governor ⇒ Presented before Legislature
- Powers ⇒ As determined by State Legislature

Rajasthan State Finance Commissions

Commission	Chairperson	Formation	Tenure
1st	Krishan Kumar Goyal	24 April 1994	1 April 1995 – 31 March 2000
2nd	Heeralal Devpura (Former CM)	1999	1 April 2000 – 31 March 2005
3rd	Manik Chand Surana	2004	2005 – 2010
4th	B.D. Kalla (Former Education Minister)	2011	2010 – 2015
5th	Smt. Jyoti Kiran (Only woman Chairperson)	2014	2015 – 2020
6th	Pradyumn Singh	12 April 2021	2020 – 2025
7th	Dr. Arun Chaturvedi	-	2025 - Present

Article 243 (J) –

Audit of Panchayati Raj Institutions

By law made by State Legislature

J = Inquiry / Audit

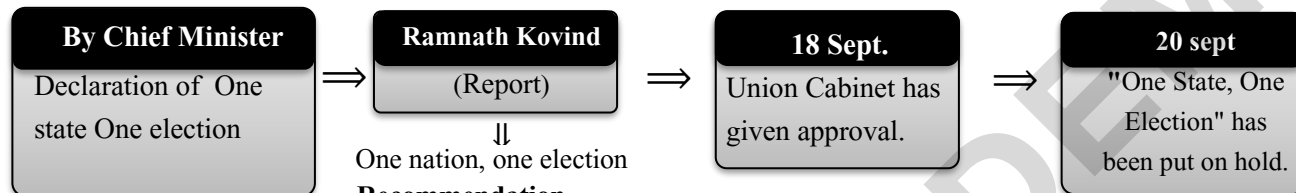
Article 243 (K) –

State Election Commission – Part of Commissions

First Panchayat Elections in Rajasthan – Held in 1960



Budget 2024



Ar. 243(L) -

Ar. 243 (ZB) - ULB

These provisions shall apply in Union Territories (UTs)

The President may also enforce other provisions in any specific UT.

Trick – Applicable in (L) = LG's area

Article 243(M):

These provisions will not apply in certain areas –

1. Areas mentioned under **Article 244(1) and Article 244(2)** – Parliament may enforce the provisions through law here.
- 2.

- Nagaland, Meghalaya, Mizoram
- Hill areas of Manipur where District Councils exist
- Darjeeling area of West Bengal

3. **Reservation for SCs** – Not applicable in Arunachal Pradesh

In areas under Article 243(M)(2), the State Legislature may enforce these provisions by law.

Trick – (M) me MANA kiya hai

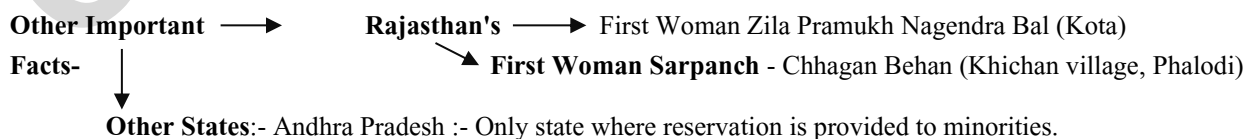
Article 243(N): Existing laws shall remain valid

Laws existing before the 73rd Constitutional Amendment shall continue until repealed by the Legislature.

Article 243(O): Judicial interference in elections to Panchayati Raj institutions is prohibited

Trick – (O) = "O Bhai Court ko beech me mat lana"

State Legislature shall make the law.



Oath:

- Sarpanch, Up-Sarpanch, Ward Panch → Presiding Officer
- Pradhan, Up-Pradhan, Members (Panchayat Samiti) → SDO
- Zila Pramukh, Up-Zila Pramukh, Zila Parishad Members → District Collector

Resignation:

- Sarpanch/Up-Sarpanch/Ward Panch → BDO
- Up-Pradhan/Panchayat Samiti Member → Pradhan
- Pradhan/Up-Zila Pramukh/Zila Parishad Member → Zila Pramukh
- Zila Pramukh → Divisional Commission

Panchayat Training Centres:

- Dungarpur (1994)
- Ajmer (1996)

Gram Sevak Training Centre:

- Mandore (Jodhpur) – Since 1960

No-Confidence Motion in Panchayati Raj: Under Section 37, Subsection 11

Since 2010:	Sarpanch	Quorum = 1/3, 3/4 majority (Ex-officio members are not allowed to participate)
	Up-Sarpanch	
	Pradhan	
	Up-Pradhan	
	Zila Pramukh	
	Up-Zila Pramukh	

No-confidence motion:

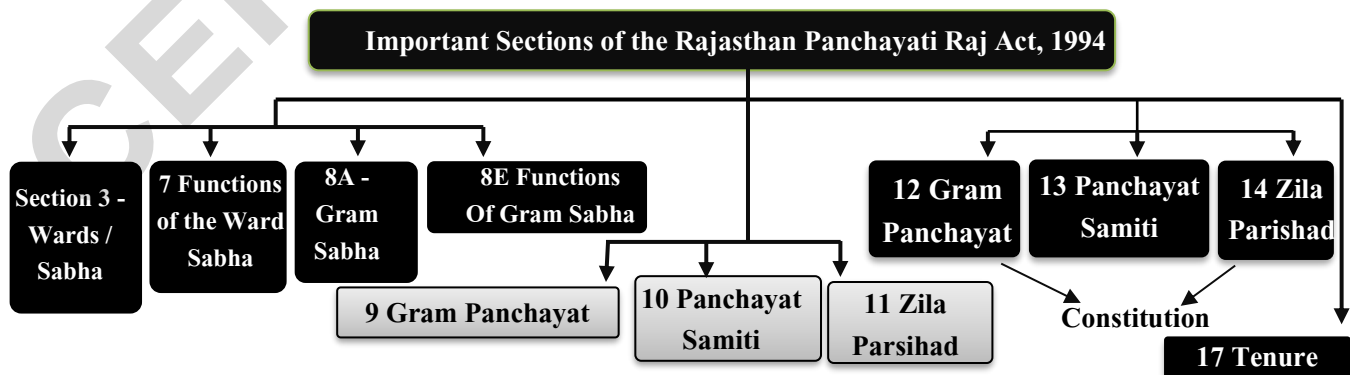
- Within the first 2 years
 - During the last 1 year
 - For 1 year after being rejected once
- cannot be brought

Formation of Panchayat Samiti in Rajasthan: $\frac{1 \text{ lakh population}}{15 \text{ wards}}$

- For every increase of 15,000 in population → 2 wards will be added

Formation of Zila Parishad in Rajasthan: $\frac{4 \text{ lakh population}}{17 \text{ wards}}$

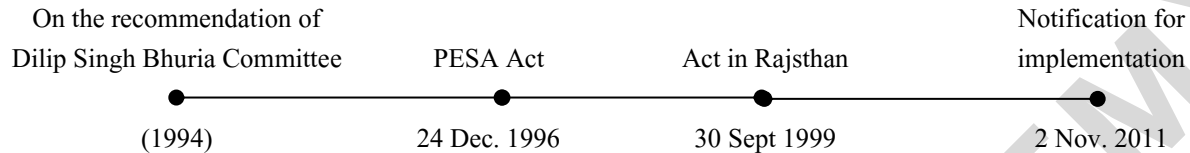
- For every increase of 1 lakh in population → 2 wards will be added



18(C) → Right to Vote	19 → Eligibility	26 → Sarpanch/ Up- Sarpanch
36 → Resignation	37 → No-confidence	38 → Removal
48 → Quorum	50 → Functions of PRIs	79 → BDO
90 → District Establishment Committee		82 → CEO
94 → Dissolution of PRI		89 → VDO

PESA Act, 1996

(Panchayati Raj Extension to scheduled areas)



Major provisions

- **Reservation:** ST among members = Minimum 50%
Chairperson – Chairperson at all levels- ST
- **Presiding over Gram Sabha meetings-** ST member (elected by Gram Sabha)
– If no consensus, then eldest ST woman
- At intermediate and district levels, ST caste members (who lack adequate representation) can be nominated, but not exceeding 10% of total members.
- **Meetings:** 4 times in a year (at 3-month intervals)
- **Powers:**
 - ✓ Minor Forest Produce
 - ✓ Management of minor water bodies
 - ✓ Recommendation of Gram Sabha mandatory for license/lease for minor minerals
 - ✓ Formation of Peace Committee

PESA Act

In 8 Districts of Rajasthan

Dungarpur	Pratapgarh
Chittorgarh	Sirohi
Banswara	Udaipur
Pali	Rajsamand

In 10 States of India

Chhattisgarh	Andhra Pradesh
Himachal Pradesh	Gujarat
Telangana	Jharkhand
Odisha	Maharashtra
Madhya Pradesh	Rajasthan

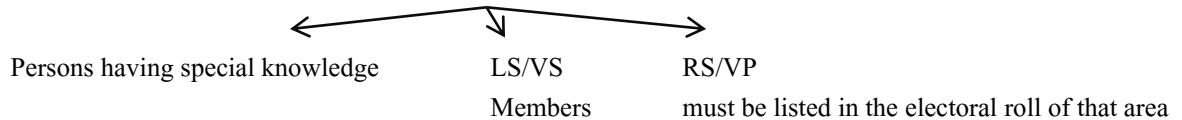
Article 243(P): Definitions

- **Metropolitan Area:** Population more than 10 lakh (1 or more districts + 2 or more municipalities)
Declared by Governor through notification
- **Town:-**
Minimum population - 5000
Population density - 400 persons/sq. km
Minimum 75% males engaged in non-agricultural work

Ar. 243 (Q):- Formation → Three-tier System 1. Municipal Corporation 2. Municipal Council 3. Municipality

- Status of municipality/council/corporation is granted by Governor through notification.

Ar. 243 (R):- State Legislature may, by law, make provision for nomination.



Municipalities Amendment Act 2021

- In Municipal Corporation – Nominated members increased from 6 to 12
- In Municipality – Nominated members increased from 4 to 6
- In Municipal Council – Nominated members increased from 6 to 8 Amendment for inclusion of specially-abled persons (at least one must be a person with disability)

Ar. 243 (S):- Ward Committee- Minimum population of 3 lakh is required.

Ar. 243 (T):- Reservation

Ar. 243 (ZD):- District Planning Committee

- For consolidation of plans prepared by Panchayats and Municipalities
- **Structure – decided by State Legislature**
 - 4/5 members – Elected as per rural/urban population proportion
 - 3 Ex-officio – DM, CEO, Addl. CEO
- **Chairperson** – Zila Pramukh

Total members – 25 (20 elected members)

2 Nominated – By State Government

Ar. 243 (ZE):- Metropolitan Planning Committee- For preparation of development plan in metropolitan area, 2/3rd members must be elected

Ar. 243 (ZF)

Ar. 243 (ZG)

Important Facts

Municipal Elections

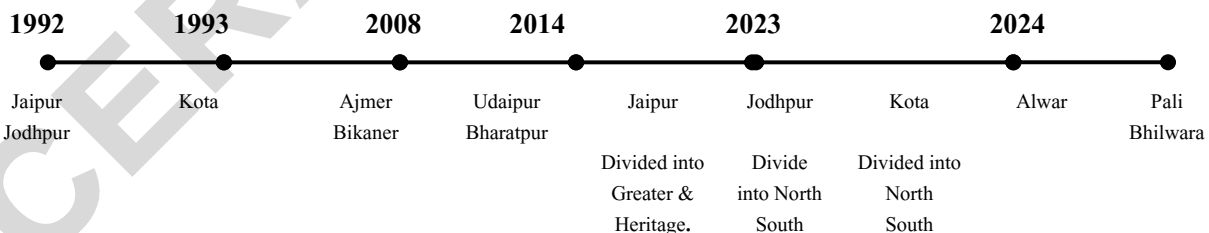
- First held – 1960
- Total – 13 times
- One candidate can file a maximum of 4 nominations.
- A candidate can contest election from only one ward.

Right to Recall

1903	MP	Chattisgarh	Rajasthan	
Los Angeles (USA) – First implementation	2001	2008	3rd 2012	In December 2012, Ashok Jain, a member of Mangrol Municipality, Baran district, was removed by 3/4th majority vote.

Municipal Corporations in Rajasthan

- After the **Gazette Notification in September 2024**, total number of municipal corporations in Rajasthan is updated.
- This was done using **Sections 399 and 337** of the **Rajasthan Municipalities Act, 2009**.



Political Demographics of Rajasthan

- ❖ Definition of Political Demography
- ❖ Political Demography of Rajasthan
- ❖ Political Demography in the Context of the 16th Rajasthan Legislative Assembly

Political Demography

Approach to study

This topic contains many facts but we have to know a general idea/trend about political demography and latest updates. You should not worry about exact facts.

A. Meaning

Political demography is the study of the relationship between population characteristics and political behavior. It examines how the size, structure, composition, and distribution of population influence political outcomes like voting patterns, political participation, representation, and governance.

B. Major Components of Political Demography

1. Size of Population
2. Age-wise Distribution (Youth, Elderly)
3. Gender Ratio (Male-Female Voters)
4. Rural vs Urban Voter Base
5. Caste, Class, Religion-based Segments
6. Migration & Changing Demographics
7. Literacy and Political Awareness
8. Voting Patterns

C. Political Demography of Rajasthan

A. Size, Structure & Distribution of Population:

- As per **Census 2011**, Rajasthan's total population was **6.85 crores**:
 - **Male:** 51.86%, **Female:** 48.14%
 - **Rural Population:** 75.1%, **Urban Population:** 24.9%
- Nearly **two-thirds of the population** in Rajasthan are Voters:
 - **Literate Voters:** 44.2%, **Illiterate Voters:** 55.8%

B. Religion-based Voters:

- As per **Census 2011**: **Hindus:** 88.49%, **Muslims:** 9.07%, **Sikhs, Jains, Christians:** <1%
 - **Highest concentration of:** Sikhs – in Ganganagar

C. Caste-based Voters:

- **Scheduled Caste (SC) Population:** 17.8%, **Scheduled Tribe (ST) Population:** 13.5%
 - Reserved Constituencies: 34 (SC) & 25 (ST)
 - SC Dominant Districts: Jaipur & Ganganagar
 - ST Dominant Region: Southern Rajasthan
- Estimated proportion of major caste groups in Rajasthan (Jats: 12%, Gurjars: 9%, Rajputs: 9%, Brahmins: 7%, Meenas: 7%)
- From a political perspective, special focus is given to Jat, Gurjar, Rajput, Brahmin, Meena Voters.

D. Women Voters:

- In the 16th Rajasthan Assembly Election (2023):
 - **Total Voters:** 5.27 crore, **Women Voters:** 2.51 crore

E. **Youth Voters:** 2.73 crore (~52%)

F. **Urban Voters:** 1.25 crore

D. Key Electoral Data & Developments: Rajasthan Assembly Elections 2023

❖ Electoral Statistics Comparison: 2018 vs 2023

Indicator	2018	2023
EP Ratio	621	652
Gender Ratio (on electoral roll)	919	921
Age Group (18–19 years)	19,84,269 (2.58%)	22,71,647 (2.80%)

❖ Inclusion Initiatives & Voter Participation

- In 2023, the Chief Electoral Officer (CEO) of Rajasthan adopted "**Youth Chala Booth**" and "**Mission 75**" as themes.
- **Sabal Abhiyan** focused on registering **PwDs (Persons with Disabilities) Voters**.
 - PwD Voters: 5,60,425
 - Wheelchair availability was ensured at all polling stations.

❖ SVEEP Campaign for AGE-2023

- Based on **SVEEP-4 Strategy**: ➤ *Voter Focus*, ➤ *Booth Focus*, ➤ *Evidence-based approach*

E. Notable Features of Assembly Elections 2023

1. Introduction of **VVPAT Machines** in all Assembly Constituencies.
2. **Accessible Elections** for PwD Voters.
3. Use of multiple **IT Solutions** by the Election Commission.

❖ Use of IT Tools

- Enhanced website of Rajasthan's Chief Electoral Officer (CEO)
- **App-based services**:
 - Voter Helpline App (for basic information)
 - cVigil App (citizen complaints – 21,298 redressed in 100 mins)
- Strong **social media presence** (Facebook, X, Instagram, YouTube, WhatsApp)

➤ IT Facility on Counting Day

1. **Live Round-wise Results** via Encore Portal & CEO Website
2. Real-time **Election Statistics** (District-wise, Assembly Constituency-wise, Candidate-wise)
3. **339 Large LED Screens** for public result display

➤ Other IT Usages

- Suvidha Permission App across all districts
- **ENCORE Portal** for candidate details & affidavits
- **Candidate Affidavit Management System**
- Election Planner Portal updates
- **Tentative Voter Turnout every 2 hours** via app
- **ETPBS System** for e-Postal Ballots

F. Voter Awareness Campaigns:

(1) Youth Voters

- Shala Darpan portal was used for collecting information of school students in the 17 and 18 age group.
- H2H visits by BLOs and monitoring by AEROs (Assistant Electoral Registration Officers) ensured inclusion of voters in electoral rolls.
- College data collected via Education Department; 100% registration was ensured.
- Voter registration (18–19 years) rose from 13.91 lakh to 22.05 lakh (58.52% rise).
- 75.35% VTR (Voter Turnout) recorded among first-time voters.
- Awareness spread through voter slips, social media, selfies, pledge letters (sankalp patras), etc.

(2) Women Voters

- Organization of cluster camps for all women, especially newlyweds
- Supported by Women Mates, SHGs, ASHA, ANM workers.
- 32,076 newlywed women registered in special camps.

(3) Transgender (TG) Voters

- Registration via Cluster Camps in deras/havelis.
- TG voters increased from 320 (Dec 2022) to 606 (Oct 2023).
- Transgender VTR rose from 32.1% (2018) to 57.05% (2023).
- Rajasthan State AIDS Control Society (RSACS) and TG Champions contributed actively.

(4) Persons with Disabilities (PwDs)

- As of 04.10.2023, a total of 5,60,338 persons with disabilities were included in the voter list.
- PwD VTR reached 76.59% (4,29,255 PwD voters voted).
- Special Measures:
 - Availability of mandatory minimum facilities at all 51,756 polling stations.
 - Arrangement of 26,000 wheelchairs, 5,309 transport vehicles
 - Deployment of volunteers (Scouts/Guides)
 - Braille Ballots & Sign Language training
 - PwD Committees in all 200 Assembly Constituencies.
 - Awareness via SVEEP for PwDs, Pledge letters, Helpline 1950

(5) Particularly Vulnerable Tribal Groups (PVTGs)

- Only PVTG in Rajasthan: Sahariya Tribe (Kishanganj–Shahbad, Baran).
- 77,343 PVTGs voters were registered.
- 1,29,865 Nomadic & De-notified tribes also registered via Cluster Camps.

(6) Senior Citizens

- Arrangement of ramps, priority queues, volunteers, and polling staff assistance for voters above 80 years of age.
- Special programs organized on the occasion of International Day of Older Persons (1 October 2023).
- 11,72,260 Voters in 80+ group
 - 68.75% turnout

(7) Dang Area Strategy – TIP (Turnout Implementation Plan)

- Focused on remote, backward areas in Dholpur and Karauli districts.
- Focused Areas: Bari, Baseri, Rajakhara, Sapotra, Todabhim.
- VTR improved from 71% (2018) to 83% (2023) — 12% rise.
- Used TIP Plans, Booth-level SVEEP and local innovations.

G. Rajasthan Assembly Elections 2023 –**1. Category-wise Contesting Candidates**

- **Total Candidates:** 1,875
 - General: 1,091 (58.19%), SC: 485 (25.87%), ST: 299 (15.95%)

2. Poll Percentage

- 2023 Turnout: Total: 74.62%, Male: 74.88%, Female: 74.18%
- Female turnout has consistently increased and narrowed the gap with male turnout since 1990s.

3. Number of Elected Candidates

- **Elected MLAs:** Male: 180, Female: 20

4. Voter Turnout by Area

Category	Male	Female	Other	Total
Rural	1.58 Cr	1.47 Cr	102	3.05 Cr
Urban	46.68 lakh	42.61 lakh	254	89.30 lakh

5. Performance of Political Parties – Rajasthan Assembly Elections 2023

National Parties

S.N.	Party	Candidates Contested	Winner	Votes Polled	Vote Share (% Valid Votes)	Vote Share (% incl. NOTA)
1	AAP	86	0	1,60,649	0.41%	0.40%
2	BJP	200	115	1,66,08,741	42.10%	41.70%
3	BSP	185	2	7,21,554	1.83%	1.81%
4	CPI(M)	17	0	3,82,378	0.97%	0.96%
5	Congress	199	70	1,57,63,069	39.96%	39.58%

• Performance of National Parties

- ✓ Total Candidates: 687
- ✓ Winners: 187
- ✓ Total Votes received: 3,36,36,391
- ✓ Share in Valid Votes: 85.27%

State Parties

S.N.	Party	Contested	Won	Votes	% Valid Votes	% incl. NOTA
6	RLTP	78	1	9,46,209	2.40%	2.38%
7	Bhartiya Tribal Party (BHRTADVSIP)	27	3	9,29,969	2.36%	2.33%

H. Observations on Political Demography Trends in Rajasthan (1957–2023)

1. Rising Electorate Size

- 1957: ~1.09 crore voters
- 2023: ~5.27 crore voters
- Growth: Nearly 5 times in 66 years, reflecting population growth, better registration, and inclusion efforts.

2. Voter Turnout Pattern

- 1957 Voter Turnout Pattern: ~45.5%
- 2023 Turnout: ~74.62% (highest recorded)
- Observation: Continuous increase reflects increasing political awareness, SVEEP campaigns, and inclusivity.

3. Voters Per Seat

- 1977: ~77,665 Voters per seat
- 2023: ~2,63,945 Voters per seat
- Shows both population pressure and need for potential delimitation or expansion.

4. Increased Participation of Marginalized Groups

- Progressive increase in SC/ST candidates contesting elections.
- Inclusion of Transgender (TG), PwDs, PVTGs, and Newlywed Women in 2023 marks a shift toward inclusive electoral demography.

5. Age Group Dynamics

- Youth (18–19) voters now form 2.80% of the electoral base.
- As a result of special efforts in 2023, the VTR among first-time voters reached a record level of 75.35%.

6. Gender Representation & Participation

- Female Voter Turnout in 2023 nearly at par with males: Male: 74.88%, Female: 74.18%
- Women's increasing turnout since the 1990s indicates their rising political agency.

7. Increasing Electoral Expenditure

- Expenses per voter rose from Rs. 1 (1977) to Rs. 60 (2023).
- This increase indicates more extensive election management, outreach campaigns, and logistical expenses.

8. Fragmentation and Multiparty Competition

- Steady rise in the number of contesting candidates and political parties, especially regional and independent candidates.
- In 2023, the increase in the vote share of independent candidates (7.48%) indicates diversification in voter preferences.

9. Technological and Administrative Changes

- Since 2013 onwards, use of VVPAT, cVigil, IT solutions, and SVEEP has transformed political engagement and transparency.
- Boosted inclusion of elderly, disabled, remote Voters, and tribal communities.

➤ **Conclusion:** Rajasthan's political demography has evolved from a basic electoral setup in the 1950s to a vibrant, inclusive, and participative democracy in 2023. The key demographic drivers today are youth, women, marginalized communities, and urbanization, supported by robust electoral reforms and digital outreach.

I. Women Participation in Rajasthan Vidhan Sabha Since 1952

Year	Women Contes-tants	Elected	Lost	FD	Valid Votes Polled	Elected	Lost	FD	All Contestants
1952	4	0	4	0	3030	0	3030	0	757
1957	21	9	7	5	159733	90994	53519	15220	653
1962	15	8	2	5	150492	116402	32624	1466	890
1967	19	6	7	6	221182	119287	90630	11254	892
1972	17	13	1	3	324955	301436	22001	1518	875
1977	31	8	6	17	254738	169162	79663	5913	1146
1980	31	10	8	13	359300	207166	139286	12851	1406
1985	45	17	7	23	673864	467697	195509	10658	1485
1990	93	11	10	72	709013	425487	237411	46115	3088
1993	97	10	14	73	889545	360246	444193	85106	2438
1998	69	14	11	44	1036312	661387	306285	68640	1439
2003	118	12	30	76	1907233	588253	1144177	174803	1541
2008	154	28	22	104	2605820	1343825	811884	450111	2194
2013	166	28	34	104	3761305	1915800	1554795	290710	2096
2018	189	24	21	144	4002621	1992625	1691907	318089	2294
2023	183	20	35	128	4403612	1926424	2282749	194439	1875

➤ **Key observations****1. Gradual Increase in Female Participation**

- From 4 women candidates in 1952 to 183 women candidates in 2023.
- Shows growing political empowerment and participation of women in Rajasthan.

2. Women Elected to Assembly

- The highest number of women MLAs elected was 28 in 2013.
- In 2023, despite 183 contesting, only 20 won — indicating a gap between participation and success.

3. Success Rate of Women

- Early years (1952–1972): Very low or no success.
- Peak in 1985 and 2013:
 - 1985: 17 elected from 45 (success rate ~37%)
 - 2013: 28 elected from 166 (success rate ~17%)
- 2023: Only 20 elected out of 183 – a success rate of ~11%

4. Proportional Representation Still Low

- In 2023, women hold only 10% of the total Assembly seats (20 out of 200 seats).
- Despite constituting ~49% of the population, women still remain underrepresented.

5. Electoral Engagement of Women Voters

- Valid votes polled to women candidates has steadily risen from 3,030 in 1952 to 44,03,612 in 2023.
- This reflects rising visibility and voter reach of female candidate.

6. Trend of Female Participation vs Total Contestants

- The total contestants have also increased sharply from 757 (1952) to 1,875 (2023).
- However, women consistently make up only 8–10% of the total candidates.

7. Growing Political Ambition But Low Conversion

- More women are contesting, but few are winning — possibly due to:
 - Discrimination/Bias in party nominations
 - Resource disadvantages
 - Voter preferences and social barriers

➤ **Conclusion:** Rajasthan has made steady progress in women's political participation, but representation in legislature remains low.

- There's a need for institutional efforts such as:
 - Political party mandates for female tickets
 - Capacity building and leadership development for women candidates

Party System

- ❖ **Major Political Parties in Rajasthan**
- ❖ **Regional Political Parties in Rajasthan:** (A) Reasons for their absence (B) Their role
- ❖ **Bipolar Political System in Rajasthan:** (A) Reasons for its stability (B) Its impact

Party System

A. Major Political Parties in Rajasthan

1. Ram Rajya Parishad

- **Establishment:** Formed in 1947 under the leadership of **Madan Singh** (Thakur of Doont village) by prominent feudal lords of **Jodhpur and Mewar**.
- **Objective:** To unite **anti-Congress, pro-monarchy**, and **orthodox social forces** under the leadership of landlords and Rajput leaders.
- **Ideology:** Inspired by the ideal of **Ram Rajya**, with **religious values** playing a dominant role.
- **Special Features:**
 1. It was the **first opposition party in Rajasthan**.
 2. It had the **support of Hindu religious leaders**, especially **Swami Karpatri Ji**.
- **Performance:**
 - 1st Assembly Election: Won 24 seats
 - 2nd Assembly Election: Won 17 seats
 - 3rd Assembly Election: Won only 3 seats
- **Decline:**
 - After the third Assembly election, its vote share dropped from 10% to 2%.
 - Eventually, it merged into the Bharatiya Jan Sangh, marking its political end.

2. Bharatiya Jana Sangh

- **Establishment:** October 1951 by Shyama Prasad Mukherjee, inspired by Rashtriya Swayamsevak Sangh (RSS).
- **Objective:** To promote indigenous industries.
- **Electoral Performance:**
 - **1st Assembly Election:** 8 seats
 - **2nd Assembly Election:** 6 seats
 - **3rd Assembly Election:** 15 seats
 - **4th Assembly Election:** 22 seats

3. Swatantra Party

- **Establishment:** August 1959
- **Founder/President:** C. Rajagopalachari
- **Key Members:** Minoo Masani, N.G. Ranga, K.M. Munshi, Gayatri Devi (Rajmata of Jaipur)
- **Social Base:** This party was supported mainly by former rulers, landlords, and royal families of Rajasthan.

For example: In 1961, the party received the support of Jaipur's Rajmata Gayatri Devi.

It was considered the **biggest political threat to Congress** in Rajasthan at the time.

- **Economic Ideology:**

1. **Based on classical liberalism, it advocated:**

- Free market economy
- Opposition to state-controlled economy

2. **Opposed:** Central planning, State monopoly in key industries, Excessive state regulation

3. **Rejected:** State dominance in small-scale and rural industries, Ceiling laws on landholding, Land redistribution and tenancy acts.

- **Electoral Performance:**

- **3rd Assembly Election:** 35 seats
- **4th Assembly Election:** 49 seats
- **5th Assembly Election:** 11 seats

Comment:

Q. Explain the social and economic base of the Swatantra Party in Rajasthan. (15 Marks)

RAS Mains 2016

➤ **Other Major Parties Involved in Rajasthan's Electoral Politics**

1. Communist Party of India (Marxist) – CPI(M)
2. Bahujan Samaj Party – BSP
3. Indian National Lok Dal – INLD
4. Janata Dal (United) – JD(U)
5. Lok Jan Shakti Party – LJP
6. Prabha Pragatisheel Dal
7. Samajik Nyay Manch
8. Rashtriya Loktantrik Party – RLP
9. Bharatiya Adivasi Party – BAP

1. **Samajik Nyay Manch (Social Justice Front)**

- **Established:** In 2003 by **Lokendra Singh Kalvi** and **Devisingh Bhati** as a social-political organization.
- **Area of Influence:** Rajasthan and Haryana.
- **Ideology:** Work based on the foundation of establishing social justice.
- **Performance:** Won **1 seat** in the **12th Rajasthan Legislative Assembly Election (2003)**.

2. **Rashtriya Loktantrik Party (RLP)**

- **Founded:** On **29 October 2018** by **Hanuman Beniwal**.
- **Ideology:** Agrarian-Farmer issues.
- **Headquarters:** Nagaur, Rajasthan.
- **Special Feature:** India's **59th** and Rajasthan's **first regional political party** post-independence.
- **Electoral Performance:**
 - **15th Assembly (2018):** Won **3 seats**
 - **16th Assembly (2023):** Won **1 seat**
 - **Lok Sabha:** Won **1 seat**

3. **Bharatiya Adivasi Party (BAP)**

- **Founder:** **Rajkumar Roat**

- **Current President:** Mohanbhai Roat
 - **Formed On:** 10 September 2022 (after leaving Bharatiya Tribal Party)
 - **Headquarters:** Dungarpur, Rajasthan
 - **Influence:** Predominantly in tribal belts like **Dungarpur, Banswara, Udaipur, Pratapgarh**
4. **Bharatiya Lok Dal**
 - **Establishment:** In 1974 by former Prime Minister **Chaudhary Charan Singh**.
 - **Re-establishment:** In 1984, the Lok Dal was re-established.
 - **Support Base:** This party primarily represents the interests of farmers.
 - **Special Support:** It has special support in **Uttar Pradesh and Haryana**.
 5. **Krantikari Mazdoor Kisan Party**
 - **Establishment:** In 1951, **Acharya Kripalani** separated from Congress and formed this party.
 - **Expansion:** In 1952, the party achieved some electoral success, but later lost its political influence.
 6. **National Unionist Zamindar Party**
 - **Establishment:** Formed in 2013, when **Chhotu Ram's followers** reestablished his political ideology.
 - **Expansion:** This party mainly has influence in **Rajasthan's Hadoti region**.
 - **Electoral Success:** It won **2 seats** in the 2013 Assembly elections.
 7. **Bhartiya Tribal Party (BTP)**
 - **Establishment:** Formed in **2017** in Gujarat by **Chhotubhai Vasava** and **Maheshbhai Vasava**.
 - **Election Symbol:** The symbol "Banana Tree" was allotted by the Election Commission of India.
 - **Ideology:** Focused on **political welfare and rights of tribal communities** (particularly Bhils).
 - **Influence Areas:** Special influence in **Gujarat and Rajasthan**.
 - **Entry into Rajasthan (2018 Assembly Elections):** Fielded candidates in **11 constituencies**.
 - Won **2 seats** – **Chorasi (Rajkumar Roat)** and **Sagwara (Ramprasad)**.
 8. **Bharat Vahini Party**
 - **Founder:** Ghanshyam Tiwari
 - **Election Symbol:** Torch (Mashaal)

B. Why Are There Fewer Regional Parties in Rajasthan?

1. **Dominance of National Parties (INC & BJP)**
 - Since independence, **Indian National Congress (INC)** and later **Bharatiya Janata Party (BJP)** have **dominated Rajasthan's politics**.
 - Their **strong organizational structures**, deep social roots, and pan-state reach have left little space for regional alternatives.
Example: In almost every election since 1993, power has alternated between **INC and BJP**, leading to a **bipolar party system**.
2. **Absence of Strong Regional Identity**
 - Rajasthan, unlike Tamil Nadu or Punjab, lacks a **distinct linguistic, ethnic, or cultural separatist identity** that could drive regional parties.
 - The **Rajput, Jat, Meena, and Gujjar** groups are politically significant, but they have been accommodated by national parties.
Example: Even caste-based leadership like **Gujjars (Kirori Singh Bainsla)** or **Rajputs (Kalvi, Bhati)** joined or allied with national parties.
3. **Failure of Past Regional Experiments**
 - Earlier regional or caste-based parties either **merged** with national parties or **declined quickly**.

Examples:

- **Ram Rajya Parishad** (1947) declined after 3rd assembly election, merged with Bharatiya Jan Sangh.
- **Swatantra Party** was strong during the 1960s, but faded post-1972.
- **Samajik Nyay Manch** won 1 seat in 2003 and then disappeared.

4. Issue-based Mobilisation vs Regional Appeal

- Regional parties need **state-wide appeal**. However, most smaller parties in Rajasthan are **issue-based or caste-centric**, lacking **broad support**.

Examples:

- **RLP** (Hanuman Beniwal) focuses on **farmers and Jat votes**, but couldn't expand beyond Nagaur belt.
- **BAP** (Rajkumar Roat) is strong in **tribal belt**, but limited geographically.

5. Voter Preference for Stable Bipolar Alternatives

- Voters in Rajasthan prefer **clear alternatives** (INC or BJP) leading to a **stable bipolar system**.
- Fear of "wasted vote" keeps people from experimenting with smaller parties.

6. Rajasthan is near to center of national politics-delhi: It is observed that as the distance from delhi increases, number of regional parties in states also increases. example: in south India and north-east India**Conclusion:**

- The **stronghold of national parties**, **absence of regional consciousness**, and **limited base of emerging parties** has restricted the rise of regional parties in Rajasthan.
- Yet, experiments like **RLP** and **BAP** show that **localised political aspirations** do exist — they just haven't yet matured into full-scale regional forces.

C. What Are the Impacts of Having Fewer Regional Parties in Rajasthan?**❖ Positive Impacts****1. Political Stability & Clear Mandate**

- With only two major parties (INC & BJP), elections usually result in **decisive outcomes**.
 - It avoids hung assemblies and frequent political instability seen in multi-party systems.
- Example:** Rajasthan has seen **alternating governments** since 1993 without mid-term collapse.

2. Simplified Political Narrative

- Voters have **clear choices**, leading to higher voter awareness and engagement.
- Campaigns focus on **State-wide Development**, rather than fragmented identity politics.

3. Efficient Governance & Accountability

- Since power shifts between two parties, **each is held accountable** for its performance.
- Encourages **competitive welfare delivery** and **policy continuity**.

Example: Both INC and BJP have launched **schemes targeting farmers, women, and youth**, competing for the same vote bank.

❖ Negative Impacts**1. Underrepresentation of Local Aspirations**

- Absence of regional parties means **local or marginal communities** (tribals, Jats, Gujjars) often feel **politically unheard**.
- National parties often adopt **centralized agendas**, ignoring regional diversities.

Example: Issues like **ST status for Gujjars**, or **tribal autonomy** often get sidelined unless protests erupt.

2. Caste & Identity Politics Within National Parties

- With no strong regional counterforce, caste groups get **co-opted** by national parties.
- Instead of broad social coalitions, politics often becomes **identity-driven factionalism** within parties.

3. Lack of Political Innovation

- National parties are **status quo-oriented** whereas regional parties become active to pursue **new models or demands**.
- In the absence of regional parties in Rajasthan, the state may miss out on **decentralized reforms**, as seen in states like Tamil Nadu and Odisha, where strong regional political forces exist.

4. Weak Voice for Rajasthan at the National Level

- In absence of strong regional parties, **Rajasthan's regional issues** (drought, desert economy, border challenges) often **don't get priority** in national discourse.

Example: Unlike TMC (West Bengal) or BJD (Odisha), Rajasthan lacks a party that **lobbies nationally for state interests**.

- ❖ **Conclusion:** While the **bipolar setup ensures political stability**, it **limits diversity and regional representation**. There's a need for either **internal reforms** within national parties or the **mature rise of responsible regional forces** like RLP or BAP to better represent Rajasthan's unique challenges.

Q: Analyze the absence of any influential state-level political party in Rajasthan."

(100 words), (RAS Mains – 2018)

D. Role of Regional Parties in Indian Politics

1. Representation of Regional Aspirations

- Regional parties articulate **local issues, culture, language, and identity**.
- They fill the **gap left by national parties**, especially in diverse states.

Example:

- **DMK** in Tamil Nadu for Dravidian identity
- **BJD** in Odisha for Odia pride and federal autonomy

2. Strengthening Federalism

- Regional parties have been **key supporters of decentralization**.
- They demand more powers for states and often resist **central overreach**.

Example:

- **TMC** in West Bengal opposing central schemes' direct implementation
- **TRS (now BRS)** pushing for Telangana's autonomy post-formation

3. Kingmakers in Coalition Politics

- From 1989 to 2014, no single party in the Lok Sabha was able to secure a clear majority.
- Regional parties became **essential coalition partners** in forming governments.

Example: Janata Dal, SP, DMK, TDP, and others were part of **NDA or UPA** alliances.

4. Policy Innovation & Public outreach

- Regional parties implement **locally customized welfare schemes**.
- They often have a **strong grassroots cadre**, ensuring deep penetration.

Example:

- **PDS and Noon Meal Scheme** in Tamil Nadu by AIADMK/DMK
- **KALIA Scheme** for farmers by BJD in Odisha

5. Check on Centralized Politics

- They act as **watchdogs against authoritarian tendencies** of national parties.
- They create **political diversity**, preventing one-party dominance.

- ❖ **Conclusion:** Regional parties are **pillars of India's democratic pluralism**. They ensure that **local voices find space in national discourse** and act as **custodians of federal values**. Their presence strengthens both **democracy and governance** from the ground up.

Q. Analyze the emergence of the bipolar political system in Rajasthan since 1998."

(100 words), (RAS Mains – 2016)

E. Bipolar Political System in Rajasthan

Since the year **1998** (i.e., from the 11th Assembly onwards), **Rajasthan has consistently followed a bipolar political trend**, where power alternates between **Congress (INC)** and **BJP**.

Reasons for the Emergence of Bipolar Politics:

1. Absence of Influential Regional Parties

- After the decline of parties like **Ram Rajya Parishad** and **Swatantra Party** post-1989, no strong regional force emerged.
- National parties like **INC and BJP** filled the vacuum, leading to a **consolidation of bipolar politics**.

2. Negligible Impact of Leftist Parties

- Despite socio-economic inequality and agrarian distress, **left parties like CPI, CPI(M)** couldn't gain significant ground in Rajasthan.
- Thus, **class-based politics never matured**, weakening multi-party influence.

3. Lack of Caste-Based Party Formation

- Unlike UP and Bihar, **Dalits and OBCs** in Rajasthan never formed **strong caste-based political parties**.
- This prevented the rise of **third-party alternatives**, reinforcing the bipolar system.

4. Jat–Rajput Power Struggle Politics

- Rajasthan's politics has been shaped by **Jat vs Rajput dominance**, both historically significant landholding castes.
- Since the 20th century, both groups have institutionalized their politics, often aligning with INC or BJP.

5. Caste-based Politics

- Caste-based mobilization (especially among backward and dominant castes) shaped the **state's voting behavior**.
- **Caste alliances** influenced ticket distribution and social justice politics, favoring **bipolar alliances**.
- Due to **reservation debates**, education drives, and local dominance, **caste politics deepened**, but didn't translate into regional party formation.

6. Other Reasons

1. **Leftist parties failed** to provide credible opposition.
2. **Good governance narrative and personality cults** (e.g., Vasundhara Raje, Ashok Gehlot) led to personality-centric bipolar politics.
3. **Welfare schemes and populism** by national parties helped maintain their voter base.

Phases of Political Competition in Rajasthan:

1. Era of Political Instability (1949–1954)
2. Era of One-Party Dominance (1954–1977)
3. Era of Opposition Politics (1977–1980)
4. Congress Rule Dominated by Factionalism (1980–1990)
5. Emergence of Coalition in Rajasthan (1990–1998)
6. Established Bipolar System (1998–Present)

1. Era of Political Instability (1949–1954) or Internal conflict of congress

From 1949 to 1954, 6 ministries were formed, reflecting clear political instability.

Details of the Ministries:**1. Heeralal Shastri (30 March 1949)**

- Became interim Chief Minister with the support of Sardar Patel.
- On 30th March 1949, Sawai Man Singh II administered the oath of office to Heeralal Shastri as the first Prime Minister (Chief Minister) of Rajasthan.
- His appointment led to protests from Jai Narayan Vyas and Manikya Lal Verma.

2. C.S. Venkatachari (January 1951)

- After Patel's death, the Vyas-Verma faction grew stronger.
- Jainarayan Vyas and Manikya Lal Verma opposed Shastri.

C.S. Venkatachari- He was the Secretary of the Ministry of States in the Government of India.

3. Jai Narayan Vyas

Due to internal conflict, Pandit Jawaharlal Nehru supported him and made him the Chief Minister.

4. Tikaram Paliwal (Post-1952 Elections) –

After the defeat of Jaynarayan Vyas in the 1952 elections, Tikaram Paliwal was appointed as the Chief Minister. He took the oath of office on 3rd March 1952.

5. Return of Jaynarayan Vyas –

When Vyas became a member of the newly elected Legislative Assembly, Tikaram Paliwal was removed from the post, and Vyas was reappointed as the Chief Minister. In an effort to include legislators associated with the socialist ideology in the cabinet, the party excluded leaders like Manikya Lal Verma, Mohanlal Sukhadia, and Kumbha Ram Arya from the cabinet.

However, in 1954, Vyas lost his majority in the Assembly and had to resign. Thereafter, Mohanlal Sukhadia was entrusted with the responsibility of Chief Minister.

6. Mohanlal Sukhadia (1954) –

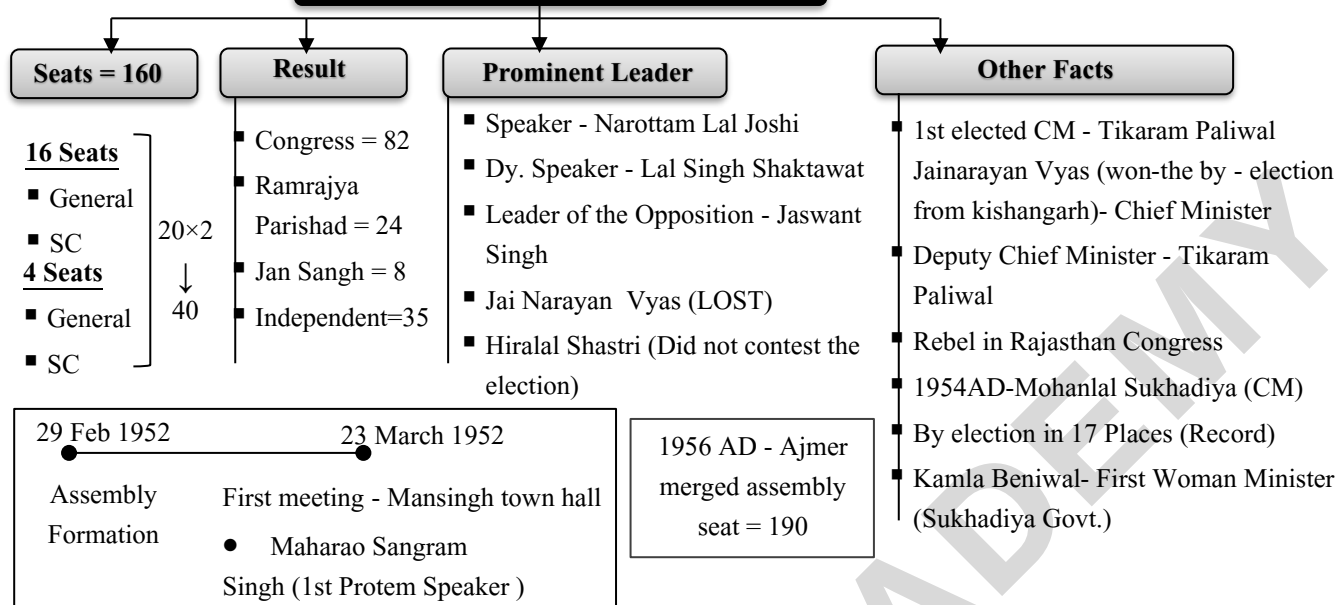
Following Vyas's loss of support in the legislative party, Mohanlal Sukhadia was appointed as the Chief Minister.

2. Era of One-Party Dominance / Congress Dominance (1954–1977)

- In Rajasthan, from the 1st to the 5th Legislative Assembly, the Congress Party remained in power.
- From the 1st to 4th Legislative Assemblies, Congress continuously won with a large majority.
- During this time, the main opposition parties were:
 - Ram Rajya Parishad, Bharatiya Jana Sangh, Swatantra Party

A. First Legislative Assembly Election (1952–1957)**➤ Election Results:**

- | | |
|--|---|
| 1. Congress – 82 seats (7 unopposed) | 2. Ram Rajya Parishad – 24 seats |
| 3. Bharatiya Jan Sangh – 8 seats | 4. Krishikar Lok party – 7 seats |
| 5. Independents – 35 seats | |
| ▪ By-elections were held in 17 constituencies of the 1st Assembly. | |

First Legislative Assembly (1952-1957 AD)❖ **Chief ministers in first assembly**➤ **Tikaram Paliwal (3 March 1952 to 31 October 1952)**

Tikaram Paliwal became the first Chief Minister of Rajasthan on 31 March 1952 after winning the election from Hindoli on a Congress ticket.

➤ **Jai Narayan Vyas (1 Nov 1952)**

- Due to illness, Tikaram Paliwal resigned and Jai Narayan Vyas became the Chief Minister.
- On 1 November 1952, Jai Narayan Vyas was elected to the Rajasthan Assembly from Kishangarh and became the Chief Minister.
 - In 1952, he became the first Chief Minister to be elected via by-election.
- Tikaram Paliwal became Deputy Chief Minister.
- Yashoda Devi was elected from Banswara in 1953 and became the first woman member of the Rajasthan Legislative Assembly.

➤ **Mohanlal Sukhadia (13 November 1954)**

- Due to internal factionalism, Mohanlal Sukhadia defeated Vyas by 8 votes in a Congress Legislature Party meeting held on 6 November 1954.
- On 13 November 1954, Mohanlal Sukhadia formed his government.
- Kamla devi became deputy minister in Sukhadia govt . (first woman minister of rajasthan)
- Congress was weak in Marwar region because of Jodhpur king Hanuwant Singh Ji

Q. Describe the main features of the first Legislative Assembly election held in Rajasthan after Independence. (50 words)

[RAS Mains – 2021]

B. Second Legislative Assembly Election (1957–1962)➤ **Delimitation Representation:**

- Before the elections, the Assembly seats were re-delimited. Although after inclusion of Ajmer-Merwara, the total number of Assembly constituencies was increased to 190.
- The total number of Legislative Assembly seats was fixed at 176.
- Congress won 119 seats, Ram Rajya Parishad got 17 seats, and Bharatiya Jan Sangh secured 6 seats.

- **Chief Minister:** Mohanlal Sukhadia became the Chief Minister for the second time.
- **Speaker – Ramniwas Mirdha (longest Tenure as Speaker)**
- **Rajasthan Assembly General Elections, 1957**

Sr. No.	Name of Party	Candidates Contesting	Candidates Elected	Valid Votes Polled	% of Votes
1	Congress	176	119	2,141,924	45.13%
2	Jan Sangh	47	6	263,443	5.55%
3	P.S.P	25	1	117,532	2.48%
4	R.R.P.	57	17	469,540	9.89%
5	C.P.I.	23	1	143,547	3.02%
6	Independent	325	32	1,610,475	33.93%
Total		653	176	4,746,461	100.00%

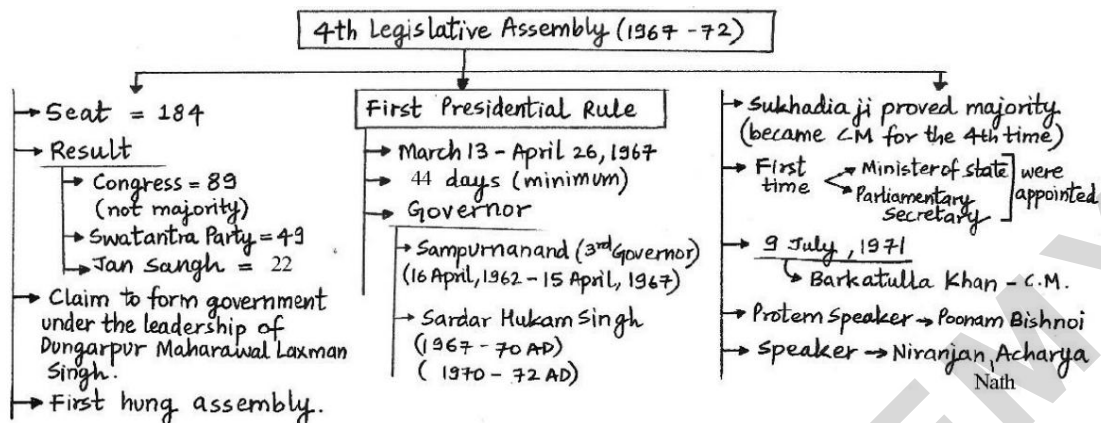
After this, the political influence of Ram Rajya Parishad and Jan Sangh started weakening and the Swatantra Party emerged.

	Sessions	Meetings	Work	Female Legislator
Maximum	5th Assembly (13 sessions)	2nd Assembly (306 sittings)	2nd Assembly (1655 hours)	2008 → 28 women MLA 2013 → 28 women MLA
Minimum	6th Assembly (6 sessions)	9th Assembly (95 sittings)	9th Assembly	1st → 4 women contested elections (all 4 lost) - Yashodadevi (Banswara, 1953) → 1st elected MLA 1954 AD → Kamla Beniwal (Amer Vidhan Sabha) → <i>Praja Samajwadi Party</i>

C. Third Legislative Assembly Elections (1962–1967)

- **Party Representation:**
 - Number of Legislative Assembly seats: **176**
 - Swatantra Party emerged which supported **Rajput and feudal elements**.
 - Congress won 88 seats**; swantatra Party won 36 seats, and **Bharatiya Jana Sangh** got 15 seats.
- **Chief Minister:** Mohanlal Sukhadia became CM for the **third time**.
- **Office Bearers:** Speaker → Ramniwas Mirdha
- **Rajasthan Assembly General Elections, 1962**

S. N.	Name of Party	Candidates Contesting	Candidates Elected	Valid Votes Polled	% of votes
1	Congress	176	88	2,052,383	39.98
2	Jan Sangh	94	15	469,497	9.14
3	PSP	22	2	74,858	1.46
4	RRP	23	3	102,988	2.01
5	CPI	45	5	276,972	5.40
6	Independent	390	22	1,071,581	20.88
7	SWT	93	36	878,056	17.11
8	Socialist Party	40	5	189,147	3.68
9	Hindu Mahasabha	7	0	17,481	0.34
	Total	890	176	5,132,963	100.00

D. Fourth Legislative Assembly Elections (1967–1972)**RAJASTHAN ASSEMBLY GENERAL ELECTIONS, 1967**

S. No.	Name of Party	Candidates		Valid Votes Polled	%
		Contesting	Elected		
1	Congress	182	89	2798204	41.41
2	Jan Sangh	63	22	789609	11.70
3	S.W.T.	108	49	1517475	22.46
4	Samyukt Socialist Party	38	8	321463	4.76
5	C.P.I.	20	1	65531	0.97
6	C.P.M.	22	0	79826	1.18
7	Republican	6	0	10685	0.16
8	P.S.P.	17	0	54618	0.81
9	Independent	436	15	1118645	16.55
Total		892	184	6756056	100.00

E. Fifth Legislative Assembly Elections (1972–1977)**➤ Party Representation:**

- Total number of Assembly seats: **184**
- Due to the 1971 Bangladesh War victory, there was a strong national wave in favor of the Congress, resulting in Congress winning 145 seats in Rajasthan.
- Swatantra Party won 11 seats, and Jana Sangh (Bharatiya Jan Sangh) also had some representation.

➤ Chief Minister: Barkatullah Khan became Chief Minister for the second time.

- After the demise of Barkatullah Khan, Hari Dev Joshi was appointed as the new Chief Minister.

➤ Other Important Point: In 1977, after the **Janata Party** came to power at the Centre, the **Congress government in Rajasthan was dismissed**, and **President's Rule** was imposed for the **second time** (Period: 30 April – 21 June 1977).

Que. Identify the main characteristics of the first phase (1952–1977) of electoral politics in Rajasthan. (100 words)

[RAS-MAINS 2023]

RAJASTHAN ASSEMBLY GENERAL ELECTIONS, 1972

S. No.	Name of Party	Candidates		Valid Votes Polled	%
		Contesting	Elected		
1	Congress	179	145	3976157	51.14
2	Jan Sangh	119	8	948728	12.20
3	S.W.T.	119	11	958097	12.32
4	Socialist	36	4	189851	2.44
5	C.P.I.	5	4	121591	1.56
6	C.P.M.	20	0	74514	0.96
7	R.P.I.	1	0	2137	0.03
8	Congress (O)	37	1	104398	1.34
9	Independent	355	11	1349912	17.36
10	V.H.P.	4	0	50235	0.65
Total		875	184	7775620	100.00

3. Era of Opposition (1977–1980):

- After the Emergency, there was a **wave in favor of the Janata Party** in the elections.
- The Janata Party formed governments at both the Centre and in Rajasthan.
- Thus, the politics of Rajasthan became aligned with the national mainstream, as a result of the Sixth Legislative Assembly Elections (1977-1980).

➤ Party Representation:

- The number of assembly seats was increased to 200.
- Janata Party won 150 seats.
- Congress(41) and others got around 50 seats.

6th Assembly (1977-80 AD)

- Seat = 200
- Janata Party = 150 seats
- Bhairon Singh Shekhawat (1st non-Congress CM)
- In Janata Party - B. S. Shekhawat (WON) V/s Master Adityandra
- 1980 AD → President's rule in the state for the third time.
 - 17 Feb, 1980 - 05 June, 1980
 - Governor - Raghukul Tilak

RAJASTHAN ASSEMBLY GENERAL ELECTIONS, 1977

S. No.	Name of Party	Candidates		Valid Votes Polled	%
		Contesting	Elected		
1	Janta Party	199	150	4138296	50.41
2	Congress	185	41	2578702	31.41
3	C.P.I.	10	1	91640	1.12
4	C.P.M.	14	1	61682	0.75
5	Muslim League	10	0	22583	0.28
6	V.H.P.	4	0	8920	0.11
7	R.R.P.	1	0	320	0.00
8	Independent	723	6	1307163	15.92
	Total	1146	199	8209306	100.00

4. Congress Rule Affected by Factionalism (1980–1990):

- During this period, in both the **7th and 8th Legislative Assembly elections**, Congress secured a clear majority, but due to **internal factionalism**, there were frequent **changes in Chief Ministers**.
- In the **7th Assembly**, the Chief Ministers were: **Jagannath Pahadia**, **Shivcharan Mathur**, and **Heeralal Devpura**.
- In the **8th Assembly**, the Chief Ministers were: **Haridev Joshi**, **Shivcharan Mathur**, and again **Haridev Joshi**.
- During this phase, the **main opposition party to Congress** was the **Bharatiya Janata Party (BJP)**.

➤ 7th Legislative Assembly Elections (1980–1985)

Party Representation: Number of Legislative Assembly seats: 200

- **Congress won 133 seats**, and **BJP won 32 seats**.

➤ Chief Minister: Jagannath Pahadia became the **first Dalit Chief Minister** of Rajasthan.

- After some time, **Jagannath Pahadia was removed**, and **Shivcharan Mathur** was made CM.
- Following the **police firing incident in Dungarpur** related to communal issues, **Shivcharan Mathur was removed**, and **Heeralal Devpura** was made CM. He remained CM for only **16 days**.

➤ Office Bearers: Speaker → **Poonamchand Vishnoi**

- **Other Important Points:** For the first time, mid term elections were held during this assembly term in Rajasthan.

RAJASTHAN ASSEMBLY GENERAL ELECTIONS, 1980

S. No.	Name of Party	Candidates		Valid Votes Polled	%
		Contesting	Elected		
1	I.N.C. (I)	199	133	3975215	42.96
2	I.N.C. (U)	69	6	516887	5.59
3	B.J.P.	123	32	1721321	18.60
4	Janta (J.P.)	76	8	679193	7.34
5	JP(S)Cha.	104	7	909340	9.83
6	JP(S)Raj.	39	0	37907	0.41
7	C.P.I.	25	1	89382	0.97
8	C.P.M.	16	1	111476	1.20
9	Independent	755	12	1211943	13.10
	Total	1406	200	9252664	100.00

➤ **8th Legislative Assembly Elections (1985–1990)****Party Representation:**

- Total number of Assembly seats: **200**
- **Congress** won **113 seats** and **BJP** got **38 seats**.

Chief Minister:

- Haridev Joshi became CM of Rajasthan for the second time.
- After some time, Haridev Joshi was replaced and Shivcharan Mathur was made Chief Minister.
- Later, after Shivcharan Mathur's removal, Haridev Joshi was again made Chief Minister.

RAJASTHAN ASSEMBLY GENERAL ELECTIONS, 1985

S. No.	Name of Party	Candidates		Valid Votes Polled	%
		Contesting	Elected		
1	I.N.C.	198	113	5318026	46.79
2	B.J.P.	117	38	2405389	21.16
3	L.D.	61	27	1361139	11.98
4	J.P.	31	10	675103	5.94
5	C.P.I.	47	0	101147	0.81
6	C.P.M.	17	1	105724	0.98
7	Congress (S)	15	0	9731	0.09
8	Congress (J)	22	0	74450	0.05
9	Independent	977	9	1314903	11.57
	Total	1485	198	11365612	100.00

5. Coalition Politics and Instability (1990–1993)

- During this period, in both the 9th and 10th Legislative Assembly elections, BJP did not secure a full majority, which led to the formation of coalition governments.
- In both these assemblies, Bhairon Singh Shekhawat served as the Chief Minister.
- In 1992, after the Babri Masjid demolition, the BJP government in Rajasthan was dismissed, and President's Rule was imposed in the state for the fourth time, which also became the longest Presidential Rule in the state's history.

➤ **9th Legislative Assembly Elections (1990–1992)****Party Representation:**

- Total number of assembly seats: **200**
- Janata Dal (United Front) won 55 seats
- No party secured an absolute majority
- BJP won 85 seats
- Congress won 50 seats

Chief Minister: BJP, with the support of 55 MLAs from Janata Dal, formed a coalition government in the state, with Bhairon Singh Shekhawat as the Chief Minister.

Other Important Points:

1. Due to the **Ram Mandir Movement**, Janata Dal withdrew its support from BJP, resulting in the **fall of Shekhawat's government**.
2. Following this, the **BJP government was dismissed**, and **President's Rule** was imposed in the state for the **fourth time** (Duration: 15 Dec 1992 – 3 Dec 1993).
3. During this period, the **Congress accused BJP** of inciting communalism, which became a **major electoral issue**.

RAJASTHAN ASSEMBLY GENERAL ELECTIONS, 1990

S. No.	Name of Party	Candidates		Valid Votes Polled	%
		Contesting	Elected		
1	B.J.P.	128	85	3744943	25.25
2	I.N.C.	200	50	4988699	33.64
3	J.D.	120	55	3208196	21.63
4	C.P.I.	41	0	126508	0.85
5	C.P.I.(M)	19	1	153147	1.03
6	J.P.	44	0	41729	0.28
7	L.D.(B)	38	0	26512	0.18
8	Independent others	2498	9	2539114	17.14
	Total	3088	200	14828848	100.00

➤ **10th Legislative Assembly Elections (1993–1998)**

Party Representation:

- Total number of Assembly seats: 200 (BJP → 96 seats, Congress → 76 seats)
- No party secured an absolute majority.

Chief Minister: With the support of independent MLAs, BJP again formed the government.

- Bhairon Singh Shekhawat became Chief Minister for the third time after proving majority with support from 124 MLAs.

RAJASTHAN ASSEMBLY GENERAL ELECTIONS, 1993

S. No.	Name of Party	Candidates		Valid Votes Polled	%
		Contesting	Elected		
1	B.J.P.	197	96	6537868	38.60
2	I.N.C.	200	76	6473211	38.27
3	C.P.I.	7	0	56092	0.33
4	C.P.I.(M)	12	1	153217	0.91
5	J.D.	151	6	1162993	6.87
6	Independent (Elected)	1884	21	801960	4.76
7	Independent & Others		0	1737853	10.27
	Total	2451	200	16923194	100.00

➤ **Bipolar System (1998–Present):** From the 11th to the current 16th Legislative Assembly, a bipolar system has remained in place in Rajasthan, with Congress and BJP alternately forming governments.

- During this period, no third party has emerged as a strong alternative to Congress or BJP.
- From the 11th to the 16th Legislative Assembly, Ashok Gehlot and Vasundhara Raje Scindia alternately served as Chief Ministers.

➤ **11th Legislative Assembly Elections (1998–2003)**

Party Representation: Total Seats: 200

- **Congress:** 150 seats
- **BJP :** 33 seats
- **Chief Minister:** Ashok Gehlot
- Kamla Beniwal became Rajasthan's first woman Deputy Chief Minister

➤ **12th Legislative Assembly Elections (2003–2008)**

Party Representation: BJP: 120 seats, Congress : 56 seats

Chief Minister: After Bhairon Singh Shekhawat became Vice-President of India, Vasundhara Raje became Chief Minister. She was first woman Chief Minister of Rajasthan.

Office Bearers:

1. Speaker → Sumitra Singh (first woman Speaker)
2. Deputy Speaker → Ramnarayan Meena
3. Protem Speaker → Gangaram Chaudhary
4. Leader of Opposition → Ashok Gehlot, Parasram Maderna, Hemaram Choudhary

➤ **Key Points:**

- First Assembly with female Speaker and female Chief Minister.
- Significant women representation: 20 women MLAs elected

➤ **13th Legislative Assembly Elections (2008–2013)**

Party Representation: Congress: 96 seats (largest party)

- With support from independents and BSP MLAs → total 102 seats

Chief Minister: Ashok Gehlot became CM for the second time

Office Bearers: Speaker → Deependra Singh

Key Points: 28 women MLAs elected

➤ **14th Legislative Assembly Elections (2013–2018)**

Party Representation:

- BJP: 163 seats, Congress: 21 seats
- BSP: 3 seats, Others: 9 seats

Chief Minister: Vasundhara Raje became CM for the second time

Key Points: Among 1686 total candidates, **20 women MLAs were elected.**

➤ **15th Legislative Assembly Elections (2018–2023)**

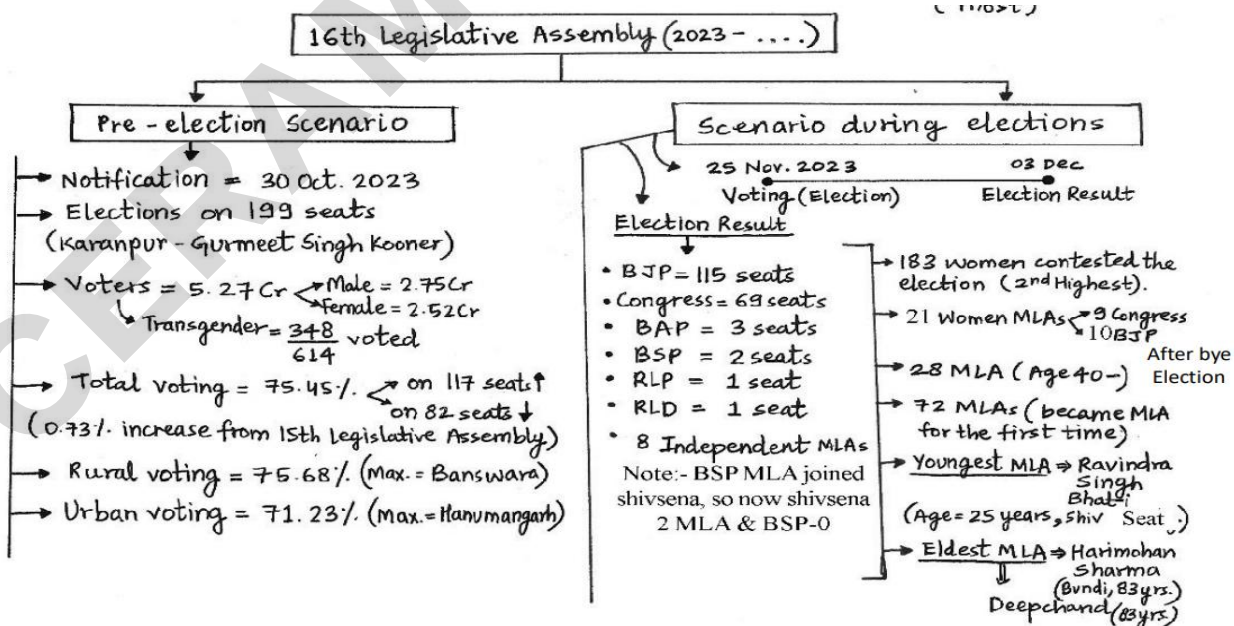
Party Representation:

- Congress: 99 seats, BJP: 73 seats,
- Independents: 13, BSP: 6 seats, RLP: 3 seats, BTP: 2 seats
- **Chief Minister:** With support of others, Congress gained 107 seats, and Ashok Gehlot became CM for the third time

Office Bearers: Speaker → C. P. Joshi

Key Points: Voter turnout: **74.21%**

- By-elections (Sardarpura seat) were conducted due to **Gehlot's dual win.**
- **Speaker's role remained central** in political strategy.



Post election scenario

- Protem Speaker - Kalicharan Saraf (Malviya Nagar)
- Speaker - Vasudev Devnani (Ajmer - North)
- Chief Minister - Bhajanlal Sharma (Leader of the House) (Sanganer)
- Deputy Chief Minister -
 1. Diya Kumari (Vidhyadhar Nagar)
 2. Premchand Bairwa (Dudu)
- 15 Dec. 20 Dec.
- Swearing in ceremony (Albert Hall) (CM ⊕ 2 Dy. CM)
- First Session
- Leader of the Opposition → Tikaram Jolly
- Dy. Leader of Opposition → Ramkesh Meena

Top 3 Political Parties in Rajasthan Legislative Assemblies

Assembly No.	1st Party	Seats (1st)	2nd Party	Seats (2nd)	3rd Party	Seats (3rd)
1st	INC	82	Ram Rajya Parishad	24	BJS	8
2nd	INC	119	Ram Rajya Parishad	17	BJS	6
3rd	INC	88	Swatantra Party	36	BJS	15
4th	INC	89	Swatantra Party	49	BJS	22
5th	INC	145	Swatantra Party	11	BJS	8
6th	Janata Party	150	INC	41	Others	9
7th	INC	133	BJP	32	Others	35
8th	INC	113	BJP	38	Lok dal	27
9th	BJP	85	Janata Dal	55	INC	50
10th	BJP	96	INC	76	Independents	28
11th	INC	150	BJP	33	Others	17
12th	BJP	120	INC	56	Others	24
13th	INC	96	BJP	78	Others	26
14th	BJP	163	INC	21	BSP	3
15th	INC	99	BJP	73	BSP	6
16th	BJP	115	INC	70	BSP	2

Q. In the Rajasthan Legislative Assembly elections held in 2023, answer the following questions related to the participation of the Bharatiya Adivasi Party (BAP): [RAS MAINS – 2023]

- (a) Total number of seats contested by BAP
- (b) Total number of seats won by BAP
- (c) Vote share received by BAP across the state
- (d) Vote share received by BAP in the constituencies it contested

Ans: (a) 27 seats (b) 3 seats (c) 2.33% (d) 16.68%

16th Legislative Assembly –

MISCELLANEOUS**By-election on seven seats of Rajasthan Assembly →**

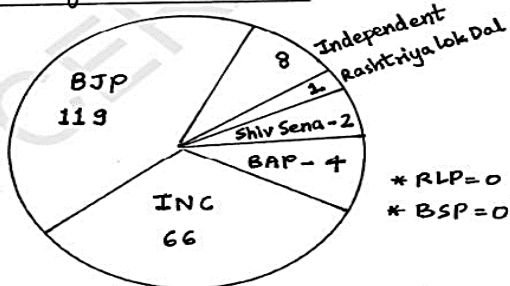
➤ Result → BJP - 5
INC - 1
BAP - 1 (Bharatiya Adivasi Party)

➤ Highest voting → Khinvsar (75.80%)

➤ Minimum voting → Dausa (62.45%)

➤ Currently women MLAs = 21 (BJP = 10 maximum)

➤ Party wise status →



AREA	The winning Candidate	Party
Jhunjhunu	Rajendra Bhamboo	BJP
Ramgarh	Sukhwant Singh	BJP
Deoli-Uniara	Rajendra Gurjar	BJP
Khinvsar	Rewantram Danga	BJP
Salumbar	Shanta Amithal Meena	BJP
Dausa	Deendayal Bairwa	INC
Chaurasi	Anil Kumar Katara	BAP

Note :- Due to the suspension of Anta (Baran) MLA Kanwar Lal Meena, the BJP's current seat count has reduced from 119 to 118.

Practice Question

1. Indian national politics has large impact on politics of Rajasthan. Explain with examples
2. Politics of Rajasthan is replica of politics of India . How ? Explain with examples
3. Features of politics of Rajasthan.

1. How the politics of Rajasthan a reflection of Indian politics?**1. Bipolar Party System**

India: Since the 1990s, Indian politics has largely been dominated by **Congress and BJP** at the national level.

Rajasthan: Similarly, Rajasthan has had a **bipolar contest** between **Congress and BJP**, especially since the 11th Assembly (1998).

Example: National: BJP vs Congress in 2014, 2019, 2024 Lok Sabha elections

- Rajasthan: Alternate governments –
 - 1998, 2008, 2018 → Congress
 - 2003, 2013 → BJP

2. Alternating Governments

Both at the national and state level, Voters tend to reject incumbent parties and swing to the opposition.

Example: National: Congress defeated in 2014 after 10 years in power; BJP returned in 2019.

- Rajasthan: Congress & BJP have alternated almost every election since 1998.

3. Leadership-Centric Campaigns

National: Leadership figures like Modi, Rahul Gandhi, and Indira Gandhi have shaped Indian election outcomes.

Rajasthan: Similar cult-like followings exist for Ashok Gehlot, Vasundhara Raje, and Bhairon Singh Shekhawat.

Example: 2013 Rajasthan Assembly: Vasundhara Raje led BJP to a massive victory.

- 2023 Congress campaign was centered around Gehlot's welfare schemes, just like PM Modi's national popularity drives BJP.

4. Caste and Community Equations

India: Caste-based mobilization like OBC, SC/ST, minority vote banks dominate national politics.

Rajasthan: Politics is deeply caste-driven – **Jats, Rajputs, Gujjars, Meenas, SC/ST** have significant political weight.

Example: Gujjar agitation influences Congress-BJP positioning

- SC/ST vote base crucial for Congress, BTP rise in tribal belts mirrors regional Dalit movements nationally.

5. Rise of Regional & Issue-Based Parties

India: Rise of AAP, TMC, RJD, etc., based on regional/identity issues.

Rajasthan: Emergence of Bharatiya Adivasi Party (BAP) and BTP on tribal issues mimics this trend.

Example: BAP's success in 2023 and performance in the 2024 by-elections reflect regional aspirations similar to the rise of AAP in Delhi and Punjab.

1. Coalition Politics and Instability

India (1989–1999): Coalition era due to fragmented mandates.

Rajasthan (1990–1993): Coalition govt by BJP-Janata Dal; later instability and President's Rule

Example: Both Rajasthan and India saw hung assemblies/parliaments and required post-poll alliances.

7. Welfare Politics & Populism

India: PM Modi's schemes like Ujjwala, PM-Kisan, Ayushman Bharat.

Rajasthan: Ashok Gehlot's Chiranjeevi Yojana, Free electricity, Annapurna Food Scheme – welfare populism dominates agenda

Example: 2023 Rajasthan election campaigns mirrored central populism: “freebies” vs “development” debate

8. Women Participation and Representation

India: Gradual rise in women's representation

Rajasthan: First woman CM (Vasundhara Raje), first woman Speaker (Sumitra Singh), high women voter turnout since 2003.

Example: 2003 onwards: Women's representation grew in both Parliament and Rajasthan Assembly.

Conclusion: Rajasthan's political narrative—from party dynamics to electoral trends, leadership charisma, caste configurations, emerging regional forces, and welfare-based voter mobilization—perfectly reflects the broader trajectory of Indian politics.

2. Indian national politics has large impact on politics of Rajasthan. Explain with examples

➤ Influence of Indian National Politics on Rajasthan Politics

1. Party Performance at Centre Influences State Elections

- Voters in Rajasthan often reflect the national mood in state elections.
- The popularity or unpopularity of the ruling national party directly impacts its performance in Rajasthan.

Example:

- **1977 Assembly elections:** After the Emergency, **anti-Congress wave** swept the country and Rajasthan. Congress was defeated both at Centre and in Rajasthan.
- **2014–2019:** Modi wave at national level helped BJP win **all 25 Lok Sabha seats** in Rajasthan in both elections.

2. Leadership at National Level Shapes State Politics

- National leaders like Indira Gandhi, Narendra Modi, Sonia Gandhi, and others have influenced voter sentiment in Rajasthan.

Example:

- Indira Gandhi's 1971 'Garibi Hatao' campaign proved beneficial for the Congress in the 1972 Rajasthan elections.

- Modi's 2014 and 2019 image of strong leadership helped BJP win massively in Rajasthan even when state leadership was under criticism.

3. Central Policies & Schemes Shape Voter Behaviour in Rajasthan

- Popular national schemes directly influence voting patterns in Rajasthan.

Example:

- Ujjwala Yojana, PM Awas Yojana, Ayushman Bharat played key roles in BJP's success in Rajasthan's rural belts.
- Congress's NYAY scheme (2019) influenced votes in tribal and backward areas of Rajasthan.

4. Political Trends at National Level Replicated in Rajasthan

- Trends like coalition politics, bipolar contests, or rise of third fronts get reflected in Rajasthan too.

Example:

- 1990s coalition era in India was mirrored in Rajasthan with BJP-Janata Dal alliance and President's Rule due to unstable coalitions.
- Post-1998 bipolar shift in India (Congress vs BJP) mirrored in Rajasthan from 11th Assembly onwards.

5. Impact of National Movements and Crises on State Elections

- Events like Emergency, Mandal Commission, Ram Mandir Movement, or demonetization have had ripple effects in Rajasthan.

Example:

- Babri Masjid demolition in 1992 led to fall of BJP government in Rajasthan and imposition of President's Rule (1992–93).
- Mandal politics (1990s) reshaped caste-based alignments in Rajasthan just like it did across North India.

6. The results of the Lok Sabha elections determine the direction of the Assembly elections.

- Often, performance in national elections creates momentum for state elections.

Example:

- 2014 Lok Sabha clean sweep by BJP helped them win 2013 Assembly with 163 seats.
- Congress's 2019 poor Lok Sabha performance dented its image despite winning the state in 2018.

7. National Alliances & Leadership Battles Influence Rajasthan

- Leadership contests at the Centre (like Modi vs Rahul) polarize Rajasthan's electorate too.

Example: In 2023, despite Gehlot's strong local image, national narrative driven by BJP's central leadership turned the tide in many constituencies.

Conclusion:

Rajasthan's politics is deeply intertwined with national political developments. From electoral outcomes to leadership preferences, caste strategies, and popular schemes — national politics sets the narrative and momentum in Rajasthan.

3. Key Features of Politics of Rajasthan

1. Bipolar Political System

- Politics in Rajasthan is primarily dominated by two major national parties— Indian National Congress (INC) and Bharatiya Janata Party (BJP).
- Since 1998, power has alternated between these two parties.

Example: Congress won in 1998, 2008, 2018; BJP won in 2003, 2013.

2. Alternating Governments (Anti-Incumbency Trend)

- Rajasthan Voters often vote out the ruling party every 5 years, reflecting a **strong anti-incumbency pattern**.

Example: No party has returned to power consecutively since 1998.

3. Caste and Community-Based Voting

- **Caste dynamics** play a crucial role in elections. Major caste groups like **Jats, Rajputs, Gujjars, Meenas, Brahmins, SC/STs** significantly influence electoral outcomes.

Example: Jat vs Rajput equations often determine candidate selection in rural constituencies.

4. Strong Regional Leadership

- Leaders like **Ashok Gehlot, Vasundhara Raje, Bhairon Singh Shekhawat** have had mass influence and cult followings.

Example: Ashok Gehlot has been CM three times and Vasundhara Raje twice.

5. Influence of National Politics

- Rajasthan's political trends often mirror the **national political climate** – both in Lok Sabha and Assembly elections.

Example: Post-Emergency 1977, Congress was voted out in both Centre and Rajasthan.

6. Factionalism within Parties

- Both Congress and BJP have witnessed internal power tussles and **leadership rivalries**, often affecting governance.

Example: Pilot vs Gehlot feud in Congress; Vasundhara Raje's marginalisation in BJP circles in 2023.

7. Role of Independent Candidates & Smaller Parties

- Rajasthan has seen frequent emergence of **independents and smaller regional parties** like **BTP, BAP, and RLP**, especially in tribal and rural belts.

Example: BAP won 3 seats in 2023 and performed well in by-elections of 2024.

8. Welfare and Populist Politics

- Politics revolves around **free schemes and subsidies** – water, electricity, healthcare, pensions, etc.

Example: Gehlot's Chiranjeevi Yojana, Free Electricity Scheme mirrored national welfare models.

9. High Voter Turnout in Rural and Tribal Areas

- Rajasthan often records **higher voter turnout in tribal and rural belts**, with active participation by **women voters**.

Example: In many constituencies like Bhiwadi and Dungarpur (2024 bypolls), women outnumbered men in voting.

10. Frequent Use of President's Rule in Past

- Due to political instability or law & order issues, Rajasthan has experienced **President's Rule multiple times**.

Example: 1992–93 post-Babri Masjid; 1977 after Congress's fall.

Conclusion: Rajasthan's politics is a complex blend of national influence, caste dynamics, leadership charisma, and welfare-driven mobilization. It remains one of the most electorally active and politically aware states in India.

X Factor / Marks Booster

Topic	Title	Author(s)
Party System in Rajasthan	The Congress Party in Rajasthan: Political Integration and Institution-Building in an Indian State	Richard Sisson
	Rajasthan: Stable Two-Party Competition	K.C. Suri
	The Congress Party System in Rajasthan: Political Institutionalization in a Traditional Society	John Richard Sisson
Political Demography of Rajasthan	Rajasthan: Polity, Economy & Society	Pradeep K. Sharma, Shyam Lal Sharma
Phases of Political Competition in Rajasthan	Party Competition in Indian States: Electoral Politics in Post-Congress Polity	Suhas Palshikar

	Electoral Dynamics in the States of India	Sandeep Shastri, K.C. Suri, Yogendra Yadav
Panchayati Raj in Rajasthan	Panchayati Raj in Rajasthan: A Case Study in Jaipur District	M.V. Mathur
	Panchayati Raj Administration in Rajasthan: A Study of the Media of Supervision and Control	Ved Prakash Grover
	Panchayati Raj in Rajasthan	Ralph H. Retzlaff
Urban Self-Government Institutions in Rajasthan	Governing Locally: Institutions, Policies and Implementation in Indian Cities	Babu Jacob, Suraj Jacob
	Urban Histories of Rajasthan: Religion, Politics and Society (1550–1800)	Elizabeth M. Thelen
	Local Government in India	Shriram Maheshwari

Topic	Quotation 1	Quotation 2
Party System in Rajasthan	"Rajasthan exemplifies a stable two-party system, where power alternates predictably between the BJP and Congress." – K.C. Suri	"The decline of regional parties in Rajasthan reflects a maturing of nationalized state politics." – Suhas Palshikar
Political Demography	"Caste, community, and geography define the voting blocs of Rajasthan more than ideology." – Pradeep Sharma	"The demographic divide between eastern tribal belts and western arid zones shapes electoral preferences deeply." – Rima Hooja
Phases of Political Competition in Rajasthan	"From Congress dominance to bipolarity, Rajasthan's political journey mirrors India's democratic consolidation." – Richard Sisson	"Each electoral phase in Rajasthan has been marked by shifting alliances but enduring voter patterns." – Yogendra Yadav
Panchayati Raj in Rajasthan	"Rajasthan was the cradle of Panchayati Raj, but decentralization remains a work in progress." – M.V. Mathur	"Empowerment at the grassroots requires more than elections; it needs capacity, trust, and funds." – Ved P. Grover
Urban Self-Government in Rajasthan	"Urban local bodies in Rajasthan are structurally present but functionally dependent on state machinery." – Shriram Maheshwari	"Without fiscal autonomy, urban self-governance remains nominal in cities like Jaipur and Jodhpur." – Suraj Jacob

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Syllabus

Political Dynamics: Role of Caste, Religion, Class, Ethnicity, Language and Gender in Indian Politics, Political Parties and Electoral Behaviour, Civil Society and Political Movement, Issues related to National Integrity and Security, Potential areas of Socio-Political conflicts.

Role of caste in Indian politics

Q1. Caste has both empowered and divided Indian democracy." Critically examine the role of caste in Indian politics.

Many such question can be asked in which we have to answer positive impact and negative impact of caste politics in India.

❖ **Impact of Caste Politics in India**

Dimension	Positive Impact	Examples	Negative Impact	Examples
Political Empowerment	Marginalized communities (SC/ST/OBC) gained voice and representation in legislatures.	Rise of leaders like Mayawati, Lalu Yadav, Kanshi Ram, Nitish Kumar.	Upper caste backlash, identity over governance.	Caste violence in Bihar in 1990s; anti-Mandal protests.
Social Justice	Led to inclusion of historically excluded groups in power and public policy.	Reservation policies, welfare schemes related to Dalit and OBC.	Caste-based appeasement policies and quota politics.	Demands by dominant castes – Patels (Gujarat), Jats (Haryana), Marathas (Maharashtra).
Political Participation	Increased voter turnout among backward communities and assertion of rights.	SC/ST voter turnout now equals or exceeds general category.	Vote bank politics, fragmentation of electorate.	BSP, SP, RJD relying heavily on caste-based votes.
Policy initiatives	Development schemes targeting marginalized groups.	SC/ST Sub-Plan, hostels, scholarships, skill programs.	Caste-based welfare schemes rather than economic need.	
Leadership Diversification	Shift from upper caste monopoly to multi-caste leadership in parties and government.	Dalit President (K.R. Narayanan, Ram Nath Kovind).	symbolic positions without actual power.	Dalit CMs removed under pressure (e.g., Jagannath Pahadia in Rajasthan).
Grassroots Mobilization	Strengthened regional identity and mobilization at local levels.	Panchayat reservation for SC/ST/OBC, community leadership development.	Increased caste tensions and violence, especially in rural areas.	Gujjar-Meena conflict in Rajasthan; Khairlanji killings in Maharashtra.
Demand for Data	Push for caste census for evidence-based policy-making.	2023 Bihar caste survey, demands in Karnataka, Rajasthan.	Fear of caste re-polarisation and undermining national integration.	Political debate around caste enumeration.

❖ **Conclusion:** Caste politics has led to empowerment and inclusion, but has also increased social division and identity polarisation. In such as situation, it is necessary to strike a balance between representation and national unity and moving toward issue-based, inclusive governance.

Q2. Discuss how caste influences voting behavior, political mobilization, and policy formulation in India.❖ **Impact of Caste Politics in India –****1. Influence on Voting Behaviour**

Positive Impact	Examples	Negative Impact	Examples
Empowered marginalized communities; increased political awareness among SC/ST/OBC voters.	High voter turnout among SC/STs; BSP's rise in UP; Congress's SC/ST base in Rajasthan.	Promoted identity-based voting over development or performance.	Voters choosing candidates on caste rather than merit; vote bank politics in Bihar, UP.
Enabled inclusive democracy by ensuring all communities are electorally active.	Rise of Dalit and tribal voter groups in the Hindi-dominated region.	Created fragmentation and polarization of society during elections.	Jat vs Meena in Rajasthan; Yadav vs non-Yadav OBC in UP.

2. Influence on Political Mobilisation

Positive Impact	Examples	Negative Impact	Examples
Enabled political assertion of backward castes and minorities.	Emergence of BSP, SP, RJD, BTP, BAP based on caste identities.	Encouraged caste-based agitation and demands from even dominant castes.	Patidar (Gujarat), Jat (Haryana), Maratha (Maharashtra) reservation movements.
Diversified leadership – previously dominant upper castes shared power with backward communities.	Mayawati, Lalu Yadav, Nitish Kumar, K.R. Narayanan as symbols of caste assertion.	Led to tokenism – symbolic leaders from backward castes without real empowerment.	Jagannath Pahadia's short tenure; pressure-led resignations.
Strengthened grassroots political participation through panchayat reservations.	SC/ST/OBC reservations in local bodies → greater representation.	Sometimes deepened local caste tensions and violence at village level.	Gujjar-Meena clashes, caste-based polling booth tensions.

3. Influence on Policy Formulation

Positive Impact	Examples	Negative Impact	Examples
Led to affirmative action policies – reservation in jobs, education, politics for SC/ST/OBCs.	Mandal Commission (1990); SC/ST Sub-Plan; EWS category introduced later.	Reservation often based on caste identity instead of economic need.	Poor general category excluded despite poverty.
Welfare schemes targeted for caste upliftment (education, housing, health).	SC/ST scholarships, hostels, TSP, Skill programs for OBCs.	Encouraged appeasement politics and competitive backwardness among castes.	Multiple castes demanding inclusion in OBC list to gain benefits.
Demand for caste census to improve policy targeting and welfare allocation.	Bihar caste survey (2023), proposals in Karnataka, Rajasthan.	Risks re-entrenching caste consciousness instead of moving toward a caste-free society.	Heated national political debate around caste enumeration.

Affirmative Action and Caste Politics

- Reservation System:** Post-independence, India introduced a reservation system for Scheduled Castes (SCs), Scheduled Tribes (STs), and later OBCs, aimed at improving their representation in education, employment, and politics.

2. **Mandal Commission:** In the 1980s, the Mandal Commission report recommended expanding reservations to include OBCs. It was implemented in the 1990s, which significantly affected political alignments, leading to a surge in OBC-based political power.
3. **The Rise of Dalit Leaders:** Leaders like B.R. Ambedkar, Mayawati, and Kanshi Ram have been pivotal in Dalit politics. Mayawati's tenure as Chief Minister of Uttar Pradesh is a prominent example of a Dalit leader achieving power through caste-based mobilization.
4. **Caste and Economic Inequality:** Caste often correlates with economic disparity, where lower castes are more likely to experience poverty. Political leaders from marginalized castes campaign on promises to address socio-economic injustices, gaining support for redistributive policies and welfare programs.
5. **Caste-Based Schemes:** Many welfare programs target specific castes to ensure upliftment. For instance, scholarships, housing subsidies, and skill development programs for SC/ST communities. At times, these schemes are used for political purposes to enhance the popularity of public representatives among the concerned communities.

Q3. How has the reservation policy shaped caste dynamics in Indian electoral politics? Discuss with reference to the Mandal Commission.

Q4. What are the major challenges posed by caste-based politics in India? Suggest reforms to make Indian democracy more inclusive.

❖ Challenges of Caste-Based Politics in India & Reforms for Inclusive Democracy

- **Introduction:** Caste has historically shaped India's social and political fabric. While caste-based politics has empowered marginalized communities, it also poses several structural and democratic challenges, undermining unity, meritocracy, and issue-based politics.

➤ Major Challenges of Caste-Based Politics

Challenge	Explanation	Example
1. Priority given to identity over issues	Voters prioritize caste over performance, ideology, or development.	Voting patterns in Bihar, UP, Rajasthan often show caste-based polarisation.
2. Fragmentation of Society	Reinforces caste identities instead of diluting them.	Rise of caste-exclusive rallies, such as Gujjar-Meena conflicts in Rajasthan.
3. Vote Bank Politics	Parties appease castes instead of formulating inclusive policies.	BSP's exclusive focus on Dalits; SP on Yadavs and Muslims.
4. Competitive Backwardness	Dominant castes also demand backward status for reservation benefits.	Jat (Haryana), Patidar (Gujarat), Maratha (Maharashtra) agitations.
5. Undermining Meritocracy	Excessive focus on caste quotas may dilute quality in institutions.	Demands for exceeding 50% quota limit challenge merit-based inclusion.
6. Caste Violence & Instability	Heightened political use of caste leads to conflict and law & order issues.	Bhima Koregaon (Maharashtra), Khairlanji killings, Karauli riots.
7. Policy Skew & Tokenism	Welfare policies designed more for electoral gain than actual upliftment.	Dalit CMs appointed for symbolism, later sidelined (e.g., Jagannath Pahadia).

➤ Reforms for Inclusive Democracy

Reform Area	Suggestion	Impact
Political Reforms	Ban caste-based campaigning; enforce Model Code of Conduct strictly.	Reduce caste-driven hate speech and polarization.
Caste-Neutral Policies	Design welfare schemes based on economic criteria , not just caste.	Target real poor across all castes.

Transparent Data Use	Conduct caste census to identify needs, but avoid politicization.	Promote evidence-based affirmative action.
Education & Awareness	Introduce constitutional values, equality education in schools.	Will address caste prejudices from a young age.
Empowered Local Bodies	Strengthen Panchayati Raj institutions to deliver local justice & inclusion.	Ensure grassroots empowerment across castes.
Inclusive Leadership	Encourage multi-caste party leadership & coalition cabinets.	Provide real power to diverse communities rather than Symbolic.

- **Conclusion:** Caste-based politics is a double-edged sword. It has democratized representation but also led to division and appeasement. The goal should not be to erase caste identities, but to rise above them, creating a democracy that is inclusive, equitable, and development-driven.

- In such a way N number of questions can be framed. answer will be from above content but we have to use the content smartly.
- Questions related to religion and caste can also be asked in the same manner, and their answers can be presented within a similar analytical framework. The only variation will be in the selection of examples, which will change according to the nature of the content.
- Now we will discuss new dimensions/terms and sub-topics associated with this topic.

1. Difference Between Politicisation of Caste and Casteisation of Politics

The concepts of "**Politicisation of Caste**" and "**Casteisation of Politics**" were popularized by eminent Indian political sociologist **Rajni Kothari**.

Aspect	Politicisation of Caste	Casteisation of Politics
Meaning	Entry of caste into political space to demand representation and rights.	Dominance of caste logic in political decision-making and structures.
Direction	Caste → Politics	Politics → Caste
Focus	Mobilising caste groups for political empowerment.	Using caste identities to win elections and consolidate vote banks.
Nature	Social groups adopting political means.	Political system adapting to caste divisions.
Positive Outcome	Enhances democratic participation of backward and marginalized groups.	Promotes identity-based politics over performance or ideology.
Negative Outcome	Can reduce caste to a political instrument, limiting its social transformation.	Leads to vote bank politics, caste tensions, and policy distortion.
Examples	– Rise of Dalit and OBC leaders post-Mandal Commission. – BSP, SP emergence.	– Ticket distribution based solely on caste. – Caste-based riots during elections.
Key Thinker	Concept given by Rajni Kothari, Indian political sociologist.	Same—explained together in his analysis of Indian democracy.

Politicisation of caste is the use of caste to enter politics, while **casteisation of politics** is the transformation of politics into a caste-dominated space.

2. Secularisation /Socialization of Caste in India

Term given by: *M. N. Srinivas* (Indian sociologist)

- **Definition:** Secularisation of caste refers to the **transformation of caste** from a **religious-ritual identity** to a **social, economic, and political identity** in modern India.

Caste is no longer rooted only in purity and pollution but shaped by **education, democracy, economy, and law**.

- **Process of Secularisation of Caste**

Process	Explanation	Example
1. Decline of Ritual Basis	Varna-based purity rules have weakened.	Different castes now work together in cities, offices, industries.
2. Urbanization & Industrialization	Caste relevance reduced in cities; jobs depend on skills, not birth.	IT, banking sectors employ people irrespective of caste.
3. Education & Social Reform	Education promotes equality; reformers attacked caste hierarchy.	Ambedkar, Phule, Periyar; rise of Dalit professionals through access to higher education.
4. Constitutional & Legal Change	Indian Constitution abolished untouchability, provided reservations for backward groups.	Article 15(4), 16(4), 17; political rise of leaders like Mayawati.
5. Media & Globalisation	Mass media, internet, films promote liberal values; caste seen as regressive.	Increase in inter-caste marriages, online criticism of caste bias.

- **Positive Impacts**

Change	Example
Decline in Caste Discrimination	Increase in selection of Dalits in IAS, IPS; end of untouchability.
Political Representation	Rise of Dalit & OBC leaders (Mayawati, Nitish Kumar, K.R. Narayanan).
Social Mobility	SC/ST/OBC representation in bureaucracy, universities, private sector (especially due to reservations).
Increase in Inter-Caste Marriages	Government schemes (e.g., Savita Ambedkar Inter-Caste Marriage Scheme) encourage social fusion.

- **Negative Impacts**

Issue	Example
Politicization of Caste	Caste used for vote-bank politics (e.g., BSP, SP relying on caste identities).
Caste Consciousness	Caste continues to influence marriage & social behaviour.
Violence & Intolerance	Honor killings, Khap Panchayat actions against inter-caste unions.
Persistent Inequality	Landlessness among Dalits, discrimination in rural areas continues.

- **Conclusion:** The secularisation of caste has weakened its ritual base but strengthened its role in political and social life. It has enabled empowerment and mobility, yet caste identity continues to shape marriage, politics, and social behaviour.

Therefore, our objective should be to develop caste as a cultural identity, rather than using it as a cause for division.

3. Analyze the recent demand for a caste census in the context of electoral politics. What are its implications for governance and social justice?

➤ What is a Caste Census?

- A caste census is the process of collecting data on caste-wise population distribution during a government census or survey. While India collects data on Scheduled Castes (SC) and Scheduled Tribes (ST), it does not collect population data on Other Backward Classes (OBCs) or other castes in the general census since 1931.

Historical Timeline of Caste Census in India

Year	Event / Development
1871–1931	Caste was enumerated regularly in decennial censuses. The 1931 census was the last full caste count.
1951 onwards	Independent India stopped collecting caste data, except for SCs & STs.
1990	Mandal Commission used 1931 data to recommend 27% reservation for OBCs.
2011	Socio-Economic and Caste Census (SECC) conducted, but caste data was not released officially.
2021–2024	Rising demands from states like Bihar, Odisha, and Maharashtra for an updated caste census.

➤ Recent Developments

State	Action
Bihar (2023)	Conducted its own Caste-based Survey; Report released in Oct 2023.
Karnataka	Caste-based survey has not been made public; there is a demand to release it in the state.
Rajasthan	Political parties raised demand for caste enumeration during elections.
Centre's View	In 2021, Centre said in court that a caste census (except SC/ST) is not feasible.

➤ Arguments in Favour of Caste Census

Argument	Explanation/Example
1. Evidence-based Policy Making	Accurate caste data helps design better welfare schemes, reservations, and budgets.
2. Social Justice and Equity	Helps assess how much benefit has reached each caste within OBCs or EWS.
3. Rational Reservation System	Prevents overrepresentation of dominant groups and ensures fair distribution.
4. Administrative Transparency	Clarifies actual population share, removing assumptions based on 1931 data.
5. Demand from States	Bihar, Odisha, Jharkhand, and Maharashtra seek it to correct welfare targeting.

➤ Arguments Against Caste Census

Argument	Explanation / Concern
1. May Reinforce Caste Divisions	Promotes caste consciousness and identity-based politics.
2. Political Misuse	Data could be used for vote-bank politics or populist demands.
3. Technical Complexity	Over 6,000 castes/sub-castes – risks inaccuracies and misclassification.
4. Social Backlash	May trigger tensions among castes (e.g., dominant groups demanding quotas).
5. Administrative Burden	Additional cost, manpower, and time required alongside the general census.

➤ **Supreme Court Observations**

- SC in **Indra Sawhney Case (1992)**: Approved OBC reservation but emphasized the need for periodic data review.
- Recently in 2021, SC said collection of caste data is a policy decision, not a constitutional obligation.

- **Conclusion:** Caste remains an essential yet sensitive element in Indian society and politics. A caste census can enable data-driven, inclusive policies, but it must be handled with transparency, safeguards, and a focus on equity over politics. The aim should be **“Empowerment through Data, not Division through Identity”**.

Role of religion in Indian politics

Q1: “Religion has both united and divided Indian democracy.” Critically examine the role of religion in Indian politics.

Impact of Religion on Indian Politics

Dimension	Positive Impact	Examples	Negative Impact	Examples
Religious Representation	Participation of minorities in policy-making and governance.	Sikh leaders like Manmohan Singh.	Underrepresentation of certain communities.	Low Muslim representation in Parliament.
Secular Constitutionalism	Religion-based diversity ensured secular policies and protections.	Article 25–28: Right to religious freedom.	Politicisation of secularism by parties for appeasement.	“Pseudo-secularism” debates; selective appeasement.
Religious Harmony Movements	Interfaith alliances and spiritual leadership promoted social integration.	Mahatma Gandhi’s religious pluralism.	Rise in communal rhetoric and religious polarisation.	Hate speeches, riots during elections.
Vote Bank Politics	Helped secure targeted schemes for minorities (education, welfare).	Prime Minister’s 15-Point Programme for Minorities.	Parties use religion as a tool for electoral gains, not empowerment.	Appeasement of religious groups by Congress, BJP, SP, etc.
Cultural Pluralism	Festivals, faith, and values enrich Indian political identity.	Celebrations of Eid, Holi, Christmas in official spaces.	Religious processions becoming political showdowns, affecting law & order.	Clashes during Ram Navami, Muharram processions.
Community-Based Parties	Enabled religious minorities to form platforms for demands and voice.	IUML, AIMIM, Akali Dal (SAD), etc.	Encouraged identity politics and communal polarisation.	AIMIM accused of dividing secular vote; Shiv Sena of religious assertion.

Q2: How does religion influence voting behaviour, political mobilisation, and policy formulation in India?

1. Voting Behaviour

Positive	Examples	Negative	Examples
Empowered religious minorities to vote for justice, rights.	Minority consolidation to protect constitutional freedoms.	Polarised voting leads to identity politics.	Hindu-Muslim polarisation in UP, Gujarat.
Community-centric issues now part of campaign agendas.	Representation of educational rights, Waqf Boards, etc.	Voters swayed by religious appeal over development.	Temple-mosque politics.

2. Political Mobilisation

Positive	Examples	Negative	Examples
Mobilisation for social justice	Shah Bano movement, Triple Talaq protest.	Mobilisation often communal in nature, leading to violence.	Babri Masjid movement, Delhi riots 2020.
Religious institutions raising political awareness.	Church-led protests in Kerala; Sikh politics in Punjab.	Religious leaders influencing elections undemocratically.	Hate speeches by sadhus, imams before polls.

3. Policy Formulation

Positive	Examples	Negative	Examples
Targeted welfare schemes for minorities.	Maulana Azad Foundation, scholarship schemes.	Some policies seen as appeasement.	Minority sub-plan questioned for political motive.
Personal laws allow religious autonomy.	Muslim Personal Law Board, Sikh marriage laws.	Religious personal laws clash with gender justice.	Triple Talaq, polygamy debates; Shah Bano case.

Q3: What are the major challenges of religion-based politics? Suggest reforms.

➤ **Challenges of Religion in Politics**

Challenge	Explanation	Example
Communal Polarisation	Elections become platforms for religious conflict.	Delhi Riots 2020, UP 2013 Muzaffarnagar riots.
Appeasement Politics	Minority-majority appeasement for vote banks, not real empowerment.	Congress' soft-Hindutva; BJP's hard Hindutva.
Mob Lynching & Hate	Political support emboldens fringe groups.	Pehlu Khan case; Cow vigilantism.
Law & Order Disruption	Religious processions turned into political muscle shows.	Clashes during Ram Navami or Eid.
Undermining Secularism	Parties misuse the word 'secular' to label opponents.	"Tukde Tukde gang", "pseudo-secular" labels.

➤ **Reforms for Inclusive Politics**

Reform Area	Suggestion	Impact
Electoral Reforms	Ban religious appeals during campaigns (via MCC enforcement).	Reduces identity-based polarisation.
Educational Initiatives	Promote secular values in textbooks and school curriculums.	Long-term reduction in communal mindset.
Strengthening Secularism	Strict action against hate speech, communal mobilization.	Ensures constitutional morality and social harmony.
Uniform Civil Code	Debate and implement UCC with consensus, ensuring justice for all.	Reduces communal tension while ensuring equality.
Minority Inclusion	Increase representation in bureaucracy, police, education.	Inclusive democracy; integration of minorities.

Q4: Differentiate between Religious Mobilisation and Religious Appeasement

Aspect	Religious Mobilisation	Religious Appeasement
Meaning	When people organize around faith issues to claim rights.	When political parties give undue favours for vote banks.
Focus	Rights-based awareness and participation.	Populist promises for electoral gains.
Example (Good)	Triple Talaq protests by women.	None
Example (Bad)	Ram Mandir mobilisation for political gain.	Promise of pilgrimage subsidies without reform intent.

Q5: Related Term – Communalism

Type	Explanation
Mild Communalism	Appeal for community upliftment (e.g., Muslim education upliftment)
Extreme Communalism	One religion seen as superior/in danger → leads to violence (e.g., riots)
Political Communalism	Religion used for electoral polarisation

- **Conclusion:** Religion plays a dual role in Indian politics — it can be a source of social identity and empowerment, but also of division and manipulation. The challenge lies in upholding the secular democratic ethos, where religion guides values, not votes.

The spirit of Indian democracy must remain: “**Sarva Dharma Sambhav**” – equal respect for all religions.

➤ **Appeasement vs. Satiation:**

Term	Meaning
Appeasement	Politics of pleasing a specific community through symbolic gestures or selective benefits—usually to secure votes.
Satiation (Satisfaction-Based Politics)	Governance aimed at holistic development and actual delivery of benefits to all sections, regardless of religion/caste, to ensure real inclusion.

➤ **Appeasement vs. Satiation:**

Aspect	Appeasement	Satiation (Satisfaction-Based Politics)
Focus	Identity-based (religion/caste) targeting	Needs-based targeting across communities
Objective	Securing votes from a particular community	Delivering welfare and governance to all equitably
Nature	Often symbolic (e.g., festival grants, personal law exemptions)	Structural changes (e.g., housing, electricity, roads for poor regardless of caste)
Criticism	Creates social divide, resentment, vote banks	Aims to neutralize divisive politics by creating common benefits
Example	Pilgrimage subsidies for a specific community	Ujjwala Yojana, Ayushman Bharat – universal access programs

➤ **Examples in Indian Politics**

Example	Interpretation
Minority scholarship (Pre-2014)	Seen as appeasement by some political parties.
PM Awas Yojana, PM Kisan, Ujjwala	Examples of Satiation – These schemes benefit all religions and castes.
Abrogation of Art 370	Claimed as moving away from appeasement to equal law.

- **Conclusion:** "Indian democracy is maturing from identity-centric politics to outcome-based governance. The transition from appeasement to Satiation reflects this evolution — where delivery matters more than dialogue, and performance matters more than promises."

Role of Class in Indian Politics

Though caste is often viewed as the primary social division in Indian society, class—defined by economic position, occupation, and ownership of resources—plays a crucial and increasingly significant role in shaping Indian politics.

In modern India, class and caste often intersect, but economic class-based inequalities are now influencing political demands, mobilisation, and policy formulation more than ever.

Role of Class in Indian Politics

In Indian politics, caste and religion have traditionally dominated identity-based mobilisation. However, class, defined by one's economic position, occupation, and access to resources, is becoming a crucial axis of political engagement.

While class and caste often intersect, class-based concerns such as poverty, unemployment, inflation, land rights, and welfare access are now central to political discourse and policy-making.

➤ Types of Class Relevant in Indian Politics

Class Type	Key Characteristics	Political Role
Working Class	Labourers, construction workers, factory staff	Trade unions, protests for wage & job security (e.g., MNREGA, ESI)
Peasant Class	Small/marginal farmers, landless cultivators	Farmer movements demanding MSP, loan waivers (e.g., 2020–21 protests)
Urban Poor	Slum dwellers, informal workers, domestic helpers	Welfare-dependent vote bank (e.g., Delhi's free electricity, PMAY)
Middle Class	Salaried professionals, teachers, small traders	Vocal on transparency in governance, corruption; demands for tax reforms and better services.
Upper Class/ Elite	Industrialists, bureaucratic elite	Influence through lobbying, corporate funding, policy shaping
Women as Class	Across income groups; united by welfare dependency & shared experience	Decisive voting bloc (e.g., Ujjwala Yojana, women's turnout in Bihar, UP)
Gig/Platform Workers	App-based workers like delivery boys, freelancers	Demand for job security, social welfare (e.g., Zomato protests, gig law debates)

➤ Impact of classes on Indian politics

1. Voting Behaviour

Positive	Examples
Economic issues now influence rural & urban votes	Rural poor vote for MNREGA, food security; middle class for tax & services
Women vote based on welfare delivery	Bihar 2020, UP 2022: Women Voters decisive due to gas, ration, housing schemes
Negative	Examples
Identity often overshadows class	Caste/religion still dominate in vote choice despite shared economic struggles
Elite & upper-middle-class voter apathy	Low turnout in metros; low engagement with ground issues

2. Political Mobilisation

Form of Mobilisation	Examples
Peasant Movements	Bharatiya Kisan Union, AIKS protests for MSP
Labour Movements	1974 Railway Strike (George Fernandes); ASHA & Anganwadi worker protests
Digital middle class activism	India Against Corruption (2011), online campaigns for governance & accountability
Women as Welfare Class	SHGs, grassroots protests (Ladli schemes)

3. Policy Formulation

Targeted Class	Key Schemes & Demands
Rural Poor	MGNREGA, PMAY-G, PDS, Ujjwala, toilets
Farmers	Loan waivers, PM-Kisan, MSP legislation
Middle Class	Tax rebates, health insurance, education loans
Women	PM Matru Vandana, Ladli Yojana, Kanya Sumangala, gender-based incentives
Urban Informal Workers	E-Shram portal, Jan Dhan Yojana, Urban Livelihood Missions

➤ Caste-Class Interconnection in Indian Politics

- Most rural poor belong to SC/ST/OBC groups, reflecting how social exclusion overlaps with economic vulnerability.
- Neo-middle class Dalits/OBCs are emerging due to education, jobs, and urban migration.
- Political parties now target both identity and economic class to win elections.

➤ Challenges of Class-Based Politics in India

Challenge	Explanation
Weak class consciousness	Divisions by caste/religion dilute class-based solidarity
Fragmentation of working class	No pan-India labour or farmer unity
Populist policies over structural reform	Loan waivers > systemic land, labour, tax reforms
Underrepresentation in policy spaces	Working classes rarely represented in legislature or bureaucracy

➤ Class Politics vs Caste Politics

Aspect	Class Politics	Caste Politics
Basis	Economic status	Birth, social hierarchy
Mobilisation Tool	Wages, welfare, inflation, jobs	Identity, reservation, representation
Emotional Connect	Moderate	Deep-rooted and historic
Political Use	Budget targeting, universal schemes	Vote bank politics, caste-wise tickets
Intersection	Rural class, often lower caste	Neo-middle class emerging within lower castes

➤ Way Forward

Area	Suggestion
Inclusive Policy formation	Target economic vulnerability across all communities
Political Representation	Encourage working class and women participation in politics
Civic Awareness	Promote class consciousness through education & media
Welfare Rationalisation	Universalise schemes, avoid over-reliance on caste quotas

➤ Conclusion: Class politics is an emerging and necessary counterbalance to identity-based mobilisation.

As India moves towards modernization, our focus should increasingly shift towards economic justice, livelihood-centered governance, and equality-based policies, so as to build a truly inclusive democracy.

Women Class as an Emerging Political Force in India

Traditionally, women are seen as a marginalised group, however, currently in India, they are emerging as an independent and influential political class. This class is shaped by shared experiences such as economic insecurity, gender inequality, and reliance on welfare schemes. Their rising participation and vote consolidation have begun to influence both electoral outcomes and policy priorities.

➤ **Role of “women class” in Indian politics**

Dimension	Description	Examples
High Voter Turnout	In many states, women's voter turnout equals or exceeds men's.	Bihar (2020): 59.7% women vs 54.7% men turnout.
Welfare as a Vote Driver	Women vote based on delivery of schemes: LPG, toilets, cash transfer, etc.	Ujjwala Yojana, Ladli Yojana, free ration shaped women voting trends.
Gendered Voting Patterns	Women are forming a unified "beneficiary class" beyond caste/religion lines.	In Bengal, Bihar, Odisha, women voted en masse for welfare-focused parties.
Policy Influence	Rise in women-centric policies: reservation, health, safety, education.	33% reservation in Lok Sabha & Assemblies, Beti Bachao Beti Padhao, Kanya Sumangla Yojana.
Issue-Based Awareness	Rise in protests by women workers, SHGs, ASHAs, and students.	Shaheen Bagh protests, ASHA workers' strike during COVID.

➤ **Recent Trends**

State/Region	Women-Centric Political Impact
West Bengal (2021)	Women Voters credited for Mamata Banerjee's third term.
Bihar (2020)	Nitish Kumar retained power with strong women support (7-point programme).
Uttar Pradesh (2022)	Free ration, cooking gas, toilets increased BJP's women vote share.
Odisha	Naveen Patnaik's Biju Swasthya Kalyan Yojana focused heavily on women.

➤ **Intersection with Class Politics**

- Poor and rural women form the core of this emerging political class.
- Their demands revolve around livelihood, safety, health, education, and dignity, making them issue-based voters.

➤ **Related Concepts**

Term	Use in Answer Writing
Feminisation of Politics	Increased role of women as Voters, leaders, and political decision-makers.
Silent Revolution	Coined by Yogendra Yadav – shift in voting patterns led by poor women.
Welfare Politics	Women are the primary target of subsidies and service delivery schemes.

- **Conclusion:** The rise of “women as a political class” marks a transformational shift in Indian democracy—from passive recipients to active political agents. Their consolidated voting behaviour, policy impact, and grassroots activism show that gender is now a central axis of political mobilisation, not just a demographic statistic.

Comparative Analysis: Role of Caste, Religion, and Class in Indian Politics

Aspect	Caste	Religion	Class
Positive Impact	- Representation of SC/ST/OBC - Affirmative action policies - Rise of Dalit/OBC leaders	- Protection of minority rights - Cultural pluralism - Minority welfare schemes	- Targeted welfare (MNREGA, PM-Kisan) - Farmer & labour movements - Economic inclusion
Negative Impact	- Vote bank politics - Caste violence - Competitive backwardness	- Communalism - Religious appeasement - Identity-based polarisation	- Fragmented mobilisation - Populist policies over reform - Overlap with caste/religion
Challenges	Balancing merit vs reservation	Secularism vs majoritarianism	Lack of class unity

	▪ Caste-based fragmentation ▪ Token representation	▪ Hate speech, riots ▪ Politicisation of identity	▪ Economic inequality ▪ Identity overrides class demands
Way Forward	▪ Inclusive reservations ▪ Caste-neutral schemes ▪ Civic education	▪ Strengthen secularism ▪ UCC with consensus ▪ Ban religious campaigning	▪ Focus on income-based schemes ▪ Labour law reforms ▪ Empower SHGs, gig workers

Role of Gender in Indian politics

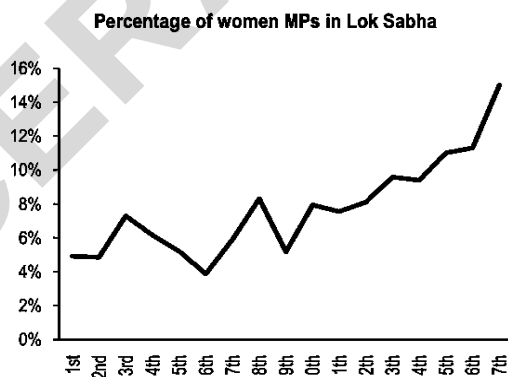
Gender plays a crucial role in shaping political participation, representation, and policy-making in India. Despite significant strides, gender disparities continue to affect the extent to which women and gender minorities can participate in the political arena.

➤ Evolution of Women's Political Participation in India

Phase	Key Developments	Remarks
Pre-Independence (Before 1947)	• Women like Sarojini Naidu, Kasturba Gandhi, Aruna Asaf Ali led & participated in freedom movements.	• Participation was moral and activist-based, not institutional or electoral.
Post-Independence (1947–1970s)	• Indira Gandhi became the first female PM in 1966. • Low electoral participation and representation.	• Presence at the top, but grassroots and middle-tier participation remained weak.
Women's Movements (1970s–1990s)	• Rise of AIWC, SEWA, Mahila Mandals. • Advocacy for legal rights, representation, equality.	• Paved the way for legislative milestones like 73rd & 74th Amendments.
Panchayati Raj Era (1992–1993)	• 33% reservation in local bodies via 73rd & 74th Amendments.	• A historic structural shift—millions of women entered political institutions.
21st Century (2000s–Present)	• Rise in women MPs, MLAs, mayors, sarpanchs. • Increased welfare schemes targeting women voters.	• Women voters now equal or exceed men in turnout in many states.
Current Representation (2024 Data)	• Lok Sabha: ~15% women MPs. Rajya Sabha: ~14% • Panchayats: 45–50% in some states.	• Still below global average of ~26%. Bill for 33% reservation in Parliament remains pending.

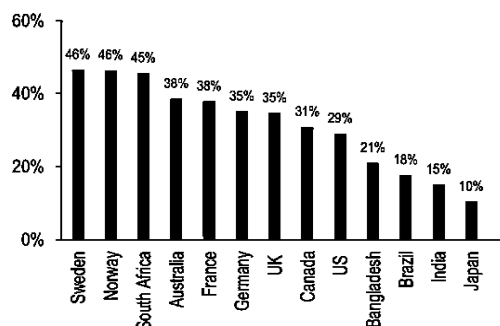
➤ **Conclusion:** From freedom fighters to grassroots leaders, women have **evolved from symbolic presence to substantive political force**. However, **structural and social barriers** still hinder full participation.

Slow rise in the representation of women in Lok Sabha



Sources: Gender-Wise Statistical List, Lok Sabha, 2019; PRS.

Percentage of women in some national legislatures



Sources: Inter-Parliamentary Union Website as accessed on September 19, 2023; PRS.

Q1. Despite constitutional guarantees and policy reforms, gender representation in Indian politics remains inadequate." Critically examine the status of women's political representation in India and suggest measures to improve it.

Ans: India, the world's largest democracy, guarantees equality before the law (Article 14) and non-discrimination based on sex (Article 15). Yet, when it comes to gender representation in politics, a substantial gap exists between constitutional ideals and ground reality.

➤ **Current Status of Gender Representation**

Institution	Women Percentage	Remarks
Lok Sabha (2024)	~15%	Highest ever, but still far below the global average (~26%).
Rajya Sabha	~14%	Gradual but inconsistent growth.
State Assemblies	Varies (4% to 13%)	Poor representation in large states like UP, Bihar, Rajasthan.
Panchayati Raj	33% (some states > 50%)	Due to 73rd & 74th Amendments; significant impact at grassroots level.

➤ **Reasons for Inadequate Representation**

1. **Patriarchal Social Norms:** Women often discouraged from public life; politics seen as a male domain.
2. **Party Bias:** Few parties give tickets to female candidates; tokenism is common.
3. **Violence & Intimidation:** Electoral violence and unsafe public spaces deter participation.
4. **Economic Disadvantage:** High cost of elections disadvantages economically dependent women.
5. **Lack of Political Grooming:** Fewer women in party leadership or mentorship pipelines.

➤ **Positive Trends:**

- Women's voter turnout equals or exceeds men in many states (e.g., Bihar, UP, Bengal).
- Women as a Decisive Political Class — influencing welfare-based electoral outcomes.
- Rise of women-centric policies like Ujjwala, Jan Dhan, Ladli Yojanas.

➤ **Steps Taken So Far**

Measure	Impact
73rd & 74th Amendments (1992–93)	33% reservation in PRIs led to over 10 lakh women elected to office.
Elected Women Representatives (EWR) Training	Improved governance at local levels.
National Commission for Women (NCW)	Policy advisory and legal reform advocacy.
Women's Reservation Bill	33% reservation in Parliament and State Legislatures.

➤ **Way Forward**

1. **Promote Women in Party Leadership:** Mandatory internal quotas in party structures.
2. **Financial Support for Women Candidates:** State funding or campaign cost reimbursement.
3. **Create Safe Political Spaces:** Providing special security, digital access, and media visibility to women.
4. **Political Education & Training:** Encourage mentorship and grooming of female leaders.

➤ **Conclusion:** Women constitute nearly 50% of India's population, yet remain underrepresented in decision-making spaces. Bridging the gender gap in politics is not just about numbers—it's about making democracy truly inclusive and representative. True empowerment of women lies in ensuring their rights as well as active participation, not merely symbolic presence.

Q2. The Women's Reservation Act, 2023, marks a historic step toward gender equality in politics. Critically examine its provisions, implementation challenges, and potential impact on Indian democracy.

Q3. Emergence of women as a distinct political class has begun to reshape electoral outcomes and governance priorities in India." Discuss the factors contributing to this transformation and analyze its implications on Indian politics.

Q4. Challenges Faced by Gender Politics in India.

While India has made strides in recognizing women's rights and increasing voter participation, gender politics still faces deep-rooted structural and societal challenges. Despite policy reforms, the representation, voice, and agency of women in politics remain limited.

➤ **Key Challenges to Gender Politics in India**

Challenge	Explanation	Example
1. Underrepresentation in Legislature	Women hold ~15% of Lok Sabha seats; far below global average (~26%).	Only ~74 women MPs out of 543 in 2019 Lok Sabha.
2. Patriarchal Political Culture	Parties perceive politics as a male domain; women rarely head key portfolios.	Fewer women state party presidents, CM candidates, or high command roles.
3. Tokenism in Candidature	Women often given “safe” or “losing” seats or pushed as symbolic representatives.	Women MLAs often sidelined in legislative debates.
4. Violence & Intimidation	Physical, digital, and verbal abuse deter women's political participation.	Online trolling of female politicians; lower female turnout in conflict areas.
5. Economic Disadvantage	Cost of elections and campaign funding deters women candidates.	Only 10% of election fund receivers are women.
6. Stereotyping & Media Bias	Focus on appearance, family ties, or personal life over political merit.	Coverage of women leaders often sensationalised or trivialised.
7. Lack of Political Grooming	Fewer women in party youth wings, think tanks, or mentorship roles.	Male-dominated party structures lack gender inclusivity.
8. Socio-cultural Barriers	Early marriage, domestic roles, and family resistance hinder women's leadership.	Especially in rural areas and traditional communities.

➤ **Conclusion:** Gender politics in India faces a structural and societal roadblock, not just a numerical one.

For women to transition from electors to power-holders, systemic reforms must address patriarchy, prejudice, and power imbalance.

Transgender Representation in Indian Politics

Transgender persons, long marginalized in Indian society, have started asserting their political identity in recent years. From the recognition of the 'third gender' by the Supreme Court to electoral participation, the journey reflects India's evolving democratic landscape. Yet, true political empowerment of the transgender community remains a work in progress.

➤ **Constitutional & Legal Milestones**

Provision/Case	Significance
Article 14 & 15	Guarantees equality and prohibits gender-based discrimination.
NALSA v. Union of India (2014)	Recognised transgender as 'third gender'; affirmed the right to self-identify.
Transgender Persons (Protection of Rights) Act, 2019	Provides legal recognition and protection against discrimination.

➤ **Transgender Community Participation in Politics:**

Person	Position/Impact
Shabnam Mausi (Madhya Pradesh)	First transgender MLA in India (1998–2003).
Madhu Kinnar (Chhattisgarh)	First openly transgender Mayor in India (Raigarh, 2015).

Apsara Reddy	First transgender office bearer in a national party (Congress – Mahila Morcha).
Joyita Mondal (West Bengal)	First transgender judge (Lok Adalat, 2017).
Putti Raja (Karnataka)	Fielded by JD(S) in 2023 Assembly elections.

➤ **Challenges Faced by Transgender community in Politics**

Challenge	Explanation
Social stigma & prejudice	Transgenders still face discrimination within parties and from electors.
Lack of representation	Very few are fielded by mainstream political parties.
Exclusions	Poverty and social exclusion limit their political participation.
Stereotyping	Seen more as symbolic candidates rather than serious political actors.
Institutional Gaps	No dedicated political reservation; implementation of existing rights is poor.

➤ **Positive Developments**

- **Increased Visibility:** More candidates openly identify as transgender in elections.
- **Legal Recognition:** Electoral Commission allows third gender on voter ID.
- **Social Empowerment Movements:** NGOs and civil society promoting transgender rights.
- **Digital Awareness:** Trans activists increasingly using social media for political voice.

➤ **Way Forward**

Measure	Expected Impact
Political reservation	Just like SC/ST/OBC or women, ensure political representation in legislatures.
Inclusion in party structures	Internal quotas or nomination in political parties.
Campaign finance support	Help transgender candidates contest elections.
Legal enforcement	Ensure Transgender Act provisions are implemented effectively.
Gender-sensitivity training	For poll officials, media, and parties to reduce bias.

Role of Ethnicity in Indian Politics

Ethnicity refers to shared cultural traits such as language, religion, ancestry, customs, and region. In a diverse country like India, ethnicity is a key political identity, often shaping electoral alliances, regional autonomy demands, and party politics. While ethnic diversity strengthens pluralism, it can also fuel identity conflicts and secessionist tendencies if mishandled.

➤ **How Ethnicity Influences Indian Politics**

Dimension	Role of Ethnicity
Electoral Politics	Ethnic groups influence voting patterns, political mobilisation, and party strategies.
Regional Movements	Ethnic identities have driven demands for statehood and regional autonomy.
Formation of Political Parties	Many regional parties emerged around ethnic identities.
Policy Formulation	Ethnic groups lobby for inclusion in affirmative action, special status, etc.
Conflict and Integration	Ethnic conflicts (e.g., NE India, Kashmir) challenge national integration.

➤ **Examples of Ethnicity in Indian Politics**

Region / Group	Ethnic Identity & Political Impact
Dravidian Identity (Tamil Nadu)	Shaped anti-Hindi movements; led to rise of DMK, AIADMK.
Gorkhas (Darjeeling)	Demand for Gorkhaland based on ethnic and linguistic uniqueness.

Nagas, Mizos, Kukis	Ethnic insurgencies led to special provisions and peace accords in Northeast.
Kashmiri Muslims	Regional politics strongly influenced by ethnic and religious identity.
Tribal groups (Jharkhand, Chhattisgarh, Odisha)	Demand for separate statehood, tribal welfare, inclusion in ST category.
Linguistic Ethnicity	Andhra Pradesh formation (1953) marked the beginning of linguistic reorganisation.

➤ Challenges of Ethnic Politics

Challenge	Impact
Ethnic Polarisation	Electoral and social divisions along ethnic lines.
Secessionist Movements	Undermines national unity (e.g., Naga, Khalistan, Kashmir).
Ethnic-based; Riots	Ethnic clashes like in Manipur, Assam, Delhi, lead to loss of life and trust.
Vote Bank Politics	Politicians may exploit ethnic identities for electoral gain.
Fragmented Political Mandate	Rise of multiple ethnic-based parties leads to coalition instability.

➤ Positive Aspects of Ethnic Politics

- Promotes Representation of marginalised and culturally unique groups.
- Preserves Diversity through federalism and regional identity recognition.
- Empowers Minorities by giving them a political voice (e.g., tribal leadership).
- Drives Welfare Policies targeted to ethnic-linguistic communities.

➤ Way Forward

Measure	Expected Outcome
Ethnic Inclusion in Governance	Appoint leaders from diverse groups; ensure policy sensitivity.
Dialogue & Decentralisation	Empower regional governments to address ethnic concerns.
Constitutional Safeguards	Implement Articles 371(A-I), 5th & 6th Schedules effectively.
Civic Nationalism	Promote Indian identity over narrow sub-nationalisms.
Early Conflict Resolution	Mediate ethnic disputes before they become violent.

- **Conclusion:** Ethnicity is both a resource and a risk for Indian democracy. If managed in a balanced manner, it strengthens federalism, inclusivity, and diversity. However, if misused, it can affect national unity and promote unrest.

Role of Language in Indian Politics

- India is a linguistically diverse country with 22 official languages listed in the 8th Schedule of the Constitution. It is worth noting that more than 1600 dialects are spoken across the country. Language is not only a medium of communication in Indian politics, but also an important symbol of identity, culture, federalism and political mobilization. Its influence has been clearly seen in discussions related to state reorganization, electoral strategies, education policy, and national integration in India.

➤ How Language Influences Indian Politics

Dimension	Role/Impact
Political Identity	Language often defines regional identity (e.g., Tamil, Marathi, Bengali pride).
Electoral Mobilisation	Parties use regional languages for outreach; slogans, manifestos often localised.
Federal Structure	Language demands led to linguistic reorganisation of states.
National Integration	Hindi vs non-Hindi states debate fuels national discourse.
Education & Governance	Medium of instruction and official language usage are political issues.

➤ **Major Events / Movements Related to Language Politics**

Event / Phase	Impact
1940s–1950s: Language & Partition	Urdu-Hindi divide added communal dimension during Partition.
1953: Andhra Formation Movement	First linguistic state formed after Potti Sriramulu's fast unto death.
1956: States Reorganisation Act	Created states based on language, reinforcing linguistic federalism.
1965: Anti-Hindi Agitations (Tamil Nadu)	Major protests against making Hindi the sole official language.
1990s–2000s: Regional Assertion	Rise of regional parties based on language pride (e.g., Shiv Sena in Maharashtra, DMK in TN).
NEP 2020 Language Debate	3-language policy revived concerns about imposition and language freedom.

➤ **Language & State Formation**

State	Formed On Linguistic Basis
Andhra Pradesh (1953)	Telugu
Gujarat & Maharashtra (1960)	Gujarati and Marathi
Punjab (1966)	Punjabi
Nagaland, Mizoram, Meghalaya	Tribal/linguistic identity
Jharkhand, Chhattisgarh, Uttarakhand (2000)	Language + tribal/ethnic mix

➤ **Constitutional Provisions Related to Language**

Article	Provision
Article 343	Hindi as official language of the Union.
Article 344	Commission and Committee for promoting official language.
Article 348	English to be used in Supreme Court and High Courts.
8th Schedule	Lists 22 official languages recognized by the Constitution.
Article 350A & B	Facilities for linguistic minorities and appointment of special officer.

➤ **Positive Role of Language in Politics**

- Preservation of cultural identity and diversity.
- Rise of regional leadership (e.g., MGR, Karunanidhi, Bal Thackeray).
- Federal accommodation through linguistic states.
- Political empowerment of linguistic minorities.

➤ **Challenges of Language-Based Politics**

Challenge	Explanation
Linguistic Chauvinism	Regional pride may lead to exclusion of other languages (e.g., anti-Hindi slogans).
Centre-State Tensions	Hindi imposition fears in southern and NE states.
Neglect of Linguistic Minorities	Within states, smaller languages/dialects receive less official recognition.
Political Fragmentation	Multiple regional parties based on language dilute national cohesion.
Digital & Official Divide	English dominance in technology and law fields creates language inequality.

➤ **Way Forward**

Suggestion	Benefit
Promote multilingual governance	Inclusivity in administration & education.
Respect linguistic federalism	Avoid centralised imposition; encourage local autonomy.
Strengthen regional language media	Encourage participation in democracy via local language platforms.
Balance Hindi promotion with regional diversity	Promote Hindi as a link language, not as a language of dominance.
Protect linguistic minorities	Implement Articles 350A & 350B effectively.

- **Conclusion:** Language is a double-edged sword in Indian politics. It can be a powerful tool for identity, empowerment and cultural expression, while it can also be a tool for division and exclusion.

Maintaining “**unity in diversity**” requires striking a balance between linguistic pride and inclusive nationalism, so that language becomes a tool for unity and shared identity rather than division.

Related Topics / Questions:

1. Discuss the impact of linguistic reorganisation on Indian federalism.
2. Critically examine the role of language in identity-based politics in India.
3. What are the constitutional safeguards for linguistic minorities?
4. Language politics in India has moved from confrontation to accommodation. Discuss.

Munshi–Ayyangar Formula (1949)

- During the framing of the Indian Constitution, the language issue was highly contentious.
 - The debate was between:
 - Hindi proponents (wanted Hindi as the sole national language).
 - Non-Hindi speakers, especially from the South, who opposed the imposition of Hindi.
- To resolve this deadlock, the Munshi–Ayyangar Formula was proposed.

➤ **Key Features:**

Provision	Explanation
Official Language of the Union	Hindi in Devanagari script would be the official language of the Union.
Use of English	English would continue as an associate official language for 15 years (until 1965).
Numerals	International form of Indian numerals (1, 2, 3...) to be used for official purposes.
Provision for Extension	Parliament could extend the use of English beyond 1965 by law (which it did).

➤ **Constitutional Basis:**

❖ **The formula was incorporated in the following:**

- Article 343 of the Constitution
- Supported by Article 120 (language in Parliament) and Article 348 (language of courts)

❖ **Outcome:** Even after 1965, English continued due to violent anti-Hindi agitations (especially in Tamil Nadu).

- Parliament passed the Official Languages Act, 1963, amended in 1967, allowing continued use of English “as long as needed”.

Q. India's linguistic diversity is both a source of strength and a challenge. Critically examine whether linguistic diversity is a boon or bane for Indian democracy.

➤ **Linguistic Diversity as a Boon**

Advantage	Explanation & Example
Cultural Pluralism	Preserves regional identities and literary traditions (e.g., Tamil, Bengali).
Federal Accommodation	Linguistic reorganisation of states (1956) helped strengthen unity in diversity.
Democratic Inclusion	Electoral campaigns and administration in local languages promote participation.
Promotion of Literature & Arts	Growth of regional cinema, media, and literature (e.g., Marathi theatre, Telugu films).
Recognition of Minorities	Constitutional provisions (Articles 350A & B) protect linguistic minorities.

➤ **Linguistic Diversity as a Challenge**

Challenges	Explanation & Example
Regional Chauvinism	Anti-Hindi agitations in Tamil Nadu (1965), Marathi vs Hindi tensions.
Administrative Complexity	Translating laws, policies, and exams in multiple languages creates difficulties.
Political Fragmentation	Rise of language-based parties (e.g., Shiv Sena, DMK) can dilute national politics.
Education Conflicts	Three-language formula remains controversial (e.g., NEP 2020 opposition in South).
Lack of Linguistic Equality	Dominance of English in higher education and law creates inequality.

➤ **Way Forward**

Strategy	Expected Impact
Promote Multilingualism	Encourage citizens to learn multiple Indian languages for integration.
Strengthen Language Rights	Ensure protection of linguistic minorities in education and governance.
Avoid Imposition, Encourage Choice	Promote Hindi/English as link languages without imposing on regional autonomy.
Digital Inclusion in All Languages	Provide online governance and learning tools in all 22 official languages.

Conclusion

Linguistic diversity is a boon when acknowledged with respect, but it can turn into a curse when it is politicized.

- The real strength of India lies in its ability to accommodate many languages, cultures and identities under a single Constitution.
- Therefore, our goal should not be to impose linguistic homogeneity, but to promote linguistic harmony, so that the sense of unity in diversity is strengthened and every language and culture receives equal respect.

What is the Three-Language Formula?

- **Definition:** The Three-Language Formula is an educational policy recommendation in India that promotes multilingualism and aims to balance national integration with regional and cultural diversity.
- **Origin:** First proposed by the Kothari Commission (1964–66).
 - Officially adopted in the National Policy on Education (1968).
 - Continued in the NEP 1986 and modified again in NEP 2020.

➤ **Structure of the Formula:**

Region	Languages Suggested
Hindi-speaking states	1. Hindi (mother tongue/official language) 2. English 3. One modern Indian language (preferably South Indian language)
Non-Hindi-speaking states	1. Regional language (mother tongue) 2. English 3. Hindi

- **Objective:** To ensure that every child gets the opportunity to learn the following languages:
 - Mother tongue/regional language
 - Hindi or another Indian language
 - English (as a global/utility language)

How It Differs from the Munshi-Ayyangar Formula

Aspect	Three-Language Formula	Munshi-Ayyangar Formula
Nature	Educational policy	Constitutional arrangement (Official language policy of the Union)
Purpose	Promote multilingualism in schools	Define the official language of the Indian Union
Focus	Students to learn 3 languages: regional, Hindi/Indian, and English	Hindi to be the official language; English as associate for 15 years
Level of Implementation	School education	Government administration, Parliament, judiciary
Origin	Kothari Commission (1968 Policy)	Constituent Assembly Debate (1949)
Legal Status	Non-binding educational directive	Incorporated in Article 343 of the Constitution
Controversy	Opposition in Tamil Nadu & other southern states (against Hindi imposition)	Opposition to replacing English after 15 years (led to anti-Hindi riots)

Political parties

Q1. What are political parties and how are they classified globally?

Ans: Political parties are voluntary associations or organized groups of individuals who:

- Share similar political views,
- Seek to gain political power through constitutional means,
- Aim to promote national interests.

Types of Party Systems in the World:

1. One-Party System – There is only a single party; no opposition exists. (e.g., Former USSR).
2. Two-Party System – Two dominant parties (e.g., USA, UK).
3. Multi-Party System – Many parties are active, often forming coalitions (e.g., India, France, Italy).

Q2. What are the major characteristics of the Indian party system?

- Ans:**
1. **Multi-Party System**– This system has evolved due to India's size, diversity, and universal franchise.
 - **2019:** 8 national, 52 state parties, 2,354 registered but unrecognized parties.
 - Leads to coalition politics and hung assemblies.
 2. **One-Dominant Party System:** Congress dominance post-1947 ("Congress System" - Rajni Kothari).
 - Rise of BJP and regional parties weakened this after 1967.
 3. **Personality-Centric Politics**
 - Focus on charismatic leaders over ideology.
 - **Examples:** Nehru, Indira Gandhi, Modi, Kejriwal, Jayalalithaa.
 4. **Traditional Identity-Based Parties:** Formed based on religion (Muslim League), caste (BSP), language (Shiv Sena).
 - May promote sectional interests, affecting unity.
 5. **Emergence of Regional Parties:** Strong influence at both state and national levels (e.g., DMK, BJD).
 6. **Factions and Defections:** Internal splits, defections weaken parties (e.g., Shiv Sena 2022 split).
 7. **Weak Opposition:** Lacks unity and strategy (e.g., 2019 elections).
 - INDIA bloc (2024) struggles with coordination.
 8. **Power-Centric Politics:** Focus on winning power rather than ideology.
 - Frequent ideological compromises (e.g., BJP-PDP alliance).

Q3. What are the criteria for recognizing a party as a national or state party in India?

Ans: **National Party:** If any one condition fulfils:

1. 6% vote share in four or more states + 4 Lok Sabha seats.
2. 2% of the total Lok Sabha seats (at least 11 seats), and these seats must be won from at least 3 states.
3. Recognized as a state party in 4 or more states.

As of 2025: 6 National Parties

- | | |
|-----------------------------------|---|
| 1. Bharatiya Janata Party (BJP) | 4. Communist Party of India (Marxist) [CPI-M] |
| 2. Indian National Congress (INC) | 5. Nationalist Congress Party (NCP) |
| 3. Bahujan Samaj Party (BSP) | 6. Aam Aadmi Party (AAP) |

State Party- If any one condition fulfils:

- | | |
|--|---|
| 1. 6% vote + 2 Assembly seats in state. | 4. 1 LS seat for every 25 LS seats in state. |
| 2. 6% vote in LS + 1 LS seat from state. | 5. 8% total valid votes in state (added in 2011). |
| 3. 3% or 3 Assembly seats. | |

Q4. What privileges are given to recognized political parties?

Ans:

1. **Election Symbols** – Reserved symbols for national/state parties.
2. **Star Campaigners** –
 - Recognized parties are allowed to nominate 40 star campaigners, while unrecognized parties can nominate 20 star campaigners.
 - Travel cost excluded from candidates' expenses.
3. **Media Access** – Free Airtime on Doordarshan and AIR.
4. **Nomination Process** – Only one proposer needed for recognized party candidates.

Q5. What are the features of regional parties?

- Ans:**
- **Limited Presence** – Mostly operate in one state/region.
 - **Cultural/Ethnic Identity** – Focus on language, religion, local pride (e.g., DMK).
 - **Local Issues** – Fight for resource control, autonomy.
 - **State-Level Politics** – Primarily aim to rule in one state.
 - **Autonomy Advocacy** – Push for decentralization (e.g., TRS in Telangana).

Types of Regional Parties

Type	Examples
Based on Culture/Ethnicity	DMK, Shiv Sena, BJD
National Outlook (Limited Base)	SP, NCP
Splits from National Parties	TMC, RJD, BJD
Leader-Centric	LJP, Congress (J), HVP

Q6. What is the role of regional parties in Indian politics?

- Ans:**
1. Good Regional Governance
 2. Check on National Dominance
 3. Centre-State Dialogue
 4. Grassroots Mobilisation
 5. Voter Choice & Competition
 6. Exposing Partisan Governors
 7. Role in Coalitions (e.g., UPA, NDA)
 8. Voice for Local Aspirations

Q7. What are the dysfunctions or limitations of regional parties?

- Ans:**
1. Promote regionalism over national interest.
 2. Encourage casteism, linguism, communalism.
 3. Delay inter-state dispute resolution (e.g., water sharing).
 4. Involved in corruption, nepotism, and vote-bank politics.
 5. Launch populist schemes that burden state finances.
 6. Influence central policy for local gains in coalition setups.

PYQ**Q1. What are the criteria for recognizing a political party as a National Political Party ?(2016 exam)****Voting Behaviour in India****Q1. What is Voting Behaviour?**

Ans: Voting behaviour (or electoral behaviour) means – how people vote, who they vote for, why they vote, and what factors influence their electoral choice in a democracy. It is the process of understanding what factors Voters take into account when exercising their franchise, such as – the ability of the candidate, the policies of the political party, regional and social conditions, and performance in previous elections, etc.

Definitions:

- **Plano and Riggs:** Concerned with how and why people vote.
- **Gordon Marshall:** It focuses on the decision-making process and the factors that influence voting.
- **Stephen Wasby:** Includes psychological and institutional patterns.
- **Oinam Kulabidhu:** Reflects voter preferences, ideologies, and concerns.

Q2. Why is the study of voting behaviour significant?

- Ans:**
1. **Understanding Political Socialization** – Shows how civic values develop.
 2. **Evaluating Democratic Values** – Measures belief in democratic practices.
 3. **Impact of Electoral Politics** – Reveals how elections shape governance.
 4. **Assessing Political Modernization** – This reflects a transition from identity-based voting to issue-based voting.
 5. **Continuity vs Change** – This underlines the changes taking place in voter beliefs.
 6. **According to N.G.S. Kini:** Legitimizes democracy.
 - Reflects citizen participation and decision-making.
 - Shows role-based political action.

Q3. What are the key determinants of voting behaviour in India?

Ans:

Factor	Explanation & Examples
Caste	Parties like BSP, RJD mobilize caste identity. Rajni Kothari: "Caste is politicised."
Religion	Ram Mandir, Triple Talaq debates, IUML, Shiv Sena.
Language	Linguistic pride drives DMK, TDP, Gorkhaland movements.
Region	Regional aspirations (BJD, Akali Dal, AGP). Subnationalism reflects regional pride (e.g., DMK, MNF).
Personality	Charismatic leaders influence Voters (e.g., Nehru, Modi, Jayalalithaa).
Money	Vote-buying common; less effective during wave elections.
Elections Wave	1977 (anti-Emergency), 2014, 2019 pro-Modi waves.

Performance	Anti-incumbency if promises fail (e.g., 1977, post-Emergency).
Party ID	Emotional ties, strong in rural India. E.g., loyal Congress/BJP Voters.
Ideology	Communism (CPI), Secularism (INC), Capitalism (BJP).
Political Events	1971 war, 1984 Indira assassination, 2019 Balakot strikes.
Economy	Inflation, unemployment (1977, 2024 focus on inflation).
Factionalism	Janata Dal split created RJD, JD(U).
Demography	Youth: Pro-change (2014), Women: Welfare-oriented (Ujjwala), Education & habitation affect voting.
Dynasty Politics	Nehru-Gandhi family, Yadavs in UP.

Q4. What is the role of media in shaping voting behaviour?

Ans:

Role	Details & Examples
Information Dissemination	Election dates, EVMs, MCC violations. E.g., 2024 awareness campaigns.
Enforcement of Law	Media exposes Model Code of Conduct violations (e.g., 2023 Karnataka).
Compliance with Election Laws	Section 126/126A/127A RPA, 171H IPC.
Voter Education	EVM usage, polling booths, targeting youth, NE Voters.
Public Media Role	AIR, DD offer free airtime for manifestos.
Social Media Influence	Facebook, Instagram used in 2024 elections.
Fact-Checking & Misinformation	Combats fake news, communal/caste distortion.
Inclusivity (SVEEP)	Focus on tribals, rural Voters.
Exposing Malpractices	2023 Tripura: vote-buying exposed by media.

- **Conclusion:** The role of media, especially digital platforms, is becoming increasingly crucial in a democracy. It not only provides information to voters but also contributes to transparency, voter education, and accountability in governance.


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VIKAS GUPTA SIR

The word "**Coalition**" is derived from the **Latin word 'coalitio'**, which means "**moving together**".

In political terms, it means a coalition of different political parties that come together on the basis of a common program or agenda to form a government and exercise power. To form such a government, there must be mutual agreement and consent between the coalition parties regarding policies, programs and power-sharing.

- Occurs when no single party secures a majority in the legislature.
- Requires compromises on policies among coalition partners to form a government.
- Arises due to multi-party systems in democratic setups.

Features of Coalition Government: Outlined by J.C. Johari:

1. Formed for specific rewards, material or psychological.
2. Necessitates at least two partners.
3. Based on temporary conjunction of specific interests.
4. Dynamic in nature—coalitions dissolve and re-form frequently.
5. Relies on compromise; rigid ideologies are avoided.
6. Operates on a minimum agreed program acceptable to all partners.
7. Pragmatism over ideology; principles may be set aside.
8. Primary purpose is to gain and exercise political power.

➤ **Types:**

1. **Pre-poll Coalitions:** Formed before elections, based on joint manifestos to attract Voters.
2. **Post-poll Coalitions:** Formed after elections, often to share power and run the government.

➤ **Formation of Coalition Governments in India**

1. **Early Years:** Congress dominated the first four Lok Sabha elections (1952–1967).
2. **Indira Gandhi Era:** Managed a minority government with external support after the 1969 Congress split.
3. **Post-1977:** Rise of coalition governments following Congress's defeat.

➤ **Examples of Coalition Governments:**

1. **1977–1979:** Morarji Desai led Janata Party coalition.
2. **1989–1990:** National Front under V.P. Singh.
3. **1996–1998:** United Front governments under H.D. Deve Gowda and I.K. Gujral.
4. **1998–1999:** BJP-led coalition under A.B. Vajpayee.

➤ **Current Updates on Coalition Governments**

1. **2024 General Elections:** BJP continues to lead the National Democratic Alliance (NDA).
 - Opposition formed the INDIA bloc, a coalition of 26 opposition parties, to counter BJP.
2. **Regional Coalitions:**
 - **Maharashtra:** The Shiv Sena-NCP-Congress coalition saw shifts with Eknath Shinde's faction joining hands with BJP.
 - **Bihar:** Nitish Kumar's JD(U) broke away from BJP to join RJD and Congress in 2022.

➤ **Merits of Coalition Government**

1. **Diverse Representation:** Accommodates varied interests, reflecting the electorate's diversity.
Example: Regional parties like DMK or Akali Dal ensure representation of state-level concerns.
2. **Consensus-Based Decision Making:** Policies require agreement among all partners, promoting inclusivity.
3. **Strengthens Federalism:** More responsive to regional demands compared to single-party governments.
4. **Prevents Authoritarianism:** Limits domination by a single party; balanced decision-making.
5. **Reflects Broader Public Opinion:** Represents various cultures, religions, and ethnic groups.

➤ **Demerits of Coalition Government**

1. **Instability:** Differences among partners often lead to government collapse.
Example: Collapse of Charan Singh government (1979).
2. **Weak Leadership:** Prime Minister's authority diluted due to dependency on coalition partners.
3. **Super-Cabinet Phenomenon:** Steering Committees or Coordination Committees undermine the official Cabinet's authority.
4. **Regional Dominance:** Regional parties may pressure central decisions for their benefit.
Example: DMK's influence in policy decisions during UPA rule.
5. **Expanded Cabinet:** Large councils are formed to accommodate all partners; coordination becomes challenging.
Example: Atal Bihari Vajpayee's 1999 council of ministers had over 70 ministers.
6. **Blame Game:** Lack of accountability for administrative failures due to shared responsibilities.
7. **Kingmaker Role of Smaller Parties:** Smaller coalition partners often wield disproportionate influence.
Example: Coalition of Janta Dal party and Telugu Desham party with NDA lead to Modi Government.

Non-Political Party Groups play an important role in democracy. These groups support public opinion, influence government policies, and help ensure transparency and accountability in governance.

They differ from political parties in that they do not contest elections themselves, but still influence the political process through policy-making, public awareness, and protection of interests. They may include elements such as pressure groups, social organizations, citizens' forums, and the media.

➤ Types of Non-Political Party Groups

1. Pressure Groups:

- They are different from political parties. They neither participate in elections nor seek political power.
- They focus on specific programmes and issues, and work to influence government to protect and promote the interests of their members.
- These groups influence government policies through legal and legitimate means such as lobbying, correspondence, campaigning, petitions, public debates, and maintaining contact with legislators.

Types:

1. **Business Groups:** Confederation of Indian Industry (CII), Federation of Indian Chambers of Commerce & Industry (FICCI).
 2. **Trade Unions:** All India Trade Union Congress (AITUC), Bharatiya Mazdoor Sangh (BMS).
 3. **Agricultural Groups:** Bharatiya Kisan Union (BKU), All India Kisan Sabha.
 4. **Professional Groups:** Indian Medical Association (IMA), Bar Council of India.
 5. **Student Groups:** Akhil Bharatiya Vidyarthi Parishad (ABVP), National Students' Union of India (NSUI).
 6. **Religious & Caste-Based Groups:** Vishwa Hindu Parishad (VHP), Jat Mahasabha.
2. **Civil Society Organizations (CSOs) :** Non-governmental organizations (NGOs) and institutions that represent citizens' interests and work for social welfare.

Examples:

1. Self-Employed Women's Association (SEWA).
2. Greenpeace India (Environmental issues).
3. HelpAge India (Elderly welfare).

3. Social Movements

Definition: Collective efforts of individuals or organizations to bring about social or political change.

Examples: Chipko Movement (environmental conservation).

Narmada Bachao Andolan (protection of displaced communities).

LGBTQ + Rights Movements in India.

➤ Roles and Functions

1. Influencing policy making

- Pressure groups and think tanks lobby for policies favourable to society or their own interests.
- Example: Confederation of Indian Industry's (CII) efforts for industry-friendly economic reforms.

2. Social advocacy: Civil society organisations and social movements focus on issues such as poverty, inequality, environmental degradation and corruption.

- Example: Greenpeace India is spreading awareness about climate change.

3. Accountability and transparency: These groups play a watchdog role to keep governments and institutions accountable.

- Example: Association for Democratic Reforms (ADR)'s work regarding electoral reforms.

4. **Mobilising public opinion:** Non-political groups play an important role in educating and organising citizens.
- Example: Anna Hazare's anti-corruption movement.

Differences Between Political Parties and Non-Political Groups

	VS	
Political Party		Pressure Groups
Aims to win elections and form government		Aims to influence public opinion or government policies without contesting elections
Participates in elections by fielding candidates for various offices		Does not field candidates in elections but may support candidates aligned with their interests
Seeks to represent a broad range of public interests and ideologies		Represents specific groups or interests and focuses on particular causes
Broad and inclusive, addressing a variety of issues to appeal to a wide range of Voters		Narrow and specific, concentrating on particular issues or concerns
Hierarchical structure with a leader or president		Leadership structure varies, may have informal or democratic leadership
Open membership, individuals can join based on shared political ideology		Membership may be restricted, usually focusing on those with specific interests
Formulates policies across various issues, creates a comprehensive political platform		Provides input and advice on policies, may not create a comprehensive political platform
Seeks to control and run the government, holds executive power		Seeks to influence government decisions without holding executive power
To govern and implement policies in accordance with their political ideology		To influence and shape public opinion or government policies by exerting pressure
Examples: Bharatiya Janata Party (BJP), Indian National Congress (INC), Aam Aadmi Party (AAP)		Examples: Confederation of Indian Industry (CII), All India Trade Union Congress (AITUC), All India Kisan Sabha (AIKS)

➤ Challenges Faced

1. **Lack of Recognition:** Many non-political groups operate without formal acknowledgment.
2. **Funding Issues:** Dependence on donations can lead to financial instability.
3. **Political Interference:** Often accused of being affiliated with specific political ideologies.
4. **Fragmentation:** Diverse interests may dilute focus and effectiveness.

➤ Recent examples

1. **Farmers' Protest (2020-2021):** Organized by groups like BKU against agricultural laws. Resulted in the repeal of the laws in 2021.
2. **Manipur Conflict (2023):** Civil society groups played a significant role in peace-building and relief efforts.
3. **Digital Rights Activism:** Organizations like Internet Freedom Foundation (IFF) are advocating for data privacy and net neutrality.
4. **Environmental Movements:** Protests against coal mining in Hasdeo Arand forest (2023).
5. **Electoral Reforms:** ADR's push for transparency in political party funding and use of electoral bonds.

➤ **Way Forward**

1. **Strengthening Legal Framework:** Ensure non-political groups operate transparently and without undue influence.
2. **Capacity Building:** Provide training and resources to enhance their effectiveness.
3. **Collaboration with Governments:** Foster partnerships to address social and economic issues collaboratively.
4. **Public Awareness:** Educate citizens about the roles and functions of these groups to ensure wider participation.

➤ **Conclusion:** Non-political party groups play an indispensable role in a democratic system. These groups provide an alternative platform for citizens to participate, contribute to policy-making and social change.

Their success depends on how independent, transparent and focused they are on public interest issues. When these groups prioritise democratic values and public welfare over power or private gain, they become truly effective and agents of positive change.

PYQ

Q1. In the context of people's movements, discuss the 'Non-Party Political Process' in India. (2023 exam)

➤ **Civil Society in India:**

“Civil society is the conscience of the nation.” – **Mahatma Gandhi**

“Democracy needs civil society as much as it needs elections.” – **Amartya Sen**

Quotation related to other topics**1. Role of Caste in Indian Politics:**

- “Indian politics is casteist, and caste is politicised.”

— **Rajni Kothari**

2. Caste Census & Reservation

- “Justice has to be blind to identity, but not to inequality.”
- “Reservation is not a poverty alleviation program; it is a means to ensure representation.”

— **Justice D.Y. Chandrachud**

3. Secularisation of Caste

- “Caste has moved from temples to Parliament.”
- “Modernity has changed the language of caste, not its structure.”

— **Christophe Jaffrelot**

— **Gail**

4. Role of Religion in Politics

- “Those who say religion has nothing to do with politics do not know what religion is.”
- “Religion should remain a personal affair. Its entry into politics is dangerous.”

— **Mahatma Gandhi**

— **Jawaharlal Nehru**

5. Role of Class in Indian Politics

- “Democracy is not the end of class; it is the beginning of class assertion through vote.”

— **Partha Chatterjee**

6. Women as a Political Class

- “When women participate in politics, society benefits as a whole.”
- “A woman’s place is in the House... and the Senate.”
- “Political empowerment is the real measure of gender justice.”

— **Kofi Annan**

— **Kristin Gillibrand**

— **Dr. V. Kurie**

7. Transgender in Politics

- “Inclusiveness is not a privilege, it is a right.”
- “Visibility is the first step toward empowerment.”

— **NALSA judgment (2014)**

— **Laxmi Narayan Tripathi**

8. Ethnicity in Indian Politics

- “Ethnicity, when politicised, can either democratise or divide.”
- “Unity in diversity is not just India’s strength, but its survival strategy.”

— **Ashutosh Varshney**

— **Ramachandra Guha**

9. Language & Politics (Linguistic Diversity)

- “Language is the blood of the soul into which thoughts run.”

— **Oliver Wendell Holmes**

10. Voting Behaviour

- “The ballot is stronger than the bullet.” — **Abraham Lincoln**
- “In democracy, voting is not just a right, it’s a responsibility.” — **Dr. A.P.J. Abdul Kalam**

11. Political Parties

- “In politics, nothing happens by accident. If it happens, you can bet it was planned that way.” — **Franklin D. Roosevelt**
- “Political parties are the lifeblood of a democracy.” — **ECI**

Q1. What is Civil Society?

Ans: Civil society refers to the sphere of voluntary associations and collective action situated outside the realms of the state, market, and family.

➤ **Definitions:**

- **Niraja Gopal Jayal:** All forms of voluntary associations and social interactions not controlled by the state.
- **Michael Bratton:** Social activities between family and state, based on community cooperation and voluntary networks.
- **World Bank:** Non-profit organizations expressing public values and interests.

➤ **Key Characteristics:**

1. Non-state and nonprofit institutions
2. Organized and voluntary
3. Autonomous and citizen-led
4. Connects citizens with the state for participatory governance

➤ **Types of Civil Society Organizations (CSOs)**

Type	Examples
Advocacy-based NGOs	CHRI (Commonwealth Human Rights Initiative), PUCL
Service Delivery NGOs	Pratham (education), SEWA (women), Smile Foundation (health)
Faith-based Organizations	Art of Living, Ramakrishna Mission, Jamaat-e-Islami
Community-Based Organizations (CBOs)	SHGs, Mahila Mandals, tribal cooperatives
Professional & Trade Bodies	CII, FICCI, Bar Associations

Q2. Trace the historical evolution of civil society in India.

Ans:

Period	Major Contributions
Vedic/ Medieval Era	Practices like Daan, Dasvand, Zakat emphasized social welfare; charity by religious institutions.
19th Century Reform	Brahmo Samaj, Arya Samaj, Theosophical Society, Ramakrishna Mission promoted education & social equality.
Freedom Struggle	Gandhian movements: Satyagraha, Civil Disobedience encouraged mass participation, youth, and women.
Post-Independence	Community Development Program (1952), Central Social Welfare Board (1953), Panchayati Raj (1959).
1970s-80s	Chipko Movement (Sunder Lal Bahuguna), Bhoodan Movement (Vinoba Bhave).
1990s (Post-LPG)	NGO expansion, global funding (World Bank, IMF), focus on human rights and environment.
21st Century	RTI Act (2005), Anna Hazare’s Lokpal movement, Save Aarey Forest campaign (2019).

Q3. What is the role of civil society in a democratic state like India?**Ans:**

1. **Policy Advocacy:** Engages in dialogue with governments on education, health, poverty, and rights.
Example: Save the Children India, Farmers' Protests (2020–21).
2. **Protection of Rights:** Legal aid and protest against unjust laws.
Example: Association for Protection of Democratic Rights, Shaheen Bagh Protest (2020).
3. **Transparency Promotion:** Influenced creation of RTI Act (2005), Lokpal and Lokayuktas Act (2013).
4. **Citizen Mobilization:** Participatory development in local infrastructure, planning, sanitation.
5. **Partnership in Development:** NGOs like Asha, Pratham (education), Rural Health Foundation (healthcare in remote areas).

Q4. What are the major challenges faced by Civil Society Organizations (CSOs) in India?**Ans:**

1. **Funding Constraints:** Reduced foreign funding due to FCRA restrictions.
Example: Recent restrictions cut off funds for major NGOs.
2. **Lack of Skilled Staff:** Preference for urban areas and the lack of trained personnel hinder access in rural regions.
3. **Accountability Issues:** Misuse of funds led to Supreme Court directing audits of ~30 lakh NGOs (2017).
4. **Weak Government-CSO Interface:** Bureaucratic hurdles and lack of policy alignment reduces effectiveness.

Q5. What reforms are needed to strengthen civil society?**Ans:**

1. **Financial Reforms:** Streamlined funding mechanisms, encourage CSR contributions.
2. **Capacity Building:** Training personnel and incentives for rural deployment.
3. **Transparency:** Standard audits and public disclosure of funding.
4. **Stronger Collaboration:** Institutional mechanisms for regular engagement with government.

Q6. How does civil society promote transparency and accountability in governance?

- **Advocated RTI Act (2005)** → Empowered citizens to demand information.
- **Social audits (like in MGNREGA)** → Public scrutiny of funds and implementation.
- **Lokpal Movement (2011)** → Resulted in Lokpal Act (2013)

- ❖ **National Integration:** National integration refers to creating a sense of unity, solidarity, and loyalty among the diverse population of a nation.
- ❖ **Myron Weiner:** Avoidance of divisive movements and prioritizing national over parochial interests.
- ❖ **H.A. Gani:** A socio-psychological and educational process fostering unity and common citizenship.
- ❖ **Dr. S. Radhakrishna:** National integration is a thought and consciousness that unites people.

➤ Major Threats to National Integration

1. Caste-Based Divisions

- **Issue:** Deep-rooted casteism leads to discrimination and social exclusion.
- **Examples:** Hathras Case (2020) – Dalit victim, police apathy.
 - **Bhima-Koregaon violence (2018)** – Dalit assertion met with hostility.
- **Consequences:** Identity-based voting, inter-caste violence, social discontent

2. Communalism

- **Issue:** Religion-based polarization and hatred.
- **Historical Examples:** Partition (1947), Babri Masjid demolition (1992), Gujarat riots (2002).
- **Recent:** Delhi Riots (2020), CAA Protests (2019–20).
- **Consequences:** Faithlessness, segregation, communal riots.

3. Narrow mindedness related to region and language

Issue: Regional identity overtaking national interest.

- **Examples:** Anti-Hindi protests in Tamil Nadu.
 - Demand for Gorkhaland, Bodoland, Vidarbha.

Result: Demand for separation, situation of conflict between center and state.

4. Ethnic Movements

- **Issue:** Assertion of ethnic identity demanding autonomy or separation.

• Examples:

- Naga movement (NSCN-IM).
- Manipur-Kuki-Meitei conflict (2023).

- **Impact:** Violence, alienation, insurgency.

5. Left-Wing Extremism (LWE)

- **Issue:** Armed struggle against the state due to exploitation of tribals, land alienation.
- **Hotspots:** Chhattisgarh, Jharkhand, Odisha.
- **Progress:** 77% decline in Maoist incidents (2010–2022).
- **Government Efforts:** Aspirational Districts Programme, SAMADHAN Doctrine.

6. Right-Wing Extremism

- **Issue:** Religious nationalism; intolerance towards minorities.
- **Examples:**
 - Malegaon Blast (2008).
 - Cow-vigilante lynchings.
- **Concerns:** Saffronization of education, majoritarianism, hate crimes.

7. Digital Misinformation & Hate Speech

- **Issue:** Fake news, deepfakes, communal rumors spread via WhatsApp, Facebook, Twitter.
- **Examples:** Mob lynching due to child-lifting rumors in Jharkhand.
- **Effect:** Instant violence, mass unrest, communal tensions.

➤ National Security Challenges (Internal + External)

1. Cross-Border Terrorism

- Sponsored by hostile neighbors (especially Pakistan).
- **Examples:** 26/11 Mumbai attacks, Pathankot (2016), Pulwama (2019).

2. Cybersecurity Threats

- **Issue:** Targeting critical infrastructure, data theft, digital fraud.
- **Example:**
 - Critical infrastructure (AIIMS ransomware attack 2022).
 - Banking frauds, data breaches, deepfake threats.

3. Maritime Security

- Drug & arms smuggling via sea, piracy.
- **Concern:** India's 7,500 km-long maritime boundary remains sensitive and vulnerable.

4. Internal Insurgencies

- **Northeast Insurgency:** ULFA, NSCN, Kuki-Zomi issues.
- **Jammu & Kashmir:** Militancy, radicalization, border infiltration.

5. Border Disputes

- **India-China:** Eastern Ladakh (Galwan 2020), Arunachal Pradesh incursions.
- **India-Pakistan:** Ceasefire violations along LoC.
- **India-Myanmar/Bangladesh:** Illegal migration issues.

➤ Interconnection Between Integration and Security

Integration Issue	Security Impact
Communalism	Leads to riots, terrorism breeding grounds
Regionalism	Promotes insurgency, separatism
Caste Discrimination	Fuels LWE and social unrest
Digital Hate	Mobilizes mob violence instantly

➤ Consequences of Weak Integration & Poor Security

1. Loss of lives – Terrorism, riots, Naxal attacks.
2. Economic setbacks – Poor investment, loss in tourism.
3. Social polarization – Trust deficit among communities.
4. Erosion of democracy – Threats to secularism, freedom.
5. Displacement & trauma – As seen in Manipur 2023 conflict.

➤ Way Forward

Area	Recommendations
Education	Promote constitutional values, tolerance, secularism
Law Enforcement	Strengthen hate speech & anti-discrimination laws
Dialogue	Inter-community reconciliation & peace-building
Balanced Development	Address regional & class inequalities
Cyber Vigilance	Tackle fake news, radical content online
Police/Judicial Reforms	Faster trials, sensitive policing

➤ Conclusion

“A secure nation is not just one protected by arms, but one that binds its citizens emotionally, socially, and ideologically. National integration is the foundation of enduring internal security.”.

The Role of National Integration Council (NIC)

- **Formation:** Established in 1961 to address issues like communalism, regionalism, and linguism.
- **Actions:** Passed resolutions condemning divisive forces; set up committees for detailed analysis.
- **Challenges:** Recommendations often remained unimplemented due to lack of political will.
- **Current Status:** Revived periodically; last meeting held in 2013.

Socio-political conflicts arise from structures of society and politics where inequality, discrimination and historical injustice exist. These conflicts are between different classes, communities or groups of society regarding their rights, opportunities and identity. The major areas of these conflicts are as follows:

1. Caste System in India

The caste system is a traditional social structure in India that divides people into different classes based on birth.

Over time, the caste system has evolved into a rigid social hierarchy. The system has historically divided communities based on birth, restricting their access to opportunities and resources.

Modern Issues:

1. **Untouchability:** Though prohibited by the Constitution, it still continues in many rural areas.
 2. **Atrocities on Dalits:** Increasing cases of violence against Dalits, such as the Hathras case (2020), reflect the continuation of caste-based oppression.
 3. **Reservation Debates:** Affirmative action for Scheduled Castes (SC), Scheduled Tribes (ST), and Other Backward Classes (OBC) often sparks political and social tensions.
 4. **Current Update:** Supreme Court's review of reservation policies and the introduction of Economically Weaker Section (EWS) quotas in 2019 for upper-caste poor have sparked debates on social equity.
2. **Gender Inequality:** Women have faced discrimination in areas like inheritance, education, and employment due to patriarchal norms.

Key Issues:

1. **Dowry System:** Despite the Dowry Prohibition Act (1961), dowry-related deaths remain significant. Example: 6,000+ dowry deaths reported in 2021 (NCRB).
2. **Workforce Participation:** According to World Bank, India's female labor force participation dropped to 23% in 2021.
3. **Safety:** High-profile cases like the Nirbhaya gang rape (2012) underscore ongoing safety issues.

Government Initiatives:

- **Beti Bachao Beti Padhao (2015):** This scheme focuses on improving the status of girls.
- **Reservation for Women Bill (2023):** This Bill provides for 33% reservation for women in the Lok Sabha, state assemblies and the Delhi Assembly.

3. Communalism: Tensions between religious communities leading to violence and mistrust.

Historical Examples: Partition (1947):

1. Massive Hindu-Muslim clashes resulted in millions of deaths.
2. Babri Masjid Demolition (1992) and Godhra Riots (2002) heightened religious divisions.
3. Current Issues:
 1. Hate Speech and polarization during elections.
 2. Mob Lynching: Attacks on minority communities over issues like cow slaughter.
 3. CAA (2019) protests highlighted religious identity politics.
 4. Instances of communal violence during religious processions in Haryana (2023).

4. Economic Inequality: India's significant wealth gap contributes to poverty and unemployment.

- Top 10% of Indians own 77% of the nation's wealth (Oxfam 2021).
- Unemployment rate was 7.6% in October 2024 (CMIE).

Challenges: Rural indebtedness leads to farmer suicides (over 10,000 annually as per NCRB).

- Rising inflation affects the lower-income groups disproportionately.

Solutions: Government's PM Garib Kalyan Anna Yojana provides free food grains.

- Expansion of Mahatma Gandhi National Rural Employment Guarantee Act (MGNREGA).

5. **Substance Abuse:** Addiction to alcohol, tobacco, and drugs leads to health crises.
 - Punjab's drug epidemic is a major concern, as highlighted in the 2023 film Uda Punjab.**Government Action:** Campaigns like Nasha Mukta Bharat Abhiyan aim to curb substance abuse.
6. **Left-Wing Extremism (LWE):** Also known as Naxalism, this movement is driven by issues like land rights and tribal exploitation.
 - Areas like Chhattisgarh and Jharkhand remain hotspots.
 - Maoists' attacks decreased by 77% between 2010-2022 (Ministry of Home Affairs).**Government Initiatives :** Aspirational Districts Programme aims to develop LWE-affected regions.
7. **Right-Wing Extremism:** Growing influence of right-wing ideologies promotes religious nationalism.
 Concerns:
 - Incidents like the Malegaon blasts (2008) attributed to right-wing groups.
 - Rising "saffronization" in educational content.**Government Stance:** Anti-terror laws (UAPA) have been invoked against extremist groups.

➤ Consequences of Socio-Political Conflicts

1. **Loss of Lives :** Ethnic, caste, and communal violence lead to thousands of deaths annually.
Example: Manipur violence (2023), Godhra riots (2002), Naxal attacks
 2. **Economic Stagnation :** Conflict zones suffer disrupted business, investment losses, and unemployment.
Example: Post-Article 370, Kashmir's tourism saw steep decline
 3. **Mass Displacement :** Violence displaces large populations, creating refugee-like conditions.
Example: 50,000+ displaced in Manipur (2023 ethnic conflict)
 4. **Psychological Trauma :** Survivors face PTSD, anxiety, especially women and children.
Example: Nirbhaya case aftermath highlighted trauma among survivors and society
 5. **Social Fragmentation :** Promotes "us vs. them" mindset; weakens national integration.
Example: Communal tensions during CAA protests (2019) intensified polarization
 6. **Erosion of Constitutional Values :** Violates secularism, equality, justice; undermines trust in institutions.
Example: Hate crimes and lynchings challenge Article 14 & 21
 7. **Political Instability :** Governance suffers due to unrest, populism, and identity politics.
Example: Riots and mass protests disrupt policymaking and law-making
 8. **Pressure on Law & Order :** Forces overburdened; risk of excesses like custodial torture or misuse of laws.
Example: AFSPA-linked concerns in conflict regions like Manipur, J&K
- **Conclusion:** "Socio-political conflicts not only harm lives and economies but also erode the moral and constitutional fabric of a nation. Justice, dialogue, and inclusive governance are the key to lasting peace."
- **Way Forward**
1. **Educational Reforms:** Incorporate value education promoting secularism and gender equality.
 2. **Policy Implementation:** Strengthen laws against discrimination and hate speech.
 3. **Dialogue and Mediation:** Promote platforms for inter-community dialogues.
 4. **Empowering Marginalized Groups:** Enhance affirmative action policies.
 5. **Inclusive Development:** Focus on poverty alleviation and employment generation.
- If these root causes are addressed and targeted measures are taken, India can move towards a more inclusive and just society.



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